

NATIONAL TRANSPORTATION SAFETY BOARD

Investigative Hearing

US Army PAT25, Sikorsky UH-60L and

PSA Airlines flight 5342

MHI RJ Aviation CL-600-2C10 (CRJ700), N709PS

Midair Collision in Washington, DC

January 29, 2025

Docket No.	SA-544
EXHIBIT	
2-HELO-B	

Helicopter Operations Interview Transcripts

(1085 Pages)

DCA25MA108

HELICOPTER OPERATION - HUMAN PERFORMANCE

Group Chair's Factual Report - Attachment 1
Helicopter Operations Interview Transcripts
June 10, 2025

Table of Contents

Interview	Page No
1. Feb 1, 2025, 0900, CW4 Ingalls, 12th Aviation Battalion	4
2. Feb 1, 2025, 1104, CPT Gallon, Bravo Company, 12th Aviation Battalion	74
3. Feb 1, 2025, 1309, CPT Sawatzky, 12th Aviation Battalion	141
4. Feb 1, 2025, 1435, 1SG Barton, Bravo Company, 12th Aviation Battalion	173
5. Feb 1, 2025, 1543, CW3 McKeown, Bravo Company, 12th Aviation Battalion	208
6. Feb 4, 2025, 1402, CW2 Klingbeil, Bravo Company, 12th Aviation Battalion	234
7. Feb 4, 2025, 1600, CW2 Coffman, Bravo Company, 12th Aviation Battalion	295
8. Feb 6, 2025, 1350, CW3 Barczak, 12th Aviation Battalion	345
9. Feb 6, 2025, 1014, CW5 Van Vechten, Office of the Program Manager, Saudi Arabia National Guard	403
10. Feb 7, 2025, 1400, CW2 Fonda, Bravo Company, 12th Aviation Battalion	499
11. Feb 9, 2025, 1300, Mr. B. Haase, Retired	549
12. Feb 10, 2025, 0819, CW2 Williams, Bravo Company, 12th Aviation Battalion	644
13. Feb 10, 2025, 1030, CW2 Stowers, Bravo Company, 12th Aviation Battalion	689
14. Feb 10, 2025, 1238, CW3 Halterman, Charlie Company, 12th Aviation Battalion	734
15. Feb 11, 2025, 1308, LTC Holownia, 12th Aviation Battalion	793
16. March 20, 2025, 1004, 1SG Wayne Bulson, 12 th Aviation Battalion	904
17. March 21, 2025, 1301, CW2 John Marshall, 12 th Aviation Battalion	946
18. May 5, 2025, 1302, COL DeForest, TAAB Commander	963
19. May 5, 2025, 1531, Ross Steadman, TAAB Safety Manager	1040

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of:

*

*

FATAL COLLISION BETWEEN AMERICAN

*

AIRLINES JET AND ARMY HELICOPTER

*

Accident No.: DCA25FM015

NEAR RONALD REAGAN NATIONAL

*

AIRPORT IN WASHINGTON, DC

*

ON JANUARY 30, 2025

*

*

* * * * *

Interview of: CW3 MATTHEW INGALLS, Standardization Officer
12th Aviation Battalion, Bravo Company

Saturday,
February 1, 2025

APPEARANCES:

DR. WILLIAM BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN MCKENNY, Operations Group Chairman, Helicopters
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

MARK WARD, Accident Investigator
National Transportation Safety Board

DR. SABRINA WOODS, Human Performance Investigator
National Transportation Safety Board

DAVE BLAIR, Chief Pilot for Safety
Sikorsky

PAUL KIM, Chief Pilot
PSA Airlines

CW5 NICK JACOBY, Standardization Pilot
U.S. Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of Matthew Ingalls:	
By Mr. McKenny	6
By Dr. Bramble	18
By Mr. Ward	36
By Mr. Miller	38
By Mr. Blair	42
By Mr. Kim	50
By Mr. McKenny	53
By Dr. Bramble	54
By Mr. Ward	57
By Mr. Blair	58
By Mr. Kim	59
By Dr. Bramble	60
By Mr. Ward	62
By Dr. Bramble	63
By Mr. Miller	67
By Mr. McKenny	68
By Dr. Bramble	68
By Unidentified Speaker	69

I N T E R V I E W

(9:01 a.m. EST)

DR. BRAMBLE: Okay. Today is February 1st, 2025. It is 0901 Eastern Standard Time. My name is Bill Bramble. I'm a human performance investigator with the NTSB. Van McKenny and I are leading the operations and human performance working group, helicopter, for Investigation Number DCA25MA108 involving the 12th Battalion and United -- I'm sorry. What is the flight number.

UNIDENTIFIED SPEAKER: PSA 5342.

DR. BRAMBLE: Thank you for that.

The NTSB is an independent federal agency. We're not part of the Department of Transportation or the FAA, and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of the investigation is complete and accurate.

We will be recording this interview so that it can be transcribed. After we receive the transcript, our group will review it for typos before it's included in the public docket for this investigation. We can provide you an opportunity to review the transcript if you'd like.

I would now like to introduce each of the group members and ask them to briefly introduce themselves and state their

1 organizational affiliation. Mr. McKenny.

2 MR. McKENNY: Van McKenny, helo operations group chairman,
3 NTSB.

4 MR. MILLER: Eddie Miller, FAA, here at the headquarters,
5 senior accident investigator for FAA.

6 MR. WARD: Mark Ward, NTSB, accident investigator up in
7 Alaska with Black Hawk experience.

8 DR. WOODS: Sabrina Woods, human performance investigator
9 with the NTSB in support.

10 MR. BLAIR: Dave Blair, the chief pilot for safety at
11 Sikorsky.

12 MR. KIM: Paul Kim, chief pilot with PSA Airlines.

13 CW5 JACOBY: CW5 Jacoby, stans at Brigade.

14 DR. BRAMBLE: Okay. Each group member will have two
15 opportunities to ask questions. We'll be taking turns, and
16 everyone's been instructed not to interrupt the person who's turn
17 it is to ask questions. Please answer all questions to the best
18 of your recollection. If you don't understand a question, just
19 say so, and if you realize you misstated something or you want to
20 correct something, just let us know.

21 You are entitled to have a representative of your choosing
22 present during this interview. Is there someone you'd like to
23 have as your representative?

24 CW4 INGALLS: Not at this time.

25 DR. BRAMBLE: Thank you. All right. Let's go ahead and

1 begin, and Mr. McKenny will start the interview.

2 MR. McKENNY: Yes, sure.

3 INTERVIEW OF MATTHEW INGALLS

4 BY MR. McKENNY:

5 Q. Good morning. Mr. Ingalls, could you just relay to us your
6 experience and background, and then explain your role in the
7 battalion?

8 A. Absolutely. I've been in the military for 22 years now
9 active duty, 15 of that as an aviator, did my first 7 years as an
10 enlisted, different job. And have been an instructor pilot for 11
11 years of the 15, multiple organizations over the time and most
12 recently moved to Fort Belvoir about a year and a half ago, was
13 actually Bravo Company, 12th Company SP for the first year I was
14 here, and then about 6 months ago, I moved up to 12th Battalion
15 standardization officer position which I'm currently serving.

16 Q. Okay. And could you explain your role as the standardization
17 officer?

18 A. Sure. As the Battalion standardization officer, I'm in
19 charge of standardization of all flights or flight related tasks.
20 So I'm in a more loose sense in charge of the instructor pilots
21 themselves and the standardization pilots at each company level.
22 I work for the commander herself and basically enforce the
23 standards that we have in our regulations and doctrine for
24 aviation.

25 Q. Okay. And how much flight time do you have?

1 A. A little over 3,000 total hours. I'm not sure exactly the
2 number, but it's over 3,000.

3 Q. And how much NVG time do you have?

4 A. A little over 1,000 hours.

5 Q. Okay. Great. Were you there at the -- working at the time
6 that the crew departed for their flight?

7 A. I was.

8 Q. Okay. Could you just go ahead and explain or describe what
9 you were doing that day?

10 A. The full day for myself or --

11 Q. You can just kind of briefly go through your day and then
12 give the detail once you want to talk about the interaction with
13 the crew.

14 A. Okay. The organization is very busy right now. We're in the
15 process of changing out two companies that are here on a
16 rotational basis. So I've been at work for most of the day, early
17 morning working on some administrative stuff for the flights that
18 were coming up for that and the academics that we have to conduct.
19 Later in the afternoon, I walked over to Bravo Company's hangar
20 just to kind of get away from the office for a minute, you know,
21 the people asking questions really. So it's usually what I do
22 when I want to take a break.

23 While I was over there, [REDACTED] had approached me for a
24 mission brief. One of my roles in the organization is I'm a
25 mission briefing officer. Our role in that is to identify risk

1 that's associated with the flights that are going to occur and
2 help mitigate that risk as best as possible. It is one of the
3 steps in the mission approval process for all flights, the second
4 step to be exact. And, I had given him his mission brief for the
5 flight that he'd -- NVG APART that he was going to conduct that
6 night, and I don't remember exact time. It was early afternoon,
7 but that would have been about when that happened.

8 After that, I just went back to my office and continued my
9 administrative work. I was there until about 6 p.m. that night.

10 Q. Okay. And so you were not where the crew departed?

11 A. Not when they departed, no. I would have been home already.

12 Q. All right. You said it was the second step in the mission
13 approval process. What's the first step?

14 A. It's the -- really flight scheduling is the first step, the
15 initial mission approval process. And then once that's complete,
16 basically the crews will develop their plan based on what ever
17 training and guidance they're given. And then they'll develop
18 their risk assessment sheet, and then we will use that to identify
19 the risk and mitigate the risk, and that's where the mission
20 briefing officer comes in. It's the last step before the final
21 mission approval authority.

22 Q. Okay. Can you, can you just tell us what you, what you --
23 how you briefed Mr. [REDACTED]

24 A. Sure.

25 Q. What exactly was your interaction with him?

1 A. Yeah. So standard briefing, there are requirements that the
2 pilots have to obtain a brief from a mission briefing officer as
3 far as like products and things that they need to have ready to
4 go. He did inform me that it's a NVG APART for Captain [REDACTED]
5 and he would have his SI on board, Staff Sergeant [REDACTED]
6 They were going to be departing for a time on target mission.
7 They had a PZ at a private airfield. I can't remember the name of
8 it, but he said he knew the person that owned it, and he had
9 coordinated with them to land there, and he had land approval.
10 From there, they were going to proceed basically north of DC, up
11 towards the direction of Frederick for -- to an LZ --

12 UNIDENTIFIED SPEAKER: Can he talk about the (indiscernible)?
13 I don't know if they can talk about that?

14 CW4 INGALLS: -- to an LZ that --

15 UNIDENTIFIED SPEAKER: No, keep it --

16 CW4 INGALLS: Yeah, unfortunately I won't be able to disclose
17 here, but it was a LZ that we're allowed to train at for the
18 military. And then from there, they were going to proceed back
19 down through the DC helo routes to come back to Davison. The last
20 part of that eval is conducting the annual emergency procedure
21 training that they have to do to pass their test, and they were
22 going to do all of that back at Davison.

23 So as far as the plan that he gave me, I told him to make
24 sure he reviews the PZ/LZ cards that we make. That is a
25 requirement. He did have one for the LZ. Captain [REDACTED] had the

1 one for the pick up zone that was near Manassas, the private air
2 strip. I did not see that because she wasn't present for the
3 briefing which is not required, but I did see the LZ card. So I
4 made a note. One of my briefing comments was make sure you review
5 these site files with your crew and understand the procedures in
6 and out of there.

7 We have a restriction on where we can do emergency procedure
8 training. There basically has to be crash rescue available at the
9 location you're doing. So I asked him where he planned on doing
10 it. He told me back at Davison. So I made a note that it should
11 only occur at Davison. There were a couple of other comments, but
12 I don't remember what I put on there now. So.

13 Q. Okay. Did you have any additional discussions with him about
14 the DC helo routes?

15 A. Just what routes he was taking to get back. So nothing
16 specific to the routes themselves.

17 Q. For the DC helo routes, do you -- can you explain to us
18 exactly how the battalion uses those and what the procedures are?

19 A. We use them very frequently. That is our preferred and the
20 way we teach our pilots is we have the zones available to us but
21 stick to the routing structure as best as possible. It's for ease
22 of flow of traffic. We have our standard mission lines that we
23 have within the brigade and the battalion that require us to use
24 those routes for the different operations we do, but for a lot of
25 our training flights, they'll use them as well to get in and

1 around the city.

2 Q. And those are just the standard routes that are published by
3 -- on the FAA charts for the helo route charts?

4 A. Correct. Yes, sir.

5 Q. Okay. Is there any special training that's provided to use
6 those?

7 A. Special? Other than doing the FAA's -- the safety course
8 online for the SFRA freeze, we do -- anytime a pilot is new to the
9 organization, they have to receive a local area orientation
10 flight, and that's usually given by an instructor, and we do
11 Routes 1, 3, 4, 5 and 7, day, nighttime unaided and in their NVGs,
12 all three modes prior to them being designated to fly in the local
13 area. There's no special training outside of a LAO.

14 Q. All right. Moving onto the actual mission, this was a stan
15 flight checkride for the copilot?

16 A. Correct.

17 Q. Can you explain exactly what would be being done on that
18 flight and how it would be conducted?

19 A. Yes. For this type of flight, it's a NVG Stans. So it's
20 actually -- that's actually two evals kind of merged into one.
21 It's NVG or stans but we can do both under goggles. Outside of
22 the normal --

23 Q. Let me interrupt you. Can you explain what a stans is?

24 A. Yeah, standardization flight.

25 Q. Yeah. So what tasks are required for the stans or what tasks

1 are required for the NVG as best you can?

2 A. You want all the tasks?

3 Q. As much as you can.

4 A. Yeah, can I generalize it?

5 Q. Yes.

6 A. Because there's about 80 of them. For standardization, so in
7 our aircrew training manual, we have what's called 1,000 series
8 tasks. Those are base tasks, things like plan a VFR flight,
9 perform a takeoff, perform a landing, maintain standards and, you
10 know, cruise and hovers. So things like that are those 1,000
11 series what we call base tasks.

12 For a standardization flight, they have to perform every
13 single one of those and there's approximately 60 of them, but I
14 mean some of them kind of happen well before they even get in the
15 aircraft. It's like planning stuff. The NVG portion is more
16 hands on performance related for some of those tasks. So like,
17 you know, traffic patterns, VMC takeoffs, VMC approaches, those
18 will all be related to the NVG portion of it. Since they can be
19 merged, we typically will do all the tasks under goggles, what we
20 call the hardest mode of flight.

21 On top of that, we have 2,000 -- just 2,000 series tasks that
22 is really subjective to the unit. For our unit here, we actually
23 don't have a requirement to evaluate those, but as an instructor,
24 I have the ability to add those tasks to an eval and evaluate them
25 as well. It's not any tasks that the pilot's not qualified to do.

1 It is written out on their common task list what they're allowed
2 to do. So anything that's on that list during an annual eval, I
3 can choose to evaluate it. A good example is their time on target
4 that they are conducting. It is not a mandatory requirement for
5 the eval, but it's very common that we practice that, and we
6 evaluate it on most pilots NVG stans evals.

7 Q. Okay. And then -- so the crew would have been doing the stan
8 and the NVGs combined in one task basically, one flight.

9 A. One flight, yes, sir.

10 Q. One flight. And, when would they be using the NVGs on this
11 particular -- when would you be expecting them to use the NVGs on
12 this particular flight? The entire time?

13 A. As he briefed me, they would be wearing the whole time, yes,
14 sir.

15 Q. Do you know what model of NVGs are being used right now?

16 A. ANVIS 6s.

17 Q. And do you have experience with those NVGs yourself?

18 A. I do, yes, sir.

19 Q. Have you flown using NVGs through the DC helo route areas at
20 night? I mean obviously at night.

21 A. Yes, sir.

22 Q. What's your experience using those NVGs through that area at
23 night?

24 A. It depends on which areas. As you get closer to where 1
25 meets 4, it's a little bit more challenging because of the lights

1 from the city, but it's not prohibitive. There are a lot of times
2 it's common for us to -- we'll brief for it and get approved for
3 it to basically fly through there unaided which sometimes is a
4 better method depending on how much actual moonlight there is on
5 top of the city lights. But flying through there with them on can
6 be challenging for most I would imagine.

7 Q. What makes it challenging?

8 A. Our goggles are built to protect themselves from too much
9 light being brought into them so it doesn't damage the tubes, and
10 as there's too much light in them, it starts to actually dim the
11 picture down that we see. So that's where the challenge comes
12 from is when it starts picking up all the city lights specifically
13 in that area. The goggles will start to protect themselves by
14 dimming themselves down to restrict the amount of light that comes
15 in. That's when it can be a challenge is when that, when that
16 starts to occur.

17 Q. Is there -- have you ever had experience where you had
18 problems identifying other aircraft using NVGs at night over that
19 area, like traffic?

20 A. I have not myself.

21 Q. Were there times when you go unaided in that area --

22 A. Yes.

23 Q. -- prefer to go unaided in that area?

24 A. I wouldn't say I always prefer to, but there are times when I
25 would go unaided through that area. Yes, sir.

1 Q. A NVG stan flight, what would you -- how would you expect
2 that to be conducted through that area with the NVGs?

3 A. Are we speaking in a sense as if I was doing the eval?

4 Q. Sure. I mean --

5 A. If I was doing the eval, I wouldn't go there. I'd just --
6 it's not my training style. I'll keep people -- typically I'd
7 operate between Davison and Quantico for myself.

8 Q. Okay. But if you were to go through there, you're doing a
9 stan eval, this is hypothetical, doing a stan eval on a pilot,
10 would you -- I'm not going to ask that question. It's not well
11 formed.

12 A. Okay.

13 Q. All right. Do you know of any other pilots that had
14 difficulty identifying aircraft when you're going through those
15 highly lighted areas of the city with the NVGs identifying other
16 traffic, other aircraft?

17 A. It is very common for new pilots to the area to not
18 understand the amount of volume that goes in and out of that area.
19 So points of congestion are like in the vicinity of Memorial
20 Bridge -- or I'm sorry, Wilson Bridge especially when they're
21 landing 0-1 or 3-3 and the aircraft are separated by 4 to 6 miles.
22 There can be some confusion on what tower is calling out to
23 maintain visual separation. I see that a lot with our junior or
24 less experienced pilots in the area.

25 Q. Okay. And when you're flying NVGs, do you have to look under

1 your NVGs to see your instruments? Or do you just look down?

2 A. Some people do. I wear the heads up display. So I don't
3 really need to look inside, but a lot of people don't because it
4 takes training and we're not required to use that. So people
5 typically won't train with it. But I was not wearing it, yes. We
6 would adjust our goggles so that we can still see the full sight
7 picture also see our instrumentation underneath by looking down
8 underneath the goggles.

9 Q. And doing the transition from Route 4 to Route 1, you know,
10 across the Potomac there in front of Reagan, what would be your
11 primary altitude instrument for that transition?

12 A. Which instrument?

13 Q. Yeah. Which instrument would you use?

14 A. We'd use our altimeter.

15 Q. The RA or --

16 A. Barometric.

17 Q. Barometric.

18 A. Um-hum.

19 Q. I'm going to move onto the crew. The instructor pilot, what
20 was his reputation, Mr. [REDACTED] within the battalion and as a
21 pilot?

22 A. [REDACTED] was -- his reputation with me, he was one of my best
23 and probably one of my more favorite instructor pilots because he
24 was very black and white, and I like that because there's no -- I
25 mean he's very objective when it comes to his job as an

1 instructor. No gray area with him is what I'm saying. As far as
2 the organization goes, [REDACTED] had been the organization for a few
3 years in a different company. He had gone to Honduras and come
4 back one year later and then was assigned to Bravo Company. So
5 he's well known for the people that have been around in the
6 organization, some of the more senior people that hadn't quite
7 left yet. Within his own company, Bravo Company, I can just tell
8 you from the interaction -- so he got there since I moved to
9 battalion. So my interactions with him are strictly work related.
10 So instructor pilot to SP type things. But seeing him teach
11 classes, conduct his evals, giving him mission briefs and stuff,
12 he was definitely at the top of my list of instructor pilots. His
13 company, based on their moods here recently, you can tell they're
14 deeply impacted by what happened which tells me they had a lot of
15 respect for him. So that's all I'm going to say about it.

16 Q. All right. How about Captain [REDACTED]

17 A. Same with her. She had been in the organization for a long
18 time. She was there before I got here. She was actually in Bravo
19 Company when I first got here. She was a lieutenant at the time.
20 I think she was the XO or platoon leader. I don't remember. She
21 left for -- to move onto the next staff position after her time as
22 a platoon leader, shortly after I got there, so a month or 2
23 later. Incredibly professional, very diligent and very thorough.
24 And same thing, a lot of respect from everybody she worked with.
25 Most people in that company now only know her as a staff officer

1 because most of those people were not there when she was in the
2 company, but there were a few that are still there, and they all
3 have the same opinion of her as they would have of [REDACTED] So.

4 Q. Okay. So, good reputation as an aviator as well as an
5 officer?

6 A. Yes, to both, very good.

7 Q. Okay. And now the crew chief, Crew Chief [REDACTED]

8 A. Yep. [REDACTED] was my -- so on the standardization side, we have
9 an enlisted instructor as well. He was my SI. He worked for me
10 for a year while I was in Bravo Company. In fact, I just wrote
11 his annual report. Still to this day, one of the most intelligent
12 and smartest SIs I've ever worked with. He was always teaching
13 somebody something or -- and also still doing maintenance which is
14 kind of rare once they kind of reach that level of instructor,
15 they kind of wean away from the maintenance side, but he's be down
16 there with his guys doing maintenance, and he's be upstairs with
17 me developing a class or coming up with a training plan or
18 attending flight schedule meetings every week. [REDACTED] was a very
19 professional instructor and that's all I'm going to say.

20 MR. McKENNY: Okay. That concludes my questions.

21 Dr. Bramble.

22 DR. BRAMBLE: Sure.

23 BY DR. BRAMBLE:

24 Q. How many pairs of goggles would have been in the aircraft on
25 this flight?

1 A. I'm assuming four. It's typical to sign out the number you
2 need for the crew and one extra one.

3 Q. Okay. And, I heard how you explained that you probably
4 wouldn't choose that route for a NVG or a stans eval. Was it for
5 either or --

6 A. I mean it made sense for what they were doing, they needed to
7 get back to Davison and that's about the most direct way to do it.
8 I just -- me personally, I try to stick between Davison and
9 Quantico. There's less traffic to deal with. It's less -- let me
10 rephrase that. I would not use the helo routes to get somewhere
11 because I'll stick between Davison and Quantico, but I also tailor
12 that to the person I'm flying with. If it's another pilot-in-
13 command like Captain [REDACTED] was, I'd be a little less concerned
14 about transitioning through the routes on annual eval because
15 they're already nervous that they're being evaluated to begin
16 with. Whereas, if they're not a pilot-in-command and they're less
17 experienced, I would definitely avoid going to the helo routes.
18 I'm not trying to set them up to be nervous and potentially not
19 pass their eval.

20 Q. I see. So [REDACTED] was considered an experienced pilot-in-
21 command and somebody that would be -- somebody that you're not
22 concerned about?

23 A. Correct. Yeah, she was a pilot-in-command and air mission
24 commander. So that's about the biggest achievement that an
25 commissioned officer can receive in the flying world.

1 Q. So if someone was to perform a mission like this where it's
2 both a NVG eval and a stans eval and they're transiting that area,
3 would you expect that the NVGs would be used the whole time or is
4 impossible to say?

5 A. Typically speaking we will notify our briefing officer if we
6 plan to go through there without goggles on, and they did not
7 brief me on that. So I'm assuming that their intent was to leave
8 them on at all times, but that is an assumption. Now, obviously
9 in the interest of safety, they could flip them up if it's too
10 much and that would not require prior approval, but they would
11 have to notify me afterwards that they did go unaided so that --
12 it's just common practice to let your briefing officer know that
13 you deviated from the plan afterwards in the interest of safety.

14 Q. Okay. Have you transited that area under NVGs?

15 A. I have.

16 Q. And, what can you tell us about crossing in front of the
17 approach end of 3-3? Is it -- what's the sight picture like? Any
18 challenges?

19 A. Yes, there are challenges. Generally, they're on their
20 approach for 0-1 and they do like an arcing turn for 3-3. So
21 depending on our direction of travel, if we're coming up Route 4
22 or coming down Route 1, we will typically hold either at what they
23 call the golf balls. It's the water treatment facility across
24 from DCA that keeps us clear of runway 3-3 approach path or that
25 arcing turn. Or, if we're coming from the north, we'll hold in

1 the vicinity of Hains Point as that -- as the aircraft are
2 landing. The challenge being, if you're transitioning up or down
3 Routes 1 or 4, 4, 1, that arcing turn would basically take them --
4 would put us directly in the path of the aircraft as they're
5 turning for 3-3.

6 Q. So, you mentioned holding. So in terms of avoiding traffic
7 that's on approach to 1 and then circling to 3-3, what's the
8 strategy in terms of acquiring the traffic and holding and so on?

9 A. Generally speaking, National or Washington Tower will tell us
10 to hold, and they'll tell us hold golf balls or hold Hains Point.
11 How we do that is we'll hold at 200 feet and below. We're stick
12 to the charted altitude, and we'll typically, typically speaking
13 will take up an orbit that keeps us clear of the river. If we're
14 northbound on 4, we'll hold over the water treatment facility at
15 200 feet. So we're over the land itself. If we're at Hains
16 Point, we'll hold directly over Hains Point because we can't
17 really hold too close to the Papa-56. Generally speaking, slowing
18 back anywhere from 60 to 80 knots and taking up either a right or
19 left-hand turn depending on which direction makes sense for your
20 travel, until we're told that we're clear to cross.

21 National Tower -- sorry, Washington Tower will also ask us if
22 we have the traffic in sight, and if we do, they'll proceed us to
23 clear with visual separation as long as there's an acknowledgement
24 once holding's complete or prior to holding.

25 Q. Okay. So if you're approaching from the north and you're

1 made aware of traffic on approach to 3-3, and you were clear for
2 visual separation, what kind of a rules of thumb would you use in
3 terms of how long you'd hold and when you'd proceed along to the
4 south?

5 A. If we're cleared for visual separation, we wouldn't hold. It
6 would be two separate things that they gave us. If we were
7 proceeding with visual separation, we'd continue down Route 1 to
8 pick up Route 4, maintaining separation from the landing aircraft.

9 Q. Okay. So I didn't know if perhaps they're turning in from
10 the land toward 3-3, if there would be a rule of thumb like you
11 wouldn't, you wouldn't cross through that area until they were
12 sort of, you know, short final, near the threshold or if you're
13 just trying to avoid -- just make sure your flight path isn't
14 intersecting or --

15 A. Yes, that would be I guess the rule of thumb is not to cut in
16 front of them or --

17 Q. Okay.

18 A. -- intersect with them. And we would use airspeed typically
19 to kind of create that separation, i.e. slowing back or speeding
20 up if necessary.

21 Q. All right. And then would there be a time where -- or would
22 you feel it was -- would you feel comfortable with just proceeding
23 under 200 feet regardless of the traffic above you or is that
24 something you'd avoid by having them cross over you?

25 A. At 200 feet?

1 Q. If you --

2 A. Are you asking if we would descend down lower to get
3 underneath them?

4 Q. Well, tell me about the altitude restrictions. So on the
5 helicopter flyaway there, the corridor, are you supposed to
6 maintain exactly 200 or below 200?

7 A. So the chart is no higher than 200 in that area. We have a,
8 we have a standardization bulletin that's signed by our brigade
9 commander that says we will fly no lower than 100 feet below the
10 published altitude. So in that instance, we could come down to
11 100 feet, normal operations now obviously for safety concerns. We
12 could deviate from that like I mentioned before with the goggles,
13 but the procedure is no higher than the charted altitude, no lower
14 than 100 feet below that.

15 Q. Okay. So 100 to 200 feet?

16 A. Yes, sir.

17 Q. Baro alt or radio alt?

18 A. Baro altitude.

19 Q. Okay. I guess it's probably about the same in that area.

20 A. It is.

21 Q. All right. So, I mean would it be typical or would it be
22 acceptable to transition through that area on that Route 4 between
23 100 and 200 feet sort of regardless of where the approaching
24 traffic is because you're assuming a vertical separation?

25 A. Correct.

1 Q. Okay.

2 A. That is the assumption.

3 Q. So you wouldn't have to wait until the approaching airplane
4 passes through the approach there. You could go under.

5 A. Me personally, I've never been in a situation where I've had
6 to -- I've just never been in the exact situation that they were
7 in. I've either held until we could continue or I just -- it's
8 not very common in my experience on the helo routes that they land
9 3-3. It's most commonly 0-1 it seems like or the reciprocal. So,
10 it's hard for me to say what would be normal for me because I just
11 haven't encountered it.

12 Q. Okay. You just haven't happened to be in that situation
13 where there's somebody on approach to 3-3 that's going to likely
14 pass over you?

15 A. Well, I have, but I've held. I've been told to hold.

16 Q. Okay.

17 A. Typically I'm going northbound when it's happened and we hold
18 at the water treatment facility.

19 Q. So the decision's typically made for you?

20 A. Yes, sir.

21 Q. Okay. Is there an established protocol in the battalion for
22 how to deal with the situation if you experience NVG dimming?

23 A. Not necessarily NVG dimming. The first thing we can do is
24 try to turn the goggles away from the light source. We do -- one
25 of the tasks on an annual eval is to response to NVG failure

1 though but that's different than bright source protection of the
2 system itself.

3 Q. I see. So you just kind of like offset from whatever's
4 causing the dimming.

5 A. Um-hum.

6 Q. Okay. All right. One thing I want to capture also in terms
7 of your experience, just so we have it for the record, but in the
8 particular helicopter that was involved in this accident was the
9 HH-60, correct?

10 A. UH-60.

11 Q. Oh, it was a UH-60. Okay.

12 A. Yes, sir.

13 Q. How many hours do you have in that?

14 A. In that model, the Lima, 350 hours probably. I didn't start
15 flying those until I got here.

16 Q. Okay. Is there anything specific about the Lima model that
17 impacts the way that you use NVGs or impacts your visibility
18 outside that's different from other helicopters you've flown?

19 A. Not in relation to the NVGs, no, sir.

20 Q. How's the visibility out of the cockpit compared to other
21 helicopters you've flown?

22 A. It's the same.

23 Q. Okay. All right. Can you tell us about the risk assessment
24 that you reviewed with the crew beforehand and sort of what was on
25 it? We have a copy if you want to see it. I don't know if you

1 recall it or not.

2 A. From the best of my memory, it was just a very standard
3 instructor pilot's NVG stans RCOP. I did have the annual
4 evaluation selected for NVGs. For the 2 -- so there's a section
5 where you have talk about recency of the mission tasks. They were
6 all within 30 days. So nothing would have been selected here. It
7 was a low, an overall low.

8 Q. Low risk.

9 A. Low risk, yes, sir. Other than the comments that I mentioned
10 earlier, some of the mission briefing officer comments, like
11 reviewing the site files for their PZ/LZs, EPs only back at
12 Davison. There was another comment or two that I made, but I just
13 don't remember those now. I know those were the two big ones that
14 we talked about quite a bit.

15 DR. BRAMBLE: Nick, would you mind fishing that out just so
16 he can see it in case there's anything else noteworthy?

17 BY DR. BRAMBLE:

18 Q. I haven't reviewed it in detail yet, but if there's anything
19 else you wanted to -- that could be helpful in terms of
20 explaining, just let us know.

21 A. I mean other than this aircraft was configured a little bit
22 differently, it was -- it did have external fuel tanks called CEFS
23 and a crashworthy extended fuel system. It was honestly a pretty
24 standard RCOP for an annual eval other than that one modification
25 for it being equipped with that, but it did not raise the risk

1 value at all. It's still considered a low for NVGs.

2 Q. Okay. And, so along those lines, since it was low risk, how
3 was the flight approval managed? Who had to sign off on it?

4 A. So if it's low risk, any company commander can be the final
5 mission approval authority, and I believe he got it signed by his
6 commander, Captain Gallon, or approved and signed.

7 Q. Okay. How's morale in 12th Battalion in terms of staffing,
8 workload and so on?

9 A. The workload is extremely high right now as to be expected.
10 Morale across the companies is also very low which is to be
11 expected with the biggest impact to Bravo Company which was their
12 company.

13 Q. And before the accident?

14 A. Normal morale I guess, day-to-day operations can be a little
15 redundant but morale was not low I'd say.

16 Q. Okay.

17 A. Workload and staffing would be normal. Like I said, the
18 workload was a little bit higher prior to that because of the
19 switching out of the two National Guard companies that we have
20 right now. So for the staff position, we're a little bit busy,
21 but there's no impact to the companies on that, not the organic
22 flight companies.

23 Q. Okay. And, any difficulty maintaining currency among the
24 pilots as far as you're aware?

25 A. Very rarely will a pilot go uncurrent in their airframe.

1 Q. Okay. So Captain [REDACTED] was a staff officer. Is that right?

2 A. She was a staff officer. She moved to Headquarters Company.
3 I think she took over POL, I think is what she was doing. She was
4 managing the FARP personnel.

5 Q. What's POL?

6 A. That's a great question. Petroleum, something lubricants.

7 UNIDENTIFIED SPEAKER: Petroleum, oils and lubricants.

8 CW4 INGALLS: There we go. I was close. Two out of three.

9 UNIDENTIFIED SPEAKER: Class 3, Class 5 supply line.

10 BY DR. BRAMBLE:

11 Q. In her -- I mean in your experience, do the staff officers
12 have trouble maintaining proficiency or currency more than other
13 pilots or --

14 A. Yes, more so than a company pilot would.

15 Q. Okay. What are the challenges there?

16 A. Just staff responsibilities can kind of delay flights or
17 cause you not to be placed on the schedule for weeks at a time.

18 Q. Okay. Any idea whether that had been a challenge for the
19 Captain recently?

20 A. She did have surgery last year and was down for less than 6
21 months, I know that. So that would have been a proficiency flight
22 eval that was required, but I'm not sure about her most recent
23 recency if that makes sense.

24 Q. Okay. And were any of these three crewmembers sort of in
25 your chain of command in terms of you worked for them or they

1 worked for you or were you guys kind of parallel chains?

2 A. At the time of the incident?

3 Q. Uh-huh.

4 A. At the time of the incident, no.

5 Q. Okay. All right. So we already discussed, we already
6 discussed sort of the perceived proficiency of the different
7 crewmembers on the flight. Can you mention briefly what Staff
8 Sergeant [REDACTED] role would be during this flight?

9 A. During this flight, he was performing duties as a standard
10 crew chief. He was not performing SI duties, standardization
11 instructor duties.

12 Q. Okay. So, the PC was CW2 [REDACTED] in the right seat. Is that
13 correct?

14 A. Correct.

15 Q. Okay. So he was the instructor pilot conducting the
16 evaluation for Captain [REDACTED]

17 A. Correct.

18 Q. And so you're saying that Staff Sergeant [REDACTED] was also an
19 instructor in that context or how does that work?

20 A. He's an enlisted instructor. If there was another crew chief
21 in the back that needed an evaluation, he would be performing
22 duties as an instructor but in this flight, he was performing
23 duties as a crew chief --

24 Q. Okay.

25 A. -- a CE.

1 Q. And what does a crew chief typically do during a local flight
2 like this?

3 A. The biggest task for them, especially in this area, is
4 airspace surveillance and crew coordination during flight. They
5 have a lot of responsibilities prior to and after the flight as
6 far as maintenance and aircraft prep and post-flight and things,
7 but during the flight, one of their responsibilities, not
8 necessarily their responsibility, but a responsibility that we
9 share, is we'll have them perform things like our fuel consumption
10 checks for us. It just requires a little bit of math, and then --
11 yeah, the biggest one being airspace surveillance, using them to
12 help identify the traffic and hazards in the area.

13 Q. Okay. And can you describe his station in the aircraft and
14 what visibility he would have had outside?

15 A. So the crew chiefs face outward. So perpendicular from the
16 aircraft. It really helps us so that they can see all the way
17 back to the tail. So really if they lean forward through the
18 gutter and window, then they have full left/right up and down
19 visibility. As they sit back in their seat, they're kind of
20 narrowed on what they see just because of the window itself on
21 both sides of the aircraft.

22 Q. Are the -- is the window typically open?

23 A. Um-hum.

24 Q. Okay.

25 A. For VFR flights, they'll typically be open. When we're IFR,

1 at higher altitudes, they'll close them under positive control.

2 Q. Okay. All right. Do you know which side of the aircraft he
3 would have been facing for this flight?

4 A. I am uncertain which side of the aircraft he would be on but
5 it's very common to put them on the side on the person being
6 evaluated to help with that workload. So my assumption is that he
7 was on the left, but I can't definitively answer that.

8 Q. Okay. How does he monitor -- help monitor for traffic and/or
9 anything else on the displays?

10 A. What do you mean how does he do?

11 Q. Well, so how does he monitor traffic outside, for example?
12 Is it purely visual or does he have electronic displays?

13 A. It's visual.

14 Q. Okay. And sitting behind the person being evaluated, is he
15 monitoring the flight instruments as part of that or --

16 A. [REDACTED] specifically, yes, was very good at it. That will vary
17 based on the experience of the crew chief. Obviously we go to
18 flight school to learn what the instruments say. They have to
19 learn from us. He knew how to understand things like the attitude
20 indicator, airspeed and it's very common that he would look over
21 his shoulder, across the cockpit. So he's be looking at the right
22 pilot's instrumentation for ease of visibility, just to call out
23 anything that was other than standard and what was briefed, i.e.
24 altitude, airspeeds. One thing that they do get trained on,
25 especially when we're instruments or we're encountering IMC

1 weather is to look at the attitude indicator to make sure we're
2 pointing the right direction. I know he was good at it, because
3 he would train his guys to do the same.

4 Q. If he did spot traffic, how would he communicate that to the
5 crew?

6 A. We have standard terminology that we use. So you would call
7 traffic at whatever o'clock and try to give a distance. So
8 azimuth and distance, and then if you can, as best as possible,
9 state high or low or altitude, but the minimum is clock direction
10 and distance.

11 Q. Okay. And you had flown with him before?

12 A. Several times.

13 Q. And was he good at doing that?

14 A. Very good at doing it.

15 Q. Okay. Had you flown with either of the other two pilots?

16 A. I've never flown with [REDACTED] I believe I had flown with
17 Captain [REDACTED] once but I couldn't tell you when or what we were
18 doing. It was a long time ago.

19 Q. Um-hum. Okay. Any recollection of her performance?

20 A. Her performance was always good.

21 Q. Okay. And anybody ever complain to you about the performance
22 of any of the three crewmembers?

23 A. Not to me, they did not.

24 Q. Are you aware of them complaining to other people?

25 A. I'm not.

1 Q. Okay. Do you guys receive crew coordination training of some
2 type?

3 A. We do. Initially for aviators, we -- or pilots, we receive
4 them in flight school and then we redo it every year. It's one of
5 our annual tasks is to go through that year's annual aircrew
6 coordination training. For our backseaters, they receive it in
7 their initial progression from a standardization instructor. So
8 like [REDACTED] would teach it to new crew chiefs, and then again it is
9 an annual requirement for them to do in a 3 month window that
10 starts 3 months -- or 2 months prior to their birth month.

11 Q. Okay. What was the most recent emphasis area for that if you
12 can recall?

13 A. For them?

14 Q. For -- well, with the pilots.

15 A. For aircrew coordination training?

16 Q. Um-hum.

17 A. So, I have not looked through the 2025 one yet because it was
18 just released about a week and a half ago, but the 2024 standard
19 ATC training has -- they typically will involve several vignettes
20 that involve some form of Class A accident. There was a fixed
21 wing accident. I think they had an issue after takeoff, UAS
22 accident where they taxied incorrectly and ran into something
23 while taxiing. There was a Black Hawk incident in Germany due to
24 whiteout conditions, and there was an Apache incident where they
25 contacted the ground. So they are the vignettes that they use.

1 They'll go through the recordings and reanimations that they make
2 from the accident findings, and then afterwards they'll basically
3 talk about what we observed and what we can do better to improve
4 on the situation.

5 Q. Okay. And how do you feel the -- how would you describe the
6 safety culture of the 12th Battalion? I mean I understand that
7 the military is a little bit different, and you guys have to weigh
8 mission against risk, but do you have any thoughts about that?

9 A. I think we have a very good safety oriented culture in this
10 unit. Our battalion commander basically, what we call her bumper
11 sticker, and she puts it on every slide, every academic we do, is
12 discipline plus standards equals safety. You'd be hard pressed to
13 find somebody that's been in the organization that can't recite
14 that by memory. The mission we have itself is not inherently
15 dangerous. It's just air movements of personnel. That is our
16 unit's mission. So we don't do a whole lot of tactical mission
17 stuff here where the risk will really start to creep in. I feel
18 that we operate pretty safely as an organization.

19 Q. Okay. And could you briefly describe your chain of command
20 as it relates to the 12th Battalion so we can get the proper names
21 for the organization?

22 A. Specific to the 12th Battalion, sure. Our battalion
23 commander is Lieutenant Colonel Erika Holownia. And then we have
24 the three organic flight companies that all have a company
25 commander. Would you like me to list all the names.

1 Q. Sure. Yeah.

2 A. Okay. Alpha Company's commander is Captain Jordan Berry.
3 Bravo Company commander is Captain Phillip Gallon. Charlie
4 Company's commander is Captain Stephen Luxion, and then we have
5 Delta Company, our maintenance company, that is Captain Samantha
6 Todd. We have two -- well, we have one National Guard Company
7 that has been here for 9 months that is commanded by Captain
8 Stephen Blank, and now we have a new National Guard Company that
9 will be taking over for them in about 8 days. That is Captain
10 Eric Fitzsimmons for the command structure.

11 UNIDENTIFIED SPEAKER: Good job. You passed the test.

12 CW4 INGALLS: Did I? Good. I couldn't remember the new
13 captain's name but I got it.

14 CW4 INGALLS: Thank you.

15 UNIDENTIFIED SPEAKER: Well done.

16 BY DR. BRAMBLE:

17 Q. Okay. All right. And one last question before I pass it
18 around the table. Any comments about your interactions with
19 Washington Tower, the quality of the support and guidance you
20 receive from them and communications that you receive from them?

21 A. No real issues with Washington Tower. One thing that we
22 train our pilots on and tell them to be careful with is that helo
23 frequency, we will not hear the aircraft. They will not hear us
24 but we'll hear tower. So, pilots will have the tendency to try to
25 get a call out immediately once tower's done talking without

1 thinking that here's an airliner or airline pilot that's trying to
2 read back any clearance as well. So I'd say that's the challenge
3 we face with communicating with them, but as far as working with
4 any instructions that they give, I've never encountered any
5 issues.

6 Q. Okay.

7 A. They're usually pretty clear about what we can and cannot do
8 and what routing we should or should not take.

9 Q. Okay. All right. Thank you very much.

10 A. Yes, sir.

11 DR. BRAMBLE: On to Mark, and then we'll hit the rest of you
12 guys after.

13 BY MR. WARD:

14 Q. How you doing? Mark Ward, NTSB. How busy is that airspace
15 as far as airplanes coming into that accident airport? Is it a
16 continuous flow of every -- just give me an idea? I mean is it --

17 A. Every couple of minutes there's an airplane landing.

18 Q. -- you can see the --

19 A. Yeah, you can see them stacked up every 4 to 6 miles
20 especially on a night where you're wearing goggles, you can see
21 them. It looks like they're spaceships out there, there's so many
22 aircraft.

23 Q. Is there a history of near misses?

24 A. Not to my knowledge there's not.

25 Q. Any wires or obstacles in that area?

1 A. Wire, no. Obstacles, obviously when we're 1 to 200 feet
2 would be the buildings and there are some obstacles out there,
3 some of the construction cranes that are on some of the helo
4 routes, but we plot those on the maps and we brief them during
5 route briefs.

6 Q. Do you guys do reverse cycle when you guys are flying
7 goggles?

8 A. Define reverse cycle.

9 Q. Coming in later or duty dayshift?

10 A. Oh, yeah. When we're, when we're specifically flying at
11 goggle flight, the crews will show later in the day.

12 Q. Would he have been on that cycle? I mean was -- do they just
13 shift for that flight or do they go for a week or 2 weeks at a
14 time?

15 A. Typically they'll adjust for the flight.

16 Q. Just for the flight.

17 A. Um-hum.

18 Q. And then go back to their normal --

19 A. So we have a restriction where -- well, it's not necessarily
20 a restriction, but a risk identification that if we shift more
21 than 6 hours for any reason, it has to be identified and then try
22 to be mitigated as best as possible, but in the winter months,
23 with it getting dark as early as it is, we don't typically run
24 into that shift of greater than 6 hours really at any given point.

25 Q. What time would he have shown up that day or does it show --

1 A. I don't know they would have shown up. Me personally, if I
2 was doing a NVG only flight, I would show at noon, but I have
3 responsibilities that I have to do prior to flight, administrative
4 stuff. So I'm not sure what time they had showed up.

5 Q. And then can you describe -- I always know it as
6 (indiscernible), but for the CRFS (indiscernible), the limitations
7 to the crew chief in the back for visibility looking out?

8 A. So there is some limitation for them especially in the --
9 forward of the aircraft because the tanks pitch up. So, there
10 would be a visibility restriction for sure.

11 Q. For the crew chief in the back.

12 A. Correct. No visibility restrictions for the pilots because
13 it's over our shoulder.

14 Q. That's all I have.

15 A. Thank you, sir.

16 DR. BRAMBLE: Okay. Let's go to Eddie.

17 MR. MILLER: All right. You took a couple of mine away.

18 MR. WARD: Yeah, I was reading off your list.

19 MR. MILLER: We've got two Black Hawk guys sitting next to
20 each other. What can you expect.

21 BY MR. MILLER:

22 Q. Thank you for coming. Thank you, sir, for being honest and I
23 know this is a difficult time, but try to get into a little bit
24 more detail so that we can -- there's a lot of civilians that
25 don't understand our Army language, and it is a separate language

1 by itself, but I appreciate that, what you've been doing and
2 explaining things.

3 A. Yes, sir.

4 Q. I'm going to ask you to explain a couple of other things
5 here. So in the -- we have the initial person that shows up, can
6 you explain how you teach them the route corridors and how, you
7 know, just a brief overview. How would you train a new
8 lieutenant, new warrant officer showing up just from flight school
9 or, you know, never been here before, how would you teach them the
10 route corridor structure?

11 A. So, not speaking about the SFRA, the FRZ, where they have to
12 do the online training ahead of time. We do a map review. That
13 is -- one of the steps in the LAO checklist is review all the
14 maps, the DC helo maps. We also have a virtual reality simulator
15 that actually -- it's not so great for manipulating anything in
16 the aircraft because it's -- that's not what it's made for, but we
17 do have all of the air route structure with the key landmarks
18 identified by like giant yellow triangles that have altitudes on
19 them. We'll put them in the VR simulator mainly to fly 4 to 1 and
20 around 1 because after out there, it just wasn't rendered out like
21 Route 7 and stuff isn't on there. And then they receive the day,
22 the night and the NG LAO flight from an instructor pointing out
23 the landmarks, talking about the altitudes, specifically talking
24 about radio calls. If it's a junior pilot, we don't focus so much
25 on them making the radio calls. If it's a pilot-in-command or

1 more senior pilot, we'll do the calls first, and then we'll have
2 them make the calls. Where we experience the toughest time that
3 people have is really the communications piece, just getting the
4 callout at the right place at the right time. So.

5 Q. Okay. That's very good. When you're flying the segment on
6 Route 4 typically going near Bolling Air Force Base, what is the
7 speed that you're normally flying on that route?

8 A. So generally speaking, we're slowing back from anywhere from
9 100 and 110 at Wilson Bridge, slowing back to 60 to 80 knots
10 especially if we're going to take 1 northwest like go through the
11 Tidal Basin. We'll do -- 60 knots is common but usually we say no
12 more than 80 knots just as a rule of thumb.

13 Q. Okay. Very good. I think you might have answered this
14 already but I'm going to ask the question. When you're coming
15 through on Route 4 and you're talking to DCA, are you on a UHF
16 frequency or a VHF frequency?

17 A. VHF frequency, sir.

18 Q. Are you -- and you're -- that's the helo freq --

19 A. Correct.

20 Q. -- for the routes. Do you tune up your other VHF radio or
21 does this one have another -- do you have two VHF's?

22 A. It depends on the aircraft. So some of these Lima models are
23 pretty old and we'll have one UHF and one multiband or just one
24 VHF. My personal technique is that I'll put up both VHF and UHF
25 for backup if the aircraft supports that which most of them will

1 have a UHF for sure, but not all of them have two VHF's.

2 Q. All right. And you can't, you can't hear the commercial
3 traffic coming in and out?

4 A. Correct.

5 Q. All right.

6 A. And from my understanding, they cannot hear us either because
7 it's specific to helo freqs?

8 Q. Right. When you're flying -- this is a -- when you're flying
9 with the external stores on, can you give them a brief explanation
10 of how the aircraft handles and flies like relative to going from
11 a standard speed of 80 to 90 to 110, how that feels in the seat
12 and your angle of view and stuff?

13 A. Yeah, absolutely. So I mean short of any physics lesson, we
14 have more mass. So it's going to take longer to slow back. We
15 typically will put -- I should know this. I'm an instructor --
16 2,000 plus extra pounds of fuel in the tanks. I think it's 1200
17 per tank. So if they're full, then obviously we're significantly
18 heavier which requires more power and as we're slowing back to
19 arrest any rates of descent or anything, we'll require more power
20 as available as well.

21 As far as sight picture goes, the aircraft will have a
22 slightly more pitched up attitude at lower air speeds. It's just
23 the natural way it's going to hover with more weight. And then
24 with -- if they're empty, then there's really no change in the
25 sight picture per se. There are visibility limitations, as I

1 spoke, for any of our backseaters but really hardly any for the
2 pilots. They'd have to be looking almost -- if they're in the
3 left seat, they'd have to be looking at the 7 o'clock position to
4 even see the stores for the tanks.

5 Q. Okay. Has there been any -- in the unit's reading files
6 prior to briefing, is there anything in the reading files that has
7 been going over any particulars to any of the route corridors?
8 Like any -- like I would say -- I'd call it a NOTAM, you know.

9 A. Um-hum.

10 Q. Is there any reach out and touch you, you know, on the
11 reading -- current reading file? Is there anything that's
12 particular to any of the routes, especially Route 4?

13 A. Not particular to Route 4, but I mentioned before, we do have
14 a signed stans gram from -- which our brigade commander signed,
15 the previous brigade commander, but it's still in effect, that
16 altitude no lower than 100 feet below the charted altitude for all
17 helo routes. That's the only thing specific to the routes that's
18 in there right now.

19 Q. Okay. A lot of great questions have been asked. I think I'm
20 going to stop there for now.

21 A. Okay. Thank you, sir.

22 DR. BRAMBLE: All right. Dave.

23 BY MR. BLAIR:

24 Q. Okay. Hang in there. Almost done. You're doing well. All
25 right. A bunch of questions just off the top of the head. We

1 talked earlier or you talked earlier about the culture at 12th
2 Aviation. Anything else you want to say about that? It seems
3 like a good unit. Obviously you've been in other units. How does
4 this one compare to some others in terms of professionalism and
5 just general culture?

6 A. So this unit's unique in itself where honestly most people
7 want to get to this unit. Guys like me that have been in combat
8 aviation brigades their whole career, kind of wanted a break. We
9 don't -- as of about a year ago, we no longer take people out of
10 flight school. So most people that are coming in are either
11 pilots-in-command or track (ph.) warrant officers. So we have
12 more experience coming in. That was a recent request and approval
13 from HRC.

14 As far as the culture goes, most people are very happy to be
15 here because they're not, you know, deploying and doing rotations
16 and sleeping in the field. So most people are very happy to be
17 here. There is a bit of redundancy. I don't want to say
18 complacency because it's not the right word, but the day-to-day
19 operations, I think some people are not ready for. They thought
20 they would come here and basically get a break, but they're on
21 duty 12 hours a day. Not everybody. That's just what our mission
22 set requires. So there will be some complaints about, you know,
23 waking up at 4:30 every morning and being at work until 5, when
24 they come in at 5:30. I think for the most part, they only do
25 that two to three times per week per pilot. And we have several

1 mission lines throughout the battalion. So. But I think the
2 culture is good.

3 Q. Great. Excellent. Thank you. You talked MBO. Is there
4 standard work or sort of here's what a MBO is supposed to look at
5 one the risk assessment.

6 A. Um-hum. So the risk assessment itself has a section on the
7 5484 that has I think it's 12, or maybe more, items that we go
8 through. Also in our aviation branch SOP with our supplement,
9 depending on the type of flight that's being conducted, there are
10 additional items that have to be present. So like a tactical
11 flight requires route card, LZ/PZ cards, et cetera. If it's an
12 IFR flight, then it can be -- you can actually brief directly off
13 of ForeFlight it says. And then for a stans A (ph.) parts, the --
14 that is kind of the one exemption because we're not going to ask
15 an instructor pilot -- I would not ask an instructor pilot to
16 generate those products. They would be asking the person being
17 evaluated. So it's very common when they do, like any training
18 flight nav or navigation piece, they'll just have a PZ and a LZ
19 card, not necessarily the TDH (ph.) card to go with it.

20 Q. Great. So the bottom line is -- let me ask this in the form
21 of a question. There is some pretty good guidelines for what the
22 MBO is supposed to in their duties. The IPs are not just making
23 it up on the fly, like, okay --

24 A. Correct.

25 Q. They're pretty strict.

1 A. Yes, sir.

2 Q. Thank you. You said you use ANVIS 6s. Is that common to
3 other units you've been in or is that a step back?

4 A. So I may misspeak. I don't know if they're white phosphor or
5 the ANVIS 7s are not. They might be ANVIS 7s. We have the mix of
6 the green and the white phosphorus goggles, like phosphor goggles
7 here. I'm pretty sure there's green are ANVIS 6, like B3s. And I
8 think the new ones are ANVIS 7s but I can't accurately say that.
9 But we do have a mix here. I know most units are on white
10 phosphor now and if they're ANVIS 7s, then that's what they're on,
11 most other units.

12 Q. You mentioned that if you're going on this route, you might
13 adjust the NVGs to suit the particular mission you're on. Can you
14 sort of explain that? And what I mean is you talked about being
15 able to adjust the NVGs. There's a focus level obviously on them,
16 a couple different techniques to that. Can you explain more about
17 what you mean by adjusting the NVGs?

18 A. Yeah. So, everybody's face is designed differently. So, you
19 know, the space between your eyes and how they focus. The first
20 thing you do when you put a set of goggles on your head is you do
21 your sight adjustment picture. So you're adjusting the goggles to
22 get the maximum view picture out of them themselves. The goggles
23 will move left and right. They'll tilt up and down. They'll move
24 in and out as well to help with that adjustment. There's a whole
25 procedure. We receive academics on it in flight school. We

1 reinforce it occasionally on evals. It's not required thing but
2 how we set that picture up.

3 And then the next thing we do is we adjust for focus. Every
4 pilot's different on how close they like the goggles to their
5 face. Like I said, I wear the HUD. So I'll bring the goggles in
6 close so I can get a bigger picture. Pilots that don't use the
7 HUD will typically push them out a little bit further from the
8 face so they can see their instruments a little easier.

9 Q. Okay. And do you use the box to do the focusing or some of
10 those adjustments or is it strictly an outside kind of a preflight
11 on the ground?

12 A. Yeah, just outside. The standard, pick an object 50 meters
13 away for focusing and then for the OSAP, it's -- you've just got
14 to adjust it to your eyeballs.

15 Q. All right. Cool. Thank you.

16 A. Um-hum.

17 Q. Continuing on real quick. What's the light configuration of
18 the aircraft when you're on the routes? Are you going to have
19 anti-collisions on?

20 A. Um-hum.

21 Q. Position lights.

22 A. Yes, we'll have, we'll have all external lighting on. We'll
23 have the landing light on. One thing won't be on, the search
24 light. But landing light, if it's nighttime, anti-collision and
25 position lights on bright.

1 Q. Okay. And that's during that whole route structure?

2 A. It's -- we do it at anytime we're inside the SFRA. So, yes.
3 Route structures, even out of the route structures. When we leave
4 the SFRA, we tell them they can turn landing lights off, and if
5 they're multi-shifting, there's different lighting configurations.

6 Q. Perfect. Sounds good. When you're on the route structure
7 inside -- well, on the routes, say Route 4 coming south, are you
8 ever worried about traffic behind you and the question is about
9 how much are you going to slow down? Like, is it a big deal to
10 slow down to 60 knots that you might set up somebody on the route
11 behind you? Is that --

12 A. It makes sense. Generally speaking, Washington Tower is very
13 good at calling out other helo traffic in the area, and we can
14 hear each other because we're on the same frequency. If we --
15 they'll ask us to maintain visual separation. A good example is
16 coming off Bolling, you've got the HMX1 pilots there. If you hear
17 Night Hawk aircraft coming off Bolling, and you're coming down 1
18 to pick up 4, most pilots understand we're going to converge right
19 there where 4 and 1 meet. So we'll use airspeed to create that
20 spacing. We typically are the ones that will slow back because
21 they won't because they're on a mission going somewhere, and we
22 understand that. But airspeed is really the biggest way we'll
23 create that separation with that other aircraft.

24 Now, as far as airlines go, yes, we'll use airspeed. If we
25 have visual separation, but honestly I've never -- I've had

1 aircraft on top of me. I'm sorry. Poor words. Approaching above
2 me, but if we're sticking to the route altitudes, in my
3 experience, I've never been parallel with an aircraft that was
4 close enough to be a concern.

5 Q. Great. You talked about some of the other traffic, about HMX
6 being one of the other people. Can you talk about some of the
7 other users of the routes?

8 A. Yeah. There's a lot. So there's -- the Black Jack are the
9 Coast Guard's out of DCA. We have the HMX1 guys where they're
10 supposed to be, and then we have the 1st Heli (ph.) guys out
11 Andrews that are operating. They're out there quite a bit. You
12 have Capitol Police. You have a lot of MedStar aircraft or not
13 MedStar but med aircraft. Occasionally you'll see the V22s coming
14 up. So the tilt rotors from Quantico. The FBI has some Black
15 Hawks. There's a lot of rotary wing traffic and military traffic
16 in the area. That's just some of the ones I can think of.

17 Q. Good. That was the point. Hey, so -- and I can't remember
18 the Lima model. Does the Lima model have an AFCS function for bar
19 alt hold so you can engage an automatic --

20 A. No, no -- yeah, I'm mainly a Mike guy. So I'm trying to
21 think Lima. No, there's no --

22 Q. No bar alt hold.

23 A. No.

24 Q. Okay. Good enough. Let's stick with that. So, the Lima
25 model on the rad alt has the ability to set a low altitude bug and

1 a high altitude bug?

2 A. Correct.

3 Q. So, can you tell me about that? Is that something you guys
4 would use?

5 A. Generally speaking, people will use it. I don't, I don't --
6 there's no like standard procedure to set it for anything. It's
7 pilot preference. So.

8 Q. Okay. And what kind of alerts would those two bugs give you
9 if they were set, say like in this case?

10 A. You get like a light, like a bell tone almost, just one.

11 Q. Good enough.

12 A. I don't know a good way to explain it.

13 Q. Yeah. No.

14 A. I know what it sounds like.

15 Q. It gives you a bong or something.

16 A. A bond, yeah.

17 Q. Okay. Good enough. Thank you, sir. You talked about
18 simulating a NVG failure. How would you do that as an instructor?

19 A. Typically we will coordinate with the backseater, and we'll
20 have a pearl (ph.) word and when we say it, they'll just reach and
21 turn their power pack off. We do brief. It's very common if
22 you're 200 feet and below and on the controls, transfer the
23 controls immediately, but if you're not, then just announce that
24 you're having a NVG failure and attempt to switch to your other
25 battery pack, and then if it doesn't work, we'll transfer the

1 controls and ask for the spare.

2 Q. Okay. Perfect. Thanks, Matt.

3 A. Thank you.

4 DR. BRAMBLE: All right. Paul.

5 BY MR. KIM:

6 Q. Please excuse me since I'm not helo rated. I'm only a fixed
7 wing rated pilot, but -- so some of these questions may be a
8 little basic, but Dave asked you about some altitude and holding
9 capabilities. Am I understanding correctly or can you confirm
10 whether there's any altitude holding capabilities on the
11 helicopter?

12 A. Not in this model of helicopter, there was not, the Lima
13 model.

14 Q. Okay.

15 A. We do have what's called collective friction but that's just
16 keeping the collective in its current position by basically
17 putting -- tightening down some torque on it.

18 Q. Are there any securing accessories or anything that would be
19 attached on the interior of the windshield or in the cockpit?

20 A. There shouldn't be. We will typically fly with a Stratus
21 depending on the type of flight we're doing, but they are very --
22 we're very clear and it's in our reading file you won't attach
23 anything to the windows. We don't want it falling off.

24 Q. Where would it be held?

25 A. They'll put the Stratus itself just up on the center console.

1 Q. Okay.

2 A. Or, I'm sorry. Up on the dash in the center.

3 Q. I think you mentioned the golf ball in terms of where you
4 would hold. Can you just explain where that is?

5 A. Yeah. So the water treatment facility on the Maryland side
6 of the river has five large white, I don't know if they're radars
7 or whatever they are, but they look like golf balls. So National
8 Tower will very commonly tell us to hold at golf balls.

9 Q. And what are some other information that the tower would
10 provide a helicopter transiting through this corridor or this area
11 especially prior to receiving visual separation?

12 A. Yeah. So, any time there's landing or departing aircraft on
13 the runway, they'll tell us the type of aircraft, whether they're
14 landing or departing, and then they ask us if we have them in
15 sight. And if there are -- an example being if they're landing
16 runway 1 and there's an aircraft every 4 miles, they'll typically
17 call out the first two that are landing unless the third one will
18 be -- unless they anticipate we'll be in the same area as the
19 third one.

20 Q. Is there a specific distance or, you know, time out that
21 they're required to report traffic to you or when you check in?

22 A. I'm not sure.

23 Q. Is there any information that the pilots would be required to
24 provide the tower to receive the visual separation clearance?

25 A. What do you mean?

1 Q. What are some of the requirements to get that visual
2 separation clearance from tower?

3 A. I guess I don't understand what you're asking me. Are you
4 asking as a helo pilot, what are my requirement for visual
5 separation?

6 Q. No. Are there any regulatory requirements to get that visual
7 separation clearance from the tower?

8 A. I'm not sure.

9 Q. I guess maintaining separation from the traffic that is
10 called out to you, to the pilot, would that -- that would be one
11 of the requirements. Is there any -- I don't know if you have to
12 report your position to the tower.

13 A. We have four compulsory reporting points around DCA. That
14 would be the only time we would report our actual position, but
15 for the most part, they see us on radar.

16 Q. All right. Are there any specific evaluation tasks that
17 would have been performed during this specific corridor or for
18 their duration of flight? It sounds like it was toward the latter
19 half of their flight. So in terms of the evaluation tasks, would
20 there be something that they would be going through -- during
21 their flight in that portion? I'm sorry if that isn't clear. I
22 can --

23 A. That makes sense. There could be. For -- so we do
24 evaluations on all pilots for pilot-in-command. I'd imagine that
25 if I was in [REDACTED] shoes, I would be evaluating Captain [REDACTED]

1 ability to communicate with ATC. That is one of the tasks. We
2 focus on that a little bit more with pilots-in-command versus non-
3 pilots-in-command.

4 Q. Is there anything specific to DC's airspace or this route,
5 this particular route, near DC's airspace? You mentioned the ATC
6 portion. Would there be terrain or NVG training or evaluation
7 specific?

8 A. I don't imagine there was anything specific to the eval in
9 relation to wearing the goggles right there.

10 Q. Okay. And, in terms of the eval standards flight, is there
11 usually -- is there freedom for the, I guess IP to kind of dictate
12 and control when the specific tasks are being performed? Or, is
13 there -- is it laid out in a time format where they'll just go
14 down that list?

15 A. It's very fluid. So depending on what you're doing, yeah,
16 there's no at this time we will be evaluating this task, if that's
17 what you're asking.

18 Q. Yeah. Okay. Those are all my questions. Thank you.

19 A. Thank you.

20 DR. BRAMBLE: Okay. Nick?

21 CW5 JACOBY: No questions.

22 DR. BRAMBLE: All right. Van.

23 BY MR. McKENNY:

24 Q. I just have a couple of follow ups.

25 A. Yes, sir.

1 Q. What's the crew rest policy of the battalion?

2 A. 12 hours off, no less than 10 is the -- oh, I'm sorry. They
3 can receive less than 10 hours off but it requires -- the risk
4 level goes up. So if they have less than 10 hours off, one has to
5 be approved by the battalion commander herself that they're going
6 to receive less than 10, and then I believe on our RCOP, it starts
7 to identify, if you have less than 8 hours of rest, it makes it a
8 high risk.

9 Q. Okay. And do you know what time the crew reported for duty?

10 A. Unfortunately I do not.

11 MR. McKENNY: That's it for my questions.

12 BY DR. BRAMBLE:

13 Q. All right. Which pilot would typically communicating with
14 ATC on -- if you're transiting through that Route 4 area during a
15 stans eval flight?

16 A. Again, it depends on which pilot I'm flying with. If it's a
17 pilot-in-command that I'm evaluating, I will make them do the
18 communications so I can evaluate that task. If it's a non-pilot-
19 in-command or a junior pilot, I would be making those
20 communications. I'd let them communicate with like Davison Tower
21 where it's a little less demanding.

22 Q. If it was a more junior pilot that you were evaluating?

23 A. Correct.

24 Q. Okay.

25 A. Um-hum.

1 Q. Otherwise, if it was a more experience pilot, they would fly
2 and handle the radio?

3 A. It could be.

4 Q. Okay.

5 A. Depending on -- so it's very subjective. So if the evals
6 going well, and everything's going right, I will have them fly and
7 communicate, but if they're nervous or things aren't going well,
8 I'll have them do one or the other at that moment.

9 Q. Okay. So it's flexible, and the advantage of having them do
10 both is that you could evaluate both?

11 A. Not necessarily for that reason. As pilots-in-command in
12 this area, a lot of times we are flying and communicating. So
13 that's really what we're checking is their ability to do so. Just
14 the communications like I mentioned earlier, that is the biggest
15 challenge of flying here in my opinion, a little bit different
16 than people with less flight time but -- so we want to make sure
17 that the pilots-in-command are able to control the flight and
18 communicate at the same time.

19 Q. Okay. Are you always two pilots in the Lima Black Hawk?

20 A. We are.

21 Q. Okay. All right. I don't know if this is information you
22 can tell us or not, but it would be helpful for us to know sort of
23 the scale of the operation in terms of like sort of general number
24 of pilots and aircraft like whether you're small or big. Maybe
25 it's intuitive to these guys who are former Army, but you have

1 three companies under a battalion. And, then can you say maybe
2 like just for the company that this crew was from, like how big an
3 organization is it?

4 A. We have three organic flight companies and one rotational
5 National Guard company. So technically we have four.

6 Q. Okay.

7 A. We -- our general mission statement is we provide continuity
8 operations for government and for operations itself which is two
9 different mission sets. Generalizing, we have, we have about the
10 same amount aircraft as a normal combat aviation brigade Black
11 Hawk battalion would have.

12 Q. Okay.

13 A. And we're strictly composed of Black Hawks. We don't have
14 other airframes.

15 Q. Okay. All right. That's helpful. Did you see any of the
16 accident crew in the 72 hours or so before the accident other than
17 during that meeting where you served as the mission brief officer?

18 A. 72 hours prior? I don't believe I did. I was flying the two
19 nights before, and so I would not have -- I was on the opposite
20 side of the airfield most of that week. So I don't believe I saw
21 them.

22 Q. Okay. And, I know you knew the crew chief at least somewhat.
23 I can't recall how familiar you were with the other two
24 personally, but are you aware of any major recent life events for
25 them that could have been stressful or anything?

1 A. No, I'm not aware.

2 Q. Okay. And are you aware of any significant health challenges
3 that any of the three had had recently?

4 A. Not to my knowledge.

5 Q. Okay. I know you mentioned the one possible surgery for
6 the --

7 A. Yes. [REDACTED] had knee surgery last year.

8 Q. Okay.

9 A. And she was -- I think it was about 5 months by the time she
10 finished rehabilitation and was up flying again.

11 Q. Okay.

12 A. [REDACTED] was on a medical down slip for I believe his back
13 for about a month earlier or midyear, but that -- I think it was
14 for his back. I don't remember exactly what it was for, but he
15 didn't fly for about a month.

16 Q. Midyear 2024.

17 A. Yes, sir.

18 Q. And the knee surgery was approximately when last year?

19 A. I think it was early 2024, like January, February is when the
20 surgery was, and I think she started flying again in early summer.

21 Q. Okay. All right.

22 DR. BRAMBLE: Mark.

23 BY MR. WARD:

24 Q. What question have we not asked that you think we should have
25 asked you?

1 A. It was a lot of questions.

2 Q. I mean based off your experience because we're coming into
3 it. If there's something --

4 A. Yeah.

5 Q. -- that may be going down a certain road or something in your
6 mind that you'd like to share or should share or that we should
7 know about?

8 A. I can't think of anything.

9 MR. WARD: That's all I have.

10 DR. BRAMBLE: Dave.

11 BY MR. BLAIR:

12 Q. Two quick follow-up questions. We talked about crew rest.
13 What about the crew day? What are the limitations on crew day?

14 A. No more than 12 hours.

15 Q. Okay. So 12 hours from the time that you arrive at base --

16 A. Um-hum.

17 Q. -- approximately until the time that you shut down the
18 aircraft?

19 A. No, from leaving work.

20 Q. Okay.

21 A. So I have to be leaving work 12 hours after I showed up, not
22 landing and shutting down.

23 Q. Okay.

24 A. So we typically factor in, if we're going to push a 12 hour
25 day, we want to be shutting down no later than the 11th hour

1 because that gives us an hour on the backside to do post-
2 flighting, do maintenance and go home.

3 Q. Okay. And then one last question. You talked about comms.
4 On a non-stans flight, out doing a regular training flight, who's
5 doing the talking and who's doing the flying? Is it the flying
6 pilot normally does the comms or do you split it up?

7 A. Usually the non-flying pilot does the communications on a
8 regular flight.

9 Q. Got it. Sounds good.

10 MR. BLAIR: And if I could ask Paul a question. Is that
11 typical for your operations, too?

12 MR. KIM: I'm sorry. I missed it.

13 MR. BLAIR: The question is who's flying and who's talking?
14 Typically left seat is going to do the approach and the landing.

15 MR. KIM: It depends on whichever pilot is flying that leg.
16 They switch off usually, two on, two off. So two at a time.

17 DR. BRAMBLE: We should probably keep it just to questions to
18 him.

19 MR. BLAIR: Okay. Sorry. Yeah. Thank you.

20 CW4 INGALLS: Sure.

21 DR. BRAMBLE: Paul, do you have any other questions?

22 BY MR. KIM:

23 Q. Just one follow-up question. What's the minimum specific
24 vertical or lateral separation that's required for visual
25 separation -- for clearance?

1 A. I'm not sure.

2 Q. When the helo pilots request visual separation, what does
3 that mean from the pilot?

4 A. We will -- don't take this the wrong way, but we will
5 separate visually. We will maintain that separation when we have
6 visual contact with the aircraft that they're speaking of. Sorry.
7 It sounds like I just used your words to answer the question but I
8 guess that's the best way I can phrase it.

9 Q. All right. Thank you.

10 A. Um-hum.

11 DR. BRAMBLE: Nick?

12 CW5 JACOBY: No questions.

13 DR. BRAMBLE: Do you want me to close out or do you want to
14 close out?

15 MR. McKENNY: No, go ahead.

16 BY DR. BRAMBLE:

17 Q. Yeah. Is there, I guess along the lines what Mark asked, I
18 guess you guys pretty much covered that, if there's anything else
19 you want to volunteer at this time, that you think we should know
20 about, we'd be happy to hear it. And, if you have anything, any
21 safety concerns or potential safety improvements that you feel
22 like you'd like to offer or communicate to us, we'd be happy to
23 hear that, too. I understand that, you know, we're at the
24 beginning of this investigation, but we're just here to listen as
25 well if you have anything you want to communicate to us.

1 A. So I will say I still find it very odd that they were told to
2 proceed behind that aircraft. That has never happened to any
3 pilot I spoke of. We always hold when they land runway 3-3. So
4 this is -- from talking to others and my experience as well, this
5 is the first time we've ever been told to proceed behind an
6 aircraft with visual separation that's at the same altitude. We
7 always hold when -- we either hold at Hains Point or golf balls
8 when they're landing 3-3. So, everybody's a little bit confused
9 why we would do that, and they're asking me, and I tell them that
10 I don't believe that's very normal, but not saying anybody was
11 right or wrong in that, but we just have never encountered that
12 from the people I've spoken with. That would probably be the only
13 thing I guess I should have mentioned, but.

14 Q. That's interesting. How would you interpret that clearance
15 if you received it? Is there -- would you find it confusing or
16 just unfamiliar that they would issue it?

17 A. Probably both. There's a lot happening in a very small
18 amount of time in that section right there where the accident
19 occurred. So it could confuse me at first as to what that means.
20 We don't have a lot of left and right that we can travel to move
21 behind something which I believe is why we typically are told to
22 hold. So again, it's confusing and -- yeah, it would probably be
23 both.

24 Q. Okay. And what would you do if you were given that
25 instruction? What would your thought process be?

1 A. It's hard to say, sir. With the limited info I know about
2 the accident and the positioning from what I see on the news, I
3 would assume I would try to move up the other portion of Route 1
4 to get behind an aircraft to get down Route 4, but I mean that's
5 easy for me to say when I'm sitting here right now. So.

6 Q. Okay. We have a few people -- other people lined up to talk
7 to, and get some additional information about how you guys operate
8 and witness statements and so on. But is there anybody in
9 particular that you think it's especially important that we speak
10 with?

11 A. I'm familiar with everybody that's coming in today. So I
12 think it's the right group of people.

13 Q. Okay. Great.

14 DR. BRAMBLE: All right. Anybody else have anything else
15 they want to ask before I --

16 MR. WARD: I have one clarification.

17 DR. BRAMBLE: Mark.

18 MR. WARD: Sorry. Mark Ward.

19 BY MR. WARD:

20 Q. The pilot's not requested a separation, a visual separation.
21 It was the tower that directed the pilot for the visual
22 separation.

23 A. Correct. So, typically that's how it goes. They'll call out
24 an aircraft. We'll say we have it in sight, and they'll say
25 maintain visual separation, and we have to acknowledge that.

1 Q. I just wanted to -- it sounded like what he was questioning
2 was that --

3 A. Okay.

4 Q. Just a clarification.

5 A. I'm sorry if I misunderstood your question.

6 Q. Okay. Thank you.

7 DR. BRAMBLE: Van, you look like you have another question.

8 MR. McKENNY: No, I was just going to (indiscernible) the
9 recording.

10 DR. BRAMBLE: Okay. Anybody else?

11 (No response.)

12 DR. BRAMBLE: All right. That being said, we'll call the
13 interview complete. It is 10:32 Eastern Standard Time.

14 (Off the record at 10:32 a.m. EST.)

15 (On the record at 10:35 a.m. EST.)

16 DR. BRAMBLE: Okay. We are back on the record with Matt
17 Ingalls and it is 10:35 a.m. on February 1st, 2025. Just a couple
18 of follow-up questions.

19 BY DR. BRAMBLE:

20 Q. Mr. Ingalls, can you just describe for us the electronic
21 communications capability in/out in the Lima and Mike model Black
22 Hawks in your battalion and what kind of traffic awareness and
23 alerting technology the aircraft have?

24 A. Yeah. Absolutely. The UH-60 Lima has ADS-B out capability
25 with no in. It's common that we will sign for a Stratus receiver

1 that allows us to receive ADS-B in data but it streams directly to
2 -- via Bluetooth to like ForeFlight or an iPad. Each pilot is
3 issued a government issued iPad with MFB One ForeFlight
4 subscription used most commonly by the Lima pilots just due to the
5 fact that a Lima does not have moving displays or any type of map
6 features. Mike model aircraft has four multifunction displays
7 that have moving map capability. So less common for them to be
8 using an iPad in flight. Still the same limitation of ADS-B out
9 without in though. That's really the difference between the two.

10 Q. Okay. So with the Stratus, you can sign out, and with the
11 iPad in a Lima model you can get a traffic display?

12 A. Correct, using ForeFlight.

13 Q. Okay. And -- okay. And that is ADS-B traffic.

14 A. Correct.

15 Q. Okay. Do you have any idea whether the accident flight had a
16 Stratus?

17 A. I don't believe they did, but I cannot definitively answer
18 that question.

19 Q. Okay. How would we find out?

20 A. They would sign for one on their hand receipt. So the one
21 that has like their goggles, their radios and stuff, there would
22 be a Stratus listed on there.

23 Q. Okay. And if you had that Stratus and ForeFlight up, would
24 that allow you to see arriving traffic to 3-3 at National?

25 A. It would -- yes, not specific to 3-3, but it would show the

1 arriving traffic, yes, sir.

2 Q. Okay. And where would the display typically be placed?

3 A. Every pilot's different. Mostly we wear them on our knee
4 boards. We're not authorized to fix anything to the wind screens.
5 So we typically wear them on our knee.

6 Q. If it was a NVG flight, how would you -- would you be able to
7 view them?

8 A. Yep. So through the same adjustment procedure, you allow a
9 little bit of space to be able to look underneath your goggles.
10 It would be the same thing for the iPads.

11 Q. Okay. Any aural alerts associated with the traffic function
12 on the ForeFlight?

13 A. We wouldn't hear it unfortunately.

14 Q. Because it's too loud?

15 A. Yes, sir.

16 Q. Okay. Tell me about the -- any differences in visibility out
17 in the Lima versus Mike and tell me about the automation -- the
18 differences in automation capability with respect to partial or
19 full automation?

20 A. So the UH-60 Mike has fully coupled flight with FMS, four
21 moving displays or four multifunction displays with only one
22 backup ADI and HSI as a standalone system. The Lima has none of
23 that. It's old gauges, lights, little LED lights and standard
24 steam gauges.

25 Q. Okay. So in the Mike, if you were flying the helicopter

1 corridors in DC over the river, could you have the helicopter
2 control altitude using the automated system?

3 A. You could. You can couple to either radar altimeter or baro
4 in the Mike model.

5 Q. Okay. So in that case, if you did that, what is that mode
6 called or is there a mode name for it?

7 A. It would just be altitude hold.

8 Q. Okay.

9 A. Whatever -- whichever one you select, whether it's radar
10 altitude or baro altitude.

11 Q. Okay.

12 A. You just couple the altitude at that point.

13 Q. Can you operate an altitude hold mode and control everything
14 else manually? I mean --

15 A. Um-hum.

16 Q. Okay.

17 A. You can.

18 Q. Is that something that people would typically do or would
19 that be considered something that is atypical?

20 A. Generally speaking or in that section of flight, Route 1,
21 Route 4, because it varies.

22 Q. Both.

23 A. Okay.

24 Q. I'm trying to determine if that's an unusual mode --

25 A. Generally speaking, people will fully couple. So altitude

1 airspeed heading just using the flight director to make the turns.
2 You can push against it. You can force against trim or push
3 against force trim. That section of routing, it's very common
4 just to go uncoupled because it's -- there's a lot of slowing
5 back, turning that occurs, where 4 meets 1, and it also depends on
6 the level of proficiency of the pilot. Me, for example, I would
7 do it uncoupled whereas newer pilots they really enjoy being
8 coupled up to everything, not understanding the limitations of it.

9 Q. Okay. And just to clarify, the Stratus receiver is what?
10 What kind of technology is that? Is it an ADS-B transceiver?

11 A. Sorry. It's a little white box that tells me that there's
12 aircraft in the area. So.

13 Q. Okay. It's all right. We'll figure it out.

14 UNIDENTIFIED SPEAKER: I can brief you on that when we --

15 DR. BRAMBLE: All right. So that's all I have. I just
16 wanted to get that information in the record so I can talk about
17 it accurately. I want to try and keep it somewhat brief because
18 we've got more interviews coming. But, Eddie, do you have a
19 question?

20 MR. MILLER: Yeah.

21 BY MR. MILLER:

22 Q. So on the radar altimeter alert, there is no Betty attached
23 to it? It's only one like a gong or --

24 A. Correct.

25 Q. All right. And do you wear hearing aids at all?

1 A. Like hearing protection or hearing aids?

2 Q. Both. Tell me how you protect your ears and --

3 A. Oh, we wear ear inserts, CEPs, and then we have -- the helmet
4 themselves have sound properties.

5 Q. Okay. All right. Thank you.

6 BY MR. MILLER:

7 Q. Does the Mike model have a Betty?

8 A. What do you mean by a Betty?

9 Q. Bitchin' Betty, low altitude, low altitude.

10 A. Oh, no. The same sound. It's the same sound --

11 Q. You set the low bug to a contracted altitude?

12 A. You can set your low bug in the Mike as well.

13 Q. And then if you go below that, Betty will go off and she will
14 remind you --

15 A. Yeah, we don't have a Betty.

16 Q. Right.

17 A. We just have the same gong noise in the Lima and Mike. So.

18 Q. Okay.

19 BY DR. BRAMBLE:

20 Q. You don't have an aural alert consisting of speech that
21 indicates low altitude but you have a gong aural or if the low
22 altitude bug is exceeded --

23 A. If you descend below it, yes.

24 Q. Okay.

25 DR. BRAMBLE: Does anybody else have a follow-up question?

1 BY MR. KIM:

2 Q. Quick follow up. So in this case, would the low altitude bug
3 be set to 100 feet?

4 A. It depends what the pilot wants to set it to.

5 Q. Thank you.

6 DR. BRAMBLE: You good, Van?

7 MR. McKENNY: Yep.

8 DR. BRAMBLE: All right. With that being said, we will call
9 this additional information complete at 10:44 a.m. Eastern
10 Standard Time.

11 (Whereupon, 10:44 a.m. EST, the interview was concluded.)

12

13

14

15

16

17

18

19

20

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

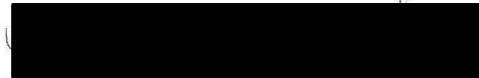
NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN AMERICAN
AIRLINES JET AND ARMY HELICOPTER
NEAR RONALD REAGAN NATIONAL
AIRPORT, WASHINGTON, DC
ON JANUARY 30, 2025
Interview of Matthew Ingalls

ACCIDENT NO.: DCA25MA108

DATE: February 1, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Kathryn A. Mirfin
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of:

*

*

FATAL COLLISION BETWEEN AMERICAN

*

AIRLINES JET AND ARMY HELICOPTER

*

Accident No.: DCA25FM015

NEAR RONALD REAGAN NATIONAL

*

AIRPORT IN WASHINGTON, DC

*

ON JANUARY 30, 2025

*

*

* * * * *

Interview of: PHILLIP GALLON, Captain

12th Aviation Battalion, Bravo Company

Saturday,
February 1, 2025

APPEARANCES:

DR. WILLIAM BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN MCKENNY, Operations Group Chairman, Helicopters
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

MARK WARD, Accident Investigator
National Transportation Safety Board

DR. SABRINA WOODS, Human Performance Investigator
National Transportation Safety Board

DAVE BLAIR, Chief Pilot for Safety
Sikorsky

PAUL KIM, Chief Pilot
PSA Airlines

CW5 NICK JACOBY, Standardization Pilot
U.S. Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of Phillip Gallon:	
By Mr. McKenny	5
By Dr. Bramble	13
By Mr. Ward	31
By Mr. Miller	36
By Mr. Blair	40
By Mr. Kim	46
By Mr. McKenny	54
By Dr. Bramble	56
By Mr. Ward	61
By Mr. Blair	61
By Mr. Kim	64
By Dr. Bramble	66

I N T E R V I E W

1
2 DR. BRAMBLE: All right. My name is Bill Bramble, and I'm a
3 human performance investigator with the NTSB. Van McKenny and I
4 are leading the operations and human performance working group,
5 helicopter, for Investigation Number DCA25MA108 involving PSA
6 Flight 4352.

7 The NTSB is an independent federal agency. We're not part of
8 the Department of Transportation or the FAA, and we have no
9 regulatory or enforcement powers. Our mission is to determine the
10 probable cause of incidents and accidents and make recommendations
11 so similar events can be avoided. Our mission does not include
12 findings of liability or blame. Your participation today helps
13 ensure that the fact-finding phase of this investigation is
14 complete and accurate.

15 We will be recording this interview so that it can be
16 transcribed. After we receive the transcript, our group will
17 review it for typos and incorrect acronyms before it's included in
18 the public docket for this investigation. We can also provide you
19 with an opportunity to review the transcript if you'd like. You
20 just have to make a request to us later.

21 I would now like each of the group members to briefly
22 introduce themselves and state their organizational affiliation.

23 MR. McKENNY: Van McKenny, operations group chairman, NTSB.

24 DR. BRAMBLE: Go ahead, Mark.

25 MR. WARD: Mark Ward, accident investigator, NTSB, up in

1 Alaska.

2 DR. BRAMBLE: Okay.

3 MR. MILLER: Eddie Miller, senior accident investigator, FAA.

4 DR. BRAMBLE: Sabrina.

5 DR. WOODS: Sabrina Woods. I'm also a human performance
6 investigator with NTSB. I'm here in support.

7 DR. BRAMBLE: Dave.

8 MR. BLAIR: Good morning. Dave Blair. I'm the chief pilot
9 for safety, Sikorsky.

10 MR. KIM: Paul Kim, PSA Airlines, chief pilot.

11 CW5 JACOBY: CW5 Jacoby, standardization pilot for the U.S.
12 Army Aviation Brigade.

13 DR. BRAMBLE: Okay. And I neglected to mention at the
14 beginning that this is interview is of Captain Phillip Gallon.
15 Captain Gallon, can you just spell your full name for us for the
16 record?

17 CAPT GALLON: P-h-i-l-l-i-p, G-a-l-l-o-n.

18 DR. BRAMBLE: Okay. And, Mr. McKenny, will begin the
19 interview.

20 INTERVIEW OF PHILLIP GALLON

21 BY MR. McKENNY:

22 Q. Thank you for coming in, Captain Gallon. Could you just give
23 us a brief history of your experience and then describe your
24 position in the battalion and your duties?

25 A. Okay. I've been in the Army since I was 17. So 2003 joined.

1 I joined initially as an aircraft structural repair, switched to a
2 helicopter repairs for the UH-60 and then 15 Kilo aircraft
3 component supervisor. So there was a break in service. Worked as
4 a structural repair mechanic for A Comm and Data Corp
5 International, did some other classified work in between then.
6 Then I came back into the Army, commissioned 2016, went to flight
7 school, graduated 2018. Was in Fort Raleigh, Kansas for the 1st
8 Combat Aviation Brigade. I've been a platoon leader, battalion S4
9 logistics officer, came back to -- after RPME (ph.) or
10 professional military education for captain, captain career's
11 course, came into Fort Belvoir as the assistant S3 operations
12 officer for 12th Aviation Battalion, and then I took command of
13 Bravo Company 12th Aviation in May of 2024.

14 Q. And that is your current position now?

15 A. Yes, sir.

16 Q. Could you go ahead and describe the day of the accident? You
17 know, your duties, what you were doing, what time you came in and
18 your interaction with the accident crew.

19 A. I believe I was on duty that day. So I showed up about 0530
20 that morning. Came in. We looked through aircraft logbooks that
21 were assigned for the day, verified any faults or maintenance
22 requirements or inspection requirements on that aircraft and
23 duration until. Then we always brief at 0545. We do a team brief
24 between all the mission lines that are there that morning. We did
25 our -- after our mission brief, we started preflights somewhere

1 around 0600 in the morning for all the different air crews. And
2 after running up and reporting that we are ready to go assume
3 mission somewhere around the time of 0700, came into the office
4 and began working on a host of administrative, training and other
5 operational items that had just filled the day. Throughout the
6 day, I presumably came across as a -- I'm the final mission
7 approval authority for low risk missions. So unsure of the exact
8 number of missions that I probably approved that day, but I'm able
9 to approve any low level risk mission or flight across the
10 battalion. So I probably signed off on numerous flights between
11 all the flight companies in the battalion.

12 I do remember somewhere around I believe 1600-ish, before I
13 departed because I had to be gone by no later than 1730 for our
14 duty day restrictions and requirements as per our SOP, somewhere
15 around 1600 I believe, [REDACTED] came to me as the pilot-in-
16 command to brief me on his RCOP, his risk common operating picture
17 for his flight. They capture all the risk. I don't remember
18 exactly what the brief consisted of. I tend to compartmentalize
19 those things and move onto the next thing I'm doing, but we -- I
20 do remember being the FMAA for him.

21 Q. So do you recall the purpose of the flight?

22 A. It was a night vision goggle standardization flight for her
23 yearly annual proficiency exam.

24 Q. Did you give them or give him -- was she with him at the time
25 when he approached you for the approval?

1 A. No, she was in the pilot's planning area which is just down
2 the hall from my office. I remember seeing her at the desk --

3 Q. Okay.

4 A. -- but she didn't come into the brief or while we were doing
5 the FMAA.

6 Q. Do you recall any of your interaction with [REDACTED] as far as
7 the discussion of the mission?

8 A. I remember him saying -- I remember him outlining the LZs
9 that he was planning on landing at, somewhere in the vicinity of
10 Leesburg and those things, and some of the -- him covering some of
11 the helo routes. That's about as much as I remember of his
12 particular route flight.

13 Q. For this type of a mission which was a stans eval, do you
14 have any particular things that you're concerned about
15 specifically for this type of mission that you focus on with the
16 pilot-in-command?

17 A. Yes. I tend to focus on the two things being, the first one
18 is always the role that the instructor pilot plays while engaging
19 with their pilot during that APART because sometimes they give
20 them a scenario to build and to train within, and they will act as
21 the PI while the actual pilot acts as the pilot-in-command, and
22 they conduct different training within that scenario. And they
23 talk about their decision making and pull some of those known
24 topics that they're supposed to be tested and evaluated on during
25 that flight.

1 So my constant concern is the role that they're in and making
2 sure they know when they're playing that role and outside of that
3 role and taking charge of the aircraft when things aren't going
4 exactly as they're supposed to or the pilot is not performing at
5 the level that they're supposed to or their knowledge isn't there
6 to take control and reset the academic situation and continue the
7 flight while maintaining the safety of that.

8 The second thing that I'm usually concerned about is exactly
9 in relation to that, with maintaining that airspace deconfliction
10 and all the things that they're supposed to do versus the pilots
11 tend to get -- sometimes they can get focused on their tasks,
12 fixated and task saturated with all the things that they're doing
13 because it's an evaluation. Some of that test anxiety comes into
14 play. So I talk that. If you recognize those symptoms, please
15 take the controls, reset the situation, and it's okay to resume
16 (indiscernible).

17 Q. And do you just have that discussion with Mr. [REDACTED] or --

18 A. I tend to have those conversation -- I think it was much
19 abbreviated because he had just done a couple NVG stans and so it
20 was more of a, hey, the same things that we talked about
21 previously with the task saturation and fixation and make sure
22 you're doing the right things and staying in control of the
23 aircraft while she's going through the evaluation.

24 Q. Sure. In your opinion, what kind of pilot was Mr. [REDACTED]

25 A. My personal opinion was he's a steadfast professional. One

1 of -- I would say one of the best junior instructor pilots I've
2 probably seen in my time in the Army. He was a -- he stuck to the
3 letter of the law. Like he was big on that. He was one of the
4 people that constantly, that people would seek out to get a better
5 view of their plan. If they wanted a very tight look and someone
6 who stayed into the regulations and challenged everyone every
7 time. So that's the type of instructor pilot aviator that [REDACTED]
8 [REDACTED] was.

9 Q. How about the copilot, Captain [REDACTED] What kind of
10 interactions have you had with her?

11 A. I actually first met her -- she used to be in Bravo Company
12 as a platoon leader and executive officer. So when I came into
13 the unit, she was managing the flight schedule in conjunction with
14 one of the warrant officers of the company. And she was doing a
15 lot of company stuff because she was the executive officer. So
16 essentially the second in command of the company. So she was all
17 wrapped up in a lot of projects and a lot of training that the
18 company was doing and constantly seeking out and engaging with the
19 staff members such as myself working as the assistant operations
20 officer for the battalion. As far as managing their flight
21 schedule as part of their aircrew training program, I was assigned
22 to staffing here to Bravo Company before I took command. So she
23 made sure everything was right and reflecting exactly what I was
24 requesting, and generally she reached out and was very proactive
25 in ensuring that I flew the hours that I was supposed to fly and

1 when I was supposed to fly and made sure I got incorporated in the
2 company pretty well.

3 Later she became an assistant operations officer that worked
4 directly with me side-by-side in the Battalion S3. I did a lot of
5 training with her as far as training her in the operations process
6 and learning how orders were again planning operations and
7 multiple operations multilateral, bilateral and with support
8 agencies. So we did a lot of that training, and she learned a lot
9 of that with and from me.

10 So beyond that, when I left to take command, she continued on
11 our ATP, and she -- the same thing. She just kept maturing in her
12 role as the operations officer, and I think that the way she was
13 performing is what led to her being selected as the platoon leader
14 for a new position which was the POL, petroleum, oil and
15 lubricants section platoon leader. So we have the aircraft
16 refuelers section. She's basically the platoon leader over that
17 section who runs our forward Army and refueling point there on
18 Davison as well as fuel distribution operations.

19 While she was doing that, she was still flying and still
20 maintaining her minimum. She was actually a pre, fairly low hour
21 pilot-in-command and air mission commander which tells us under
22 the previous commander, he thought that she exuded a lot of that
23 confidence. I've flown with her a couple times, one being in the
24 instance where she actually canceled the flight. It was her first
25 -- it was scheduled to be her first pilot-in-command flight, and

1 she actually canceled the flight because she did not feel that
2 conditions were set, safety. She did not feel comfortable enough.
3 We were heading up to execute an instrument flight, and it was my
4 first instrument flight out of progression for the UH-60 Lima,
5 being my transfer transition. She didn't feel that we were up to
6 where we should be. So she canceled the flight.

7 So, her along with the crew chief had all voiced that is, as
8 well as myself, we were all three in agreement. So we canceled
9 that flight. We sat down, did a couple hours of training on top
10 of that and just talking through some things and going through
11 checklists and going through instrument flight procedures and crew
12 chief involvement with the flight, and we basically just conducted
13 some training between all three of us, some mutual learning and
14 things of that nature.

15 She knew this, the mission that we have very well, and she
16 was a highly achieving, high motivated and driven aviator who was
17 actually capable of accomplishing a lot more than I've seen some
18 of the more junior pilots of her hour level who were similar to
19 her, being able to accomplish in some of the combat aviation
20 brigades.

21 Q. Did you ever fly with her with night vision goggles?

22 A. I can't recall if I did or not.

23 Q. I need to kind of go back. Could you tell us how much flight
24 time you have total and in rotorcraft and in the UH-60?

25 A. UH-60, it's -- UH-60 is around 450 hours, round about, UH-60

1 Lima, UH-60 Mike. Total time is about 575, 580, heading to,
2 recent calculation have been a couple weeks.

3 Q. Okay. All right. And, so the actual mission of the unit is
4 continuity of operations and then local support. Is that correct?

5 A. That's correct.

6 Q. So could you describe what those missions entail?

7 A. Those missions are classified in nature. So the missions
8 that we have are classified by the Chairman of the Joint Chiefs of
9 Staff, USNORTHCOM and Secretary of Defense.

10 Q. Okay.

11 UNIDENTIFIED SPEAKER: Good answer.

12 MR. McKENNY: That's it for me now. Go ahead, Bill.

13 BY DR. BRAMBLE:

14 Q. Okay. I didn't quite catch the hours that you were talking
15 about. I wasn't sure if you were talking total or Lima and Mike
16 models on the UH-60, but can you just tell me for both models
17 combined what's your --

18 A. Somewhere between 570 to 580 hours total.

19 Q. Between 500 and 780.

20 A. 570 and 580.

21 Q. Oh, oh, I see. Okay. There we go. All right. Thanks. And
22 about 450 of that was in the Lima?

23 A. 450 of that is between Lima and Mike model --

24 Q. Okay.

25 A. -- both.

1 Q. I gotcha. Okay. How well did you know the three crewmembers
2 on the accident flight?

3 A. I probably knew [REDACTED] the least. He was the most
4 recent arrival to the company. He had been in the unit before,
5 but that was before my time, and he was in a different flight
6 company. He came about 6 months ago. But I did know some key
7 details in his senior rater. We did get an individual counseling
8 session between us and learned more about him and learned more
9 about what he did. He was often charged with stepping up in place
10 of our senior instructor pilot for the company. So, I got to know
11 a bit about the way he trains, his base of knowledge and how he
12 views operations and how he operates as a whole during those
13 periods where our senior instructor pilot was out for varying
14 reasons.

15 Concerning Staff Sergeant [REDACTED] I knew him probably the
16 second best out of the group. He had been -- he participated in
17 most of my standardization progression flights when I first
18 arrived to the unit while I was on staff flying on Bravo Company's
19 aircrew training program. He was a, he was a key individual with
20 -- engaging with me as a crew chief to say, hey, these weren't
21 done exactly to standard. He actually took the time after our
22 flights to run through these things with me and like, hey, these
23 are some tactic techniques and procedures that work well and that
24 I've seen in my time flying from personnel converting from the
25 Mike to the Lima. Maybe you should try these things out. So

1 essentially he was acting in his standardization instructor role
2 with pilots which was a common thing for him.

3 I did know of his wife and child pretty well. They were --
4 of the most, she was probably the most active in the company and
5 in the soldier family readiness group of the units.

6 And then on a day-to-day basis, he matriculated up out of the
7 staff section and was promoted to staff sergeant and essentially
8 became a platoon sergeant shortly thereafter. So I was constantly
9 working directly with him. He would come to me for varying
10 things, whether it be administrative, whether it be for guidance,
11 whether it be for clarity of duties and things of that nature. He
12 had an open door direct to me as a platoon sergeant. So that's
13 about the extent of me and [REDACTED] relationship.

14 And then I probably knew [REDACTED] the most just from
15 our time working together while I was on staff and communicating
16 as commissioned officers. And then as we worked side-by-side, we
17 got to know each other pretty well. We literally worked in the
18 same office that was maybe 10 by 15 feet, so just enough for 2
19 desks in it, and we worked side-by-side bouncing off each other's
20 computer screens and I'm teaching her stuff, and she's actually
21 very detailed oriented. So she would point out things like you
22 told me to train this. I noticed you messed these things up or
23 this isn't exactly right. So it was -- over the time it was a
24 trainer-trainee relationship but over time we became more
25 symbiotic up until the time where I took command.

1 She actually got to know of -- meet my daughter and my wife,
2 and we -- she was doing the White House fellowship program. So
3 she would line us up for White House tours and things of that
4 nature. So it just became a good personal and professional
5 relationship between us. And then as she continued on our ATP, I
6 took command, we continued to have semi-regular tap ins about her
7 flying schedule or if she went down for medical reasons or
8 anything like that and talking and just catching up with personal
9 matters and seeing how each other were doing.

10 Q. Okay. So [REDACTED] you interacted with for about 6 months and
11 then how long were you interacting with [REDACTED]

12 A. It was about 2 1/2 years.

13 Q. Okay. And then --

14 A. 2 1/2 years with [REDACTED] as well.

15 Q. 2 1/2, okay. So that's about the time you joined Bravo
16 Company?

17 A. I joined Bravo Company last May.

18 Q. Oh, okay.

19 A. I had been interacting with them since I arrived and was
20 placed on Bravo Company's aircrew training program. So I had been
21 flying with the company for essentially a year and a half before I
22 ever took command.

23 Q. All right. Do you recall interacting with any of the three
24 prior to that mission approval in say the 3 days or so before the
25 accident?

1 A. Yes. We had our -- Wednesday is the company's day that we
2 have our meetings for the company trainee flight schedule meeting.
3 So I recall interacting with both [REDACTED] and Staff Sergeant [REDACTED]
4 doing that. Outside of that, the final mission approval briefing
5 for his low risk flight, I don't recall any specific instance
6 interacting.

7 Q. Okay. All right. And no contacts with [REDACTED] in the 3 days
8 before?

9 A. Probably daily for something.

10 Q. Oh, I'm sorry. I meant to say [REDACTED]

11 A. [REDACTED] the day before. No, outside of just seeing her in
12 the planning area and saying like, hey, what are you planning?
13 What are you doing? And watching her plan her flight and saying
14 good luck.

15 Q. Okay. On the day of or other days as well?

16 A. Days prior to. The day of, when she was planning and the day
17 prior to.

18 Q. Okay. Just greetings in the planning area essentially.

19 A. Yes, sir.

20 Q. All right. How did, how did [REDACTED] seem when he came to you
21 for the approval? Did he appear alert?

22 A. Yes. He seemed very alert. He had been given a series of
23 mission through the previous flight schedule meetings. We plan
24 our flight schedule for Bravo Company 3 and 4 weeks away. So up
25 to 4 weeks away, things are planned. So the following week, we

1 were scheduled to have a company culminating training event for
2 the quarter. So we were running through our classified mission
3 and doing some training that involved that mission set. He was
4 generally very perky because he put a lot of his influence into
5 that training plan and how we were executing in the day, he was
6 fine in the training we were going to execute. But generally that
7 was no different than his demeanor on any other day.

8 Q. Okay. And, how about [REDACTED] How did she seem when you saw
9 her in the briefing or in the planning room?

10 A. She was -- seemed like she had tunnel vision in what she was
11 doing. She was very focused on just planning.

12 Q. Just sort of focused on the task at hand?

13 A. Yes, sir.

14 Q. Okay. Any significant recent life events in the lives of
15 either of these three crewmembers in the year or so before the
16 accident that you're aware of such as major changes in their
17 health or their finances or their family lives?

18 A. I can't speak for [REDACTED] I don't think there was anything
19 there that she ever brought up to me. Same thing for [REDACTED]
20 [REDACTED] there's nothing that I can recall there that was brought
21 up. [REDACTED] was having some difficulties at home, just
22 whether it be misunderstandings or something like that from his --
23 between him and his spouse.

24 Q. And --

25 A. I'm not sure of the full extent.

1 Q. Did that seem to be a stressor for him?

2 A. Yes, it was.

3 Q. Okay.

4 A. He actually sought behavioral health. So he actually
5 essentially downed himself and went to behavioral health
6 proactively, received a medical down slip to not conduct flight
7 duties because he wanted his full focus to be on that, and
8 actually his ground job and taking care of soldiers was what he
9 told me. He said when he felt up to it, and things had smoothed
10 out a bit, he would work, he would work himself back up to flying,
11 and he had recently done that over I would say the past month or
12 month and a half is when he came back up on medical up slip to
13 fly.

14 Q. Okay. All right. So, he went on medical leave for about a
15 month and then over the following month and a half leading up to
16 the accident --

17 A. I can't recall how long the period that he was down for.

18 Q. Okay. But it was that month that he took off was sometime
19 within the last 3 months or so of the accident or --

20 A. It was probably within the last 3, 4 months, yes.

21 Q. Okay. And when he came back, did he indicate to you that he
22 felt like he was doing better?

23 A. Yes.

24 Q. Okay.

25 A. He had to have that discussion with me before I would sign

1 his medical up slip.

2 Q. Okay. So if he sought help for that, would that have been
3 through VA or --

4 A. It could have been through the on post behavioral health --

5 Q. Okay.

6 A. -- or it could have been something he sought from military
7 one source or some other advocacy program.

8 Q. Okay. All right. Any issues with substance abuse that you
9 know of?

10 A. None that I know of.

11 Q. All right. I think we got the overview on the duty time
12 limitations and rest periods, but can you just briefly review what
13 the limits are there?

14 A. You can only conduct aviation operations for 12 hours at a
15 time after which you have to have a minimum of a 10 hour
16 uninterrupted rest period. The SOP does allow for a momentary
17 break in that rest period of 30 minutes to take a meeting, for
18 example, or something like that, answering an email, take a phone
19 call without considering it a complete disruption of your duty
20 rest cycle. But anything longer than that 30 minutes, you are
21 considered -- you have to start a new rest period of 10 hours.

22 Q. Okay. And sorry I'm jumping back to a previous topic but
23 just to wrap up your perceptions of the three crewmembers, for
24 their roles, compared to other soldiers of their level of
25 experience in that role, would you -- how would you rate each of

1 them in terms of being -- how would you describe their capability
2 compared to other soldiers with their experience for that role?
3 Just in a very sort of --

4 A. Starting with Staff Sergeant [REDACTED] he was -- for his role
5 as a junior staff sergeant, I think he was significantly advanced
6 for his position in time and service, for his hour level and was
7 probably significantly advanced of what you would expect from a
8 crew chief at that rank and level. And his knowledge, we make the
9 joke that he was a walking technical manual. So he was constantly
10 the person that people came across and came to for information and
11 knowledge and sat down with for impromptu classes. So,
12 significantly advanced on the technical side of flying and
13 maintaining aircraft is what I would say and starting to eclipse
14 his peers if not already by taking the platoon sergeant role as a
15 staff sergeant versus already being promoted to sergeant first
16 class.

17 Concerning Captain [REDACTED] she was -- initially, when we
18 started, she was probably a little behind because this unit in
19 particularly (ph.), because of the type of operations that we do,
20 the COOP-COG mission sets, it allows for a lack of planning and
21 things that you have to create and go through the operations
22 processes. So she was a little bit behind on that when we -- when
23 I first arrived, but as we went along for that 2 1/2 year period,
24 training by me personally, training by our actual battalion S3,
25 operations officer, as well as Lieutenant Colonel Holownia and

1 several other people who she had actively sought guidance and
2 mentorship from after she expressed, hey, there are things I
3 realized I haven't been doing, that I haven't been exposed to. I
4 need to get ahead of those things, and she was -- by the end, by
5 the end of -- by current day, I think she was actively able to run
6 circles metaphorically around any other operations officer or
7 junior aviation planner or mission commander, just based on her
8 dedication to learning the operations process and the planning
9 process, that she had to coordinate as an operations officer and a
10 junior AMC.

11 Concerning CW2 [REDACTED] he was -- I'd say he was slightly more
12 advanced than what I've seen for an instructor pilot of his time
13 and service as a warrant officer and an instructor pilot.
14 Generally at that level, Army Aviation had a thing for quite a
15 while where they would send many of their instructor pilots for a
16 utilization tour at Fort Novosel, Alabama, to essentially work for
17 2 to 3 years in training flight school students so they can learn
18 how to be an instructor pilot. CW2 [REDACTED] never did that
19 opportunity, just tours between the unit, Honduras and coming back
20 to this unit, yet he managed to learn a whole lot about -- take a
21 lot of things that he learned from flying in SFRA (ph.), the NCR
22 and the JOA, the joint operations area, for -- incorporate that
23 into flying throughout Honduras and a lot of South and Latin
24 America in the SOUTHCOM, US SOUTHCOM mission that he executed in
25 Honduras and brought that back to the organization, that it kind

1 of shifted from the way that it had previously done things, and he
2 jumped right back into it knowing the previous methods that we
3 used, incorporating the best of those with the best of what we
4 actively do now in codifying that. So, I would say he was
5 advanced as opposed to another similar instructor pilot of the
6 same hour level and time served as a warrant officer because he
7 was able to meld those things together in some of the most
8 restrictive airspace that you're going to come across in the
9 country.

10 Q. Okay. And on the flying front, how was [REDACTED] capability
11 on the flying front?

12 A. She was -- on flying, she was great. Great on controls,
13 great at process management and workload management in the
14 aircraft. I can't say that I can speak to her abilities to fully
15 plan and execute a multiscale, multiship operation because that's
16 not the type of flights that I've ever encountered her with. It
17 was all single ship, but as far as that goes, she was a solid
18 pilot-in-command who was capable of executing and had that
19 knowledge, had glimmers of advanced knowledge for where she was.
20 Hence, why she was selected as a pilot-in-command and air mission
21 commander as a pre junior hour level. So she had the command.
22 She knew the right and sound decisions need to be made and had
23 pretty good judgment when it came to. She was a very prudent and
24 conservative risk taker when it came to actual in the flight part,
25 in flight maneuvers in planning.

1 Q. Okay. All right. Are you still flying missions?

2 A. Actively, in this moment, we are on a stand down.

3 Q. Okay. But prior to the accident?

4 A. Yes.

5 Q. Okay. And have you recently flown the VFR helicopter routes
6 4 and 1, sort of across, near National Airport there?

7 A. Easily within probably the last month --

8 Q. Okay.

9 A. -- month and a half, depending on the holiday leave schedule.

10 Q. Okay. What's been your experience in terms of deconflicting
11 with traffic on approach to runway 3-3?

12 A. I only encountered 3-3 specifically a couple time because
13 usually it's the opposite runways, but during that, it's harped
14 upon us in the unit that, and just from knowing VFR procedures
15 that, hey, that when we call for the -- if we have aircraft that
16 are constantly cycling into DCA which we see 4 or 5 miles
17 separations between each, we can literally see a line of them
18 depending on the runway that they're coming in on. We acknowledge
19 that we have the aircraft in sight, and if we request visual
20 separation, we understand that that's the air traffic controller
21 being kind of -- us acknowledging that we'll maintain our own
22 separation versus them procedurally guiding us.

23 Generally, it's fairly busy in the hours I would say between
24 probably 09 and 2300 in the Class Bravo around DCA particularly.
25 But, once we're probably north on Route 1 of Chain and Key Bridge,

1 it lightens up quite a bit. Our altitudes comes up significantly,
2 and we're able to deconflict by miles with lateral and vertical
3 separation significantly.

4 Q. Okay. How often in your experience, if you do have traffic
5 coming into 3-3, how often does the tower ask you to hold versus
6 maintain visual separation?

7 A. It's -- I've had -- I've experienced it myself personally a
8 couple times and I know other aviators have and we talk about it,
9 that we have several positions along Route 4 and Route 1 that
10 we're asked to hold at typically. So it's a fairly common
11 practice.

12 Q. The holding?

13 A. Yes, sir.

14 Q. Okay. How -- if you had to put sort of a ratio on it, how
15 likely would you be asked to hold versus maintain your own
16 separation transiting that area, the aircraft on approach?

17 A. It's probably about 25 percent, probably a little higher
18 using runway 3-3 particularly, probably significantly higher.
19 That's probably most of the holding that I've experienced was
20 aircraft using runway 3-3.

21 Q. So for runway 3-3, about 25 percent of the time you think
22 you'd be a hold instruction?

23 A. Yes, sir.

24 Q. Okay. And the rest of the time it would be maintain visual
25 separation if you had traffic approaching?

1 A. Yes, sir.

2 Q. Okay. If you were given an instruction to pass behind
3 approaching traffic, would you find that confusing?

4 A. It depends on the context. I can't speak to -- without more
5 context and having a visual representation, I don't know if I
6 could say that that would be confusing or not.

7 Q. Okay. If you maintained visual separation and you were going
8 to pass off the approach end of 3-3 over the river and you had
9 traffic on approach, would you feel comfortable continuing on
10 course if they were going to pass over you or would you prefer to
11 maintain lateral separation?

12 A. I would probably prefer to maintain lateral separation,
13 depending on how fast they're moving and altitudes and based on
14 the altitude there, I believe I would probably slow down a bit as
15 far as for airspeed, indicated airspeed, and generally I
16 personally don't want to be underneath an aircraft or above
17 another aircraft.

18 Q. What altitude would you expect them to be at crossing the
19 river there if they were approaching 3-3?

20 A. At 3-3, they're probably at -- as I remember, and this is
21 probably not accurate because I'm going off memory, I would expect
22 them probably to be somewhere between 500 feet and 300 feet at
23 certain portions at that close to the approach zone, you know, 3
24 miles short final in.

25 Q. Okay. And what --

1 UNIDENTIFIED SPEAKER: Let me clarify. You're talking about
2 fixed wing traffic?

3 CAPT GALLON: Yes, fixed wing traffic.

4 BY DR. BRAMBLE:

5 Q. And what altitude would you be flying at through that area on
6 the 4 corridor there?

7 A. I believe the altitude is 200 feet, ceiling -- 200 foot
8 ceiling.

9 Q. And how low can you go?

10 A. To 100 feet below it. So 100 foot, within that range.

11 Q. Okay. If you were operating in that area on those routes,
12 would you typically set an altitude bug for the low or the high
13 altitude?

14 A. Yes, we generally have -- yeah, we -- honestly, no, I
15 wouldn't. I don't -- in the Lima, I typically don't set low and
16 high altitude bugs.

17 Q. Do you just maintain the altitude by monitoring the
18 altimeter?

19 A. Yes, sir.

20 Q. Okay. And, if you do set a bug and you go above the high
21 altitude bug, do you get an alert of some kind?

22 A. In the Lima, yes. You have an audible tone.

23 Q. Okay. And what about in the Mike?

24 A. Mike as well.

25 Q. Okay. And, what about traffic awareness? I understand that

1 you guys have some sort of ADS-B transceiver that can feed an iPad
2 and give you a traffic display.

3 A. Typically during our training flights, not during our actual
4 classified (indiscernible) routes mission running, but during our
5 training flights, we typically fly with a Stratus brand receiver,
6 and that pushes the updates -- are connected to WiFi through the
7 -- to the Stratus that it emits, and it gives us all the ADS-B
8 information for surrounding traffic.

9 Q. Okay. And is that displayed on ForeFlight on an iPad?

10 A. Yes, that's correct.

11 Q. Okay. And where do you typically place the iPad?

12 A. It's usually, depending on the aviator, they could be holding
13 it. It could be -- the common thing is to have it strapped to
14 their left or right knee depending -- on their left knee,
15 depending on how they set themselves up.

16 Q. Okay. And then how would, how would you use it if you were
17 on a NVG flight, NVG standard evaluation flight? Would you
18 utilize the traffic awareness display?

19 A. I probably would if I was flying helicopter routing or
20 through other known congested airspace. Typically I wouldn't rely
21 on it too much. It may be up, but we wouldn't rely on it
22 typically during just standard NG/VFR, cross country or out flying
23 towards a less congested training area.

24 Q. Okay. When that's up, does it show a moving map plus an
25 overlay of traffic?

1 A. Yes.

2 Q. Okay. How would you adjust the NVGs to use that?

3 A. Typically we would just look under our NVGs, at least that's
4 my technique. Some people may have others but my technique is to
5 look under my NVGs but if I'm at night, I'm usually looking under
6 my NVGs, able to still see forward but I have my iPad in my hand
7 versus looking down at my knee.

8 Q. Okay. And then how about the instruments themselves, like
9 the altimeter. How do you typically monitor that in a NVG flight?

10 A. Same thing, underneath the goggles, the back lighting of the
11 upper display console, just looking under my goggles and doing my
12 cross scan.

13 Q. Okay.

14 A. Crosscheck.

15 Q. Is it feasible to fly through that areas on Route 4 on the
16 VFR corridor 4 there for helicopters? Is it feasible to fly
17 through that area off the approach end of runway 3-3 with the
18 goggles or is there too much light contamination from bright light
19 sources?

20 A. You can do both and still see pretty clearly. There's enough
21 cultural lighting that's emitted from after the aircraft in your
22 direction if you were traveling south. Definitely if you're
23 traveling north, there's a cluster of lights that provide cultural
24 lighting. So it's enough to either you can use the NVGs or you
25 cannot at that particular moment, and it varies if they have NVGs.

1 It might be a preference. We have white phosphorus and we have
2 green phosphorus. So the whites are significantly brighter than
3 the greens. So, it depends on what's someone prefers for the NVG
4 setup and what they were planning on.

5 Q. Do the lights -- is it more difficult to see with the white
6 phosphorus if you have a lot of cultural lighting compared to the
7 green?

8 A. I think it's easier to see with the white phosphorus
9 personally than the green.

10 Q. Okay. So you mentioned that you can do both. Is what you
11 mean you can do either night visual or augmented with NVGs through
12 that area? Is that what you mean?

13 A. Yes, sir.

14 Q. Okay. If you're on a NVG evaluation flight, and you are
15 transiting that area, what would you -- what would typically be
16 done?

17 A. If you're NVG --

18 Q. If you're NVG.

19 A. -- stans, so you would probably be goggled the entire time or
20 aided as we say. Aided versus unaided. You'd be aided the entire
21 time.

22 Q. Okay. How was the morale in the battalion prior to the
23 accident?

24 A. I would say it was fairly high.

25 Q. And did you feel that you had the right equipment for the

1 missions and training you were doing? Well, let's say did you
2 feel you had the right equipment to be safe during the training
3 missions you conducted?

4 A. I believe our flights could be safely executed using the
5 equipment that we have on hand. Things could always be better,
6 but I think we could execute safe flights with what we have.

7 Q. Okay. All right. I think that's going to be it for me for
8 the first round. Thanks very much.

9 DR. BRAMBLE: And we'll go to Mark.

10 BY MR. WARD:

11 Q. Mark Ward. Some of my questions are going to be kind of
12 jumbled. I'm not as organized as the rest of them. I jump around
13 in sequence. I apologize about that. Speaking about the
14 instructor pilot, what kind of gentleman -- was he an intimidating
15 individual?

16 A. Oh, no. He is the exact opposite in fact. Very open and
17 inviting. You wanted to be in his presence. You wanted to talk
18 to him. You wanted to engage with him. Sometimes the culture can
19 be one of where soldiers are intimated or aviators are intimidated
20 by an instructor pilot because they're the evaluation [sic].
21 They're held up as the standard for what is right. He was very
22 approachable. That was his demeanor and that was the
23 conversations he had with you. You always walked away with
24 generally feeling like you learned something or that there was
25 something good that came from that conversation.

1 Q. If a pilot were to make a mistake, is it a no go or was he
2 the type of person that would probably provide a little bit of
3 training, and if you got at that, you could salvage the ride?

4 A. Oh, he would definitely insulate and train before he'd just
5 give anyone a no go. We're going to go through that again
6 procedurally and talk about it. Me and him had a discussion
7 recently in the past 2 months about his methodology for training,
8 and he always, no matter what, if it's a no go, he always comes
9 back, gives another training iteration of whatever it is, whether
10 it be in the cockpit at that time or another flight, and they have
11 a talk about it and then they can -- and then they will execute
12 again, but he doesn't do -- he doesn't attempt to have a pilot
13 execute the maneuver or whatever the training scenario or training
14 task is again without some form of retraining, a reiteration of
15 retraining in between.

16 Q. Does he allow pilots to make mistakes and then correct as far
17 -- I mean does he, does he allow a pilot to get outside parameters
18 to demonstrate that that's -- that did happen I guess to avoid the
19 comms foot between a pilot, but I never would have passed that.
20 Say altitude if that's the thing. If you have a hard deck of 200,
21 how far is he going to allow that pilot to go above 200 before he
22 says something? And, is he going to allow that as a learning tool
23 to go, look, you've got to -- you did -- you went as far as this.
24 I felt safe enough that you violated it, but I wanted to show you
25 that you did violate it, and then he makes the correction? Or is

1 he one of those guys that goes, hey, you've got to stop. We're
2 just about to break that rule when he is in that environment as a
3 instructor?

4 A. I actually can't tell you because I think I've never had a
5 standardization flight with him or just a training flight with
6 just me and him. So I can't recall that I've had -- I can't
7 recall that I know that answer.

8 Q. Do you know what time he showed up that day?

9 A. I don't know.

10 Q. How much NVG experience do you have?

11 A. I have about 150 hours.

12 Q. How would you describe the easiness of identifying aircraft
13 in that area under NVGs?

14 A. In that particular area, it's probably a little harder based
15 on the cultural lighting. So sometimes during a routine training
16 flight, we would -- one of the pilots would say they're coming
17 unaided to assist in identifying an aircraft that may be called
18 out by Potomac Approach or DCA Tower, Washington Tower, to just
19 identify them quickly anti-collision or position lights versus
20 looking through NVGs and seeing a light that's the same color and
21 hoping that you can tell a light that's strobing or steady that
22 blends in with the same because everything under a white or green
23 phosphor looks white or green. So.

24 Q. How much traffic is there to be I guess confused with? So if
25 you were to see landing traffic at an airport, are other airports

1 in the area that you could confuse a different aircraft landing at
2 a different airport or different runway? So is like a line, an
3 aircraft line? When he says that's -- look for this aircraft, is
4 it -- have you ever had a time that you've misidentified, well,
5 shoot, there's --

6 A. There have been numerous times where we've misidentified
7 aircraft, whether it be another rotor moving aircraft operating on
8 the Maryland side of the river or someone coming from 2 Whiskey
9 five, a smaller airfield that there, or just someone traversing
10 through the area. It's fairly congested as we get through there.
11 So you're liable to see numerous aircraft if you're looking and
12 scanning for one in particular.

13 Q. And you mentioned that it is a technique to have one pilot go
14 unaided to help identify aircraft that are out there?

15 A. Yes, there's a technique to go momentarily unaided to
16 identify.

17 Q. The altimeter for your altitude, how -- do you have to tilt
18 your head to be able to see it when you're looking at the goggles?

19 A. I don't -- for me, I set mine up in a method to where they're
20 seated as high as possible. That way I have a good amount of
21 vision lower that I don't have to tilt my head. I can't speak for
22 what everyone else does, but that's my technique.

23 Q. You can clearly see the entire instrument panel from how you
24 set yours up. You can see it without tilting your head up,
25 looking underneath the goggles to see it?

1 A. Yes. Maybe at most, I may not be able to see the top of an
2 annunciator light or something of that nature for a caution light
3 or something like that, but we're trained specifically to move
4 your head and visually move. That way you're capturing
5 everything.

6 Q. And then if I'm correct, the altimeter is about mid, far
7 right, mid of the panel?

8 A. Correct, if seated on the right side.

9 Q. History of near misses?

10 A. For the aviators?

11 Q. For your area of operation, is there a history of near misses
12 where you've come close to landing traffic at these busy airports?

13 A. Nothing that I've heard of in my time (indiscernible).

14 Q. You said 25 percent of the time when you're flying that
15 route, they'll have you hold and then -- so I can -- I'm making
16 the assumption a little more than half the time, they'll ask you
17 if you see the aircraft, just remain clear of that aircraft,
18 either pass behind --

19 A. Generally, they will tell us to hold. So the two situations
20 I've encountered is they will tell us to hold if there are -- say
21 there's heavy traffic or traffic that's sequenced in such a
22 shortened array on final that are sequentially coming in. That's
23 one situation where I've seen. And then another situation where
24 we -- if we take too long to identify the aircraft, they may put
25 us in a holding pattern until we have that aircraft identified.

1 Q. So is it unusual that once you've identified the aircraft to
2 have you just pass behind them if they're landing?

3 A. Yes. They say, hey, you're number 1 or you're number 2 pass
4 in front of them or pass behind and typically is what
5 (indiscernible).

6 Q. That's all the questions I have. Thank you.

7 DR. BRAMBLE: Okay. Dave. Oh, I'm sorry. Eddie, you're
8 back.

9 MR. MILLER: Yeah.

10 BY MR. MILLER:

11 Q. Just -- I only have like maybe one or two. But going back to
12 risk assessment and your involvement as the commander to sign off
13 low risk, can you tell us where did you get your SMS training and
14 the process for you to determine your authority on what's the
15 cutoff and how do you determine the risk or mitigate the risk? So
16 how do you get your training? And then what's your level of it,
17 you know?

18 A. To be clear, what do you mean by SMS?

19 Q. So when you do -- so you have a risk assessment. So there's
20 training involved as a commander, as the standardization
21 instructor pilot to determine risk and run a risk assessment. How
22 did -- where did you get your training for that, for your -- to
23 run the risk assessment and then you're now -- now -- you are now
24 looking at your crew's risk assessment. How do you determine that
25 they did they it right, that they determined the proper amount of

1 risk?

2 A. Okay. So, I think that's probably a little longer question
3 to answer, but we're trained basically upon our completion of
4 flight school. Our junior pilots are run through the training
5 scenarios where they have to produce the RCOP and they read
6 through the unit in Army aviation SOPs about that RCOP and what
7 codifies and what that risk is trying to capture and what
8 compounding risk and all those things are. So, ideally by the
9 time they make pilot-in-command, they're evaluated through their
10 pilot-in-command evaluation flight that they can do that risk
11 assessment properly and then go out and conduct training flights
12 and have it briefed and approved and along with the process that's
13 supposed to happen.

14 For me as a commander, once I came on board as the Bravo
15 Company commander, the battalion commander granted a low FMA
16 approval after training. So I sat down with my senior company --
17 senior instructor pilot at the time who is now the battalion
18 standardization pilot. So -- and we ran through the -- what we
19 call final issue approval authority academics. So we run through
20 his academics and talk about exactly what we're looking for. We
21 talk about the mission briefing officer's role in that, safety's
22 role in that. The RCOP that we use for Army Aviation is a hybrid
23 mix of what's pushed out by Army Aviation, Department of Doctrine
24 and Training.

25 Q. DTOD (ph.), Department of Training --

1 A. Yep. And then the unit level. So the unit can add things
2 to. They just can't take away the risk that the Army's already
3 codified. But, using a combination of those factors is what --
4 how we are trained as FMA authorities. And as those new things
5 come up quarterly, we have AMC and FMAA academics after -- at our
6 monthly aviator academics that we sit down -- actually, I think it
7 semiannually. It's either semiannually or quarterly, but I
8 believe it's semiannually with all the unit air mission commanders
9 and FMA authorities will sit down and have academics on exactly
10 what we're encountering, any trends, we're explaining certain
11 things that have come up with recent trends from mission briefing
12 officers and FMAAs and we'll clarify and we'll adjust the RCOPs at
13 that time if we need to capture new risks, mitigating measures or
14 something that we need to identify in that RCOP.

15 Q. One final question. After the -- after a flight has gone out
16 and you signed it off as low, and they -- is there a, is there a
17 mechanism when they come back and say, we might have left as low,
18 but when we came back, it turned into a medium? Is there a
19 mechanism to recapture it on the back end?

20 A. Yes. We have a re-briefing approval process. So they're
21 supposed to execute only the training in the modes of flight and
22 conditions that they are briefed to. If there is not a -- part of
23 that is one of the SOPs, we can get a VOCO which is verbal -- on
24 verbal order of the commanding officer approval. So one of those
25 can -- so either you can be briefed by the mission briefing

1 officer who is supposed to capture all that risk verbally but you
2 have to get your FMAA in person. So one or the other has to be in
3 person, either the FMAA or the MBO has to do it in person and had
4 to codify -- and that's to capture -- have the in-person
5 conversation in person, instead of just being a phone call at the
6 time and essentially giving a rubber stamp. Sorry. The original
7 basis of -- I was getting somewhere with that. The original
8 question was --

9 Q. This is about -- so the mission was flown, and they left on a
10 low. Now, they came back and they said, well, this is much higher
11 than what we thought. There was things that happened and now it's
12 -- the numbers should be adding up to a medium.

13 A. Yeah.

14 Q. How do you review that process to the whole company or to
15 your standards, you know? How do you review that?

16 A. So, yeah. They're only supposed to go to the level of what
17 they were approved to do. So if they encounter moderate risk
18 conditions, at that point, they need to either stop the flight,
19 cancel that portion of the mission and drive on with other
20 portions that they're approved to do, or they can reach out to the
21 MBO. They have to reach out to both the MBO and the FMAA to
22 receive a higher approval to do that. And if it steps up in risk,
23 not only do they have to see me. So if it's a moderate, they have
24 to see the battalion commander to get that approval. If it was a
25 high risk, they would have to step up to the brigade commander.

1 But they're not supposed to execute anything that's codified in
2 the higher risk category that they're not approved to.

3 Q. The flight has already happened or the flight is happening
4 and they get into a higher risk. So let's say it's weather. They
5 went out and there was a low, you know, weather was considered low
6 and then all of a sudden, things, you know how things change
7 around here. Now, there's icing conditions and stuff and now
8 they're in it, and then they come back and said, well, we were --
9 this is what we were forecasted and then when we got back, this is
10 what, you know, there was icing. Do you capture those kind of
11 things that happen like that and review it?

12 A. Yeah. They're supposed to -- so in that situation, they
13 would do what they have to do as good pilot commands, air mission
14 command if it's more than one aircraft, to safely land and get
15 where they're supposed to do and recover. And after that, they'll
16 have their crew AE on and they're supposed to update the MBO and
17 FMAA again about those scenarios that were encountered and the
18 situation that was encountered.

19 Q. All right. That's it. Thank you.

20 DR. BRAMBLE: Okay. Dave.

21 MR. BLAIR: Okay. Dave Blair again from Sikorsky Aircraft.

22 BY MR. BLAIR:

23 Q. Hang in there. Almost there. Okay. A couple quick
24 questions for you. How many basic flight hours in your company
25 are most pilots getting per year?

1 A. Per year, probably in the tune of, depending on your
2 position, 80 to 120.

3 Q. Okay.

4 A. Probably up to 150, 175 for some of the instructor pilots.

5 Q. Okay. Excellent. Thanks. Hey, you talked about Captain
6 [REDACTED] being a White House Fellow. So there are a couple
7 different programs here in the DC area. I just happened to have
8 been stationed here a long time ago, but White House Fellows, one,
9 was she maybe a White House social aide?

10 A. She was a social aide fellow.

11 Q. Very good. So with that, I know super high priority, you
12 know, being there to support the White House, to support the
13 President. Obviously she was single, not married.

14 A. Correct.

15 Q. One of the requisites to be in that program. Any idea if she
16 had had any events recently or any stressors that came along with
17 that White House social aide?

18 A. No, I don't believe. She -- her technique as we talked about
19 it, we went through in depth because she was trying to pitch me to
20 do it, but she talked about it's no different -- her comment was
21 it's no different than what I do, what I typically do, but I was
22 on staff, I sent my availability in a document to the flight
23 schedulers that captured the next 4 to 5 months of unavailability,
24 appointments and things of that nature. She said it's the same
25 thing for her. She has to procedurally sequence that out to

1 forecast those things and deconflict. So it was -- for her, it
2 was never a last minute or she was rushing to do something. It
3 was pretty -- she was well aware that -- of what she had to do
4 with that program ahead of time and could deconflict her schedule.

5 Q. Okay. Thank you. Good answer. So if you had to put just a
6 couple quick words on it, would you say these three aviators were
7 below average, average, above average, at the time of the mishap?

8 A. At the mishap, I would say every -- all three of them were
9 above average.

10 Q. Excellent. You're qualified in both Lima and Mike models?

11 A. Yes, sir.

12 Q. Okay. Could you give us kind of a rundown of what the --
13 coming down let's say Route 1 from the north and hitting --
14 intersecting Route 1 at some point, what that kind of sequence
15 radio calls would sound like with ATC? And I don't know where
16 they intercepted, whether it was Cabin John or Key Bridge or
17 someplace kind of north up there.

18 A. Okay. I guess we could start at Cabin John and work our way
19 procedurally down.

20 Q. Okay. Cabin John is just south of Great Falls for those that
21 are unfamiliar with the --

22 A. Coming down on Cabin John, essentially you pretty much --
23 almost depending on where you're coming from, you probably just
24 entered the SFRA coming down to Cabin John unless you stayed in
25 the helo route. So you would switch over from a Potomac Approach

1 to Washington Tower at some point in that vicinity. They'll give
2 you approval along -- they're request your routing. They'll say,
3 for example, PAT whatever, what are your intentions? We would
4 say, PAT tail number, intending to go Cabin John, Route 1, to
5 Route 4, back to Davison, if that's what we were doing. They
6 would -- they need to say approved or they give us an alternate
7 route to deviate from those. At that point, we continue in
8 accordance with the helo route altitudes. We can expect anywhere
9 between probably three to seven callouts from Washington Tower
10 depending on the level of traffic to say, hey, we have a CRJ, we
11 have this aircraft on approach, runway whatever. They're 2 miles
12 to your east at this level. Do you have traffic in sight?

13 And at that point, we scan. If we gain the visual, we'd say
14 -- if we don't have visual, we'd say, no joy (ph.), and they'd
15 continue to ping us, put us in a holding pattern. Typically if we
16 don't see them, they will put us in a holding until we see them.
17 If we do see them, we would announce, we have them. If we don't
18 say anything, they'll give us procedural instructions and walk us
19 through. Probably if they're busy, they're going to put you in
20 holding. If you request visual separation, they're -- you're
21 acknowledging, okay, I have them. I have visual separation, and
22 they're not looking out for avoidance for you for -- particularly,
23 but they will maintain that with the fixed wing aircraft on
24 approach.

25 And then you continue down procedurally through the Tidal

1 Basin, through the Memorial Bridge. You report -- it's a
2 compulsory reporting point for Memorial Bridge. We report that.
3 Coming down even further to connect to Route 4 -- what's the creek
4 I'm thinking of right now? I don't remember. There's a creek
5 that's another point that we come down when we step up in
6 altitude. I believe it's 600 feet, and then procedurally you step
7 up at different points and it goes with those helo routes, but you
8 can still expect that entire route to hear from Washington Tower
9 reporting any other traffic that's landing at the procedural --
10 landing -- performing any of the procedures in the DCA along with
11 any traffic that's coming from Route 3. As you cross Memorial
12 Bridge, typically we encounter fire police and fire helicopters
13 that are there in that vicinity along with any other helos that
14 are doing the helo routes at that time.

15 And same thing applies that we approach, do we have visual on
16 the traffic? If not, they may put you in holding. If so, they
17 will -- thank you. Broad Creek is what I was thinking of. Yeah,
18 they'll put you in holding if you don't have those as well for --
19 if any of the aircraft don't see each other. And as you come down
20 to Route 4, you would let them know, hey, we are 4 Washington, if
21 they don't give you a freq. change to say automatically to say,
22 hey, change back to Davison if you're landing there. If you're
23 going further south or to the east or west, they may change you to
24 a Potomac Approach.

25 Q. Good answer. So, you mentioned other traffic. What kind of

1 other traffic around the routes typically that you guys are
2 dealing with?

3 A. So the HXM1, the presidential flight battalion, call sign
4 Night Hawk. Marine 1 if the President's on board. The news
5 helicopters. There's police helicopters. The FBI has a flight
6 facility. Sometimes they're up. And there's one more that I'm
7 not thinking of. Fire rescue, I believe they have a fire -- every
8 now and again, they have helicopter support that come through.
9 And generally that's -- and then the Marine traffic down from
10 Quantico sometimes up in the helo routes. Every now and again we
11 have Navy come through but that's a rarity in my experience at the
12 same time being up with them, but it's a lot of rotary wing
13 traffic on those helo routes at times.

14 Q. Thank you. You mentioned trends in the RCOPs. Does the
15 company or the battalion or maybe in the brigade level, do they
16 collect those RCOPs and do any kind of data crunching, data
17 retrieval on completed RCOPs? So when you're done with RCOPs, the
18 flight's done, does that get filed off someplace? Does it get
19 shredded or what happens with those RCOPs?

20 A. So regulatory, they're supposed to be collected. We call in,
21 and we log Zulu. So basically letting the our Flight Ops know
22 that we are -- ended the flight, and they ask us for our flight
23 hours, and we report how many flight hours we've flown. Or, we
24 tell them the mission was canceled or whatever, and you're
25 supposed to -- they throw that in the mission complete section of

1 the RCOP to let us -- to let any future personnel who's looking at
2 that RCOP know like, hey, this mission was canceled or this
3 mission flew and they executed this many flight hours. And then
4 they file that, and it stays on file. I don't know the -- I'm not
5 Flight Ops personnel. So I don't know the number of years but
6 it's a number of years that it stays on file. And they're
7 supposed to go back through eventually if needed on some type of
8 cyclical basis and look through and collect trends. Or, if we
9 notice a trend, that's some of the things that brigade stans or
10 battalion standardization and safety will look at those particular
11 RCOPs to say we have not been capturing this risk or we have been
12 capturing this risk, and we're fine. We probably need to adjust
13 the -- addressing it in the risk is probably not the answer to the
14 solution to whatever situation that we're encountering.

15 Q. Okay. And the last question, as a FMAA, is there any kind of
16 written guidance, any standard procedure that's used to qualify
17 you or you're kind of bound by as a FMAA?

18 A. Yes. It's in our -- there's a memo that's produced, the FMA
19 Approval Memo. It tells certain things, and then there's also the
20 SOP that codifies those things.

21 Q. I'm done with my questions. Thank you.

22 DR. BRAMBLE: Thanks. Paul.

23 BY MY KIM:

24 Q. My questions, if I don't specify, will be just specific to
25 the east bank of the river where the accident occurred. How aware

1 would you say the helo pilots are of the 200 foot max altitude
2 along that route along the river?

3 A. I would say very aware. We always fly with our ForeFlight
4 up, with the helo routes in front of us. And then as we go
5 through progression, it's one of the things that you cannot make
6 it into a readiness level 1 progression as in you're a fully
7 qualified pilot and/or pilot in command, able to execute missions
8 as you dictate without flying with an instructor pilot, without
9 showing proficiency and executing the routing procedures and
10 altitudes and knowing those things, or at least being able to
11 address and reference while flying and flying in accordance with
12 the published altitudes.

13 Q. Could you describe kind of the specific familiarization
14 requirements for the crews before they fly in that DC airspace?

15 A. They have to be familiar with -- it's several of the
16 reporting points for us internally as a unit, being like
17 Woodbridge, Marshall Hall, Indian Head, Springfield and what else?
18 Burke Lake, and those are -- essentially we use those kind of like
19 DCA uses their preferred routing into their airspace. We use
20 those the same way for Davison and the local flying area. Then we
21 go over -- we have to go over every helo route structure. You
22 have to actually fly it. You have to brief it, map reconnaissance
23 as in you just doing an overview on the tabletop or on the wall as
24 you have it displayed and were walking through those procedural
25 step ups and downs in elevation, the radio calls that are

1 associated, the compulsory reporting points. And then it's not
2 codified, but we always go through the personnel who are stationed
3 there, i.e. the Eagle's Nest and FBI you can expect to see these
4 personnel typically flying in this area, these personnel flying in
5 this area, the prohibited areas, the restricted areas, and all
6 those things. There's probably a little more to it, but --

7 Q. No. Thank you. Once they are qualified, are there any
8 special guidance or procedures before their specific flight for
9 the day that exists beyond the normal SOP when they're transiting
10 through that DCA airspace?

11 A. Normal SOPs, no. Because everything is captured typically in
12 a SOP. So.

13 Q. I don't know if you have watched the video of the accident.
14 Would you happen to know whether the exterior lighting
15 configuration matches up with what the SOP would require at the
16 time?

17 A. I have not watched the video.

18 Q. If you were flying this route in the same conditions that
19 night, how likely is it that you would be on NVGs? Just a normal
20 routine flight.

21 A. It depends on, it depends on what we were trying to
22 accomplish as a training objective. So the training objective
23 would drive whether we were aided or unaided at the time.

24 Q. If it was not a training flight, just a normal flight?

25 A. Every flight we conduct is a training. It's either a

1 training flight or a contingency classified mission flight.

2 Q. Gotcha.

3 A. So it's one or the other.

4 Q. Could you just describe some of the limitations of that NVG
5 in regards to field of view?

6 A. Field of view is so you have 40 degrees field of view in each
7 nodule, 70 degrees because they have a 10 degree overlap total.
8 So that's why we're trained to constantly scan and move our heads
9 so we have that 70 degree field of view and with some of that,
10 yes, you can look under the goggles a little bit and see inside
11 your cockpit and some of the peripheral but we're constantly on a
12 scan, increased scan to facilitate seeing everything and having
13 that, acquiring that full field of view.

14 Q. Would you say that the NVGs affect your depth perception?

15 A. Yes.

16 Q. Is NVG usage based on SOP requirements or is that kind of
17 pilot discretion, experience, based on the conditions?

18 A. It's in combination. So if -- particularly while you're
19 operating, except for with all the additional cultural lighting,
20 if we are scheduled for a NV flight, it's permissible to lift up
21 your goggles or look underneath or become unaided momentarily.
22 Typically the technique is one pilot -- only one pilot goes
23 unaided while the other remains aided so they can spot something
24 that's -- they're able to discriminate between something that's
25 under NVGs versus something that's not.

1 Q. And could you define cultural lighting?

2 A. Cultural lighting is something that's tower lighting, lights
3 on a building, runway lighting for various airfields, any of the
4 hazard lightings from the -- I won't say that. There are, there
5 are different lighting apparatuses throughout the NCR position.
6 So all of that light provides a significant amount of limits in
7 cultural lighting that essentially drowns out some of the ability
8 to -- the visual acuity as you're looking through night vision
9 goggles.

10 Q. So is it accurate to say that it's ground based lighting?

11 A. Yes.

12 Q. Are NVGs good enough to tell between different aircraft
13 types, for example, an Airbus versus 175, a 145 versus a CRJ?

14 A. It would depend on the visual range that they're within.
15 It's very -- we actually go through training where we have to
16 identify certain aircraft and certain vehicles and things of that
17 nature with night vision goggles and without and things of that
18 nature. So depending on the size and the visual range that
19 they're at, it is possible.

20 Q. How common would you say that an aircraft is lost in the
21 lighting during using NVGs?

22 A. It's fairly common depending on their altitude. If they're
23 -- it depends on the relative altitude. So if we're significantly
24 higher than the traffic, generally they can drown in with the
25 cultural lighting that's below us. If we're lower on the

1 altitude, and that aircraft is above, depending on their level,
2 it's possible for them to still be drowned out with that because
3 we can't tell if they're a tower or if there's a relative -- if
4 there's relative motion, that that aircraft may look like it's
5 actually in a fixed position if it's a relative motion depending
6 on the spatial orientation of our flight.

7 Q. Okay. What are the lateral limits in your understanding of
8 the published helicopter route along the east bank?

9 A. Lateral limits as in corridor?

10 Q. For the route. Yeah, the corridor. Are there any limits
11 or --

12 A. So as we were always briefed, hey, stay within half a
13 kilometer of that helicopter routing.

14 Q. Is that the edge of the helicopter --

15 A. Yes, on each side. So 1K total for that route or for that
16 corridor for us.

17 Q. From the middle of the corridor --

18 A. Yes.

19 Q. -- published or -- okay. How do you deconflict between
20 opposite direction of helicopters and does the ATC assist in that
21 at all?

22 A. ATC definitely assists. They will let us know. I haven't
23 really had an experience where they haven't let us know that
24 there's another aircraft coming along the opposite way and then
25 alerting the other aircraft that it's coming to us. So we

1 typically always hear that, and we essentially deconflict
2 essentially keeping the rules of the road staying to the right of
3 the route, and they'll stay to the right of their route as well,
4 that same way.

5 Q. Got it. How much situational awareness do you feel is
6 reduced with the usage of a split tower frequency? As you know, a
7 helicopter uses one frequency and a fixed aircraft uses another.
8 I don't know if it's different between helicopters as well.

9 A. We're all up at Washington Tower on the same frequency.

10 Q. Are you -- is the typical radio configuration operating in
11 that corridor? Are you -- would the pilots be on multiple
12 frequencies at the same time or is that depending on the tower?
13 Are they monitoring different frequencies?

14 A. Yeah. So we have -- Lima has four radios that we're tuned
15 into simultaneously. Now, whether an aviator has certain -- all
16 the pins up, meaning they have all the audible coming through on
17 -- audio coming through on each of those radios is a matter of
18 technique for them but typically in that area you would expect --
19 it's not codified anywhere that you have to do that, but you're
20 talking to the agency that you're talking to. So we at Washington
21 Tower, we would probably have Potomac Approach being that if --
22 the minute we depart the SFRA, we're going to engage with Potomac
23 Approach at some point, and on our FM radios, we're typically up
24 with our flight operations, and then either a company internal
25 frequency. We may be on a UHF frequency on one of the radios in

1 place of Potomac Approach and that's another system that we use
2 called Mystic Star, radio transmitters that are positioned
3 throughout the JOA so we can retrans with internal DOD agencies.

4 Q. So during that time, the pilots would be actively monitoring
5 all of those frequencies?

6 A. They're probably only monitoring the two, being either Mystic
7 Star, Potomac Approach and -- either Mystic Star or Potomac
8 Approach on one radio, and then the other is Washington Tower.
9 The other ones, they're probably -- they may have pinned down
10 because we're not picking up FM frequencies at that range anyway.
11 And we may have a FM if there are multiple aircraft flying at the
12 same time in the same serial together, then we will have internal
13 communication between us. So.

14 Q. Would you say there's any pressure for helo crews to report
15 traffic in sight and what happens if you don't have the traffic in
16 sight?

17 A. Oh, absolutely. If -- I don't know if it's pressure from the
18 tower or pressure from self-imposed, but -- because you can impede
19 your route of flight by not -- as a helo pilot by not reporting
20 traffic because they're going to put you in a holding or they may
21 even, if you don't see traffic either that time or another time,
22 that becomes a hazard to the air traffic controller. So they're
23 known to say, hey, exit X route through whatever zone transition
24 and resume your routing and they will route you to the perimeter
25 of the helo route. So one of the far helo routes.

1 Q. So how much time would you say as to whether it's holding or
2 exiting the airspace would that add to the route or to fly it?

3 A. It depends on where they're going. Typically using Route 4
4 and Route 1 because it's faster. It's a faster transition. But
5 versus going around the perimeter which adds, you know, anywhere
6 between 5 to 12 minutes onto your route of flight one way.

7 Q. Okay. Those are my questions. Thank you.

8 DR. BRAMBLE: Okay. Nick, do you have anything?

9 CW5 JACOBY: No, sir.

10 DR. BRAMBLE: All right. I have -- actually I should go back
11 to Van.

12 BY MR. McKENNY:

13 Q. I do have one or two follow-up questions. So back to the
14 routes and flying the routes. How do the crews -- besides their
15 general familiarity with the routes, are there other sources the
16 crews can use to verify what step down altitudes they need to be
17 at, at the various checkpoints?

18 A. Outside of a helo route chart, I don't believe so.

19 Q. Do you carry the helo route chart on board?

20 A. Yes, with -- through ForeFlight. And we also have like
21 backup in our publications library, our electronic flight bag. So
22 the iPad that you see Mr. Jacoby with is our electronic flight bag
23 which has all of our required DOD, flight library and information
24 publications as well as several of the FAA publications and route
25 charts and VFR supplements and things like that.

1 Q. Are the specified step down altitudes annotated on the actual
2 route chart?

3 A. Yes.

4 Q. Going back to the radio setup, I'm not sure I'm 100 percent
5 clear of how you have that set up when you're going through those
6 routes. So you've got one radio set up for Washington Tower, and
7 that's a VHF?

8 A. Correct.

9 Q. Is there a separate helo frequency to be talking to
10 Washington Tower on --

11 A. No.

12 Q. -- versus the regular traffic?

13 A. They do have one but we're on the same Washington Tower
14 frequency that everyone else is typically on.

15 Q. Okay.

16 A. Sometimes they on -- they have a UHF frequency as well which
17 a lot of fixed wing are on, but we primarily on the VHF is what we
18 use.

19 Q. Okay. And then the other frequency you're monitoring is
20 Potomac Approach.

21 A. Correct.

22 Q. Okay. And then the other two on the frequencies that you
23 monitor you mentioned?

24 A. We mentioned Mystic Star which is a Department of Defense
25 frequency that we use for repeaters, communicating internally in

1 our organization as well as others, and that's -- so to explain
2 it, the UH-60 Lima has four radios. Two are 31s which are VHF and
3 UHF capable, and then two FM radios. The FM radios are what we're
4 using to communicate internally. So those would be the radios
5 that we use to communicate internally between multiple aircraft
6 flying in the same serial together, and then we communicate that
7 with flight ops when we're within of that FM range. VHF and UHF
8 are used commonly as we traverse in the airspace. We primarily
9 are on up on VHF for the Washington Tower with that VHF frequency
10 and the Mystic Star is a UHF frequency. We will switch to the VHF
11 if we're planning on communicating with Potomac Approach though.

12 Q. Okay. All right. Thank you. That's all the questions.

13 BY DR. BRAMBLE:

14 Q. Okay. So we had heard in a previous interview that
15 commercial air traffic can't hear you guys and maybe the other way
16 around on VHF, the commercial traffic landing at DCA?

17 A. Sometimes they just can't hear us, and that's probably for a
18 variety of reasons, range, altitude. Our ARC 201, 231s are just
19 not the best at -- they're really great for range, lateral range,
20 but they're not great for further up the range.

21 Q. Okay. So it's not a different frequency issue. It's a range
22 issue?

23 A. Correct.

24 Q. Okay.

25 A. Amplifier type issue.

1 Q. All right. So specifically with that approach, and I realize
2 it doesn't happen that often for you, but if you can recall the
3 last time you saw traffic on approach to 3-3, if you're coming
4 down 4 from the north, is there -- are there any particular
5 challenges with the cultural lighting, you know, on the left
6 there, on the east side of the river?

7 A. It's less prevalent on the east side of the river --

8 Q. With the cultural lighting.

9 A. -- with the cultural lighting. It's a few things, but it's a
10 lot less prevalent than it is going north.

11 Q. Okay. Because you're kind of facing a little more to the
12 east when you're going south or -- I was trying -- you were saying
13 it was less prevalent than when you're going north.

14 A. Yeah. So going north, you're obviously looking at the city
15 and --

16 Q. I see.

17 A. -- and that that's way, but coming south, there's just not
18 much over on that Maryland side of the river. So there's a few
19 things, but it's nothing like going north.

20 Q. And on the Maryland side of the river, across from the
21 airport, there's not that -- not as much.

22 A. Yes, correct.

23 Q. Okay. That's helpful. So it's actually more of a challenge
24 aided going north if you had the goggles on with the city in front
25 of you?

1 A. That's correct.

2 Q. Okay. All right. Had flight crews in the battalion
3 expressed any concerns in recent months before the accident about
4 the potential for midair collisions with commercial traffic on low
5 altitude -- while they're on low altitude helicopter routes in the
6 city there? I'm not aware of any, but I'm just wondering. Has
7 this been a topic of discussion?

8 A. Not -- it's a constant topic of discussion based on, based on
9 our contingency mission, and then based on our daily operations,
10 there's just a ton of traffic and a lot of congested space. So as
11 we come in on different LZs that are within the SFRA, that traffic
12 is typically -- I personally brief for it ever single time that
13 I'm on a mission line because I would expect if something were
14 happening or something were going on or there's a lot of traffic,
15 a midair collision is a risk while we're departing some of those
16 landing zones. And we -- and then I personally identify that one
17 almost every time I brief if we're landing in -- if we're landing
18 or operating in the vicinity of any of those landing zones within
19 the SFRA.

20 Q. Okay. Would the routing of the accident flight which I
21 believe went to Quantico and then north and then south down the
22 river through, you know, east -- just east of the airport.

23 A. Yes. Say that again.

24 Q. I hope I'm not getting this wrong.

25 DR. BRAMBLE: Do you have the route?

1 BY DR. BRAMBLE:

2 Q. Okay. We're going to show you the routing of the flight
3 overlaid on a chart. I'll give you a second to take a look at
4 that.

5 A. Okay.

6 Q. All right. Is that routing, would that be considered unusual
7 for this type of mission for a standard evaluation flight with
8 NVGs?

9 A. No, not at all. It would be considered standard, yes.

10 Q. Okay.

11 A. There's nothing too out of the ordinary with this.

12 Q. All right. So, you wouldn't normally try to stay out of that
13 area, that sort of urban area for those kind of -- for a standard
14 evaluation flight? It would be normal to go through that area?

15 A. Absolutely. Our mission is to fly through this area all the
16 time. So we don't shy away from flying on these routes or shying
17 away from traffic or avoiding different airspaces and things of
18 that nature.

19 Q. Okay. That's it. Thanks on that one. A couple of things,
20 acronym and role descriptions. You guys use the call sign PAT?

21 A. Correct.

22 Q. What does that stand for?

23 A. Priority air transport.

24 Q. Okay. So that's unique to 12th Brigade?

25 A. 12th Battalion, yes.

1 Q. Or 12th Battalion, sorry.

2 A. It's unique to the United States Army Aviation Brigade.

3 Q. Oh, as --

4 A. In our fixed wing jets that use the PAT call sign.

5 Q. Okay. Okay. All right. So if somebody says, you know,
6 something occurred with a PAT flight, it could be -- it's not
7 necessarily your helicopters. It could be any number of Army
8 aircraft.

9 A. Depending on the numbered -- the number designation is the
10 discriminator between each of the units within the brigade.

11 Q. Okay.

12 A. So the 12th Aviation Battalion has our own set of PAT
13 numbered call signs that we go under as well as OSA and those
14 guys.

15 Q. Okay. Number determines. Do you know what PAT 11 is?

16 A. No. It's classified.

17 Q. Okay. You don't know or you can't say?

18 A. I can't say.

19 Q. Okay. All right. What does a White House social aide do? I
20 don't actually know.

21 A. They're basically volunteers that assist with social
22 engagements and programs at the White House. If they're doing a
23 dinner or a ball or meeting with some type of thing where they're
24 throwing festivity of some sort, they have junior military
25 officers and non-commissioned officers that volunteer their time

1 to be ushers, drivers, things of that nature.

2 Q. Okay. Is that an ancillary duty or a full-time --

3 A. Yeah, it's just an ancillary volunteer basis.

4 Q. Okay. How long did the Captain do that, [REDACTED]

5 A. She -- it was first brought to me that she was doing it when
6 she came to the S3 operations section. So I don't know how long
7 she was doing it, but I know she was doing it at least from
8 January 2024 onward.

9 Q. And still doing it at the time of the accident?

10 A. I believe so, yes.

11 Q. Okay. All right. That's it for me.

12 DR. BRAMBLE: Mark, you got any more?

13 MR. WARD: I've got a couple.

14 BY MR. WARD:

15 Q. Just to quickly follow up on what he just mentioned about the
16 Captain's duty, do you track that time? Is her time working at
17 those events tracked?

18 A. Not that I know of. It probably isn't, but I'm not her
19 commander.

20 Q. Does the unit have a crew rest tracker?

21 A. We do have a flyer management system that's published on
22 Microsoft Teams. We call it flyer management.

23 Q. That's utilized?

24 A. Yes.

25 Q. What is the SOP as far as how many days you can work before a

1 required rest day?

2 A. Fourteen days, and then you're required to have one full rest
3 day -- one full rest period. Or, 24 hours of rest if you work 14
4 days straight.

5 Q. And then I don't know how to phrase this probably correctly,
6 but on the windshield of helicopters you're flying, an object that
7 stays stationary. So you're looking for traffic. Have you been
8 told whether if the object starts to move the left, it's going to
9 pass -- you're going to pass in front of it and if the object is
10 moving to the right, you're going to move behind it. Have you
11 heard that before?

12 A. Probably not put like that but --

13 Q. But my point is, if you can verify it for me, that if an
14 object remains stationary on a windshield of an aircraft is an
15 object that you're going to hit?

16 A. I believe that would be safe to say, yes.

17 Q. Okay. So, following that -- I'm not trying to do a leading
18 question at all, is that an object that you're looking at, so if
19 another aircraft's light are stationary, they could be easily
20 confused for ground lights?

21 A. Correct.

22 Q. And then my question I always ask is, is there a question
23 that I have not or the group has not asked you that you would
24 expect us or you would want to ask or something that you could
25 add?

1 A. No, I don't believe I have anything.

2 MR. WARD: That's all the questions I have.

3 DR. BRAMBLE: Thanks, Mark. Dave?

4 BY MR. BLAIR:

5 Q. I have two quick follow-up questions. When you contact
6 National Tower and they clear you into the airspace, do they ever
7 give you an altitude? Do they ever say, hey, you're cleared in
8 200 feet and below is the direct question?

9 A. Depending on where you are. Typically if you're -- if you
10 tell them you're going in the helo altitude, it's understood that
11 you're going to remain and obey those altitudes. If you tell them
12 you're doing the zone transitions through the SFRA, that's when
13 they typically give you an altitude so you remain below 1400 feet
14 or 1200 feet and they'll give you a reason if it's different than
15 what's published.

16 Q. Okay. So, typically that's not -- it may or may not be part
17 of their clearance into the fast Delta or the Bravo kind of --
18 innermost part of that?

19 A. Correct.

20 Q. Okay. And then the last one is you talked about sometimes
21 the R231 -- is that right?

22 A. Yes.

23 Q. Sometimes are good, sometimes are bad, right. I think on the
24 Lima I think you've got one low antenna, one high antenna?

25 A. Correct.

1 Q. And you can't switch those antenna like which radio is
2 transmitting on which antenna?

3 A. No, we can't switch them. So typically radio 2, comm 2 is
4 our strongest --

5 Q. Okay.

6 A. -- antenna.

7 Q. Okay. Got it. Thank you.

8 DR. BRAMBLE: Okay. Paul.

9 BY MR. KIM:

10 Q. What -- how comfortable would you feel or what lateral and
11 vertical separation would be acceptable for you to transit through
12 that corridor with an aircraft approaching runway 3-3?

13 A. Lateral separation? Okay. So if it's just lateral, you're
14 saying lateral separation, same altitude?

15 Q. Yeah, or any combination thereof in your opinion.

16 A. If we're on the helo route and it's another rotary wing, I
17 will probably be comfortable with that 1,000 foot lateral
18 separation between us both, just that way we're just keeping the
19 same. Fixed wing we want probably significant more, probably
20 double that at least, so 2, 3,000 feet is probably more my comfort
21 level would be lateral just because we don't want to -- (a) we can
22 move when we're agile than them typically, and we don't want to be
23 -- we also don't want to be caught up in their -- the wake of
24 their disturbing (ph.) the air.

25 Q. So it's purely laterally is how you would prefer to be?

1 A. I would prefer it both lateral and vertical separation
2 personally.

3 Q. And in terms of vertical separation, how much would be
4 comfortable for you?

5 A. Probably something in the tune of 200 feet at least because
6 we've done that -- we do that regularly with aircraft on approach
7 in the DCA. It's still not the most comfortable thing in the
8 world, but we're okay with that being that it's one thing that's
9 consistently, if that's the consistent thing that we encounter.
10 We've encountered -- we've seen as many as seven aircraft on
11 approach in a line and instead of using that, we would -- like in
12 my situation, I said, okay, I'm not going to be comfortable flying
13 repeatedly on these two different helo routes, being 4 and 1 are
14 the most prevalent repeatedly a couple hundred feet below these
15 aircraft. So we're going to take a different -- we're going to
16 request a different route just because, you know.

17 Q. And, my last question is just a clarifying question. Did you
18 say a half of a kilometer from the middle or from the route
19 corridor, your general guidance on that, pilots typically --

20 A. Half a kilometer from the middle to give you a 1 kilometer
21 total.

22 Q. Thank you.

23 DR. BRAMBLE: Is that it?

24 MR. KIM: Yep.

25 DR. BRAMBLE: Okay. Nick, do you have anything?

1 CW5 JACOBY: No, sir.

2 DR. BRAMBLE: You good? You guys good?

3 MR. McKENNY: I'm good.

4 BY DR. BRAMBLE:

5 Q. All right. Is there anything else you'd like to share with
6 us you think would be important for the investigation to know
7 about?

8 A. No, not at this time.

9 Q. Is there anyone that you may be aware -- we're already
10 scheduled to interview several people from the brigade, but is
11 there anyone in particular that you want to tell us we should
12 definitely talk to or anything like that?

13 A. No. I think you have the right personnel.

14 Q. Okay. And, is there -- do you have any safety concerns or
15 suggestions that you'd like to offer to us while we're here?

16 A. No.

17 DR. BRAMBLE: Okay. All right. Well, with that being said,
18 we will call the interview complete at 12:48 Eastern Standard
19 Time.

20 (Whereupon, 12:48 p.m. EST, the interview was concluded.)

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN AMERICAN
AIRLINES JET AND ARMY HELICOPTER
NEAR RONALD REAGAN NATIONAL
AIRPORT, WASHINGTON, DC
ON JANUARY 30, 2025
Interview of Phillip Gallon

ACCIDENT NO.: DCA25MA108

DATE: February 1, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.


Kathryn A. Mirfin
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: NOAH SAWATZKY, Captain, FLT OPS OIC

Davison Army Airfield, Ft. Belvoir, Virginia

Saturday,
February 1, 2025

APPEARANCES:

DR. WILLIAM BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN MCKENNY, Operations Group Chairman, Helicopters
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

MARK WARD, Accident Investigator
National Transportation Safety Board

DAVE BLAIR, Chief Pilot for Safety
Sikorsky

PAUL KIM, Chief Pilot
PSA Airlines

CW5 NICK JACOBY, Standardization Pilot
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Captain Noah Sawatzky:		
By Mr. McKenny		6
By Dr. Bramble		13
By Mr. Ward		15
By Mr. Miller		18
By Mr. Blair		19
By Mr. Kim		20
By Dr. Bramble		20
By Mr. Ward		25
By Mr. Miller		26
By Mr. Blair		26
By Mr. Kim		29

I N T E R V I E W

(1:09 p.m.)

DR. BRAMBLE: Today is February 1, 2025. It is 13:09 Eastern Standard Time. My name is Bill Bramble. And I'm a Human Performance Investigator with NTSB. Van McKenny and I are leading the operations in human performance working group helicopter for Investigation Number DCA25MA108 involving the 12th Aviation Battalion and Brigade --

CAPT SAWATZKY: Brigade.

DR. BRAMBLE: Brigade. And PSA Flight 4352. We're here to interview Noah Sawatzky. And I wanted to inform you, Noah, that the NTSB is an independent federal agency. We're not part of the Department of Transportation or the FAA.

CAPT SAWATZKY: Okay.

DR. BRAMBLE: And we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation helps ensure the fact-finding phase of the investigation is accurate and complete. We'll be recording the interview so it can be transcribed. After we receive the transcript, we'll review it for typos before it's included in the public docket. You can request a copy if you want after the transcript is made and we'll give you an opportunity to review it.

1 I would now like to ask each group member to briefly
2 introduce themselves and state their affiliation for the
3 transcriptionist. And we'll start with Van McKenny.

4 MR. McKENNY: Van McKenny, Helo Operations Group Chairman,
5 NTSB.

6 MR. MILLER: Eddie Miller, FAA, Senior Accident Investigator.

7 MR. WARD: Mark Ward, NTSB, Accident Investigator.

8 MR. BLAIR: Dave Blair (ph.), Chief Pilot for Safety,
9 Sikorsky.

10 MR. KIM: Paul Kim (ph.), Chief Pilot for PSA Airlines.

11 CW5 JACOBY: CW5 Jacoby (ph.), Brigade Standardization
12 Officer for the US Army Aviation Brigade.

13 DR. BRAMBLE: Please answer all questions to the best of your
14 recollection. If you don't understand a question, just say so.
15 And if you realize you misstated something, feel free to correct
16 it and just let us know.

17 CAPT SAWATZKY: Okay.

18 DR. BRAMBLE: You are entitled to have a representative of
19 your choosing present during an NTSB interview. Is there anyone
20 that you'd like to have as your representative?

21 CAPT SAWATZKY: No, I don't think.

22 DR. BRAMBLE: All right. That being said, can you please
23 state and spell your whole name?

24 CAPT SAWATZKY: You want middle name as well?

25 DR. BRAMBLE: Um-hum, or initial is fine, actually.

1 CAPT SAWATZKY: So, Noah J Sawatzky, spelled N-o-a-h, J, and
2 then Sawatzky is S-a-w-a-t-z-k-y.

3 DR. BRAMBLE: Okay. Thank you. And Mr. McKenny will begin
4 the questions.

5 INTERVIEW OF NOAH SAWATZKY

6 BY MR. McKENNY:

7 Q. All right, thank you for coming in today. To begin with,
8 could you just give us a background of your experience and your
9 profession?

10 A. Yeah, absolutely. So I'm an Army aviation officer currently
11 a captain. I graduated flight school in 2020 and then spent two
12 years in Seoul, South Korea, working as a platoon leader and other
13 jobs as an aviation officer where I was flying the UH-60M and
14 leading platoons there. I made pilot in command while I was over
15 there. And then did a change of station to Ft. Belvoir, Virginia,
16 flying out of Davison Army Airfield where I then learned to fly
17 the UH-60L model. And then I made air mission commander there as
18 well. I currently have just under 700 total hours flying in the
19 UH-60 in both the Lima and the Mike model; over 200 hours under
20 night-vision goggles; and I have over 100 hours flying both
21 different types of the UH-60 airframe. My -- I did spend some
22 time as a company executive officer and platoon leader while at
23 Ft. Belvoir. And then about a year-and-a-half ago was moved to
24 the operations section where I'm currently the flight operations
25 officer in charge managing our flight operations specialists and

1 working with the entire battalion of pilots and helping them with
2 their flight records and flight filing.

3 Q. So what exactly are your duties as the flight operations
4 officer in charge?

5 A. So I manage a team of about 12 people. We -- I like to say
6 that we're, like, the middlemen between the pilots and outside
7 organizations. So when an air crew wants to submit a flight plan,
8 they push it through our office and then we send it out to FAA and
9 other organizations to give them clearance to fly. And then in
10 the reverse, when someone wants to fly with us, they submit a
11 flight request that goes through our office. We check it for
12 legality and for personnel available and then we'll assign it to
13 companies who will then assign it to flight crews. We're also in
14 charge of running the battalion's command post. So in addition to
15 -- between aircrews and outside organizations, we're also, like,
16 the center of information for pushing up and down and lateral
17 information in the battalion.

18 Q. So your position doesn't actually involve flying?

19 A. My current position does not involve flying; however, I do
20 fly in addition to my current position.

21 Q. So you'll -- how does that work?

22 A. So I'm on an ATPI. I have minimums as an aviation officer to
23 fly and I work being able to fly around my normal daily job
24 schedule.

25 Q. Okay. So you'll just be assigned a mission, basically. Did

1 you have any interaction with the accident flight crew the day --

2 A. No, I didn't.

3 Q. Actually, I'm sorry, let me back up.

4 A. Yup.

5 Q. Could you just go through what you did the day of the mishap?

6 A. Absolutely. So I was actually out of the office all day that
7 day. I have an additional duty that it is off of Ft. Belvoir
8 itself. It's in -- has me working in DC. So I was flying the
9 night before. So I got home kind of late so I slept in that
10 morning, on Wednesday. I then answered some emails and phone
11 calls from home before going to some meetings in DC that day,
12 which finished up around -- I think I got home at 4:00 from those.
13 And so I didn't go into work after that. I did open up my laptop
14 later that evening to do a little bit more work.

15 Q. Okay. Did you have any interaction with the flight crew the
16 day of the accident?

17 A. I did not.

18 Q. Okay. What's your -- did you have any personal relationships
19 with the flight crew? Did you know them, were you familiar with
20 them?

21 A. Yeah, I did. I have flown with the -- one of the pilots
22 before at least once and are we saying names?

23 Q. Sure.

24 A. Okay, yeah. With [REDACTED] I've flown with her before.
25 And then I was briefed on a mission risk assessment by Mr. [REDACTED]

1 about a week ago -- and then there's a chance that I've flown with
2 Sergeant [REDACTED] before, but I'm not sure from my recollection.

3 Q. Okay.

4 A. They're in the Bravo company; I fly with the Charlie company.

5 Q. Okay.

6 A. But since they have Lima models as well, occasionally I will
7 help out if they need it. If they need an extra pilot I'll come
8 over and help out, but it's not very often.

9 Q. All right. So you flew with Captain [REDACTED] How would you
10 characterize her as a flight crew, as a pilot?

11 A. So the one flight that I can remember was a long time ago
12 before she had made pilot in command.

13 Q. Okay.

14 A. We did a cross-country flight, and I just remember it being a
15 pretty standard flight. We flew both day and night through busy
16 airspace and everything seemed normal. It was a fine, normal,
17 flight.

18 Q. Are you familiar with the helo routes through DC?

19 A. I am.

20 Q. And have you flown those routes under night-vision goggles?

21 A. Yes.

22 Q. Fact is -- so you said you have about 200 hours of night-
23 vision goggles?

24 A. I do.

25 Q. And you've flown the route -- the DC helo routes under night-

1 vision goggles?

2 A. I have.

3 Q. Could you just describe how that's done? How you proceed
4 through that route?

5 A. The route one and route four, in particular?

6 Q. Yes, please.

7 A. Yeah, so I think that most often flight from south to north
8 coming from Davison to go north into somewhere in or through DC.
9 It's busy. You have to get your radio calls out quick and through
10 and in between the air traffic or the airliner radio calls. But
11 it's pretty standardized. You know, you have your step-down
12 altitudes that you go through, and I think that once you've done
13 it a few times, it becomes more or less routine. And it's -- does
14 that answer your question?

15 Q. A little bit. How is it using the night-vision goggles going
16 through that route?

17 A. You know, it's very bright in that area with all the cultural
18 lighting from the city. Depending on the day that can help or
19 make it, make it hard 'cause it can wash out the night-vision
20 goggles with the external lighting. That's never really bothered
21 me. I know some people prefer to fly without night-vision goggles
22 there because it's almost easier because it's so bright. I've
23 never found it to be an issue though because you can also look
24 under them and really get a more special awareness than you would
25 somewhere with less cultural illumination.

1 Q. Um-hum. Have you ever flown the route when runway 33 was
2 being used by Washington National?

3 A. I believe I have, yeah.

4 Q. Okay. What's your experience with how tower handles the helo
5 traffic when that runway is being used?

6 A. You know, every controller seems to be a little bit different
7 and seems to handle it a little bit differently. I've been asked
8 to hold before for landing traffic. They usually say, like, hold
9 at the golf balls if you're coming from south to north, which are
10 those big white spheres. Or I have been asked to hold at South
11 Capitol Bridge before. I don't think that runway is used very
12 often so I don't have a ton of examples of it, but I do remember
13 holding a couple times for landing traffic.

14 Q. And when they do clear you through, do they, do they have you
15 pass across the extended center line of runway 33 in between
16 landing site -- landing aircraft, or do they even consider that as
17 -- when they give you the clearance?

18 A. They usually don't give you that specific in the clearance,
19 so they'll clear you for the route. And I know other places
20 they'll say hey, stay on this side of the center line, but I've
21 never heard that at DCA in particular because the helo routes are
22 so, kind of, structured.

23 Q. I guess my question was more like do they try to time it so
24 that you're, you know, passing across that area in between landing
25 traffic or do you often have traffic coming over you as you

1 transit?

2 A. For runway 33 in particular I don't know if they're trying to
3 time it or just tell me to pause so that they can let them go
4 first. I don't know of a time where they're stacked up multiple
5 going into that runway. That I know of.

6 Q. What instrument -- so the H60-L (verbatim) has an altimeter
7 and a radar altimeter?

8 A. It does.

9 Q. Right. So which instrument are you using when you're
10 transiting that area to establish your altitudes?

11 A. Altitude based off barometric altimeter.

12 Q. Okay. All right. And when you're using the radar
13 altimeter --

14 A. Yeah.

15 Q. Do you set the bugs at any particular altitude?

16 A. Usually set them at 80 and 800.

17 Q. 80 and 800?

18 A. Yeah.

19 Q. That's standard for --

20 A. The low and high bug, yeah. We -- in the Lima -- so in the
21 Mike model it'll like beep at you when you hit that low bug. In
22 the Lima, it just -- it turns on a very small faint light.

23 Q. Oh, really?

24 A. Yeah. So it's --

25 Q. So there's no aural?

1 A. No, there's no audio. In the Lima model, yeah.

2 Q. I think that's all from me right now.

3 A. Okay.

4 MR. McKENNY: Go ahead, Bill.

5 DR. BRAMBLE: Okay.

6 BY DR. BRAMBLE:

7 Q. Any -- has there been any discussions, like, in recent months
8 before the accident, about pilots having near misses with
9 commercial traffic or being particularly concerned about it?

10 A. No, I've never heard any discussion about that.

11 Q. Okay. Anything unusual about the east side of the river,
12 east of the airport there as far as cultural lighting that makes
13 it more difficult to pick out arriving traffic?

14 A. No, I wouldn't say so.

15 Q. Do you typically fly through that area with, with a traffic
16 awareness display of some type?

17 A. In the -- no. I guess we do fly with an ADSB receiver that
18 will -- an ADSB in receiver that will hook up to our iPads on
19 foreflight. It's not -- it's a recommendation to fly with it;
20 it's not a requirement. But I would say specifically in that
21 location on the routes when you're so low to the ground, you would
22 not be looking down at your knee on the iPad. You typically have
23 all the crew members outside to avoid obstacles and other traffic.

24 Q. Is the Mike -- does the Mike model have any different
25 capability in terms of traffic display or alerting or anything

1 like that?

2 A. The ones that I flew at a different unit did not. I've heard
3 that that might be different with this unit, but I don't fly them
4 at this unit.

5 Q. Do you mean before the accident you'd heard it was different
6 with this unit? Or do you mean that they're changing that now or
7 something?

8 A. I've heard that there potentially was TCAS that was trying to
9 get installed on the aircraft, but that it was not operational.
10 But that was news to me. I did not know that until a couple days
11 ago.

12 Q. Okay. Okay. Did you hear that from a reliable source or is
13 it just --

14 A. I did.

15 Q. Okay. Do you know how long ago that initiative may have
16 started to --

17 A. I have no idea.

18 Q. Okay. Who, who in the command structure would we ask to find
19 out about any plan to aircraft configuration changes like that?

20 A. I'm not sure, actually.

21 Q. Okay. All right. So you are the commander of a different
22 company, of Charlie Company, right?

23 A. No, I fly with Charlie Company as a staff external aviator.

24 Q. Okay.

25 A. My current job and title is flight operations officer in

1 charge.

2 Q. Okay, I see.

3 A. So I work on our staff in the operations section,
4 specifically with flying stuff.

5 Q. In which company?

6 A. In our headquarters company.

7 Q. Or brigade level?

8 A. Battalion level.

9 Q. Battalion level.

10 A. Headquarters company.

11 Q. Okay, I see. Sorry I'm unfamiliar with the structure.

12 A. Oh, absolutely.

13 Q. All right. So your exposure to your folks in the unit that
14 this crew came from is a little bit more tangential, like, you
15 don't work that directly with them?

16 A. I -- that's correct. I do work with [REDACTED] on a couple
17 other projects, but --

18 Q. Okay. Anybody express any concerns to you about any of these
19 three crewmembers in the past?

20 A. No, I haven't heard anything like that.

21 DR. BRAMBLE: All right. I am going to pass the questioning
22 onto Mark. Thanks.

23 BY MR. WARD:

24 Q. Thank you for coming. Mark Ward. How easy is it -- and I
25 think you may have mentioned it, how easy is it to identify

1 aircraft under NVGs and looking for traffic in that corridor?

2 A. It can be difficult, I think, you know, 'cause you're looking
3 for helicopter traffic in addition to fixed wing traffic. When
4 the fixed wings are stacked up in a line all going into the same
5 primary runway, it can be easier, though.

6 Q. Okay. In your experience, have you ever identified an
7 aircraft and then lost it again going through the corridor?

8 A. I think it has happened before.

9 Q. Do you keep -- where do you keep track of your crew rest?
10 Where is that kept in the unit?

11 A. I believe we have a crew rest tracker, what we call the
12 fighter (ph.) management tracker. I think that's done by a
13 company or by the individual pilots to make sure --

14 Q. Who tracks yours? I mean, how do they know what you worked
15 to be able to track it?

16 A. For mine personally, I just manage it myself.

17 Q. So the unit does not?

18 A. I haven't had anyone check on me, no.

19 Q. So no one is checking to see if you're worked 14 days or 15
20 days in a row? There's nothing other than -- there's nothing
21 that --

22 A. Not that I know of. It is verified on the risk assessment
23 before every flight, though, to make sure that you don't have any
24 extensions or anything like that.

25 Q. Does the gear, the iPad, the stratus, goggles, does that get

1 issued from where you work out of flight ops?

2 A. No, it does not. That's through the flight company itself.
3 We issue out the keys.

4 Q. How -- so I get the question right. For you, how do you
5 maintain your altitude? I mean, what are you looking at to
6 maintain your altitude with night goggles through that corridor?

7 A. It's a scan between your instruments and then outside
8 reference and then you can also feel if you're ascending or
9 descending. But it's a constant scan to outside if you're
10 descending or increasing altitude based on other obstacles around.
11 And then also your radar altimeter -- excuse me, barometric
12 altimeter, not rader.

13 Q. Do you have your goggles set up to where you can see the
14 instrument panel without lifting your head every time if you're
15 scanning you can see the instrument panel?

16 A. Yes, you can. So it's -- you know, it's up here and the
17 instrument panel is below. But we teach a scan 'cause it's a
18 limited field of view so proper technique would be a constant scan
19 and moving the head a lot with night vision goggles so that way
20 you're getting a full range of view. And then you're also passing
21 through your instrument panel to see those as well.

22 Q. Going through that corridor you mentioned that sometimes
23 (indiscernible) be hold at the golf balls. Have you ever received
24 a clearance that said do you have the traffic landing traffic in
25 sight and if you acknowledge that is it common to hear pass

1 behind, you're continued on from your holding point, or do not
2 hold but if you have the landing in sight -- aircraft landing in
3 sight, pass behind that aircraft and continue?

4 A. From my memory, I don't think I've ever heard that.

5 MR. WARD: I don't -- that's all the questions I have.

6 DR. BRAMBLE: Eddie?

7 BY MR. MILLER:

8 Q. So I'm going to ask the opposite. So he was asking, you
9 know, if you are coming from the north and they told you to hold
10 at Hains -- it's Hains Point, right?

11 A. That's correct, yeah.

12 Q. Yeah, and you're at Hains Point and then they pointed traffic
13 out to you and say pass behind that traffic. Have you ever had
14 that?

15 A. I don't think so. Maybe once or twice with the holding. I
16 guess, potentially with the follow up of hey hold up for this
17 traffic; once you see that traffic go in front of you, you can
18 continue. I don't know if I've heard pass behind specifically.

19 Q. Okay. Do you wear glasses?

20 A. I don't.

21 Q. Do you wear -- what kind of hearing protection do you use for
22 your ears?

23 A. So I have -- when I'm not in the aircraft I have blue rubber
24 hearing protection. And then in the aircraft, customized hearing
25 protection that go into our CEP system that plugs into the helmet.

1 Q. Okay, all right. Do you use the HUD when you're flying?

2 A. I don't.

3 Q. You don't? Are you trained on using it?

4 A. Yeah, I have used it before. In my previous unit I used it
5 every flight; in this unit I don't.

6 Q. Is there a reason why you don't use it?

7 A. I think it actually provides too much information and it --
8 for me, I'm used to scanning across the dash. So having that
9 extra information in front of my eyes, it actually, it just clouds
10 up my vision a little bit too much and I kind of have to refocus
11 my eyes to see it anyway. So it's not like I can see two things
12 at once. That's just for me personally.

13 Q. Explain how you have your -- is it a mini iPad? Do you have
14 it on your left knee, your right knee?

15 A. I usually put it always on my right knee.

16 Q. You put it on your right knee?

17 A. Yeah.

18 Q. Okay. I'm sure you alternate between right seat, left seat?

19 A. I do, yeah.

20 Q. Okay. I'm gonna stop there.

21 A. Okay.

22 Q. Thank you, Noah.

23 DR. BRAMBLE: Dave?

24 BY MR. BLAIR:

25 Q. Let's talk about radio clearances real quick. When you come

1 into National's airspace there, talking to them, give me an idea
2 what that radio call sounds like coming back and forth.

3 A. So it's very quick. It's usually -- and sometimes it's hard
4 to get that radio call in. So there's no wakeup call or anything.
5 So Washington tower, this is PAT whatever your number is for that
6 day, request -- you know, at Washington request route 412 and then
7 wherever you're going.

8 Q. Okay. And what's their clearance gonna sound like back to
9 you?

10 A. Say PAT, number, cleared as requested, altimeter 2999,
11 something.

12 Q. Okay. And they don't ever tell you you're cleared in 200
13 feet below through the airspace or anything? It's just you're
14 cleared?

15 A. Yeah, it's very quick and it's understood that if you're
16 cleared for those routes, you'll stay at those altitudes.

17 Q. Okay.

18 A. I think -- unless there's, you know, something different but
19 I don't really think I've ever heard that.

20 Q. Okay, that's all I got.

21 A. Okay.

22 DR. BRAMBLE: Paul?

23 BY MR. KIM:

24 Q. To piggyback off his -- Dave's question.

25 A. Yeah.

1 Q. Do you know which frequency you would use to contact tower?

2 A. It's on the VHF frequency, the helicopter one. I wanna say
3 it's, like, 143.1 but I could be confusing that with something.
4 It's our preset number 4.

5 Q. Got it.

6 A. And it's also on a card in front of us.

7 Q. You're using the helo frequency?

8 A. Exactly, yeah.

9 Q. Can you just briefly differentiate between the duties of the
10 pilot and copilot?

11 A. So I would say that we -- we talk more about pilot in command
12 and pilot not in command. And then also pilot on controls versus
13 pilot not on controls. So you have the pilot in command, which is
14 in charge of the entire -- like, everything in the aircraft is --
15 you know, they're responsible for the aircraft. And then you also
16 -- and then the other pilot, while they may also be a pilot in
17 command, they're not the overall responsible authority figure for
18 that flight. We will swap who is on the controls versus on the
19 radios, but primarily it is one of those pilots is -- has their
20 hands on all flight controls and is flying. And then the other
21 pilot is responsible for navigation and radio calls.

22 Q. Is there someone in particular that would be primarily
23 responsible to scan for traffic?

24 A. That would be all crew members. We brief it before every
25 flight.

1 Q. And who would handle the radio calls?

2 A. The pilot not on the controls.

3 Q. Do both pilots and the crew chief have a stratus on their
4 person?

5 A. Usually we just bring one stratus for the crew.

6 Q. And it would be the pilot who would have it attached to their
7 kneeboard, typically?

8 A. Usually it's not attached to the kneeboard. It would be --
9 the stratus device itself would be somewhere in a pocket somewhere
10 where it can get signal and then it is connected through Wi-Fi to
11 the iPad.

12 Q. Where exactly would this pocket be located?

13 A. There's a little, like, cup holder in the door; usually put
14 it in there.

15 Q. Can you describe how you would -- or how pilots would ensure
16 that they are on the published route depicted?

17 A. When people come to the unit, we -- one of the things that we
18 make sure, through our progression training process, is local area
19 orientation to -- so you have someone that's senior, been here for
20 a while, whether that's an instructor pilot or someone that has
21 just -- very familiar with the routes, fly with someone and point
22 out waypoints, known objects, and techniques to make sure that,
23 you know, you're on this side of the river or looking for this
24 building, and with the altitude changes. And then also we'll
25 brief routes before we go fly with altitudes. And then also we'll

1 have a moving map up on an iPad or a screen, depending on which
2 variant of the helicopter you're in. And those have the altitudes
3 posted on them.

4 Q. Is there any kind of guidance or SOP for the maximum lateral
5 deviation from the route, (indiscernible), say like from the
6 centerline of the route?

7 A. Not that I know of. I think that most people just brief
8 certain, like, you're going to -- in this route in particular
9 there's a bridge that we try to aim for and then a pier that we
10 try to aim for, usually on the left side of the river.

11 Q. Got it. Thank you. Those are all my questions.

12 A. Okay.

13 DR. BRAMBLE: Nick?

14 CW5 JACOBY: No.

15 DR. BRAMBLE: Okay. Van?

16 MR. McKENNY: I don't have any follow ups right now.

17 BY DR. BRAMBLE:

18 Q. Okay. I just have a couple. Sort of piggybacking on Paul's
19 question. If there is a stratus aboard, would the crew chief
20 typically have a traffic display up on his iPad or --

21 A. Crew chief does not typically have an iPad.

22 Q. Okay. And what about the two pilots? Would, like, just one
23 of them typically have one up if he had the stratus?

24 A. Typically both pilots would have it up.

25 Q. Okay. And that would be the foreflight application? I mean,

1 if they had that up, would that always have traffic on it if you
2 have the stratus?

3 A. If you have the stratus, yeah.

4 Q. Okay. So that would just, sort of, always be on and running
5 basically on a knee or something?

6 A. Yes.

7 Q. Okay. Do you ever select hide traffic on that or?

8 A. No, I don't even know if I would know how to do that.

9 Q. Okay. All right. I don't think we've asked you this one
10 yet, but what is your understanding of the high and low limit of
11 that altitude on Route 4, for example, next to the airport?

12 A. It's a maximum altitude, so you want to stay below it.

13 Q. And how low can you go?

14 A. So just due to noise abatement and then in that particular
15 area to avoid obstacles and stuff we brief, and I think it became
16 an SOP, to be 100 feet below the maximum altitude and not more.

17 Q. Okay. And then one other confirmation on the NVG positioning
18 and monitoring of instruments discussion, so I heard you
19 describing how you are looking through the NVGs and moving your
20 head frequently to compensate for the narrow field of view, and
21 that you also include the instruments in your scan, but was that
22 through the NVGs or underneath the NVGs?

23 A. Underneath the NVGs, sir.

24 Q. Okay.

25 A. They're focused to a distance outside of the cockpit, so you

1 wouldn't be able to see anything inside of the cockpit.

2 Q. Okay. So you monitor the baro altitude indicator under the
3 NVGs?

4 A. That's correct.

5 Q. Okay. Is that pretty common practice in your experience?

6 A. It's common for everyone and taught that way.

7 DR. BRAMBLE: Okay. All right. Mark?

8 BY MR. WARD:

9 Q. Got just a couple -- did you know any of the individuals
10 outside of work?

11 A. Not really, no.

12 Q. Did you know or were aware of any kind of stressors in their
13 life, a death, a wedding, anything?

14 A. Not that I'm aware of.

15 Q. Any known history working within flight office about those --
16 the crew, any issues with them, any -- they can't work together or
17 they have problems with other people or any --

18 A. Never heard anything like that.

19 Q. All right. And then the question I always ask at the end, is
20 there a question that I've -- or we have not asked you yet that we
21 probably should have? Or you thought we'd ask you about?

22 A. No, I don't think so.

23 MR. WARD: That's all I got.

24 DR. BRAMBLE: Dave? Oh, sorry, Eddie? I keep missing you
25 'cause we're out of order here.

1 BY MR. MILLER:

2 Q. Do you have, do you have any safety concerns for your, for
3 your battalion or anything that should be brought up here that we
4 can hopefully rectify or bring to light and make it safer for
5 everybody?

6 A. No, I don't think so.

7 Q. Okay. Who is in charge of the reading file for each company?

8 A. So the -- I would say it's actually the battalion
9 standardization instructor is in charge of the reading file. And
10 then I think the instructor pilots and the standardization
11 instructors for each -- excuse me, standardization pilots for each
12 company help out with that, but --

13 Q. Okay. No other questions. Thank you, Noah.

14 A. Yup.

15 DR. BRAMBLE: All right. Now it's Dave's turn.

16 MR. BLAIR: Thanks.

17 BY MR. BLAIR:

18 Q. Couple follow-up questions. You said the altitude
19 limitations, you're looking at your baro altitude to 200 -- below
20 200 feet?

21 A. That's correct.

22 Q. And then SOP from the battalion or brigade level, whatever it
23 is (indiscernible) --

24 A. I think it's assigned at the brigade level.

25 Q. Okay. And you said not more than 100 feet and I just want to

1 clarify, did you mean not more than 100 feet below --

2 A. That's what I meant, yes.

3 Q. -- the 200, okay. I just wanted, wanted to clarify that. So
4 you've been in other units, obviously, you said you flew in Korea
5 before.

6 A. I did.

7 Q. How does 12th Aviation compare, just kind of culture wise, as
8 compared to your other unit?

9 A. It's stateside and everyone is, you know, with their family,
10 or living domestically here versus in a deployed environment or --
11 so I think people kind of have their own lives a little
12 differently outside of work. However, it seems like a pretty good
13 unit overall. I really enjoy working with everyone there and I
14 enjoy the types of flying that we do.

15 Q. All right. Sounds good. Let me be a little more specific.

16 A. Okay.

17 Q. As far as professionalism of the unit.

18 A. Oh, I think it's very professional.

19 Q. Okay.

20 A. If not more professional than my previous jobs.

21 Q. Good enough. And one last question, Captain [REDACTED] we've
22 heard from one of the previous interviews, that she was a White
23 House social aide.

24 A. She was.

25 Q. Any idea if that -- her scheduling for that might have

1 conflicted? I know that's a high-priority thing. Any, anything
2 heard about that?

3 A. So I'm actually also a White House social aide.

4 Q. Okay.

5 A. I've worked with her through that. She actually introduced
6 me to the program. It is busy managing your, you know, primary
7 job as an aviation officer flying and then also that social aide
8 job. Captain [REDACTED] is a very organized person. She's always
9 taking notes, like, just very organized. While it's busy, it is
10 easily done.

11 Q. Okay, sounds good. As long as we're on it, and I'm glad to
12 hear congratulations as being selected for that.

13 A. Thanks.

14 Q. Could you give sort of us a quick rundown, just a few
15 sentences, what is involved in being a White House social aide?

16 A. Yeah, absolutely. So I don't have the, you know, the
17 specific job description memorized, but you're there to represent
18 the President and the Vice President of the United States at
19 social events related to the White House. Primarily working for
20 the White House Military Office, and then in coordination with the
21 White House Social Office and Social Secretary, which falls under
22 the Vice President. So it can be anything from just greeting
23 people coming to events, or escorting politicians or important
24 people around or to events, and just generally making sure that
25 things go smoothly for the events. Occasionally there's a slight

1 security aspect of that, too, working with the Secret Service.

2 Yeah, it's a non-political position also.

3 Q. Okay. Those events mainly are taking place in the evenings,
4 during the day? I mean, are you telling your bosses hey, I got to
5 be out today for an event over at the White House? Or how does
6 that work?

7 A. There are -- you know, they can be anything. There are
8 breakfasts, there are bill signings, and there are dinners, so it
9 could be during working hours, after working hours, before working
10 hours.

11 Q. Great, thank you.

12 A. Absolutely.

13 DR. BRAMBLE: Paul?

14 BY MR. KIM:

15 Q. I think I only have one question for you. Did you by any
16 chance review the video of the accident?

17 A. I've seen some videos on the news.

18 Q. News clips, okay. For the condition of flight that the
19 accident happened, what kind of exterior lighting would be in use
20 while transiting that area?

21 A. On the aircraft?

22 Q. Yes.

23 A. Typically we're flying around with our anti-collision
24 position lights and landing lights.

25 Q. Could you describe what that would look like?

1 A. So your anti-collision lights are flashing lights. I believe
2 they're red at night. And then you have position lights with,
3 what is it, green on the left side, red on the right side. That's
4 backwards. It's red on the left side, green on the right side.
5 And then a white light on your tail. And then your landing light
6 is a white light shining down under the nose.

7 Q. Is that different from daytime lighting?

8 A. So typically, because of the congested airspace that we fly
9 in, we actually fly with all those lights on during the day as
10 well.

11 Q. The DC airspace?

12 A. That's correct, yeah. However, the anti-collision lights
13 become white during the day versus red.

14 Q. Oh, got it. Are any of the lights in -- is there a high
15 setting, low setting, dim setting, anything like that, or are they
16 the same intensity?

17 A. So the position lights have a dim setting.

18 Q. Would those be in a dim setting at night or during the day?

19 A. Typically we fly around with them on the high setting at all
20 times, unless some sort of formation flight was requested or
21 specific degraded visual environment conditions, like, where we're
22 flying in low altitudes and the crew chief, it's whiting out their
23 goggles or, like, sometimes when you're in IMC conditions they're
24 requested sometimes to avoid, like, shining off of the clouds.
25 But typically they would be on bright in that particular mode of

1 flight.

2 Q. Okay, thank you. No more questions.

3 DR. BRAMBLE: I'm sorry. Nick. Van, do you have anything
4 else?

5 MR. McKENNY: Nope.

6 DR. BRAMBLE: I don't either. You guys? Okay. That being
7 said, is there anything else that you'd like to offer you think
8 might be relevant to the investigation?

9 CAPT SAWATZKY: No, not that I know of.

10 DR. BRAMBLE: Anyone in particular that you think we can't
11 miss speaking with?

12 CAPT SAWATZKY: Not that I know of off the top of my head.

13 DR. BRAMBLE: Okay. Any safety suggestions or concerns that
14 you want to offer?

15 CAPT SAWATZKY: Nothing at this time.

16 DR. BRAMBLE: Okay. All right. That said, we'll conclude
17 the interview. It is 13:51 Eastern Standard Time.

18 (Whereupon, at 1:51 p.m. EST, the interview was concluded.)

19

20

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
 AMERICAN AIRLINES JET AND ARMY
 HELICOPTER NEAR RONALD REAGAN
 NATIONAL AIRPORT IN WASHINGTON, DC
 ON JANUARY 29, 2025
 Interview of Noah Sawatzky

ACCIDENT NO.: DCA25MA108

DATE: February 1, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Christy Behlke
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of:

*

*

FATAL COLLISION BETWEEN AMERICAN

*

AIRLINES JET AND ARMY HELICOPTER

*

Accident No.: DCA25FM015

NEAR RONALD REAGAN NATIONAL

*

AIRPORT IN WASHINGTON, DC

*

ON JANUARY 30, 2025

*

*

* * * * *

Interview of: WILLIAM BARTON, First Sergeant

12th Aviation Battalion, Bravo Company

Saturday,
February 1, 2025

APPEARANCES:

DR. WILLIAM BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Operations Group Chairman, Helicopters
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

MARK WARD, Accident Investigator
National Transportation Safety Board

DAVE BLAIR, Chief Pilot for Safety
Sikorsky

PAUL KIM, Chief Pilot
PSA Airlines

CW5 NICK JACOBY, Standardization Pilot
U.S. Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of William Barton:	
By Dr. Bramble	5
By Mr. McKenny	6
By Dr. Bramble	13
By Mr. Ward	22
By Mr. Miller	25
By Mr. Blair	27
By Mr. Kim	30
By Dr. Bramble	31

I N T E R V I E W

(2:35 p.m. EST)

DR. BRAMBLE: My name is Bill Bramble, and I'm a human performance investigator with the NTSB. Today is February 1st, 2025. It is 1435 Eastern Standard Time, and we're here to interview First Sergeant William Barton.

Van McKenny and I are leading the operations and human performance working group helicopter for Investigation Number DCA25MA108 involving the 12th Brigade and PSA Flight 4352.

The NTSB is an independent federal agency. We're not part of the DOT or the FAA, and we have no regulatory or enforcement powers. Our mission is solely to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame, and your participation today helps ensure that the fact-finding phase of the investigation is complete and accurate.

We will be recording this interview so that it can be transcribed. After we receive the transcript, we'll review it for typos before it's included in the public docket for this investigation. And we can also provide you with an opportunity to review the transcript if you request that afterwards.

I would now like introduce each -- or have each of the group members briefly introduce themselves and state their organizational affiliation, and we'll start with Mr. McKenny.

1 MR. McKENNY: Van McKenny, operations group chairman for
2 helicopters, NTSB.

3 MR. MILLER: Eddie Miller, FAA, senior accident investigator.

4 MR. WARD: Mark Ward, NTSB, accident investigator.

5 MR. BLAIR: Dave Blair, chief pilot for safety, Sikorsky.

6 MR. KIM: Paul Kim, Chief Pilot with PSA Airlines.

7 CW5 JACOBY: CW5 Jacoby. I'm the standardization pilot for
8 the Brigade at the U.S. Army Aviation Brigade.

9 DR. BRAMBLE: Okay. Each member of this group will have a
10 couple of opportunities to ask questions. We'll take turns.
11 Everyone's been instructed not to interrupt the other questioners.
12 Please answer all questions to the best of your recollection. If
13 you don't understand a question, just ask for us to repeat or
14 rephrase it. And if you realize that you misstated something, or
15 want to correct something, just let us know.

16 You are entitled to have a representative of your choosing
17 present during this interview. Is there anyone you would like to
18 have as your representative?

19 1ST BARTON: No.

20 DR. BRAMBLE: Okay. Let's begin then.

21 INTERVIEW OF WILLIAM BARTON

22 BY DR. BRAMBLE:

23 Q. First, could you just state and spell your first and last
24 name?

25 A. William Barton, W-i-l-l-i-a-m, B-a-r-t-o-n.

1 Q. Thank you.

2 DR. BRAMBLE: And Mr. McKenny will begin.

3 MR. McKENNY: Sure.

4 BY MR. McKENNY:

5 Q. Thanks for coming in. If you could just briefly give us a
6 history of your experience in the Army.

7 A. I've been in the Army for over 21 years. I joined in 2003 as
8 a 15 Tango helicopter air mechanic, or helicopter repair. I've
9 served in every position between private and 1ST that you could.
10 I've been a maintainer of helicopters, worked on phase teams, be a
11 crew chief. I've been a squad leader, a team leader, a platoon
12 sergeant, a technical inspector. I'm currently serving as a first
13 sergeant in a flight company 1300, over 1300 hours as a crew
14 chief, and I've been stationed in Fort Campbell, 101st, Germany
15 with 12th Combat Aviation Brigade, Savannah, Georgia with the 3rd
16 Combat Aviation Bridge, Sinai, Egypt twice with the aviation
17 company over there, 10th CAB up at Fort Drum at the Fort Eustis as
18 an instruction at the school house teaching 15 Tangos how to do
19 their job and currently at Fort Belvoir.

20 Q. Okay. Thank you. You said you had 1300 hours total time --

21 A. Yeah. I think --

22 Q. -- as a crew chief?

23 A. I think it's between 1330 and 1370 on record.

24 Q. Okay. How much of that is on a H-60?

25 A. All of it.

1 Q. Okay. And --

2 A. There is between Alphas and Limas.

3 Q. Alphas and Limas. And, do you have any NVG time?

4 A. Yeah. I don't remember how much it was the last time I
5 looked at it. It's greater than 200 but less than 500 I believe.

6 Q. Okay.

7 A. I did forget to mention my combat experience if you want me
8 to include that.

9 Q. Sure.

10 A. I've deployed to Iraq twice and Afghanistan once. The
11 deployment to Afghanistan, I was a crew chief on the Black Hawks
12 at the time and I amassed 600, over 600 hours in combat.

13 Q. Okay. Well, thank you. Your current job and the
14 responsibilities that your job entails.

15 A. I'm a first sergeant of a flight company. My duties include
16 administrative duties for the entire company, scheduling and
17 ensuring the training of the members of the company are completed,
18 making sure that the NCOs and soldiers of the company know what
19 they're supposed to be doing, and advising and assisting the
20 commander and platoon leaders and platoon sergeants in their jobs.

21 Q. And how long have you been in that position?

22 A. Since October of 2024.

23 Q. Okay. And are you currently in a flying status?

24 A. I am, sir.

25 Q. Okay. Could you just describe the duties of the crew chief

1 position?

2 A. Yeah. The majority of our duties is to provide airspace
3 surveillance while we're flying especially in a peace time
4 environment. That's -- the vast majority of our duties is to make
5 sure that we're monitoring the airspace of the aircraft and
6 assisting the pilots with telling them, to make sure that they're
7 avoiding obstacles and that type of stuff. An additional duty
8 that we do on the aircraft is to help crosscheck and monitor the
9 instruments to make sure that if we see something that the pilots
10 don't see, we can let them know.

11 Q. Okay. So now to move into more recent events. What was your
12 duty day like the day of the mishap?

13 A. The day of the mishap I was on duty for a mission line. I
14 arrived to work at a little bit before 5:30 in the morning. I
15 checked my emails. I sent out a personnel status report for the
16 day, and then I looked at the logbook for the aircraft that I was
17 assigned to that day. We had our mission briefing where we cover
18 all of our routes and what our duties were and everything. And
19 then we went out to our aircraft, and we preflighted our aircraft.
20 We ran it up. After we ran up the aircraft, I went back to my
21 logbook and logged that we did the engine start up, the hit
22 numbers and stuff. And then from there, I went about my duties of
23 sending off emails and responding to emails.

24 And then later in the afternoon, we had a company admin
25 meeting. After the company admin meeting, we had a meeting about

1 planning for a situational training exercise that was coming up.
2 And then after that, my duty line had finished for the day. So I
3 went out to the aircraft and grabbed my flight gear out of the
4 aircraft, helped tie it up, and then dropped that off in my
5 office, responded to another couple emails before I went home.
6 And then I went home for the night.

7 Q. What time was that?

8 A. I believe that it was around 5:30, 1730.

9 Q. Sure. Did you have any interaction with mishap crew that
10 day?

11 A. I did. Mr. -- is it okay to say names?

12 Q. Yes.

13 A. Mr. [REDACTED] CW2 [REDACTED] had a height and weight that day. So he
14 was in my office earlier that morning, that day, getting height
15 and weight done on him by another NCO in the company. And then
16 Staff Sergeant [REDACTED] I saw him just before I was leaving for the
17 day, and he was getting ready to go out to his aircraft. We
18 exchanged a couple of words. I honestly don't remember what they
19 were, but I knew -- before I walked away, I told him have a safe
20 flight. And then as I was walking out of the hangar, I saw
21 Lieutenant [REDACTED] walking through the hangar. So I told her have
22 a safe flight, ma'am. And then I went -- before I headed home, I
23 actually talked to Sergeant Major Collins, the Battalion Sergeant
24 Major, about some admin stuff that was going on.

25 Q. Okay. So your interactions with Mr. [REDACTED] or Staff Sergeant

1 [REDACTED] or Captain [REDACTED] anything unusual, normal?

2 A. No, everything seemed normal.

3 Q. Okay. Demeanor and all that?

4 A. Fine. As soon as Captain [REDACTED] knew that it was me telling
5 her to have a safe flight, a big old grin went on her face, and
6 she just continued walking. She said thanks. Sergeant [REDACTED] he
7 seemed perfectly fine.

8 Q. Um-hum.

9 A. And then, Mr. [REDACTED] he was doing fine, too, whenever I saw
10 him.

11 Q. Okay. What was the -- let's go through each of the
12 individual's -- what was the reputation of Mr. [REDACTED] within the
13 unit?

14 A. He was a great pilot. Everybody like him. He hadn't been
15 there for very long. I think he got to us in September, October.
16 But, in that time, he had fostered a positive environment amongst
17 everybody. Whenever we were on duty, he would make breakfast for
18 the duty crews in the morning. He was doing everything he could
19 to help mentor the junior pilots and even the crew chiefs every
20 chance he got. He even pulled me to the side and tried to give me
21 pointers about working towards my private pilot's license, gave me
22 advice on that and everything.

23 Q. That's cool. All right. And how about Captain [REDACTED]

24 A. As far as I know, everything was good with Captain [REDACTED]
25 too. She used to be a part of our company, and she was our -- she

1 was my first platoon leader whenever I got to Belvoir, whenever I
2 was a platoon sergeant. Everybody enjoyed working with her. I
3 always looked forward to flying with her whenever we were on the
4 flight schedule together. I don't think I know of anybody that
5 would say a bad word about any of those three personnel in the
6 company.

7 Q. And Staff Sergeant [REDACTED]

8 A. Staff Sergeant [REDACTED] was one of the best NCOs I could ask
9 for. He always sought out more responsibilities and anything I
10 asked him to do, he would write down in his little notebook and
11 within a couple of days I'd have an answer of whatever I was
12 asking of him. He was always mentoring to our guys and advising
13 them to go get their airframe and power plants, whether they
14 wanted to work on aircraft whenever they got out or not, just so
15 that they could have it as a backup plan. And he knew pretty much
16 anything I wanted to know crew chief-wise or mechanic-wise, I can
17 go to him and ask him and he knew it. And if he questioned
18 himself, he was like, well, let me look that up and I'll get back
19 to you on that.

20 Q. Yeah, that's awesome. All right. Let's -- I'm going to ask
21 you a few operational questions. Have you flown the route, the
22 R1-R4 transition at night route there by Reagan?

23 A. I have, sir. Multiple times.

24 Q. All right. And what are the duties and -- how does that look
25 from you as a crew chief? You know, what are you doing and what's

1 going on in the aircraft? Are you on night vision goggles? Just
2 kind of explain, you know, how a typical flight through there
3 would be for you.

4 A. Yeah. So, as we're flying along, I'm looking out throughout
5 the airspace for any traffic that we might come across. I'm also
6 looking for any new obstacles that might not have been there the
7 last time that I was there on the ground. After a couple of times
8 of flying the route, you kind of get an idea of where civilian
9 traffic might be coming from or even other military traffic. So
10 you kind of know the hotspots of where to look. So you know as
11 you're doing your typical scans, you know the heavy spots that you
12 need to keep an eye on.

13 As far as actually using your NVGs or not, it's hit or miss
14 because sometimes it would be too bright to use the NVGs. So the
15 crew would go unaided. Other times, people would be more
16 comfortable being unaided on their route. My personal experience,
17 there was a couple of times where I went unaided because it was
18 just too bright under the goggles for me to see obstacles on the
19 ground and possible traffic in the air. There was other times
20 that I wanted to be aided because I knew that that would help me
21 see things in the distance a little bit better.

22 Q. Any idea what Staff Sergeant [REDACTED] would usually do in that
23 situation along that area?

24 A. I could not begin to tell you.

25 Q. Okay. You guys never discussed it?

1 A. No, we did not.

2 MR. McKENNY: All right. I think that's it right now. Go
3 ahead, Bill.

4 BY DR. BRAMBLE:

5 Q. All right. Just sum things. It sounded like pretty glowing
6 reports on all three individuals, but if you had to sum it up,
7 would you classify their performance in their roles as below
8 average, average or above average for their experience level?

9 A. I'd say above average for all three. I've flown with all of
10 them several times, and I would say above average on all three.

11 Q. Okay. How many times would you say that you've flowing with
12 each of those crewmembers?

13 A. Mr. [REDACTED] I would say probably three or four times. Captain
14 [REDACTED] probably closer to 15 or 20 times. And then, Staff
15 Sergeant [REDACTED] probably between 10 and 20 times.

16 Q. Okay. Any incidents occur during those flights with any of
17 those folks that, you know, safety related incidents that you can
18 recall?

19 A. Not that I can recall, sir.

20 Q. Okay. And just to confirm, the company that you're in is
21 Bravo Company?

22 A. Yes, sir. It's Brave Company, 12th Aviation Battalion.

23 Q. Okay. And, your position within the company is first -- tell
24 me your official title and any other titles that you have.

25 A. I'm the first sergeant of the company, and then I'm also on

1 flying status as a crew chief.

2 Q. So you mentioned running into Captain [REDACTED] and Mr. [REDACTED]
3 the day of the accident. Did you run into any of the three of
4 them the couple of days before that?

5 A. Yes, sir. I believe that it was the Monday prior to the
6 accident or maybe it might have been the end of the week prior to
7 the accident, I had saw Captain [REDACTED] outside of her office, and
8 we talked a little bit about just everyday life stuff, personal
9 stuff. She had mentioned something about -- I had asked her if
10 she was going to be taking over the company as a commander since
11 her pre-command course, captain's career course got pushed to a
12 later year, and she said she didn't know, but she was getting
13 ready to look into going to medical school.

14 And then the day prior to the incident, me and Sergeant
15 [REDACTED] had talked in my office for few minutes about some personal
16 issues and stuff.

17 And then, Mr. [REDACTED] I think it was a couple of days before
18 the incident, we had actually talked about private pilot license
19 stuff and how he had done a lot of his flying towards that up at
20 Potomac Airfield in Maryland. And I had mentioned that that's
21 where I went for my first discovery flight.

22 Q. Okay. How did each of them seem during those interactions?
23 Did they seem like they were doing okay or mention any concerns
24 about their life or any life-related stressors?

25 A. They all, they all seemed perfectly fine. Some of the issues

1 that I had talked about with some of them were deeply personal
2 issues, but even in discussing that, they seemed perfectly fine.
3 They had already talked about it amongst themselves, and they
4 seemed like they were in a good space with the decisions that they
5 were making with those personal issues.

6 Q. Okay. Without delving too much into the details of their
7 personal lives, would you say that any of them had experienced any
8 significant recent life events like divorce, separation, birth or
9 a major financial or health related crisis?

10 A. Sergeant [REDACTED] had come to me a few times within the past
11 month to talk about some relationship issues, but again he seemed
12 like he was in a good place with the decisions that he was making
13 and the actions that were happening.

14 Q. Okay. Was he, was he married?

15 A. He was, sir.

16 Q. Okay. Do you know if that relationship -- did it look like
17 that relationship was going to end imminently or -- you can say
18 either it was or it wasn't. You don't have to get into the
19 details but --

20 A. Yes, sir, it was.

21 Q. Okay.

22 A. I don't know all of the details but, yes, that's the personal
23 issues that we had been talking about for a while.

24 Q. Okay. But on the occasion that you spoke with him, he seemed
25 fairly at peace with what was happening?

1 A. He seemed in a better place than I was whenever I was going
2 through the same situation, yes, sir.

3 Q. Okay.

4 A. He seemed like he was okay with the idea because he knew that
5 everything was going to be okay.

6 Q. Okay. Did he have kids?

7 A. They have one kid together, yes, sir.

8 Q. Okay. Do you know how old?

9 A. Less than a year and a half.

10 Q. Okay. Did he ever talk to you about taking time off?

11 A. Yes, sir. Actually, he had already taken some time off in
12 recent months. He originally came to us early fall, late summer,
13 early fall, and told us that he needed to step away from flying
14 for a little while. So he actually did that, and he took care of
15 himself. He went and saw some people. He talked to people, and
16 then in November, he approached me and said that he wanted to get
17 his flying status back. And he got cleared by the doctors to do
18 so, and then he started flying again.

19 Q. Okay. When did he start back flying?

20 A. I don't know the exact date, sir. It was some time in
21 November or early December.

22 Q. Okay. All right. What about the two flight crewmembers from
23 the accident? Any major life events in the last year for them
24 that you I know of?

25 A. Not that I know of, sir.

1 Q. Okay. All right. And just to confirm the times that you saw
2 them, it was either Monday prior to the accident or end of the
3 week before that you saw [REDACTED] outside her office and the day
4 before the incident you saw Mr. [REDACTED] and it was Mr. [REDACTED] you
5 spoke with a couple days before the accident.

6 A. Correct. If I remember correctly, I think that we were on
7 duty together on Monday, but I'm not 100 percent sure on that.

8 Q. You and --

9 A. Mr. [REDACTED]

10 Q. -- Mr. [REDACTED]

11 A. I wasn't a part of his crew, but we were -- we had multiple
12 crews on duty at the same time, and I believe we were on duty
13 together on Monday, but I'm not 100 percent sure.

14 Q. Okay.

15 A. A lot of the duty days tend to meld together after a while
16 especially in a time like this.

17 Q. Yeah. When you're out with a flight crew on like a standards
18 evaluation flight, is your role different than it would normally
19 be?

20 A. With a standards evaluation flight, right away the only
21 different that I can think of is the fact that we practice
22 emergency procedures but usually that's right in the pattern right
23 around Davison, unless if we're doing the IFE portion of the
24 standardization test, and then we -- that's another thing that
25 doesn't typically happen on the training flights as we segment a

1 block of that flight specifically for the pilots to fly
2 instruments and practice their IF -- their instrument procedures.

3 Q. Okay. Do you typically sit one side of the aircraft or the
4 other for that type of a flight?

5 A. No, sir. Well, yeah. Typically the crew chief sits behind
6 the junior pilot on every flight that we go on, and that's just so
7 that -- it's just so that they can provide more airspace on the
8 side of the junior pilot.

9 Q. Okay. So they can provide more --

10 A. Airspace surveillance.

11 Q. Okay.

12 A. And keep an eye out on that side of the aircraft.

13 Q. Okay. So you're sitting -- if the junior pilot is in the
14 right side say, you'd be sitting on the right side facing the left
15 side?

16 A. Typically that's the way that it is, yes, sir.

17 Q. Okay.

18 A. No, you'd be sitting -- I'm sorry. I got confused.

19 Q. Let's switch it around. So let's say the junior pilot is on
20 the left side, and -- actually let me back up one more step. So
21 in the case where Mr. [REDACTED] was giving the evaluation ride to
22 Ms. [REDACTED] who is the junior pilot?

23 A. That would be Captain [REDACTED] Experience-wise, Captain
24 [REDACTED] is the junior pilot.

25 Q. Okay. And, so therefore you would -- if it was you on the

1 flight, you would likely sit behind her?

2 A. I would sit behind Captain [REDACTED] and looking out of the
3 aircraft on that side.

4 Q. Which side?

5 A. Whichever side she was on.

6 Q. Okay.

7 A. If she's, if she's sitting left side, I'm sitting on the left
8 side watching the left side of the aircraft. If she's sitting
9 right side, I'm sitting right side, watching the right side of the
10 aircraft.

11 Q. Which way does your seat face back there?

12 A. It faces out. On the Lima model, which is our aircraft and
13 which is the aircraft in question, both crew chief seats face
14 directly out from the center of the aircraft.

15 Q. Okay. Sort out the gunner's window?

16 A. Yes, sir.

17 Q. Okay.

18 A. It's not like the Mike models where they can pivot and turn
19 and everything else.

20 Q. Okay. And then what technique do you use to scan for
21 traffic?

22 A. I like to use a zigzag method. I slowly just move from left
23 to right, down and to the left, down and to the right, down and to
24 the left and so on and so forth. If I typically see something
25 that's extra bright or something that's flashing, I immediately

1 look to that and see what it is so that I can make sure that it's
2 not something that could potentially be in our path of travel.

3 Q. And what's your field of view like from your seat?

4 A. Typically I have a 180 degree field of view from the front of
5 the helicopter to the tail of the aircraft. If I lean out of the
6 window, I can look a little bit past the nose towards the left
7 side if I'm sitting on the right side. And I can look a little
8 bit past the tail towards the right side and vice versa.

9 Q. Okay. But seated in your seat, you can see about 180?

10 A. Through the cockpit windows and the cabin door windows, it's
11 probably closer probably to about 160 degrees.

12 Q. Okay.

13 A. Because the cabin door windows would keep me from seeing all
14 the way to the tail.

15 Q. Okay. All right. These guys are going to ask you in a
16 little bit more detail about how you call out traffic and that
17 sort of thing.

18 A. Understood.

19 Q. Have you had any near mid air collisions in the DC area on
20 any of your flights?

21 A. Not in the DC area. There's a couple of times where the
22 tower would tell us that an aircraft was on approach and we were
23 looking around and then we would go underneath and around them but
24 there was no midair -- there was no near misses or anything that
25 I've experienced in the DC area.

1 Q. Okay. Is it common flying past National Airport to have
2 airliners pass over you on short final?

3 A. All the time, sir, depending on where you're at.

4 Q. Okay. Like directly over?

5 A. If you're, if you're near the Wilson Bridge, yeah. They'll
6 typically pass directly over you. Especially if you're on the
7 helo route 3 going east to west or vice versa, then they're
8 passing directly over you on short final.

9 Q. Okay. How about off the end of runway 3-3?

10 A. Yeah. If there's traffic that's inbound on runway 3-3, I
11 would say that it's less likely that there's aircraft that are
12 passing directly over you because from my understanding and my
13 experience, Reagan doesn't typically use that runway that often
14 especially while we're -- in my experience, while we flying around
15 on those routes.

16 Q. Okay. If you did have a near miss, how would you report
17 that?

18 A. I'd report it to my safety officer in my company, and they
19 would report it up. I'd make sure that my PC was reporting it up.
20 Most likely, we would report it to the tower frequency. That's
21 the typical routes that I would think right offhand.

22 Q. Okay. Have you heard about any issues with near misses in
23 that area in the last few months?

24 A. The area where this incident occurred?

25 Q. Um-hum.

1 A. No, sir.

2 DR. BRAMBLE: Okay. Mark.

3 BY MR. WARD:

4 Q. Mark Ward. I have a few questions for you. Is there any
5 brief with the crew when there's a chance in altitude in the
6 corridor if they're moving? I guess the pilots let you know -- do
7 you know what the altitude restrictions are while they're flying?

8 A. Right offhand me personally, no. But typically before we
9 fly, we do a crew brief, and we go over what the altitudes in each
10 leg of each route is. And in my experience, the pilots usually
11 say, okay, we're coming up to this point. The altitude is this.
12 This altitude is that. Let's go ahead and start transitioning for
13 it or whatever the case may be.

14 Q. Have you had any pilots that actually have asked the back
15 seaters, the crew chiefs, to, hey, let me know if I go above 300
16 feet in this area, to have you pull your focus inside the cockpit
17 to look at an altimeter?

18 A. I can't speak for other back seaters, but my pilots know that
19 I have the experience that I have, and they also know that I'm
20 trying to get my PPL. So they're like, hey, if you, if you want
21 to watch us and make sure we're doing the right things, then by
22 all means. There have been times, not in the DC area, where the
23 pilots have asked me to keep a longer look at the instruments.
24 Typically that's while we're flying actual IFR conditions though.
25 I haven't had a pilot specifically say, hey, watch and make sure

1 we're not exceed the altitude. But that's part of the crew brief.
2 They're always -- most of the pilots that I have interacted with
3 have said make sure you're crosschecking, monitoring and making
4 sure that if you feel like we're exceeding something, you say
5 something or if you look up and see on the instruments that we're
6 exceeding altitudes, you let us know.

7 Q. For the unit, is scan sectors assigned during the brief
8 before you go fly?

9 A. Typically, yes, sir. In my experience, the PC or the pilot-
10 in-command of the aircraft, he'll look at each individual member
11 and he'll be like, all right, you've got from this point to this
12 point. We're going to overlap up front. I've got this point to
13 point and you have this point to this point. And then typically
14 for the back seaters, they say you have as far left and right, up
15 and down, as you can see.

16 Q. Can you talk about the limitations with the CEFS tanks on
17 board as far as your ability to scan for traffic?

18 A. Yeah, it definitely tends to block out some areas where I'm
19 looking at. For instance, there's the wing coming out, and it's
20 -- depending on which side you're at, it's like right above and
21 back behind your seat. They're right above and behind both seats,
22 but they come out and then you have the vertical portion of it,
23 and you have the tank. The tank is basically right in front of
24 the crew chief. So anything directly to the 3 and the 9 o'clock
25 positions of the aircraft can be limited by the CEFS in the wings.

1 Q. And the CEFS, just for the record, do you know what CEFS
2 stands for?

3 A. Yeah, it's crashworthy external fuel system.

4 Q. How are you tracking -- how is the unit tracking duty time,
5 your crew tracker, crew rest tracker for the unit?

6 A. We have the flight schedule, and we know that people are on
7 duty. We know how long the duties are. The unit also has a fire
8 management program on TEAMS that we can use to log our duty times
9 also. As far as -- other than that, it's up to the people that
10 are scheduling the flight schedule to make sure that they're
11 keeping track of how many days of duty each person has per week.

12 Q. You mentioned Chief [REDACTED] coming in. Do you know what he
13 came in to do his height and weight that day?

14 A. No, it was later in the day. I don't remember when. I think
15 earlier I said morning, but everything's morning for me.

16 Q. Then can you go over the standard callouts and how you call
17 out traffic to alert the pilot up front where the location is?

18 A. Yes, sir. I call it out, fixed wing traffic, 12 o'clock
19 high, about 2 miles out, no factor. If it's no factor, if it's
20 over on the right side, fixed wing traffic, 3 o'clock, about 3
21 miles out. Same direction, opposite direction, heading left or
22 right, whatever the case may be. We use the clock position as the
23 location of it in relation to where we are and then high or low
24 depending on whether it's higher than us or lower than us, same
25 altitude if it's same altitude, and so on and so forth.

1 Q. Have you ever experienced while using NVGs an aircraft that
2 you've spotted and then lose them in the lights after you've
3 spotted them?

4 A. Not in the DC area, sir.

5 Q. And then [REDACTED] -- [REDACTED] sorry, do you know how active she
6 was as a social coordinator? I think that's what it's called?

7 MR. BLAIR: Social aide.

8 BY MR. WARD:

9 Q. Social aide.

10 A. I can't speak for the recent past because she wasn't in our
11 company. Whenever she was in our company, a year and a half ago,
12 whatever, however long it was, 2 years ago, it was a few times a
13 month, maybe once or twice a week at most.

14 Q. That's all the questions I've got. Thank you.

15 DR. BRAMBLE: Dave -- or sorry, Eddie.

16 BY MR. MILLER:

17 Q. All right. I've got some questions about your work space.
18 The -- when you're sitting in your seat, left side or right -- or
19 let's just say left side because that's -- we're thinking that's
20 where Sergeant [REDACTED] was at. Where is your intercom box at?
21 And, where do you plug in at?

22 A. We use what's called an ICS cord, and usually my little
23 clicker is right on my chest, and then I have the cord beside my
24 seat or behind my seat, and then it gets plugged in to either the
25 roof or the outside of the aircraft depending on where the crew

1 chief plugs in. Most of my crew chiefs in my company, I've seen
2 them plugging it into the inside of the aircraft. As far as the
3 actual -- the communications box, it's right behind the pilot's
4 seat and within arm's reach of my seat.

5 Q. Do you --

6 A. And I don't have to mess with that while I'm trying to talk
7 to the pilots unless I'm trying to turn a radio off or something
8 like that or switch to a different radio so that I can talk on the
9 radio or turn the volume up and down. I always just use the
10 clicker that's on my chest or I have a clicker that's on my right
11 foot that I just push down on it like an old high beam switch on a
12 car.

13 Q. Correct. Do you, do you have the capability to listen to all
14 radio traffic?

15 A. Yeah. As long as they've got them tuned up on the radios, as
16 long as I've got all my pins up, then I can hear the -- all the
17 different radios that the aircraft has.

18 Q. Okay. Have you ever been directed to -- like if you briefed
19 that you were going to sit in the left seat for the ride, and then
20 -- was there ever a time where they said, hey, I need you on the
21 right side and you got up out of your seat and moved to the right
22 side and then performed duties there?

23 A. Not since I've been stationed at this unit. I've had to do
24 that before overseas, in places like that, but not in this unit.

25 Q. Okay. All right. So the typical practice is to sit in the

1 assigned seat that you've briefed and not move around in the
2 aircraft to go help clear out the other side if there is a need
3 for observation or clearance on that side?

4 A. Correct. With my experience -- I can't say for other crew
5 chiefs, but with my experience, the pilots, they'll say, hey, if
6 you could look through the cabin and through the windows on the
7 other cargo door and try to provide some surveillance that way,
8 that would be helpful, but they don't require me to, no, sir.

9 Q. All right. Thank you.

10 A. No problem, sir.

11 MR. MILLER: No other questions.

12 DR. BRAMBLE: Dave.

13 MR. BLAIR: Okay. Again, Dave Blair from Sikorsky.

14 BY MR. BLAIR:

15 Q. A couple things. You talked about crosschecking instruments
16 and because of your, you know, impeding hopefully PPC qual here,
17 you're looking flight instruments as well, but is that typical for
18 most crew chiefs? Are looking at flight instruments or do they
19 most scan the ICAS (ph.) stuff?

20 A. ICAS?

21 Q. ECAS (ph.), the engine instrument display.

22 A. Oh, okay. Understood. I think -- I can't say for sure
23 whether or not they're actually looking at the instruments or the
24 engine and transmission and everything else. I can't, I can't
25 begin to even say. I have tried to impart my knowledge and

1 experience on the crew chiefs and tell them, hey, if you're in the
2 clouds and you can't see the ground or anything, come inside, look
3 at the altimeter, look at the HSI, look at the VSI, try to keep an
4 eye on the instruments, but throughout everything that I've been
5 taught, and I've witnessed my guys get taught, every once in a
6 while, swing up, make sure that all the instruments are showing
7 green, not in any limits, not in any transient positions and
8 everything, yes, sir.

9 Q. Got it. So I kind of threw you one. Are you Mike model
10 qualified?

11 A. I'm not. I've never flown a Mike model, sir.

12 Q. So VIDS is a caution advisory panel.

13 A. Okay.

14 Q. Okay. So they're in a Lima. Sorry.

15 A. Yeah.

16 Q. Didn't mean to throw that at you.

17 A. No problem.

18 Q. So yeah, it's a Mike thing. Good. Thank you. So I know,
19 you know, crew chiefs talk amongst themselves and things. Any
20 concerns among the crew chiefs about these pilots? I mean they
21 had -- I guess I'm asking about their reputation in the battalion.

22 A. No, I've only ever heard great things about them.

23 Q. Good enough. We talked about the CEFS equipped aircraft.
24 For what it's worth, on the record here, too, I was just observing
25 traffic, ADS-B traffic, and it looks like fixed wing are about

1 825, 850 feet coming over the Wilson Bridge. So -- and the
2 helicopter routing is to be below 300 feet at the bridge and south
3 and below 200 north of the bridge. You talked a lot about
4 traffic, or we've asked a couple of questions about clearing
5 traffic. So if you see traffic and it's a factor, do you also --
6 is this part of your preflight brief. Hey, if you see something,
7 give a positive command, climb, dive, break right, break left. Is
8 that part of the brief in your standard?

9 A. Yes, sir. In my experience, and I can venture to say I've
10 flow with most of the pilots in my company, they typically say
11 what's called a no challenge rule --

12 Q. Okay.

13 A. -- where if you see something that's a factor, immediately
14 say break left, climb, descend, whatever the case may be, yes,
15 sir.

16 Q. Sounds good. And in the form of a question, typically you
17 talked about a no challenge rule. That means they're going to do
18 what you said or does that mean that the pilots are going to
19 execute that command without question if you call it?

20 A. Yes, sir. They actually talk about in the crew brief is if
21 you say this, we will comply and we'll talk about it afterwards.

22 Q. Perfect. That's what I was looking for. Thank you. And you
23 talked about ICS pins up. So, I think the Lima is the same as the
24 Mike where the ICS pin has to be up or is it down?

25 A. So I've seen a Mike model. I worked on a Mike model before.

1 It's a little different. On the Mike model, you have like pins
2 that you actually like pull up or push down. With the Lima model,
3 it's a toggle switch.

4 Q. Okay.

5 A. You either flip it up which would be towards the nose of the
6 aircraft or you flip it down which would be towards the tail.

7 Q. Okay.

8 A. To hear the radios, you would have to have it flipped up
9 towards the nose of the aircraft.

10 Q. And typically you're going to monitoring the same radios that
11 the pilots are?

12 A. Typically when you're doing a regular flight?

13 Q. Yes.

14 A. I can't speak for other crew chiefs, but me, I would have all
15 my radio pins up most of the time.

16 Q. Right. Thank you.

17 DR. BRAMBLE: Paul.

18 BY MR. KIM:

19 Q. Are there any terrain awareness warning systems on the
20 aircraft?

21 A. On our Lima models, there are not.

22 Q. As a crew chief, do you scan for traffic just strictly by
23 visual means or do you have any other resources that you typically
24 reference?

25 A. Again, my experience level and my want to be a pilot one day,

1 I sometimes fly with my iPad with my ForeFlight open, and if the
2 pilots have Stratus on board, I'll connect to the Stratus and see
3 if there's traffic around but I wouldn't do that on a DC helo
4 route. It would whenever we're flying in a more open space and
5 everything. Whenever I'm on the DC helo routes, it's strictly
6 visual means.

7 Q. Got it. Do you know if there's any I guess general consensus
8 or practice for when and where they would simulate a NVG failure
9 or something of that kind of an event?

10 A. I can't, I can't even begin to speculate on where that crew
11 would have been doing that at. In my experience, again it's like
12 the EPs. It typically happens in the pattern around Davison.

13 Q. And my last question, for the standard eval flight, are you
14 aware of any specific tasks that would be evaluated specifically
15 during the transit through east bank of the river?

16 A. Other than pointing out different reporting points, I am not
17 aware, sir.

18 Q. Thank you.

19 DR. BRAMBLE: Nick.

20 CW5 JACOBY: No questions.

21 MR. McKENNY: I have no follow ups.

22 BY DR. BRAMBLE:

23 Q. Okay. I have just a couple. Do you know where Mr. [REDACTED]
24 was seated on the accident flight when it departed?

25 A. I do not. I can't say.

1 Q. And where would you expect that he would be sitting based on
2 your knowledge of him and what he was doing?

3 A. It would be either where Mr. [REDACTED] told him to sit or behind
4 Captain [REDACTED] with her being the junior experienced pilot.

5 Q. Okay. You mentioned that you discussed some personal matters
6 with Captain [REDACTED] Was there anything involved there that was
7 like a current source of stress for her, like a stressful life
8 event that was weighing on her mind?

9 A. Oh, no, that was a joyful moment. It was her talking about
10 looking into going to med school.

11 Q. Oh, okay. And, did she ever mention whether she was enjoying
12 the social aide role?

13 A. I hadn't actually talked to her about that specifically since
14 before she left Bravo Company and I can't -- I don't remember
15 exactly when she left our company. I know it was well over a year
16 and a half ago.

17 Q. Okay. What's the maximum and minimum altitude that the crew
18 should be flying when they're on that R4 route, low altitude
19 helicopter route near DCA?

20 A. Right offhand I will be honest, I'm not sure. I believe that
21 that section of the route is supposed to be below 200 feet.

22 Q. Okay. Do you know how much below they can fly?

23 A. Can you rephrase the question?

24 Q. Do you know how long they can fly on the route?

25 A. I don't know if there is an actual hard deck or minimum on

1 it.

2 Q. Okay.

3 A. I'm not sure.

4 Q. If they exceeded 200, how high would they go before you might
5 say something to them?

6 A. I would say, me, as soon as I noticed that they exceeded 200,
7 I would say something by like altitude.

8 Q. Any amount of feet?

9 A. Yeah, if I look up there and the radar altimeter and the
10 barometric altimeter is above 200, I'll say something whether it's
11 just slightly above or drastically above.

12 Q. Okay. Have you ever noticed a crew exceeding the 200 feet on
13 those routes?

14 A. I personally have not, no, sir.

15 DR. BRAMBLE: Okay. And -- all right. Let's go around the
16 room one more time.

17 UNIDENTIFIED SPEAKER: No questions.

18 DR. BRAMBLE: Nick, you got anything?

19 CW5 JACOBY: No, sir.

20 DR. BRAMBLE: All right. And you're --

21 MR. McKENNY: No further questions.

22 BY DR. BRAMBLE:

23 Q. All right. That being said, is there anything that we
24 haven't asked you about that you think is important for us to know
25 given our role in investigating the accident?

1 A. Sergeant [REDACTED] I don't know if anybody had told you all yet
2 or not, but he was our standardization instructor for the company
3 which means that he was the, he was the one that was responsible
4 for ensuring that all of the NRCMs were properly trained, the crew
5 chiefs were properly trained in their duties and everything. He
6 had almost as much experience, if not the same amount of
7 experience flying-wise as me. Obviously, you all have all of
8 their records and everything. So you all already can see his hour
9 mark and everything, but I don't know. It says it in there
10 actually, the standardization instructor portion. So.

11 Q. Okay. Anything else you wanted to tell me?

12 A. No, sir.

13 Q. Okay. Any safety related concerns or recommendations you
14 want to offer to us?

15 A. None that I can think of, sir.

16 DR. BRAMBLE: Okay. All right. With that, we'll call this
17 interview complete at 1527 Eastern Standard Time.

18 (Whereupon, 3:27 p.m. EST, the interview was concluded.)
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

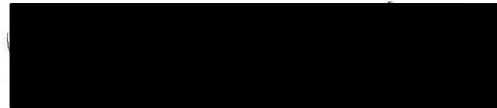
NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN AMERICAN
AIRLINES JET AND ARMY HELICOPTER
NEAR RONALD REAGAN NATIONAL
AIRPORT, WASHINGTON, DC
ON JANUARY 30, 2025
Interview of William Barton

ACCIDENT NO.: DCA25MA108

DATE: February 1, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Kathryn A. Mirfin
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of:

*

*

FATAL COLLISION BETWEEN AMERICAN

*

AIRLINES JET AND ARMY HELICOPTER

*

Accident No.: DCA25FM015

NEAR RONALD REAGAN NATIONAL

*

AIRPORT IN WASHINGTON, DC

*

ON JANUARY 30, 2025

*

*

* * * * *

Interview of: CW3 NATHANIAL McKEOWN, Standardization Pilot
12th Aviation Battalion, Bravo Company

Saturday,
February 1, 2025

APPEARANCES:

DR. WILLIAM BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN MCKENNY, Operations Group Chairman, Helicopters
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

MARK WARD, Accident Investigator
National Transportation Safety Board

DAVE BLAIR, Chief Pilot for Safety
Sikorsky

PAUL KIM, Chief Pilot
PSA Airlines

CW5 NICK JACOBY, Standardization Pilot
U.S. Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of Nathaniel McKeown:	
By Mr. McKenny	6
By Dr. Bramble	11
By Mr. Ward	14
By Mr. Miller	16
By Mr. Blair	17
By Mr. Kim	18
By Dr. Bramble	21
By Mr. Ward	23
By Mr. Miller	23
By Mr. Blair	23
By Mr. Kim	24
By Dr. Bramble	25

I N T E R V I E W

(3:43 p.m. EST)

DR. BRAMBLE: We're on the record at 1543 Eastern Standard Time. And today is February 1st, 2025. We're here for an interview with -- what is your rank?

CW3 McKEOWN: CW3.

DR. BRAMBLE: -- CW3 Nathaniel McKeown. Did I pronounce that correctly?

CW3 McKEOWN: McKeown.

DR. BRAMBLE: McKeown. Okay. My name is Bill Bramble, and I'm a human performance investigator with the NTSB. Van McKenny and I are leading the operations and human performance working group, helicopter, for Investigation Number DCA25MA108 involving 12th Brigade Aviation and PSA 4352.

The NTSB is an independent federal agency. We're not part of the DOT or the FAA, and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation helps ensure the fact-finding phase of the investigation is complete and accurate.

We will be recording this interview so that it can be transcribed. After we receive the transcript, we'll review it for typos before it's included in the public docket for this accident investigation. We can also provide you an opportunity to review

1 it if you request afterward.

2 I would now like each of the group members to briefly
3 introduce themselves and state their organizational affiliation,
4 and we will start with Mr. McKenny.

5 MR. McKENNY: Van McKenny, operations group chairman for
6 helicopters, NTSB.

7 MR. MILLER: Eddie Miller, FAA, senior accident investigator.

8 MR. WARD: Mark Ward, NTSB, accident investigator.

9 MR. BLAIR: Dave Blair, the chief pilot for safety at
10 Sikorsky.

11 MR. KIM: Paul Kim, chief pilot for PSA Airlines.

12 CW5 JACOBY: CW5 Jacoby, brigade standardization officer for
13 the U.S. Army Aviation Brigade.

14 DR. BRAMBLE: Okay. Thank you, gentlemen. And, please
15 answer all questions to the best of your recollection. If you
16 don't understand a question, you can ask us to restate it, and if
17 you misstate something and want to correct it, just let us know.

18 You're entitled to have a representative of your choosing at
19 any NTSB interview. Did you want to have a representative for
20 this interview?

21 CW3 McKEOWN: No, I do not.

22 DR. BRAMBLE: Okay. Thank you. We'll get started. And can
23 you begin by stating and spelling your first and last name?

24 CW3 McKEOWN: Yep. Nathaniel McKeown. It's N-a-t-h-a-n-i-a-
25 l, McKeown, M-c-K-e-o-w-n.

1 DR. BRAMBLE: Okay. And with that, Mr. McKenny will begin
2 the questions.

3 INTERVIEW OF NATHANIAL McKEOWN

4 BY MR. McKENNY:

5 Q. All right. Thank you for coming. Could you just give us a
6 background of your experience?

7 A. So, I have roughly 1400 hours all helicopter time. I've
8 flown in Germany as my first duty station, then went to Fort Riley
9 after that. I've been in the 12th Aviation Battalion for about a
10 year and a half flying in that local area.

11 Q. Okay. And, your current job and responsibilities?

12 A. I'm currently a standardization pilot for Bravo Company.

13 Q. And what does that entail, those responsibilities?

14 A. Advising the commander on helping him manage his ATP, aircrew
15 training program.

16 Q. Okay. And as a stans pilot for Bravo Company, you instruct
17 other instructor pilots?

18 A. Yeah, that's right.

19 Q. Okay. And specifically when you're doing instructor pilot
20 training, what does that involve?

21 A. So we have the aircrew training manual for the UH-60 that we
22 are ensuring that the standards are being taught. There's
23 different annexes in there for instructors and making sure that
24 we're following those and the additional Army regulations and FAA
25 regulations.

1 Q. And you fly with the pilots in training for the instructor
2 training?

3 A. I do, yeah.

4 Q. All right. So for the day of the mishap, could you just go
5 through your day for us? Like what you did, what time you were
6 there and stuff.

7 A. Yeah. The day of the mishap, I wasn't flying. So I came in
8 at around 09. I was mostly doing records and paperwork that day
9 since I wasn't flying.

10 Q. Okay. And what time did you head out of the office and back
11 home?

12 A. I can't recall specifically. Probably sometime around 1600,
13 1700.

14 Q. Okay. During that day, did you have any interaction with the
15 accident crew?

16 A. I did not.

17 Q. Okay. And are -- but, of course, you know the accident crew?
18 You know the individuals?

19 A. I do.

20 Q. Okay. Have you ever flown with those individuals?

21 A. I have.

22 Q. Okay. Can you give us your impression of each one of them as
23 to their flying capabilities and professional performance?

24 A. Yeah. So with Mr. [REDACTED] he was a good pilot, instructor
25 pilot, professional. He had prior experience flying with A-CO

1 (ph.) and he knew the local area pretty well when I was flying
2 with him. As far as Captain [REDACTED] I had never flown with her
3 before. We've had interactions, very smart professional, but I
4 can't speak to her flying abilities because I never flew with her.
5 As far as Staff Sergeant [REDACTED] he was the SI, the
6 standardization instructor for B Co when I first arrived in the
7 company. Very knowledgeable, very professional as well. He ended
8 up becoming a platoon sergeant in the company.

9 Q. Okay. Operationally, you -- have you flown the route, Route
10 1 to Route 4 transition past the DC Airport at night with NVGs?

11 A. I have.

12 Q. Can you just kind of describe the flight, that segment of a
13 flight profile that you would expect to experience or lead?

14 A. Yeah. So you're flying 200 feet or below because there's the
15 max altitude there, and you're flying along the eastern coast or
16 side of the river. Other than that, there's a high traffic area.
17 There's helicopters and planes in the area there.

18 Q. What's your typical interaction with tower through that area?

19 A. So it differs. Sometimes they'll clear you well in advance
20 for your entire leg of your flight which consists of anywhere from
21 10 to 15 minutes worth of flying. And then sometimes when it's a
22 little bit busier, they'll control you in smaller segments via the
23 mandatory, compulsory reporting points.

24 Q. Okay. Have they ever instructed you to fly behind an
25 aircraft or move behind an incoming commercial airliner?

1 A. Not on an approach.

2 Q. Pass behind.

3 A. Not in that -- no, not like that.

4 Q. Have you ever had any close calls in that area with other
5 aircraft?

6 A. I have not, no.

7 Q. Have you ever been in a situation where you've had incoming
8 commercial aircraft pass over you as you were going through that
9 transition?

10 A. Yes, that would happen originally --

11 Q. What typically is the clearance between you and that other
12 aircraft --

13 A. Anywhere from 500 feet or more.

14 Q. Okay.

15 A. And not on that specific Route 4 leg of the flight. Usually
16 that's on other parts of the routing structure, the helo routing
17 structure for DCA. They don't typically fly directly overfly us
18 on that route because they're landing 19-01 going in there. So
19 they don't overfly us particularly on that portion.

20 Q. All right. And, you've done that route with NVGs?

21 A. I have.

22 Q. Okay. Do you have any difficulty using NVGs through that
23 area?

24 A. Sometimes the cultural illumination can make it difficult to
25 see with NVGs on. We typically get briefed for the capability of

1 removing the NVGs if we have to if the cultural lighting is too
2 great or if it becomes a hazard.

3 Q. Do the NVGs ever wash out like other aircraft lights like dim
4 so you can't really tell if there's an aircraft lighting up ahead
5 or it blends in with the ground lighting?

6 A. So that could be a possibility, yeah. They're just
7 intensifying the light essentially and the capabilities of the
8 NVGs. If the light is too intense, it automatically dims the
9 lighting.

10 Q. What point will you decide to go unaided?

11 A. It's a judgment call on the crew. If it's too hard to
12 differentiate between city lights and aircraft lighting, different
13 colors. So you can't see, you can't discriminate color under
14 NVGs. But, that can help you identify aircraft at night. So,
15 that would be a time where I wanted to see the different colors.

16 Q. Is that an individual crew position choice or do you decide
17 like if one decides they're going unaided, the whole crew goes
18 unaided? Or does one pilot say I need to go unaided, and they
19 decide to remove the NVGs but the other crewmember leaves them on?

20 A. If it's a crew, then they're going to be under the same mode
21 of flight with the goggles or not.

22 Q. Okay. So the entire crew either has them on or they don't.

23 A. Yeah.

24 Q. And then who makes the decision when to take them off?

25 A. Ultimately it's the pilot-in-command.

1 Q. If the second pilot, the copilot was having difficulty and
2 said something like, you know, I'm having problems seeing with my
3 NVGs, would that be a cue to the pilot-in-command to maybe go
4 unaided or --

5 A. Yeah. The pilot-in-command would have to take that into
6 account, and make a decision based off of the situation.

7 Q. Okay. Yeah.

8 MR. McKENNY: I don't have any more questions right now.

9 BY DR. BRAMBLE:

10 Q. Okay. In the 3 days or so before the accident, did you have
11 any interaction with any of the accident crewmembers?

12 A. I did. The night before the accident, I got done flying with
13 the National Guard and pretty much everyone else had left the
14 office but I saw Captain [REDACTED] there. She was planning for her
15 flight for the next night.

16 Q. Planning for the accident flight?

17 A. Yes.

18 Q. Okay. What time was that?

19 A. That was approximately 1800.

20 Q. Okay. And you saw her in the planning room?

21 A. Yeah, in the planning room.

22 Q. Okay. Did you have any conversation?

23 A. Just said hi. That's about it.

24 Q. How did she look?

25 A. Normal.

1 Q. Okay. Did she express any concerns about anything?

2 A. No, we didn't really talk. We just said hi, and I had some
3 work to do, some paperwork to do and she was busy planning. So.

4 Q. Okay. Did she appear alert?

5 A. She did.

6 Q. Okay. Any -- either of the other crewmembers, did you run
7 into them in the 3 days before, [REDACTED] or [REDACTED]

8 A. Not that comes to mind really. Potentially with Mr. [REDACTED] I
9 can't remember if it was Monday or the Friday prior, he was
10 teaching ACT, aircrew coordination training for the company.

11 Q. Were you in that class?

12 A. I was not in the class, but it was in the same office.

13 Q. Okay. How did he appear?

14 A. Normal.

15 Q. Okay. And how many times would you estimate you had flown
16 with each of those three crewmembers?

17 A. With Mr. [REDACTED] maybe two times, and I had never flown with
18 Captain [REDACTED] And then as far as [REDACTED] maybe a dozen times or
19 so.

20 Q. Okay. Was [REDACTED] usually pretty on top of spotting traffic
21 when you flew with him?

22 A. Yes.

23 Q. All right. When you're flying those low altitude routes on
24 the 1 to 4 segments, do pilots ever use partial automation to
25 control altitude or is it fully manual?

1 A. So, in the UH-60 Lima, we don't have additional flight
2 director capabilities for that.

3 Q. Do you know if it's done in the Mike model?

4 A. In the Mike model, they may or may not. I'm a Lima pilot
5 here in the 12th Aviation Battalion.

6 Q. Okay. And, if you had a near miss like a near midair
7 collision in the DC area, how would you report that as a safety
8 issue?

9 A. If I had a near miss, we report it to our safety officer
10 company and the battalion safety officer, and they'd report it up
11 appropriately.

12 Q. Those are two different individuals?

13 A. Yep.

14 Q. Okay. So you're report it to both of them?

15 A. So to the company safety officer and if they thought it was
16 warranted, we'd go to the battalion safety officer or they would
17 be the liaison so to speak to get it to the battalion.

18 Q. Okay. Have you ever had to do that?

19 A. I have not.

20 Q. All right. Are you aware of any major significant life
21 events in the lives of either of the three crewmembers in the last
22 year that might have been creating significant stress for them?

23 A. Nothing that would create significant stress comes to mind.
24 I know that [REDACTED] had a kid about a year ago but other than that.

25 Q. Okay.

1 DR. BRAMBLE: All right. I think that's it for me. Mark.

2 MR. WARD: Mark Ward, NTSB.

3 BY MR. WARD:

4 Q. What's the work schedule there like? Are you guys working 5
5 days a week, 6 days a week, 7 days a week?

6 A. Usually 5 days a week.

7 Q. Five days a week. How many hours per week?

8 A. So it depends but no more than 12 hours a day.

9 Q. Typical Army weekends, you're off on Saturday, Sunday, or
10 whatever your schedule is, you're off?

11 A. For the most part, yes. Occasionally, we have duty on the
12 weekend but it's pretty rare.

13 Q. Are you required to fill out any kind of duty tracker in the
14 flyer management log or --

15 A. No.

16 Q. Is there a history of any kind of near misses around the
17 corridor?

18 A. Not that I'm aware of.

19 Q. What are the altitude restrictions for that Route 1 and 4?
20 Where the accident happened, what's the altitude?

21 A. So 200 feet maximum.

22 Q. What's the tolerance for that 200 feet?

23 A. That's a good question. I don't know exactly the tolerance.
24 I just know that's the max altitude. So you're not to go above it
25 at all really.

1 Q. So as a standardization pilot, when would you bust somebody
2 if you're flying with them what altitude you'd see and finally go,
3 hey, you've busted an altitude here?

4 A. Anything above 200 feet.

5 Q. So 205, 210, obviously we're human, but there is no
6 tolerance. Is that correct? 200 feet's the max.

7 A. That is the max altitude, yes.

8 Q. Is there a minimum altitude you guys can fly through that?

9 A. So with our SOP, it's within 100 feet of the maximum
10 altitude.

11 Q. Any issues with holding that kind of tight parameter of 100
12 feet going through that corridor under NVGs while looking for
13 traffic and managing your cockpit through that area?

14 A. It's a dual pilot aircraft. So it's not that difficult to be
15 able to do that. One person's on the flight controls maintaining
16 their altitude and airspace surveillance and there's also other
17 crewmembers there to help with airspace surveillance.

18 Q. Any difficulties locating traffic when ATC is pointing them
19 out to you under NVGs going through that corridor?

20 A. There could be just because of the high volume of traffic.
21 You have helicopters and airplanes and typically in DCA there's
22 five aircraft lined up on approach at any time. So.

23 Q. Are there multiple airports with airplanes lined up and
24 landing in that area? So if you were looking for an aircraft,
25 would you almost be competing trying to identify which ones are

1 landing at DCA as opposed to is there another airport closer or in
2 the same vicinity that you might see?

3 A. I don't think so.

4 Q. Okay.

5 MR. MILLER: Eddie Miller.

6 BY MR. MILLER:

7 Q. The question I was going to ask was, have you ever left over
8 the Hains Point going from north to south on Route 4 and had the
9 tower point out that there was traffic going into runway 33?

10 A. I've never seen that, and the only other time I saw it was
11 doing a tower tour. We were in the DCA Tower and they landed 3-3.
12 Other than that, I've never seen them land 33.

13 Q. Okay. Can you tell me like if I'm flying with goggles and
14 I'm looking out and there's an object at my same level and it
15 seems to be not moving, how would you scan for a -- point
16 something out straight ahead at the same level, how would you scan
17 for that to see movement to see if you're coming or going or --

18 A. I'd look under my goggles. You don't have to take them off.
19 You just peer underneath them essentially.

20 Q. Okay. I think there's a question here on mission planning.
21 How much planning goes into like timewise for an APART checkride
22 for like -- with this mission here, where Captain [REDACTED] was
23 getting ready for? Like how much prep times goes into that before
24 it actually -- you go out to the flight line and execute it?

25 A. So it depends on the day APART. They vary. It could be

1 anywhere from -- from the instructor's side, maybe 3 or 4 hours.
2 The majority of the planning is on the evaluatee that's doing that
3 -- that's getting evaluated and that could take 10 hours, just a
4 rough estimate.

5 Q. Usually done the day before?

6 A. Typically it's done over the course of a week, and it could
7 be possible to be doing it the day before.

8 Q. Okay.

9 A. Maybe not the entirety of that planning, but finishing up
10 some touches, looking at changes due to NOTAMs or weather that
11 might have affected the plan and those things have got to change.
12 So.

13 MR. MILLER: That's all I have for right now.

14 DR. BRAMBLE: Dave.

15 BY MR. BLAIR:

16 Q. Okay. Thanks for being here. Appreciate it. You've flown
17 in other units before as you mentioned. How does 12th Aviation
18 Battalion compare to others as far as organizational culture?
19 Would you say it's very proficient, really professional or less
20 than average, medium, higher than average?

21 A. I think it's very professional. The majority of the
22 crewmembers are senior crewmembers. We don't get a lot of junior
23 crewmembers. So that adds I think to the professionalism in the
24 unit.

25 Q. Okay. Perfect. How common is it to fly with CEFS tanks for

1 any mission around? How often are they installed in the aircraft?

2 Does that vary company to company or --

3 A. Yeah, I think it would vary company to company. I couldn't
4 give you a really good answer to that.

5 Q. Yeah, ballpark like half the aircraft are fitted with it, 1
6 in 10, I mean just a ballpark. How often do you fly with CEFS?

7 A. Maybe 2 of 8. That's a ballpark number.

8 Q. Okay. This is not meant to be a gotcha question. Have you
9 ever hear of ASRS, Aviation Safety Reporting System?

10 A. I have not, no.

11 Q. Okay. All right. Good enough.

12 DR. BRAMBLE: Paul.

13 BY MR. KIM:

14 Q. When and how do you set the altimeter setting?

15 A. Typically for a given altimeter setting, when we're talking
16 to the tower, will give us an altimeter setting, you adjust it.
17 It's a manual adjustment by turning the knob and changing the
18 Kollsman window, the altimeter Kollsman window.

19 Q. As soon as you check in with tower, tower provides you with
20 an altimeter setting?

21 A. Yes, every time, yeah.

22 Q. And that's different from the approach?

23 A. Approach also does that.

24 Q. So any time you switch frequencies?

25 A. Yep.

1 Q. Okay.

2 A. Tower also does that whenever we get up with them to fly the
3 helo routes.

4 Q. Do crews ever get reports or feedback of any close traffic
5 conflicts after their flights have been times in the future of its
6 flight?

7 A. I haven't heard of any near misses in my battalion.

8 Q. But there's no official means of any kind of communication
9 that pilots would be aware that they might have experienced a
10 close call during the flight afterwards at any point?

11 A. So if it was reported up, if there was one, then it would get
12 reported through the safety channels. We have battalion safety
13 stans meetings, that that would be addressed, and if it was
14 something that was pertinent -- not pertinent but time sensitive,
15 they would push it out immediately.

16 Q. Okay. How much room would you say there is for individual
17 styles of flying or piloting?

18 A. I think little based off of our routing structure. I mean
19 you're not going to vary much doing that.

20 Q. In terms of the stans eval flight, can you comment on how
21 that might differ from like a typical normal flight that isn't
22 training or eval?

23 A. Yeah. So the NVG standards flight evaluation, they're done
24 on it's supposed to be scenario based in accordance with our
25 aircrew training manual, typically focused on mission related

1 aspects. So that could change -- that could differ based off of a
2 regular training plan where you're focusing on instrument flight
3 or something else.

4 Q. As -- with the IP during the eval flight, is it normal for
5 them to be communicating with the pilots more so or are they more
6 like fly on the wall and just observe unless they have to, you
7 know, interrupt that there's a safety issue where they need to
8 step in?

9 A. Yeah, there's typically a competent copilot and if there's
10 ever a safety consideration or issue, like then they stop the
11 evaluation and handle whatever safety issue it is.

12 Q. So they would act like a normal pilot dutywise, just
13 everything's normal, but they're observing -- sorry. That's more
14 of a statement. I redact that. For your routes, are they more
15 like a preloaded cookie cutter and crews can just select one or
16 the other or are they kind of -- do they personally pick out where
17 they want to fly?

18 A. They personally pick out where they want to fly based off of
19 the mission. If they're flying on the helo routes, it's pretty
20 straight forward because they're dictated routing and altitudes.

21 Q. And, my last question is what is your personal approach to
22 setting the high and low altitude law while transiting Route 1 and
23 4?

24 A. I don't make any additional adjustments on my altitude.

25 Q. Would it -- is there like a default setting that it would

1 start with?

2 A. 80 and 800.

3 Q. Got it. Thank you.

4 DR. BRAMBLE: Nick, nothing?

5 CW5 JACOBY: No, sir.

6 BY DR. BRAMBLE:

7 Q. Is the cultural lighting particularly challenging in the
8 vicinity of DCA if you're transiting the Route 4 low altitude
9 helicopter route?

10 A. It depends. I guess it changes based off also the ambient
11 lighting outside, but sometimes it can be.

12 Q. Okay. Where is it the brightest? Like is it bright toward
13 the airport, toward the east side of the river, north of that area
14 toward the city or south of that area, down the river?

15 A. I would say north of that area.

16 Q. Okay. Where would you expect to -- would you expect to
17 encounter more difficulty traveling up or down the river if you're
18 using NVGs in terms of having bright cultural light sources that
19 create problems?

20 A. I think northbound. It would be up the river would be more
21 difficult.

22 Q. All right. And if traveling south on Route 4 there past DCA,
23 do you think you'd be able to keep the night vision goggles down
24 or would they be overpowered by lights headed that direction?

25 A. I guess it depends on a multitude of factors. One, it could

1 be the type of NVGs you're wearing, and based off of the amount of
2 lighting, like I said ambient lighting that's surrounding the
3 area.

4 Q. Okay. What would the difference be between the white and
5 green phosphorus displays?

6 A. So, the white phosphor goggles, they tend to make things a
7 little bit brighter than the green phosphor, and they have a
8 tendency to wash out with high ambient lighting versus the green
9 that don't have that characteristic.

10 Q. Okay. Do you use the ForeFlight traffic display sometimes
11 when you're flying those low elevation routes?

12 A. Yes.

13 Q. Okay. Where would you, where would you use them if you're
14 transitioning from 1 to 4 or where would you reference that
15 ForeFlight display?

16 A. As the pilot not flying the aircraft, I'd have that up and be
17 monitoring it periodically throughout the entire flight to look at
18 ADS-B traffic in the area.

19 Q. Would you also do that if you had NVGs on?

20 A. Yes. Yeah, because you're not viewing things inside of the
21 cockpit with NVGs. You look underneath your goggles in order to
22 see instrumentation like an electronic flight bag.

23 Q. Okay.

24 DR. BRAMBLE: All right. I'm going to pass things on to --
25 Mark, you got anything?

1 BY MR. WARD:

2 Q. One question. Is there issue with glare from using the iPads
3 and NVGs on the wind screen?

4 A. No, and we have a NVG compatibility test that we do to ensure
5 that there's no internal lighting that interferes with flight.

6 MR. WARD: All right. I've got no further questions.

7 DR. BRAMBLE: Eddie.

8 BY MR. MILLER:

9 Q. I've got one. Where do you -- which leg or where do you
10 prefer to have your mini iPad with the ForeFlight on it?

11 A. So I wear my -- I do have a mini iPad. It's on my left leg.
12 I typically wear -- that's where I wear it.

13 MR. MILLER: Okay. No other questions.

14 DR. BRAMBLE: Dave.

15 BY MR. BLAIR:

16 Q. Quick follow up. Hey, what's the magic to 80 and 800 feet?
17 Do you know what the reason for that is? That seems to be a
18 default. We've heard that before. Why?

19 A. That's what's in our dash 10 as far as like setting the
20 altimeter, the radar altimeter.

21 Q. Okay.

22 A. It's in the checklist.

23 MR. WARD: It's in the checklist. It's an old school.
24 That's where -- I didn't mean to cut off but that's --

25 UNIDENTIFIED SPEAKER: Yeah.

1 DR. BRAMBLE: Okay. Paul.

2 BY MR. BLAIR:

3 Q. So I --

4 DR. BRAMBLE: Sorry.

5 BY MR. BLAIR:

6 Q. -- to follow on my question. Do you interpret that then as
7 they can't be reset from 80 and 800?

8 A. No, no, definitely not. And it would be a technique at that
9 point to adjust your radar altimeter based off of your altitudes
10 that you're flying.

11 Q. Okay.

12 A. I personally don't, and that's what I was referring to when I
13 answered that question previously.

14 Q. Good enough. Thank you.

15 DR. BRAMBLE: Paul.

16 BY MR. KIM:

17 Q. How quickly would a crew be able to go unaided and vice versa
18 in the middle of a flight?

19 A. Immediately.

20 Q. Is there any time adjustment for your eyes or anything like
21 that, any kind of -- anything that the crew would need to do to
22 transition between one or the other?

23 A. So, when you're flying NVGs, you're also flying night unaided
24 in a sense because picking up the colors and the different lights
25 and determining motion, you periodically look underneath your

1 goggles and you can see different details that you can't with your
2 goggles on. So, as far as a transition between NVGs and night
3 unaided, I don't think there's much of a delay or your eyes don't
4 have to like readapt or anything.

5 Q. Got it. Thank you.

6 DR. BRAMBLE: Okay. Nick?

7 CW5 JACOBY: No, sir.

8 DR. BRAMBLE: Got anything else?

9 MR. McKENNY: No, I don't at this time. No questions.

10 DR. BRAMBLE: You guys good?

11 MR. WARD: We're good.

12 BY DR. BRAMBLE:

13 Q. Okay. Is there anything that we haven't asked you about that
14 you think would be important for us to know about given our role
15 in investigating the accident?

16 A. Nothing that comes to mind.

17 Q. Okay. And any safety concerns you'd like to express or
18 safety recommendations or suggestions?

19 A. No, not at this time.

20 DR. BRAMBLE: Okay. All right. That being said, we'll call
21 the interview complete at 1620 Eastern Standard Time.

22 (Whereupon, 14:20 p.m. EST, the interview was concluded.)
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN AMERICAN
 AIRLINES JET AND ARMY HELICOPTER
 NEAR RONALD REAGAN NATIONAL
 AIRPORT, WASHINGTON, DC
 ON JANUARY 30, 2025
 Interview of Nathaniel McKeown

ACCIDENT NO.: DCA25MA108

DATE: February 1, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Kathryn A. Mirfin
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: BENJAMIN KLINGBEIL, Chief Warrant Officer 2

U.S. Army

Tuesday,
February 4, 2025

APPEARANCES:

WILLIAM BRAMBLE, Ph.D., Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

LAUREN STRATTON, Air Safety Investigator
National Transportation Safety Board

PAUL KEMP, Chief Pilot
PSA Airlines

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Benjamin Klingbeil:		
By Mr. McKenny		5
By Dr. Bramble		34
By Mr. McKenny		41
By Dr. Bramble		41
By Ms. Stratton		46
By Mr. Kemp		48
By Mr. Blair		52
By Dr. Bramble		54

I N T E R V I E W

(2:02 p.m.)

MR. McKENNY: All right. Today is February 4th, 2025. It is 14:02 Eastern Standard Time.

My name's Bill Bramble. I'm a human performance investigator with the NTSB. Van McKenny and I are leading the Operations and Human Performance Working Group for Investigation Number DCA25MA108 involving PSA 4352 and the 12th Aviation Battalion.

The NTSB's an independent federal agency. We're not part of the Department of Transportation or the FAA, and we have no regulatory or enforcement powers.

Our mission is to determine the probable cause of incidents and accidents, and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of the investigation's accurate and complete.

We'll be recording this interview so that it can be transcribed. After we receive the transcript, we'll review it for typos before it's included in the docket. If you wish to have a copy, you can request one from us. You'll have our contact info. We can provide that.

Now I'd like to have each of the group members briefly introduce themselves and state their organizational affiliation starting with Mr. McKenny.

1 MR. McKENNY: Van McKenny. Helicopter operations group
2 chairman, NTSB.

3 MR. KEMP: Paul Kemp, PSA Airlines, chief pilot.

4 MS. STRATTON: Lauren Stratton, NTSB and regional
5 investigator.

6 MR. BLAIR: Dave Blair, Chief Pilot for Safety at Sikorsky.

7 CW5 JACOBY: CW5 Jacoby, standardization pilot, U.S. Army
8 Aviation Brigade.

9 DR. BRAMBLE: Each member will have two opportunities to ask
10 questions; we'll be taking turns. And everyone's been instructed
11 not to interrupt the person whose turn it is to ask questions.

12 Please answer all questions to the best of your ability. If
13 you don't understand a question, just say so. If you don't know
14 the answer, say you don't know, and if you realize you misstated
15 something, feel free to correct it.

16 CW2 KLINGBEIL: Understood.

17 DR. BRAMBLE: You are entitled to have a representative of
18 your choosing present during this interview. Is there someone
19 you'd like to have as your representative?

20 CW2 KLINGBEIL: There is not.

21 DR. BRAMBLE: Thank you. Okay. Mr. McKenny will begin with
22 the questions.

23 INTERVIEW OF BENJAMIN KLINGBEIL

24 BY MR. McKENNY:

25 Q. Could you just please spell your full name, first and last

1 please?

2 A. Yes, sir. It's Benjamin Klingbeil, B-e-n-j-a-m-i-n.

3 Klingbeil spelled K-l-i-n-g-b-e-i-l.

4 Q. And your rank?

5 A. CW2.

6 Q. And your unit?

7 A. I'm with Bravo Company, 12th Aviation Battalion.

8 Q. Okay. And your current role, position, qualifications and
9 additional duties?

10 A. I'm currently a -- just a pilot, flying pilot in Bravo
11 Company. I'm also the battalion ALSO, the aviation life-support
12 officer, and then just a couple smaller additional duties.

13 I'm currently the hazmat and storm water monitor contact for
14 Bravo Company as well as the COMSEC custodian.

15 Q. Could you tell us what your total flight time is and then let
16 us know how much -- is just H-60 or H-60L and NVG time?

17 A. So I don't have exact numbers off the top of my head. I have
18 roughly over 400 hours, I think 407 hours total flight time.

19 I left flight school with around 130 hours. That was mixed
20 between the UH-72 Lakota and the UH-60 Mike, and then I came here.

21 All my flight time after that 130 hours is in a UH-60 Lima.

22 Q. Okay. NVG time?

23 A. I have a little over 100 hours.

24 Q. Could you just kind of run down your aviation background?

25 A. Yeah. So all my aviation time is in the Army. Before I put

1 my warrant packet in, I was satellite communications enlisted
2 member in the Army.

3 So outside of joining -- becoming a warrant officer, I have
4 no external aviation experience.

5 Q. Okay. How many years have you been flying?

6 A. I graduated from Warrant Officer Candidate School in 2022 so
7 roughly over 3-1/2 years.

8 Q. And how long have you been in this unit?

9 A. Two and a half years.

10 Q. Thank you. I'll transition to this next series of questions
11 which will be relating with your interaction with the accident
12 crew.

13 How well did you know each crew member?

14 A. I'll just start with each one individually.

15 Q. Sure. Yeah.

16 A. CW3 [REDACTED] he got to our unit roughly 6 months ago and became
17 our company instructor pilot. I interact with him on a daily
18 basis. His work area's in the same area as all the pilots for the
19 planning area so there's a lot of conversations in between myself
20 and him.

21 I have pulled duty for our unit's mission several times. It
22 doesn't include flying the aircraft. It does include being
23 assigned to one and running one up but never taking off.

24 And then I looked last, and I don't think I actually flew
25 with Mr. [REDACTED] but we were assigned as a crew together before.

1 Captain [REDACTED] when I got here, she was my platoon leader in
2 Bravo Company. She later moved on to become a battalion staffer,
3 and I have flown with her at least a handful of times.

4 Sergeant [REDACTED] recently became 2nd Platoon's platoon
5 sergeant. That's the platoon I'm assigned to. I have flown --
6 he's flown in the back with me dozens of times.

7 Q. So you typically would interact with CW3 [REDACTED] because you're
8 in the same office so would you say you interacted how often?

9 A. Probably at least twice a week.

10 Q. Twice a week.

11 A. Two to three times a week.

12 Q. For the full duty day?

13 A. When assigned on duty, yes. When not, just throughout the
14 day occasionally.

15 Q. Did you ever interact outside of work with him?

16 A. I have not.

17 Q. Okay. And how about Captain [REDACTED]

18 A. Besides like company organized events, I have not.

19 Q. I don't want to jump ahead too far. You said you flew with
20 Captain [REDACTED] a few times though, right?

21 A. I have, yes.

22 Q. Could you just kind of tell us about how those flights went
23 and how long ago they were?

24 A. Yeah. So the most recent flight, I looked back -- I keep a
25 little record of my own flight stuff, and I think it was in

1 September of last year. It was just an IFR flight. We took off
2 and flew IFR to an airport, did an RNAV approach and then came
3 back and did the ILS back into Davison.

4 Pretty routine, nothing out of the ordinary.

5 Q. So that was a like an IFR cross-country training flight?

6 A. Yeah, just a training flight.

7 Q. And then who was the pilot in command for that?

8 A. Captain [REDACTED] was.

9 Q. Okay. Any other flights with her that you recall?

10 A. I don't recall -- I know the dates of the other two I looked,
11 and it was like early last year, January, February timeframe, and
12 they were similar.

13 They weren't IFR training flights, I think I had written down
14 they were -- we did terrain flight down in the training area down
15 in Quantico. But very similar.

16 Q. Both of those were training flights, all of them were
17 training flights, no --

18 A. Just training flights roughly 2 hours, planned ahead of time,
19 approved and then executed.

20 Q. And she was the pilot in command for all of those?

21 A. Yes.

22 Q. Okay. How about any other interactions with the crew chief,
23 Staff Sergeant [REDACTED]

24 A. Staff Sergeant [REDACTED] like I said, probably too many times
25 to count or recall, just all -- we're relatively limited on crew

1 chiefs. They have to work a lot so you get to fly a lot with
2 them.

3 Recently, he became a platoon sergeant, I'd have to verify by
4 looking at the schedule, but I think he was flying slightly less
5 than he used to, still a lot, and he was just covering down in the
6 spots where the regular soldiers couldn't fill in.

7 Q. How'd you characterize him as a crew chief?

8 A. Very knowledgeable. I know from speaking to him that he had
9 aspirations to become a pilot one day, and I think his eyes
10 limited him from that. He couldn't pass a flight physical.

11 I do recall one time we were flying pretty straight and level
12 back to Davison and there wasn't a lot going on, and we asked him
13 if he wanted to take over the radio calls, and he did better than
14 we did.

15 He was very helpful, fairly knowledgeable. Yeah.

16 Q. How much does he communicate with the pilots during -- in
17 flight?

18 A. In flight?

19 Q. Yeah.

20 A. Regular -- if you're doing something wrong, he will tell you,
21 and you will know. Almost would give you too much information on
22 things especially during training flight. Very vocal.

23 He wasn't a quiet backseater. He didn't just sit there and
24 wait for us to do our thing. He was very -- he was very involved
25 as a crew member.

1 Q. Do the crew chiefs do any -- are they instructed to do
2 anything different than they normally would when there's being
3 like a stans/eval being done on one of the pilots?

4 A. No.

5 Q. They're not told to --

6 A. The only time -- there may be certain tasks, for instance,
7 like a goggle failure that you would -- and the instructor pilot
8 could take the crew chief aside and tell them when they want that
9 to happen or like a code word like, hey, we're going to have their
10 goggles fail at this point, help me out at that point.

11 But there -- there's no -- they acted the same as if there
12 wasn't an eval going on.

13 Q. Okay. So crew chiefs would conduct their duties as normal?

14 A. Identical.

15 Q. Identical?

16 A. Yes.

17 Q. They don't need to be instructed to do anything by the crew
18 to initiate their actions?

19 A. No.

20 Q. Did you have any interaction with the crew 72 hours before
21 the accident?

22 A. I was on duty Monday and Tuesday. I don't -- if I did, I'd
23 have to look. I maybe talked to Mr. [REDACTED] if he was at work. I
24 was there from roughly 5:30 a.m. to 17:00 in the afternoon.

25 We did go -- we did fly 3 hours both those days, and we were

1 up in Hagerstown most of the day.

2 And then I did have Wednesday off as a comp day for a week
3 before, it was like a Friday I worked that they wanted to give me
4 off.

5 Q. So you said --

6 A. I don't recall --

7 Q. -- you flew, but were you flying with him?

8 A. No.

9 Q. You had another flight with someone else those days?

10 A. Yes. So we were at work, but we left most of the day.

11 Q. So you said you never flew with Mr. [REDACTED] but you flew with
12 Captain [REDACTED] were any of those flights NVGs with

13 Captain [REDACTED]

14 A. I would have to look. I can tell you in a sec, if that
15 works.

16 I did fly an NVG flight for 2.1 hours on the 18th of January
17 last year with her. And then if there was anything else, it would
18 have been logged in CAFRS with Night Vision Goggles. I just don't
19 recall any other ones at this time.

20 Q. Do you remember anything about that flight with her?

21 A. I do not in particular. Nothing that I remember, no.

22 Q. Was it in-training flight?

23 A. Yeah. It was just a terrain flight, NVG training flight down
24 at either Quantico or A.P. Hill.

25 Q. Do you recall any quirks you observed when flying with her or

1 with the crew chief?

2 A. Just in general as a pilot, she was very knowledgeable,
3 applying those things probably not as good as she'd do it.

4 At no time did I feel like we were doing something, or she
5 was incapable of flying the aircraft.

6 Q. Hm-hmm. So I presume you've flown a number of times around
7 the D.C. area?

8 A. I have.

9 Q. Have you ever flown that Route 1 4 transition?

10 A. Dozens of times. Yes.

11 Q. Okay. What's the traffic awareness like crew wise for you
12 guys find those flights?

13 A. So generally speaking, if aircraft are landing 01 or 19, they
14 do get called out to us.

15 However, they're almost, I don't want to say irrelevant to
16 us, but there's almost -- it almost seems like they don't need to
17 call it out because they're not really in our way, if that makes
18 sense.

19 However, if they're landing at any other runway besides 19
20 and 33, I'm sorry, 19 and 01, exhibit [sic] 33 in particular, when
21 we're on Route 4, it does become more of a relevant thing to us.

22 I have held before waiting for traffic to land 33. It's a
23 lot less common that we have traffic landing 33, but I haven't had
24 any issues with flying Route 4 besides -- yeah.

25 Q. Can you describe each crew member that you've flown with

1 their performance compared to others with similar experience?

2 A. CW3 [REDACTED] seemed part and parcel with other instructor
3 pilots. He didn't -- on average with every other instructor pilot
4 that I deal with.

5 They're kind of, when you fly with them especially as a, like
6 a junior pilot, and so I was (indiscernible) the instructor,
7 right, they know a lot of stuff and most of them do.

8 So, yeah, I wouldn't say any -- either average or above
9 average as an instructor pilot.

10 I think we already talked about Sergeant [REDACTED] Above and
11 beyond. Probably the most knowledgeable and probably, for lack of
12 a better word, our best crew chief that we had in our company as
13 far as experience and just knowledge base.

14 And then Captain [REDACTED] as far as her peers as a staffer
15 aviator, not anything out of the ordinary.

16 Q. You said she was a staff aviator?

17 A. Yeah.

18 Q. Can you kind of explain that?

19 A. Yeah, no problem. So essentially the regular officers, the
20 non-warrants, they will be in the company level for their first
21 couple of years as like a platoon leader or an XO.

22 And then they'll be called to move up to battalion staff,
23 either they're working in the S3 shop or they're working as some
24 other capacity for the battalion.

25 Then they didn't -- instead of being with the companies, they

1 are now assigned to the companies to fly with them. The amount of
2 time they spend flying is a lot less because they have other
3 duties that take their time away.

4 Q. Do you think Captain [REDACTED] was getting the same amount of
5 flight hours as other staffer flight officers?

6 A. Just eyeballing, I'd just say yes. I mean, that's an easy
7 check if you just compare the -- in CAFRS to what they're flying.
8 I think they do their best to make minimums.

9 Q. Do the staff officers have problems making minimums?

10 A. I haven't really been privy to those, like, they didn't talk
11 about it around us, but I think that sometimes they do, depending
12 on what their job is.

13 Q. All right. You said you've flown the route, Route 1 to
14 transition 4, lots of times, can you estimate how many times?

15 A. I would say dozens of times, maybe anywhere from 25 to
16 50 times.

17 Q. So it's a pretty common training --

18 A. It is very common, yes.

19 Q. When you're flying these VFR routes and checking in with
20 DCA Tower and stuff, can you explain, like, how often or when you
21 change or adjust your altimeter setting or set your altimeter
22 setting?

23 A. Yeah. So the first time we make contact with DCA Tower
24 whether, just an example, coming from Davison, Davison Tower
25 releases us and tells us to contact National Tower.

1 When we do so, we tell them where they're at and everything
2 else. And then the reply is, you're approved or disapproved from
3 what we requested and then they give us the altimeter.

4 We immediately set it as to what National Tower gives us and
5 then as you're flying through the routes, most of the time, unless
6 there's a significant change that's given -- basically me,
7 personally, every time they say it to an aircraft, I'll change it
8 if it needs to be changed, but they don't directly tell us to -- a
9 new altimeter to our aircraft. It's more of just a listening and
10 changing it as necessary.

11 Q. When you check in with them and they give you, specifically
12 your aircraft an altimeter setting, do you read that back?

13 A. Yes. Read it back with our call sign.

14 Q. And then when you're setting the altimeter in the cockpit,
15 what's the procedure?

16 A. So for the Lima, there's the two pilots, the one on the left
17 side is, we say the co-pilot generally speaking; it's the co-pilot
18 seat. Then the seat on the right is the pilot seat. They're the
19 same, essentially the same seat. They both have the same
20 functions.

21 Both set their altimeter in their window and then the pilot
22 seat also sets the altimeter in the ESIS which is the backup
23 attitude reference.

24 Q. Is there any communications?

25 A. Yes. It's set -- you would say set right, set left.

1 So if you got an altimeter reading, say it's 2 9r 9r 2, I
2 would -- they would read, whoever on the radios, would read it
3 back to ATC and then internally, we would say, set right and
4 center, and then the pilot in the left seat would say set left.

5 Q. Okay. And does that happen that way every time, or is there
6 any times when you don't?

7 A. I'm sure there's been times it hasn't happened, but that's
8 the standard. You're supposed to verbalize that you've set it.

9 Q. So on the route coming from the north, when you check in from
10 Cabin John, can you kind of walk us through what the check-in's
11 like there?

12 A. Yeah. If you're not already in the helo routes, so let's say
13 you were coming from Great Falls somewhere, basically southeast
14 bound, ATC approach would change you over to National Tower.

15 You'd switch over and you'd say you're, say, two miles north
16 of Cabin John requesting, in this instance, Route 1, Route 4 to
17 Davison.

18 And they would say approved, or they say, they give you the
19 altimeter, then they would say, approved as requested and then you
20 read back the altimeter, your call sign and set it internally in
21 your aircraft.

22 Q. And then how does the crew coordination work as you proceed
23 down Route 1 to 4, what's the pilot on controls doing, what's the
24 pilot not on the controls doing?

25 A. So, when I fly, the pilot not -- if I'm not on the controls,

1 I'm verbalizing what the next step down is so 1,300 at Cabin John
2 and then I think the first step down, I'd have to 100 percent
3 check, but it's 700 at Chain Bridge.

4 By Chain Bridge, you have to be below 700 feet. It's pretty
5 common. So what I would -- if I'm not flying, I will stay next
6 step down is 700 feet by Chain Bridge.

7 I proceed down to every step down along the route.

8 Q. And how about traffic calls?

9 A. So traffic calls, we're all scanning as we go. ATC will call
10 out any relevant traffic to us.

11 The biggest thing we're looking out for is other rotary-wing
12 aircraft that would be on the same route as us.

13 So as ATC's talking to other aircraft, they might request a
14 route that we're on so we're all -- that kind of puts us, you
15 know, okay, they're going to come towards us. We're going to
16 probably expect a call from ATC to say, hey, there's traffic
17 Route 2.

18 Once we see that traffic, we will verbalize that to ATC and
19 then request visual separation.

20 If they do that, if they give that to us then we're able to
21 pass the aircraft that we've seen.

22 And like I said at the beginning, as far as the fixed-wing
23 callouts, it is called out to us. A lot of the times, we'll look
24 up, we'll see it and it will seem relatively not in our way.

25 I know in the past, the biggest reason for some of that stuff

1 is they're TCAS systems will see us, and they'll have to go around
2 so it's more of an inconvenience if we're in the way for them.
3 That had been an ongoing thing for years where the airliners kind
4 of didn't like us there because we pop up some alerts on their
5 aircraft. That had been known.

6 Q. Hm-hmm. What is -- so the pilot -- how does the radios, how
7 do you usually use the radios as far as who makes radio calls, you
8 know, between the two pilots?

9 A. So generally on a, just a regular flight, the pilot that's
10 not flying the aircraft will make all the radio calls.

11 That's a general practice. Now, if there's reasons --
12 especially on a training flight where they would maybe want you to
13 do both for a certain period of time, or if you're doing another
14 task, the instructor pilot could possibly do both to let you do
15 that task in the aircraft just to like spread the load out a
16 little bit.

17 But generally, pilot not flying will take the radios.

18 Q. Okay. And for the traffic calls, how does that usually work
19 in the cockpit between the two pilots?

20 A. So it's not just between the two pilots, the crew chief's
21 involved as well.

22 Let's say we get queried by ATC, there's a helicopter coming
23 Route 1 towards us or something, everyone's immediately looking
24 for that traffic. If we don't see it, generally, like within a
25 couple of maybe like 5 seconds, we'll report back to ATC,

1 searching for traffic so we're telling them we don't see it, we
2 know it's coming our way.

3 And then when we do see it, when one member sees it, they'll
4 point it out to the rest of the crew and then make the call back
5 to ATC saying that we see it and request visually to separate from
6 the aircraft.

7 Q. If one pilot sees it and the other one doesn't, will they
8 normally make the radio call anyways?

9 A. I wouldn't say normally. I'd say it -- maybe 50/50 depending
10 on the situation.

11 It's definitely happened where a pilot sees it -- especially
12 the pilot on the radios, if they see it themselves, they'll
13 probably make the call just because and then verbalize it to the
14 rest of the crew.

15 But normally, especially if there's -- if it's not busy at
16 all, you would definitely point it out to all the crew members
17 before you're telling the ATC that you see it.

18 Q. Okay. While you're on Route 4, it's a pretty narrow altitude
19 range --

20 A. Yes.

21 Q. -- how do you normally go about controlling your altitude?

22 A. You're just flying the aircraft. I personally fly maybe
23 50 feet low, aim for about 150 feet, that way if I am scanning
24 around, there's a slight elevation climb in the aircraft, I am
25 able to catch it before.

1 Once you starting getting any lower than like 120 feet, it
2 seems very low, and we try our best not to, like, disturb people
3 with the aircraft.

4 For instance, when you're flying over the Tidal Basin by the
5 marina there, like, you don't want to mess someone's sailboat up
6 so we try to, you know, it's a balance, right, you want to get low
7 enough that it's safe, but you also don't want to get too low that
8 you're causing problems for people.

9 Q. Hm-hmm. Is there a difference between flying that route on
10 NVGs and daytime --

11 A. Oh, for -- I mean, you're just --

12 Q. -- as far as your altitude keeping and stuff?

13 A. Not necessarily flying the aircraft. It's just with NVGs on,
14 everything's harder just because of your perception.

15 Q. What's your primary instrument you use for maintaining
16 altitude control?

17 A. Your altimeter.

18 Q. Do you ever use the rad out?

19 A. We do when we're doing terrain flight when you're, like,
20 coming into an LZ. But for flying in the helo routes, we use our
21 altimeter because that's the altitude that's the altitude that's
22 published (indiscernible).

23 Q. Do you use an iPad?

24 A. We do fly with an iPad. Yeah. Everyone flies with an iPad.

25 Q. Hm-hmm. And the software you use on it is?

1 A. Everyone has ForeFlight.

2 Q. Have you ever used the Stratus device?

3 A. I don't personally use it. It is available to us. Basically
4 we use it for additional situational awareness of aircraft.

5 Basically, you turn on the aircraft in ForeFlight, and then
6 it'll tell where they are just to help you out and stuff.

7 Q. Do you use that -- do you know if you use the Stratus on any
8 of the flights that you flew with Captain [REDACTED]

9 A. I did not.

10 Q. There's a scenario here a little bit, it's an easy scenario.

11 If you had a quartering tailwind 320, so you're heading
12 south, you have a quartering tailwind 320, 15 gusting to 25 on
13 Route 4, how would that impact -- how would you anticipate that'd
14 impact your control of the aircraft?

15 A. Just that straight level flight, I mean, you wouldn't feel it
16 too much unless it was mildly turbulent.

17 You might expect to be going faster than you thought, just a
18 little bit, maybe 10 knots faster than normal, but you wouldn't
19 really feel anything in the aircraft at that -- just flying
20 straight and level.

21 Q. If you had some gusts, how much variation of -- altitude
22 variation would you expect with gusts with a tailwind like that?

23 A. It depends on the aircraft and just the -- your altitude
24 won't be -- we don't have a -- so in the Lima Model, I'm sure you
25 guys are aware, we don't have a flight director so the altitude's

1 solely on the pilot to keep.

2 You do have trim which keeps the controls where they're
3 supposed to be, where you left them, but that doesn't necessarily
4 mean that the aircraft's going to stay at the altitude and air
5 speed that you put it towards.

6 So if your scan is slow and you're doing something else, you
7 could definitely get a slight climb, you know, a couple hundred
8 feet climb looking at something else and then notice later, oh,
9 I'm 50 feet high, let's come down. That's not uncommon.

10 Q. And what's normal airspeed you fly along that route?

11 A. In the helo routes, generally we -- anywhere from 100 or
12 110 knots, and it's common practice to slow down to maybe 80 knots
13 when you're flying, like, over the Tidal Basin just because it's a
14 lot of turns at that point.

15 Q. What's your understanding of where you're supposed to be
16 along that route as far as distance from the shore, like, how
17 close do you need -- can you get to the shoreline on the east
18 bank, and how do you know if you've gone too far to the river?

19 A. Generally speaking, looking at the helicopter chart, TCA
20 helicopter chart, you just try to fly the blue line essentially.

21 Now, obviously, you're not going to be perfectly on that blue
22 line, but we understand the reason we're so low there is we're
23 clearing space for DCA to land and depart aircraft.

24 Obviously we don't want to fly 200 feet over someone's house
25 on the shore, but just right off the shore is generally where we

1 fly.

2 There's a little, like, some pilots will fly a little further
3 out. There's like a dock, I don't know if you're familiar with
4 that. It's always off. The furthest that I've seen pilots
5 verbalize that they fly away from the shore is basically at the
6 end of that dock just to avoid people on it.

7 But most of the time when I fly, we split the dock in half.

8 Q. Split the dock in half?

9 A. Yeah.

10 Q. So if you're flying, you're in the left seat, you're looking
11 out the window, you're at 200 feet, where's the shoreline in your
12 field of view here?

13 A. Probably like 1:00 low.

14 Q. So like right underneath your left main landing gear?

15 A. Maybe a little further out than that.

16 Q. A little farther?

17 A. Yeah.

18 Q. When you're flying in the area, have you ever heard of
19 commercial traffic going around with a conflict with local
20 helicopter traffic?

21 A. I don't recall an incident where they called a go around
22 because of an aircraft was in the way. I'm sure it's happened,
23 especially when I was newer, and I didn't really comprehend all of
24 the radio calls.

25 But recently, I've not been in the helo routes when they call

1 the go around for a helicopter.

2 Q. How often do you see traffic landing on Runway 33 when
3 transiting Route 4 as compared to seeing traffic landing on
4 Runway 01?

5 A. So 01's extremely common, and we're used to 01. Probably
6 about a handful, maybe five times that I can recall they've told
7 traffic to land 33 that I remember while flying around.

8 It's not unexpected that that would happen and like I said
9 earlier, I have had to hold before for landing traffic on 33.
10 They held us to the south of 33. We were headed northbound when
11 that happened.

12 Q. When transiting Route 4 near DCA below 200 feet, have you
13 ever flown -- had an arriving aircraft overfly you for Runway 33?

14 A. For 33? No. I have not. Had them fly over for landing 19,
15 when we're basically flying by the Lincoln Memorial, but no
16 traffic flying over us besides flying under aircraft that are
17 landing 01 or 19.

18 Q. What's the distance between you and the other aircraft when
19 they're landing that runway?

20 A. It seems really far, like, it almost seems irrelevant to us.
21 I'd say at least a thousand feet or higher.

22 Q. So if the situation occurred where you did see a -- you're on
23 Route 4, and they were landing Runway 33 and a situation is
24 developing with another aircraft on that circling approach on
25 final there, what would you do?

1 A. I don't -- so as far as, like, if I was in their shoes on
2 that. If I saw that aircraft, there's no way I would have
3 proceeded forward.

4 Q. What would you do?

5 A. I would have requested holding or slowed down or one of the
6 two, especially if they told me to go behind it and it seems like,
7 I mean, if I had it in sight and go behind -- even going behind an
8 airliner landing, that's not a great situation for us.

9 So yeah, if they saw it, I mean, I don't think they would
10 have made the decision they did if they saw the aircraft.

11 Q. I think you already answered this, but I'll ask anyways.

12 When you are on Route 1 in the vicinity of Arlington Memorial
13 or the 14th Street Bridge, do you ever fly directly under landing
14 traffic on Runway 19?

15 A. I have, yes. There's a Pentagon transition as well and if
16 you're doing that, going from, like, either the Tidal Basin
17 towards the Pentagon, I have flown directly under landing aircraft
18 that were landing 19.

19 Q. And how does Tower clear you to do that?

20 A. They have us -- once again, point out the traffic landing to
21 us, and we tell them we see it when we do. And then we request
22 visual separation and then we fly well below that aircraft that's
23 landing 19.

24 Q. So is it pretty common for the pilots to request visual
25 separation other -- as compared to having Tower tell you to stay

1 visually separated?

2 A. Every time, every chance that we get, we're requesting visual
3 separation. The only time that we're not going to do that is if
4 Tower doesn't give us the option.

5 Q. How much vertical or lateral clearance would you be
6 comfortable with while on the helo routes there through D.C.?

7 A. Like lateral, like, between other aircraft?

8 Q. Yes, between other aircraft.

9 A. Are you talking about like helicopters or fixed wing?

10 Q. Right. So if they say you're under visual separation, you
11 say, request visual -- say approved, what is the most -- the
12 lateral clearance that you'd be most comfortable with for using
13 that criteria?

14 A. It depends on the aircraft. For other rotary-wing aircraft,
15 we basically do rules of the road.

16 We basically use the rivers so you're on the left side, I'm
17 on the right -- everyone goes to the right side from their
18 perspective and then passes each other, same altitude.

19 As far as the landing fixed wing, those are a little more,
20 like, it wouldn't be comfortable flying right under a landing
21 fixed-wing aircraft. That would cause us issues with their
22 turbulence.

23 Q. In that case --

24 A. So with an (indiscernible) if I had to pick a number, I would
25 be fine with a thousand feet above me.

1 Q. What about lateral clearance?

2 A. If I had to fly next to it at the same altitude?

3 Q. Or you got to -- they told you to pass by it somehow, like,
4 what's your lateral clearance that you'd want to try to avoid
5 that?

6 A. As long as they're high enough, I don't -- it doesn't matter.
7 But if we're at the same altitude, I definitely -- at least double
8 what I -- for a rotary-wing aircraft.

9 Q. Okay. Are you familiar with the Blackjack helicopters, call
10 sign Blackjack?

11 A. I am. That is the Coast Guard.

12 Q. Yeah. What are the common routes they have, and where do
13 they typically land in the vicinity of DCA?

14 A. So they're out of DCA, that's where they park their aircraft.
15 I believe it's on the southwest corner of the airfield.

16 There's a couple tracks transitions they call them that they
17 use in order to not disturb departing and approach aircraft into
18 DCA.

19 We don't normally use those routes. I've flown them before,
20 but they're basically essentially for rotary-wing aircraft to land
21 at DCA with the minimum disturbance to the landing and departing
22 traffic.

23 There's one that comes from Glebe and it's published on the
24 helo route chart. And then there's another one that they allow us
25 to use or is basically flying from the Pentagon and then you

1 basically follow the Metro station along the terminal and then you
2 would use that to land at the airport on the southwest corner.

3 Then there's also an over-the-top which is published plus or
4 minus 1,500, or at 1,500 feet, no more, no less.

5 Q. Is there any -- do you guys ever have any traffic
6 interactions with them when you're on those routes and going
7 through that area?

8 A. Just like I said, it's not really, we do -- I have done them
9 before just for familiarity, but it's not a common practice for us
10 to do those routes because it's --

11 Q. Well I'm talking about interaction with the Blackjacks.

12 A. Oh, okay. Just in general flying around?

13 Q. Yeah.

14 A. Yeah. A lot. They're just -- they fly around just like us.
15 They come to Davison often for training as well.

16 Q. All right. Okay. So Stans/Eval, for a night Stans/Eval, is
17 there like a typical thing you can expect when you're getting your
18 Stans/Eval, what you should do?

19 A. Yeah. It's spelled out in our ATM. There's a list of tasks
20 that are required to be performed. There's no particular order at
21 which they have to be done.

22 Just during your flight, you have to complete these tasks and
23 that's right out of the ATM.

24 Q. Is there, like, particular areas you guys do those tasks so
25 you know that you're probably going to go here and then you're

1 going to go the next place and then you can expect something else?

2 A. They try not to be predictable just to -- because then if you
3 know, you know, you want to be able to do those tasks anywhere you
4 go.

5 I'm sure that some instructor pilots have places that they
6 like to do certain tasks, but there's no fixed area unless it's
7 required to be at Davison for something like an EP or something.

8 MR. McKENNY: David, you want to show him the routes that we
9 -- okay. Let me see, I'll put it up on my iPad here.

10 (Asides.)

11 DR. BRAMBLE: Just be advised, Van, it's being transcribed.

12 CW2 KLINGBEIL: I don't know if this is exactly the route
13 they flew.

14 BY MR. McKENNY:

15 Q. This is, like, planned route that they file for. Obviously,
16 here is Davison. Does this route look --

17 A. And obviously, they're going this way.

18 Q. Yeah, they went -- they were doing a clockwise --

19 A. That seems kind of normal for our planning. I'm sure they
20 probably did either, like, pilotage or dead wrecking over to CGR
21 and then probably picked up the helo routes on the west side of
22 Dulles, flew past Leesburg and then over to, either took the river
23 over to Cabin John or took some other route through the helo
24 routes, switched over from Dulles Tower to National Tower and then
25 proceeded down Route 1.

1 Q. So this would be considered a fairly normal Stans check
2 profile?

3 A. Yes.

4 Q. Okay. Compared to other units you've been in, what is the
5 culture of this unit?

6 A. First aviation unit.

7 Q. This is your first aviation unit?

8 A. Yeah.

9 Q. Okay. Do you have a feel for what the reputation is of this
10 unit here?

11 A. I don't think it's anything out of the, like, we have people
12 that come from all kinds of units and bring their experiences and
13 it's, you know, every unit's different based on your personnel.

14 But there's -- as far as the duty goes, like the mission we
15 have, people are at work a little more than other places.

16 But I don't think it's anything astronomically different.

17 Q. All right. How about safety, how do you feel about the
18 safety culture in your unit right now?

19 A. It's pretty high. There's not very -- there's not any
20 appetite for, like, doing things unsafe. If you're found to do
21 something unsafe, you are immediately corrected.

22 Q. Can you recall of anything like that --

23 A. I had --

24 Q. -- any actions taken?

25 A. Official actions? I know there's been people

1 administratively grounded for breaking Stans rules until they've
2 determined the end of that.

3 Q. Hm-hmm. How about professionalism?

4 A. Very professional. We have a lot of eyes on us in general so
5 you feel like, you know, not in addition to being a professional
6 aviator, you know, we pick up VIPs, they see us, so there's a
7 little more of like, hey, you're being spotlighted, you need to be
8 doing the right thing.

9 Q. Do you feel like the unit is kind of a relaxed unit, or is it
10 kind of an uptight unit?

11 A. It depends on the month and the company and just how things
12 go. It ebbs and flows.

13 There are times when we have a lot more things to do, and
14 people get pretty, you know, I've been at work, this is my eighth,
15 you know, 12th day in a row at work.

16 And there's other times where it's a little more quiet.

17 Q. How's it right now?

18 A. So right now --

19 Q. Like right before the accident, how was it?

20 A. It was our busy, one of our busy months, but it wasn't
21 anything out of the, like, we weren't, we didn't feel like
22 pressured to be at work beyond what we were able to do.

23 Nobody wanted to quit if that's what you're asking.

24 Q. Well that's a good marker, you know, for sure.

25 How about your company and battalion leadership, how are

1 they, are they comfortable -- is the unit comfortable with them,
2 or is there any --

3 A. I think so. Our battalion commander's been here quite,
4 almost 2 years now, I think, if I had to -- that's just a guess
5 off the top of my head, but she's been here a while. She
6 definitely -- there's a routine. People understand the processes.
7 There's nothing, like, unknown that's happening.

8 I have, personally, had no -- I'm a battalion staffer when it
9 comes to the ALSE shop and anytime I've had interactions with her
10 where I needed things, I felt like it was dealt with properly.

11 We don't have a ton of interaction with Brigade, but they're
12 across the airfield if we need them. It's more like the senior
13 leaders interact with Brigade than the actual flight companies.

14 Q. Yeah. The aviators, they're confident in their leadership
15 there at the company level?

16 A. Yes. Yes, we are.

17 MR. McKENNY: I think that wraps up my list of questions,
18 Bill.

19 DR. BRAMBLE: Thanks, Van. Do you have any -- do you have a
20 reference for that figure that you showed him for the
21 transcriptionist, or do you want to call it something?

22 MR. McKENNY: It's a screenshot of the ForeFlight map of the
23 planned route.

24 DR. BRAMBLE: Okay.

25 CW5 JACOBY: We save those into Kiteworks too. It's PDFs.

1 BY DR. BRAMBLE:

2 Q. Van asked if you had flown with any of the accident crew
3 members under NVGs, and you mentioned that you had flown with
4 Captain [REDACTED] for an NVG flight last year for 2.1 hours in
5 January.

6 A. Yes.

7 Q. Have you flown with -- had you flown with her at night, any
8 other flights not under NVGs?

9 A. We don't typically, or very rare that we would fly at night
10 without NVGs on.

11 If we would, it would be briefed in our RCOP that we're --
12 and the reasons why.

13 During the transition period with the sun setting, there's a
14 little bit of latitude based on what the PC wants to do of when to
15 actually put the goggles on.

16 But once the sun's set and it's past goggle dark, we do put
17 the Night Vision Goggles on.

18 Q. Would you ever briefly flip them up during a night flight?

19 A. You would look around them if you needed to, but you would
20 keep them down as a crew.

21 Q. Okay. Was there anything that stood out as sort of being
22 unique or characteristic about the way that [REDACTED] or [REDACTED]
23 operated their flights?

24 A. No. Nothing unique.

25 Q. Van asked you about traffic awareness, and you said that when

1 aircraft are landing 1 or 19 and they called out, they're almost
2 irrelevant because they're so much higher than you.

3 A. Yes.

4 Q. But 33 in particular, or 33 in particular, becomes more
5 relevant because of the reduced altitude?

6 A. Correct.

7 Q. And you said you had held before waiting for traffic at 33,
8 was that just one time?

9 A. That I can recall, only once. We were northbound on Route 4
10 after the Wilson Bridge, and we held. There's some radomes, we
11 call them the golf balls, and ATC would have us hold prior to
12 those in Zone 3 essentially.

13 Q. You said it was a lot less common to be waiting for traffic
14 on 33 and that you hadn't had any issues flying Route 4 besides,
15 by issues, you mean potential traffic conflicts?

16 A. Yes. If they're landing 01 and you're on Route 4 to the
17 south, I think they're generally 1,500 feet above Wilson Bridge,
18 and that's when we would start our ascent up higher than 200 feet
19 at Wilson Bridge there.

20 Q. Okay. How many crew chiefs are there in B Company?

21 A. I'd have to count them. About half of the amount of pilots.

22 Q. Just a rough number is fine.

23 A. I'd have to look, 10 to 20, sorry.

24 Q. It's all right. Do you hear any other crew members comment
25 about unique characteristics or habits associated with [REDACTED] or

1 [REDACTED]

2 A. No.

3 Q. I was trying to follow the altimeter setting discussion.

4 I'd like to sort of go through that again but sort of refer
5 you to that route that we showed you.

6 So during that time, if you were to fly that route, at what
7 times would you expect to set the altimeter setting, and how would
8 you obtain it?

9 A. Every time you switch on that particular route, you would --
10 you're going through several, anywhere from like three to five
11 ATC-controlling entities.

12 Every time you switch, the new entity's going to give you an
13 altimeter setting which you'd go through that process of setting
14 all three of our places in the aircraft to put the setting in.

15 So leaving Davison, Davison Tower, and you'd get it from the
16 ADIS and you'd set it yourself. They'd give you information.
17 They might give it to you in addition to that so you say, I have
18 information Charlie. They might give you the altimeter anyways.

19 And then you'd set it, you'd leave and then in that
20 particular one, we're headed to the west, probably get up with
21 Potomac Approach of some sort on a frequency.

22 They will, once again, give us the altimeter setting. We
23 will change it. They may or may not have flown through Manassas
24 airspace in that scenario.

25 Once again, you're up with the tower at Manassas. When

1 you've made contact, they'll give you the altimeter setting, you
2 will change it and so on.

3 And I think they're over at -- is it Culpepper?

4 Q. Do you want to see the route?

5 A. Just the airport. There's no tower at that airport so you're
6 getting it from the AWOS so you're setting it yourself there.

7 And then once you leave that airport, you get back up with
8 some approach, similar situation. You get the altimeter setting,
9 change it, and then eventually you'll get up in that scenario with
10 Dulles Tower, and they'll have you -- I think they go through
11 Leesburg airspace as well if the tower was open at Leesburg, once
12 again, they'd give you the altimeter setting.

13 When you finally switched from Dulles over to National Tower,
14 you would get that altimeter setting again from Dulles Tower.

15 Q. Okay. And then when you switch to the tower, Washington
16 Tower, they would typically issue it?

17 A. Yeah. National Tower or Washington Tower, we kind of use
18 them interchangeably.

19 At first contact, they will always give you the altimeter
20 setting.

21 Q. Where would that normally occur coming from the north?

22 A. From there, depending on whether they took the helo routes or
23 the river --

24 Q. Let's say you're coming from the north and intersecting the
25 helo route at Cabin John?

1 A. So I would probably say, approach control would have you
2 switch over to National Tower, maybe 5 miles northwest of Cabin
3 John.

4 Q. And then they would issue it at that time?

5 A. Yes. Then you would switch, and you would prompt Washington
6 Tower where you are and your altitude and then they'd give you
7 your -- and then what you request.

8 Example would be, in this case, PAT 25 is 5 miles northwest
9 of Cabin John, a thousand feet, requesting Route 1, Route 4 to
10 Davison. And they would say, PAT 25, altimeter is 2 9r 9r 2,
11 proceed as requested.

12 Q. Have you ever had them not issue it?

13 A. Not in my memory, no.

14 Q. What would happen if they didn't issue an altimeter setting
15 when you checked in with Washington Tower, what would you do?

16 A. I would probably just continue using the altimeter that I had
17 already.

18 Q. And you mentioned one person sets two altimeter settings?

19 A. Correct. The person in the right seat sets theirs and also
20 the backup, it's called the ESIS.

21 Q. How do you spell that?

22 A. E S I S.

23 Q. Okay.

24 A. It's an acronym. I'd have to look it up for you.

25 Q. That's all right. Okay. And so the callouts would be -- so

1 you said they would issue it, you would -- whoever is on the
2 radios would read it back and then the right seater would say, set
3 right and center?

4 A. So once all the interaction between ATC happened internally
5 in the aircraft, when you get a chance, you would set your
6 altimeter to that setting and then you would say, set either the
7 position it was set, so right, center or left.

8 Q. Hm-hmm. Who would say it first?

9 A. It depends who -- if the person on the -- probably the person
10 not flying would say it first because when you're flying, you
11 might want to get in a better position to adjust it first.

12 Most likely -- there's no -- whoever sets it first says it
13 first.

14 Q. Okay. It's just that each person should call it out?

15 A. Yes.

16 Q. Okay. I wanted to clarify.

17 When proceeding down toward downtown on the helo routes, like
18 from the north, you said, if I'm flying, I'm verbalizing the next
19 step down. Did I get that right?

20 A. Yeah.

21 Q. Okay. So typically the flying pilot would verbalize, would
22 they say, like, 700 for 300?

23 A. Yeah. Just whatever it takes internally to communicate,
24 like, next step. They might say affirmative, we'll be down, it's
25 300 by whatever. Just however the crew's communicating.

1 Q. So somehow the other pilot would typically acknowledge --

2 A. More like understood or -- yeah. There's a constant, you
3 know, when you're communicating in the aircraft, you say
4 something, you make sure that they understand what you're saying.
5 It's a call and response essentially.

6 Q. And it's typically the flying pilot that calls that out?

7 A. It depends on the crew. If the -- I have flown -- I have
8 most of the routes memorized. I've been here for almost two, over
9 2 years so a lot of the times sometimes I'll do it.

10 Newer pilots will have to reference the map to see what the
11 altitude's going to be next if they don't have it memorized, or
12 just to reaffirm that what they have memorized is correct.

13 It all depends on the crew.

14 Q. Okay. Is there an incentive to make the call that you have
15 traffic in sight if you haven't acquired traffic yet?

16 A. No.

17 Q. You never seen that happen?

18 A. No. There's the -- like I said earlier, if we don't see it,
19 we maybe wait a little bit. Obviously, ATC's expecting a call
20 back from us.

21 If we don't see it, we'll wait a couple seconds, give us a
22 chance to try to find it, and then we'll -- if we don't see it, we
23 verbalize to Tower that we do not see it.

24 Q. And you would say?

25 A. Washington Tower, PAT 22, searching for traffic.

1 Q. Heading south on the 1 to 4 transition, would you tend to hug
2 the boardwalk at National Harbor or fly over Hains Point?

3 A. So you're -- as you go through from Tidal, like, right at
4 Hains Point there from the Tidal Basin?

5 Q. Hm-hmm.

6 A. So it depends on -- most people try to stay over the water.
7 I know it's depicted to say basically on the golf course side
8 depending on what kind of boats are in that bay that's -- as far
9 as laterally left and right, it's dependent.

10 But definitely closer to the golf course than the -- I think
11 the War College is there at the end. There's a bunch of fancy
12 houses that we're not supposed to fly by.

13 MR. McKENNY: Can you point out the golf course and the
14 marina that you guys are talking about?

15 CW2 KLINGBEIL: Yeah. So the marina's basically right up
16 here and then the War College is on the tip of the peninsula here,
17 and the golf course is on the peninsula in between DCA and the
18 mainland there.

19 MR. McKENNY: Okay. And so you say you try to stay on the
20 golf course side?

21 CW2 KLINGBEIL: Yes. Closer to the golf course than the
22 marina and the War College.

23 BY DR. BRAMBLE:

24 Q. And just to clarify, by flying over the water, you mean the
25 water east of Hains Point?

1 A. Yes. We do not go, you do not go on the other side of the
2 water closer to the airport. That is not authorized or allowed.

3 Q. When Van asked you about how much altitude variation you
4 might get if you had a quartering tailwind headed south on Route 4
5 of, say, 320, 15 gusts 27, or something like that, I think you
6 might have mentioned that if your scan was a little low, you could
7 get a climb of maybe a couple hundred feet, and you might look
8 down and notice, oh, I'm 50 feet high.

9 Can you just tell me if I got that right?

10 A. I don't think it would be a couple hundred feet unless your
11 scan was extremely slow, or you were very distracted. At that
12 point, the other pilot would probably catch it too.

13 Now at 50 feet, anywhere from like 50 to a hundred feet, if
14 you're flying, the other pilot might not catch it as well.

15 But anything higher than a hundred feet, you're -- the other
16 pilot is -- the pilot that's not flying is also scanning the
17 instruments, and they would probably catch that before you would
18 get that high.

19 Q. What would happen if, say, you're in that vicinity of Hains
20 Point, and you did get to 300 feet, what would the other pilot do
21 if they noticed it?

22 A. They would verbalize it. I've definitely been higher than
23 200 feet on that before with a pilot, and I would verbalize, I
24 would say, hey, you're 250 feet, descend. And they would say,
25 understood or correcting is a common verbiage.

1 Q. Have you ever seen the altitude get as high as 300 feet in
2 that area?

3 A. I have not. No. It's pretty emphasized to us to be below
4 200 feet on that -- along that route.

5 And like I said, most pilots don't fly it at 200. We fly at
6 probably 50 feet low, 150 feet.

7 Q. Most of the time --

8 A. Yes.

9 Q. -- in that area? Okay. At what point do you typically slow
10 to around 80 knots, kind of headed south?

11 A. If we're by ourselves, probably at Hains Point. Our heading
12 south, we'll speed -- once we're past Hains Point, you would speed
13 back up to either a hundred or a hundred knots, however you
14 planned your route to go.

15 But once you get to the Tidal -- if you're going northbound,
16 you probably slow down to 80 knots about at Hains Point.

17 Q. Okay. So you'd slow down prior to the Tidal Basin and then
18 after passing Hains Point, you'd speed back up?

19 A. Yes. And their scenario, yes. On the southbound, you'd
20 probably slow down as you make your left turn into the Tidal Basin
21 and then as you fly past the marina and then straighten out to go
22 southbound again, you would start -- you'd speed up again.

23 Q. All right. So you mentioned that going northbound, you had
24 to hold for traffic, one time for traffic approaching Runway 33.

25 A. Correct.

1 Q. Can you describe for me whether you initiated that, or the
2 tower initiated that holding?

3 A. That was initiated by the tower, and that would just be a
4 direct PAT 22, hold south of the golf balls or south of your
5 current position, or something like that.

6 Q. Do you have to get a clearance to hold?

7 A. We would need to tell Tower that we're holding.

8 I don't -- we're not allowed to, like, just stop flying
9 around because they're expecting us to go certain ways, and that
10 might mess up, like, sequencing of aircraft.

11 If they were expecting us to fly past an intersection in the
12 helo routes and there was another helicopter flying through there,
13 they might not want to, you know, they might think we're going to
14 be well past there by the time, but if we stopped and held it,
15 that would cause issues.

16 So any change from what we requested, we would need to
17 re-talk to ATC, the tower.

18 Q. But you would feel comfortable initiating the hold if there
19 is potential traffic conflict?

20 A. Yeah. If it seemed uncomfortable for -- and even like let's
21 say we didn't see, you know, there was multiple -- aircraft
22 holding somewhere and we didn't feel comfortable visually
23 separating from them, we could be like, Tower, PAT 25 is holding
24 south of helicopter traffic as it passed, or something like that.

25 Q. Let's say you're headed south to those Routes 1 and 4 and you

1 reach Cabin John, if you were flying with a pilot and they turned
2 right instead of left by mistake, what would you think about that?

3 A. It depends on the circumstances, I guess. If they're new and
4 they don't know the area, I might be like, hey, we're just going
5 the wrong way, the correct way's over here.

6 If they're very experienced you might think like, oh, they're
7 -- just keep an eye on them, they seem pretty tired or making, you
8 know, poor decisions, just focus up a little more for them.

9 Q. Would that seem like a highly unusual kind of thing, or would
10 that seem like something that might occasionally happen?

11 A. It's all dependent. It'd be dependent on the circumstance,
12 like, is it your 10th hour of the day, is it your, you know, did
13 we just get to work. It all depends.

14 Q. So basically it seems like you'd interpret it in terms of
15 whether think the person's tired or not?

16 A. Yeah, for sure. And you, I mean, you're working with them a
17 couple hours before you take off so you're seeing things from each
18 other.

19 Q. So let's say they're experienced and they made that mistake,
20 would you think that they likely were tired, if that was the case?

21 A. If it became like a chronic issue in the aircraft, like, I
22 felt like they couldn't function in the aircraft, I'd definitely
23 address it to them directly and then we'd determine from that
24 scenario what to do.

25 Q. But if an experienced pilot made that mistake, is that the

1 kind of mistake where you would feel like they must be tired to
2 make that mistake or that they could make that mistake otherwise,
3 if they knew the area well?

4 A. Anybody can mess up at any time. I mean, if it's a one off,
5 it's not really anything. People make mistakes.

6 Just like a pattern more that you'd be worried about.

7 DR. BRAMBLE: That's it for me. Thanks. Go ahead, Paul.

8 Oh, actually, Lauren, sorry. I need to give Lauren the
9 opportunity first.

10 MS. STRATTON: Thank you. I just had a couple.

11 BY MS. STRATTON:

12 Q. One, I didn't quite understand. You said Monday and Tuesday
13 you were gone to Hagerstown both of those days or just one or the
14 other?

15 A. Yes. I was gone both.

16 Q. Okay. And you also mentioned flying the blue line. Did you
17 put that on your iPad, are you flying it that way, or how are you
18 navigating that?

19 A. So we're flying most of the time in the helo routes. We have
20 the 128 Delta which is our GPS navigation equipment.

21 Most pilots probably fly by just memory. They know where the
22 points are in the helo routes so that you would fly the normal
23 routing.

24 Some pilots will put points into the GPS, but it only shows
25 you direct line to that point. It doesn't, like, show you how to

1 fly the route. There's no, like, moving map with it at all. It's
2 just like an arrow that points to that point, and it tells you how
3 far it is away.

4 People will use that to back up points, but as far as flying
5 the blue line, it's all from, like, what you know the map says as
6 you fly over that area.

7 Q. And then you said the only time that you wouldn't request
8 visual separation was if the tower didn't give it as an option,
9 can you explain what that means?

10 A. So if we -- so if the tower told us that there was traffic at
11 a location and we're -- and then just that's it. They tell us it
12 exists, this is where it's at. Then they're expecting us to look
13 for it.

14 If we can find it, we will always request visual separation.
15 If we can't find it, let's say we're -- we told them we're
16 searching for traffic, can't see it, then Tower might be like,
17 they're not seeing them, they're getting pretty close, they still
18 don't see each other, we're going to separate them ourselves and
19 not let them separate.

20 So they would tell us to go somewhere else or hold or
21 whatever it takes to keep us -- because if we can't see that
22 aircraft, ATC will make sure that they separate for us.

23 MS. STRATTON: And you already answered my last ones. That's
24 it.

25 DR. BRAMBLE: Okay. Paul.

1 BY MR. KEMP:

2 Q. You mentioned that you were -- you somehow knew that there
3 were some traffic conflicts that were causing issue with
4 airliners, them having to, that TCAS warning them or not, how did
5 you know that that was happening?

6 A. So the -- there has been talk, I think -- do you remember the
7 battalion academics a couple years ago, maybe it was like a year
8 and a half ago?

9 But they talked about changing the helo routes because of the
10 fact that sometimes the commercial airliners see us and they have
11 to do a go around, and they don't necessarily like us.

12 Not that we're, like, in danger of being a hazard to them,
13 it's just they're required to -- my understanding is some of the
14 airlines require aircraft to go around if there's certain alarms
15 in their aircraft to avoid that.

16 And then it becomes an inconvenience because now you have to
17 re-sequence aircraft into DCA.

18 I know there's been days where we've been -- we've requested
19 a route close to the airport, and the airport tell us no because
20 they're landing to the south, I think was the biggest one. If
21 they're landing to the south, they don't really like us to be
22 underneath the aircraft because they might have to do go arounds.

23 So it wasn't -- it was just talk to where like maybe minimize
24 -- there was talk about minimizing the amount of time you go down
25 that route.

1 Not to say that we don't practice going down that route
2 because we need to know the airspace, but maybe not just like
3 loiter in that area for fun or whatever.

4 Q. Can you explain what you meant by the airliners don't like
5 it?

6 A. So it was never directly told to me. I think it was
7 information from ATC towards 12th that was like, hey, is there any
8 way that you can fly less on the approach end or departure ends of
9 the airport because we're having to have these aircraft go around
10 a lot.

11 Q. Are the helo crews, would they have been made aware that the
12 aircraft would go around?

13 A. It was brought up at a battalion academics. I don't remember
14 the exact date, but there was -- it was just brought up to the air
15 crews like, hey, this is a thing that sometimes your aircraft gets
16 picked up on these commercial flights by their avoidance systems,
17 and they -- and you end up making them do a go around so do your
18 best to avoid that.

19 Q. Is that specifically during the flight that the helo crews be
20 aware of?

21 A. If they were -- there's nothing in the aircraft that would
22 tell us that we were an issue for an aircraft. We would not know
23 while flying.

24 Q. And Tower or ATC would not advise of anything?

25 A. I mean, besides the aircraft going around, like, that call

1 from the tower to tell or maybe, because we can't hear the
2 commercial pilots, but they would query to go, or they would tell
3 Tower they're going around. We would hear the reply from Tower
4 that they had to go around.

5 That's the only way we would know in flight that that
6 aircraft -- that we were an issue for that aircraft.

7 Q. Got it. How easy is it in flight to kind of halt or hold
8 when you see, like, a traffic conflict maybe kind of imminent, how
9 easy is it to perform the evasive maneuver or whatever that would
10 look like?

11 A. Yeah. We're in a helicopter. We can -- to slow down from a
12 hundred knots to something that you could do a pretty sharp turn
13 is relatively easy.

14 Q. How much distance would you say that maneuver would, you
15 know, use up?

16 A. It depends on the amount of inputs you put into the aircraft.
17 Most -- you're not putting, at 110 knots, you're not putting like
18 excessive -- or we don't normally put excessive amounts of inputs
19 into the aircraft.

20 It would take you normally, in like a controlled slow down,
21 like a hundred knots to zero, it would be a kilometer, that's
22 normal.

23 So I mean, something less than that would be well, more than
24 reasonable.

25 Q. Is it more typical to kind of do a holding pattern or a turn

1 when you try to --

2 A. Yeah. So whenever we hold in the helo routes, it'll be
3 either a right or left hand turn depending on which is less in the
4 -- the place that you're going to take up the least amount of
5 space basically. And you just do, like, a 45, anywhere from like
6 a 30 to a 45-degree turn to the left or right.

7 Q. In the case of, like, immediate traffic avoidance, evasive
8 maneuver, would that be a turn away, or would it be trying to just
9 stop?

10 A. I've never dealt with something like that. It all depends on
11 what the pilot determines is the safest way to go.

12 I mean, we could go up, we could go down, we could go left,
13 we could go right, whatever they felt like.

14 If I, I mean, if you were about to hit something, you
15 definitely would pick a direction, but there's no, like, you
16 always go down to the left. There's nothing like that.

17 Q. Within the D.C. airspace, it's not a whole lot of, I guess,
18 distance, are there any times that the altimeter setting was not
19 adjusted just because of the minor difference, let's say, .01 or
20 .02?

21 A. There was been, especially if I'm flying. If it's like a .01
22 in your VFR and maybe you're worried you're flying through the
23 Tidal Basin at 150 feet, me on the controls, I'm not going to
24 reach up and change it.

25 The other pilot would and then you would change it later as

1 needed.

2 MR. KEMP: Those were all my questions. Thank you.

3 DR. BRAMBLE: Okay. Dave.

4 MR. BLAIR: All right. You're almost there.

5 BY MR. BLAIR:

6 Q. You mentioned that Sergeant [REDACTED] was taking over the radio
7 calls, where was that, do you happen to remember offhand?

8 A. Yeah. It was actually on the way back from Hagerstown,
9 probably, maybe 6 months or so ago.

10 Yeah, we were just flying, we were up with ATC about, like,
11 3,000 feet, just straight level, and we offered, like, hey, you
12 want to take the ATC calls when they query us. He was like, sure.

13 Q. You also mentioned that Sergeant [REDACTED] was interested in
14 flying, but that wasn't possible for him because he --

15 A. I believe what he told me was something about his eyes made
16 him not pass his flight physical. So he was unable to become a --
17 get a, I think it's called Whisky 1 flight physical to be -- to
18 start the Army's process in trying to become a pilot.

19 Q. Do you know if he flew with glasses or not?

20 A. I'm pretty sure he had glasses. I don't know if he had to
21 fly with them. I couldn't answer that.

22 Q. Got it. All right. You also mentioned flying by the docks,
23 that was kind of like a standard --

24 A. Yeah. That's like an (indiscernible).

25 Q. Yeah, so which docks are we talking about, like up near

1 Watergate, or the, kind of Georgetown area?

2 A. It's like a big, long -- long dock with a slight T at the end
3 of it. I don't know -- if you had a map, I could point it to you.

4 Q. Up the north end of the route, south end?

5 A. It's like basically in between the Wilson Bridge and the
6 airport, like right after JBAB.

7 Q. Okay. So like Navy Research Lab probably NRL?

8 A. Yeah.

9 Q. At NRL?

10 A. It's pretty -- it's the longest dock, it's hard to miss.

11 Q. And it sticks out at (indiscernible) into the river.

12 A. Yes.

13 Q. Perfect. Thank you. That's helpful.

14 Do you know if at the battalion or at the brigade level if
15 anybody has ever, like you talked about training, come from ATC to
16 talk about, hey, by the way, you know, PAT, here's what you need
17 to know about the airspace that we're doing here, some of the
18 things that we're dealing with?

19 A. Yeah. From DCA, I don't recall anyone coming directly, but
20 within TAAB, our air traffic controllers that work in the tower,
21 they also work at the Pentagon, and they have come probably five
22 times or so.

23 I think they come annually, for sure, are required to, and
24 they just talk us through certain procedures and things that -- if
25 there's any changes or clarifications.

1 And I actually have had -- there was a soldier here that set
2 up a tour of the DCA Tower about a year ago, and we had been up
3 there. A small group of us went up there and were able to see how
4 things work, what stations there are, what they see, things that
5 are, you know, things that we can do to help them and vice versa.

6 That had been a contact. Not -- it was more like an internal
7 company thing. It wasn't like 12th Aviation, but we had talked to
8 them before.

9 MR. BLAIR: Okay. Those are my questions. Thank you.

10 DR. BRAMBLE: Okay. Nick.

11 CW5 JACOBY: No questions, sir.

12 DR. BRAMBLE: All right. Van.

13 MR. McKENNY: No questions from me.

14 DR. BRAMBLE: I don't have any either. Lauren? Paul.

15 MR. KEMP: No, sir.

16 DR. BRAMBLE: Okay. That being said, is there anything we
17 haven't asked you about, well, actually, let me ask you one
18 question.

19 BY DR. BRAMBLE:

20 Q. So that academics meeting you mentioned, how often do you
21 have those meetings?

22 A. They're monthly. Around the holidays, we kind of skip them
23 sometimes, but they're scheduled for monthly battalion academics.
24 All of the flight companies and personnel that are flying are
25 required to attend.

1 Q. Who leads them usually?

2 A. Battalion Stands.

3 Q. And this one, what's the estimated date on this one where you
4 discussed the TCAS stuff?

5 A. I'd have to look. I'd probably say at least over a year ago.

6 Q. Is there anything we haven't asked you about that, given our
7 role in investigating the accident, you think we should know?

8 A. As far as locating traffic under NVGs?

9 Q. No, just in general about --

10 A. I mean, that's the kind -- you guys didn't ask a ton about
11 that.

12 Q. Oh, well, great, yeah, let's talk about it.

13 A. One of the things that, especially at night when an aircraft
14 gets called out to us, we're not looking for, like, the silhouette
15 of a fixed-wing, we're looking for a light essentially.

16 And when you're flying, when you're looking for especially
17 fixed-wing traffic when you're queried by ATC for fixed-wing
18 traffic, they're lined up in the sky. You can see four or five of
19 them sometimes, very clearly, and it's hard to tell the distance,
20 but you can tell based on the sequencing that they're in.

21 So when we get, you know, at night, it's almost very easy to
22 find the aircraft because it's just a light, and we know where
23 it's going to be and it's up in the sky because we're really low.

24 There's just -- I don't know. A lot of people haven't talked
25 about that, but that just seems like it's something that's --

1 Q. So typically when you're asked to spot traffic by the tower,
2 it's going to be above you in the sky without distractor lights?

3 A. Unless it's a rotary-wing aircraft, yes.

4 Q. Okay. Just for the transcription just so they can catch
5 this, since we talked over each other, typically if you're asked
6 to spot them and they're in the sky, there aren't going to be
7 distractor lights around it?

8 A. Not for the fixed-wing inbound aircraft to DCA.

9 Q. Okay. If you were headed southbound on that Route 4 past DCA
10 and you had traffic inbound from the east and you're at a couple
11 hundred feet and they're at, say, 200, 300 feet, are there a lot
12 of lights out east of the airport on the Maryland side?

13 A. There aren't. However, if the light's small enough and it's
14 not moving very much in the air, you could definitely think that
15 that's an aircraft landing at [REDACTED]

16 Like I said, the distance is very -- it can be very
17 deceiving. You definitely see it, but it might -- especially if
18 it doesn't look like it's moving to you, it's either really far
19 away or it's not an aircraft.

20 Q. So you say the distance is deceiving. So when you say, when
21 you see a light for an aircraft that maybe facing you, how much
22 uncertainty do you have about how far away that might be?

23 A. So if there's no context, it's almost impossible to pick.

24 However, if the tower called out, there's an aircraft above
25 Wilson Bridge at 1,500 feet and you're like -- you look over and

1 you see three lights and they're kind of in like a descending down
2 to the right, obviously the one close to -- or the down to the
3 right is the one closer to you so you're using context to figure
4 out which aircraft is the one that they're trying to talk to you
5 about.

6 But it's very common to see multiple aircraft at night
7 inbound and outbound, or on either 01 or 19 especially when we
8 look up with goggles.

9 Q. It sounds like what you're saying is that the sequencing
10 helps you determine how far away --

11 A. It does, yes.

12 Q. -- if there's a line of aircraft?

13 A. Yes.

14 Q. Okay. When you look for those aircraft, are you typically
15 looking with -- through the goggles?

16 A. Yes, you would be. Yeah. You would not be able to
17 reasonably see -- especially like having to look under the goggles
18 upwards in front of you, that's not reasonable.

19 And it -- I don't think that would help you with distance
20 either because they're pretty far away at that point.

21 Q. Okay. If you have an RJ facing toward you in that area and
22 you look at them through the goggles, does it cause the goggles to
23 dim if you look at it, if it's (indiscernible)?

24 A. Depending on how bright it is. If they're far away, not so
25 much. If they were really close and you were, like, by their

1 landing light, you would definitely, like, if there's a lot of
2 light at once, the goggles become less useful essentially.

3 Q. Let's say they're half mile to a mile away and you look at
4 them through the goggles, and they're headed kind of your
5 direction, you just see lights, you don't see any --

6 A. It's not going to affect the goggles at that distance, like,
7 you're going to see a light, colorless light, whatever color NVGs
8 you have. Either it's green or white, depending on the -- just
9 whatever color you have.

10 Q. And you don't see an aircraft silhouette at night?

11 A. You do not. Not with the lights.

12 Q. Would you expect at that distance to see more than one light,
13 or just kind of one sort of --

14 A. A blob of light.

15 Q. Blob of light?

16 A. Yeah.

17 Q. Okay.

18 A. Because they're so close together, it's not going to --

19 Q. Do you find that the green versus the white phosphor NVGs
20 make it -- are easier or harder relative to each other to spot in
21 traffic?

22 A. We have both. We do have both. In the D.C. area with, like,
23 when you're downtown kind of by the Tidal Basin, near a lot of
24 lights, neither one is great. I'm kind of indifferent. But a lot
25 of pilots with, like, if it's really dark, they want white light,

1 the white goggles. If it's in the city, they do better with
2 green.

3 But I think that's just a preference.

4 Q. Is that sort of a -- is that a widespread preference?

5 A. I would say --

6 Q. In the unit?

7 A. -- it depends on the person. It's not like a -- I can't
8 speak for -- a lot of the pilots have only flown with green in
9 their lives because the white's relatively new.

10 So if you have an older pilot, they'll be used to green and
11 then, you know, change is a thing. They'll want green for certain
12 things and others.

13 Q. What's your preference when flying through downtown?

14 A. I don't care. I probably, if I had to pick one, I'd defer to
15 the white ones.

16 DR. BRAMBLE: Okay. I just want to go around one more time
17 to see if anyone else has follow ups. Lauren?

18 (No audible response.)

19 DR. BRAMBLE: Van?

20 MR. McKENNY: Have you ever -- well, I'm done.

21 DR. BRAMBLE: Okay. Paul.

22 MR. KEMP: No.

23 DR. BRAMBLE: Dave.

24 MR. BLAIR: No, sir.

25 DR. BRAMBLE: Nick.

1 CW5 JACOBY: No, sir.

2 DR. BRAMBLE: Anything else you'd like to volunteer?

3 (No verbal response.)

4 DR. BRAMBLE: Okay. Is there anyone else that you think we
5 absolutely need to speak with?

6 CW2 KLINGBEIL: I think -- not in particular. I don't know.
7 I'm sure you guys are going through the normal people. So, no.

8 DR. BRAMBLE: Okay. That's it. We will call this interview
9 complete at 15:31 Eastern Standard Time.

10 (Whereupon, at 3:31 p.m., the interview was concluded.)

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of Benjamin Klingbeil

ACCIDENT NO.: DCA25MA108

DATE: February 4, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: CW2 ADAM COFFMAN, Pilot in Command

B Company, Aviation Battalion

U.S. Army

Fort Belvoir, Virginia

Tuesday,

February 4, 2025

APPEARANCES:

WILLIAM BRAMBLE, Ph.D., Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

LAUREN STRATTON, Air Safety Investigator
National Transportation Safety Board

PAUL KIM, Chief Pilot
PSA Airlines

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of CW2 Adam Coffman:		
By Mr. McKenny		5
By Dr. Bramble		31
By Ms. Stratton		39
By Mr. Kim		40
By Mr. Blair		41
By Mr. McKenny		43
By Dr. Bramble		45
By Mr. Kim		47
By Dr. Bramble		47

I N T E R V I E W

(4:11 p.m.)

DR. BRAMBLE: Okay. Today is February 4th, 2025, and it is 1611 Eastern Standard Time. My name is Bill Bramble. I'm a human performance investigator with NTSB. Van McKenny and I are leading the operations and human performance working group for investigation number DCA25MA108, involving PSA Flight 4352 and the 12th Aviation Battalion.

The NTSB is an independent federal agency. We are not part of the DOT or FAA and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of the investigation is complete and accurate.

We'll be recording the interview so it can be transcribed. After we receive the transcript, we'll review it for typos and, if you'd like a chance to review the transcript, you can just contact us afterward and we'll send it to you.

I would now like each of the group members to briefly introduce themselves and state their organizational affiliation, beginning with Van McKinney.

MR. McKENNY: Van McKenny, helicopter operations group chairman, NTSB.

DR. BRAMBLE: Lauren?

1 MS. STRATTON: Lauren Stratton, NTSB, regional investigator.

2 MR. KIM: Paul Kim, PSA Airlines, chief pilot.

3 MR. BLAIR: Dave Blair, chief pilot for safety at Sikorsky.

4 CW5 JACOBY: Brigade Stands pilot for the U.S. Army Aviation
5 Brigade.

6 DR. BRAMBLE: Each member of the group will have a couple of
7 opportunities to ask questions. We'll be taking turns. Nobody's
8 going to interrupt each other. And please answer all questions to
9 the best of your recollection. If you don't understand a question,
10 just say so. If you don't know the answer, say "I don't know."
11 If you want to correct something, just let us know.

12 You're entitled to have a representative of your choosing
13 during this interview. Is there someone you'd like to have as
14 your representative?

15 CW2 COFFMAN: I mean, it's just us, right? So --

16 DR. BRAMBLE: I need yes or no.

17 CW2 COFFMAN: No.

18 DR. BRAMBLE: Okay. All right. Great. So Mr. McKenny will
19 begin the questions.

20 INTERVIEW OF CW2 ADAM COFFMAN

21 BY MR. McKENNY:

22 Q. Okay. Could you state your name and spell it, please?

23 A. Yeah. Adam Coffman, A-d-a-m, C-o-f-f-m-a-n.

24 Q. And your rank?

25 A. CW2.

1 Q. And the unit you're attached with?

2 A. Bravo Company, 12th Aviation Battalion.

3 Q. And your current role, position, and qualifications and any
4 additional duties?

5 A. Pilot in command. No additional duties.

6 Q. Okay. What's your total flight time?

7 A. Like 550.

8 Q. Okay. And what's your total H-60 time Mikes and Limas?

9 A. Yeah, 550. Limas is about 55 hours.

10 Q. Okay. And your NVG time?

11 A. Like, 150 hours.

12 Q. Okay. And can you just give us a quick summary of your
13 professional aviation background?

14 A. Yeah. So after flight school, I went to Fort Bliss, Texas,
15 and I was an assault pilot there. Did multiple NTC rotations,
16 EUCOM rotation. After that, came to Fort Belvoir. I've been here
17 since June '24, so --

18 Q. Okay. What's a EUCOM rotation?

19 A. Europe rotation -- yeah.

20 Q. Okay. Been in the 12th AB since June --

21 A. Yeah, since June.

22 Q. -- 2024? Okay. We'll just kind of go over some of you may
23 be -- familiarity or interaction with the accident crew. So how
24 well did you know each crew member?

25 A. I mean, I worked with [REDACTED] every day. I flew with Captain

1 [REDACTED] the Monday before the accident, and [REDACTED] was a platoon
2 sergeant in the company, so obviously a lot of interaction with
3 him, so --

4 Q. Okay. How did you typically interact with each one of those
5 people?

6 A. [REDACTED] was an instructor pilot in the company, so he's an IP
7 and I'm a pilot in the company, so I was mostly on duty with him
8 at work, just the way the duty cycles work. No -- I can't think
9 of anything that stands out, but he was good around the office, no
10 issues with him. Really familiar with the -- he was a little bit
11 more familiar with the area because he was here before and he knew
12 some of the other places that a lot of people didn't know about,
13 landing areas that we could go to.

14 Q. Okay. So he's been here before?

15 A. He was, yeah.

16 Q. Can you explain that a little bit for me?

17 A. He was stationed at Fort Belvoir as a pilot previously, and
18 then he went to Honduras and then back to Fort Belvoir.

19 Q. Okay. He must have liked it, to come back here. Okay. Did
20 you have any interaction with him outside of work, any one of
21 them?

22 A. No.

23 Q. Okay. You said you flew with Captain [REDACTED] the day before?

24 A. The Monday before.

25 Q. The Monday before? Could you expand on that flight and what

1 you guys did?

2 A. Yeah. She was getting ready for that flight on Wednesday, so
3 she wanted to do some base task and some NVG flying. So the
4 first, I'll say 45 minutes maybe a half an hour, was just doing
5 patterns at the airfield, doing roll-on landings, rolling
6 takeoffs, just get her more comfortable. She had a bunch of night
7 flights they had cancelled prior, so just getting close to her 60-
8 day mark and she just wanted to get a couple more reps before her
9 evaluation. So just some patterns at the airfield and then we
10 went down to Quantico to do some tactical work in the LZ.

11 Q. And was this all on NVGs or --

12 A. No. The first like, half hour was unaided. We took off
13 right at sunset. So did some unaided patterns and work and then
14 like, around EENT took off (indiscernible) and did some work, and
15 then went down to Quantico.

16 Q. Okay. How did she feel -- what was your impression on her
17 preparation? Did she talk to you how she felt about the upcoming
18 check ride and --

19 A. Yeah. Preparation, she's always one that's always taking
20 notes, always prepared. She was rusty on the controls, as you can
21 imagine being -- you know, getting close to 60 days in between NVG
22 flights. But nothing that stood out. It was a through flight so
23 there probably was not as many steps for the preflight run-up, but
24 she wanted to go through all of them in detail and the detailed
25 procedures just to get another rep before the evaluation on

1 Wednesday. She was always prepared, had notes.

2 Q. How did she -- in your assessment, how did she do on your
3 practice flight with her? How was her performance?

4 A. There was only one time that -- where we like, sat on the
5 runway (indiscernible) and talked about it. It was her roll-on
6 landing with aerodynamic braking, is what we call it. And just
7 the way that she did it was just maybe not as smooth as it could
8 have been. So we just did another one so she could get another
9 rep at it. Nothing that stood out as this is scary or crazy or
10 out of comfort. It was just rusty.

11 Q. And the second one was?

12 A. Yeah, it was fine.

13 Q. Satisfactory?

14 A. Yeah.

15 Q. Okay.

16 A. We were both pilots in command, so I wasn't there evaluating
17 her. You know, I was just --

18 Q. Right.

19 A. -- getting her some reps.

20 Q. That's what I was going to ask you next, is like who was
21 pilot in command down in --

22 A. I was pilot in command.

23 Q. You were pilot in command that flight? And, you know, did
24 she say any -- did she have any concerns -- did she know she was
25 going to be doing her check ride with Mr. [REDACTED]

1 A. She did. Yeah.

2 Q. Okay. Did she have any concerns that she expressed to you
3 about flying with him for a check ride?

4 A. No. She just asked about how he is in the office, because
5 she isn't really in the company that much. I mean, she's not a
6 Bravo Company or was not a Bravo Company soldier. So she would
7 come in for flights and for PC validation boards, but she hadn't
8 had that much experience with him, so she was asking me about how
9 he is.

10 Q. Okay. Do you know if he has a typical route he flies for
11 these check rides or things he likes to do?

12 A. I haven't done an evaluation with him before, so I don't
13 know. I was there at the table when he was getting briefed by
14 Matt Ingalls for the flight, and it didn't sound like it was
15 anything that was off the wall. He does have some LZs that are in
16 some of our binders that are potential landing areas, and he likes
17 to use those because we could use those at some point for a
18 mission. So he does like to use those.

19 Q. Okay. And did you have any other typical interactions with
20 either Captain [REDACTED] or Sergeant [REDACTED]

21 A. No. Like I said, she's -- any meeting that I've seen her in,
22 she's always got her notepad out and referencing or talking about
23 taking notes. [REDACTED] he -- he's just a good guy, so --

24 Q. Have you flown with him?

25 A. I have, yeah.

1 Q. When you're -- well, how would you characterize Sergeant
2 [REDACTED] personal characteristics while you're flying a mission?
3 You know, how would he act? What was his typical demeanor and how
4 did he interact with the crew, with the pilots?

5 A. I think he's more quiet spoken, but he is STANDS, so
6 standardization guy, so he's by the book, you know. But I flew
7 with him once before and, I don't know if he stands out as --
8 nothing remarkable that sticks out in my mind, just a good crew
9 chief, good platoon sergeant.

10 Q. You say he's kind of quiet. So when you're flying, was he
11 really talkative or was he just quiet and just purely only
12 professional calls?

13 A. I honestly can't really say because the last time I flew with
14 him was when I was in progression, so like July/August, and we
15 actually had the emergency procedure at the airfield. But nothing
16 stands out as talking too much or talking too little. I would
17 prefer to not remark on that because I don't really --

18 Q. Okay. Sure. Did you have -- well, I'll just expand on this
19 question a little bit more. Did you have any interaction with any
20 of the pilots -- the two pilots or the crew chief 72 hours prior
21 to the accident?

22 DR. BRAMBLE: Just aside from the flight?

23 BY MR. McKENNY:

24 Q. Aside from the flight, yeah.

25 A. Yeah. I mean, I was there when [REDACTED] was getting briefed on

1 Wednesday for his flight, so -- nothing seemed out of the
2 ordinary. You know, he was getting his flight briefed.

3 Q. And why were you -- happened to be there during that brief?

4 A. I was just at the table. Like we have like a table in our
5 office and that's just where everyone sits, and that's where Matt
6 was sitting. And [REDACTED] office is next door, so he just asked
7 him if he could brief the flight, and I just happened to be
8 sitting right there.

9 Q. And anything unusual about that briefing?

10 A. No.

11 Q. Can you estimate how many flights you've done with each of
12 the crew members?

13 A. [REDACTED] zero. Captain [REDACTED] I want to say two -- two or
14 three, but definitely at least two. And then [REDACTED] I'm not
15 sure -- less than five. But we spend most of our time on duty at
16 work, not really flying, if that makes any sense. So we spend a
17 lot of time together, it's -- a lot of times we spend in the
18 aircraft.

19 Q. Did he ever express any concerns about flying with either of
20 these two pilots?

21 A. Not that I heard.

22 Q. So when you were flying with Captain [REDACTED] for the -- on the
23 NVG flight, were there any habits or approaches to those flights
24 that were particular to her?

25 A. Like anything that stands out?

1 Q. Yeah.

2 A. No, only the one I told you about, but we did another one and
3 it was fine, so -- no. I mean, we did some work -- there's an LZ,
4 LZ Falcon at Quantico. We did a lot of approaches in there and
5 nothing seemed off. It seemed normal. It was zero percent illum
6 and dark night, but she still flew good.

7 Q. Did you do the routes at all during that flight, like DC
8 routes?

9 A. No, we didn't do any helo routes that day. No, it was like
10 off of Davison, Woodbridge down to Quantico, pretty straight path.

11 Q. All right. How would you describe each of those crew
12 members' performance compared to others with similar experience?

13 A. Like I never flew with [REDACTED] but, I mean, he's a STANDS
14 guy, he's an IP, so generally speaking we trust them. And they
15 fly a lot more than the average pilot because they're doing a lot
16 of evaluations, a lot of PFEs or different, whatever they do. I
17 guess (indiscernible), STANDS guys, they do a lot more flying.

18 Captain [REDACTED] she, like I said, had a bunch of flights
19 cancelled, so she just didn't have a bunch of reps leading up to
20 that flight.

21 Q. Yeah. Do you know why the flights were cancelled?

22 A. Weather, aircraft availability, you know -- I don't know
23 exactly what it was, but --

24 Q. Did she ever cancel a flight for personal reasons?

25 A. Not that I know of. She always seemed willing to like go out

1 there, want to fly.

2 Q. Yeah. Have you flown the helo route, Route 1-Route 4
3 transition?

4 A. I have.

5 Q. How many times?

6 A. Going like north to south that they were that day, probably
7 maybe -- no, not that many, like five times.

8 Q. How about just the routes in general, you know --

9 A. Oh, a lot. Often. Most of the time when we go through
10 there, we go -- I mean, at least for me, like we usually go
11 northbound because we're leaving the airfield going north and come
12 back.

13 Q. Yeah. Can you estimate how many times you've done it going
14 north?

15 A. Oh, probably, what (indiscernible) 10 times maybe, maybe
16 more.

17 Q. Okay. And how many times on the route on NVGs?

18 A. Since progression, I honestly don't know if I've been up
19 there since progression with goggles. Like maybe a couple times,
20 once or twice.

21 Q. And when you say progression, what does that mean?

22 A. So I was a Mike pilot before, and then I came to here and
23 they Limas, the company I'm in. So they have to progress me and
24 train me to fly the Lima, certain different things and progress me
25 for the local area.

1 Q. So when was that progression for you?

2 A. June and July.

3 Q. Okay.

4 A. Most of the flights for me.

5 Q. And so you've only run the route since progression on NVGs
6 just a handful of times?

7 A. Yeah. I would say five.

8 Q. Okay.

9 A. And it's not because the -- well, I mean, all of our NVG
10 flights, the type of training that I like to do, I would prefer to
11 go down to Quantico or A.P. Hill and do tactical training.
12 Because this is pretty -- I mean, it's plotted on a map. There's
13 altitudes, there's lines we follow, everyone knows how to fly
14 that. And I guess it doesn't seem -- not that it's easier, it's
15 just I like to train more of a tactical because that's just what I
16 like to do. I enjoy doing that as opposed to just flying the helo
17 routes, which have like altitude restrictions.

18 Q. Yeah. So when you -- so back to helo routes. When you do,
19 do the helo routes, you're checking in, do you -- just kind of
20 tell us how you check in with the DCA tower.

21 A. Okay.

22 Q. What's the process, procedure there?

23 A. Like where am I at on the map?

24 Q. Well, just outside of the DCA --

25 A. Can I look at it?

1 Q. Yeah, sure. You bet. Let's say you're up at Cabin John, for
2 example. That's up here.

3 A. This is Baltimore.

4 Q. Oh, wrong one. I don't know if we have the right one here.

5 UNIDENTIFIED SPEAKER: Let the record show --

6 CW2 COFFMAN: It's just past.

7 BY MR. McKENNY:

8 Q. Yes. It's up here somewhere. So you're checking in up here
9 just outside the --

10 A. Yeah, just like National Tower --

11 Q. Cross Bravo.

12 A. National Tower, PAT, whatever -- let's just say we're in this
13 Zone 2, requesting Cabin John Route 1, and you give them kind of
14 like where you're going to end up. So Route 1, Cabin John all the
15 way down to Wilson Bridge, so he knows that we're going to take
16 that whole route out. We give him like a quick picture of where
17 he expects us to enter and leave.

18 Q. Do they -- do you always get an altimeter setting from the
19 tower?

20 A. Yeah, National Tower's pretty good about giving altimeter
21 settings. I'm not sure if I've ever contacted them and they
22 haven't given one. They always give the local altimeter setting.

23 Q. Do you read that back?

24 A. We're supposed to. If you pull every tape, I'm not sure
25 if I -- I mean, we -- I would say yes.

1 Q. Okay.

2 A. But I won't swear 100 percent that 100 percent of time, but
3 we -- it is the practice, what they said, that's what we read
4 back, so --

5 Q. And then what's the procedure in the cockpit to an altimeter
6 setting change?

7 A. Yeah, if I'm on -- if they're on controls and then I get the
8 altimeter setting, I'll just repeat it in the cockpit. So just
9 say like 2-Niner-Niner-2, set left. And the expected call from
10 the right seat is set right, center.

11 Q. When you're checking in, do you ever just say -- is there any
12 other process of like when you check in you can just say you
13 request visual separation?

14 A. I mean, for the whole route, I'm guessing?

15 Q. Yeah.

16 A. No. I mean, I've never heard of that. I've never -- that's
17 something I've never heard of.

18 Q. Do you request visual separation when you're flying
19 (indiscernible)

20 A. When the tower is telling you there's an aircraft somewhere
21 around you. They're going to be like, hey, there's an aircraft
22 over here. And then you say like, okay, searching for that
23 traffic or I have that traffic in sight. Then once you have it in
24 sight, you can request visual separation.

25 Q. Okay. So in the cockpit when ATC identifies an aircraft and

1 you request visual separation, what's the communication that
2 happens between you and the copilot and the crew chief?

3 A. Well, usually the tower will tell you like there's an
4 airplane or helicopter and they'll give you a distance and
5 direction from you, like distance of this, so we kind of look over
6 there. And then usually internally, hey, searching for that
7 traffic. And if they see it first, the copilot, then they'll say
8 they see it. And then I want to see it also. Then tell the tower
9 that we have visual aircraft and then request visual separation.
10 But I want the crew to see it before we just ask for it because I
11 wouldn't know what I'm asking. But then sometimes, like after
12 this accident, it kind of occurred to me that there's a bunch of
13 traffic coming in here, what's the chance that maybe we had the
14 wrong one?

15 Q. Yeah. So you identify the traffic. Who makes the radio
16 call, you know, traffic in sight, request visual separation?

17 A. Who's ever on the radio. So, it's like, hey, if you're
18 flying, you're flying. That's how I usually run a cockpit. If
19 you're flying, you're on controls and I'll manage the radios. So
20 the pilot off the controls is usually on the radios, at least when
21 I'm flying.

22 Q. But the person that's making the radio call confirms with the
23 other pilot that you both have the traffic in sight before you
24 make the radio call, or if you're on the radios and you see it,
25 will you just make the call that you see it and then confirm with

1 the other crew members?

2 A. I'll tell my copilot, hey, do you see that traffic over there
3 at 1 o'clock? And maybe whatever the tower gave us wasn't exact,
4 hey, give (indiscernible) pinpoint it, look that way if you see
5 it. Yes, I see it. Okay, request visual separation.

6 Q. So usually there's some sort of discussion in the cockpit
7 before you confirm that you have the aircraft in sight and request
8 visual separation?

9 A. Yeah. I wouldn't say it's a deliberate conversation, but it
10 could even be something as simple as I have the traffic and the
11 other pilot says I have the traffic as well and they make the
12 call.

13 Q. Right. Exactly. Okay. When you're flying low down these
14 routes, how do you -- so there's some pretty significant step-
15 downs and then the hard altitude there by DCA is 200 feet. When
16 you're on NVGs, how do you typically control your altitude when
17 you're in that portion of the route?

18 A. Well, what do you mean?

19 Q. Just make sure that you maintain the proper altitude, like --

20 A. Yeah. I mean, you have an NVG, but you can still glance
21 under to check your instruments and double check the scan. Also,
22 you have -- since we have another pilot, too, they're outside,
23 they're checking, too, to make sure that you're not too low or too
24 high. It's just part of the way that you're scanning in the
25 aircraft. You're outside, just a quick glance, just to double

1 check.

2 Q. And what would you do if your pilot -- you weren't on the
3 controls and the other pilot started to exceed that altitude?

4 A. Yeah. Hey, you're too high, come down.

5 Q. At what point would you say that?

6 A. I mean, this is no higher than 200. So if you're at 200
7 feet, you're too high, come on down. Yeah.

8 Q. And what's the typical response when that happens?

9 A. He'll get Roger, correcting. Because maybe they were looking
10 at something or they're -- something else could have just
11 distracted their scan for a second and then, oh, yeah, gotcha, and
12 correct it.

13 Q. So when you're flying down this route, what altitude is your
14 target altitude?

15 A. I'm comfortable at 150. That gives me a buffer for that 200
16 route, that 200 foot. So if there was just a little bit of climb,
17 I'm not breaching that barrier, you know. I don't know what
18 happened with it, but that's generally -- okay, for us, the way we
19 train, to no higher than -- that's like set your ceiling, you
20 can't go past it. It's built there for the safety. So I don't
21 know --

22 Q. Yeah. And how do you use the rad alt? Do you use the rad
23 alt at all for this type of flight?

24 A. Like for -- for what?

25 Q. Reference, altitude reference.

1 A. I mean, I like to look at it. It's good to know. Because
2 like there's some bridges over here and maybe something else --
3 yeah, I mean, it's part of the scan.

4 Q. What was your primary instrument you used for the altitude,
5 for holding the altitude?

6 A. I would say -- you're saying what is my primary instrument?

7 Q. Yeah.

8 A. The altimeter, like barometric altimeter, just like
9 (indiscernible).

10 CW2 COFFMAN: Can we take like a 2-minute break so I can run
11 to the bathroom?

12 DR. BRAMBLE: Oh, yeah. Sure. I'll pause it here.

13 (Off the record.)

14 (On the record at 4:42 p.m.)

15 DR. BRAMBLE: All right. Back on the record at 1642.

16 BY MR. McKENNY:

17 Q. What do you use for your navigation when you're flying?
18 What's your primary navigation source?

19 A. For? For where at?

20 Q. I guess, actually I'm just trying to get an idea. Do you use
21 iPad?

22 A. Yeah. Yeah, everyone uses iPad. It's the just main way we
23 do. In the Mike I miss the MFDs, but like they have screens in
24 there with moving maps.

25 Q. Right. Yeah. Now, I know the unit has Stratus available.

1 Do you use that yourself?

2 A. If I'm going to be flying around like this, then I like to
3 take a Stratus. Do I do it every time? No, but, I mean, it's a
4 cool tool to have, so --

5 Q. Would you use it if you knew you were doing a night route on
6 one of the helo routes there?

7 A. I think that most people like to have them for like the helo
8 routes portion. If I'm going down to like Quantico or A.P. Hill,
9 then I'm not going to take the Stratus, I mean, just because maybe
10 someone else is going to be flying down there and they might want
11 to use it.

12 Q. Would you reference the ForeFlight ADS-B information on the
13 iPad as you transited that area flying, if you had that picture on
14 the controls?

15 A. I'm not sure if -- I'm trying to think. Because if I'm
16 flying through here would I look at my iPad to see if I see a
17 target?

18 Q. Yeah. So if the tower calls a target, would you look at your
19 iPad to see if you located it on that, too?

20 A. I mean, there's -- there could be a lot going on, so when
21 it's down to every single time, I would not. But it's a good
22 extra tool to have there.

23 Q. Where do you carry your iPad when you fly with it?

24 A. On my knee, knee board.

25 Q. Okay. So a little scenario for you here. If you're flying

1 south along the Route 1, Route 1 to Route 4 transition, you have a
2 wind from 3-2-0, 15, gusting at 25, so it's a quartering tailwind,
3 how do you think that would impact how you'd have to control the
4 aircraft? Like what adjustments would you have to make?

5 A. You're saying that winds are 3-2-0 and we're coming
6 southbound on Route 4?

7 Q. Yes.

8 A. I mean, so with tailwind in some portions, so maybe go a
9 little faster. But 15 knots, I don't think it's going to be that
10 much where I'm going to have to be thinking what else are we going
11 to have to do to control this aircraft?

12 Q. Would you expect any -- what would you expect if you had some
13 gusts? If it was gusting, so would you -- so if they told you
14 it's gusting at 25, would you anticipate any type of extra need
15 for control inputs sensitivity or adjustments you need to fly the
16 aircraft with those tail gusts, the wind gusts?

17 A. I mean -- yeah, I mean, thinking of the gusts, right, you can
18 anticipate that you could lose or gain altitude just depending, I
19 guess, on the direction. But if I got that brief on the radio, I
20 don't think that would cause me to think any different. You have
21 your prescribed altitudes, you have your route of flight. Not
22 that I can (indiscernible)

23 Q. What speed do you normally fly that route?

24 A. Generally 100 knots, 110 sometimes, because some of our --
25 I'm not sure -- yeah, mostly 100, 110.

1 Q. So the route shows it going along the east bank there. How
2 do you know you -- how do you determine you're staying within the
3 route?

4 A. I stay as close as I can to the shoreline, when I'm going
5 north or south here, so that's just -- it's depicted and it's also
6 the way that we're trained to do it, just stay over there.

7 Q. So where would you put the shoreline like if you're looking
8 straight ahead on, you know, in reference to your helicopter as
9 you're flying?

10 A. If I'm flying and I'm in the right seat, it's right out my
11 front door.

12 Q. So that's if you're going north?

13 A. If I'm going north in the right seat -- yeah, your right
14 seat, yeah. So, I mean, south the same thing, you're supposed to
15 be on -- like right out the door.

16 Q. Right out the door? Is it difficult to tell the shoreline
17 there --

18 A. No.

19 Q. -- and your distance when you're on NVGs?

20 A. No.

21 Q. No? And when would you think you -- when do you think the
22 aircraft is too far east?

23 A. If you're flying over the land.

24 Q. Well, I -- too far west. Too far west. Excuse me.

25 A. Oh.

1 Q. Too far west.

2 A. I guess, if you're in the middle of the river, something
3 would feel weird. You're supposed to stay on this side, so --

4 Q. Like if you were flying with another pilot, how far would you
5 let it go before you needed to say something to bring him back?

6 A. If we're no longer flying it like we talked about, like right
7 on the edge, as soon as we start deviating, hey, you're coming
8 left a little bit, come right, stay on course.

9 Q. When flying the area, in this area, you overheard commercial
10 traffic going around for a conflict with a local helicopter. Have
11 you ever heard that?

12 A. I haven't, no.

13 Q. How often do you see traffic landing on runway 3-3 when
14 transiting Route 4 as compared to seeing traffic landing on runway
15 0-1?

16 A. I don't think I've ever seen someone land on runway 3-3.

17 Q. When transiting Route 4 near DCA below 200 feet, have you
18 ever flown under arriving airplane landing on 3-3?

19 A. Like I said, I don't think I've ever seen someone landing on
20 3-3.

21 Q. What would you do if you saw the situation developing that it
22 looked like your aircraft might fly under an arriving aircraft
23 flying into 3-3?

24 A. I mean, what's the altitude separation? Like, I mean, how
25 close are we?

1 Q. Well, it's developing, so you're a little ways out. Maybe
2 tower informed you of the traffic and you acknowledged it, and
3 they're --

4 A. I mean, if we're at the altitude and they're at their
5 altitude, I mean, it's built this way to not be an issue.

6 Q. I think my question is, is like it looks like there may be an
7 issue.

8 A. I mean, depending on where you're at, I would just query
9 tower, tower do you see that traffic looks like we're going to be
10 -- we're in line for each other, tell me to do something
11 different. We can break left, right.

12 Q. Do you approve of visual separation?

13 A. Yeah, I mean, if I ask for it. If I see that aircraft and I
14 ask for visual separation, then that's different.

15 Q. So what would you do then?

16 A. I would still tell the tower that I'm deviating because we're
17 not on the route structure, he doesn't know what we're doing. I'm
18 just going to tell them that like we're changing the route that's
19 published for us.

20 Q. Okay. When you're on Route 1 in the vicinity of Arlington
21 Memorial or 14th Street Bridge, do you ever fly directly under
22 traffic landing runway 1-9?

23 A. Yeah.

24 Q. Do you know what kind of clearance you have between the
25 aircraft?

1 A. I don't -- I wouldn't be able to guess the altitude. But I
2 have seen traffic on -- along Route 1 as well, so flying Route 1.

3 Q. But you couldn't guesstimate like how -- what the separation
4 was between your aircraft and the aircraft that's passing over
5 you?

6 A. Yeah. I think, like I was -- I just don't know. I'm not
7 good at that. Nothing that ever seemed dangerous that might
8 (indiscernible).

9 Q. Sure. Yeah.

10 A. They're well above us. It's, you know, it's 1,000 feet, 2000
11 feet, I don't know. Never like 100 or lower or less than 100.

12 Q. No factor or anything.

13 A. Yeah, yeah.

14 Q. So how much vertical and lateral clearance would you be
15 comfortable with on that route relative to arriving in DCA
16 commercial traffic? So you're under -- the visual clearance, like
17 what would be your comfortable -- how far would you stay away from
18 other aircraft vertically and laterally to maintain your comfort
19 level?

20 A. Vertically? Maybe I just have too much trust in like this
21 thing that's printed in front of me, because I generally think
22 that this is going to keep us safe. So if there's traffic that's
23 landing and tower has them and we're on Route 4, the way I
24 understand it is like we should be fine, it shouldn't be an issue.
25 So if I see an aircraft that's approaching and I'm on a route

1 structure below it, I've never had a situation where it looks like
2 it was even going to be remotely close. So --

3 Q. Yeah. Well, that's a reasonable assumption. Are you
4 familiar with the U.S. Coast Guard Blackjack helicopters?

5 A. Yeah.

6 Q. Do you know what -- are you familiar with any of the common
7 routes and where they typically land in the vicinity of DCA?

8 A. I think they land somewhere over here by South Cap. I'm not
9 exactly sure, just somewhere over there is where they go, or maybe
10 it's Anacostia, but one of those areas. I know it's somewhere in
11 this general area. I haven't been there before, but --

12 Q. If you did hear there was a Blackjack helicopter in the
13 vicinity, are you concerned at all?

14 A. I mean, we get that call pretty often and then we just search
15 for them. There's been a couple times where we've come up on this
16 route and then they've just come around this corner. It takes a
17 little bit of time to see them because we're both low and --

18 Q. Did you ever lose them in the lights when you're on NVGs?

19 A. Like I said, I don't have that much experience flying the
20 helo routes NVG, but it is tough to discern, but -- join everyone
21 there in strobing and moving left or right. But sometimes it just
22 take a little second to pick it (indiscernible).

23 Q. Yeah. So you're looking relative motion mostly?

24 A. Flashing light helps, you know, their anti-collision lights.

25 Q. All right. Let's move on to talk a little bit about culture,

1 unit culture here. Compared to other units you've been in, what's
2 the culture of this unit?

3 A. I've never been in a unit like this before, so -- a lot of
4 long days sitting at work. But that is the culture, generally
5 speaking. I think everyone gets along fine. There's no -- like
6 we don't have any bad seeds or like -- so like the group is tight
7 knit, but what we do just -- it's just long days.

8 Q. Long days, being 12-hour shifts?

9 A. Yeah. I mean, it's different if you're doing like a 12-hour
10 shift and then you have like a flight or a mission plan. You
11 know, you show and you have a long flight and you debrief. Those
12 12-hour days are totally different than, you know, 4 days a week
13 or 5 days a week sitting here for 12 hours, so --

14 Q. Yeah, doing just a ground job?

15 A. Yeah. But we get to go home every night. So that's what I
16 came here for, I always say, for my wife, so --

17 Q. That's definitely a benefit.

18 A. Again, I'm not complaining. It's just different from what
19 I'm used to.

20 Q. Yeah. With respect to safety, how's the safety in the
21 company and battalion safety culture?

22 A. Yeah. I mean, it's literally part of our battalion's motto.
23 I think that most people take it seriously. Like they know what
24 we do is dangerous, so --

25 Q. Do you ever hear about people flying unsafe, doing unsafe

1 things or bragging about it or, you know, doing something that
2 they like to talk about but probably wouldn't be considered --

3 A. No, I can -- no.

4 Q. How about professionalism? How is the professionalism in the
5 unit within your command?

6 A. Yeah, I think it's -- I think everyone's professional.

7 Q. And leadership, do you have confidence in your CO?

8 A. Yeah.

9 Q. Company CO?

10 A. Got no issues.

11 Q. How about how's the battalion?

12 A. Fine. It's different. Like I said, I got here in June, so
13 it's just different from what I'm used to. I've been in the Army
14 for 15 years, so it's just a little bit different organization
15 just the way it is. But nothing stands out as people, you know,
16 hot-dogging out there in the helo routes, doing anything crazy. I
17 haven't heard any stories. It's just like really too prescribed
18 to do any of that. I don't know where you'd do that.

19 Q. Is the command staff approachable if you had something you
20 wanted to talk to them about?

21 A. The battalion?

22 Q. Yeah.

23 A. Yeah.

24 Q. Company?

25 A. Yeah. I mean, everyone's busy, but if I ever had an issue, I

1 would just go to battalion and I'd think that there wouldn't be an
2 issue with me being able to just knock on someone's door and talk
3 to them.

4 Q. Oh, that's good.

5 MR. McKENNY: I think that's it for my questions.

6 You're up, Bill.

7 DR. BRAMBLE: Okay.

8 MR. McKENNY: We're halfway done.

9 DR. BRAMBLE: More than that.

10 MR. McKENNY: No. This is the majority, though. It's
11 questions. It'll go faster.

12 BY DR. BRAMBLE:

13 Q. All right. Just to make sure I understand the command
14 structure, who do you report directly to?

15 A. I have a platoon leader that works downstairs.

16 Q. Okay.

17 A. But I wouldn't say I report to her, so to speak. It's just
18 she is my platoon leader, but this is not really the way it works
19 in our organization. But she is my boss, but I like check in with
20 her every day I'm on duty.

21 Q. I see. When you saw Mr. -- when you saw the instructor pilot
22 [REDACTED] briefing for his Wednesday flight, the accident flight, what
23 time of day was that?

24 A. I would really be guessing. I mean, it wasn't night yet and
25 it was -- like maybe just at lunch or right after lunch. That's a

1 ballpark figure, so --

2 Q. How long did you see him there?

3 A. Once again, I'm just guessing here, but 10, 15 minutes at the
4 table. That's just a guess, though.

5 Q. But it wasn't like 2 hours or something?

6 A. No, no, I mean --

7 Q. Okay. Did you see him at all any other times that day?

8 A. No. After he got briefed, I was going home shortly after. I
9 had something going on, so I didn't see him.

10 Q. When did you go home?

11 A. I'm not sure.

12 Q. Were you home before it was dark or did you --

13 A. Yeah, I was -- yeah. Yeah, generally on days that I'm not on
14 duty, I (indiscernible) so sit there all day with everyone else.
15 So go in, get what needs to be done and then go home.

16 Q. And how about [REDACTED] did you see her that day?

17 A. I did, yeah.

18 Q. At the same time as you saw [REDACTED]

19 A. No. I saw her, it was I think after that. She was either
20 getting something from upstairs or here loading her card for the
21 mission. I saw her upstairs briefly.

22 Q. Can you describe the interaction or if there was any?

23 A. Brief at best.

24 Q. Just greetings?

25 A. Yeah.

1 Q. How did she appear?

2 A. Fine. Just normal day.

3 Q. Did she look alert?

4 A. Alert?

5 Q. Yeah. Did she appear alert?

6 A. Yeah.

7 Q. Any other interactions with either [REDACTED] or [REDACTED] in the 3
8 days or so before the accident, like Monday to Wednesday?

9 A. Well, Monday I flew with her. So other than that, no. She
10 was planning -- finishing up some route details that Tuesday for
11 her APART. Like they planned some kind of time on target or
12 terrain flight, nav works, the navigation route. She was working
13 on that, doing some products for it. But nothing out of the
14 ordinary.

15 Q. When was that approximately?

16 A. I'd be lying if I gave you a time. It was just sometime at
17 work.

18 Q. Sometime in the daytime?

19 A. Yeah.

20 Q. And that was on Tuesday?

21 A. Yeah.

22 Q. Okay. Did you see [REDACTED] around?

23 A. He's usually downstairs. The way our building is split up,
24 crew chiefs generally hang out downstairs in their office or doing
25 maintenance.

1 Q. Don't recall any interactions like Monday, Tuesday,
2 Wednesday?

3 A. Uh-uh.

4 Q. Okay. Who was the crew chief on your flight with [REDACTED] on
5 Monday?

6 A. Cole Miller.

7 Q. All right. Just to make sure I have this right, did you say
8 you thought you had flown maybe twice with [REDACTED] and twice with

9 [REDACTED]

10 A. Zero with [REDACTED]

11 Q. Zero with [REDACTED] twice with [REDACTED]

12 A. Yeah.

13 Q. And tell me again what was the first flight with [REDACTED]

14 A. I honestly can't remember. I'd have to look in -- I can't --
15 I think I have some notes on it, yeah.

16 Q. Okay. That's fine. If tower calls out traffic when you're
17 on those VFR routes and you start looking for it, do you ever
18 communicate with the other pilot nonverbally to signal that you
19 have both seen the traffic?

20 A. I don't think so. No. I mean -- no. I mean, maybe I would
21 point and talk because I use my hands sometimes, but I'm just
22 doing it (indiscernible), but there's no guarantee that, you
23 know --

24 Q. There's no guarantee that?

25 A. There's no guarantee that they could see it if I'm just

1 pointing and I assume that they saw it, you know?

2 Q. And if you're flying, wouldn't it be difficult to point
3 because you have hands on controls --

4 A. If I'm like in the aircraft, I'm looking, then I here the
5 radio, go like, oh, yeah, I see the aircraft over there. Then I
6 go, oh, yeah, okay, I see it. Like it could be as easy as that.

7 Q. Yeah. If you're flying though would you typically have both
8 hands occupied with controls or --

9 A. Yeah, I'm saying if I'm off the controls and I can --

10 Q. I see.

11 A. Yeah.

12 Q. Okay. So typically what would happen is somebody's going to
13 key up on the intercom and say I've got the traffic over here at 1
14 o'clock?

15 A. Yep, I see it.

16 Q. Okay. And not just typically, but is that always what
17 happens in your experience, it's get verbal?

18 A. Yeah. I mean, I can't think of a time where someone's just
19 pointed or when, I guess, the other person would just shake their
20 head. Like I don't know, just, that never happened.

21 Q. Okay. All right. So you flew the Mike model before the
22 Lima, correct?

23 A. I did.

24 Q. Did you find the automation in the Mike helpful?

25 A. Yeah. I miss the Mike.

1 Q. If you were flying the VFR routes in the Mike helicopter,
2 would you utilize the automation to help you maintain the
3 appropriate altitude?

4 A. No. I mean, I never really did too much stuff like this in
5 the coupled, you know, mode. There's just -- just I never really
6 used it that much for something like that. It's better for, I
7 guess, longer straight-level flights coupled up. But I think it
8 would be nice to have a map up. That way you can see it as you're
9 like also looking out. Instead of having to like look down maybe
10 at your leg to confirm, you can see it on the screen in front of
11 you it's a moving map. I know it's like a -- I know Lima pilots
12 are proud of their aircraft, but I miss the map that's moving in
13 front of me. I do, so -- it took a little bit to get used to, but
14 after you -- I don't think many people are looking at their map --
15 I want to make sure that's clarified, too, also when they're
16 flying this. Like we -- like part of our progression, the other
17 person that's off the controls will be looking like, hey, you
18 know, just verifying, double checking. But if you're flying, like
19 you kind of, I guess, I'd say know where to go if you're in these
20 route structures.

21 Q. Would it be possible in the Mike to have the helicopter
22 control altitude with like an altitude hold mode while you're
23 steering it around?

24 A. Yeah, you can. I just didn't really use it that much for
25 that in this type of low level flight.

1 Q. Does that seem feasible or does that seem like it would be
2 more trouble than it's worth?

3 A. I don't think I would use it for this -- for the helo routes,
4 I wouldn't use the altitude hold mode. Maybe some people would,
5 but it's nothing I personally would do, so --

6 Q. Yeah. Why not? I'm sort of curious to explore that.

7 A. I don't know. I guess most of my -- all my flying
8 experience, which isn't a lot, so almost like all my experience,
9 but mostly in the mountains around El Paso doing more tactical
10 flying. So it wasn't really like, hey, put it on altimeter hold
11 type of coupled flight mode. It was mostly like in and around
12 terrain and going into places, so --

13 Q. All right. So, and just to confirm, it's your understanding
14 that if you're below 200 feet on that Route 4, that the traffic
15 passing over you for runway 3-3 shouldn't be a factor?

16 A. Yeah. I mean, that's -- I don't think I've ever seen that
17 happen, so I wouldn't be able to tell you what it looks like
18 flying down, you know, southbound on Route 4 in an aircraft
19 approaching 3-3 and seeing what that looks like. And I don't know
20 how close it is. I haven't done it before or seen it, so --

21 Q. You've seen it?

22 A. I have not seen it.

23 Q. Have not.

24 A. No, but it is my assumption that --

25 Q. Yeah.

1 A. -- I've seen below 200 feet keeps us out of their approach
2 and departure path.

3 Q. Okay. If you did see a -- well, let me ask you this. Have
4 you ever had a near miss in the downtown area?

5 A. No, never.

6 Q. If you had something like that, how would you report it?

7 A. Like immediately over the radio, let the tower know. But
8 then the rest of that is like my company, let safety know. But
9 then I'm not like sure where it goes from there.

10 Q. Could you say that last part again?

11 A. Yeah. Like the safety like at work know, like obviously my
12 briefing officer needs to know, my FMA needs to know. Those
13 people need to be aware of something that happened that was -- you
14 know, I probably wouldn't call it a near miss. I haven't had one
15 before, but --

16 Q. Okay. What's an FMA?

17 A. Final mission approval authority. So like for the low
18 mission, low risk mission, it's our commander. He's the one that
19 like signs off on the final approval for that flight to happen.

20 Q. Okay. Do you have any kind of safety recording system where
21 you can file reports?

22 A. Yeah. I've never had to do one, so I couldn't tell you
23 exactly how to do it, but if there was a safety report that needed
24 to be filed, I would just go to my -- all the companies have
25 safety officers and that's their job, to help us.

1 Q. Okay. So if you were to file one, how would you do it?

2 A. I would go to Zach and ask him, or one of the other senior
3 warrants, like, hey, this happened, can you guys show me how to do
4 this?

5 Q. Is Zach your company safety officer?

6 A. Yes. Yep.

7 Q. Okay.

8 DR. BRAMBLE: All right. I'm going to pass things on to
9 Lauren.

10 MS. STRATTON: Thank you.

11 BY MS. STRATTON:

12 Q. I just have one question, and this is maybe just coming from
13 my GA world or fixed-wing, I'm not sure. But the requesting
14 visual separation is not something I'm familiar with. I need to
15 look for the traffic, do you have traffic in sight, and then they
16 instruct me to maintain visual separation? Can you kind of
17 describe how that differs for you?

18 A. Yeah. So that's something I only heard of when I started
19 flying around here. If you -- it's essentially a way to cut out
20 one more call that National Tower has to make to you. They're
21 going to tell you to visually separate. So you're just requesting
22 it ahead and they say approved. So you see it, you ask for it,
23 and they approve it, it's just one less -- that's what I'm under
24 the assumption, that's just one less radio call you have to make.
25 I say I have the traffic in sight, and then they say maintain

1 visual sep -- they'll tell you maintain visual separation. Then
2 you say, okay, maintain. Like you just request it after you see
3 it. It cuts out that last radio communication.

4 Q. Okay. And you think it just became commonplace to do it or
5 initiated by the helo side or air traffic side? How do you think
6 that came about?

7 A. I wouldn't know. Yeah.

8 DR. BRAMBLE: Paul?

9 BY MR. KIM:

10 Q. A few questions. Have you seen or heard of a time that ATC
11 reported an altimeter setting and it didn't result in changing the
12 altimeter setting inside of the cockpit?

13 A. No. I mean, as soon as they say it, like usually we set it
14 and then, like I said, or it could be the person off the controls
15 can set it and then the person on controls, they transfer flight
16 controls and set it when they get a chance. It's set when they
17 say it pretty fast.

18 Q. Okay. Have you at any point heard reports or complaints
19 about traffic conflicts between helicopters and airliners in the
20 DC airspace?

21 A. I haven't heard of it. I haven't been here a long time, so I
22 haven't heard of it.

23 Q. And while in flight have you ever been made aware of any
24 traffic conflicts between a helicopter and an airliner, whether
25 it's yours or another helo in the area?

1 A. I'm not -- so have I heard over the radio like there's
2 another issue that was happening, I guess?

3 Q. Yeah, or yourself. Either one.

4 A. No, I haven't.

5 MR. KIM: Okay. That's all.

6 DR. BRAMBLE: Dave?

7 BY MR. BLAIR:

8 Q. Hey, how'd you find that M to L transition? So you flew --
9 El Paso you flew Mike model.

10 A. Yes.

11 Q. And then you came here and this is the first time you flew an
12 L. How was that transition for you?

13 A. There's some things about the Mike that I miss. Like the
14 FMS, I miss that, and like, the MFDs. But once you kind of, I
15 guess, gave it a couple hours, it's fine.

16 Q. So you felt like the training you got was -- adequately
17 prepared you to fly Lima?

18 A. Yeah.

19 Q. Okay. Good enough. And you said you had seven flights to do
20 that transition, Mike to L transition?

21 A. Yeah. I think so.

22 Q. Yeah, good enough, a few hours. So if you're flying on the
23 routes or anytime you're looking through the goggles, is there a
24 time when you might flip them up and announce that, say, for any
25 reason?

1 A. Yeah. Just like in that city portion, like route there 4 and
2 1, it is easier, even Route 3, easier to see sometimes when
3 you're unaided. It's just so much other lights and the white
4 phosphorus just picks up so much light that I personally think
5 it's easier to fly the routes unaided. There's just so much other
6 light coming in.

7 Q. So was that a fairly common practice? Would you as a PC say,
8 hey, at Key Bridge we're going to go unaided or at Cabin John
9 we're going to go unaided for the rest of the route?

10 A. Yeah. We talk about it in the briefing as well. You know,
11 at the briefing, we're like, hey, if the lights are too much,
12 just, you know, go aided for some portion. That way it's easier
13 to see.

14 Q. And then just -- and then on the PC, depending on who was
15 calling the flight, said this is what we're going to do?

16 A. Yeah. I think if you did like 10 straight flights under
17 goggles in that area, maybe some you're like, okay, it's fine, but
18 then sometimes it's just too bright. It just depends other
19 illumination, where like the other light sources are. But I
20 wouldn't say every single time that I've been -- that I was
21 unaided. You know, it's just -- I mean, it's just if I need to
22 see better, if there's an issue with the goggles, then go unaided.

23 Q. So the PC will make that call and then the whole crew will go
24 unaided or --

25 A. Yeah. I mean, if someone -- or even the PI will go, hey,

1 there's just some -- it's too bright, I'm going to go unaided.

2 Just okay, I mean (indiscernible)

3 Q. Good deal. And the last question, let's talk quickly about
4 having CEFS installed in the aircraft. Does that impede your
5 visibility from either right or left seat?

6 A. Not, not too much. Like it's not an issue or nothing, but --
7 maybe for the, like the back seater a little bit because they have
8 to look up to see the CEFS tank right there. But I can't think of
9 a time where most flights are here and we had CEFS that I was
10 like, oh, man, I wish the CEFS wasn't there, I could see more.

11 Q. So form this as a question. So for the areas which you as a
12 pilot are responsible for scanning, it really doesn't impede your
13 ability to scan? Maybe you can talk a little bit about, hey, in
14 the left seat I'm responsible for this sector, you know.

15 A. Yeah. I don't think it affects that much. I mean, I'm
16 trying to I think about when I've ever looked over there and I'm
17 like, oh, I can't see because a CEFS tank is there. I can't think
18 of a time where (indiscernible).

19 DR. BRAMBLE: Okay. Nick?

20 CW5 JACOBY: I have none.

21 DR. BRAMBLE: Van?

22 MR. McKENNY: Yeah. I have one question.

23 BY MR. McKENNY:

24 Q. Have you ever flown with a more, you know, a real experienced
25 pilot that's been here for a while, have they ever checked in for

1 the route and just said request Route 1 for visual separation?

2 Just --

3 A. Yeah --

4 Q. -- say that they check in with visual separation?

5 A. No. It actually kind of, I guess, caught me off guard when
6 you said it, because it just didn't sound like something that
7 anyone that -- would say. It just doesn't sound right, you know,
8 request it for the whole portion of the route flight.

9 MR. McKENNY: That's my only question.

10 DR. BRAMBLE: Okay.

11 CW2 COFFMAN: Just like a one time like ask -- you know, like
12 when they tell you like there's this traffic here and you say,
13 yes, I see it, requesting visual separation. Not can I have this
14 whole route. You know, it doesn't sound, doesn't sound right.

15 BY MR. McKENNY:

16 Q. So it's you request it each time that tower identifies
17 traffic that --

18 A. Yeah, for traffic that could maybe present an issue that's --
19 you know, say your flight path, like, hey, there's this traffic
20 here, do you see it? Yes, we see it; requesting to visually
21 separate from that aircraft.

22 MR. McKENNY: Thanks.

23 DR. BRAMBLE: All right. I'm going to ask a couple of
24 questions, and while I'm doing that, Van, could you pull up that
25 route, the planned route?

1 MR. McKENNY: Um-hum.

2 BY DR. BRAMBLE:

3 Q. If you decided that you wanted to go unaided, what callouts
4 would happen, if any?

5 A. Yeah. Just --

6 MR. McKENNY: This one here, Bill?

7 DR. BRAMBLE: Whatever the planned route is they issued on
8 previous --

9 CW2 COFFMAN: Well, hey, it's a little bright, left front is
10 going aided. All right, right front is going aided. That's what
11 it would sound like.

12 BY DR. BRAMBLE:

13 Q. Okay. So if you decided to go unaided, you'd say --

14 A. Our seat position unaided. And then (indiscernible)
15 expecting that the other person, going aided as well.

16 Q. And the crew chief also?

17 A. I'm trying to think if that's -- yes. Yes, it should.

18 Q. Okay. And then one other question before we get to the
19 routing. When you're wearing the goggles downtown, do you have
20 difficulty spotting approaching jets above you on the way to the
21 airport? How do you pick them out?

22 A. That's not really too much of an issue because you, once you
23 get out of the city lights and you're looking against like the
24 night sky or whatever, maybe it's easier flying that light as
25 opposed to something that's right at your flight level or maybe

1 lower when you're looking down into the city lights. So it's
2 easier to see that light against the sky, if that makes any sense.

3 Q. Okay. All right. Take a look at the routing there. Is that
4 a route that would seem unusual for a STAND NVG check, STANDS NVG
5 check?

6 A. No. I don't think so.

7 Q. Okay.

8 A. Because like they have to do a couple of different things.
9 You know, like they want to see their terrain flight navigation,
10 like a time on target supposed to be. So it's going to be a spot
11 that is maybe unfamiliar, like this KCGR. I'm not sure what that
12 is, but, you know, planning a type of route, like a timed run of
13 flight to get there a certain time.

14 Q. Even for an NVG flight, is that -- I mean, would that seem
15 unusual because perhaps there's a lot of cultural lighting
16 downtown or --

17 A. Which one? Going over to this whole thing or just --

18 Q. Well, the fact that it passes through downtown at all for an
19 NVG STANDS check, does that seem unusual or --

20 A. No. I mean, that's our operating area, so, I mean, it isn't
21 so unusual.

22 DR. BRAMBLE: All right. I'm going to go around one more
23 time. Van, do you have any --

24 MR. McKENNY: No questions.

25 DR. BRAMBLE: All right. Lauren?

1 MS. STRATTON: No.

2 DR. BRAMBLE: Paul?

3 BY MR. KIM:

4 Q. I have one question. For a STANDS eval flight without
5 routing, for example, would you expect there to be some kind of
6 task that is being evaluated during the flight while transitioning
7 during that -- or through the corridor.

8 A. Like are you asking me do I think that maybe they are
9 evaluating some tasks through there?

10 Q. Yeah. So which --

11 A. I don't think so. I mean, I don't know the -- I haven't done
12 an APART here. I don't know how they usually work. Like an
13 annual proficiency exam or a test, I haven't done one of those
14 here. But it doesn't seem odd to have that route flight through
15 there.

16 DR. BRAMBLE: Dave?

17 MR. BLAIR: No questions.

18 DR. BRAMBLE: Nick?

19 CW5 JACOBY: No.

20 BY DR. BRAMBLE:

21 Q. All right. That said, is there anything that we haven't
22 asked you about that you think -- that you'd like to share with us
23 or you think would be important for us to know given what we're
24 about here in our role in investigating the accident?

25 A. Not the accident specific, but it's more like a work, a work

1 thing. I do feel like just because the, like the tempo that I
2 like come from at Fort Bliss, we were flying a lot more, doing 4
3 hours of goggles a week, sometimes, you know, maybe more. And
4 here we generally do it like an hour every 60 days to get to
5 reset. It's not something that we're super current in. And just
6 the way our schedule works with like the mission that we have
7 sometimes it's tough to get those flights in. So not -- I'm not
8 sure it has anything to do with this, but --

9 Q. All right. So I didn't quite hear what you said about the 4
10 hours. So at Fort Bliss you do 4 hours of what a week?

11 A. Like NVG flying, sometimes a week, you know, like a lot of
12 reps, current, proficient. And here, it's just not as much, you
13 know, people are going just almost 60 days between their hour that
14 they can get on the schedule.

15 Q. What's the effect of that here, being less?

16 A. I mean, just not as proficient. I mean, you can still fly
17 the aircraft under NVGs. It's just different when you're not
18 doing it as -- you know, without frequency, you know.

19 Q. What would you -- what would seem like a more comfortable
20 amount of proficiency flying?

21 A. Like how many hours in a month, are you asking?

22 Q. Um-hum.

23 A. I mean, it can't happen, but like once a week would be nice,
24 but that's just not possible. You know, it's not a -- I don't
25 know what would be the best case, but more often than --

1 Q. Okay. And just because you're soft spoken, I just want to
2 confirm what you said is that you don't know what would be the
3 ideal amount?

4 A. Yeah. Just more, you know. I mean, going that amount of
5 time, there's guys at work that had their just 60 day reset, after
6 a 60 day reset. When you do that, after a couple months, you're
7 just not as good as you were. You know, that's just the way it
8 is.

9 Q. And what about the staff pilots, the officers that work, you
10 know, more at higher levels above the company, do they have more
11 difficulty getting proficiency things?

12 A. I think our flight scheduler does a good job getting the
13 staff on the schedule, but not more or less, just probably the
14 same, so --

15 Q. Okay.

16 DR. BRAMBLE: All right. That's all I have. Once more
17 around the table? Everybody good?

18 All right. With that said, we'll call the interview complete
19 at 1724 Eastern Standard Time.

20 (Whereupon, at 5:24 p.m., the interview was concluded.)

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of CW2 Adam Coffman

ACCIDENT NO.: DCA25MA108

PLACE: Fort Belvoir, Virginia

DATE: February 4, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Kay Maurer
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: BENJAMIN M. BARCZAK, Chief Warrant Officer 3

U.S. Army

APPEARANCES:

WILLIAM BRAMBLE, Investigator
National Transportation Safety Board

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

MARK WARD, Investigator
National Transportation Safety Board

EDWARD MILLER, Senior Accident Investigator
Federal Aviation Association

PAUL KIM, Chief Pilot
PSA Airlines

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Benjamin M. Barczak:		
By Dr. Bramble		5
By Mr. McKenny		35
By Mr. Blair		36
By Mr. Ward		39
By Mr. Miller		41
By Mr. Blair		45
By Dr. Bramble		45
By Mr. McKenny		54

I N T E R V I E W

(2:03 p.m.)

DR. BRAMBLE: -- Central, I'm sorry, Eastern Standard Time.

My name is Bill Bramble. I'm a Human Performance Investigator with the NTSB. Van McKenny and I are leading the Operations and Human Performance Working Group Helicopter for Investigation Number DCA25MA108 involving PSA Flight 4352 and PAT 25.

The NTSB's an independent federal agency. We're not part of the Department of Transportation or the FAA, and we have no regulatory or enforcement powers.

Our mission is solely to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of this investigation is accurate and complete.

We'll be recording this interview so it can be transcribed. After we receive the transcript, our group will review it for typos before it's included in the public docket. You can, or we will provide you an opportunity to review the transcript if you request it.

I'd now like each of the group members to briefly introduce themselves beginning with Mr. McKenny.

MR. McKENNY: Helicopter operations group chairman, NTSB.

1 MR. WARD: Mark Ward, NTSB accident investigator.

2 MR. MILLER: Eddie Miller, FAA, senior accident investigator.

3 MR. KIM: Paul Kim, PSA Airlines, chief pilot.

4 MR. BLAIR: Dave Blair, Sirkorsky Aircraft, Chief Pilot for
5 Safety.

6 CW5 JACOBY: CW5 Jacoby, brigade standardization officer for
7 the U.S. Army Aviation Brigade.

8 DR. BRAMBLE: You're entitled to a representative of your
9 choosing present during this interview, and it's our understanding
10 you decline to have a representative, is that correct?

11 CW3 BARCZAK: That's correct.

12 DR. BRAMBLE: Please answer all questions to the best of your
13 ability. If you don't know, you can say you don't know. If you
14 want to restate -- or an answer, you can. If you don't understand
15 a question, just ask us to restate it.

16 CW3 BARCZAK: Okay.

17 DR. BRAMBLE: All right. I think that's all the preamble.

18 INTERVIEW OF BENJAMIN M. BARCZAK

19 BY DR. BRAMBLE:

20 Q. Let's go ahead and get started with having you spell your
21 full name, please.

22 A. Sure. My name is CW3 Ben Barczak, or I guess, Benjamin,
23 first name, B-e-n-j-a-m-i-n; M as in Mike, middle initial. Last
24 name is Barczak, B-a-r-c-z-a-k.

25 Q. We know your current rank, it's CW2, and what is your current

1 unit?

2 UNIDENTIFIED SPEAKER: CW3.

3 DR. BRAMBLE: Oh, 3. Apologies.

4 BY DR. BRAMBLE:

5 Q. What's your current unit?

6 A. I'm at the 12th Aviation Battalion as battalion safety
7 officer.

8 Q. And how long have you been in that role?

9 A. I arrived August of 2024.

10 Q. And you've been in that role since that time as the safety
11 officer?

12 A. Correct.

13 Q. Okay. Tell us about your current role as the safety officer
14 and, you know, what its responsibilities are and any other
15 qualifications or additional duties that you have?

16 A. Okay. So I -- qualification from the Army. I did the Army's
17 safety officer course in 2021. Essentially it was 6 weeks, I
18 believe it is. Kind of a crash course in all things safety,
19 occupational health and the Army safety program.

20 After that, I was assigned as a company safety officer at
21 Fort Riley, Kansas from 2021, and I departed the last year, 2024
22 before coming here.

23 Since I've been here, at the battalion level position,
24 essentially the safety officer is responsible for managing the
25 individual flight companies safety officer programs.

1 I coordinate for our periodic battalion safety and transition
2 meetings that are conducted every quarter. As well as we have
3 employee safety committee meetings on a quarterly basis as well.
4 That's kind of more a granular level, bottom up refinement, safety
5 things that people notice throughout the battalion so we can
6 identify them and then get them corrected and efficient.

7 Additionally, as I kind eluded to the -- managing the
8 companies safety programs so managing those company safety
9 officers ensuring that they are doing their monthly reports.

10 So each company provides me on a monthly basis with a, we
11 call it the safety packet. And essentially what that is, is a
12 series of monthly inspections so fire, FOD, HAZCOM, and then
13 hearing conservation as well.

14 Essentially each one of those guys has a person underneath
15 them that, as an additional duty, will go by and, you know, for
16 fire prevention, for example, I'll inspect all the fire
17 extinguishers on a monthly basis.

18 The FOD, probably they'll tell me when they did a FOD walk on
19 their respective portions of the ramp areas, and any findings that
20 come of that. So if the FOD cans are full, they'll say, hey, we
21 need to recommend emptying the FOD cans more often or, you know,
22 those types of things.

23 We talked about the safety committee meetings.

24 And then really, where I interface, the biggest part is with
25 the battalion chain of command recommending any sorts of

1 adjustments to the safety program or anything that is brought to
2 my attention that's potentially unsafe or a hazard for our service
3 members that we can get resolution for so that they can either,
4 one, dedicate resources to it, or two, push it to a higher
5 headquarters which in our case would be our immediate higher
6 headquarters is the TAAB Brigade to get additional resources to
7 fix the problem.

8 Q. Okay. You mentioned quarterly meetings and then additional
9 meetings that were more granular, can you tell me again what the
10 additional meetings were?

11 A. Those two additional meetings, the first one is the -- it's a
12 quarterly safety and standardization council meeting. It's
13 comprised of the battalion leadership, myself, our battalion
14 standardization pilot and then all of the company command teams
15 and then our respective company counterparts so the battalion, I'm
16 sorry, the company SPs, Standardization Pilots, the company safety
17 officers.

18 We also incorporate the flight surgeon and PA into those as
19 well as like our LCs, our survival gear representative attends
20 those as well.

21 And really what those are identifying levels at the battalion
22 level. A lot of them are actually derived from the company levels
23 that are brought to our attention as well. Things that are
24 brought to us to action whether -- so context, one of our things
25 that we've brought up in previous meetings are some wire hazards

1 associated with the low weather flying routes in the local flying
2 area. We've resourced through our brigade a person that's the
3 action officer for that to get all the stakeholders together so we
4 identify the problem and then working towards a solution to get
5 those wires marked, for example.

6 That's just one of the things that has come to mind. And
7 they can be anything from those flight hazards to issues in the
8 hangar where a lot of times, in the warmer weather months, it's
9 brought to our attention, you know, that it's hot working
10 conditions in the hangar so we try to resource additional fans or
11 cooling methods to be keep the maintainers cool and prevent any
12 sort of hot-weather injuries.

13 So yeah, that's kind of the composition of the battalion
14 safety and standardization council.

15 Additionally, there's what's called the employee safety
16 committee. What that is comprised of -- it's similar in nature to
17 the safety stans, but it's more geared towards strictly the safety
18 realm of things. And essentially what that is, is there's a
19 chairman, a vice chairman and a recorder as well as two
20 representatives, a primary and an alternate from each of our
21 companies.

22 I kind of -- I am there to facilitate the meeting happening.
23 I'm not a voting member or anything like of that nature. Again,
24 I'm just a facilitator in that regard. But the chairman is one of
25 our Delta company's civilians just to maintain longevity there,

1 and we don't have to churn people coming in and out of the unit so
2 he's head that up.

3 Essentially what that is, again, more -- I said granular
4 level just in the fact that we have a primary and alternate so
5 think of it as, whereas, in the company safety stans, it's more of
6 the leadership that's generated these ideas and these, not
7 necessarily problems with the unit, but potential hazards and
8 identified it.

9 Whereas the employee safety committee meeting can be anyone
10 from the battalion can come to these meetings and propose a safety
11 issue or a change to a process that they think isn't very
12 efficient or unsafe, and we discuss it in a meeting.

13 So it's a -- like I said, a lot more bottom up refinement so
14 Joe Snuffy, you know, on the floor of a hangar doing 15 Tango
15 maintainer things can bring it up.

16 And essentially minutes are derived from this meeting where I
17 present those to the battalion commander, and she -- for her
18 oversight and then, again, to get the issues corrected.

19 Q. So as far as the meetings go, you have the company safety
20 stans meeting and then you have the employee safety committee, is
21 there an additional quarterly meeting as well?

22 A. That's the battalion safety stans meeting.

23 Q. Okay. That's the battalion safety stans, okay.

24 A. Then kind of outside the immediate 12th Aviation footprint,
25 we also have a brigade. Essentially it's the same thing, company

1 or brigade level safety stans. It's called the SOHAC, Safety and
2 Occupational Health Advisory Committee, I believe is what that
3 stands for.

4 Those are held semi-annually because we have one usually --
5 the one we most recently had was in the fall. I want to say it
6 was in November. And then we're planning on having another one
7 towards the spring sometime.

8 It's all essentially the same things that are brought up
9 during the battalion safety stans meeting just at a more
10 centralized level with brigade leadership and things of that
11 nature.

12 Q. Do you retain minutes for all these meetings?

13 A. Yes, we do.

14 Q. Okay. Where'd you go the Army safety officer course?

15 A. That's located at Fort Novosel in Alabama.

16 Q. Novosel?

17 A. Correct.

18 Q. Okay.

19 CW5 JACOBY: Formerly known as Fort Rucker.

20 CW3 BARCZAK: Correct.

21 BY DR. BRAMBLE:

22 Q. All right. What was that like? What was sort of the -- how
23 was that organized?

24 A. So unique experience for myself in the time that I went to
25 the course, still kind of the post-COVID mitigation time.

1 So essentially, for my class specifically, we arrived and we
2 had -- we checked into our hotel rooms and then we had about
3 2 weeks of -- it was all on Microsoft Teams for the first 2 weeks
4 then it was a lot of the more cut and dry type material of the
5 class, the PowerPoints, so the presenters kind of just gave
6 presentations via Microsoft Teams for those first 2 weeks.

7 And then we had the -- the remainder of the time in person.
8 That focused more along the lines of the meat and potatoes of like
9 mishap investigation type things, and then just the remainder of
10 the course.

11 Q. Is there like a safety paradigm or model that the Army
12 follows sort of like, you know, commercial aviation has Safety
13 Management System? Is there some sort of parallel set of acronyms
14 or process that as the Army defines it?

15 A. I would have to look it up. It generally does model
16 commercial aviation in regards to human factors.

17 Oh, this all mishap reporting and investigation type things,
18 but like analyzing human factors and material findings, all those
19 types of things.

20 Q. Do you guys use the HFACs approach to mishap investigation?

21 A. Correct, yeah, HFACs.

22 Q. All right. And what about safety management, did they talk
23 about, for example, these meetings in terms of like safety
24 management or risk management or anything like that?

25 A. Right. So, we incorporate risk management into everything we

1 do. It can be aviation specific side of the house. A lot of
2 things are captured under the RCOP which I'm sure has been brought
3 up before in some of your other interviewees.

4 But essentially that's what, the risk assessment we fill out
5 prior to going to fly. The pilot in command of the aircraft will
6 do that, or if it's a multiship flight, it'll be the air mission
7 commander. They'll fill out their risk assessment and then
8 present it to mission briefing officer and then subsequently to
9 the final mission approval authority.

10 And throughout that process, risk is highlighted and captured
11 and then mitigated down to the lowest level. That's for the
12 aviation side of the house.

13 Also for some of the things we do on the ground, that's
14 captured in a delivered risk assessment form that we have. A
15 similar process just different document. Again, that's usually
16 whoever is in charge of that event will identify the risk
17 associated with that event and then, again, present it -- how
18 we're going to mitigate the risk and then it's approved by,
19 depending on the level of risk associated with it, the appropriate
20 approval authority.

21 Q. As a battalion safety officer, do you handle the aviation but
22 also the non-aviation aspects?

23 A. That's correct, yeah. I review all those delivered risk
24 assessment worksheets that get submitted for the ground things.

25 For the aviation side, it's kind of hit or miss whether or

1 not someone asks me to give them a mission brief.

2 I'm a mission briefing officer as well.

3 I don't see all of the risk assessments that come by for
4 aviation, but in the event that someone asks me for a brief,
5 that's what I obviously review, their risk assessment and then
6 offer my mitigation.

7 Q. You fulfill the mission briefing officer role if asked?

8 A. Yes.

9 Q. I see. In terms of your aviation background, can you give us
10 your total flight experience and UH-60 time and NVG time?

11 A. Absolutely. So I have been, I've been flying UH-60 Limas
12 since I got out of flight school. I was originally a Mike Model
13 trainee in flight school. My first assignment out of flight
14 school was a Lima Model unit, and I've been with Limas ever since.

15 I currently have, it's approximately 1150, 1,150 hours total
16 time of which it's probably about 275 hours goggle time.

17 Q. Okay. And how much of the 1,150 is in the Lima?

18 A. It would be a substantial portion of that, probably upwards
19 of a thousand hours.

20 Q. Did you begin your aviation career in the Army, or did you
21 have previous -- can you give us sort of like a *CliffsNotes*
22 version of your aviation history?

23 A. Yeah, so aviation history has only been in the Army. I did a
24 little over 10 years enlisted time prior to going to the Warrant
25 Officer Candidate School; did that in 2015.

1 And then I finished flight school at the beginning of 2017.

2 Q. Okay. And then where were you stationed after 2017?

3 A. My first assignment was Fort Liberty North Carolina, formerly
4 Fort Bragg. I stayed there until 2021 in which, at which time I
5 -- they call it tracking and route so I went to the safety officer
6 course before my next assignment at Fort Riley Kansas.

7 And again, I stayed, served there until last summer when I
8 PCS'd to here.

9 Q. Great. Can you tell us who the other safety officers are in
10 the different companies and then sort of who else is involved in
11 the safety structure?

12 A. Absolutely. So I'll start at the top.

13 Our brigade safety officer, he's a civilian. His name's
14 Mr. Ross Steadman. We also recently had a new safety hire to fill
15 that second billet position there at Brigade. Her name is
16 Salem St. James. Both civilians. There's also an airfield safety
17 manager, Mr. Pete Roderick.

18 And then coming down to 12th Aviation, we have myself at the
19 battalion position. In Alpha Company, CW3 [REDACTED] Chambers. In
20 Bravo Company is CW2 Zach Fonda. Charlie Company, their safety
21 officer just PCS'd last month so we have an interim -- there's a
22 dual-tracked individual, he's also the Charlie Company
23 standardization pilot, his name is CW3 Steve Laycock.

24 Q. How do you spell his last name?

25 A. L-a-y-c-o-c-k.

1 Q. Okay. And Steadman's last name, how's that spelled?

2 A. S-t-e-a-d-m-a-n.

3 Q. All right. So that's top to bottom, the safety structure?

4 A. And then additionally, we have a Delta Company which is our
5 maintenance company. We have a full-time safety officer there
6 well. He is CW2 James Coates, sorry.

7 Q. That's all right.

8 A. James Coates.

9 Q. C-o-a-t-e-s?

10 A. C-o-a-t-e-s.

11 Q. How does the brigade level safety manager role interface with
12 the brigade level Army -- are there brigade level Army leaders
13 that are also sort of like accountable for the safety program?

14 A. So traditionally what you would see in a normal Army Combat
15 Aviation Brigade, or a CAB for short, that brigade level position
16 would -- was usually nine times out of 10, a green suiter, a
17 person in the Army usually at the CW4 or CW5 level.

18 Here I think, just because of the unique nature of the unit
19 on Davison Army Airfield and the way things are structured, is why
20 we have two safety civilian positions there. That's kind of why
21 you see a civilian person there but just know that usually
22 anywhere else in the Army, it's going to be a green suiter there.

23 How they interact with the battalion level, so Ross and I
24 have really a good working relationship, open lines of
25 communication as I -- as things are brought to my attention that

1 can't be handled at my level, he's always more than welcome and
2 willing to assist in pushing, elevating things higher to get some
3 resolution behind them. It's a really good lines of communication
4 there.

5 Like I said, Ms. St. James is recently on the team, but so
6 far the interaction I've had with her has been great. She's come
7 on board and really looking to help make some changes as well.

8 Q. Okay. So if Ross was to elevate an issue then -- to try and
9 get resources or change or something, like, what is the -- who
10 would he elevate that to?

11 A. We'd go either to the brigade leadership or, I guess,
12 depending on the nature and severity of the issue, pushing up to
13 MDW, Military District of Washington.

14 One example of that would be those -- the power lines that I
15 mentioned earlier. Obviously that's something that's kind of
16 outside the scope of anyone's area of influence on Davison Army
17 Airfield.

18 So getting the resources with MDW, the Pentagon, and then
19 tying in those power line companies, all the stakeholders
20 involved, to work through our options to get resolution to it.

21 But that's just one example of something that they would
22 elevate and how they would go about doing it.

23 Q. Hm-hmm, okay. Do you guys have any regular interface with
24 the Army Safety Center, or are they not involved at this level?

25 A. No routine relationship with the safety center, with

1 personnel there.

2 I would caveat by saying that the monthly safety packets that
3 I referenced a while back, the Army is going towards moving all of
4 those to a centralized location on the CRC's website.

5 So essentially, those monthly safety packets instead of now
6 -- historically it's just been like a paper packet of things that
7 the companies present their company commanders. They talk about
8 the issues, the company commander signs it off and then it says
9 maintained at the, you know, in a company filing system.

10 Now, what the Army is going towards is all those monthly
11 reports are now input into what's called ASMIS 2.0 which is the
12 Army's way of cataloguing those things. So that's cataloguing
13 things from mishaps and near misses to now -- they've continued to
14 add functionality to that website where we log those inspection
15 results under there as well.

16 It all just aggregates data and kind of, they can start
17 building trends as far as okay, well, this unit's running into
18 problems with monthly, this aspect of monthly fire inspections,
19 maybe this unit is as well.

20 So they can kind of use that to gain a better sense of
21 shortcomings and recommended prudence across the force.

22 Q. Who maintains that as Azimuth 2.0?

23 A. So it's ASMIS, A-S-M-I-S 2.0. That's maintained at
24 Fort Novosel with the Army Safety Center.

25 Q. Tell me the letters one more time, I'm sorry.

1 A. A-S-M-I-S.

2 Q. Okay. And you said the safety center maintains that?

3 A. Correct.

4 Q. Are you guys feeding info into that already or not yet?

5 A. We are, yes, sir. So the monthly, results of the monthly
6 inspections are put into ASMIS and then as we have mishaps and
7 near misses, those are all s-- those have been being logged into
8 ASMIS for quite some time now.

9 It's really, like I said, the added functionality of putting
10 the inspection results on there now. That's something that's been
11 more recent. I'm not quite exactly sure when that began, but
12 since I've been here, that's what we have been striving to do.

13 Q. Okay. So the inspections, are they sort of like safety
14 audits, or is it a different kind of inspection?

15 A. More of just safety promotion and then ensuring that we don't
16 have a bunch of fire extinguishers laying around that are --
17 haven't been inspected in 2 years.

18 So it keeps people engaged in those different functional
19 areas like I mentioned. So the fire prevention, FOD awareness and
20 prevention, hearing conservation and then HAZCOM, hazardous
21 communication, so really a lot of the oils, lubricants, p-oils,
22 things of those natures. Those are all catalogued, maintained
23 usually at the company level.

24 And then, again, it's just to ensure that we're also doing
25 our due diligence on proper disposal techniques and procedures,

1 everything in that regard as well.

2 Q. Okay. So that kind of focuses your attention at the company
3 level on sort of what things you should look at?

4 A. Correct, yeah.

5 Q. Is there a battalion safety policy, like, sort of a broad
6 safety policy written down anywhere?

7 A. So we have -- what we operate off of is what's called the
8 TAAB, or our brigades safety Standard Operating Procedures.
9 Again, that document's maintained with Mr. Steadman. And also
10 like I've mentioned before, just the open lines of communication.
11 He's all for making adjustments to the SOP as long as it's,
12 obviously, grounded in fact and doctrine and is in accordance with
13 other OSHA and other procedures that are out there.

14 We haven't made any adjustments to the SOP since I've been
15 here. It's a rather lengthy document. It's upwards about
16 130 pages, and there's also several attachments to it.

17 But, yeah, that covers really from start to finish the safety
18 program within the TAAB and the units that operate underneath it.

19 Q. Hm-hmm. How long has Mr. Steadman been in his role?

20 A. I don't know the exact dates that he originally arrived, but
21 it's been for quite some time.

22 Q. And then how often do the -- how often does your position
23 turn over typically?

24 A. Traditionally, for officers and warrant officers, it's a
25 3-year assignment.

1 Again with, like, kind of the uniqueness of this area and
2 some of the family resources and things of that nature, it kind
3 of, it depends on the length of a person's stay.

4 The person that I replaced had been here for, I believe it
5 was 5 years. So like I said, it kind of depends just based off of
6 the uniqueness of this place.

7 But in a traditional CAB, it's usually 3 years for tracked
8 aviators in a position.

9 Q. Is that safety specialty, is that a sought after
10 specialization for aviators?

11 A. As far as tracking?

12 Q. Hm-hmm.

13 A. Many units kind of leave it up the individual aviator as to
14 what they want to track.

15 I think the Army's getting a lot more buy in from individuals
16 when they get to choose what their path is, so to speak, in
17 aviation as opposed to forcing somebody to, hey, we need you to be
18 an MTP, a Maintenance Test Pilot, we need you to be a safety
19 person.

20 So not very many instances that I can recall where someone's
21 been forced into a track so everyone that is tracked has chosen
22 their track and they have, like, their own individual reasons
23 behind that.

24 Q. So you opted into this specialty?

25 A. Yes, sir.

1 Q. What drew you to that line of work?

2 A. Well, one, I wasn't -- the instructor pilot course was full
3 for the rest of the year, and, two, safety was my top second pick.

4 But for -- but in all seriousness, I find a lot of value in
5 identifying things that are hazards or potentially pose tremendous
6 risk to the people that are sons and daughters of the country.

7 I find a lot of value in that.

8 Q. Okay. Where do people typically go from your role, like,
9 what would be sort of like the next phase for you?

10 A. So the next phase, after a battalion level position would be,
11 again, depending on career progression, timelines, either a
12 brigade position or depending on, like I said, how long someone's
13 been in a rank, you know, potentially, it'd be a senior warrant
14 officer advisor to a battalion command group.

15 But traditionally it's the upper -- the next level higher is
16 the brigade safety officer.

17 Q. Is that something that you're going to seek in the future or
18 not sure yet?

19 A. I personally am going to be retiring before I'll be eligible
20 to do that.

21 Q. Okay. Do you feel that the -- you guys call yourselves the
22 safety program or the -- how do you refer to the safety structure
23 that goes from brigade down to the companies?

24 A. The safety program would be -- suffice.

25 Q. Does the safety program get adequate support from brigade

1 leadership?

2 A. Yes, they do.

3 Q. Adequate resources?

4 A. I would so say, yes.

5 Q. All right. Tell me about the RCOP, who manages the
6 structuring of the RCOP to appropriately weight risk factors?

7 A. So the RCOP is a standardization document. The concept of
8 the RCOP comes from higher headquarters.

9 U-SAS, I believe it's a U-SAS document, and then at the unit
10 level, each unit's RCOP may look a little bit different.

11 So the RCOP that I saw in Kansas based off of our missions
12 that we had is different than the RCOP that's here at
13 12th Aviation Battalion because again it's two different types of
14 missions.

15 With that being said, adjudicating or identifying risk is at
16 the brigade level.

17 Q. So when an RCOP is tailored to a particular mission type,
18 it's the brigade type that would -- the brigade level that would
19 modify it?

20 A. Correct. For that unit's individual specific task that it's
21 being asked to do.

22 Q. Okay. And presumably they would do that in conjunction with
23 battalion and company level safety officers, or does it just come
24 down from brigade?

25 A. I've never been involved in that process so I can't

1 intelligently speak to it.

2 Q. Okay. Let's talk about how safety issues can be reported up
3 the chain from personnel flying or doing the work, how do they --
4 how can pilots report a safety concern?

5 A. So the quickest way and at the lowest level, it's to their
6 company safety officer. And again, that could be any variant of
7 hazard or issues that's real or perceived to their company safety
8 officer.

9 And then depending on the level of engagement that's required
10 to resolve it, it can either be resolved at the company level or
11 brought to my attention at the battalion level and then it gets
12 like, yeah, something that's outside of my realm of feasibility,
13 bringing it to brigade and subsequently higher.

14 Q. You would bring it?

15 A. Correct, yes.

16 Q. Have you had the opportunity to or had the need to escalate
17 any issue like that before? I know you've only been here
18 6 months.

19 A. Yeah. Really the only thing that I've brought -- elevated to
20 brigade level is some of our facility issues and some of the
21 hazards that are posed by it.

22 We have a satellite dish that's required in our Delta Company
23 hangar that is on -- it has to be placed on the roof for access
24 and satellite acquisitions, things like that. We're looking to
25 improve the safety measures surrounding accessing that satellite

1 dish.

2 So that's something that had preceded me. I've since
3 realized it, readdressed it and brought it back up to -- trying to
4 get some resolution on that.

5 That's really the only thing that I've had to readdress since
6 I've been here.

7 Q. Was your leadership responsive to that?

8 A. Absolutely, yeah.

9 Q. And you don't have to get into specifics yet, but, I mean,
10 I'm just -- any flight safety related concerns reported to you by
11 your pilots?

12 A. There has been recently one issue. Again, if you don't want
13 me to get into specifics, I don't need to, but it was essentially
14 a laser incident along the D.C. helo routes.

15 Q. And that was reported when?

16 A. I can get you the exact date. It was within the past
17 2 weeks, and that was reported by our National Guard unit that's
18 attached to our unit, the 12th Aviation Battalion, to augment our
19 aircraft in doing our mission.

20 They were out on a training flight along the D.C. helo routes
21 and had a laser incident.

22 Subsequently, one of -- the non-routing crew member in the
23 back, the crew chief, did go to the hospital the following day to
24 be evaluated, but he was returned to duty and no health effects
25 identified from it.

1 Q. Okay. Anything else that comes to mind?

2 A. No. As far as flight things are concerned, no. That's the
3 only thing that's been brought to my attention.

4 Q. Would the company level safety officers handle issues brought
5 to them by pilots without involving you, and you wouldn't know
6 about it; or would it always have to be reported to you with
7 aviation related safety concerns?

8 A. So with aviation things, I would hope that they would all,
9 the company safety officers bring them to my attention.

10 One thing I've strived to kind of improve since I've been
11 here is just the lines of communication between the company safety
12 officers and myself centralized at battalion.

13 We have a group chat for all the safety officers where if
14 something happens no matter kind of what level of, you know, what
15 scale of it, we like to provide awareness to the rest of the
16 battalion with it.

17 And they can be, say, somebody slipped on the ice in the
18 parking lot so, you know, let's either, one, dedicate some
19 resources to getting the parking lot properly cleared, or, two,
20 just reminding people to use extra caution when they're out there
21 or when they're on top of an aircraft, if there's high winds.

22 All those types of things to just, again, I like to just
23 increase that awareness, increase that visibility of hazards and
24 so we do that through that safety chat as our primary mechanism
25 for doing that.

1 Q. Safety what?

2 A. It's a safety, like, group chat.

3 Q. Oh, chat?

4 A. Yeah. Long answer to a short question would be yes, they do
5 bring it to my attention regardless of the severity of it.

6 Q. Is there a way to report any, report safety concerns
7 anonymously?

8 A. Yes, there is. So that can be done via an occupational
9 hazard report. Not too many of those get submitted. It's more
10 essentially, that's more of an official way to do things.

11 A lot of things that are brought to our attention are things
12 that are, you know, could be mitigated right there on the spot
13 type things. So those don't necessarily get as much diligence in
14 being catalogued if it's like an on-the-spot type correction.

15 Q. Is there a data monitoring program for analyzing fly data
16 that might be recorded by the aircraft?

17 A. When you say -- I guess you need to say that again so I can
18 wrap my head around it.

19 Q. Hm-hmm. Yeah. So I was just wondering, so airlines, many of
20 the major airlines participate in sort of operational data
21 analysis programs, both within the company where they sort of will
22 aggregate data from lots of flights and look at different
23 parameters; or even at a broader industry level where they don't,
24 they contribute those data to a broader system where it's
25 analyzed.

1 Do you guys participate in anything like that?

2 A. The closest thing that I think would resemble that would be
3 when we report either near misses or actual mishaps themselves.

4 But to the best of my knowledge there's nothing that says,
5 like, okay hey, this company flew X amount of hours in a month and
6 did or did not have issues.

7 There's nothing along those lines. I think that's why I
8 think it would be a net.

9 Q. Okay. And so for example, if you wanted to monitor whether
10 or not the helicopters were complying with the maximum altitude
11 requirements on the VFR routes, there's no automated way that
12 you're tracking that?

13 A. No, sir.

14 Q. Is there any kind of safety officer ride along observation
15 type program separate from, like, an instructor pilot evaluation
16 where you might sort of in a no jeopardy way right along and
17 observe operating practices?

18 A. No. There's no, none of that type of procedure in place as
19 far as like the safety world is concerned.

20 Q. All right. How about feeding information, safety
21 information, back to the pilots, is there -- do you guys push
22 safety-related information to them on a routine basis?

23 A. Absolutely. It brings up a great point.

24 So every month, we have pilot academics, aviator academics is
25 what we call them. And in that presentation -- that's comprised

1 of, you know, our standardization pilot battalion level generates
2 a list of academic criteria that's addressed during each one of
3 those meetings.

4 It gives some junior pilots an opportunity to resource and
5 present a class that they're assigned and then as well as, it's a
6 good forum for addressing things that you just mentioned. So,
7 yes, safety issues, any sort of things that are brought up in the
8 safety world and then updates to projects that we have going on as
9 well, those are all usually briefed at our pilot academics.

10 Q. And who are the ones that would receive the assignment to
11 present the class?

12 A. Usually the -- at the battalion level, it'll be something
13 along the lines of, okay, Company X, Y and Z, you guys are on --
14 up for academics this month. These are -- and that's all
15 published in a memorandum so by a month, it'll be, say, these
16 companies are responsible for teaching this topic and this topic,
17 this next company's responsible for another topic.

18 From there at the company level, those are assigned by
19 usually the company standardization pilot to the pilots in their
20 formation.

21 It's usually also in conjunction with, you know, if somebody
22 were mentoring somebody to become a pilot in command, it's their
23 opportunity to, again, resource and present those classes.

24 Q. And so that happens at the battalion level and then all the
25 companies attend?

1 A. Correct, yeah.

2 Q. And the people putting on the presentation would be like the
3 standard officer?

4 A. It would be the battalion standardization pilot, yeah.

5 Q. Okay. And then would the battalion, or would a company or
6 battalion safety officer be involved?

7 A. Yes. So I have a slide on there where I will -- Mr. Ingles
8 will ask me if I have anything to put out for that particular
9 month, I'll update my slide. When it comes time for the
10 presentation, hop up there and present whatever's on the docket
11 for that month.

12 Q. Can you remember the last one that you did, what the topic
13 was?

14 A. As far as safety information that was provided?

15 Q. Hm-hmm.

16 A. So the last one that we presented would have been, I think it
17 was November.

18 It was regarding winter-safety type topics. So using more
19 caution on the ramp and when you're climbing on top of the
20 aircraft to prevent slips and falls from the tops of the aircraft.
21 Also utilizing like a buddy system when going out there, with the
22 cold temperatures, discourage people from going out there by
23 themselves with the cold temperatures.

24 And I think we also included an update to the power line
25 issue at that meeting as well.

1 Wildlife strikes also were, have been something I've brought
2 up every single time. Since we've been here or since I've been
3 here, all the academic meetings with bat strikes really. We
4 haven't had any bird strikes. It's just really, just people
5 noticing bat strikes. That's been two instances since I've been
6 here that air crews have identified on post flight.

7 Q. What about traffic conflicts, particularly in the vicinity of
8 DCA, any issues been raised about that at the flight crew level?

9 A. So since I've been here, I've had zero complaints or issues
10 brought to my attention about the D.C. helo route quarter
11 structures or any type of incidents along them with the exception
12 being that laser incident I referenced earlier recently.

13 As far as like traffic avoidance and things of that nature,
14 every time I've flown on the D.C. helo routes, it's been a
15 nonevent. It's been clear communication from Tower and then also
16 had positive comms with the other -- it's all been rotary-wing
17 traffic I'm referencing, but good two-way communication between my
18 aircraft and the other rotary-wing aircraft operating along the
19 route structure so no issues to my knowledge.

20 Q. Okay. And then since the accident, has there been anything
21 come out of the woodwork as far as concerns on that subject?

22 A. The only thing I would say that was brought to my attention
23 post-accident was, I don't have all the details on it, but either
24 the day before or a couple days before, one of our aircraft -- it
25 was brought to my attention that commercial aircraft did a go

1 around at DCA because of an aircraft operating on the quarter
2 structure on Route 4.

3 And, again, I think people did the leg work on that and,
4 like, figured out -- did the research on it, and it was kind of
5 one of things where the commercial aircraft did a go around just
6 for the sake of being safe and sorry type thing.

7 There was no type of accusations that the helicopter was too
8 high or doing anything, deviating from the standard operating
9 procedures along the corridor structure. It was just one of those
10 level of comfortability things I think is how it was explained to
11 me.

12 Again, don't have all the details regarding that, but that's
13 just something that has been brought to my attention post mishap.
14 Q. Can you tell me if that helicopter was from the same
15 battalion?

16 A. It was, yes.

17 Q. Okay. And that seems like the kind of thing that you would
18 know about as the battalion safety officer?

19 A. Unless it's reported to -- so, I don't even think the
20 helicopter air crew knew about the go around until, like, a couple
21 of days ago.

22 Q. I see.

23 A. So yeah, unless a pilot says, hey, we were flying this route,
24 this time, I did not feel comfortable about this, this is a
25 hazard, I want you to know about it type thing, I'm never going to

1 know about it.

2 Q. Okay. And then since then, have you been allowed to be in
3 the loop on whatever's learned about that?

4 A. I've tried to get some -- everything that I've just described
5 to you is my understanding as I know it, how it was described to
6 me so I'm not sure if any more information is out there.

7 But absolutely, that's something, you know, I would, and I've
8 been, ever since this happened, trying to think about ways to
9 improve things, what we can do better, how we can interface with
10 the other airspace owners, and how these things can be brought to
11 our attention in a more streamlined manner.

12 Because unless, you know, a pilot flying on the structure and
13 gets, hey, I got phone number for you to copy type traffic, then
14 they're not going to know anything was out of the ordinary or
15 anything of that nature.

16 I've been trying to think of ways, like, how can we make this
17 better, how can we keep things like that.

18 Q. Once the battalion became aware of that incident, whose
19 responsibility is it to look into that and find out what happened?

20 A. That particular incident is being looked at by our
21 standardization pilot to see if there's any sort of deviation.

22 From my perspective, everything that was described to me, it
23 didn't sound like there was any sort of safety concern. I did not
24 plan on looking into further based on everything that was conveyed
25 to me.

1 Now if the standardization pilot came back and said, hey, we
2 did some more research into this, and they were, you know, they
3 busted their altitude and no one called them out on it, or any
4 sort of those types of things then, absolutely, that would be
5 something to address further with the battalion leadership and
6 then be one of those things we address during our pilot academics.

7 Q. Do you know what the clearance was between those aircraft?

8 A. I do not know.

9 Q. If you wanted to look into that, would that be -- would you
10 be permitted?

11 A. I've never had to do that, but I would tell you I would do,
12 my kind of steps that I would go through, would be to call over to
13 DCA Tower and kind of give them as much information that I had
14 about it as far as, like, the timing of the route would probably
15 be the best thing to do because I -- depending on if the other air
16 crew could catch a tail number or call sign type thing.

17 And then just try to gather as much information as I could
18 from their perspective on what the incident was. That would be
19 how I would go about it.

20 As far as what information would be shared with me, I would
21 be willing to venture that they would, you know, in the spirit of
22 aviation safety, be willing to share that with me.

23 Q. That ATC would?

24 A. Yeah.

25 DR. BRAMBLE: Uh-huh, okay. All right. That's it for me

1 right now. I'm going to pass it on to Mr. McKenny.

2 CW3 BARCZAK: Okay.

3 BY MR. McKENNY:

4 Q. Have you flown the route yourself, the D.C. VFR Route 1,
5 Route 4 at night with NVGs?

6 A. Yes, I have.

7 Q. How many times?

8 A. Twice.

9 Q. Twice, okay. Were you the instructor or pilot in command on
10 those?

11 A. I was just the secondary pilot, the PI we call it.

12 Q. The PI, sure. All right. So you only had it twice, was
13 there anything that struck you about making that route,
14 observation wise, it seemed noteworthy?

15 A. It's different. It's a different experience. Coming -- all
16 of my other flight experience, you know, is in airplanes, big and
17 scary, stay away from them.

18 Where here, it's, you know, that's the quarter structures
19 with the published altitudes, all TERP'd out and approved, and
20 there's landing and departing traffic on a normal basis.

21 The first time, yeah, it's a different experience. I never
22 felt unsafe just because I did have a clear understanding of where
23 arriving and departing traffic was coming from as far as a clock
24 distance and direction from the aircraft.

25 And then relying on our instrument systems to fly the

1 published or below altitudes depending on what portion of that
2 route segment you're on. So I never felt unsafe.

3 Again, it's just a different feeling, you know, with those
4 aircraft, seeing them within that close of a proximity to you.

5 MR. BLAIR: Day or night flights, sorry?

6 CW3 BARCZAK: I've done both day and night. They're insane
7 flights, yeah, day or night.

8 MR. McKENNY: I lost my train of thought here.

9 BY MR. McKENNY:

10 Q. When you were flying those routes, did Tower call traffic to
11 you?

12 A. Yes.

13 Q. Okay. And how did that interaction go, do you remember?

14 A. So traffic will issue you a traffic advisory. For those
15 particular instances, it was arriving traffic for DCA Runway 01.
16 I was flying from north to south coming off of Route 1 onto
17 Route 4, returning back to Davison.

18 They issued, you know, I don't remember what type of
19 aircraft, it was a regional type airliner, you know, off of this
20 intersect or this way point coming inbound, you know, call traffic
21 in sight type, those types of things.

22 And then what was -- a big learning point for me was
23 acknowledging that traffic and then also requesting the visual
24 separation piece.

25 Instead of simply responding that you have that traffic in

1 sight and Tower responding to you by telling you to maintain
2 visual separation, the practice is to request that visual
3 separation in that first initial response to Tower, and it gives
4 them that confirmation that you see them and then you're
5 requesting the visual separation as well.

6 So that's kind of what was ingrained in me for my local area
7 on orientation flights around the D.C. helo routes, and what I've
8 tried to implement ever since.

9 There's been no -- there was no -- for those instances like
10 you asked of me, good, I would call it good communication between
11 Tower and all the aircraft involved of, the different aircraft and
12 hazards.

13 Q. So just automatically requesting visual separation as part of
14 your response to the notification of traffic by Tower, is that
15 something that's written down anywhere in any of the training or
16 SOPs as a standard procedure?

17 A. As far as our SOP is concerned, I'm not sure. I know, doing
18 a little research, it talks about, you know, that that visual
19 separation is going to be dictated to you. So, hence, why they do
20 it here.

21 Q. Would you characterize that as tribal knowledge?

22 A. I mean, technically, yes, it would be tribal knowledge. But
23 like I said, I would have to do some research to see if that is
24 actually written anywhere in there.

25 Q. But you haven't seen it written, and you just know it from

1 the other pilots, right?

2 A. Correct.

3 Q. Okay. When you're on that flight, so was the other pilot
4 you're with, did they ever acknowledge the traffic and ask for a
5 visual separation, but not quite see it yet?

6 A. No, sir. So, yeah, usually, those instances, it's been
7 crystal clear what aircraft they were talking about. There's
8 never been any sort of second guessing or apprehension to -- was
9 that what he's talking about or no.

10 There's been -- there was none of that in any of those
11 instances. So, yeah.

12 Q. During those flights, if the pilot you were with saw the
13 traffic, did they confirm with you before making the radio call?

14 A. For both of those instances --

15 Q. Did you have like --

16 A. Both of those instances, we were both kind of simultaneously
17 over our ICS saying, yeah, got him in sight, 1:00.

18 So there was good crew coordination as far as -- I had a good
19 feeling that the other, the PC of that aircraft had initial eyes
20 on it as well. There was never any question about it.

21 Q. Okay. Within the command, what is your biggest safety
22 concern, aviation safety concern?

23 A. For flying?

24 Q. Flying, yeah, aviation safety concern, hm-hmm.

25 A. What I've put down as the mission briefing officer on the

1 RCOPS that I've reviewed and given briefs to, it's been -- my
2 biggest comments are avoiding complacency and then the potential
3 for a congested airspace within -- along our route of flight to
4 our LZ that we land at for our mission requirements.

5 So those have been my top two comments every single time. I
6 talk to the PC or the AMC, depending on if it's a singular or
7 multiship flight.

8 Yeah. Avoiding complacency and then minimizing the potential
9 for congested airspace and procedures to go about it.

10 Q. Okay. Besides the wildlife strikes, what's the most common
11 safety concern other pilots approach you with?

12 A. Really, it is -- no one's, like I said, approached me with
13 safety flight things.

14 What we usually deal with, as far as mishaps go, are slips,
15 trips, falls, lifting injuries with some of our Delta Company
16 maintainers, those types of things.

17 Aviation operations since I've been here, there's been no
18 glaring issues that have been brought up to me.

19 MR. McKENNY: All right. That's it for my questions for now.

20 DR. BRAMBLE: All right. Mark.

21 MR. WARD: Mark Ward.

22 BY MR. WARD:

23 Q. Do you use an iPad when you're flying?

24 A. I do.

25 Q. Where do you keep it when you're flying?

1 A. So I have a kneeboard style that's attached to my left knee,
2 or my left leg.

3 Q. Do you use the traffic ADS-B and on that to monitor traffic?

4 A. I do not. I don't have the capability to do that.

5 Q. Would you think it might be useful for traffic avoidance, for
6 tracking if you have the ADS-B in on ForeFlight?

7 A. I do see the value in it. With that, though, looking --
8 we're trying to minimize people from glancing down and stay,
9 keeping themselves inside the cockpit when they're supposed to be
10 outside the cockpit, but it is a two-pilot aircraft so, of course,
11 pilot on the controls, maintaining outside the aircraft.

12 But it would be a very valuable tool to have on board for the
13 pilot not on controls to, one, again, as they're doing their
14 cockpit duties to back the crew up and then back the controllers
15 up, back everyone up as far as situational awareness of other
16 aircraft in relation to it.

17 Q. What about crew chiefs in the back, are they issued iPads?

18 A. They are not issued them, no.

19 Q. Do you think that might be something that could be useful, is
20 that third person for tracking avoidance to maybe have?

21 A. You know, as they say, like, hindsight's 20/20.

22 Q. Obviously, I mean, moving forward.

23 A. But yes, absolutely.

24 Q. Is that --

25 A. I mean, yeah.

1 Q. -- going forward?

2 A. A similar concept, I would say that normal operating
3 procedures to have one non-rated crew member in the back so we do
4 just have that one individual back there that's kind of
5 responsible for everything we can't see, either out left or right
6 door and then behind the aircraft as well.

7 So we try to also keep them outside the aircraft as much as
8 possible when we're VMC but, again, as a crew, back everyone up.
9 There's value added, yes.

10 MR. WARD: That's all the questions I've got.

11 DR. BRAMBLE: All right. Eddie.

12 MR. MILLER: Eddie Miller, FAA. Ben, thanks for answering
13 all the questions before and for everything that we've -- that you
14 do for the United States.

15 BY MR. MILLER:

16 Q. In your time flying since flight school, have you had any
17 crew chiefs when they're flying be allowed to switch seats so they
18 can get a better observation of traffic?

19 A. There is a procedure in place for that.

20 The crew chiefs can wear a, it's called a monkey tail, and
21 it's essentially a connection point to their LC Vest and a
22 connection to the aircraft floor so that they can go back and
23 forth between left seat and right seat however they see fit to
24 assist in obstacle avoidance in performing their duties.

25 Q. When that was -- like, how many flights do you think you

1 observed that happening?

2 A. Accumulatively over the years since 2017, I would say
3 ballpark 25 to 30 times.

4 Q. Do you think it's helpful?

5 A. Helpful in mitigating potential hazards around the aircraft,
6 yes.

7 Does it pose an increased risk to the crew chief in the back
8 moving about the cabin at certain points at the time? Yes.

9 It's kind of that give and take. You're gaining a little bit
10 more situational awareness by having a crew member move between
11 left and right seat but, also again, accepting a little bit more
12 risk when they are not seated in a seat.

13 It is kind of one of those things where I've, from a personal
14 perspective, think it's a fair trade. If we're kind of dealing
15 with what we have as far as one crew member in the back, that's
16 all we can afford because of maintenance or manning and other
17 things then so be it.

18 Minimizing things that way but, like I said, from a safety
19 lens and perspective, not putting anyone at undue risk.

20 So really the times that I've been flying my own personal
21 cockpit with a non-rated crew member on the back on monkey tail, I
22 guess I would say, okay hey, move to that side of the aircraft and
23 get in a seat and then secure yourself. And then they let you
24 know when they're secure.

25 And it's that back and forth, good crew communication to make

1 sure they're not -- we don't have them on monkey tail during any
2 sort of significant mode of flights. So take offs and landings,
3 they're in a seat, buckled up, that kind of thing.

4 It's really just the inter-route portion, or if we're doing
5 external loads in the back, sling loads, they're usually on monkey
6 tail just to facilitate either -- between looking through the hole
7 in the cabin floor and then out the left or right door for any
8 other hazards, obstacles, avoidance, all that stuff in that mode
9 of operation as well.

10 Q. Can you tell us when you would use a, like, have the two crew
11 chiefs in the back, when would be the time that you'd have two in
12 the back?

13 A. So two in the back, it's really geared towards the individual
14 unit and what their mission is.

15 Here at 12th Aviation, based off of what the mission is
16 that's asked of us, one crew chief has been deemed sufficient to
17 do that.

18 Historically in the back, anytime you're doing multi-aircraft
19 operations, it's best practice to have two non-rated crew members
20 in the back to offer the flight sufficient leeway in formation
21 changes, things of that nature.

22 Some multi-aircraft operations, sling load operations,
23 external loads, those are all things that you would want to have
24 two non-rated crew members in the back.

25 MR. MILLER: I'm going to stop there, Bill.

1 DR. BRAMBLE: Okay. Paul.

2 MR. KIM: I have no questions.

3 DR. BRAMBLE: Dave.

4 MR. BLAIR: Wow, jumping on -- again, Dave Blair from
5 Sikorsky. Couple quick questions for you.

6 BY MR. BLAIR:

7 Q. Back to when you went to safety school, so tell me about how
8 much of that 6 weeks was dedicated to ESH-O, you know, ESH stuff
9 versus aviation safety?

10 A. It's a healthy mix. I would say 50/50.

11 So as far as the occupational health stuff, the OSHA stuff is
12 all kind of tied in, like I said, on the front side.

13 And then really the second portion of it was your mishap
14 investigation handbook stuff, learning about the HFAC system,
15 determining -- there's a crash lab out there where you go out and
16 get broken down into small groups. Each group has a different
17 mishap to investigate so to speak, and it kind of, you know, very
18 rudimentary walking you through the things you're for, the
19 procedures you need to go about if you're the first person there
20 at the scene of a mishap to preserve the scene and the integrity
21 of everything, things of that nature.

22 I would say it's about 50/50.

23 Q. So the following question is, in a typical week here, you've
24 been here about 6 months, how much of your week, how many hours a
25 week is spent on the occupational safety stuff versus aviation

1 safety?

2 A. I would say 75/25, 75 percent towards the occupational health
3 type things and then about 25 percent of the time in the aviation
4 side of the house.

5 MR. BLAIR: Okay. Thank you.

6 DR. BRAMBLE: Nick.

7 CW5 JACOBY: No, questions, sir.

8 DR. BRAMBLE: Van.

9 MR. McKENNY: No further questions.

10 DR. BRAMBLE: All right, no more from me either. I'll go
11 around one more time.

12 MR. WARD: No, sir.

13 DR. BRAMBLE: Paul, you good?

14 (No audible response.)

15 DR. BRAMBLE: Dave.

16 (No audible response.)

17 DR. BRAMBLE: All right. I just have one remaining question.

18 BY DR. BRAMBLE:

19 Q. Did you have any interaction with the accident crew in the
20 72 hours before the accident?

21 A. Seventy-two hours.

22 Q. So say like Monday to Wednesday.

23 A. Yes, I did.

24 Q. Okay. Can you describe that.

25 A. So really that was with Captain [REDACTED] and Mr. [REDACTED] I was

1 assigned to Bravo Company's ATP so I did see them on a pretty
2 daily basis.

3 Mr. [REDACTED] I had given my -- I'm in my APART window for my
4 annual evaluation so I had given him my Dash 10 evaluation that he
5 had given me previously for grading.

6 And really just kind of a -- I like to go past the Bravo
7 Company pilot's office just to chit chat and kind of see how
8 everyone's doing, see if anyone's got any things to be brought to
9 my attention.

10 I do it with all the companies but, like I said, I'm in Bravo
11 Company's ATP so I'm like kind of there more than the other
12 companies just by nature.

13 So yeah, I interact with him a little bit in that regard.
14 Nothing really meaningful in that, in our conversations.

15 I was also on duty with Mr. [REDACTED] on Monday, that Monday. We
16 were on standby for one of our mission lines. I was the AMC of
17 the flight, and he was also -- so I was acting as the PI for that
18 aircraft. He was the PC, again, just to kind of divvy up in the
19 event we were alerted, divvying up duties and responsibilities so
20 not just one person is the PC and the AMC of the flight.

21 We ran up our aircraft as normal. Nothing stuck out to me.
22 He filed the checklist and it was a normal run up, nothing really
23 significant in that regard.

24 Captain [REDACTED] I interact with her quite a bit in regards to
25 our unit FARP that we have set up, she was the POL OIC.

1 So really, we had an incoming group of Idaho National
2 Guardsmen. So facilitating the new team coming on board, getting
3 them certified in our FARP procedures, setting it up, certifying
4 it and then the ins and outs how aircraft approach and depart the
5 FARP. So I have coordinated that with her quite a bit.

6 And then since I've been in the unit working with her, again
7 with the POL program, whether that's resourcing things she needed
8 for the arms inspection that we had coming through or just
9 different things that I've seen throughout my aviation career as
10 far as FARPs go, giving her that kind of feedback to assist her in
11 setting up the program.

12 And then Sergeant [REDACTED] I had not interacted directly with
13 the preceding group (indiscernible).

14 Q. Okay. What's FARP?

15 A. Forward Arming Refueling Point. It's where essentially on
16 Davison, two different options for refueling aircrafts. Either
17 they can -- once the FARP is set up and certified and established,
18 aircraft can taxi through there with the blades running and get,
19 we call it hot gas or hot fuel. It's a little more expedient
20 measure than going back to parking.

21 The other option is going back to parking, shutting down and
22 having a civilian or green suiter fuel truck come by and top the
23 aircraft up that way.

24 Q. Okay. I want to pin down some of those times. So you
25 mentioned that you had given Mr. [REDACTED] your Dash 10 evaluation

1 that he had given to you previously.

2 A. Correct.

3 Q. What do you mean by you gave it to him?

4 A. Essentially they'll -- so the Standardization Department, the
5 instructor pilots, when you're in your APART window, will give you
6 -- they'll give you your Dash 10 test and essentially it's
7 50 questions from varying publications that you need to resource
8 and reference to find your answers to the test.

9 Then you pretty much give your answer, you write out your
10 answer and then your references that you used to find it. And
11 then once you complete with that, you give it back to the Stans
12 Department, and they grade it.

13 Q. I see. So you went to drop that off to him?

14 A. Correct, yeah.

15 Q. When was that?

16 A. That was, I want to say that was Tuesday. I'm sorry, that
17 was Monday. That was the day we were on duty together. It was in
18 the afternoon.

19 After we got to the airfield that morning, did our normal run
20 up, our engine checks and then got shut down and just postured for
21 alert in the afternoon, I went by his office to check in with him
22 again just to see how things were going for the day, and I dropped
23 off my -- I was finished by that point with my test so I dropped
24 it off. So really it was probably about 13:00, 13:30 timeframe.

25 Q. Okay. How'd he look?

1 A. Good. Nothing stood out to me where he was, you know,
2 anything out of the ordinary. Same thing throughout the whole
3 day.

4 He showed up ready to fly. During our crew brief, nothing
5 stood out to me that was abnormal.

6 Q. He appear alert?

7 A. Yeah.

8 Q. All right. Were you guys waiting together, like, in the same
9 area, same office, or were you kind of like within sight of each
10 other most of the day or running into each other all day long or
11 in different offices or different buildings?

12 A. Different offices. So I work in the battalion headquarters
13 building.

14 I previously worked on the second floor of Bravo Company's
15 hangar just based off of office space and things of that nature.
16 We were waiting to get some internet ports put in our battalion
17 headquarters building.

18 Previously, the battalion safety officer operated out of the
19 second floor of Bravo Company's hangar as well so I would see him
20 throughout the day.

21 Q. Hm-hmm. So that was Monday, January 27th?

22 A. Correct, yeah.

23 Q. Did you see him after that Monday?

24 A. Yeah, I saw him on -- I saw him every day that week.

25 That day stood out to me, Monday stood out to me because,

1 again, we were on duty together, had a lot more interaction with
2 him.

3 But then Tuesday and Wednesday was kind of just in passing as
4 I was walking around the hangar or things of that nature.

5 I think I did check in with Bravo Company on Tuesday as well
6 just, again, showing my face, saying hello, seeing what was going
7 on, see if anyone needed anything.

8 Q. Okay. Was your interaction with him just kind of limited to
9 greetings those days?

10 A. For those days, yeah.

11 Q. And did he appear normal in those encounters also?

12 A. He did, yeah.

13 Q. In the days or weeks prior to the accident, he express any
14 safety concerns to you?

15 A. No, he did not.

16 Q. Do you recall hearing about an incident where a member of the
17 public may have submitted a photograph of a Black Hawk flying,
18 like, eight feet above the Potomac and there being some kind of
19 subsequent guidance about the 12th Battalion crews flying higher
20 but still below the max altitude?

21 A. No, I'm not familiar with that.

22 Q. Okay. It might have been before your time.

23 A. Hopefully.

24 Q. All right. And then [REDACTED] tell me when it was that you
25 interacted with her? You said that -- let me just find that spot.

1 You said you interacted with her quite a bit with respect to
2 the FARP and the relocation of the Idaho National Guardsmen and --

3 A. Correct. Yeah, we said -- go ahead, sorry.

4 Q. Hm-hmm, and so those were the two of the, two things you
5 mentioned you interacted with her on. When do you think that was?

6 A. So those specific FARP classes that I assisted with were on
7 14 and 16 in January and then we had, let me see if I wrote it
8 down, we had a validation exercise for the Idaho Fuel Team.

9 Essentially what that is, is like to validate that they're
10 ready to run operations out of the FARP so it's kind of an
11 assessment of how they perform under normal operating conditions.

12 I want to say that was on 23 January.

13 Q. Do you think you had any interactions with her between, say,
14 Sunday, the 26th, and Wednesday, the 29th?

15 A. No, just seeing her in passing, saying hello.

16 Q. And how did she look?

17 A. Alert. Nothing out of the ordinary that stood out to me.

18 She's always very organized, had her notebooks where she,
19 every meeting that I ever sat in with her, just took ample notes.

20 I had one flight with her along D.C. helo routes, and, I
21 mean, she arrived for that flight prepared, had a plan, knew
22 exactly what we were doing, and honestly, gave me a really good
23 orientation of a lot of the different aspects of the D.C. helo
24 routes.

25 So I was always very impressed by her organizational skills,

1 her attitude towards flying and then being in the Army in general.
2 Always very impressed by that.

3 Q. When was that flight, approximately?

4 A. That was -- it was late December. I'd have to look in my log
5 book. I think it was December 4th.

6 Q. How was her performance during the flight?

7 A. She was the pilot in command of the aircraft. I was, again,
8 the PI. That was for one of my local area orientation flights
9 along the D.C. helo routes. Again, she showed up ready to fly,
10 had a plan. We had talked about the plan prior to that, prior to
11 that day.

12 And then as far as performance in the aircraft, followed the
13 checklist from start to finish. And really, I mean, she mentored
14 me through a lot of different aspects of the flight along with --
15 whether that be like the corridor structures themselves, when to
16 make specific radio calls.

17 Yeah, I mean, it was refreshing for me, somebody that has a
18 little bit of experience, to see that in somebody, one, that's
19 like a staff aviator in general. It was refreshing to see her
20 level of proficiency given her workload as the POL OIC and
21 everything she had on her plate.

22 Q. Was this daytime or nighttime?

23 A. It was day into night so we did both day and night, night
24 unaided and Night Vision Goggles.

25 Q. Okay. Do you remember which routes you used downtown?

1 A. We did Route 5, Pentagon transition to Route 1,
2 circumnavigated Route 1 up to Route 3, I believe it is, and then
3 did like a counterclockwise loop around Route 3, came back to
4 Route 1 and then picked up Route 4 to the south.

5 Q. Who was the pilot flying?

6 A. We traded on and off. Again, one of my goals for that flight
7 was, you know, getting a better -- because being, again,
8 relatively new to the area, getting that repetition on the radios,
9 talking with DCA Tower and then also flying the aircraft knowing
10 where the reference points are, where the turns are, altitudes
11 associated with the route segments.

12 So doing, flying and managing, trading on and off gave me
13 those repetitions that I was looking for.

14 Q. Who flew the Route 4 segment?

15 A. I did.

16 Q. What she fly?

17 A. She flew some of the Route 3 segment. If I had to break it
18 down, I would say that I flew more than she did on that segment,
19 or that -- during the nighttime portion.

20 And again, that was again twofold to really, one, get me
21 familiar with the different route segments, the altitudes
22 associated with them, where we're turning, where we're rolling out
23 at, and then the second part of that being when I was not on the
24 controls, giving me time to manage and have that interaction with
25 DCA Tower.

1 Q. How was her control of trim?

2 A. Well within standard. No glaring issues. During my cross
3 monitoring and performance, I never had to give her that guidance
4 to get the aircraft in trim.

5 For that matter, altitudes associated within -- we were
6 within, well within the operating restrictions of the route
7 segments the whole time.

8 Nothing significant as far as I'm concerned.

9 Q. Anything stand out to you about her performance, positive or
10 negative?

11 A. Really I would just say, it was all positive things.

12 Like I said, her organizational abilities, arriving for the
13 flight prepared. And then her performance in the aircraft were,
14 like I said, I classified it as refreshing because it's nice to
15 fly with somebody that has a good firm grasp on everything they're
16 doing and it makes your other, the other pilots life a lot easier,
17 I'll say that.

18 DR. BRAMBLE: All right. Van, you have follow up?

19 MR. McKENNY: I have a follow-question there, Mr. Barczak.

20 BY MR. McKENNY:

21 Q. In your flying experience, there's two primary altimeters in
22 the aircraft, right, one for the pilot, one for the co-pilot.

23 In your experience, have you ever had them mismatch?

24 A. So the barometric altimeter is what you're referring to?

25 Q. Yes.

1 A. There has been instances where there's a miscompare. The
2 standard is if it's within 70 feet of airfield elevation, that is
3 sufficient.

4 I have cancelled flights in the past because one of the
5 altimeters was outside of that threshold, and more often than not,
6 it's an issue with the Pitot-static system being slightly clogged.
7 It's one of those pretty routine tasks for a maintainer to clear
8 that out and then you readdress it, and it's either within the
9 tolerance or it's not. And then if it's something beyond that,
10 that requires further maintenance diagnostics.

11 Q. Sure. So it's -- the standard is within 70 feet of the field
12 elevation --

13 A. Correct, that's part of our run up procedures.

14 Q. Sure. Have you ever noticed that the two -- even though one
15 was -- you're both within the 70 feet of field elevation, maybe
16 they were off in the opposite directions?

17 A. Usually if there's that miscompare, it's usually by no more
18 than about 20 feet or so.

19 Again, the gauge in which we read that barometric altimeter
20 altitude, pretty much the altitude, it's an analog dial so there's
21 a little bit of interpretation involved into where that is.

22 But like I said, it's usually no more than 20 feet or if you
23 do announce to your other pilot that there's a difference in the
24 barometric altitude, glance over and take a look at it, okay, I
25 see what you're talking about, that thing, usually get buy in from

1 other pilots as well in regard --

2 Q. And then in that regard which altimeter do you decide to use?

3 A. It'd be the right side, the pilot's side.

4 Q. You use the right side as your primary if there's a
5 difference between the two?

6 A. Yes.

7 MR. McKENNY: Bill, I'm done with questions.

8 DR. BRAMBLE: Okay. Eddie.

9 MR. MILLER: I'm good.

10 DR. BRAMBLE: Paul.

11 (No audible response.)

12 DR. BRAMBLE: Dave.

13 (No audible response.)

14 DR. BRAMBLE: Nick.

15 CW5 JACOBY: I'm good.

16 DR. BRAMBLE: All right. Is there anything that we haven't
17 asked you that you think that you'd like to tell us, or think we
18 need to know about?

19 CW3 BARCZAK: I think all the questions have been very
20 thoughtful and address a wide range of safety aspects that I deal
21 with so nothing stands out to me.

22 DR. BRAMBLE: Okay. Anybody that you think we absolutely
23 positively must speak with? We have a long list but you --

24 CW3 BARCZAK: I mean, yeah, I think -- loosely tracking who
25 you have and have not talked to already so from that list, there's

1 no one that stands out to me that should be an additional, an add
2 to that list.

3 DR. BRAMBLE: Okay. All right. That's it. We'll call this
4 complete at 15:23 Eastern Standard Time. Thank you very much.

5 (Whereupon, at 2:23 p.m., the interview was concluded.)
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
 AMERICAN AIRLINES JET AND ARMY
 HELICOPTER NEAR RONALD REAGAN
 NATIONAL AIRPORT IN WASHINGTON, DC
 ON JANUARY 29, 2025
 Interview of Benjamin M. Barczak

ACCIDENT NO.: DCA25MA108

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.


Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: CW5 DAVE VAN VECHTEN, JR., Pilot

Saudi Arabian National Guard

via telephone

Thursday,

February 6, 2025

APPEARANCES:

WILLIAM BRAMBLE, Ph.D., Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

MARK WARD, Accident Investigator
National Transportation Safety Board

EDWARD MILLER, Senior Accident Investigator
Federal Aviation Administration

PAUL KIM, Chief Pilot
PSA Airlines

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of CW5 Dave Van Vechten, Jr.:		
By Dr. Bramble		
Error! Bookmark not defined.		
By Mr. McKenny		76
By Mr. Ward		80
By Mr. Miller		81
By Mr. Kim		Error!
Bookmark not defined.		
By Mr. Blair		88
By CW5 Jacoby		91

I N T E R V I E W

(10:33 a.m.)

DR. BRAMBLE: Today is February 6, 2025. It is 10:33 Eastern Standard Time. My name is Bill Bramble. I'm a Human Performance Investigator with NTSB. Van McKenny and I are leading the Operations and Human Performance Working Group helicopter for Investigation Number DCA25MA108 involving PSA 4352 (verbatim) in PAT 11. And we're here to interview --

UNIDENTIFIED SPEAKER: PAT 25.

DR. BRAMBLE: Say again.

UNIDENTIFIED SPEAKER: Should be PAT 25.

DR. BRAMBLE: 25, yeah. Thank you for the correction.

And we are here to interview Dave Van Vechten, CW5 Dave Van Vechten.

The NTSB is an independent federal agency. We're not part of the Department of Transportation or the FAA, and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents, and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation helps ensure the fact-finding phase of this investigation is complete and accurate.

We will be recording this interview so it can be transcribed. After we receive the transcript, our group will review it for typos before it's included in the public docket for this

1 investigation. We can provide you an opportunity to review the
2 transcript if you request it.

3 I would now like each of the group members to briefly
4 introduce themselves, and state their organizational affiliation,
5 and we'll begin with Van McKenny.

6 MR. MCKENNY: Van McKenny, Helicopter Operations Group
7 Chairman, NTSB.

8 MR. WARD: Mark Ward, NTSB, accident investigator.

9 MR. MILLER: Eddie Miller, FAA, senior accident investigator.

10 MR. KIM: Paul Kim, PSA Airlines, chief pilot.

11 MR. BLAIR: Dave Blair, Sikorsky, chief pilot for safety.

12 CW5 JACOBY: CW5 Jacoby (ph.), Brigade Stands for the U.S.
13 Army Aviation Brigade.

14 DR. BRAMBLE: Okay. Each member will have two opportunities
15 to ask questions. We'll be taking turns. Please answer all
16 questions to the best of your recollection. If you don't know an
17 answer, just say you don't know. If you don't understand a
18 question, just let us know. And if you misstate something and
19 want to correct it, just let us know that too.

20 You're entitled to a representative of your choosing to have
21 present during this interview which I understand that you're
22 declining to have a representative; is that correct?

23 MR. VAN VECHTEN: Yes.

24 DR. BRAMBLE: Okay. That being said, we'll go ahead and get
25 started with the interview.

1 INTERVIEW OF CW5 DAVE VAN VECHTEN, JR.

2 BY DR. BRAMBLE:

3 Q. Mr. Van Vechten can you please state and spell your first and
4 last -- state and spell your whole name for us, please.

5 A. Sure. It's David Van Vechten, Junior, D-a-v-i-d V-a-n
6 V-e-c-h-t-e-n, Junior, J-r.

7 Q. Okay. Is Van Vechten one word or two?

8 A. Depends on where you look. Let's go with two though two
9 capital V's, please.

10 Q. Okay, will do. All right. And what's your age?

11 A. 49.

12 Q. All right. And what is your current rank?

13 A. CW5, Chief Warrant Officer 5.

14 Q. Okay. And what unit are you in?

15 A. I'm with the Office of the Program Manager, Saudi Arabia
16 National Guard, OPM-SANG, S-A-N-G, for short.

17 Q. Okay. And did you serve in Bravo Company in the 12th
18 Aviation Battalion?

19 A. No, I did not. I was at the brigade level of the United
20 States Army, Aviation Brigade.

21 Q. Okay. And what did you do with them?

22 A. But I, I was the brigade standardization officer. So I flew
23 with all of the companies. I was on Alpha Company's Aircrew
24 Training Program, their ATP, but I regularly flew with all of the
25 flight companies.

1 Q. Okay. Including Bravo?

2 A. Correct, yes.

3 Q. All right.

4 A. I maintain dual currency, UH-60 Lima and UH-60 Mike.

5 Q. Okay. Can you give us your total flight experience, just
6 rough wag at it?

7 A. I'm around 5,300 total hours. Goggles around 1,600. Mike
8 model I guess I -- Mike model I got around 1800, and then about
9 3,000 in the Lima.

10 Q. Okay.

11 A. And about 30 -- around 3,000 hours of instructor pilot time,
12 I think.

13 Q. Okay. Wow. You're the most experienced person we've talked
14 to so far.

15 A. Been doing it a little while.

16 Q. All right. And then just give us a Cliffs Notes version of
17 your professional background in aviation.

18 A. I went to flight school 2001. Flew UH-60 Alphas in my first
19 assignment at Fort Irwin, California. Followed by Egypt, UH-60
20 Alphas. Transitioned to the UH-60 Lima at Fort Drum, New York.
21 2007 did three combat deployments with them, one to Iraq, two to
22 Afghanistan. Did seven years at Fort Drum. Following Fort Drum,
23 I PCS'd to Fort Rucker, Alabama. I was the UH-60 Mike Aircraft
24 Qualification Platoon leader. So I ran the UH-60 Mike course.
25 And then I moved up to battalion standardization officer my final

1 year there. PCS'd to Korea 2017. Did two years in Korea as the
2 senior warrant officer adviser and the battalion standardization
3 officer for 3-2 General Support Aviation Battalion. PCS'd to OPM-
4 SANG the first time in 2019 where I was the senior aviation
5 trainer for the Aviation Institute Training Division. So
6 basically the Saudis, Fort Rucker, Fort Eustis in all of their 15
7 series MOS training. Following Saudi the first time I PCS'd to
8 Fort Belvoir, Virginia. I was the brigade standardization officer
9 from July 2020 to July 2024. And then I PCS'd to here, the second
10 time, Saudi Arabia in July of last year. I'm an instructor pilot,
11 standardization pilot, instrument examiner, aviation master
12 gunner, and I think that's about it.

13 Q. Perfect. All right. Good thing we're recording. That was
14 quick, but I think we got it all.

15 A. Sorry.

16 Q. That's all right. So are you aware of which crewmembers were
17 involved in the accident on January 29th here at DCA?

18 A. Yes, I am.

19 Q. Okay. How well did you know each of them?

20 A. I knew all of them pretty well. I would say as far as just
21 like [REDACTED] I was probably at Alpha Company the most just
22 because their company was on the side of the airfield that my
23 office was. So I would regularly go in there, and just kind of
24 hang out. And I flew quite a bit of VIP missions with them. As
25 the senior guy in the unit I would regularly fly the most, the

1 most VIPs we got. So I would go over to Alpha company a lot, and
2 so I saw him quite a bit, but only flew with him a few times
3 because he was a pilot in command. And as an instructor pilot I
4 typically didn't fly with a lot of pilots in command unless they
5 needed like an evaluation. I usually flew with people who needed
6 training or evaluations. Sergeant [REDACTED] I flew with him a lot
7 because he was a company FI, and he moved up to -- he was a
8 company flight instructor, and then moved up to the
9 standardization instructor position. And so as a fellow stands
10 pilot we would regularly fly together and do -- he would be
11 training people in the back while I would be training people in
12 the front. And but the person I flew with the most was definitely
13 Captain [REDACTED] We flew quite a bit together just because she
14 really enjoyed flying with me as, as a very experienced guy. She
15 was a sponge. She loved to -- she would be that pilot that
16 wouldn't want to stop after a long goggle flight, and I just want
17 to go home because it's one o'clock in the morning. And we'd sit
18 there and talk for an hour, hour and a half about the flight, and
19 about aviation stuff. So I flew with her quite a bit. And she
20 was a platoon leader so she made, she made the flight schedules.
21 She had a hand in that. And so she would put us on the schedule
22 together all the time. And not only did I do missions and
23 training, but I also pulled a lot of duty. Some of the duty sets
24 which if you guys are tracking that I would pull a lot of duty. So
25 I was over Bravo Company all the time, and we, we had companies

1 rotate which ones were in the hurt box for, for experience, and
2 Bravo Company was in the hurt box for a while just because they
3 lost a lot of pilots, and we weren't getting back-filled. And so
4 they would rely on staff-supported aviators, myself and others, to
5 fill in some of the gaps while their newer pilots were in
6 readiness level progression training before they were signed off
7 as a mission pilot. So I knew all of them very well, and flew
8 with them quite regularly.

9 Q. Okay. Were you friends with any of them outside of work or
10 just all, all at work?

11 A. All at work. I attended a couple warrant officer things just
12 like little get-togethers with [REDACTED] both down at Fort
13 Rucker. He was in the instructor pilot course while I was in the
14 master gunner course. And there was a couple other guys from
15 Alpha Company there. So we, we had lunch a couple of times,
16 dinner a couple of times while we were both TDY there, and he was
17 enroute to Honduras. And then back at, back at Fort Belvoir we
18 went out to a couple warrant officer functions. But I never did
19 anything social with Sergeant [REDACTED] or with Captain [REDACTED]

20 Q. Okay. All right. And any interactions with any of the three
21 in the 72 hours before the accident?

22 A. No. I'm -- no.

23 Q. All right. How many flights would you estimate that you
24 flew with each, each of the crewmembers?

25 A. With [REDACTED] I would say we probably only flew together

1 like in the same aircraft probably two maybe three times. In the
2 same flight like if there was, you know, he's in a different
3 aircraft, I'd say another 10 times maybe 8 times where he was in a
4 different aircraft.

5 Q. Okay.

6 A. And so him probably the least amount like I said because I
7 didn't, I didn't fly with pilots in command often. I was usually
8 training. Sergeant [REDACTED] I mean even and Captain [REDACTED] too
9 many to count; 20, 30. Yeah, 20 to 30 or 40. It's a lot.

10 Q. Okay. All right. And I presume that you flew with all of
11 them at night at some point?

12 A. Yes, for sure.

13 Q. Okay. And with NVGs?

14 A. Correct.

15 Q. All right. Anything stand out to you in terms of their
16 habits or approach when flying or anything unique about any of the
17 three that made them different from others in those roles?

18 A. No. Nothing out of the ordinary. I mean they're all -- of
19 the three, you know, obviously Sergeant [REDACTED] was the most
20 experienced, but I could tell just by the way, you know, because
21 he's in the back and I'm up front, but I could tell just by what
22 he's saying, and how he's training his fellow back-seaters. I
23 could tell that he knew what he was doing. He was the most
24 experienced of the three for sure. [REDACTED] nothing, you know,
25 nothing out of the ordinary. I don't remember anything with him

1 that stands out. And the same with Captain [REDACTED] I did check
2 my records as soon as the crash happened, and the last I flew with
3 her was -- I did her -- looks like I did her previous evaluation.
4 So it was January 11th of last year I flew 3.6 hours with her in
5 Aircraft 446, 3.3 goggles, and .3 night. So nothing -- I don't
6 remember the flight itself. It was her annual evaluation, and I,
7 I think I remember putting a satisfactory. So there was nothing
8 that stood out as out of the ordinary.

9 Q. Okay. Just catching up with my notes here. Just to confirm
10 you said 3.3 goggles, 4.3 night?

11 A. I'm sorry. I didn't realize you were taking notes. I'll
12 speak a little slower. I'm a fast talker.

13 Q. That's okay.

14 A. But it was 3 -- yeah, 3.3 goggles, .3 night, and --

15 Q. 0.3.

16 A. -- I typically -- go ahead.

17 Q. 0.3 night?

18 A. Yes, 0.3.

19 Q. Okay.

20 A. And I typically don't put my back-seater. I just put the
21 tail number and the pilots that I flew with. So I don't know who
22 my -- I don't know when my last flight with Sergeant [REDACTED] was,
23 but he was on baby leave, and I left in July, and I believe he had
24 the baby in December. So his might have been like a year ago
25 since we've flown together just because he was on leave for having

1 a child, and I was -- I PCS'd this past July.

2 Q. Okay. All right. Just if you had to characterize each of
3 these folks in terms of whether they were average, below average
4 or above average for their role compared to others you've flown
5 with how would you, how would you evaluate them?

6 A. Let me see. [REDACTED] I would say he was on par with his, his
7 hour level. I would say some of the stuff he performed above
8 level like his mission planning, his situational awareness, his
9 matureness, demeanor. Because he's a little bit older. He served
10 sometime in the Navy. He was a crewmember on a -- some Navy
11 plane. I don't remember what he did, but you could tell he had
12 aviation experience prior to entering Army aviation. So I would
13 say he was on par or maybe slightly above his average hour level.
14 Sergeant [REDACTED] was definitely above his hour level. I mean you
15 could tell. He was very experienced. Knew what he was doing.
16 Great situational awareness. And I've told other people that he's
17 one of them guys where if he would question me or if he didn't
18 understand, he would ask a question which you -- may sound weird,
19 but when you're flying with somebody that has a lot of hours, and
20 you're a -- and he's a senior guy, and you're in the back that not
21 a lot of people do that anymore. So I appreciated him asking what
22 are we doing? What's going on? Are you sure you want to do that
23 type thing? And so he definitely was above his hour level, and
24 very experienced.

25 Captain [REDACTED] I do remember it did take her a little while

1 to get through progression. Say she was probably maybe below --
2 like if I'm flying with somebody that has 300 hours, she was
3 probably flying below her, you know, stick and rudder skill-wise
4 of a 300-hour pilot. But her situational awareness and leadership
5 I would say was above. So she was -- the commissioned officer
6 side of the house they have that difficult job of learning how to
7 be an officer at the same time learning how to be a pilot, and I
8 would say she was better at being an officer and a, a leader, and,
9 and managing the, the mission rather than like coordination-wise
10 stick and rudder type skills. But nothing like holy crap this
11 person's not -- this person is going to, you know, not make --
12 never make pilot in command. I never, never thought that. I
13 believe she was not yet a pilot in command when I PCS'd in July.
14 I believe she was an air mission commander. But I think she made
15 pilot in command after I left. So that didn't surprise me that I
16 heard that she was a pilot in command. I just -- I knew it would
17 take her a little time, but nothing like crazy out of the ordinary
18 that raises red flags.

19 Q. Okay. That's helpful. You mentioned that [REDACTED] was pretty,
20 pretty active, pretty -- communicated well from the back. Did he
21 pretty actively spot traffic and call traffic out to you?

22 A. For sure. He was one of them guys where like when you're
23 flying down, route one to four, for instance if he hears an
24 aircraft call Memorial Bridge, he knows it's behind us because
25 we're traveling southbound. So he was able to develop that type

1 of mental picture. I did quite a few -- we call them orientation
2 flights where we take passengers around, and give them aerial
3 orientations of the DC airspace. And he just happened to be my
4 crew chief on a few of them, and I remember him helping me out
5 with airspace deconfliction. I mean he would, he would be able to
6 hear an aircraft if they're in a zone or on a different route,
7 and know where we are, and understand their position relative to
8 ours, and know if it's a factor or not. And he would pass that
9 along to some of the other crew chiefs, the newer ones that he was
10 doing progression on. So he definitely had that situational
11 awareness.

12 Q. Okay. All right. You did a pretty good job I think of, of
13 describing sort of strengths and weaknesses on [REDACTED] Getting a
14 little bit more into her general flying performance, any strengths
15 and weaknesses there?

16 A. Let me see. Strengths, like I said, she was always asking
17 questions. She was always trying to improve. Always wanted to do
18 a very detailed debrief in AAR. Like I said, I, I thought -- and
19 I think she acknowledged and knew that her weakness was her stick
20 and rudder skills like just flying, and I don't know if any of you
21 guys have experience in a Lima, but a Lima is particularly taxing
22 to fly to maintain altitude and air speed, and understanding and
23 utilizing the trim system. The Army back at Fort Rucker, Fort
24 Novosel now, they eliminated Alpha Lima portion of flight school a
25 few years ago. I don't remember exactly when. I want to say like

1 17 or 18 or something. But anyways so the, the students now they
2 go through flight school in a UH-60 Mike. A fully coupled auto,
3 autopilot aircraft, and then they get some units that have Limas,
4 and the trim system is different. And the stick trim release is
5 different on a Lima than it is on a Mike. And it takes pilots a
6 long time to figure out how to utilize that trim system, and
7 particularly when you're like in instruments, and you don't want
8 to deactivate the trim system and what we call hand fly or
9 manually fly the aircraft, you want to utilize the trim. And I do
10 remember working with her on that extensively during instruments,
11 during readiness level progression, and, and having to explain and
12 show her how to use the trim system. Because when you push the
13 little red button on the cyclic it disengages the trim, and now
14 there's no gradient forces holding the cyclic. And pilots will
15 tend to dip the nose in a turn, and let the, let the air speed
16 build and the altitude drop. So we were -- I remember we were
17 holding over DAVEE NDB, which is the initial approach fix for the
18 ILS 32 into Davison, and just kind of explaining to her like, hey,
19 use the trim system to your advantage to hold the aircraft's
20 attitude. And that takes a long time for pilots now because they
21 get no exposure to that going through flight school. Somebody
22 like myself or Mr. Jacoby we grew up and learned on Limas. So
23 it's no big deal if you fly a Mike. But when you only fly a Mike
24 and go to a Lima it's significantly different. So I do remember
25 her taking -- it took some time for her to understand and utilize

1 the trim system. And then with the altitude the Mike model has a
2 fully coupled autopilot. We call it a flight director, but it has
3 a, has a collective trim so you -- it will hold your altitude for
4 you based on the collective position.

5 The Lima has a collective friction which you have to
6 continuously use throughout the flight. And if the friction isn't
7 tight enough, your altitude could drop down without really
8 realizing it.

9 So I do remember having to just work on that type of stuff
10 maintaining altitude and airspeed specifically during instruments
11 while holding. But I don't necessarily know like on the
12 helo routes if that plays as much of a factor. I'm sure we'll get
13 to these questions. I'll have some stuff that will lead into that
14 a little bit later, but just the, the instrument panel for
15 instance in a Lima is difficult to see at night just because of
16 the backlighting on it. So I do remember working on her with that
17 kind of stuff with the, with the Lima system specifically.

18 Q. Okay. Can you tell me how like on those low altitude routes
19 how you use the trim to help maintain altitude or maintain
20 attitude you said?

21 A. Well, yes, correct. So you typically you find an altitude,
22 and you kind of friction down the collective to maintain your
23 altitude. And I use what's called a cyclic trim beep. So there's
24 this little hat on top. It's like a triangular type hat on top of
25 the cyclic, and it only beeps -- you can only go on one axis. So

1 you can't push down and like forward to the right. You can only
2 do forward or right. When you push the red button on the cyclic
3 it now disengages the trim system, and you could be trying to make
4 a right turn, and your altitude go down at the same time. So I
5 would teach pilots to set their altitude using the collective, and
6 then use the cyclic trim beeper on top of the cyclic, the little
7 triangular piece of metal on top, and beep it to the direction.
8 So that way you can't inadvertently beep it forward, and dip your
9 nose down, or inadvertently beep it back, and balloon up. That
10 can't happen if you're pushing it laterally left and right to
11 control the heading of the cyclic, and then maintaining the
12 altitude with the collective.

13 Q. Tell me about that, you know, like accidentally beeping it
14 back and ballooning up again. How might that happen?

15 A. Yes. So the only way that would happen is if you push the
16 stick trim release button which is the red button on the cyclic
17 that you would push with your, your right thumb. If -- and that
18 would be like mashing, what people call like mashing the trim
19 button which again I'm not a big fan of that because I like to set
20 my pitch attitude with the cyclic, and then I teach to beep left
21 or right with the stick trim release button which will not allow
22 you to push. Because you can only beep it in one axis. If you
23 push the stick trim release, it disengages it, and now it's what I
24 call a wet noodle, and you can move it left, right, and the nose
25 can dip, the nose can come back. If you utilize the trim system

1 and the cyclic trim beeper, it prevents that from happening.

2 Q. Okay. So you can basically stabilize one axis and, and it
3 makes it easier to control the other is what you're saying?

4 A. Correct. Yeah, yeah. And it's especially helpful in -- it's
5 more helpful in instruments at altitude where you're at a specific
6 altitude at a specific heading for an extended period of time.
7 It's less useful, but still can be utilized on the DC helo routes
8 for sure.

9 Q. That is the clearest explanation of that we've received so
10 far. Appreciate that. All right. Just going back over some
11 things you said here. See if I'm going to follow-up on any of
12 that. One second. Okay. I think that's, I think that's good for
13 now.

14 DR. BRAMBLE: If any of you guys think of anything you want
15 to follow-up on any of that, please do so when it's your turn.

16 BY DR. BRAMBLE:

17 Q. All right. [REDACTED] personality. Can you tell me, I mean,
18 extraverted, introverted, conscientious, unconscientious, and how
19 motivated was she?

20 A. Definitely motivated. I, like I said, I've flown with her
21 and been around her quite a bit, and I don't think I've ever seen
22 her upset or mad or tired. She is like -- she was full of energy,
23 always in a good mood, always happy, always willing to help. Like
24 flying with me she would regularly get out to the aircraft first.
25 I'd show up at our show time. We had a 1400 show time. And she'd

1 have the aircraft pre-flighted, unchained, untied, all the gear
2 signed for, flight pan, ready to go. So she was like that, and
3 she had the energy to do that and be a platoon leader which is
4 very time consuming. She cared about her soldiers. And what was
5 the other part of the question you asked again?

6 Q. Extroversion, conscientiousness.

7 A. Conscientiousness --

8 Q. You just gave some, you just gave some examples that sounded
9 like she was pretty conscientious, always prepared, always taking
10 care of the details.

11 A. Oh, yeah, yeah.

12 Q. And then the other one was, just curious, whether she was
13 kind of extraverted or introverted or kind of in the middle?

14 A. I would say, I would say I'm like an extreme extravert. She
15 would be like more in the middle. I can't really -- she's
16 definitely not an introvert, but she's not the level of extravert
17 that I am.

18 Q. Okay. And how about Mr. [REDACTED] Can you tell me about his
19 personality?

20 A. Yeah. A country bumpkin. I always thought he was from
21 northern Florida because he had a Florida gator, but he's from
22 Mississippi, and just a typical southern boy. I mean polite.
23 Always calling me sir. And warrant officers even though he was a
24 W2 and I was a W5 we typically don't do that, but just super
25 polite and professional. Definitely more quiet, but maybe --

1 again people are going to act different around me than they do
2 around the rest of the company just because of my position. But
3 he was always like very professional, very, very -- how do I
4 describe it? He was always studying. He was always preparing
5 like mission packets, mission products to help improve the
6 company. Now when I knew him he was in the Mike Company. So he
7 was flying UH-60 Mikes with Alpha Company. So he was one of the
8 guys that was always trying to refine their flight packet, their
9 digital knee board product that goes on their iPad. He was always
10 trying to update the maps. Their commo card. He was that guy.
11 If you needed something, like he's the one that introduced me to
12 Talon Point which is a United States Air Force website that has
13 all the LZs. And once he made pilot in command because he was
14 like -- he was not in RL progression when I got out there. He was
15 like a regular mission copilot. So once he made pilot in command,
16 I mean his, his learning curve skyrocketed. He was constantly
17 taking pilots and taking them out to different LZs up in the --
18 what's that mountain range to the west? There's a couple LZs.

19 Q. The Blue Ridge?

20 A. Remember what it is --

21 Q. The Blue Ridge Mountains?

22 A. Yeah, the Blue Ridge Mountains, yeah. So he found some LZs
23 that he was able to get approved and coordinate getting fuel. So
24 he spearheaded that for sure. So he was all about the training
25 and, and trying to improve, and trying to teach the guys. The

1 pilots in command of units are the primary trainers because they
2 -- every aircraft has a pilot in command, but not necessarily will
3 every aircraft have an instructor pilot. So he really epitomized
4 that, and was able to lean forward as the primary trainer which
5 made sense that he went to the instructor pilot course because he
6 was already doing that stuff.

7 Q. How strict an evaluator do you think he was?

8 A. I mean just totally speculating, but just the way that I saw
9 him act, and again because he was a little bit older he was like
10 39, he was definitely more mature. And I think he was a staff
11 sergeant or E6 equivalent in the Navy. So I think all that would
12 have made him been a -- not strict, but like he would hold people
13 to the standards. He wouldn't -- I don't know what the -- I don't
14 necessarily like the term strict because a standard is a standard.
15 You know what I mean? Like they're either doing it within
16 standard or they're not. But I think he would hold people to the
17 standard. So he would not allow somebody -- like that was, that
18 was outside the standard, but I'm going to sign you off just
19 because we're friends or whatever. I couldn't see him doing that,
20 no.

21 Q. Okay. All right. Back to [REDACTED] I mean you, you mentioned
22 that maybe she had a little trouble transitioning to the Lima, and
23 she wasn't that experienced, but did you have a sense of her
24 aptitude for flying? Did it seem like it was average or better or
25 below average?

1 A. I would say average. Not above average. Not below average.
2 I think she was on average. Now Belvoir and -- let me think.
3 Belvoir might have been my first assignment where we got pilots
4 that only did Mike in flight school. Yes. I believe that's true.
5 So in '17 to '19 when I was in Korea people coming out of flight
6 school because we only had Limas in Korea they did Lima training
7 in flight school. So when I got to Fort Belvoir in 2020 that was
8 the first time pilots were coming out of flight school that were
9 not -- that had zero Lima training. And so I would say it was
10 probably 60 percent, 60/40. 60 percent picked it up relatively
11 quick. The other 40 just took a little bit longer. And I would
12 break that down even further, 60/30/10. I saw the 10 percent of
13 the people I saw coming out of flight school really struggled.
14 There's a few people -- and, again, Belvoir is my only time
15 dealing with this, but I would say 10 percent of the people that
16 came out of flight school really struggled with the Lima, and took
17 them probably twice as long to make readiness level one which is a
18 fully mission qualified copilot than, than the rest of them.
19 There were the 60 percent that no big deal. They picked it right
20 up. Some of the exceptional pilots. I would say she's in that 30
21 percent where just kind on average took about the normal time, but
22 definitely not in that 60 where she accelerated. I think it -- I,
23 I participated, took part in her readiness level progression
24 training, and I do remember here just -- it did take a little
25 while to get her fully mission qualified.

1 Q. Okay.

2 A. But again she knew that was one of her weak points like her
3 stick and rudder. So she would on our training flights she would
4 want to go do -- let's go practice autorotations. Let's go
5 practice these confined area operations. Let's go practice these
6 roll-on landings. So she always wanted to do one more traffic
7 pattern.

8 Q. Okay. When you were there at Belvoir was she a staff officer
9 yet or was that before she, she transitioned to that role?

10 A. I saw the whole thing. So I was there for her -- she was a
11 platoon leader when she first got there. Actually she might have
12 done a little bit of staff work waiting for a platoon leader slot
13 to open, and then she did her platoon leader time. Yeah, that's,
14 that's correct. She went to battalion first. She did a few
15 months. I don't remember how long as a staff. And then I
16 remember when she came to Bravo Company she did her full platoon
17 leader time. It was either 12 -- I think it was 12 months, maybe
18 18. And then she went to become a staff officer, and I believe it
19 was Battalion S4, I think.

20 Q. Okay. And when she did that did you see how that impacted
21 her ability to keep flying and maintain currency?

22 A. I mean I saw that. I didn't see it being a problem. I
23 remember again because there were -- because we're so short
24 everywhere most of the companies utilized their staff officers
25 pretty regularly. Some of the more busy staff officers I saw were

1 a little more challenging to get on the flight schedule, but her
2 job was not so demanding that she couldn't fly regularly,
3 relatively consistently. Now I do know she went to Air Assault
4 School up at Fort Drum, and she did not graduate. She hurt her
5 knee. So that took her out of the flight for a couple of weeks.
6 I'm not sure how long she was -- I don't even know if she was
7 grounded or if she just hurt her knee and wasn't able to finish
8 the course. But I remember they sent two, one from Alpha Company,
9 one from Bravo Company. The Alpha Company pilot did graduate, and
10 I was just -- I mean that's great for them, but to take somebody
11 to go to Air Assault School I thought that was a little odd, you
12 know, to send two people to go to that. But she ended up not
13 graduating. So I don't know, like I said, if she was grounded or
14 anything. But I didn't see her staff job necessarily affect her
15 ability to get on the flight schedule.

16 Q. Okay. Who made the decision for her to go to that school? I
17 mean is it something where they were ordered to do it or?

18 A. No. They, you know, honestly it probably comes down as like,
19 hey, we have two slots for this school. Who would like to go?
20 And then usually you volunteer or they'll come -- yeah, that's
21 usually what it is. They'll come around say does anybody want to
22 go to Air Assault School. And then like I said I don't know if it
23 was we have two slots, who wants to go, or does anybody want to
24 go, and only two people volunteered. That I'm not sure of.

25 Q. Okay. All right. When you were flying with [REDACTED] what was

1 her communication style like? Was she -- well, let me just leave
2 it there.

3 A. Her communication style?

4 Q. I mean was she kind of quiet or did she communicate a lot?

5 A. Communicated a lot for sure, yeah. She's kind of like me.
6 She's a social butterfly, and we definitely, definitely
7 communicate in the cockpit. Constantly asking questions, and not
8 to the point where I was like, hey, shut up, ma'am, you know, I
9 can't hear the radios. It wasn't like that. But definitely a
10 communicator, and both within the cockpit within the aircraft and
11 within the flight. Because I had flown multi-ship flights with
12 her and stuff like that too. So --

13 Q. And you happen to know that she was a White House social aide
14 as a volunteer?

15 A. Yeah, I did. So we had a guy at brigade that did the same
16 thing. He was a fixed-wing pilot. He has since got out of the
17 Army. And then I heard she started doing it. And I jokingly told
18 both of them I said oh it's operation arm candy where you
19 basically go to the, the White House, and you're arm candy for all
20 the VIPs there. And that's exactly what it was. So the captain,
21 the male captain from brigade, he would go do it. You put on your
22 uniform. You go escort people around. And then the same thing.
23 She would do the same thing. And I do remember like sometimes
24 we'd get back from a flight, and whatever two, three in the
25 afternoon, and that night like six or seven o'clock at night she

1 had like a White House engagement where she would go escort people
2 around. I remember she was very proud that she got to meet that
3 Medal of Honor winner. I forgot his name, but she was there for
4 that. And she told me some other celebrities that she got to meet
5 in doing those duties. And I call them duties. I don't know if
6 she volunteered or if she was told to do it. I forgot now. I
7 don't remember if she told me that.

8 Q. Okay. Did that have any impact on her flight schedule or her
9 ability to get enough rest?

10 A. No. Because that was always outside of the flight. So I
11 can't imagine or I can't speak to if she had like a, a White House
12 -- and I, I don't like to call it a White House aide. I think it
13 was more of just -- what do you call it? I don't know what it was
14 called. I forgot what the program was called. But I can't see
15 her staying there 'til 10, 11 o'clock at night, and then having
16 like a 05, 06 show the next morning. That I don't know. I -- but
17 I do remember having a couple flights where our duty was done, our
18 mission was over, and she was going. Because she lived just on
19 the northeast side of DC right by the White House. So she was
20 like just a couple blocks. She walked there. So that was very
21 convenient for her. And I remember her -- and she was going
22 against traffic so she said, you know, she would -- you're going
23 against traffic on the way to work, and she'd be going against
24 traffic on the way home. So it was very easy for her to, to make
25 those engagements.

1 Q. Okay. Are you aware of any extended medical leaves on her
2 part?

3 A. No, not aware. Not tracking any.

4 Q. Okay. And any recent life events for her that would have
5 been particularly stressful in the year or two before the
6 accident?

7 A. No, not that I can think of. Like I said the only thing she
8 did that TDY to Fort Drum. I saw her right after she got back,
9 and she didn't graduate, but she wasn't bummed at all. She's
10 just, yeah, I hurt my knee, couldn't graduate.

11 Q. Okay. And let's see. All right. I'm going to pull up some
12 notes on her training history here, and then ask you about a few
13 specific events. One second. Let me just get that up here on my
14 computer. All right. And okay. So we have a list of events from
15 July 9, 2021, until when she completed flight school until the
16 time of the accident and, you know, kind of tried to associate
17 different instructors with each, each part, and we just want to
18 ask everybody what they can recall about different, different
19 stages.

20 A. Okay.

21 Q. So January -- or January 6th, 2022, it looks like she
22 completed RL1 training I think for the first time. And there was
23 a note that you did her CBRN. Do you remember in January 2022
24 doing that or anything else as far as training with her?

25 A. Yeah. I actually do because we stopped doing CBRN shortly

1 thereafter. So she was one of the few unlucky fortunate pilots
2 who had to go through that, that torture.

3 Q. Okay. How did she do?

4 A. She's a February baby. I'm a December baby. So I told her
5 just be glad we're not summer babies because when you have to put
6 that mask on your face in the summer it sucks bad. So I do
7 remember doing that with her. I think we did a .2 or a .3.

8 Q. Hours?

9 A. Yeah, 0.2, 0.3. Like I said I looked in my log. I have like
10 a digital logbook on my phone, and my -- for some reason it only
11 goes back to November of 2022. So anything prior to that I don't
12 have records of unfortunately.

13 Q. Okay. And do you recall if her performance -- anything about
14 her performance during that flight?

15 A. No. I mean if I, if I put satisfactory in there that we
16 completed the CBRN, I don't know how much you know about it, but
17 you just, you put the mask on your face, and you do a traffic
18 pattern or two just to make sure that people can fly the aircraft,
19 maintain visibility, maintain a constant angle approach to a
20 landing point. I don't remember anything that stood out from it.

21 Q. Okay. It looks like, it looks like she had a stands eval
22 flight about a month and a half later February 17, 2022, with Brad
23 Hass, and failed the evaluation. Do you remember anything about
24 that?

25 A. Let me think. The date sounds correct because again she is a

1 -- wait. You said she made RL1 on January 6th?

2 Q. Yeah. It looks like it.

3 A. If they did that, that doesn't make sense because typically
4 like I said she's a February baby. So you wouldn't -- if she got
5 signed off, they should have done her stands eval in conjunction
6 with her RL progression, but if he didn't -- maybe they didn't,
7 and they -- I do not remember what Brad failed her for. His
8 remarks should have what she was unsatisfactory, what tasks she
9 was unsat on.

10 Q. Okay. Yeah. We'll look that up. And then it looks like she
11 came back to RL1 status in March, and again it was Brad Hass, and
12 then March of 2022. And then there's no training records between
13 then -- or -- didn't have any events between March of 2022 and
14 January of 2023. And then January 2023, we have you doing an
15 instrument evaluation with her which she completed satisfactorily.
16 Do you remember anything about that flight by chance?

17 A. That might be the one where I was referencing earlier talking
18 about holding over the DAVEE NDB. But it sounds like it wasn't
19 bad enough to warrant an unsatisfactory. It might have just been
20 -- and we -- it might have been a training flight. It might have
21 been separate from this evaluation. But if I put -- if it was a
22 satisfactory because like I said it's not in my logbook for some
23 reason. If I put satisfactory, she was within the ATM standard.
24 But I do remember training, and teaching and using the trim system
25 to maintain altitude because she was doing like I said pushing the

1 little red button in the turns which was causing either the, the
2 nose to go up or down and the altitude to either increase or
3 decrease and with the correlating altitude obviously as well. So
4 I don't remember if that was the flight because I probably -- if
5 she was outside of the ATM standard, and I had to retrain her,
6 that would have been an unsatisfactory, and I would have, would
7 have put that in the records.

8 Q. Okay. One second. I'm just trying to keep up note-wise
9 here.

10 A. And if there's a -- just so you guys are tracking if there's
11 no write-ups from March of '22 to January 2023, that's pretty
12 common. Typically throughout a, a year, a birth year -- so for me
13 I'm -- I just happen to be December. So from October, November,
14 December is usually when I'll have all my events recorded in my
15 records, and then typically from January to September there's not
16 many write-ups unless I do like a mission briefing officer,
17 academics refresher, or I go TDY or something. So it's not
18 uncommon to not have anything in people's records for the nine
19 months outside of their annual evaluation window.

20 Q. Okay. That makes sense. All right. Then it looks like
21 February 6, 2023, she had a standardization day and night NVG
22 evaluation that was satisfactory with R. Trujillo. Do you know
23 that instructor?

24 A. Yeah. That's Rosa Trujillo. Her new last name is Cervantos
25 (ph.). So she got married last, last spring. She changed her

1 name. But, yeah, Rosa retired last summer.

2 Q. Okay. Any comments about Hass or Trujillo now Cervantos in
3 terms of their characteristics?

4 A. Any comments about Hass or Rosa?

5 Q. As evaluators.

6 A. Hass was -- before he was -- as evaluators?

7 Q. Yeah.

8 A. No. I, no, I mean Brad was -- I'll use, use your word from
9 earlier strict, is very strict. He was a former Ranger Battalion
10 guy before he was, before he was a pilot, former infantryman,
11 couple combat deployments to Afghanistan as an infantryman. So he
12 was kind of scary and intimidating. He was initially the Alpha
13 Company standardization pilot flying Mikes, and then he moved up t
14 battalion once he made W4, and then he was retiring, and they
15 shifted some people around, and they put him in the company as a
16 company IP as a CW4 which is a little weird. Not really related
17 to this, but he had a problem with that because he was a W4 with
18 24 years in about to retire, and he's answering to a young
19 lieutenant, and kind of being told where to be at what time. And
20 he would, he would talk to me because I was the brigade
21 standardization officer, and I was W5. So he would kind of
22 confide in me. And it wasn't -- I don't remember even if [REDACTED]
23 was his platoon leader. I can't remember which platoon he was in.
24 Actually I don't think it was her. I think it was -- I'm trying
25 to think who the other platoon leader was at the time, but, no, I

1 mean, as, as an evaluator I guess like I said he would have been
2 more strict, more tougher, and just kind of little more difficult
3 to fly with for some of the younger pilots because he was kind of
4 mean and intimidating. No, Rosa was, Rosa was awesome. She came
5 to us from, from Fort Rucker. She was teaching down there at the
6 G3 shop. She was a -- she was never out on the flight line. She
7 was at the G3 which is like an operation she flew the CG around,
8 commanding general, and other staff supported aviators. She would
9 fly them. She came to Fort Belvoir, took over the company
10 standardization officer pilot from, from Jake Schmidt who PCS'd to
11 Japan. And then Rosa was, Rosa was awesome. I did her
12 progression because she was grounded for a while for medical. And
13 then so she went through what's called refresher training. So she
14 went over 180 days. And so I did most of her refresher training
15 getting her back up, and she was a stud, she was awesome. She was
16 also standardization pilot, instrument examiner, and instructor
17 pilot.

18 Q. Okay. Then it looks like she had a temporary medical
19 suspension from March 2023 to May 15th, 2023. So about March,
20 April, two and a half months. And then she did a return to flying
21 PFE. This is [REDACTED] I'm talking about. And it looks like on the
22 record it looks like you did the return to flying PFE that May 15,
23 2023. You remember anything about that?

24 A. May 15th. Let me check my logbook quick.

1 Q. Yeah. Or at least you entered it. I'm not sure, you know,
2 you might have just entered it. I don't know if you flew it or
3 not.

4 A. I would not have entered it unless I did the flight, but I
5 sometimes would have done flights, and other people entered it,
6 but I always enter -- like if it's, if it's -- I wouldn't have put
7 somebody else's flight in there.

8 Q. Okay.

9 A. May 15th of 2023. May 15th. That's '24. Sorry. Nope, I
10 don't have it in there. So like I said my phone for some reason
11 -- I got a new phone. It only goes back to November 9th of 2023.
12 So I -- like I said I flew with her so much I remember doing her
13 RL progression, I did her AMC, her air mission commander
14 evaluation. I don't specifically remember that. I mean I
15 remember doing multiple evaluations and RL progression with her.
16 So no. How much does it say we flew?

17 DR. BRAMBLE: Do you have that Nick?

18 He's going to check. One sec.

19 MR. VAN VECHTEN: I mean nothing, nothing stands out in my
20 mind, unusual or out of the ordinary for that flight.

21 CW5 JACOBY: 1.1 day, 0.1 night, 1.2 night goggle.

22 MR. VAN VECHTEN: Okay. Yeah. Sounds like a typical
23 training flight. If she was -- she was grounded for less than
24 180. So it was just a proficiency flight evaluation which is just
25 one hour goggles will get you current across the board. So it

1 looks like I, I did all modes of flight which is pretty common for
2 me if somebody goes 60, 70, 80 days without flying, and especially
3 being a junior aviator, I rarely will fly them the bare minimum of
4 1.0 goggles. I usually will try to get them all modes of flight
5 just to kind of brush the dust off, you know?

6 BY DR. BRAMBLE:

7 Q. Yeah. So does that mean -- do you think she would have been
8 a PIC by that point?

9 A. No, definitely not.

10 Q. Okay.

11 A. No, because she was, she was not a pilot in command when I
12 left in July of last year.

13 Q. Okay.

14 A. I'm almost positive. I'm like 95 percent sure she was not.

15 Q. All right. We'll check in the records, but I -- we haven't
16 tracked down all the -- coordinated all the details yet. Okay.
17 So then it looks like December of 2023 which is what about seven
18 months after that return to flying PFE she was assigned to HHC as
19 a staff officer, training officer --

20 A. Yeah, there you go.

21 Q. -- at the battalion level.

22 A. Yeah, there you go. So that's when she moved to -- like I
23 said, I was there. I don't remember exactly when she went to
24 battalion, but so you're saying, yeah, December of '23 sounds
25 right because if you said she got to the unit January 6th she made

1 RL1. So that means she probably got to the unit in like
2 December-ish of '21. So she did her two years, and then moved to
3 battalion.

4 Q. Okay. So that's kind of a typical progression for an officer
5 coming in like that?

6 A. Yeah, for sure. I mean flight school is just pumping out,
7 pumping out lieutenants, and you've got to stick them somewhere.
8 And so we were flooded. My four years there we were flooded with
9 lieutenants coming out of flight school, and they all need to get
10 that platoon leader time. And so the battalion was constantly
11 cycling platoon leaders through, and they even put them in extra
12 positions that aren't real like a company executive officer which
13 is not a real thing. And they would put -- so some of the flight
14 companies would have three lieutenants, and like the, the
15 executive officer would be like the senior lieutenant. Sometimes
16 they would pin captain before they left. So that is absolutely
17 typical that they -- for her.

18 Q. Okay. And then in January 2024 it looks like she had an
19 instrument evaluation that was satisfactory with Ingalls (ph.) who
20 we've talked to and --

21 A. Matt?

22 Q. Yeah. And then we -- and then she had an NVG -- I have a
23 note that says NVG and PC sat with you. So that was January 11,
24 2024. Any notes or any recollections of that?

25 A. That one I do have in my records because my, my book goes

1 back. You said that was a NVG stands and, and a PC eval?

2 Q. I have an extracted note here from the record. So let's see.

3 Hang on. We'll check the record real quick.

4 A. Yeah double-check that for me. But in my records like I said
5 I have the flight, I have the tail number 446, and I have
6 intermediate transmission oil temperature highlight, which means
7 we had an actual emergency procedure. So I do remember that. It
8 happened. We went to -- we were over to Andrews because I would
9 -- a lot of times I would go over to Andrews Air Force Base to do
10 my traffic patterns just because it's a ginormous runway. It's
11 away from Davison because Davison gets really busy. And I mean
12 who else can do traffic patterns where they park Air Force 1. So
13 I would regularly go over there, and just do traffic patterns.
14 And we were coming back to the airfield, and it was like right at
15 the end of the night. We got -- let me just check my logbook
16 again here. We got a -- I have this with -- yeah, it was
17 January 11th, 2024. I got an intermediate transmission
18 temperature high caution light. So I do remember having an
19 actually EP with her, and we just taxied to parking, and I
20 remember we wrote it up, red X'd the aircraft, and it just
21 happened luckily that it was at the very end of the night. I do
22 not remember terminating my flight early because of the chip light
23 or the temperature high light. So I can remember taxiing into
24 parking. We were taxiing either from refuel or from the north
25 sod, and we got the EP, and then we taxied into parking.

1 Q. Okay.

2 A. But double-check that. I don't believe that was a PC ride
3 because like I said I, I don't think she was a PC when I left.

4 Q. Can you, can you tell me again the light was an intermediate
5 transmission what?

6 A. Intermediate transmission temperature high caution light.

7 Q. Okay. And that occurred during taxi?

8 A. It was either during taxi or while doing hover work in north
9 side, doing some slope work. We were definitely at Davison
10 because if that happened at Andrews or while on the DC helo routes
11 that's a land as soon as possible, and I would have had to have
12 done a precautionary landing somewhere and park the aircraft. So
13 we were definitely at the airfield Davison when it happened at the
14 end of the night. I do remember thinking like oh, I'm glad I got
15 -- because I'm pretty sure I was scheduled for a 4.0, and it's
16 very rare for me to come back with an aircraft with hours left on
17 it. So if you give me 4 hours, I'm going to fly the full 4 hours.
18 And I only flew 3.6, and I believe it's because we had that
19 emergency procedure.

20 Q. Okay. How did she handle that situation?

21 A. Very well. I mean it was great because newer pilots now we,
22 we rarely get emergencies. So to get an actual one and go through
23 the steps and everything, and it's not really a big deal. So I
24 knew it was no big deal, but she's pulling out the checklist, and
25 we were talking through it, and I just remember I was flying the

1 aircraft when it happened, and which is like I said not a big
2 deal, but it was great for her to see like the master caution come
3 on, get the actual thing, run through the checklist and verify it.
4 And I don't know, there's probably something in flight ops. I
5 probably called it in over flight ops. I don't know if they keep
6 records of that, but I would have -- because that would have been
7 a cancel for maintenance that should have been logged in flight
8 ops I believe.

9 Q. Okay. All right. Let me just check with these guys and see.

10 DR. BRAMBLE: Does it look like a -- what type of evaluation
11 does it look like to you guys?

12 CW5 JACOBY: January.

13 DR. BRAMBLE: January 11th, 2020?

14 CW5 JACOBY: It does say PC evaluation conducted over two
15 flights in conjunction with annual instrument standardization and
16 NVG eval.

17 MR. VAN VECHTEN: Okay. All right. I guess, I thought she
18 wasn't a PC, but -- and usually like I said I didn't think it was
19 a PC eval because I didn't get all the modes of flight, and a PC
20 eval would have had all modes of flight. So that makes sense that
21 it was conducted over two flights. And that's my entry Nick?

22 CW5 JACOBY: Correct. And it looks like maybe Ingalls did
23 the instrument which is included. Those hours from the instrument
24 eval were included with the PC eval write-up. MR. VAN VECHTEN:

25 Okay. And did I put -- did I recommend PC duties both left and

1 right seat day night NVG?

2 CW5 JACOBY: Affirmative.

3 MR. VAN VECHTEN: Okay. Yeah, she -- like I said, I honestly
4 don't remember it being a PC eval at all, but she did leaps and
5 bounds improve from her time when she first got there because like
6 I said she was in kind of that 40 percent of people that took a
7 little bit longer, and she improved throughout her time there for
8 sure.

9 BY DR. BRAMBLE:

10 Q. Okay. That's helpful. So at that point how was her -- do
11 you happen to recall her level of performance? And maybe it's
12 difficult since you don't remember the type of evaluation it was.

13 A. Yeah, no. I mean it's not uncommon that we do
14 standardization flight evals in conjunction with a PC eval because
15 it's required for first time pilots in command to undergo a
16 standardization and NVG flight eval while they're doing the PC
17 eval. So it was pretty common to do them together. I don't
18 remember anything specific. But like I said I do remember the EP,
19 and I do remember that being a good opportunity to kind of see
20 that, and if I recommended her for PC it was because I believe she
21 had the maturity, and the judgment, and the, the ability to
22 perform as a pilot in command.

23 Q. Okay. So then it looks like two months later, March 16th,
24 she went on temporary medical suspension, and was on medical
25 suspension until August 6th. So about five months in the middle

1 of 2024. And then returned to flying in mid-August, August 15th,
2 2024, and did a PFE aircraft and NVG with Karl Halterman, which
3 was satisfactory.

4 A. Okay.

5 Q. Do you -- I guess by that point you were gone. Do you
6 remember anything about the medical suspension or know how that
7 might have impacted her proficiency?

8 A. That's probably her knee injury from the Air Assault Course.
9 Because she went when I was there, and she got back when I was
10 there. I left in July. So if the PFE was in August she probably
11 didn't get an up slip until that, until after I left. I can only
12 speculate how it would affect performance. I mean any time a 400-
13 hour aviator goes five months without flying it's going to have an
14 impact. I mean when you're that low of an hour level for sure.

15 Q. Okay. And --

16 A. And she was probably, she was probably only 120, maybe 130
17 goggle hours. I'm guessing. So that's a significant amount of
18 time to be, to be down. It would probably take a little while to
19 get the proficiency back.

20 Q. Okay. And in your experience if somebody is out for a period
21 of time like that when they're that inexperienced what are the
22 things that are more likely to get a little rusty compared to
23 other things that might hold up better?

24 A. When somebody does go out that long especially under the, the
25 goggle mode of flight, I mean obviously control touch. That's

1 going to be the very first thing to go because they don't have the
2 repetition consistency, and the sustainment that like years of
3 flying they're a new aviator. So that's going to be the very
4 first thing to go. Managing the cockpit, situational awareness
5 would probably be second because -- and especially in DC where
6 it's very busy with the helo routes and the radio traffic. That
7 will be second. Because you've got to be super alert as we all
8 know. So I would say that usually like when somebody comes back
9 like if I'm doing a PFE on someone for sure we're going to go
10 through the DC helo routes. Like I'm not going to do a
11 proficiency flight evaluation on somebody that hasn't flown in
12 five months, and do an hour and a half of goggles in the traffic
13 pattern Daverson -- at Davison. I'm going to take them on
14 definitely route one because that is the most congested. I'll
15 probably take them portions of route three. I'll probably do a
16 couple zone transitions because you have to get that back.
17 Because if you're not -- if you've gone five months without seeing
18 DC helo routes under goggles, and you only have 400 hours total,
19 it's going to take you a little while to get it back. So I would
20 say those are the two main things that are going to be most rusty.
21 Q. Okay. Along those lines what's, what's it like flying that
22 route one to four transition with goggles on at night? I mean any
23 particularly challenging areas there going north to south?
24 A. Yeah, for sure. So again four years there I flew just under
25 1,000 hours. So I flew a lot in four years. Lot of goggles

1 there. Literally flown this route hundreds of times. I would say
2 my most concerning was the Chain Bridge transition a little bit
3 more north on route one, and that changed in June of 2022 or '23.
4 I can't remember which one. I think it was 2023. They changed
5 it. So you're at 1,000 feet at Chain Bridge, and when they're
6 landing southbound to Runway 1 9, that aircraft feels like it is
7 right on top of you, and you're going northbound, and they're
8 going southbound, and it's an eerie feeling. Even, even at my
9 experience level I remember being uncomfortably close to fixed
10 wing. Not like there's going to be a midair, but like holy crap I
11 can't believe this is allowed. So I was part of the DC Helicopter
12 User Working Group, and I brought that up at one of our meetings,
13 and they did in fact change the approach. The fixed wing was like
14 2 to 300 feet lower than what they were prior to June of -- it's
15 either 2022 or 2023. So that section I thought would have been
16 where a close call would occur. Now traveling southbound on route
17 one or northbound on route one, let me just say in my, in my years
18 there less than 10 times have I seen them use Runway 1 5 3 3. And
19 every single time if I was traveling northbound they would tell me
20 to hold south by the golf balls, and if I was southbound I was
21 told to hold north by Hains Point. Not one single time ever did
22 they let me cross the approach path of 3 3 or the departure of
23 1 5 when I was on route one. So I've never seen that allowed.
24 They've never even given the option to request visual separation.
25 That being said southbound on route one would be extremely dark

1 right side because of the Potomac. The left side is littered with
2 lights from JBAB, Joint Base Anacostia-Bolling. So it is very
3 difficult to pick up -- to distinguish between aircraft and ground
4 lights especially at 200 feet because you have a little bit of
5 rising terrain to the southeast side of JBAB and Anacostia. So
6 because a little bit of high ground there MUSEL aircraft would be
7 coming from Andrews, the Hueys, and they would be very difficult
8 to see coming down route three clockwise, and that would be -- as
9 I'm coming down route one either up by like RFK Stadium or coming
10 down through the, through the, the basin there, the tidal basis.
11 It would be difficult to see the aircraft because they're almost
12 masked behind the terrain. So picking up aircraft to the left, to
13 the left front like where that fixed wing would have been would
14 have been very, very difficult. Also because that runway is so
15 not utilized much, and I'm sure you guys if anybody could pull the
16 data and find out what percentage of aircraft land there. But
17 I'm, I'm guessing the most likely thing to do would be looking at
18 Runway 1. Like I would -- it wouldn't be in my conscious really
19 to be looking to the left there for an aircraft coming in. One,
20 it's littered with lights. And I don't know if they were flying
21 white phosphor or green phosphor goggles. We have a mix. They
22 have a mix in the battalion. So if you're flying white phosphor
23 goggles, which is a possibility, man, it is just a sea of lights
24 over there. And like I said it wouldn't be in a normal conscious
25 thought to look over to the left because you almost never see an

1 aircraft coming from the left because it's weird. It's over the
2 high ground, and it's over the housing area of JBAB. So very
3 difficult to fly there in that specific area off to the left. If
4 the aircraft are landing to Runway 1, no big deal. You're
5 parallel with them. There's no way you're even going to get
6 close. The only place you're going to get close is as you
7 transition route four southbound over Wilson Bridge, and then over
8 by National Harbor. Now the fixed wing are making their approach
9 to landing, and you're making your climb out to 600 feet for Broad
10 Creek. So that is kind of like where I would have felt it would
11 have been close, but not, not in that area at all.

12 Q. Okay. And you think not in that area because they would have
13 asked you to hold or because there's enough altitude separation on
14 approach to 3 3?

15 A. Probably both. So again I, I've heard, you know, I watch the
16 news. I see everything. The altitude I -- everybody I've seen is
17 typically at 100 to 150 feet, and hugging that left shoreline
18 right by the -- there's like a walking trail right there. And
19 everybody I've seen flies right down the coast 100 to 150 feet.
20 Now we do have a little bit of a gun shy guy because a year, year
21 and a half ago there was a guy got caught flying up the Potomac
22 and about 8 to 10 feet off the water. One of the boats took a
23 picture, a video of it actually, sent it in to the FAA, and we put
24 out like, hey, fly the altitude that's charted. So you now can
25 expect 12th Battalion aircraft if it's, if it's a charted altitude

1 of 200 everybody is going to be at 200. They're not going to be
2 buzzing houses, buzzing the water. So we were told, one, because
3 of the literal thousands of noise complaints that the DC area gets
4 from helicopter traffic, but also because of the -- that, that one
5 guy that was flying a little lower than he should have we make
6 sure that the pilots are flying friendly, and flying as close to
7 the charted altitude as possible. So everybody I've seen flies
8 between 100 to 150, 180 feet, and hugs the shoreline. I've seen
9 the flight path. I saw where they collided. I saw the altitude.
10 And I don't understand that. That's the unknown to me, and that's
11 what doesn't make sense. But again I'm given an open mic to kind
12 of ramble. In my Lima experience 200 feet, 300 feet over the
13 water no moon you cannot tell in the cockpit. The instruments are
14 difficult to see, and it literally takes a heartbeat to be 100
15 feet off on altitude in a Lima. Like you just think about pulling
16 the cyclic back a little bit, and you're 100 feet high. Our
17 Aircrew Training Manual standard is plus or minus 100 feet, and
18 that's because I mean maintaining exactly an altitude is, is
19 pretty difficult in a Lima especially over water under goggles.
20 But I don't, I don't understand the 300 feet. That's really
21 confusing to me.

22 Q. Okay. One sec.

23 A. Yeah. And I saw like on their flight path traveling
24 southbound after they passed the 14th Street Bridge by the tidal
25 basin you've got Fort McNair off to the left side, and you have

1 the golf course off to the right. I saw like a flight path on a
2 couple different so-called aviation experts putting this out where
3 their like flight path went over the golf course. I've never seen
4 anybody do that. Like we just -- we wouldn't do that. So I don't
5 know, I don't know why it's doing that. Like if that's like a
6 -- something like the radar wasn't picking it up correctly, and it
7 just kind of guessed where they were. I don't know. But that's
8 like -- I've never seen anybody fly over the golf course there.

9 Q. Okay.

10 A. You don't need a map there. So it's not like they were
11 looking inside at a map because you're following the river. So I
12 don't know how that little flight course showed them over the
13 Potomac. And everybody, everybody hugs that shoreline. So I
14 can't explain why they were not hugging the shoreline. And we're
15 helicopters. We like to fly low. It's cool. So I just, I don't
16 get the 300 feet. That's --

17 Q. When was that picture sent to the FAA?

18 A. What picture? Oh, oh man let me check. I'm thinking July of
19 '23.

20 Q. Okay. We'll follow-up on that.

21 A. Okay.

22 Q. And then four to five, four to five times -- just confirm for
23 me. You said you think you only saw Runway 3 3 1 5 in use four to
24 five times when you -- in your whole experience --

25 A. Less than 10.

1 Q. Less than 10?

2 A. Less than 10. In my -- yeah, and I -- like you can ask Nick.
3 I was one of the high time guys there for sure. I was always
4 flying because I love flying there, love that airspace. And I
5 always was available. So I mean in four years to say less than 10
6 times, and like I said I flew nearly 1,000 hours there, and most
7 of my flights I did -- we call it a lap through the DC helo
8 routes. Because it's just, it's awesome. I mean it's a great,
9 it's a great place to fly. So we would at the end of the flight
10 let's go do a lap through. We'll pick up a couple of routes and,
11 and head back to Davison. That was completely normal and what we
12 did all the time plus our mission set requires us to be intimately
13 familiar with that airspace and the routes.

14 Q. You mentioned Chain Bridge and how the fixed-wing traffic was
15 2 to 300 feet lower. Can you clarify --

16 A. Yeah.

17 Q. -- whether that was before or after you guys reviewed the
18 route or the approach profiles?

19 A. After. It was after because I, I remember doing the Chain
20 Bridge. And that section of Route 1 they didn't change the
21 altitudes like Zone 1, Zone 2 changed, Route 5 changed. I think
22 Route 7 changed just by 100 feet. But that section of Route 1
23 that goes from 200 feet from Wilson Bridge, well, 300, and then
24 200 all the way up to Memorial Bridge, and it goes 300, 400, 700,
25 and they, they raised it from 700 up to 1,000 to do the Chain

1 Bridge transition, and I was at 1,000, and I just remember looking
2 at a fixed wing. I was like holy cow that seems really low. And
3 I -- we had talked to people at the tower, and I can't remember
4 who I talked to now, and they're like oh, yeah, yeah. In fact
5 they, they changed the approach and it's, it's a couple hundred
6 feet lower than what it used to be when they're coming in.

7 Q. So it was 1,000, and then after this review it went back down
8 to what 7, 800 feet or something?

9 A. No. It was 700 at Chain Bridge, and now it's 1,000 for the
10 Chain Bridge transition. The fixed wing altitude lowered from
11 -- I'll make up a number. I don't know. 2500 down to 2200.

12 Q. Okay.

13 A. And I don't know what the altitude was or is, but their
14 altitude dropped 2 to 300 while ours raised 300. I think that was
15 weird.

16 Q. Oh, okay, all right. I understand that finally. Thank you.
17 If you stay below the max altitude on the DC helo routes was it
18 your understanding that you would be safe from arriving commercial
19 traffic?

20 A. Let me see. If I stay below the max. Yes. I mean it never
21 even crossed my mind because the -- like I said the only place
22 that we ever got close would be Wilson Bridge southbound climbing
23 600 for Broad Creek while the fixed wing are landing Runway 1.
24 And then that Chain Bridge section. So I've never -- when you're
25 on Route 3 either east or west of the Potomac on Route 3 it's no

1 factor. Zone 1, Zone 2, Zone 5, Zone 7, Zone 6, those are all no
2 factors to the airport. So I've never even really thought about
3 that because fixed-wing were never really -- I was more concerned
4 about helicopter traffic. Because there's so much helicopters
5 there I never even thought about the fixed-wing traffic. Never.
6 Never came close to a fixed-wing. Besides that little Chain
7 Bridge section where I was like wow I can't believe we're allowed
8 to be this close, but it was nothing like you know what I mean
9 dangerous. And I was on Route 1 tons of times northbound, and
10 you've got a fixed-wing out to your left side landing, but I mean
11 it's -- you're parallel with it, and you're .5, .6 probably from
12 the approach, final, final approach course. There was no factor.
13 I'm traveling north on Route 1 from 4 to 1, and they're landing
14 Runway 1. And it was just -- that's a really cool perspective to
15 see a fixed-wing because they're doing 150, 170, whatever, and I'm
16 doing 100, and it's just, it's neat to watch a fixed-wing kind of
17 land right out your left door. But I never thought like danger or
18 accident or anything like that.

19 Q. If you had to put a rough ballpark on it how many times would
20 you say you've flown that VFR Route 1 to 4 transition?

21 A. Hundreds, hundreds.

22 Q. Okay.

23 A. Over a hundred.

24 Q. Like multiple hundreds or just over a hundred?

1 A. Oh boy. I'll say 200 times. I'll throw a ballpark out
2 there.

3 Q. Okay, all right. Let's say you're going to go leave Davison,
4 go up north by Frederick, do a little unimproved LZ work, and then
5 come back down through the DC helo routes. At what times would
6 you adjust your altimeter?

7 A. So initially when you're taking off from Davison you're going
8 to get the altimeter, and then I would probably take -- I would do
9 Route 5 to Springfield, Route 3 clockwise. So when you check in
10 with National Tower at Springfield they're going to say PAT 2 5,
11 altimeter 2 9 9 2 say request. So you're going to get the
12 altimeter setting there, and then I would go clockwise up to route
13 -- I would go up to Cabin John, and then at Cabin John I would use
14 zone 7 northbound. So then I would talk to approach, and then I
15 would get an altimeter setting from Frederick Tower. And then
16 reverse course I'd probably go direct Cabin John Route 1 to 4 to
17 Davison. So I would get the altimeter setting at Davison,
18 Springfield from National Tower. Approach may give it to me once
19 I get north of Cabin John and I'm transitioning northbound. And
20 then Frederick Tower will definitely give it to you once you check
21 in.

22 Q. Okay. And every time you get it you're adjusting it if
23 needed?

24 A. Definitely. I've never seen a pilot not.

1 Q. Okay. And tell me about the -- what's the SOP for
2 communicating between each other when you set the new altimeter
3 setting?

4 A. So all the Limas have an ESIS, an emergency standby
5 instrument system in the middle. So typically the pilot on the
6 controls will adjust theirs. So if I'm in the left seat, I will
7 say and other pilot's flying, I will say altimeter 2 9er 9er 2 set
8 left and center. Because typically the pilot on the controls will
9 reach up and tune the altimeter in the center on the ESIS, and the
10 copilot will acknowledge and say 2 9er 9er 2 set right. You know,
11 understand the seat position.

12 Q. Okay. And so is it, is it SOP to set them at the same time
13 or might one pilot set it and the other one just sets it later if
14 they're busy?

15 A. I don't think one way or the other. I don't believe the SOP
16 specifies when to set the altimeter. But in my experience
17 everybody pretty does -- pretty much does it immediately almost to
18 the point where I will tell -- like we're on an instrument
19 approach. We're in the clouds. We're in a descent. And they
20 want to -- and it's like 10 feet. Like you're at 2 9er 9er 1, and
21 now the new altimeter is 2 9er 9er 2. I'd be like hey, it's 10
22 feet. Let's fly -- while you're in the clouds let's fly the
23 controls. Let's worry about the altimeter 10, 10 feet a little
24 bit later. So I mean I don't think there's anything in the SOP
25 that I recall that says specifically when the altimeter has to be

1 set. From what I've seen it's pretty much when you get the
2 altimeter's -- the reading.

3 Q. Okay. And when you're, when you're headed down south on
4 Route 4 say, and you're trying to maintain that 150 to 180 feet, I
5 think you already answered this, but your control strategy is
6 you'd use that trim to set one of your axis and then --

7 A. The trim holds the cyclic. The collective controls the
8 altitude. And I'm sorry if I'm like -- if you're a helicopter
9 guy, and I'm talking down to you but --

10 Q. No, no, no. I'm fixed-wing. So go ahead. Yeah.

11 A. Okay, Okay. So the collectives friction which is like a
12 dial on the collectives that just kind of tightens the friction.
13 It kind of holds it in place. That is your kind of meat and
14 potatoes for maintaining altitude. And then if you need to make a
15 turn, you use the cyclic trim beeper because again I -- if I want
16 to come right, and I beep it right on the cyclic trim beeper, the
17 -- you, the trim system will not dip your nose forward or pull it
18 back because it only works in one axis on the cyclic trim beeper
19 on the cyclic. If you push the red button, and like I said what
20 we call hand-fly or, or mash the trim and manually fly, well, now
21 it's a wet noodle, and you could accidentally go down into the
22 right or back into the left because you've disengaged it, and now
23 that forced trim is not working for you.

24 Q. I see. So you're holding pitch constant with that strategy,
25 and just operating with the bank on the cyclic?

1 A. Correct, correct. And it's almost like, you know, I'm kind
2 of doing it with my fingers. You can't see, but I'm like pinching
3 the top of the cyclic, and I -- you just beep it in the direction
4 of -- let's say I'm doing 89 knots and I want to do 90. I just
5 kind of give a couple beeps with my thumb forward, and then the
6 pitch is going to go down, and then I pull the collective up
7 because I would lose altitude, and that's how you maintain the
8 altitude.

9 Q. Okay. It's our understanding that you guys use the baro
10 altimeter on the routes, but did you ever routinely or did you
11 routinely reference the, the rad alt as well or not really?

12 A. No, not really. And I do remember like, you know, because
13 you're basically at sea level. But some of the routes when you
14 are at say, say Route 3 -- I'm sorry, Route 5. When you're on
15 Route 5, and you're at 1300 feet over by east of Springfield,
16 you've about 7 or 800 feet off the ground. So I just remember
17 that. They're not all that, that big of a difference. Like,
18 obviously, Route 1, when you're -- that's 200 feet baro altitude.
19 You're probably at 200 feet AGL above ground level with your radar
20 altitude because you're over the water. But it's not -- yeah,
21 you're supposed to fly a barometric altitude, but I don't
22 particularly even myself I don't remember looking at the radar
23 altitude. Just I remember noticing it, like, wow, we're only 500
24 feet off the ground over these houses right now, but I'm at the
25 correct altitude. And that's -- just in that sense.

1 Q. Let me ask you this. Did you utilize the stratus unit with
2 the iPad in the ForeFlight to maintain traffic awareness?

3 A. Honestly not as much as other people. So when I got to
4 Fort Belvoir I had -- and this may be embarrassing, but I had
5 never even heard of an ADSB or a Stratus. So at that point I'd
6 been flying for 20 years, and I'd had never seen a Stratus or
7 heard of ADSB. So it's just something that I had never been
8 exposed to. So I show up to Belvoir, and yeah they're like, hey,
9 we have these things. We can sign them out, and it gives you all
10 this stuff on your iPad. Said wow, great. So in my -- I use my
11 personal iPad. I don't use a company iPad. And mine has the
12 cellular data. So I do not need the Stratus to get a moving map
13 to use as backup navigation. So I would say most people utilize
14 the Stratus with their iPads because they were using the unit
15 provided ones which required the Stratus to work.

16 Q. I see. All right. One second. All right. When did you,
17 when did you -- where did you tend to mount or carry your iPad
18 when you were flying?

19 A. My iPad as always on my, my left leg. I have a, what's it
20 called? What's it called? I have a mount has like a bracket --
21 oh, pivot, pivot mount, and I have a knee board strap with it, and
22 it clips into my knee board, and I would always carry it on my
23 left leg.

24 Q. Okay. Does flying under NVG -- well, let me ask you this
25 before we leave that topic. Did you have traffic information on

1 when you, you bring that iPad with you?

2 A. Sometimes, not always. Again like I said because it wasn't
3 something I was used to in my 20 years of flying, I often would
4 not pair my iPad to the Stratus. Most pilots I flew with grabbed
5 one. And I could get the traffic data if I wanted, but you go 20
6 years without doing something, and I just, I didn't do it all the
7 time. I would do it occasionally on instrument flights, but I, I,
8 personally I would not utilize it all the time.

9 Q. Okay. What's your opinion of its usefulness in the downtown
10 VFR routes? Do you feel like it's -- using that for traffic
11 awareness is practical or is it so low and so eyes out that you
12 can't even really make use of that?

13 A. The latter of the two. I -- during RL progression I would
14 not let pilots use the iPad because we say when we're flying
15 through DC you're IFR. You're I follow roads. I follow rivers.
16 So I want people to learn the stuff visually because when the
17 weather starts to deteriorate I don't want your head coming inside
18 to figure out where you are. It's DC. There are massive
19 landmarks to triangulate your position, and I would, I mean
20 honestly I really wouldn't use the iPad much inside of Route 3
21 because it's very easy to know where you are. There's some like
22 weird routes like Route 6 from Andrews over the top of DCA. I
23 don't do that one a lot. So I will probably glance down at my
24 iPad to look at the route. There's some other like -- let me
25 think. Route 7, I don't do that one a ton. Maybe in some of the

1 zones, Zone 3, I might pull it out. But like for the most part if
2 I'm on Route 3 1 4, I'm not even going to use the iPad. It would
3 be more of a hindrance because you'd be constantly looking inside,
4 and there's more obstacles outside than there are traffic that's
5 going to be a factor.

6 Q. Okay.

7 A. And like I said, DC to me fixed-wing were never the concern.
8 It was rotary wing.

9 Q. Okay.

10 A. I don't ever remember thinking like this is unsafe because of
11 the fixed. I remember thinking, man, there's a lot of
12 helicopters. There's a lot of choke points, a lot of blind areas
13 where Route 1 splits by a V over by, by Fort McNair. And then
14 Route 4 meets that little intersection by Hains Point, that's a
15 choke point. The Pentagon transition off of Route 5 to pick up
16 Route 1, that's a choke point. And when you're taking off out of
17 the Pentagon pad the fixed-wing are -- and then you're going over
18 Memorial Bridge for Route 1 northbound, those fixed-wing are right
19 over top of your head. But like I said I never thought of them as
20 a, as a concern, never.

21 Q. Okay. One quick question about the helicopters, the Coast
22 Guard BlackJack helicopters. Any particular --

23 A. Yeah.

24 Q. -- issues deconflicting with them or were they just like
25 everybody else?

1 A. No issues ever, nope.

2 Q. Okay. Does flying under NVGs make it harder to control trim
3 effectively?

4 A. No. No, I wouldn't say so.

5 Q. Okay. And you, you typically would glance under your NVGs at
6 the instruments. I think you mentioned something about lighting
7 in the Lima. Is it harder or easier or --

8 A. So you have to look under your goggles with what we what we
9 call the naked eye. So when you're flying goggles, you look
10 through your goggles to see outside, and the only way to see
11 inside is looking underneath your goggles with your naked eye.

12 Q. And --

13 A. So --

14 Q. -- was there any particular --

15 (Crosstalk)

16 A. -- the back lighting -- oh, I'm sorry.

17 Q. Oh, I think you were about to answer my question about the
18 back lighting, yeah.

19 A. Yeah. The back lighting on a Lima that is -- that's a huge
20 pet peeve of mine in the Lima for sure. So for me like
21 instruments IMC at night in a Lima that is very difficult because
22 you're seeing the actual dials and the, the altitudes and air
23 speed. I mean first of all the altimeter needle is almost 20 feet
24 thick on the altimeter. The air speed is about 5 or 7 knots
25 thick. So to be like right on altitude is difficult. So under

1 goggles very difficult to see your instrument panel at night
2 flying goggles.

3 Q. Okay. If you were flying south on Route 4 or seeing the
4 transition of 1 to 4, and you had a, a right quartering tailwind
5 of 3 2 0 and say 15 gust 27 while, you know, like while you're
6 headed south there, how would you see that impacting the control
7 task?

8 A. No factor. I mean it would be a tailwind. It would increase
9 my ground speed. And you said a right quartering to what? The
10 winds are 3 2 0?

11 Q. Yeah. So you're headed south, and you -- coming out of 3 2 0
12 at 15 gust 27. Any challenges with maintaining a constant
13 altitude?

14 A. No, no. A wind, a, a tailwind, headwind that's not really
15 going to affect altitude unless there's terrain and creates
16 mechanical turbulence with downdrafts, but I don't think that
17 would have affected my altitude on that route much at all.

18 Q. Okay. All right. And the gustiness not really an issue?

19 A. No. The only time wind in a helicopter is going to affect us
20 is if there's terrain, and there's turbulence and downdrafts.

21 Q. Okay.

22 A. I've never seen where just wind when you're cruising along is
23 going to really affect your altitude. You're going to need those
24 downdrafts.

25 Q. Okay. All right. Here's a question about Route 4. How far

1 west of the east bank of the Potomac would you have to be to think
2 you're too far off the route?

3 A. How far west?

4 Q. How far toward the middle of the river or the other side of
5 the river, yeah.

6 A. If you look at -- to remember. I think if you look at the
7 helicopter route charts, the route actually goes down the middle
8 of the Potomac. But nobody does that because you're almost
9 perfectly lined up with the traffic landing on Runway 1. So
10 everybody hugs the east side of the coast over there as you're
11 flying like from Wilson Bridge climbing to 600 up by Broad Creek.
12 Everybody puts the shoreline right out their left, right out their
13 left door if you're southbound.

14 Q. Okay. And one other question actually harkening back to when
15 you said you had less than 10 times you saw 3 3 or 1 5 in action.
16 If you're coming up or down four there with traffic arriving on
17 3 3, did you say every time that you were in that situation the
18 tower held you?

19 A. Every, every single time. There's a -- down by the naval --
20 there's something, Naval Research something Lab, there's this big
21 white ball things, and they're called the golf balls. I don't see
22 that charted anywhere, but you'll hear towers say it. They'll
23 say, you know, PAT whatever hold by the golf balls. We've got
24 traffic landing or departing 1 5 3 3 whatever. And then I
25 remember one time specifically I was coming southbound, and there

1 was traffic, and they said hold, hold at Hains Point. And I just
2 came to a hover. I was right at -- because I'm a helicopter, and
3 I can hover. So I stopped right by Hains Point. Fort McNair was
4 on my left side. The golf course is on my right side. And I just
5 came to a hover. So it was more, like, again, most of the traffic
6 lands Runway 1. It's not, I mean it's not rare, but I would say
7 70/30 is probably 30 percent lands to the south, 70 percent or
8 more lands to the north. So usually I'm, I'm northbound along
9 Route 1, and there's traffic departing or landing Runway 3 3 1 5,
10 and every time I've been told to hold at the golf balls.

11 Q. Okay.

12 A. And I'll even say traffic in sight request visual separation,
13 and they'll just say hold at the golf balls.

14 Q. Okay. Hold at the golf balls.

15 A. And you won't -- I don't think you'll see that term golf
16 balls on a, on a map or anything like that. Maybe it is but it's
17 definitely not in the helicopter routes.

18 Q. We've located it, yeah.

19 A. Okay. Okay.

20 Q. So I have about 15 questions left here, but I just want to
21 check and see if you need a break.

22 A. No. I'm good. I've got a water bottle here, and I'm doing
23 fine.

24 Q. Okay. All right. For an experience instructor pilot flying
25 the DC helicopter routes is it a common technique to request

1 visual separation as a standard practice even if the traffic may
2 not immediately be in sight?

3 A. Oh, that's a good question. I'm going to say yes. I know
4 it's, I know it's bad. I was talking to some people about this,
5 and I know -- I've done that. So I've done it. I've been in
6 Route 1 southbound, and they'll say traffic three miles south of
7 Wilson Bridge, 2,300 blah, blah, blah, landing Runway 1. And I'll
8 say request visual separation. They'll say visual separation
9 approved. And then 30, 45 seconds later you'll see the traffic.
10 And I remember thinking I couldn't hit that aircraft if I tried
11 because it's parallel with me. It's no factor. It's super high.
12 It's off to my right. So I don't know if other people have done
13 that, but yes I have done that.

14 Q. Okay.

15 A. Because I know because again I know where I'm at. I know
16 where the traffic is, and I know it's not a factor. So I will
17 say visual separation, and then I'll have the traffic 15 to 20
18 seconds later.

19 Q. Okay. All right. So, yeah, most of the time when they're
20 calling that out it's -- it doesn't seem like it's an issue. So
21 you probably get in the habit of just sort of issuing that
22 response; is that kind of what you're saying?

23 A. You absolutely get desensitized to it, yes. Because they've
24 called out traffic 20 miles away. And as a fixed-wing you know
25 this too, you'll see aircraft you're going west, he's going east,

1 you're 8 miles away. They'll say there's whatever traffic
2 opposite direction, same altitude. You're like yep no factor. So
3 you get desensitized to it because of the amount of traffic in
4 that airspace. And as an experienced guy I have situational
5 awareness, and I know it's not a factor, and I know I'll
6 eventually get that traffic in sight. But sometimes they'll call
7 it 10 miles south of Wilson Bridge. I don't know if I can see 12,
8 15 miles a little aircraft on a semi-hazy day. But I know if I,
9 if I don't say it, I may have to hold. And I know I'm going to
10 see the traffic, and even if I don't, I know it's not a factor.
11 Now I've never taught that to anybody. I've never said that to
12 anybody. But if I've done it as an experienced guy, I would
13 assume that probably other pilots do it. I can't be the only one.

14 Q. Okay. And how does the conversation typically go or the
15 communication about traffic typically go in that situation with
16 the other pilot?

17 A. Honestly I don't know. I mean I might say -- I might say --
18 let's use that example. They're 10 miles south of Wilson Bridge
19 (indiscernible) traffic in sight request visual, and they'll just
20 say I don't quite have them yet, but we'll see them here in a
21 second. I would say it would be like that to kind of explain to
22 the pilot I know where they're at. I'll even probably point my
23 hand to where they're at. They'll say I don't quite have them in
24 sight yet. We'll have them in a minute here.

25 Q. Okay.

1 A. Just explain, and then -- say the traffic's no factor
2 anyways.

3 Q. So I don't know if you've heard some of the air traffic
4 recordings. A lot of them have been posted online but --

5 A. Yeah.

6 Q. -- anything stand out to you about what you heard there as
7 far as the helicopter's response to the traffic callouts from ATC?

8 A. Nope. They sounded completely familiar to me.

9 Q. Okay. Anything that suggests to you maybe they were calling
10 it in sight before they had it?

11 A. No. My guess is, again, with wearing goggles that aircraft
12 that was landing Runway 1, I mean you guys have heard the news.
13 I'm guessing that's what [REDACTED] was talking about when he said
14 traffic in sight -- request visual separation because he's not
15 going to request visual separation of an aircraft that he's about
16 to hit. You know what I mean? He's not going to say -- he
17 obviously didn't see that aircraft. So my guess traveling
18 southbound your eyes are used to looking at Wilson Bridge. I'm
19 assuming, I'm guessing, I would bet money that he was looking at
20 the aircraft at Wilson Bridge, and that's the one he was talking
21 about.

22 Q. Okay.

23 A. Now what I -- I don't know if he heard or computed that very
24 first call that said there's a CRJ 1,200 feet landing Runway 3 3.
25 Now that I don't know if that completely processed the, the second

1 and third order of effects that that aircraft was going to be
2 crossing almost perpendicular to my current flight path to land
3 Runway 3 3. So that's where I'm thinking the disconnect was. It
4 was just being desensitized to aircraft landing Runway 1, and
5 didn't fully compute that that aircraft was going to be making
6 somewhat of a left-hand kind of a circling to land Runway 3 3,
7 damn near perpendicular to the flight path.

8 Q. You think that could be because he might not have seen that
9 very often?

10 A. Correct, yes, absolutely.

11 Q. Okay. So you said it was extremely rare for -- to see
12 traffic landing 3 3. What percentage of the time would you say
13 you saw commercial like fixed-wing landing 3 3 compared to 1?

14 A. I would say less than 10 percent based on my experience.

15 Q. Okay.

16 A. Like very, very rare. Less than 10 percent.

17 Q. Okay. What would you do if you saw a situation developing
18 where tower had approved visual separation, and you had a traffic
19 approaching 3 3 from the east, and you're headed south on 4, and
20 it looks like you're going to get to that approach area at the
21 same time. What would you do?

22 A. If I had not -- if I said visual separation like let's, let's
23 assume he saw the, the aircraft he's talking about.

24 Q. Yeah.

1 A. And then, then he lost it. And if I had not yet seen that
2 aircraft cross my nose for Runway 3 3, I would have made a left
3 turn up Route 1 or slowed my air speed. I mean I -- they had OG
4 -- they had hover capability. So he could have come to a hover.
5 But I would not have continued southbound if I knew there was an
6 aircraft landing on Runway 3 3, and I had it in sight. Like if I,
7 if I hadn't seen it cross my nose to land, I know there's an
8 aircraft going 3 3 so I would not have continued down Route 1
9 southbound.

10 Q. Okay. How much vertical and lateral clearance are you
11 comfortable with, with landing commercial traffic on those routes
12 when under visual separation? Like what's the minimum separation
13 you'd want to see?

14 A. Boy. I mean I'd say greater than 500. Less than 500 that
15 seems really close because -- and again with a 90-degree intercept
16 almost that's going to seem super-fast. So I've had an aircraft
17 like fly over top of me like a thousand feet, and that's kind of
18 cool to see an underbelly of a plane. Like when I'm IFR or
19 whatever. But that low while it's landing and descending, I would
20 say 500 or greater. I don't know the size of that plane. I don't
21 know how much wake turbulence it's going to put out. I don't
22 think it's going to affect me too much, but that will be -- and
23 you've got to understand with goggles, I mean, everything is going
24 to seem much closer too. So 500 feet is going to seem like it's
25 on top of me. So I would say greater than 500.

1 Q. Okay. And have you seen the chartered -- visual approach for
2 3 3 that's used by one or more of the airlines?

3 A. I think only since this accident, and people were posting it
4 online.

5 Q. Okay.

6 A. I've never -- I think I've looked at the Mount Vernon
7 Runway 1 visual just because when I -- because that's the typical
8 thing you hear like all the time on the radio, whatever, you know,
9 Southwest -- clear Runway -- Mount Vernon Runway 1 visual. And so
10 I just want to kind of see what they were doing, and so I kind of
11 have an understanding of like where they're coming from, and what
12 the fixed-wing are doing. But I've never looked at Runway 3 3
13 because again it happens so rare, and I just, I never looked at
14 it.

15 Q. Okay. How high is traffic in your experience how high was
16 traffic crossing the river there on final approach for 3 3?

17 A. Oh, my god. Again because most of the times when I'm talking
18 about the less than 10 that I saw using that runway it was
19 departing Runway 1 5. So going maybe the 1 or 2 times I saw an
20 aircraft land on 3 3, yeah, probably 5 to 600 feet. Because I'm
21 trying to think. I was at the golf balls, and so I'm at 200 feet,
22 and I'm looking northbound, and I would say it's a few hundred
23 feet above me. So I would say it's 5 or 600 feet on the final
24 approach as it's crossing the, crossing the, the bank there. But

1 it's not something that's happened so often that I can even really
2 say with, with definitive.

3 Q. Okay. What would you do on a stands eval NVG flight headed
4 south on Route 1 to 4 transition if like say in the vicinity of
5 Hains Point there was an altitude exceedance from 200 to, you
6 know, the helicopter got up to 300 feet?

7 A. So again that is within ATM standards. I would not -- if
8 there was traffic which --

9 Q. Wait, wait. Hang on. Hang on Dave. You just --

10 A. Yeah.

11 Q. You just -- we lost you for a second there. So can you just
12 restate your answer?

13 A. Yeah, yeah. If I saw him come above the 200 feet, I would
14 say watch your altitude or check altitude. And if it was like a
15 rapid thing, I would probably push down on the collective.

16 Q. Okay. And what if they got to 300 before you noticed it?
17 Would the ride be unsat (ph.)?

18 A. No, no. Again I'm not perfect. Have I exceeded over 100
19 feet on an altitude in my life? Yes. If they're maintaining
20 above a altitude -- now if it's, if somebody is constantly above
21 100 feet, but not actively correcting it, yes, that would be
22 unsat. If -- and that's like in gusty winds. So yeah their
23 altitude is going to go up and down 100 feet plus or minus. But
24 as long as they're actively correcting, and kind of bracketing I

1 call it, that's fine. But if they're consistently above the ATM
2 standard that would be an unsat.

3 Q. Okay. What would you do if you're approaching the Cabin John
4 way point, and you need to make a left turn to go down Route 1 as
5 briefed, and the evaluatee turns the opposite direction by mistake?
6 Would that be an unsat ride?

7 A. So like I'm -- say that again.

8 Q. Let's say that you're, you're approaching the river at an
9 angle toward Cabin John.

10 A. Okay.

11 Q. And like from the east say or northeast, and then --

12 A. Okay.

13 Q. -- you need to make a left turn on Route 1, and instead the
14 evaluatee makes a right turn, and seems to maybe have gotten a
15 little lost about where they are. Would that be an unsat ride?

16 A. No. I would -- that would raise -- again I -- there's not,
17 for me it's not like one thing and it's an unsat ride. This --
18 that would be kind of an issue. I mean if somebody did that,
19 especially Captain [REDACTED] because Cabin John is -- we use that
20 checkpoint a thousand times a week. That's one of the main ones.
21 So I mean if you're coming to Cabin John, everybody knows left
22 turn southbound Route 1, 1 to 4. I can't think why somebody would
23 turn right to go towards Great Falls. I would say where are you
24 going? And if they, if they were confused on that, that -- I mean
25 that would be a -- I would have to look at the rest of the flight,

1 but that would be definitely loss of situational awareness. I
2 mean that's like one of our main, one of our main intersections.

3 Q. Okay. And what would, what would you -- how would you react
4 if somebody with Captain [REDACTED] experience repeatedly had
5 trouble with maintaining trim control during this flight?

6 A. Trim like, like pedal trim like in --

7 Q. Having to be --

8 A. -- trim you're saying?

9 Q. Yeah. Having to be repeatedly reminded on that.

10 A. Well, I mean based on the winds you're saying, I mean, newer
11 pilots they do get lazy on the pedals to maintain the trim
12 especially in gusty conditions. If they're constantly more than a
13 ball width out of trim, I mean that's going to feel weird in the
14 aircraft, and again if there's multiple things, it could be that
15 -- that is clearly an ATM standard. So if they're outside of the
16 ATM standard, and there's a couple other things that could
17 potentially lead to an unsatisfactory flight for sure.

18 Q. Okay. And let's say that prior to that an evaluatee is asked
19 to perform an onsite landing. It's not successful. You go
20 around. You do a little training. You give them a chance to
21 repeat the maneuver, and they decide to pass on it, and say
22 they're uncomfortable attempting it. Would you consider that
23 unsat?

24 A. Not an unsat, but if the person's a pilot in command, and
25 they're uncomfortable landing, that would raise some questions

1 like why are you a pilot in command? Because you've got to
2 remember, and sometimes I don't like doing standardization evals
3 -- standardization flight evals in conjunction with pilot in
4 command evals because they're -- to me they're kind of two
5 separate things because maybe you're -- the standardization flight
6 eval is for a -- it's just a generic flight evaluation. Everybody
7 takes the same task. A pilot in command, that's a, a different
8 position. So maybe you were satisfactory on your stands eval, but
9 maybe you're not, you're not -- I'm going to recommend removal of
10 pilot in command, and get some retraining done, but you're
11 satisfactory on your standardization flight eval. Some people,
12 some instructors may disagree with me on that, but it's, it's
13 almost like it's different performance criteria because I don't
14 expect a 150-hour copilot to be able to perform at the same level
15 as a 400, 500-hour pilot in command.

16 Q. All right. So let's say you simulate a stabilator
17 malfunction, the auto mode failure and --

18 A. Yeah.

19 Q. -- and the evaluatee turns the auto control back on before
20 utilizing the FADEC-F procedure. Would you consider that to be a
21 problem?

22 A. Am I on the controls or off the controls?

23 Q. You're off the controls.

24 A. Off the controls --

25 UNIDENTIFIED SPEAKER: On.

1 BY DR. BRAMBLE:

2 Q. You're on the controls. Apologies. Sorry.

3 A. Okay. Yeah. The -- if I was off the controls that would be
4 worse because if I give somebody a stabilator failure, and they
5 reach down while they're on the controls and push the auto control
6 reset, that's a big -- that would be a -- that would almost be an
7 unsat immediately right there. But, yes --

8 Q. So the instructor is on the controls.

9 A. -- that would be a problem. Yeah, yeah. So if my evaluatee
10 -- so the person I'm evaluating, I give them a stabilator failure,
11 and they're off the controls, and they reach down, and hit the,
12 the stabilator auto mode, yes, that would be an unsat because that
13 is definitely not the ATM standards. That is outside of how I,
14 how I expect somebody to perform. Because, yeah, you've got to
15 identify it, diagnose it, communicate. I mean I'm not going to
16 execute the emergency procedure because there's a couple other
17 steps. I need to make sure that other pilot, me in this case on
18 the controls, is at a comfortable air speed, and ready for the,
19 the stabilator to go back into the auto mode potentially. So
20 that, that would probably be an unsat, yeah.

21 Q. Okay. All right. So let's say a 450-hour pilot made that
22 mistake. Needed to be repeatedly reminded about trim with the
23 rudder pedals, declined the second landing attempt, and turned to
24 the wrong way at Cabin John, and got to 300 feet once or twice on

1 Route 1 -- Route 4, headed south through DC, what are the odds you
2 think that would be an unsat ride?

3 A. Pretty high. Because again when I'm evaluating somebody I
4 got to say okay their next flight they're not with me. They're
5 not with the 5,000-hour guy. They're with a typical 180-hour
6 pilot fresh out of progression, fresh out of flight school. So I
7 need, I need competence in the aircraft, and just all these things
8 combined it would be highly unlikely that this person would pass
9 the evaluation with me for sure.

10 Q. Okay. All right. You want to put a percentage on that?

11 A. I mean they would have to -- I would say 95 percent they're
12 going to be unsat because this is -- you've exceeded a Chapter 5
13 limitation. You've exceeded a Chapter 9 limitation. You've been
14 outside of ATM standard for, for BI -- for -- which is Chapter 5.
15 And then just situational awareness wise on a normal route that,
16 that doesn't show good situational awareness. So I mean all of
17 the stuff together I would say -- yeah, they would have to have
18 wowed me on the other stuff which I think this would, this would
19 be an unsat.

20 Q. Okay. All right last two questions. Compared to other units
21 you've been in what's the culture like for this unit, the 12th
22 Aviation Battalion?

23 A. You still there?

24 Q. Yeah.

1 A. Yeah with their -- so with their mission some of the, some of
2 the duties they perform require a lot of sitting around, and it's,
3 it's not, it's not like -- has a high op tempo, but not like we're
4 flying a lot, we're doing a lot, we're busy, we're going. It's
5 just there's a lot of requirements, and so that does wear on
6 people. With the aging fleet of UH-60s that's there, maintenance
7 is problematic. And so you don't get the flight time. Like when
8 I was a W2, W3 where I'm flying 4, 5, 6 hundred hours a year, you
9 just don't get that level of flight time there because of the
10 constant mission requirement, the, the aging fleet of aircraft.
11 So I think you do get kind of burnt, burnt out, run down just from
12 the constant -- and I don't know how much I can say about their
13 mission there, but just the constant routine, I'll say, the
14 constant what you got to do every day. Nick you can explain as
15 much as you think you can explain to them. But you come in, you
16 do the same thing every day. You sit around all day, and then you
17 go home. So that gets, that gets tiresome for sure. But from
18 what I've seen the company's pretty good morale. I will say
19 Bravo, Bravo did. They had -- they were in the hurt locker like I
20 talked about earlier. They were 2, 3 of 8 aircraft. And that --
21 morale goes down when aircraft starts breaking because now you're
22 not flying, and everybody wants to be in the air flying. So I did
23 see where they were kind of -- their morale definitely was down.
24 I don't remember the time period. I can't remember the commander,
25 but I just remember them kind of -- everybody was kind of down

1 just because of everything that was going on. So but as far as
2 the norm kind of hard to say. Because when I was like getting my
3 time at Fort Drum, you know, we're deploying every other year, and
4 you're flying your butt off, and so you're getting a lot of
5 exposure and experience, and we were getting burned out for a
6 different reason because we were constantly on the go deploying
7 every other year, you know, doing deployments. But with the 12th
8 it's just their, their mission requirements are heavy. There's a
9 lot of stuff they've got to do and put up every day, and I could
10 see how that would kind of burn them out, and definitely brought
11 down morale when maintenance was an issue. And no fault of their
12 own. It's just it's old aircraft, and it's hard to get parts.
13 Those Limas some of them have been flying longer, longer than I
14 have. And so yeah that's what I've got to say about that.

15 Q. All right. And how about with respect to safety and
16 professionalism?

17 A. Yeah. I never saw anything glaring. Nothing I think
18 professionalism. Yeah. I think most people have a lot of pride
19 in their units, you know, with the, with the patches, and the
20 company functions and the get-togethers. And I never -- but again
21 I'm a brigade guy. So they're going to act different around the
22 W5 that works at brigade. But from what I saw everybody got
23 along. I didn't see any -- of course you're going to have the
24 little riffs between people in companies occasionally, but none of
25 the crewmembers involved. I never saw any of that. I never saw

1 any conflict. Nothing -- I never saw anybody ignore safety-
2 related issues for, for mission requirements like letting
3 something slide because they had to make mission. I never saw
4 that. I never saw anybody intentionally do anything unsafe. And
5 anything that I did see unprofessional I would have corrected it
6 immediately.

7 DR. BRAMBLE: Okay. Well that is it for me for questions.
8 I'm going to pass, pass the baton here to Van McKenny.

9 BY MR. MCKENNY:

10 Q. All right thanks Dave. Lot of good information here.
11 Appreciate it. I've just got a couple short questions --

12 A. Sure.

13 Q. -- follow-up on some things. So when you're talking about
14 qualifications you said that Captain [REDACTED] was qualified as an
15 air mission commander but not a pilot in command. What's the
16 difference.

17 A. So an air mission commander, an AMC, is in charge of a flight
18 of aircraft meaning at least more than one; so two or more. It's
19 not uncommon for commissioned officers, lieutenants, captains,
20 majors, to be signed off as an air mission commander and not a
21 pilot in command. The way that I best describe it is as a warrant
22 officer I am a pilot who happens to be an officer. Commissioned
23 officers, lieutenants, captains, majors, colonels, they are
24 officers who happen to be pilots. So their primary duty is not
25 necessarily flying. So an air mission commander is a position of

1 leadership within a flight of aircraft. So specifically with
2 Captain [REDACTED] in October of 2023 we did the Army 10-miler
3 together. So she was my copilot. I was the actual air mission
4 commander for the flight of four. We did a diamond formation
5 flyover of the Pentagon and the start of the Army 10-miler. And
6 she -- that was her air commission commander flight evaluation or
7 at least part of it. So she planned, coordinated the rehearsal,
8 and the execution of the Army 10-miler acting as the air
9 commission commander as my copilot when I was the actual air
10 commission commander. So she set up the briefings, the walk-
11 throughs, the dry-run, the, the rehearsal which took place either
12 Thursday or Friday, the day before. And then the actual day of
13 execution where we have a specific time on target to meet during
14 the National Anthem, and we flew the four aircraft in a diamond
15 right by the Pentagon right up Route 1 actually. So it's not
16 uncommon that you'll, you'll see that because commissioned
17 officers -- I can't remember if she had moved to battalion at that
18 time, but they're -- it's a different level. Because when you're
19 pilot in command in charge of a single aircraft there's a certain
20 amount of skill that has to be required there because you're
21 flying an aircraft. When you're an air commission commander you
22 don't necessarily need to be the pilot in command. And honestly
23 it's preferred that in that aircraft the copilot is the air
24 commission commander. The pilot in command is the pilot in
25 command of the aircraft. That way the AMC can focus on managing

1 the flight, managing times, radio calls, contingencies,
2 emergencies. They do all that. And then the pilot in command can
3 just focus on that one singular aircraft. So it's a position of
4 responsibility for the flight, not necessarily the aircraft.

5 Q. Okay. So it's not unusual for one of the commissioned
6 officers to have the air mission commander qual but not be a pilot
7 in command?

8 A. That's correct.

9 Q. Or have the pilot in command qualification.

10 A. That's right, yes. That's correct. That's not uncommon.
11 I've seen it before.

12 Q. Yeah. All right. Now I want to just go on ask you a
13 question about the collective friction. So in the cockpit --

14 A. Yeah.

15 Q. -- when they're sitting -- when you're setting collective
16 friction on a flight to maintain altitude, can that be adjusted
17 individually or does one collective friction adjust both
18 collectives?

19 A. That's a good question. So there's only one collective
20 friction. It's in the right seat.

21 Q. Okay.

22 A. So if I'm in the left seat, and I'm flying instruments, I
23 have to constantly say let me get a little more friction. Give me
24 a little less friction. Something like that.

1 Q. Okay. That's good information. Thank you. And then again
2 on the controls on the cyclic top there's the hat that's used to
3 control you said your lateral axis?

4 A. All four axes. All four axes. But you can only do one axis
5 at a time.

6 Q. Okay.

7 A. That's the benefit, that's the benefit of the cyclic trim
8 beeper.

9 Q. Right, right. So I could pitch nose down, nose up to
10 increase or decrease air speed using that?

11 A. Correct.

12 Q. And then I could pitch -- I could --

13 A. Correct.

14 Q. -- push it left or right to actuate a roll?

15 A. To make a turn, that's correct.

16 Q. Okay. I maybe was not clear like if you combine those axes
17 the cyclic trim will disconnect? No?

18 A. No. You cannot combine those axes. If you push -- and
19 honestly I call it the little red button of death, but if you push
20 the red button on the --

21 Q. Yes.

22 A. -- cyclic, it disengages the trim system, and turns the
23 cyclic -- again I call it a wet noodle. That's a, a Dave term.
24 But that's -- you have no more trim, and now it's just free your
25 hand, and you -- if you want to make a right turn, the tendency

1 honestly is right in back. And if you want to make a left turn
2 the tendency is right and forward. That's not everybody, but
3 that's usually the norm. So I train, highly encourage people to
4 we call it trimming it up. So you get it trimmed in a nice level
5 attitude. And if I want to make a right turn, I just beep it to
6 the right with my thumb. And then when I want to stop my turn, I
7 just beep it to the left to take out the turn. If I want to speed
8 up a couple knots, I beep it forward and, and do it like that. So
9 the benefit of the cyclic trim beeper is it only goes in one axis.
10 You can't inadvertently go, you know, right and up or left and
11 down.

12 MR. McKENNY: Got it. That's all the questions I have.
13 Thank you.

14 DR. BRAMBLE: Okay, Mark.

15 MR. WARD: Mark Ward here.

16 BY MR. WARD:

17 Q. If traffic has been -- traffic that you're looking for or
18 identified how often do you let the crew know, your pilot or your
19 crew chief know where that is in position to the aircraft?

20 A. So I will make that initial call-out traffic 11 o'clock,
21 1 o'clock, whatever, high. When I say no factor that's probably
22 it. If it's not going to be a factor again, I probably won't call
23 it out again. If for instance like if I'm on Route 1 southbound
24 to Route 4, fixed-wing landing, I'll say traffic 1 o'clock high
25 over Wilson Bridge no factor, and then as it passes on my right

1 side I'll like -- there's that traffic landing Reagan, no factor
2 again. But if it's, if it's a traffic that I'm like passing
3 behind, and it's not going to be a factor again, I probably will
4 not call it out again.

5 Q. Okay. So would it be safe to say that if you were -- told
6 air traffic control that you have the aircraft in sight, but then
7 you do not say anything to the crew about where the aircraft is in
8 relationship to your aircraft that you probably don't have an
9 aircraft in sight?

10 A. Yeah, that would be, that would be a good assumption. So if
11 -- you're saying I say -- so tower calls me says traffic one
12 o'clock, 2,000 feet, I say traffic in sight, request visual sep,
13 and then I don't tell my crew? You're saying assuming I probably
14 actually did not see that aircraft?

15 Q. Correct.

16 A. Yeah. I would say that's a safe assumption. Because if I
17 call it out, I'm then going to say it to my crew, repeat what they
18 just heard, and I'm going to point probably with my hand
19 physically point in that direction. Even at night I'd probably
20 still do it. I will point that aircraft out just to confirm it
21 and reiterate it.

22 MR. WARD: Perfect. That's all the questions I have.

23 DR. BRAMBLE: Eddie Miller.

24 BY MR. MILLER:

1 Q. Yeah, Dave, this is Eddie Miller from the FAA, accident
2 investigation.

3 A. Yes, sir.

4 Q. I did have -- you brought up awhile back in your conversation
5 here with Bill about the work group.

6 A. Yeah.

7 Q. Can you explain the work group? And if you have any names
8 that were in the work group that are like permanent people, could
9 you give me -- could you say their names?

10 A. Yeah. Let me (indiscernible) the phone here. So the working
11 group was --

12 Q. Oh, oh --

13 CW5 JACOBY: Dave you cut out.

14 BY MR. MILLER:

15 Q. We didn't hear. We didn't hear anything. If you could
16 start --

17 A. Okay. You still got you?

18 Q. Yep. We still got you.

19 A. Okay. So it was called the DC Helicopter User Working Group.
20 It had Eagle which is the U.S. Park Police. It had HMX1 which is
21 the Marine Corps guys. DC Metro. It had MUSEL which is the Air
22 Force 1st Helicopter Squadron. Us obviously TAAB. It had
23 MedStar, LifeFlight, any of those guys. And it had BlackJack,
24 Coast Guard was there. So I mean all the helicopters. I didn't
25 know any of those guys. I don't know any of their names or

1 anything, but we were all there. We met at DCA Tower down in the
2 basement. There was like a classroom slash office. We met I want
3 to say three times when I was there. It was like once every
4 quarter, once every semi-annual, something like that. The big one
5 was when we went over all the routes and everything because -- and
6 this is not even made up -- I think there was 55,000 noise
7 complaints. But they have sound things, sound -- what do you call
8 -- receivers throughout the city. So it wasn't necessarily like a
9 person calling a phone and just automatically generates. So
10 55,000 noise complaints from like 20, 19 to 2023 or something.
11 And so the constituents -- some constituent actually wrote in
12 like a congressional about the helicopter noise, and so we formed
13 this working group. And one of the big changes was Zone 1,
14 Zone 2, which is the south side of the Capitol and north side of
15 Papa 56 Alpha. They -- that went from 700 feet up to 1400 feet
16 which I, again I thought was weird to be that high. And then
17 Zone 1 moved. It went down south of the Capitol and Papa 56
18 Alpha, and it, it remained at 700 feet, and that was -- we kind of
19 had an unwritten rule that that was operational use only. So they
20 didn't want people in Zone 1 kind of playing around. They wanted
21 only if you needed to be in there. So let me think. I can try
22 because I got to look at my contacts on my phone. Let me see if I
23 lose you here. Can you still hear me?

24 Q. Yeah. Got you loud and clear.

25 A. Okay. So let me, let me search my contacts.

1 Q. I'm looking for the, the DC regional person that was like at
2 the, you know, the -- or not -- DCA Airport that was like the, the
3 focal person where you guys all said, hey, yeah, I'm coming or
4 whatever.

5 A. So I have a guy named Tim Harmon.

6 Q. Say again.

7 A. I have a guy named Tim Harmon, H-a-r-m-o-n. I just have him
8 listed in my contacts as DCA tower. And then I have a guy named
9 Rick Huften as a controller. So Rick H-u-f-t-e-n. And I believe
10 he -- I know he was there. So he will be able to tell you. I can
11 see his face. I can't remember his name. I think it might have
12 been Chris something. Let me look here. Hold on a second. DCA
13 -- Connie, Connie Anderson, but he has since left the position.
14 He was like one of the supervisors there. But I think your best
15 bet would be, I think your best bet would be Rick Huften, one of
16 the controllers.

17 Q. All right.

18 A. You still got me?

19 Q. Yeah, still got you, yeah.

20 A. Yeah. If you talk to him, and actually like I did -- I
21 brought some pilots up there, did a tour. So like you go up to
22 the tower. And I, I worked with him to get us access and stuff.
23 So he will know the supervisor or -- I don't know the guy's title,
24 but it was the guy that kind of ran the working group. It was the
25 same guy every time.

1 Q. Yeah.

2 A. And I just cannot remember his name. I'm sorry. For some
3 reason I don't have his contact in my phone.

4 Q. I'm a good bird dog so I will go find that. But that was my
5 only --

6 A. Okay.

7 Q. -- question, and I appreciate all the time that you are
8 giving to us in your evening time there. So I'm going, I'm going
9 to hand you off to Paul Kim from PSA.

10 DR. BRAMBLE: Go ahead, Paul.

11 MR. VAN VECHTEN: Okay.

12 BY MR. KIM:

13 Q. It's Paul. I have a few questions for you. Apologies if
14 you've already answered this, but did Captain --

15 A. No problem.

16 Q. -- [REDACTED] make it known or implied that flying the Black
17 Hawks was not her goal or that she did not enjoy it?

18 A. No, no, no. She -- no, she loved it. I never heard her say
19 anything about that.

20 Q. Did she express any interest in pursuing a different career
21 or field?

22 A. No. I don't ever remember her talking about that either.

23 Q. Okay. And excuse me because I am not a helo pilot, but could
24 you --

25 A. Sure.

1 Q. -- describe what you might see on NVGs when an airliner is
2 crossing from say around your 10 o'clock position on your left to
3 crossing from left to right to let's say your 3 o'clock position
4 at night on NVGs. So with their lights would you be able to see
5 any of the light shadows, projections?

6 A. Yes. So the landing light I would assume depending on the
7 angle that you're coming in those landing lights are freaking
8 bright. But again you won't be able to tell if that light is a
9 mile away or 10 miles away unless you confirm by looking with your
10 naked eye is typically a technique that most pilots use. So
11 you'll see an aircraft. You'll see a bright light, and then
12 you'll look under your goggles, and it will be like 10 miles away
13 no factor. The red light is obviously on the left. Red is much
14 brighter under goggles. So the green light on a wing potentially
15 could be visible, but the goggles we see green right, green
16 goggles, so green lights, blue lights are sometimes more
17 difficult. You'll still see it, but it won't be nearly as bright
18 as if you're looking at the red light or the white light on a
19 tail. But the, again, depending on the angle that you're coming
20 in. If you're coming in at like 90 degrees or less you wouldn't
21 even really see the front landing lights. But if you were 90
22 -- I guess 90 degrees -- I don't know if you can pick up what I'm
23 putting down, but depending on the angle you're coming in, you
24 might not be able to see the, the landing light. And if you did,

1 it would be just a light, and you would have to kind of confirm
2 the distance with your naked eye.

3 Q. Yeah. That answered my question. Kind of a follow-up
4 question to that is for a, an airliner that's crossing exactly
5 left to right, 90 degrees, intercept path, would you consider that
6 the lighting detection to be too dim or not enough for traffic
7 avoidance purposes?

8 A. Well, let me think. If I'm 90 degrees off the right side,
9 the only thing they have is really that position light, and then
10 the anti-collision light which they're on different planes,
11 different locations. So I would say it's adequate, but again I
12 cannot stress enough how much you have to confirm with your naked
13 eye in order to confirm the distance from that light source. And
14 specifically from where we're talking about it would be really
15 difficult because of all the bright lights, and that little bit of
16 rising terrain off to the left side on the, on the coast there.
17 It might just blend in, and you would have to -- you would really
18 have to look with your naked eye in order to confirm that it's an
19 aircraft that you're seeing and not just another light or even a
20 car. Like you'll confuse car lights with airplane lights if it's
21 -- if you have like rising terrain, you'll see a bright light
22 coming at you, and then you look with your naked eye, you're like,
23 oh, it's a car on the road. I can't really describe it any better
24 than that until you, you know, until you've seen it, it's like it
25 blows your mind that it can do that.

1 Q. Yeah, no, that's, that's very helpful. Thank you. And last
2 question is -- and you may not be able to answer this right now
3 because it's kind of chart specific, but since you have a lot of
4 experience flying around DCA, do you recall the maximum altitude
5 south of the Wilson Bridge or starting at Wilson Bridge if you're
6 transiting southbound on Route 4?

7 A. Yeah. From Wilson Bridge to Broad Creek it's 600, and then
8 from Broad Creek to Fort Washington is a thousand.

9 Q. I mean from just south of the airport hitting Wilson Bridge.
10 Route 4 is 200.

11 A. Oh, it's --

12 Q. And then --

13 A. Yeah. It's 200 cross Wilson and 300. So all the way from,
14 from Memorial Bridge all the way down Route 1 pass Hains Point all
15 the way down to Wilson Bridge is 200 feet is the max altitude.

16 Q. Okay. So when would you begin your climb transition to meet
17 your next higher max altitude on Route 4 flying southbound?

18 A. Literally right before Wilson Bridge.

19 Q. Got it. All right, thank you. Those are all my question.

20 A. Yep.

21 DR. BRAMBLE: Dave.

22 BY MR. BLAIR:

23 Q. All right. Dave you're doing a fine job. Almost there.

24 This is Dave Blair from Sikorsky. Couple of things. You talked

1 about the M to L transition I think -- so you've been an
2 instructor down at Rucker, Novosel, yeah?

3 A. Yes. From 2014 to 2017.

4 Q. Okay. So just out of interest I'm not that familiar with
5 training down there, but for the M model, but to your knowledge is
6 the current practice or maybe the practice when Captain [REDACTED]
7 went through to teach students to couple up in the pattern for
8 altitude and air speed?

9 A. In the pattern I do not believe so.

10 Q. Okay. We've heard rumors of that -- we're just -- so that
11 may be a more recent thing, but to your recollection that
12 wasn't --

13 A. They're teaching them to use the flight director in the
14 traffic pattern?

15 Q. That's what we have heard.

16 A. Wow. But, you know, I can, I can see benefit to it because a
17 traffic pattern happens quick, and if you can use a flight
18 director in a traffic pattern, you can use a flight director when
19 you're out and about. But in a traffic pattern I kind of want
20 people to, again -- so I taught the Mike course. That was my, my
21 life for two years. I literally just that's all I did was teach
22 the Mike course.

23 Q. Right.

24 A. And if I'm teaching somebody how to use the flight director,
25 sure, I will have them do traffic patterns using the flight

1 director. If I'm teaching a pilot how to fly, I'm probably not
2 personally I'm not going to use the flight director to teach
3 traffic patterns because I'm teaching you how to fly. So it
4 depends on what I'm instructing that day.

5 Q. Roger. Sounds good. To your knowledge would that have been
6 the practice when Captain [REDACTED] went through the M course?

7 A. Let me see. She went through in like '20 I think, '20, '21,
8 somewhere in there.

9 UNIDENTIFIED SPEAKER: '21.

10 MR. VAN VECHTEN: Man, they were probably -- I don't know
11 because I left in '17. I don't know. That I can't answer. I'm
12 not sure what they, what they were teaching, what the SOP was
13 there.

14 BY MR. BLAIR:

15 Q. Okay. Good enough. You mentioned too about L model
16 collective friction.

17 A. Yeah.

18 Q. So I think you mentioned really early on that if that
19 collective friction isn't set right, the collective could drop
20 just a little bit, and you'll lose altitude.

21 A. Correct. It will, it will kind of, yes, it will kind of
22 creep down.

23 Q. Okay. So familiar with the collective balance spring by
24 chance?

25 A. No, I'm not familiar with that.

1 Q. Okay. The bottom line is I guess to form it in a question is
2 it possible that if collective friction is not set correctly that
3 the collective can rise instead of drop?

4 A. I don't think I've ever seen that.

5 Q. Okay. Good enough.

6 A. Not in my experience.

7 Q. Good enough. Last question. So typically when you check in
8 with Reagan Tower either north of Cabin John or approaching Cabin
9 John are they going to give you an altimeter setting?

10 A. Yes. I think almost every time you check in with them at one
11 of the entry points to the helo routes they will give you an
12 altimeter setting.

13 MR. BLAIR: Okay, all my settings. Thanks.

14 DR. BRAMBLE: All right Nick.

15 BY CW5 JACOBY:

16 Q. Dave, just a couple quick questions. When discussing the
17 visual separation piece with Washington Tower, and you had
18 mentioned that you may tell them that you had visuals, you know,
19 you request visual separation. Was that aircraft like on a final
20 for Runway 1 far out? That wasn't aircraft like on the helo route
21 or final for Runway 3 3, correct?

22 A. That's correct. Definitely not. Only, only, like the only
23 time would be if they're like 10 miles out, there's a whatever
24 inbound at 3,600 feet for Runway 1. Only something like that
25 where I knew it wasn't going to be a factor.

1 Q. And it was like, like physically hard for your vision to --

2 A. Correct.

3 Q. -- see that aircraft or --

4 A. Yeah. Not like, not like, hey there's an aircraft out your
5 nine o'clock, and I just didn't turn my head, I was too lazy to
6 turn my head and look. Only when I knew that I probably would
7 physically not be able to see that aircraft, and it was not going
8 to be a factor. If it was going to be a factor, I'm going to
9 visually acquire that aircraft before I say I have, you know,
10 request visual separation.

11 Q. Okay. That's only question I had, Dave. Thanks.

12 A. Um-hmm.

13 DR. BRAMBLE: Okay, Van, do you have anything else?

14 MR. MCKENNY: No follow-ups.

15 DR. BRAMBLE: I don't either.

16 Mark. Eddie.

17 All right. It looks like we are -- one second. Let us
18 reposition the phone. Looks like we are about at the end here.

19 BY DR. BRAMBLE:

20 Q. So is there anything we haven't asked you that given our role
21 in investigating this accident you'd like to share?

22 A. No, I don't think so. I think I kind of went down some
23 rabbit holes on just some stuff I wanted to express based on the
24 questions you guys were asking. I think they were able -- they've
25 afforded me the opportunity kind of get the information I thought

1 was pertinent to this crazy unbelievably terrible tragedy out
2 there. So, no, I -- I'm glad I can help, and hopefully get some
3 answers to how this happened.

4 Q. Thank you. And is there anybody else -- I mean, obviously
5 we're talking to a lot of people, but is there anybody that you
6 absolutely think we need to speak with?

7 A. You talk to Chase Johnson?

8 Q. Nope. Who is that?

9 A. So he was Captain [REDACTED] -- then Lieutenant [REDACTED]
10 platoon instructor pilot. So I believe he was her like -- platoon
11 as a platoon leader, and then a IP that's assigned to that platoon
12 unless, you know, we were short IPs, but I believe he, he and I
13 were heavily involved in her readiness level progression training.

14 Q. Okay. That's good to know. All right. Anybody else?

15 A. Do you need his number or anything like that?

16 Q. Sure. You got it handy?

17 A. Yeah. He's -- I just talked to him actually because this
18 kind of sent shockwaves around the world obviously. He is
19 currently stationed at Fort Bliss, Texas, or Fort Hood. One of
20 the, one of the Texas ones.

21 Q. Okay. Oh, oh, we're losing -- sorry. We just lost you there
22 for a couple seconds. You said Fort Bliss or Fort Hood, and then
23 you cut out.

24 A. -- now?

25 Q. I can hear you now, yeah.

1 A. Okay. Yeah, so he's since gone to the dark side. He's a
2 fixed-wing pilot now. So he, he got picked up a couple of years
3 ago in that program they did, and he accepted it against my, my
4 advice, and now he's flying, now he's flying airplanes. But let's
5 see. He's one of the Texas -- it is 480-246-9982.

6 Q. Okay.

7 A. He's a CW, he's a CW3 now, Chase Johnson.

8 Q. Okay. All right, yeah, we'll, we'll maybe give him a ring
9 too. Anybody else that you especially think we should talk to?

10 A. Let me see. Chuck Berry, have you talked to him?

11 Q. Only at the record store.

12 A. Well, this guy is the whitest Chuck Berry you've ever seen.
13 Chuck was the battalion SP prior to Matt Ingalls, and I know he
14 flew a lot with Bravo Company as well. I don't know if he has
15 anything, but I talked to him since the crash as well. I mean,
16 Chuck might be one that you want to talk to. Now I'm not -- like
17 neither one of these guys am I saying like oh they know something
18 that I want them to tell you. I'm just saying like they knew them
19 probably Chase probably Captain [REDACTED] as good or better than I
20 did because he was in her platoon. Definitely in her company, but
21 I think he was in her platoon as well. So I would say definitely
22 Chase Johnson, and maybe give Chuck a call.

23 DR. BRAMBLE: Okay. All right, great. Well, thanks so much
24 for your time. I really appreciate it. This has been a marathon
25 interview, but it was worth it for us. So I appreciate your

1 patience with us, and willingness to help.

2 MR. VAN VECHTEN: Okay. Glad to help, and hopefully we can
3 get some answers, and get this put behind us.

4 DR. BRAMBLE: All right. I'm going to turn off the recorder
5 here.

6 (Whereupon, the interview was concluded.)
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
 AMERICAN AIRLINES JET AND ARMY
 HELICOPTER NEAR RONALD REAGAN
 NATIONAL AIRPORT IN WASHINGTON, DC
 ON JANUARY 29, 2025
 Interview of CW5 Dave Van Vechten, Jr.

ACCIDENT NO.: DCA25MA108

PLACE: via telephone

DATE: February 6, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Katherine Motley
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: ZACHARY FONDA, CW2, Company Safety Officer

Fort Belvoir, Virginia

APPEARANCES:

WILLIAM BRAMBLE, Ph.D., Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Zachary Fonda:		
By Dr. Bramble		5
By Mr. McKenny		24
By Ms. Stratton		27
By Mr. Blair		28
By Mr. Kim		30
By Mr. Miller		31
By Dr. Bramble		33
By Mr. McKenny		41
By Ms. Stratton		43
By Mr. Blair		43
By Mr. Miller		45
By Dr. Bramble		46

I N T E R V I E W

(2:04 p.m.)

1
2
3 DR. BRAMBLE: My name is Bill Bramble. I'm a Human
4 Performance Investigator with the NTSB. Van McKenny and I are
5 leading the operations in human performance working group for
6 Investigation Number DCA25MA108 involving PSA 4352 and PAT 25.
7 We're here to interview Zach Fonda. The NTSB is an independent
8 federal agency. We're not part of the DOT or the FAA, and we have
9 no regulatory or enforcement powers. Our mission is to determine
10 the probable cause of incidents and accidents and make
11 recommendations so similar events can be avoided in the future.
12 Our mission does not include findings of liability or blame. And
13 your participation today helps ensure the fact-finding phase of
14 the investigation is accurate and complete. We'll be recording
15 the interview so it can be transcribed. After we receive the
16 transcript, we'll review it for typos and if you make a request,
17 we can provide the transcript to you for review if you wish.

18 I would now like each of the group members to briefly
19 introduce themselves and state their organizational affiliation
20 starting with Van McKenny.

21 MR. MCKENNY: Van McKenny, Helo Operations Group Chairman,
22 NTSB.

23 DR. BRAMBLE: And Mark?

24 MR. WARD: Mark Ward, NTSB.

25 DR. BRAMBLE: And Lauren?

1 MS. STRATTON: Lauren Stratton, NTSB.

2 DR. BRAMBLE: And Dave?

3 MR. BLAIR: Dave Blair, Chief Pilot with safety -- chief
4 pilot for safety procedures.

5 MR. KIM: Paul Kim, PSA Airlines, Chief Pilot.

6 MR. MILLER: Eddie Miller, FAA, Senior Accident Investigator.

7 MR. JACOBY: CW5 Jacoby (ph.), Brigade Standardization
8 Officer for the US Army Aviation Brigade.

9 DR. BRAMBLE: All right. Thanks, gentlemen. Please answer
10 all questions to the best of your ability, and if you don't know,
11 you can say you don't know. And if you need us to restate a
12 question, just ask. If you want to correct something, just let us
13 know.

14 MR. FONDA: Okay, great.

15 INTERVIEW OF ZACHARY FONDA

16 BY DR. BRAMBLE:

17 Q. All right. So let's start with the really hard ones here.
18 If you could just state and -- hang on, that's the wrong file, one
19 second, there we go. All right. State and spell your full name,
20 please.

21 A. Zachary Chase Fonda, Z-a-c-h-a-r-y C-h-a-s-e F-o-n-d-a.

22 Q. Okay. And how old are you?

23 A. Twenty-seven.

24 Q. All right. And what's your rank?

25 A. CW2.

1 Q. And what's your current unit?

2 A. 12th Aviation Bravo Company.

3 Q. Okay. And what's your current role or position?

4 A. Company safety officer.

5 Q. Any other qualifications or additional duties?

6 A. No.

7 Q. Are you a pilot?

8 A. Yes.

9 Q. All right. What do you fly?

10 A. Brig 60 Limas (ph.).

11 Q. Okay. Can you tell us your total flight experience?

12 A. I have 600 total flight time, and 140 NG hours.

13 Q. Okay. And how much of your 600 hours is in the UH60?

14 A. About 470.

15 Q. Okay. Is that all in the Lima?

16 A. All in the Lima.

17 Q. Okay. All right. Can you give us just the Cliffs Notes of
18 your professional background in aviation?

19 A. Pretty much all aviation at Rutger. Was there for about 18
20 months. Then I went to Ft. Benning, Georgia for the last three,
21 three-and-a-half years. And then I've been here since April of
22 '24.

23 Q. And have you been the safety officer the whole time here?

24 A. Yes. I tracked en route and became a safety in April.

25 Q. Okay. What's tracking en route mean?

1 A. As I was moving from Ft. Benning to here, I stopped at Ft.
2 Rutger and got my qualification there.

3 Q. For safety?

4 A. For safety.

5 Q. And tell us about that course.

6 A. It was a five-week course. You did all the investigation
7 side for accidents and how to log hangar safety and got your OSHA
8 certification for workplace.

9 Q. Okay. Can you tell us about the aviation safety part of
10 that? Like, kind of what were the different things that they
11 cover with respect to aviation safety?

12 A. So they didn't go into great detail about accidents. We had
13 about a three-day course on that, on how to take pictures, what
14 you're looking for, and then in the 385-10 publication on how to
15 -- what you're looking for and kind of a checklist in there.

16 Q. Okay. What's the 385-10?

17 A. It's the accident investigation and safety handbook for Army
18 Aviation.

19 Q. All right. So it was mostly investigation focused?

20 A. It was about a week long on that. Other than that, it was
21 more workplace for hangar safety and stuff like that.

22 Q. Okay.

23 A. So we didn't go too much into accidents, especially when --
24 how large it is.

25 Q. Do you get -- do you guys get into, like, proactive safety

1 methods at all in terms of, like, you know, before an accident
2 occurs, safety related things for aviation operations?

3 A. Like fatigue and all that stuff or --

4 Q. Sure. Just to kind of get more of a sense of, like, anything
5 else they might have covered.

6 A. Yeah, so we would go over that determining factors on what
7 could happen the day prior or sleep cycle they were in. So it
8 could be a lot of different things, especially going into a night
9 flight like that, you got to know what they were doing throughout
10 the day.

11 Q. Yeah. Did they teach you how to do any, like, safety audits
12 or risk assessments?

13 A. Yeah, we learned how to do draws, risk assessments, and
14 ArcOps here on what you're looking for for mitigating factors.

15 Q. What's a draw?

16 A. It's a deliberate risk assessment. So if you're going out to
17 the field or anything like that for any of your training, you put
18 it on there to mitigate your risk.

19 Q. I see. All right. And -- sorry, I've got some windows
20 overlapping here in a strange way. Let me just adjust this.
21 Okay. Can you tell us, sort of, like, what a typical week is like
22 for you as a safety officer at the company level?

23 A. It's pretty much like all the pilots here. We pull duty
24 about three times a week where we show up at 5:30 and assume by 7.
25 And then you're here until 5 -- or 1700. And you just get your

1 work done in between there, or you might have a training flight,
2 or anything like that.

3 Q. Okay. Do you get involved with, like, air crew coordination
4 training?

5 A. Yeah, we do air crew coordination training yearly. Actually
6 the IPs usually teach that. It's for your (indiscernible), your
7 yearly evaluation. So we go through that. And every time we do a
8 crew brief we talk about air crew coordination also.

9 Q. Every time there's a crew brief?

10 A. Yeah, every day.

11 Q. Okay. And then what about safety-related meetings? Do you
12 have, sort of, routine safety-related meetings?

13 A. We have quarterly safety council meetings here with the whole
14 battalion with all the company safety officers and battalion
15 safety here, just to talk about anything that is unsafe. People
16 can come in and bring up their concerns and we'll talk about it
17 there and how we mitigate those.

18 Q. Okay. So if a pilot or a crew chief has a safety-related
19 concern, and they want to report that to -- somehow, how would
20 they go about that?

21 A. So it would come directly to me and, depending on what it is,
22 you would either go to the commander, or if it's a bigger safety
23 concern, you'd push it up to Ben (ph.), our battalion safety
24 officer, and then we'll come up with the action on how to fix
25 that.

1 Q. And if it was a bigger issue like that, would it go to the
2 quarterly safety meeting?

3 A. It will. So all the safety concerns -- they have a
4 PowerPoint where all the safety concerns are up there and it's
5 open to anybody in the battalion to voice their safety concerns.
6 So it'll still be in there, but if it's something that needs
7 immediate attention then it'll go straight up.

8 Q. Okay. During the meeting they can voice their concerns, is
9 what you're saying?

10 A. During the meeting they can, or just at any time if they let
11 us know then we can manually put it in and then we'll discuss it
12 at the meetings.

13 Q. Can people report things anonymously too?

14 A. They can if they don't want your name -- they'll still have
15 to come to the company safety officer. They can say that they
16 don't want their name on there.

17 Q. Um-hum. Okay. Can you give us an example of a safety issue
18 that you, you know, may have heard about or been -- has been
19 reported to you, like, in the last six months where, you know, the
20 issues come to you and then you've had to handle it in some way?

21 A. Like, not flying or anything like that, but our hangar, the
22 lights there are dim so they voiced their concern on that and
23 that's why we're having a hangar renovation to get a new hangar
24 for Bravo Company. So they voiced that and then it came up to the
25 meetings and it goes all the way through. So renovating the

1 hangar, that's the big one right now.

2 Q. Okay. That's the Bravo Company hangar?

3 A. Yeah.

4 Q. All right. So what about on the flight safety side, is there
5 anything you guys are tracking as far as, like, flight safety
6 issues right now?

7 A. No flight safety issues. Just anything on the ArcOp, there's
8 always a briefer and then an approver for it. So it goes through
9 those two channels and then the flight schedule. Also we do a
10 flight schedule meeting weekly to make sure the crews are safe and
11 that it's a good balance between the two with flight time.

12 Q. Okay. All right. Can you describe the chain of command for
13 flight safety? Sort of -- not necessarily the chain of command
14 for the battalion, but like, sort of, what is the, what is the
15 tree of safety people in 12th Battalion?

16 A. So we have each company safety officer. So Alpha, Bravo,
17 Charlie, Delta. Then our battalion safety, which is Ben. Then
18 our brigade, which is airfield safety, is Ross Stedman (ph.).

19 Q. Ross Stedman at brigade?

20 A. Yeah, at brigade. He's our airfield and safety.

21 Q. Airfield and --

22 A. Airfield safety, yeah.

23 Q. Oh airfield safety?

24 A. Yeah, he's also at -- he works at the brigade, so he's the
25 highest one here.

1 Q. Okay. So does he deal with flight operations safety as well
2 as the airfield, or just the airfield?

3 A. Mostly airfield.

4 Q. Okay.

5 A. But he works with SOP for brigade and all that, too. So he's
6 usually in the loop of things.

7 Q. Okay. And I think I heard -- he's a contractor?

8 A. Yes.

9 Q. Okay. Does he have a deputy?

10 A. I'm not sure.

11 Q. Okay. So basically the safety structure is the company
12 safety officers, the brigade safety officer, and then -- I'm
13 sorry, the battalion safety officer, Ben Barczak (ph.).

14 A. Yeah.

15 Q. And then Stedman at brigade?

16 A. Right.

17 Q. Okay. And then is there an officer that's accountable for
18 safety for the battalion; is that Ben?

19 A. Yeah.

20 Q. Or is there somebody above Ben?

21 A. Ben's responsible for the battalion.

22 Q. Okay. And then Stedman is responsible for managing all of
23 the safety for the whole brigade or --

24 A. So it's mostly airfield, but he also works at brigade so
25 things go through him when he's publishing a new SOP on how we

1 should -- our procedures around here. So we go off of the TAAB
2 SOP (ph.).

3 Q. Okay. So if there's a TAAB SOP and you guys need to modify
4 it, then he would be the one to help do that?

5 A. Right, yeah, he would put in appendixes as needed.

6 Q. Okay. All right. Do you and the other safety officers feel
7 like you have enough resources to do, to do the safety role?

8 A. I feel like they're pretty good here, especially now that
9 Ben's here. He's working to get things better. And I feel like
10 everybody has a pretty good grasp on it here. ARMS just came to
11 do an inspection of us and I think we scored a 96 percent. So I
12 feel like things are running pretty good.

13 Q. What's ARM?

14 A. ARMS is -- they come from FORSCOM and they check on how your
15 procedures are and they have a checklist where you go through each
16 of your safety roles and just everything for the battalion and
17 they give you a score on how you're operating.

18 Q. Okay. Anything ever come to your attention about near misses
19 involving aircraft in the DC area on the helicopter routes before
20 the accident?

21 A. No, the only near misses that we would ever have are pretty
22 much birds around here. Nothing with an aircraft I've heard of.

23 Q. Okay. Is that an issue that anybody's raised as a concern
24 since you've been in this role?

25 A. Not that I've heard. We're all familiar that the DC helo

1 routes are busy. ATC usually does a nice job of telling us where
2 they are. So I've never had any issues or I haven't heard
3 anything.

4 Q. Okay. All right. If you did have an accident that was
5 purely a military accident involving one of your aircraft, who
6 would lead that investigation?

7 A. Depending what the accident is. If it's Class C where it's
8 not as serious or if the engine flames out or something like that,
9 usually I would take over on that and then pass it up to Ben as
10 needed. But if it was a Class A like this, Ben would usually be
11 the head of it.

12 Q. Okay.

13 A. Or somebody from Ft. Novosel, Rutger, would come and do the
14 investigation.

15 Q. Okay. All right. How familiar were you with each of the
16 accident crew members?

17 A. I knew them pretty well. [REDACTED] sat right next to me the
18 last four or five months. [REDACTED] I would just see her in
19 passing. She would come to me for briefs every once in a while
20 for the ArcOps. Then [REDACTED] he worked on maintenance so we spent a
21 good amount of time together too. He was in leadership with us,
22 so we'd have meetings together on the regular.

23 Q. All right. And Captain [REDACTED] would come to you every once
24 in a while, what for?

25 A. For a brief on the ArcOp.

1 Q. Oh, I see.

2 A. I was the briefer so she'd come to me and we'd discuss her
3 flight.

4 Q. Okay. So she'd, like, bring you an ArcOp and then you would
5 be the MBO (ph.) for that?

6 A. Right, yeah.

7 Q. Okay. All right. When was the last time that you saw any of
8 the three of them before the accident?

9 A. I saw [REDACTED] and [REDACTED] when I was leaving that day, probably
10 around 4 o'clock. I just got done with a flight and we were
11 passing each other as we were leaving.

12 Q. Okay. Did you have any interaction?

13 A. I just told [REDACTED] have a safe flight. And that's all.

14 Q. All right. Where were they at the time?

15 A. We were passing in the hallway -- the commander's hallway up
16 there at Bravo Company.

17 Q. And you didn't see Captain [REDACTED]

18 A. No, I didn't see her that day.

19 Q. How did [REDACTED] and [REDACTED] look?

20 A. They looked good, yeah. Classic [REDACTED] He always looked
21 the same. He loved being at work, so --

22 Q. Did he look alert?

23 A. Alert?

24 Q. Um-hum.

25 A. No more than any other day. He loves flying, so he was

1 excited to go out there and fly.

2 Q. And how about [REDACTED] did he look normal?

3 A. Yeah, he looked normal.

4 Q. Okay. Did you see any of the three of them in the previous
5 couple of days before that?

6 A. I saw Captain [REDACTED] the day prior planning for her flight
7 since it was an evaluation. So she was up in our pilot's room
8 planning her flight.

9 Q. Okay. What time was that?

10 A. It was probably around 3 o'clock, or 1500 on -- what was
11 that, Tuesday.

12 Q. The 28th?

13 A. Yeah, 28th.

14 Q. Okay. How long was she in there?

15 A. It was just passing by, I'm not sure.

16 Q. Okay. And is your desk in the office in the back behind the
17 pilot planning area?

18 A. It is.

19 Q. Okay. So did you maybe pass by her as you were, like, going
20 or coming from your desk or something?

21 A. Yeah, as I was leaving my desk.

22 Q. Okay. All right. How'd she seem at the time, how'd she
23 look?

24 A. She seemed good. You know, you're always nervous on an APART
25 (indiscernible) so she was just trying to get her flight route

1 planned and people were helping her. So she seemed fine for
2 getting ready for an APART (indiscernible).

3 Q. Who was helping her?

4 A. Jeff Marshall (ph.), he was another pilot there.

5 Q. What was he doing?

6 A. He was on duty, so he was just probably sitting around and
7 she probably asked him for help. So I know he told me he was
8 helping her on the route a little bit.

9 Q. So they were sitting at those planning computers?

10 A. Yeah, the AMPS computers on that back left wall.

11 Q. All right. Did you happen to see if she had an iPad with
12 her?

13 A. No, I didn't, I didn't see.

14 Q. Do you know if they checked out one the Stratus units?

15 A. I believe they did because all three of those were pretty by-
16 the-book people. So I imagine they did. Anytime I ever flew with
17 [REDACTED] he always had one. So --

18 Q. How many times have you flown with [REDACTED]

19 A. Two, two times when he first got here. Other than that, it's
20 been about three months since I've actually flown with him.

21 Q. How do you use the iPad in flight?

22 A. Usually you have a kneeboard on. I don't know how they flew
23 with theirs. But just to double check yourself. And then with
24 the Stratus, it also shows you other aircraft in the area. So for
25 obstacle avoidance and all that.

1 Q. Do you recall if he had the traffic information up while he
2 was flying?

3 A. I have no clue.

4 Q. Okay. All right. Did he have a personal iPad or did he use
5 just one of the ones from the office?

6 A. From the office.

7 Q. All right. Do you know if he had a preference on type of
8 goggles, with the white or the green?

9 A. I don't. If they were on the helo routes, I would imagine he
10 would pick the green ones.

11 Q. Okay. All right. How about that Monday, you see any of the
12 three of them, the day before -- the day before that?

13 A. I probably saw [REDACTED] We saw each other every day. We were
14 either on duty together or we were both at work at the same time.
15 And [REDACTED] was always here too. Captain [REDACTED] she worked
16 over at HHC so we didn't see her quite as much as everybody else,
17 but yeah, I usually saw them every day.

18 Q. Did you ever receive any instruction from [REDACTED] or an
19 evaluation?

20 A. Yeah, he actually just did my air crew coordination training
21 that week, or that Friday prior. And he'd always give us
22 questions, questions of the day being an IP like he does, trying
23 to make us better. So he would talk to us a lot about that.

24 Q. But no evaluations?

25 A. No evaluations.

1 Q. Okay. Can you tell me about his personality, [REDACTED]

2 A. Yeah, he was very by-the-book. He was -- he would be grumpy
3 at times just being at work, working with all of us. He always
4 wanted us to keep working. We like to -- on duty, every once in a
5 while, we like to play video games. He'd always be like, turn
6 them off. So -- but he -- he's usually in a good mood, too, so he
7 loved being at work, loved flying. So nothing out of the ordinary
8 from him.

9 Q. And did he have a reputation as an evaluator as being, you
10 know, more forgiving or more strict?

11 A. Not that I heard. He -- if you did it by the standards that
12 are in the ATM then you're good to go by them. He'd try to help
13 you make things better, but he wouldn't be strict as an evaluator.

14 Q. Okay. Like, he held you to the standard --

15 A. (Indiscernible) yeah.

16 Q. -- but he wasn't particularly difficult?

17 A. No, if you did the standard then it would be a pass but he
18 would try to make you better.

19 Q. Okay. And tell me about Mr. [REDACTED]

20 A. He was more of a serious guy. Not a lot of joking going on
21 around him. Like, they all said he loved working on an aircraft
22 and the people around him and he always tried to make people
23 better, too, so he was always teaching classes around the hangar
24 that I saw with the crew chiefs. But not a lot of joking going on
25 there, so he's a more serious guy.

1 Q. Did you fly with him?

2 A. Yes, I've flown with [REDACTED] quite a bit. We actually had duty,
3 I think, earlier the week prior. We pulled a lot of duties
4 together, so we were there 12-hour shifts at a time.

5 Q. And tell me about him in flight. Was he -- how much did he
6 verbalize to you from the back seat when you were flying around?

7 A. He was very attentive. Anytime we would talk to him looking
8 out for another aircraft or just starting a fuel check, he would
9 be on top of it before we even asked him. So he was great back
10 there. Never had any issues with him.

11 Q. Okay. When -- if you guys were asked to, you know, maintain
12 visual separation -- or let's say before that. Let's say you have
13 ATC point out traffic to you and you're trying to spot it, would
14 he typically jump in and assist and try to locate the traffic?

15 A. Yeah, absolutely. So then once he would find it, he would
16 give us a clock position of how far it is. And then the pilot and
17 copilot would both make visual contact of them and then we'll call
18 back to ATC request "visual sep".

19 Q. Okay.

20 A. But we wouldn't make that until we all had eyes on it. Or at
21 least two of us. If somebody was on the right side and couldn't
22 see it, the two people still had it on sight.

23 Q. Okay. We heard that, you know, if you don't, if you don't
24 get the traffic in sight that, you know, you might have to, you
25 might have to hold sometimes. So I mean, was there ever any

1 pressure to maybe call traffic in sight or request visual
2 separation before you quite have the traffic?

3 A. No, we've -- I've never been with anybody who requests visual
4 separation until they have the traffic in sight. Just with how
5 busy the helo routes are, you'll make sure to have eyes on them.
6 But at night sometimes that can be difficult. You know, everybody
7 can be looking at something different. So -- but you'll call it
8 out before you request "vis sep".

9 Q. Okay. Have you flown that helo Route 1 to 4 transition?

10 A. Yeah, I actually flew it that day for a training flight.

11 Q. With who?

12 A. Chris Van Aiken (ph.), CW2, and Sergeant Lawrence (ph.), and
13 Sergeant Nichols (ph.).

14 Q. Nichols?

15 A. Yeah, Nichols.

16 Q. Okay. Was it day or night?

17 A. It was day.

18 Q. Okay. In your experience what percentage of the time when
19 you're going through -- down Route 4 or up Route 4, do you see
20 airplanes land in 3-3 as opposed to 3-3-1-5 as opposed to 1
21 or 1-9?

22 A. I personally never seen anybody land 3-3 there. It's always
23 pretty much north to south. What is that, 0-1 runway? So that --
24 I've only seen that.

25 Q. How many times you think -- how many different days do you

1 think you've flown that route?

2 A. More than 40 or 50 times.

3 Q. Okay. Do you think they do that 3-3 more at certain times of
4 day than others?

5 A. I guess if it was busy and they needed to separate traffic
6 better, but like I said, I've never seen anybody land runway 3-3.

7 Q. Okay.

8 A. Landing 0-1 you can see them stacked up all the way out, out
9 there over the Potomac. So it makes it easier to see them like
10 that.

11 Q. All right. Would it be your assumption that if you stayed
12 below the max altitude on Route 4 that you would be safe from
13 arriving traffic on 3-3?

14 A. Yeah, that's why the routes are published 200 feet and below.
15 So you imagine that it's going to separate you from other traffic.

16 Q. What do you imagine the clearance is if you had one pass
17 directly over you when you're going through there?

18 A. Probably about 300 feet I would say, if not more.

19 Q. Where are you supposed to fly in that area off 3-3 over the
20 river, down the middle or to one side or the other?

21 A. Usually it's kind of like a road depending if traffic's
22 coming from the north and then also to the south, so you'd be
23 pushed over to the right a little bit more. But if nobody's out
24 there, you're closer to the shore -- the land on the left side
25 near JDOT (ph.) and that building.

1 Q. So if you're headed south, you're saying if you got traffic
2 coming in the opposite direction you might be pushed a little bit
3 to the right?

4 A. Yeah, so it's rules of the road pretty much. So you'll pass
5 by like that.

6 Q. Um-hum. But otherwise, you'd tend to hug the shoreline?

7 A. Not hug it all the way, but you'd probably be 100, 200 feet
8 off of it.

9 Q. Okay. You know that dock that sticks out out there?

10 A. Yeah.

11 Q. Okay.

12 A. We usually fly right over that dock.

13 Q. Sort of the middle of it?

14 A. Yeah.

15 Q. Okay.

16 A. Sorry, I didn't know if you were familiar with that, the dock
17 there.

18 Q. That's okay.

19 A. Yeah, that's usually what we look for.

20 Q. Yeah. Okay. And then how about Hains Point and the Wharf
21 there, kind of, where do you tend to transit that area?

22 A. Just stay away from the boats. So if you're going north of
23 there you'll be to the left of the boats so you don't overfly
24 those. Yeah, still below 200 feet.

25 Q. Okay. Have you ever been going through that area where it's

1 200 feet max and, you know, maybe briefly gotten a little high
2 like 250, 300, 400?

3 A. Not that I've ever seen. Just we know how busy it is so we
4 usually stay below 200 feet. And I imagine if you did climb over
5 200 feet ATC would say something to you since they have you right
6 there.

7 Q. What altitude do you target if you have to stay below 200?

8 A. Usually about 150 on that route, just to not bust the air
9 space there. We usually try not to go below 50 feet of the deck.

10 Q. Okay. Was there ever a notice that went out that said, you
11 know, don't fly too low because people have complained or
12 something like that?

13 A. I haven't heard any notice of that.

14 DR. BRAMBLE: All right. I'm going to pass things off to
15 Mr. McKenny. Thanks.

16 BY MR. MCKENNY:

17 Q. In your opinion, what's the biggest aviation safety issue
18 (indiscernible) battalion right now?

19 A. Biggest issue with maintenance?

20 Q. No, aviation issue -- safety issue?

21 A. Oh, pretty much the biggest issue we have is just birds
22 flying around. We've -- or bats -- we've had people with bats
23 recently in the last few months, or birds. That's pretty much the
24 biggest safety issue that people come to me with.

25 Q. And then you agree that's the biggest issue that you guys

1 should be concerned with right now?

2 A. Not right now. I mean, now it's traffic on the DC helo
3 routes and all that. But --

4 Q. Before the accident, though?

5 A. Oh, yeah, nobody voiced a concern. That was what everybody
6 would come to me with is a near miss on a bird or something like
7 that. That was pretty much the only concern we had.

8 Q. What kind of bird strikes do you get?

9 A. We had, like, two bat strikes a couple months ago. Just
10 coming in landing on 3-3 or 1-4 or something like that -- or 3-2,
11 I mean. But usually bats just flying low. You can't see them
12 until it's too late usually in that time.

13 Q. Yeah. Does it cause any damage to the aircraft?

14 A. No, we never had any damage to the aircraft. But of course
15 they come check out the aircraft just to make sure.

16 Q. Sure.

17 A. So yeah.

18 Q. Yeah. So you say you fly -- typically when you're flying
19 around helo routes down around 1, around 4, stay just off the
20 shoreline, how many feet or so?

21 A. Around 150.

22 Q. How do you know, how do you know that's where you're supposed
23 to go? How do you know that's the right distance from the shore?

24 A. Just looking at the helo routes and whenever you go out to do
25 LAOs and they show you, they say this is a good spot right here,

1 and then you see it on the maps, on the sectionals too, on the
2 helo routes.

3 Q. Have you ever had a close call with any oncoming traffic
4 there along that route?

5 A. No, usually the only rotary wing aircraft is out there so
6 they call you pretty far out where you are and we hear on ATC
7 where the traffic is and they're request vis sep miles out from
8 each other so you know exactly what route they're going on pretty
9 much the whole time.

10 Q. Sure. And then if you had opposite traffic coming on your
11 route, what's the procedure?

12 A. It's pretty much rules of the road. So depending on which
13 way you're going, the traffic will just be on the other side of
14 you. Which is still on the helo routes.

15 Q. So you -- so if you're going south, you'd move to the west a
16 bit?

17 A. Yeah, and let them come out your left-hand door.

18 Q. How close do you usually pass?

19 A. It would probably be about 5 or 6 disks. So pretty good
20 clearance.

21 Q. But you don't, you don't change your altitude at all for
22 that?

23 A. No.

24 Q. And how often do you check in with DCA tower when you ask for
25 your own visual separation?

1 A. I've actually never had to request -- they always know where
2 everybody usually are. So they'll tell us before we even know.
3 Especially if you're doing zone transitions on the helo routes,
4 they'll call them out pretty quick. And then you also hear on the
5 radios, kind of, where they are. And then ATC will give you a
6 clock position on how far they are and their altitude. So they're
7 usually pretty good about it. I've never had issues with them.

8 Q. No surprise calls from tower, traffic you weren't aware
9 about?

10 A. No, none that I'm aware of.

11 MR. MCKENNY: I'm going to pass it onto --

12 DR. BRAMBLE: Mark?

13 MR. MCKENNY: -- Lauren.

14 DR. BRAMBLE: Or Lauren.

15 BY MS. STRATTON:

16 Q. I just had one question so far -- if you could describe, you
17 mentioned Class Charlie, which I think is -- you said a minor
18 incident would be Class Charlie.

19 A. Yeah, so we had a --

20 Q. And this is a Class Alpha?

21 A. Yeah, Class Alpha is a certain amount of damage and then with
22 fatalities also. So that's the biggest class.

23 Q. And what would a Bravo entail?

24 A. It would 600,000 to 2.4 million. And then Class A is 2.5 and
25 above with fatalities.

1 MS. STRATTON: Thanks. That was my only question.

2 DR. BRAMBLE: Mark?

3 (No response)

4 DR. BRAMBLE: Dave?

5 BY MR. BLAIR:

6 Q. Thanks for answering the questions. Couple quick ones. Have
7 you been a Lima guy the whole time? You didn't do the M to L
8 transition?

9 A. I did Mike in flight school for about 30 hours and then
10 whenever I got to Ft. Benning I transitioned right into Lima.

11 Q. Okay. So you did that transition. How'd you find that
12 transition?

13 A. It's just wherever they send you, whether it's a Lima unit or
14 a Mike unit. I got, I got sent to a Lima one so didn't know until
15 you showed up. So --

16 Q. Okay, got it. So you haven't Mike since, since your
17 training?

18 A. Yeah, since 2020, 2021.

19 Q. Okay. And how did you find that transition between the Mike
20 and the Lima?

21 A. It's difficult at first. Your whole scan sector is different
22 and you're used to the screens, autopilot, all that stuff. So it
23 usually takes about 30 to 40 hours to really get good at it and to
24 know what you're looking for.

25 Q. Great, thank you. Next question was, Chief [REDACTED] we had

1 heard that maybe he had kind of a prior life in the Navy. Do you
2 know much about that?

3 A. No, I just know he did radar surveillance, I think, up in --
4 I forgot what the airplane they called was, but he did that for,
5 like, 12 years or something like that. So he talked about it at
6 times, but you know, we're not big Navy guys so we didn't listen
7 too much.

8 Q. By the way, I'm a Navy guy so --

9 A. Oh, okay. We loved to hear about it.

10 Q. (Indiscernible) check. Hostile witness. But bottom line, he
11 has aviation experience (indiscernible) do any other flying
12 besides being a pilot?

13 A. He did.

14 Q. Great. And then last question. When you're on the routes,
15 either northbound or southbound, doesn't matter, you're checking
16 off with Potomac and checking in with Reagan tower, Washington
17 tower, tell me what that call generally sounds like from you
18 checking in with Washington.

19 A. So usually whenever we leave here we go directly to National
20 tower. And that'll be -- depending on which route we take,
21 National tower, PAT, whatever, two miles north of Davison, Ft.
22 Washington, Route 4, Route 1, and then wherever you want to go at
23 your altitude.

24 Q. Okay. And then they reply back to you?

25 A. Yup, they'll reply cleared, cleared route as filed and

1 they'll let you go, depending on where you want to go. And then
2 you have your mandatory reporting points, so like whenever you get
3 to Wilson Bridge you let them know that you're there.

4 Q. Got it. Sounds good then. Are they generally issuing an
5 altimeter setting (indiscernible)?

6 A. No, they usually give altimeter setting every time.

7 Q. Okay, that's all I got. Thanks.

8 A. Yup.

9 DR. BRAMBLE: Paul?

10 BY MR. KIM:

11 Q. Paul, PSA Airlines. Just a couple questions. You mentioned
12 that you assumed that crew members, since they're mostly by the
13 book, that they would have taken that Stratus unit out with them?

14 A. Right.

15 Q. Are the Stratus units required to be taken out?

16 A. They're not required, but they're encouraged especially going
17 out to there. Maybe if you're going out south you don't worry
18 about it as much, if you're going to do training flight, but
19 usually for the helo routes we would take them out. We just got
20 new batteries for them and all that, so they seem to be more
21 (indiscernible).

22 Q. Would you happen to have an estimate of how many -- what
23 percentage of crews would have taken out the Stratus units when
24 going out?

25 A. I wouldn't really know (indiscernible).

1 Q. And are you familiar with the next highest altitude in the
2 Routes 1 to 4 transition, once you pass south of the airport, what
3 the next highest altitude is?

4 A. So Wilson -- yeah, Wilson Bridge is 300 feet and then 600 at
5 Broad Creek and then 1000, I think it is, at Ft. Washington.

6 Q. At what point would you climb up to the next higher altitude
7 when transiting southbound?

8 A. After the Wilson Bridge? So usually right where we pass the
9 end of the inlet right there, usually climb up there. So about
10 half mile before you get to Wilson Bridge, quarter mile.

11 Q. All right, thank you.

12 A. Yup.

13 DR. BRAMBLE: Eddie?

14 BY MR. MILLER:

15 Q. Zach, you're doing a great job. Thanks for answering all of
16 our questions. As a safety officer, how long have you been the
17 safety officer, again?

18 A. Nine months now.

19 Q. And what's the -- can you, can you tell us, like, how many
20 instances you've had to -- reports you've had to file as a safety
21 officer to go up to the next higher level?

22 A. How many?

23 Q. Like bird strikes, has there been any OSHA stuff, you know,
24 how hard have you been working as a safety officer, were people
25 getting hurt a lot, or not getting hurt a lot?

1 A. No, the only thing we had -- recently we had FOD go into an
2 engine in the north side probably about six months ago that had to
3 replace the whole engine. So that was a Class C I believe it was
4 with the damage it did, and nobody was hurt on that. And then we
5 just record near misses whenever a crew comes and talks to us,
6 we'll put it in the (indiscernible) which is our (indiscernible)
7 that goes down to Ft. Rutger or Novosel, and they can look on that
8 and see if there's any trends or anything like that. But we
9 haven't had any injuries.

10 Q. How many near misses have been reported?

11 A. I have only reported one.

12 Q. Can you give us a timeframe?

13 A. When it was? I'd have to look on (indiscernible) when I put
14 it. It was (indiscernible) when I got here so probably July maybe
15 of last year.

16 Q. Okay. All right. Are you familiar with any of the -- like,
17 NASA reporting of any hazards you run across when you're on a
18 route? You can file in the civil side of things, even though
19 you're military? Are you familiar with any of this --

20 A. (Indiscernible) obstacles or anything like that to --

21 (Crosstalk)

22 Q. -- tower, you're flying by and there's a tower that --

23 A. Oh, that's not on there?

24 Q. Yeah, it's not on there or it's not lit properly, you know,
25 like, they haven't changed the lightbulbs out on that, you know,

1 or whatever? Did you -- do you know that process of how to do
2 that?

3 A. We've done it before, but I'd have to look on how to do it.
4 Nobody's ever came to me and said we want to get this published on
5 a sectional or anything like that to make sure, or updated on
6 Foreflight.

7 Q. When you're using Foreflight and you're looking at the
8 obstacles in your area, how do you know where the hazards are at?

9 A. So usually we'll plan our route on the AMPS computer and
10 it'll give you all obstacles, and then you make a corridor of four
11 miles each way so you know exactly what's on that obstacle
12 (verbatim) and they're updated periodically throughout, so it's
13 pretty much up to date.

14 MR. MILLER: Very good. I don't have any other questions,
15 Bill.

16 DR. BRAMBLE: Okay. Nick?

17 MR. JACOBY: No.

18 DR. BRAMBLE: All right.

19 BY DR. BRAMBLE:

20 Q. That near miss in July that you mentioned, was that between
21 two aircraft?

22 A. No, it was just another bird.

23 Q. Okay.

24 A. Usually I've had a pretty easy job here. I haven't had to do
25 too much with the safety side on reporting near misses or

1 accidents.

2 Q. Okay. Do you personally check out the Stratus units when you
3 go flying?

4 A. If I'm going on the helo routes, usually, yeah. We just got
5 all new batteries in them. So they used to not last too long, but
6 now you could get eight hours out of them.

7 Q. How long did they last before that?

8 A. Usually about two hours. We had the good ones that you knew
9 to take out, so we usually had one or two crews out at a time. So
10 we made due.

11 Q. When you take it out, how do you use it?

12 A. I turn it on, connect it to the Wi-Fi on your iPad and then
13 you select it on the settings and then it'll give you traffic
14 warnings on there.

15 Q. So when you're flying with one of those units, do you
16 typically have the iPad strapped to your leg and then have the
17 traffic display up?

18 A. Yeah. You don't look at it all the time, especially if
19 you're flying. It's usually one person or the other look at it
20 while the other person is outside flying, but every once in a
21 while you'll look down.

22 Q. Primarily the non-flying pilot?

23 A. Yeah. But ATC usually does a pretty good job at calling out
24 the traffic.

25 Q. Has there ever been a time where you've been like -- they've

1 called it out and you've had a hard time acquiring it and you look
2 and see or has it never helped you out?

3 A. If I just -- if I see it on the iPad, I'm still waiting to
4 have visual of it, otherwise you can't call it out to ATC. So
5 it's a good buffer in case -- just to double check, if they give
6 you a clock position maybe they're higher or lower than you
7 expected then you can look at the iPad and double check on where
8 it is.

9 Q. Okay. I guess what I'm getting at is have you found it
10 helpful for that?

11 A. Yeah, of course it's helpful, but I wouldn't solely rely on
12 that.

13 Q. Uh-huh. You mainly use it as an aid for acquiring a visual
14 aid, is what you're saying?

15 A. Yeah.

16 Q. Okay.

17 A. Or double check exactly where they are.

18 Q. Okay. Would you, would you use it if you were on a night NVG
19 flight or would that be too cumbersome?

20 A. Usually on night flights like that you wouldn't use your iPad
21 as much just because it's bright and it can mess up your vision.
22 So especially on the helo routes, I probably wouldn't look at it
23 nearly as much.

24 Q. At night?

25 A. At night, yeah, under goggles.

1 Q. Okay. Do you prefer the green phosphor goggles for the DC
2 helo routes?

3 A. Yeah, I do.

4 Q. Okay. Why is that?

5 A. Just with the city lights it's so bright, especially if
6 you're heading north up on Route 4 the DC lights are -- can be a
7 lot. So usually if you can't see anything you can look under the
8 goggles or if you brief for night unaided, you can flip them up if
9 needed. Sometimes it's more dangerous flying with goggles than
10 without.

11 Q. Where have you done that before in the past? Where on the
12 routes and heading in which direction?

13 A. Usually I would do it after you pass Hains Point, like at Key
14 Bridge, up there, if it gets too bright, depending on transition,
15 you'll look under your goggles just to get a better vision of
16 things.

17 Q. Usually after passing Hains Point to Key Bridge?

18 A. Right.

19 Q. Headed north?

20 A. Right, yeah.

21 Q. Okay. How about the area where the accident occurred headed
22 south, is that an area where you'd need to flip them up because
23 the lights are too bright or no?

24 A. Usually not heading south like that. Usually the goggles
25 work better, or if you need to you can take a peek underneath of

1 them. Especially if you're looking for traffic, you'd probably
2 look underneath to make sure you see it, because sometimes you
3 can't see it with the light and the goggles on.

4 Q. Um-hum. Okay. Do you often at night have to look under the
5 goggles to confirm that you have traffic in sight?

6 A. Usually I can just double check. I'm not sure what the back
7 seaters do, if they do the same thing, but I usually look under
8 just to make sure to kind of get a distance on them too.

9 Q. What's the advantage of doing that as opposed to looking
10 through the goggles?

11 A. You just kind of see what direction they're moving in better
12 and their altitude. It just helps.

13 Q. Have you ever had traffic sort of on a conflicting course
14 that didn't really seem to have much relative motion and you had a
15 hard time picking it out?

16 A. Yeah, and that's why you look under your goggles, especially
17 when they come in for landing, especially if you're on Key Bridge
18 or something like that, they'll pass over you, right above 500
19 feet or something like that, so sometimes you need to look up
20 under the goggles and see exactly where they are.

21 Q. Okay. What's the closest you've ever had commercial traffic
22 fly over or next to you, you think, downtown?

23 A. Probably 3-- to 500 feet. Yeah, 3 -- to 500 feet. They're
24 not directly above you. I'd say you're off to the side a little
25 bit more because they're pretty adamant on not having their alarm

1 go off. I think it's TCAS or whatever it is, to go off. So
2 usually we try to stay away from them.

3 Q. Have you had any reports of airlines having to abort their
4 approach because their TCAS activated because you flew under them
5 or one of your helicopters flew close to them?

6 A. No, we can't hear what the airliners say. So I've never
7 heard of it. ATCs are usually pretty good about keeping us away
8 from them so it doesn't go off.

9 Q. Okay. When you flew with [REDACTED] do you recall how he went
10 about pointing traffic out and coordinating about spotting
11 traffic?

12 A. Yeah, when we'd be out there -- it's been months, but usually
13 whoever called it out first, we would say where it was, whether
14 it's above or below the horizon. And then the next person would
15 be, like, have traffic in sight. And then our third person would
16 call out too, if they can see it, if they're sitting on the right
17 side. Then once one of us see it, they'll call vis sep, and then
18 we'll double check with everybody to make sure we all have a good
19 sight picture of it. Which at times they can call visual sep
20 maybe three times within five minutes just because it's so busy
21 out there.

22 Q. Okay. When you get an altimeter setting, do you and the
23 other pilot always set the altimeter at the same time?

24 A. Not at the same time probably. Once you set it, you say set
25 right center if you're sitting on the right side and then if

1 you're on the left side you say set left. But it's within 10
2 seconds of whenever you get it.

3 Q. Okay. Within 10 seconds usually both pilots have set it?

4 A. Yeah.

5 Q. Tell me about the trim switches on the cyclic. How do you
6 utilize those when you're flying around low altitude on the DC
7 helo routes?

8 A. Usually you'll set your trim, say a good collective setting,
9 and then after that it pretty much -- you won't hit the trim much
10 more after that once you already have a straight level. Or if you
11 do, you put force on it. You -- I usually don't reset trim.

12 Q. It's my understanding that you got a switch or a hat that
13 will go either left/right or up/down.

14 A. Um-hum.

15 Q. Tell me about how that works; what's that do?

16 A. So it'll give you a continuous turn on there wherever you set
17 it, but I usually only use that for IFR training just to make
18 small inputs on there. On the helo routes I would never use it.

19 Q. Oh. All right. So you just use the wet noodle? I mean,
20 you're just like doing it all manual?

21 A. Yeah, because once you set a good trim it's pretty much going
22 to be straight level for you and then if you need to turn, I
23 usually just fight against it and then it'll level out
24 (indiscernible).

25 Q. I see, I see. So the trim is on but you're not using the

1 trim to maneuver the helicopter; you're just --

2 A. No, yeah, I'm just using the cyclic to move it.

3 Q. Okay. How important is it to be in trim to maintain good
4 control in those conditions?

5 A. If you're not in trim, you'll feel the wind hitting you and
6 sometimes you can crab with your nose out just depending on the
7 wind. You always want to be in trim, the bubble is right there in
8 front of you, so --

9 Q. Why does it crab? Because basically the trim helps keep the,
10 I don't know, the tail rotor force and keep the helicopter --

11 A. Yeah, depending on where the wind is coming from it can push
12 your nose to the other side. So trim could be turned a little bit
13 more just to be in trim, which it's a smoother flight for you. So
14 if you're out of trim you'll feel it.

15 Q. Okay. Is that, is that a tricky transition coming from the
16 Mike, the way the trim works on the Lima?

17 A. I really pretty much dumped all my Mike time. I only had
18 about 30 hours in it. So I wasn't too familiar with the trim or
19 the autopilot in the Mike.

20 Q. Okay. All right. I asked you about [REDACTED] and whether he had
21 a reputation as an evaluator being difficult or easy. But what
22 about [REDACTED] did she have any -- was there any kind of reputation
23 for her as a pilot in terms of being particularly good to fly with
24 or not good to fly with?

25 A. I actually never flew with Captain [REDACTED] before. I've never

1 heard anybody complain about her. So I'd say she was always by
2 the book, that's pretty much the only thing so.

3 DR. BRAMBLE: All right, thanks. Van?

4 BY MR. MCKENNY:

5 Q. I just have one follow-up question. When you're on those
6 helo routes, do you ever cross-reference the Rad alt?

7 A. Do I ever cross-reference?

8 Q. Yeah, cross-reference the radar altimeter?

9 A. Yeah, we'll fly off radar altimeter sometimes, but the helo
10 routes are at MSL so usually if we -- they give us an altimeter
11 setting every time we go out there. So it's mostly off MSL or the
12 altimeter.

13 Q. You ever set the bugs on the Rad Alt to something -- what do
14 you set your bugs on the Rad Alt?

15 A. 80 and 800.

16 Q. You ever change that?

17 A. Not very often.

18 Q. Is it hard to see the Rad Alt under NVGs?

19 A. Lighting is usually pretty good in it so you can see
20 altimeter settings pretty well.

21 Q. What about the Rad Alt (indiscernible)?

22 A. Yeah, it's bright green, yeah. So I've never had a problem.
23 It's bright green and it's positioned right under your goggles so
24 you can always have sight of it.

25 Q. In general, your primary altitude instrument is --

1 A. MSL for altimeter.

2 Q. For alt?

3 A. Yeah.

4 Q. You ever see it disagree between the barro alt and what the
5 Rad Alt has?

6 A. The radar altimeter, depending on what you're going over, if
7 you're going -- if there's craters in the ground or something
8 it'll go a little funky, so we just always go off MSL. You'll
9 double check yourself because it's right there above it. So --

10 Q. When do you use the Rad Alt?

11 A. We'll use radar altimeter mostly for training flight is what
12 we'll look for on that, which you are below 200 feet so it's kind
13 of a training flight but you're on a published helo route, so
14 published for MSL.

15 Q. So for training flight, how do you use it?

16 A. Depending on what we brief for on training flight, we have
17 certain altitudes that you want to fly at, and we have our
18 published route on the AMPS computer that we have printed out on a
19 TDH card so we pretty much fly that and so we know what altitude
20 we're going to be at the whole time.

21 MR. MCKENNY: No further questions.

22 DR. BRAMBLE: Mark?

23 MR. WARD: (No response)

24 DR. BRAMBLE: Lauren?

25 MS. STRATTON: I do.

1 BY MS. STRATTON:

2 Q. Do you -- off the top of your head, do you remember the rest
3 of the mandatory reporting points on Route 1 to 4 there, or any
4 others?

5 A. Yeah, it's Wilson Bridge, Memorial Bridge, and South -- I
6 guess that's more on Route 3. Yeah, I believe those are the only
7 two.

8 Q. And then the Stratus, from what it sounded like you don't
9 have a way to charge it on board?

10 A. No, we don't charge it on board.

11 Q. Okay. And then post-flight you would come in and plug it in
12 immediately? They just sit there on the charger all the time?
13 How would you -- is there -- do you check the charge status when
14 you check it out or you just hope it's good to go?

15 A. Yeah, you check it. And we don't leave them plugged in all
16 the time, just -- to drain the battery, they said it wasn't good
17 for it. So we'll plug them up, and it has like four dots on it
18 showing your charge. So we'll check that before we go out.

19 MS. STRATTON: Okay, thank you. That's all I have.

20 DR. BRAMBLE: Dave?

21 BY MR. BLAIR:

22 Q. Two quick ones. You said you went to safety school. Give me
23 an idea -- five-week safety school, you said -- an idea about how
24 much of that was spent on the occupational health and safety
25 versus aviation safety.

1 A. It was more -- aviation safety we probably spent less than a
2 week on it, maybe a week tops. It was more for the ground stuff.
3 We had ground guys there and aviation safety. So probably about a
4 week long of it.

5 Q. All right. So 20 percent of the time was aviation safety, 80
6 percent was ground safety stuff?

7 A. Yeah, and then you get with a battalion safety, and since
8 they have more experience you kind of go and learn off of them.

9 Q. Okay, sounds good. And how about -- now that you're doing
10 your job as a company safety officer, how much of your time is
11 spent doing ground safety versus aviation safety stuff?

12 A. Probably more ground. We have monthly reports that we have
13 to do on the hangars and, like, fire safety and all that. So it's
14 mostly ground stuff, where if there is a aviation safety concern,
15 we'll still write that up. And -- but yeah, probably 80/20 for
16 ground stuff to aviation.

17 Q. So kind of most of your expertise -- this is an informal
18 question -- is most of your expertise, both in school and from
19 practical experience here, ground safety?

20 A. Yeah.

21 Q. Good enough. One more quick question in TCAS. You don't
22 have any form of TCAS --

23 A. No.

24 Q. -- okay, in the aircraft? Do you know if the gold tops have
25 that capability if it's unclassified?

1 A. I'm not sure.

2 MR. BLAIR: Okay. (Indiscernible). I believe that
3 (indiscernible) thank you.

4 DR. BRAMBLE: Paul?

5 MR. KIM: No questions.

6 DR. BRAMBLE: Eddie?

7 BY MR. MILLER:

8 Q. Yeah. So you said you flew the Mike model a little bit at
9 school and you got the L model here. If you had your choice for
10 flying that you can step out that door and go get in one, which
11 one would you go in and tell me why?

12 A. I like the Lima just -- I've had so much experience in it. I
13 know everything about it. And in flight school, all those
14 systems, 30 hours isn't enough to learn all of it. So I just --
15 the Lima is simple, more simple to me, than all the electronics in
16 the Mike model.

17 Q. Do you think the Mike model has better safety enhancements
18 versus the Lima model?

19 A. I'm not sure. I mean, I'm sure -- it has autopilot, so I
20 don't know.

21 Q. Okay. Have you ever been -- it's hard to hear over here,
22 just to let you know, so I'm sorry if I'm going to ask a repeat
23 question. I don't know -- but have you ever been told when you're
24 on Route 1 or Route 4 to hold?

25 A. I've held at Hains Point a couple times just to get somebody

1 in. So I've done it -- it's not common, but I have done it
2 before.

3 Q. And did you feel comfortable doing it?

4 A. Yeah, at Hains Point?

5 Q. Okay.

6 A. Yeah.

7 Q. All right.

8 A. There's no other rotary wing traffic around so it's no
9 problem to hold there.

10 Q. All right. Thanks, Zack.

11 A. Yeah, no problem.

12 DR. BRAMBLE: If you can tell us this, what are the data
13 feeds out to -- for collision avoidance with civilian traffic,
14 like, you have Mode C on the transponder is our understanding, but
15 then do you have ADSB also typically? Or --

16 MR. JACOBY: You can answer generically, sure.

17 MR. FONDA: Yeah.

18 DR. BRAMBLE: Okay. And then is there any other
19 unclassified, you know, type of -- like, MODE S (ph.) and help me
20 out guys here, but MODE S is separate from ADSB and Mode C on
21 the --

22 MR. JACOBY: Yes.

23 BY DR. BRAMBLE:

24 Q. Do you have MODE S as well or is that something you can tell
25 us?

1 A. Yeah.

2 Q. So typically -- or on a training flight, would you have all
3 three broadcasting?

4 A. It's different scenarios whether we would have which ones
5 broadcasting.

6 Q. Okay, okay. Depends on the mission and the scenario?

7 A. Yeah, our route and everything like that.

8 Q. Okay.

9 A. Sorry, I didn't know how to answer that one too well.

10 Q. That's okay. Well, it's fine to look at Nick.

11 A. I just want to double check.

12 Q. Yeah. And then on the culture front, how is the culture here
13 at 12th Aviation Battalion compared to previous units you've been
14 at? Like, is it a different kind of environment or pretty similar
15 to past units?

16 A. Yeah, it seems like actually we're a lot closer here than I
17 was at Benning or anywhere else. So I feel like we have great
18 culture here and no complaints from anybody. Everybody seems to
19 love it here.

20 Q. And how about on the safety culture side? Do you feel like
21 your leadership is committed to safety and that people who have a
22 safety concern to report are listened to and things are done about
23 it?

24 A. Oh, yeah. Yeah, I think they're very concerned about safety
25 here and Ben and all the company safety officers, we all get

1 together a good amount just to talk about things and we have a
2 safety group chat where people can voice their concerns and all
3 that. So I think it's great.

4 Q. Tell me about the safety group chat.

5 A. It's just if we have any thought or any questions that we
6 have we can put in there and Ben usually answers back pretty quick
7 since he's the most senior guy here. So he usually has an answer
8 for us how we go about logging or what we should do about it.

9 Q. That's a chat for all the safety officers?

10 A. Right.

11 DR. BRAMBLE: Okay. All right. I'm going to go around one
12 more time. Lauren, you got anything?

13 MS. STRATTON: I don't.

14 DR. BRAMBLE: Van? Dave?

15 UNIDENTIFIED SPEAKER: No questions.

16 DR. BRAMBLE: Okay. Is there anything we haven't asked you
17 about that you think it's important for us to know given our role
18 investigating the accident?

19 MR. FONDA: Nope, and I hope I could help out a little bit.
20 Sorry I didn't have more to give you.

21 DR. BRAMBLE: And is there anybody else that you think might
22 have interacted closely with [REDACTED] or with Captain [REDACTED] like
23 the day of the accident, that we should interview?

24 MR. FONDA: I think you already got him, I just know Adam
25 Coffman (ph.), flew with her, like, I think two days prior, so

1 other than that.

2 DR. BRAMBLE: Okay. All right. That said, we will call the
3 interview complete at 1512.

4 (Whereupon, at 3:12 p.m., the interview was concluded.)
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of Zachary Fonda

ACCIDENT NO.: DCA25MA108

PLACE: Fort Belvoir, Virginia

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Christy Behlke
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: BRADLEY HAASE

via telephone

APPEARANCES:

WILLIAM BRAMBLE, Investigator
National Transportation Safety Board

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

MARK WARD, Investigator
National Transportation Safety Board

EDWARD MILLER, Senior Accident Investigator
Federal Aviation Administration

PAUL KEMP, Chief Pilot
PSA Airlines

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Bradley Haase:		
By Dr. Bramble		5
By Mr. McKenny		63
By Mr. Ward		75
By Mr. Miller		78
By Mr. Kemp		79
By Mr. Blair		81
By Dr. Bramble		87
By Mr. McKenny		91

I N T E R V I E W

1
2 DR. BRAMBLE: -- :49 Eastern standard time. My name is Bill
3 Bramble. I'm a human performance investigator with the NTSB. Van
4 McKenny and I are leading the operations and human performance
5 working group for investigation number DCA25MA108 involving PSA
6 flight 4352 and PAP 25 (ph.). The NTSB is an independent Federal
7 agency. We're not part of the DOT or the FAA, and we have no
8 regulatory enforcement powers. Our mission is to determine the
9 probable cause of incidents and accidents and make recommendations
10 so that similar events can be avoided. Our mission does not
11 include findings of liability or blame.

12 Your participation today helps ensure that the fact-finding
13 phase of this investigation is complete and accurate. We'll be
14 recording the interview so it can be transcribed, and after we
15 receive the transcript, we'll review it for typos before it's
16 included in the public docket for this investigation. If you ask
17 afterward, we can give you a copy of the transcript if you want to
18 review it. I would like to have each of the group members now
19 briefly introduce themselves and state their organizational
20 affiliation starting with Mr. McKenny.

21 MR. McKENNY: Van McKenny, Helicopter Operations Group
22 Chairman, NTSB.

23 MR. WARD: Mark Ward, NTSB accident investigator.

24 MR. MILLER: Eddie Miller, FAA, senior accident investigator.

25 MR. KEMP: Paul Kemp, PSA Airlines, chief pilot.

1 MR. BLAIR: Dave Blair with Sikorsky Aircraft. I'm the chief
2 pilot for safety.

3 CW5 JACOBY: CW5 Jacoby, Brigade Standardization Officer for
4 the U.S. Army Aviation Brigade.

5 DR. BRAMBLE: You are entitled to have a representative of
6 your choosing present during any NTSB interview. Is there someone
7 you would like to have as your representative?

8 MR. HAASE: No thanks.

9 DR. BRAMBLE: Okay, let's begin.

10 INTERVIEW OF BRAD HAASE

11 BY DR. BRAMBLE:

12 Q. How do you pronounce your last name?

13 A. Haase.

14 Q. Okay, and is it okay if I call you Brad?

15 A. Absolutely.

16 Q. All right. Can you please state and spell your legal name,
17 Brad?

18 A. First name Bradley, B-r-a-d-l-e-y, middle name Charles, C-h-
19 a-r-l-e-s, and last name Haase, H-a-a-s-e.

20 Q. Okay, and what was your rank at the time that you retired
21 from the Army?

22 A. I was a Chief Warrant Officer 4.

23 Q. Okay. In which unit?

24 A. Upon retirement I went to Bravo Company for my last 12
25 months.

1 Q. Okay, and what was the date that you retired from that
2 company?

3 A. I was retired officially March 1st of 2023 but went on
4 terminal leave (ph.) November of 2022 I believe.

5 Q. Okay, and what was your role or position at that time?

6 A. I was basically a company standardization instructor pilot at
7 that time. I have -- yeah, I was basically just a company IP as I
8 was getting out.

9 Q. Okay, and what previous roles did you have at 12th Aviation
10 Battalion (ph.)?

11 A. Prior to my retirement, I was the Battalion Standardization
12 Instructor Pilot for approximately two years, and then before that
13 I was the Alpha Company Instructor Pilot, or I'm sorry, SP,
14 standardization pilot.

15 Q. Okay, all right, and when did you start your career as an
16 Army aviator?

17 A. I graduated flight school in August of 2008.

18 Q. That was at Fort Rucker?

19 A. Fort Rucker, yes, sir.

20 Q. Okay, and did you have any additional duties at 12th Aviation
21 Battalion besides pilot or standardization pilot or instructor?

22 A. No. Typically the tracked officers (ph.) -- Warrant officers
23 don't have additional duties.

24 Q. Okay, okay. Were you a CW3 until you retired and then bumped
25 up to 4, or --

1 A. I was a CW3 upon arrival at Fort Belvoir and I was actually
2 promoted there, so that's what put me at four years. I did an
3 additional year because of my promotion to W4.

4 Q. Okay, and what's your total flight experience?

5 A. I'm approximately 3000 hours rotary wing time (ph.).

6 Q. How much of that in the UH60 (ph.)?

7 A. All of it. Well, there is a little bit of TH67 time in
8 there. I think it's -- I don't remember what you get out of
9 flight school. Maybe 100 of it is not Blackhawk time.

10 Q. Okay, and how much time would you say you have under NVGs
11 (ph.)?

12 A. I think I was just shy of 1000 hours of goggles hours, I
13 believe, if not a little bit more than that.

14 Q. Okay, and how much of your time was in the UH-60 Lima model
15 (ph.) versus the mike or others?

16 A. Actually the majority of it was Alpha Lima, so probably -- I
17 don't have an exact number for you but I would say probably 18 to
18 2000 of those hours are probably Alpha Lima time. I grew -- I
19 started out as an Alpha and Lima.

20 Q. And then you had about 800 to 1000 in the Mike (ph.)?

21 A. Yeah, I did the Mike transition in Fort Benning.

22 Q. Okay. Did you learn to fly the Lima in flight school?

23 A. Yes, I flew the Alpha Lima the same -- pretty much the same,
24 same thing, but yes.

25 Q. Okay, and then you didn't fly the Mike until after that?

1 A. Yeah, I got a Mike transition several years later as the Army
2 started to field them.

3 Q. Okay, all right. Do you have prior aviation experience
4 before joining the Army?

5 A. No.

6 Q. Okay, okay. Approximately when did you join Bravo Company?

7 A. Let's see, (indiscernible) I went on terminal leave in
8 November, so it was -- I think I switched January of that year
9 because we had a new Battalion Commander come in, so I thought it
10 would be a good idea to transition a new SP (indiscernible) new
11 Battalion Commander as I was what we like to call short timing
12 last year. So I think it was January of 2022, somewhere around
13 there -- January or February.

14 Q. Okay, all right. How well did you know each of the crew
15 members who was involved in the accident at DCA on January 29,
16 2025?

17 A. I knew all of them very well. [REDACTED] and Sergeant
18 [REDACTED] were both my crew chief and FI, and [REDACTED] was a
19 first-term aviator that I mentored and trained and evaluated in
20 Alpha Company, and I met -- later met Captain [REDACTED] when I went
21 to Bravo Company. I think I had some interaction with her as the
22 Battalion SP but initially I wasn't up Lima model so I didn't fly
23 a lot of -- any Limas really so I got re-current on a lama
24 (indiscernible) as I became SP, so I may have very little
25 interaction with her until I went to Bravo Company, but [REDACTED]

1 [REDACTED] and [REDACTED] very well.

2 Q. Okay. Tell me about [REDACTED] What kind of a -- what kind of a
3 person was he? What kind of a pilot was he?

4 A. So he was super sharp. I, I have listed him as one of the
5 top two probably new pilots I've ever progressed to the point
6 where, you know, he showed up at work every day wanting to learn.
7 He would come ask me questions and I'd give him a -- you know I
8 would give him an answer. I would have a question from him. He
9 would always come back the next day with an answer or a lot of
10 times as an instructor, you asked a question, someone doesn't know
11 it and, you know, they just kind of think they got away with one.

12 But he was, he was definitely a professional pilot to the
13 point where he was ready for pilot command far before we made him
14 a pilot command, but we held him back just to give him some -- try
15 to get him some more experience and time in the aircraft, but
16 super sharp, super mature and just a great, great pilot.

17 Q. And then how about him as an instructor? Was he an
18 instructor before you left?

19 A. No.

20 Q. Okay. All right, tell me about [REDACTED]

21 A. [REDACTED] was a crew chief in the Alpha Company when I first
22 showed up which we later -- because of his, his abilities and his,
23 his knowledge, we later made an FI and SI in the Alpha Company
24 which is, is an instructor for the crew chief side of the house,
25 and I mean he's the same thing as an E2. He was very good at what

1 he did. Whenever I saw him on the flight schedule, I knew that,
2 you know, my aircraft was in tiptop shape, always ready to go.
3 All the write-ups were done correctly -- you know definitely a
4 professional of his field as well.

5 Q. Okay, and then what about [REDACTED]

6 A. My first interaction with Captain [REDACTED] I had come over to
7 Bravo Company and I had seen that she had just finished
8 progression, but I was doing records reviews for Bravo Company. I
9 discovered a -- if memory serves me correctly that they didn't
10 conduct an instrument eval on her or write it up in conjunction
11 with her progression.

12 So, one of my very first interactions was taking her on an
13 instrument eval to basically make her R01 legit (ph.). I don't
14 even remember if I downgraded her from R01 which I believe I did
15 because I would have had to because she had lots of challenges in
16 the aircraft, and as I was kind of explaining to you earlier, she
17 had learned how to fly Mike models (ph.) in flight school and she
18 showed up and she was now getting progressed in a Lima, and she
19 was, she was struggling with initially the instrument side of the
20 house with, with just flying with Lima.

21 Q. Okay. How about her, her aircraft stick and rudder skills
22 and her knowledge?

23 A. Later after I conducted the instrument eval I, I found that
24 there was bigger problems than just a missing instrument eval, and
25 as the -- my write-ups from what I can remember should show I

1 designated her R03, restarted her progression and she kind of
2 became my, my additional duty where I was taking her to the
3 simulator. The near simulator complex is up at -- up in
4 Pennsylvania so I was taking her up into Pennsylvania trying to
5 get additional sim time to get her up to where she had already
6 been signed off. She was supposedly at but she wasn't, but
7 definitely, definitely needed work on both stick and rudder and
8 knowledge.

9 And one of the biggest issues I had with her was her spatial
10 awareness and she had a bad tendency of focusing on things that we
11 couldn't control, you know? Hey, why does the windshield have 16
12 screws in it and, you know, I'd tell her I don't really care, you
13 know. But what I know as an instructor is I can't turn it on
14 above 27 degrees Celsius because it will crack the windshield. I
15 was always trying to teach her like worry about the things you can
16 control and -- but she was definitely struggling as a, as a new
17 aviator.

18 Q. What, what were the first things that tipped you off that she
19 was having difficulty?

20 A. This is -- I mean again this is probably two years ago. The
21 biggest thing was just instrument knowledge. You know the very
22 first thing I do, you know, during a check ride, I sit down and
23 conduct an oral evaluation where you talk about the approaches
24 we're going to conduct (indiscernible), the routes we're going to
25 fly and just the overall route plan and everything. Just, you

1 know, had lots of -- and whether you're flying a Lima or Mike
2 model, instruments are instruments with the exception of having a
3 RNAV database at the time, but just, you know, lots of, lots of
4 issues with, with her stuff and, you know, wasn't, wasn't where
5 she should have been coming out of flight school as far as like
6 instrument knowledge.

7 And, you know, as an instructor pilot when you see issues,
8 you know, you tend to -- the more questions you miss, the more
9 questions I, I ask to try to figure out, you know, well where
10 exactly is your baseline? Where do I start with you and which
11 later resulted in, you know, her staying R03 for quite a while
12 where, you know, that happens as an Army aviator. You know, like
13 oh man, I've only got so many hours to re-train you and get you
14 back up through the R02 and R01.

15 So when I started making my write-ups, the way I was making
16 them up was kind of building a case where in my mind she was a
17 potential candidate for what's called a flight evaluation board.
18 So when I was doing my entries in the records and doing my flights
19 with her, I was making sure to annotate things where, you know, I
20 had questions would I ever be able to get her R01 or not, and some
21 of that was her skill level, but one of the issues I have -- you
22 know, I had a theory or when -- I would tell commanders like if
23 I've got a pilot that needs work, I need them at least twice a
24 month to get better.

25 So if we have an issue doing a roll-on landing -- for

1 instance, if you only give me them once a week, I've got to re-
2 visit the same issues and we make very small gains, or if I can
3 fly them at least twice a week and making some gains but, you
4 know, preferably give me them three times a week -- Monday,
5 Wednesday and Friday with a day in between to absorb and I can
6 make leaps and bounds.

7 But, you know, one of the challenges that [REDACTED] had was she
8 was also a platoon leader, so she's a new officer, a platoon
9 leader. She's having to, you know, take care of an entire platoon
10 and learn that side of her work and, you know, deal with the
11 commander and the Battalion commander and do all of the taskings
12 she's getting. So those lieutenants get way oversaturated with
13 tasks sometimes, and if they're struggling, it's very hard to get
14 enough blade time for them to, to make improvements.

15 Q. Okay. Was that a problem you had observed with other
16 lieutenants in the past?

17 A. Getting enough time on the flight schedule for, for some of
18 the platoon leaders and stuff was always a challenge and, you
19 know, depending on how supportive -- you know if they're in the S3
20 shop, the S3 wasn't giving them to you, but usually if you explain
21 like hey, I -- this, this lieutenant is having problems, I need
22 him twice a week, normally they kind of work it in their schedule
23 where you could fly.

24 That's kind of the deal why I ended up having to take [REDACTED]
25 to the simulator so many times is because, you know, the blade

1 time just wasn't available and it was just easier for me to go up
2 there and take her to the sim because I could also knock out
3 another instrument eval or something while I was up there for
4 somebody else that needed, that needed a ride.

5 Q. Okay. How was her performance compared to other lieutenants
6 in her situation with her level of experience?

7 A. She was well below what I would say average. She was -- you
8 know, she's -- you know where [REDACTED] is memorable as far as
9 being as one of the top two probably pilots that were new out of
10 flight school, she was on the opposite end of that spectrum. She
11 was probably -- you know looking back over my career in the top
12 three of, you know, worse products (ph.) coming out of flight
13 school. She just, she just -- she had, she had lots of
14 difficulties in the aircraft. She had lots of difficulties in the
15 aircraft.

16 Q. Okay, and that's compared to other lieutenants, not just
17 Warrants --

18 A. Correct, yes.

19 Q. And -- all right. Can you tell me more about her
20 difficulties with spatial awareness?

21 A. The biggest problem that I had with her is just kind of an
22 example I use with the, you know, the bolts in the wind screen,
23 and she would just get so drawn into things that, you know, for --
24 you know I tried to teach -- like tell her, you know, don't focus
25 on the things that I have no control over. You know just -- I

1 don't care about the engineering of the Blackhawk minus, you know,
2 systems and how they, you know, play a part in emergency
3 procedures.

4 But she would just get so sucked into, you know, why is there
5 four rotor blades on a helicopter instead of six and, you know,
6 hey, I don't care. It provides the lift I need and -- she always
7 wanted to know the why of things. She was -- just things that,
8 you know -- she just thought differently than I did. She just,
9 she just gets sidetracked or a lot of her attention would get
10 drawn into things that, you know, at her level of experience, I
11 was like let's focus on the basics. Let's focus on, you know,
12 holding air speed and altitude. Once we can do that, then we can
13 go into some more of the whys, but let's get the -- let's master
14 the basics first, but that's just not how she -- that's just not
15 how she operated. She wanted to know the whys of everything.

16 Q. Okay. Did you have trouble with her in terms of navigation
17 with spatial awareness?

18 A. You know I'm pretty sure I probably did some of her R02
19 stuff, but my memory doesn't actually serve me enough to remember
20 any particular moments of like her struggling with navigation to
21 really be able to say for sure, but I know as part of the whole
22 big -- like initially the instrument stuff is just -- you know
23 we're a point in space in the sky on the instrument. Where are
24 we? You know, in a Lima -- you know she grew up -- she learned to
25 fly in a Mike model where, you know, you've got digital displays.

1 You can look down and you always see where you are, where you are
2 on your route. In the Lima, you don't have that kind of stuff so,
3 you know, unless you're using an iPad but, you know, her -- I
4 don't remember enough to say other than just instrument-wise she
5 usually wasn't -- you know she's usually behind the aircraft is
6 what we like to say.

7 Q. Did she tend to get fixated on things at the expense of other
8 things she needed to be monitoring?

9 A. Yes -- yeah, and a lot of it goes into that just focus on
10 things you can't control but, you know, one of the problems that
11 -- when you have someone that learned to fly their first
12 helicopter as a Mike model then you take them into a Lima, you go
13 from digital displays to steam gauges, and they have a hard time
14 -- it affects their scans so, you know, when you look down you get
15 a nice green, yellow and red colorful bars going up and down and,
16 you know, you go back into a Lima, now you've got steam gauges and
17 it just takes them time to develop that scan where, you know, they
18 can briefly look in, check their torque, you know their air speed,
19 their altitude, their VSI (ph.).

20 But that was, that was not abnormal for, for someone that was
21 learning to fly Limas for the first time. That, you know, that
22 was something that they had to develop. Like, you know, you're
23 flying a different aircraft. You don't have an autopilot, so
24 you've got to do all of this with, with friction, and she was
25 definitely -- she was behind where she should have been because

1 when I showed up, she had already been signed off R01 if I
2 remember correctly by the instructor pilots, and that was the
3 biggest issue I had. I was like -- at first I thought it was just
4 an error in the stands department (ph.), like you guys didn't
5 conduct an instrument eval or a write-up is done in lieu of her
6 progression.

7 So, then I took her out and did her instrument eval and I was
8 like she's -- not only did she not do an instrument eval, but she
9 can't complete one to standards, so how did she make R01 because
10 they went from flying instruments with her to then going to
11 mission task. We should have -- they should have never moved to
12 that next step so, you know -- and then I kind of just started
13 uncovering like you guys got to restart her progression and, you
14 know, now we have a window to get her R01, and if not, you know,
15 according to the regulations, we're going to have to FEB her, so
16 we've got to annotate records in case it gets to that point.

17 Q. Okay. Did you ever get any insight into how she passed the
18 progression stages prior to you given those weaknesses?

19 A. So the stands department at that time -- the SP in that
20 company had one junior straight out of the instructor pilot course
21 underneath of him, and he was doing most of the progression
22 flying, and a lot of the errors I was finding was being done by
23 him so I was having to take him aside and say hey, look, you know,
24 you didn't complete the instrument eval and, you know, by the way,
25 if she had passed her instrument eval, you haven't visited

1 instruments with her in several weeks.

2 So even if she passed her instrument right and we go into the
3 RO2 phase, you know, someone that needs help -- you know, hey come
4 back and do an instrument approach with them. Just because you're
5 an RO2 doesn't mean you can't throw a splash of instruments in
6 there just to continue because she's a very junior Lima pilot and
7 she's still learning, and I think the SP at the time -- he was
8 dealing with the whole Covid refusing to vaccinate and stuff, so
9 he was kind of back and forth what was going on with him, and so
10 it was kind of this W2 instructor pilot was kind of running the
11 show there.

12 You know the instructor pilot -- of course they don't do a
13 lot of record teaching. At least they didn't when I went through,
14 so when you got back to your unit, it was the SP's job to kind of
15 mentor you in the recordkeeping portion and he was -- so I kind of
16 had to take some -- upon some of that like hey, make sure you're
17 getting into the commander's, commander's guide and the ATM and
18 understand these things that are required, and then just teach
19 them some techniques. Like hey, just because she's RO2 I'm still
20 going to do instruments because she needs that growth and that
21 practice, but --

22 Q. So, there were two -- let me see if I get this right. So,
23 there were two SPs or there was an SP and an IP and -- which one
24 of them was sort of out a lot?

25 A. So the S -- the company standardization pilot, he was, he was

1 there but not doing a lot of the flying. He had kind of handed it
2 off to his brand new instructor pilot. That was a CW2 at the
3 time, and there was a third one but he was gone TY (ph.) most of
4 the time. I think he was trying out for one of the special units
5 or something for much of that time.

6 Q. Okay, so maybe there wasn't a lot of -- there weren't that
7 many instructional resources at the time and she might have kind
8 of -- I mean they still had to evaluate her to pass her to each
9 stage, right?

10 A. They did, yeah. So --

11 Q. But you think it was the junior instructor pilot?

12 A. So when you leave the instructor pilot course, you know how
13 to conduct a -- basically a goggle PFE (ph.) but you understand
14 the maneuvers that you're supposed to be teaching, but you take a
15 new instructor pilot and you take an instructor pilot with several
16 years. There is additional experience of how to, you know, to
17 mentor and teach some of those things that you're teaching.

18 But initially what happened, he just overlooked the fact that
19 he conducted her RO progression which was her first one. She had
20 never had an instrument eval on a Lima model, and if I remember
21 correctly, I think she was in her birth month as well. So a lot
22 of those things you've got to do for the progression anyway, but
23 when you do them, you've got to ensure to, one, to hit all of the
24 requirements but also to annotate the records, like hey I
25 conducted an instrument evaluation in conjunction with her RO

1 progression and she's not ready to move to the next RO status, and
2 that was --

3 That's initially what I found is she just hadn't done an
4 instrument eval, but she had done instrument tasks and, you know,
5 I think -- even I looked at some of her grade slips and, you know,
6 there might have been Us (ph.) for things and then SATs (ph.) for
7 things where she had failed a task and then she got signed off as
8 satisfactory but, you know, it's like we need to continue to build
9 on those, on those things. She needs more, you know, experience
10 and time.

11 Q. Okay. So she might have failed some tasks but then they used
12 items in other, other modules just for justifying signing her on?

13 A. Well, they were checked off later but when they went from
14 RO3, they, they focused on those tasks, but then when they moved
15 to RO2, which is your mission task training, they didn't do any
16 instruments with her, and so, you know, that was my big teaching
17 point. Like hey, just because she's RO2, still throw some
18 instruments in there and initially that's kind of why I thought
19 she had failed so bad is she just hadn't done any instruments in
20 several weeks, but then as I started flying with her, I was like
21 there's -- you know we got more problems than just instruments
22 here.

23 Q. Okay. So is it fair to say that it kind of seem like she
24 slipped through the cracks or that they just didn't -- or was it
25 that they just didn't rigorously ensure that she was meeting the

1 standards?

2 A. I think it was several things. You know, the difficulty of
3 showing up to a unit you've got very little helicopter time, and
4 you have absolutely no Lima time, so now you're, you're
5 downgrading in a way from an advanced aircraft to an aircraft that
6 steam gauges. You're being evaluated and trained by a new
7 instructor pilot which is fresh out of the instructor pilot
8 course, so he's still developing his teaching methods and
9 instructing methods and, you know, all those things kind of, you
10 know, came probably -- came together with one another to, you
11 know, not help the situation as far as her instruction goes,
12 but --

13 Q. Does -- in your, in your opinion, did it seem as if the
14 standards had not been appropriately applied in order to ensure
15 that she was capable of being in an R01 level?

16 A. I questioned the fact that, you know, she has these
17 instrument tasks that you said she was satisfactory on and used
18 those to move her R02 -- didn't write up an instrument eval so I
19 came to conduct the instrument eval and she can't meet the -- and
20 it just wasn't -- you know if it had just been one task -- you
21 know if I've got more time in an aircraft -- if you don't fail a
22 task, I usually go out and will do it some more if I've got blade
23 time and, you know, it just wasn't a one task thing. It was, it
24 was, you know, an entire instrument ride from the planning aspect
25 all the way through the flight to the position, non-position

1 approaches. I mean she was just completely lost in the --

2 Q. Okay.

3 A. Aircraft and that's why I took the, you know, the measures
4 that I did with her records and designate her RO3 and basically
5 just restart her entire progression.

6 Q. So there are a number of different reasons why she might have
7 had some deficiencies even though she had officially passed some
8 of those stages, but regardless of the reason, what you're saying
9 is that it was clear by the time you saw her that she had the
10 weaknesses.

11 A. Yes.

12 Q. Okay, all right. How did she handle your intervention in her
13 qualification level and the remedial instruction and so on?

14 A. She definitely -- I think she handled it okay. She was, she
15 was in a difficult position as well. So I was -- prior I was the
16 Battalion SP and with the new Battalion commander coming, I was
17 like oh, now is a good time to get a new SP. So when I went to
18 Bravo Company my last 12 months, she was actually assigned to me
19 as my platoon leader. So, so she was being -- so we, we had a
20 little bit of friction between the two of us because, you know, I
21 was, I was going to appointments and I was not going to PT at 6
22 a.m. and she was trying to be a good officer, and her commander --
23 the company commander at the time was, you know, hey call Mr.
24 Haase and ask him why he wasn't at PT this morning.

25 You know I quite frankly told her -- I was like -- Captain

1 [REDACTED] or I think at the time it was Lieutenant [REDACTED] -- I was
2 like I understand, you know, you're doing what you're being told,
3 but I was like look, I'm not coming to PT in the mornings. I've
4 got two or three doctor's appointments a week. I'm trying to get
5 all my appointments in, get all the medical history written in for
6 retirement, and so me and her had a little bit of friction as is
7 just because she was always wanting to know where I was.

8 She wanted me to be in the office from 6 a.m. to 6 p.m., and
9 I said look, I'm at 23 years. I'm trying to get everything lined
10 up for me to get out of the Army. I'm here to fly stands evals
11 and do what I can as an instructor pilot but still help out but,
12 you know, we're -- the Army has always been my number one. You
13 know everything has been the Army. I'm kind of starting to
14 transition to -- you know, I'm getting out and figuring out what
15 I'm doing.

16 So, there was a little bit of friction between us just where
17 she was always trying to find the appropriate level of, you know,
18 knowing where I was and, you know, telling me be here, be there
19 and, you know, me also being an instructor pilot too.

20 So she was -- she handled okay the fact like hey, you're --
21 you know and I told her just quite frankly you're, you're well
22 below where you should be, and that's where I asked the commander
23 like hey, let me fly her three times a week and the blade hours
24 there just couldn't support it, and usually -- and at the time it
25 was due to aircraft maintenance.

1 Those companies put up many aircraft of their -- you know,
2 they put up the majority of the aircraft on a day for missions
3 sets at Belvoir, and so to take out an aircraft three times a week
4 for training, it's hard to do, so that's where I worked out hey,
5 let me take her to the simulator two or three times a week in
6 Annville (ph.) and work on these things, and that's kind of --
7 that's kind of what it became. We were doing car trips to
8 Annville a couple of times a week to do sim time with her, but
9 overall, I think she handled it well, but at the same time, you
10 know, she had another lieutenant there with her that's progressed
11 and moving on and so, you know, it's --

12 I imagine it's difficult to -- you know everybody in the
13 company knows what just happened to you. You've been downgraded.
14 You're now RO3. You were RO1, and you're supposed to be -- you're
15 in a leadership position, so I'm sure that was difficult on her.

16 Q. What was the simulator in Danville? What kind of sim was it?

17 A. It was the UH60 Alpha Lima sim. I don't, I don't remember
18 the actual model number of it, but it's full motion simulator.

19 Q. Okay. It's not just a flight training device?

20 A. No, it's full motion.

21 Q. Okay. What, what was her status when you retired?

22 A. I don't -- I honestly don't remember if I ever -- without
23 having access to her records, I don't remember if I got her back
24 up to RO1 or not or if she was still in her R progression. I
25 don't remember exactly. I had a lot going on at that time as far

1 as retiring and figuring out what I was doing the next chapter.
2 So I don't remember where she was when I actually went on terminal
3 leave.

4 Q. Okay. So let's see the record is here. So January 6th it
5 looks like -- well, it looks like she completed R03 training on
6 November 29, 2021. Oh, I'm sorry, November -- yeah, that's right,
7 and then she completed R01 January 6th and then she failed your
8 NVG stands ride (indiscernible) on February 17, 2022 and some
9 other things, and then she got back to R01 March 16, 2022. Was
10 that before or after you left?

11 A. March 16th of 2022? So I would have been there until October
12 or November I went on terminal leave.

13 Q. In 2022?

14 A. Yes, because I retired March of 23, so yeah, I was there
15 until October I believe.

16 Q. Okay. So you were around but you can't recall if you were
17 the one who got her back up to speed in the end?

18 A. I don't remember if I -- normally in a case like that where
19 let's say I, I find someone and, and I have issues with them. I
20 will re-train them. A lot of times what we'll do is I'll have
21 another instructor pilot -- an IP or SP -- evaluate her just to --
22 I've developed this, this rapport with her. I've flown with her
23 every day. Hey, you go ahead and take a look at her and, you
24 know, I would hand it over to the Brigade or something like hey,
25 do me a favor and go take her on a check ride and evaluate her to

1 ensure that, you know, I haven't gotten used to, you know --
2 standard is a standard but make sure you get a, get a fresh look
3 at her and make sure that she's meeting all of the, all of the
4 standards.

5 Q. Okay, and then -- so there were a couple of notes about when
6 she failed yours, she had 90 days to complete required training.

7 A. Yes.

8 Q. And then there was a commander investigation initiated that
9 granted a 30-day extension in March of 2022. She made it on March
10 16, 2022, ACMRL1 (ph.), and then there is no record until the
11 following January 2023 instrument evaluation SAT, and then she had
12 a successful stands eval in February 2023, and then she had a --
13 I'm not sure when she became a pilot in command. Do we have that?

14 UNIDENTIFIED SPEAKER: It's in the records.

15 DR. BRAMBLE: Okay.

16 UNIDENTIFIED SPEAKER: (Indiscernible).

17 DR. BRAMBLE: Yeah, because I want to tell you that because I
18 want to -- and I'm going through this because I want to ask your
19 opinion about something.

20 UNIDENTIFIED SPEAKER: You'll probably be able to read these
21 faster than I can. 11 January of 2024.

22 DR. BRAMBLE: So she was R011 January?

23 UNIDENTIFIED SPEAKER: No, that was her PC evaluation.

24 DR. BRAMBLE: Okay, PC eval.

25 UNIDENTIFIED SPEAKER: It was in conjunction with an APART

1 evaluation.

2 Q. Okay, so you brought her back to R03 in February 2022. She
3 made it back to R01 in March of 2022, and then she passed an
4 annual evaluation in February of 2023, so it's been a year almost,
5 and then she had a short medical suspension for two weeks that
6 March 2023, became a PC in January of 2024. Then she had a
7 temporary medical suspension that lasted five months and returned
8 to flying in August of 2024. So March to August of 2024 she was
9 not flying. Would you have any concerns about sort of the overall
10 progression there or that, that length of a period off given her
11 experience level or what are your thoughts on hearing that
12 timeline?

13 A. A temporary medical suspension could have been a number of
14 things but, you know, if you're, if you're medically suspended for
15 five months then you come back, you're going to be goggle un-
16 current, aircraft un-current. I'm going to have to readjust your,
17 your annual requirements as far as flight hours goes.

18 So the first thing that probably I imagine happened when she
19 came back out of that medical suspension is I'm sure an instructor
20 pilot probably took her out and conducted a goggle PFE to
21 establish both her goggle currency as well as aircraft currency
22 again and just to kind of see, you know, where is she, and then I
23 don't know if that fell on her A part window (ph.) or not. I
24 don't remember when her birth month was but, you know, they could
25 have rolled that all into an A part period or something.

1 But yeah coming back, not flying for five months, you got
2 recency and recency lasts a little bit longer typically the more
3 experience you have, so with her, you know, having 400 hours going
4 five months without flying, that's, you know -- it's very
5 detrimental to your, your abilities, but I'm sure she came back
6 and an instructor probably took her out.

7 Q. Okay. How many hours a month do you think somebody at that
8 level of experience needs to, to stay current? Not the
9 (indiscernible).

10 A. Needs or what the Army provides? The Army -- if you look at
11 -- so Belvoir is an interesting place. It's a fac two minimum
12 areas, so I haven't been on the books for a while, but if my
13 memory serves me correctly, I think it's 30 hours, 30 hours semi-
14 annually. So you take a pilot and tell me in a six months period
15 they only have to fly 30 hours?

16 Now there is a special exception where when [REDACTED] and [REDACTED]
17 [REDACTED] showed up, their first three years in operational assignment
18 I've got to give them FAC one minimums which 48 -- I still got it
19 -- where they've got to fly 48 hours semi-annually and within that
20 window so many of that's got to be goggles, so many in instruments
21 and, you know, initially that was three hours. I think we dumbed
22 it down or watered it down to 1.5 just because we couldn't get
23 instrument flights in and still meet the mission requirements.

24 So, you know, if you take that 30 hours every six months and
25 you divide that by six, I mean look at how many hours they've got

1 to fly a month, you know? Anybody that deals with aviation knows
2 that that's not now. Typically we fly way more than that. Look
3 at [REDACTED] hours compared to Captain [REDACTED] hours. You
4 know he was a Warrant Officer. He was an instructor pilot. He's
5 flying two, three times a week where a lot of times your, your
6 other side of the house, the officers, you know, they've got other
7 jobs, big jobs to do.

8 So they're flying once every other week, once three times a
9 week, you know every three weeks or four weeks and that's where
10 the -- that huge separation of hours builds where, you know, if
11 you took my hours in aviation -- and I was kind of a low-time guy
12 -- and you compared it to a Battalion commander, he's got less
13 than half of what I've got just because they don't -- we use the
14 term technical experts for Warrant Officers which is another way
15 of just saying cheap pilots, but it's, it's -- the hours that --
16 the minimum hours that aviators must fly in the Army is, is not
17 enough in my opinion to maintain proficiency.

18 But typically we get more, but sometimes we don't if blade
19 hours get cut due to things in the economy. There are times where
20 you're flying 30 hours every six months, so it's definitely tough
21 especially for junior aviators to maintain proficiency at 30 hours
22 or 48 hours.

23 And that's kind of one of the reasons like we talked about at
24 lunch four years ago when I first got to Belvoir there were no
25 first term aviators. We didn't have lieutenants. We didn't have

1 Wls because -- just because the OP tempo and the airspace in that
2 area, but it's changed over the last couple of years because of
3 manning (indiscernible) and mission requirements.

4 Q. Okay. What was [REDACTED] personality like?

5 A. She was highly-driven. You know she definitely wanted to be
6 the best of the best and, you know, she was -- you know she --
7 even the friction that we had with, you know, her trying to always
8 know where I was and stuff and, you know, with me -- you know, I
9 had to ensure her like hey, none of this stuff is personal. This
10 -- I'm, I'm an instructor but I'm trying to get you to the
11 standard where you need to be.

12 Even with all the difficulty she was going through with
13 flying, she was -- you know she wanted to be the best officer in
14 the Army and the best pilot she, you know, she -- I definitely
15 knew how she got where she got but, you know, if you take me back
16 several years ago, I just don't believe in my opinion that some
17 people are natural pilots. Some people are natural doctors, and
18 she just -- she had a lot of strengths but her strength just --
19 she just wasn't a -- she just didn't have -- she wasn't a natural
20 aviator. But a great officer. She was a great junior officer,
21 but just -- she just wasn't, you know, the best pilot I had ever
22 seen.

23 Q. Okay, all right. How about her communication style in
24 flight? Anything stand out there?

25 A. Nothing abnormal. You know a lot of times, you know,

1 communication in the aircraft we will typically handle a lot of
2 it, especially in busy airports or busy airspace areas, and at her
3 hour level, it's not abnormal for them to struggle with, you know,
4 Comms outside the aircraft and also inside the aircraft. But, you
5 know, one thing that just stands out to me is just that constant
6 asking of whys of things that just weren't important. I just
7 remember always having to -- you know it would get to the point
8 where I just tell her like I don't care about that. I just -- it
9 has nothing to do with our flight, safety, you know, emergency
10 procedures. It's outside of my sphere of control as an aviator.
11 I don't, you know --

12 Q. I guess that's where I came to the question of did it seem
13 like she was getting fixated on those kinds of things at the
14 expense of the more important information?

15 A. Yeah, probably and fixation is something that, you know,
16 happens, you know, with all kinds of -- (indiscernible). It's
17 something that you just have to learn to do as an aviator. You go
18 from Mike model to Lima (ph.). You fixate on the steam gauges
19 because you just can't look at it and pull that information as
20 quickly. So, you know, fixating on the whys were probably one of
21 the hinderances on her spatial awareness, I guess, but, you know,
22 that, that was also two years ago. So where she was, you know,
23 when she made pilot commander here recently, it's been, you know,
24 I don't know.

25 Q. Okay. How prepared was she for her, for her flights with

1 you?

2 A. She definitely was taking them serious and would show up
3 prepared, and then we'd go through, you know, flight planning and
4 emergency procedures and stuff, so she definitely was putting in
5 the effort. I remember her carrying around a notebook and she had
6 pages and pages and pages of notes where she would -- you know she
7 would basically write everything out, you know, everything we
8 talked about so, you know, you could see she was putting in the
9 effort. She would go home and basically be copying the Dash-10
10 (ph.) into her notebook.

11 So she was preparing, you know? She was putting in the
12 preparation and stuff. It just -- she spent a lot of time on
13 things. You know I was always having to focus her attention on
14 what's important. Let's just, you know, tell me your, your
15 emergency procedures, your operating limits and, you know, basic
16 flight plan - instrument flight planning. We'll save the
17 engineering stuff for, you know, later once we, we get through
18 these early requirements.

19 Q. Okay. Do you have any knowledge of her volunteer activities
20 as a White House social aide?

21 A. No. I heard about that, but I think that might have occurred
22 after I had already left. I never heard that prior.

23 Q. Okay. Any recent events in her life at the time that might
24 have been a source of stress?

25 A. I don't know. I didn't really get into her personal life at

1 all.

2 Q. Did her staff officer assignment impact her ability to
3 maintain proficiency?

4 A. I don't know particularly for her, but typically anytime the
5 lieutenants or captains went to the staff, that's usually where --
6 their best time flying was as a platoon leader and accompanying
7 commander. When they go in between that into staff or staff
8 assignments, usually it's a challenge for them balancing their,
9 you know, their staff jobs with flying. That's usually where the
10 big split in hour levels occur between the warrant officers and
11 the lieutenants and captains and field grade.

12 Q. Okay. How was her traffic awareness when flying in the D.C.
13 area?

14 A. You know I can't remember any -- I can't remember
15 particularly any actual flight with her having a -- you know I
16 never had like a near miss or anything with her, so I don't know
17 for, you know, any.

18 Q. She typically call out the traffic verbally if you guys had
19 -- were asked or informed about traffic by ATC?

20 A. Normally -- and I don't know particularly her, but normally
21 with a PI with her experience level, usually they're focused
22 flying, and usually as an instructor pilot I'm monitoring the
23 radios and monitoring their performance, and I'm usually --
24 they're outside during VFR flight but so am I. You know I'm
25 building that spatial awareness. Every airplane I hear on the

1 radio I know exactly where they are and I'm instructing like do
2 you hear that helicopter come in on Route 4 southbound and we're
3 northbound. We're going to meet here. But I don't remember any
4 issues with her being able to spot traffic, for her hour level
5 anyway.

6 Q. Okay. If you stay below the max altitudes on the VFR routes
7 (ph.) downtown in D.C. over the Potomac, was it your understanding
8 that you would be safe from arriving commercial traffic?

9 A. Just for my knowledge of, you know, the Helo (indiscernible)
10 routes and why they, why they designated these associated
11 altitudes like 200 feet with that close proximity to the runaway.
12 I also know the airplanes are crossing the threshold of that, and
13 that's a very near altitude, and that's why I always taught that
14 200 is the max.

15 And we talked about it at lunch that, you know, people who
16 fly at 200 -- I would teach like if you sneeze, you're at 201.
17 You're too high, so fly 100, fly -- I -- they -- a lot of times
18 they interpret that 200 -- that's the altitude flown rather than
19 that is the maximum. Fly at 100 if you can. Fly at 125, but if
20 you fly 200 and you're at 201, you're too high. So -- but yes,
21 between that altitude and ATC, then yes, I would -- other than
22 directly in line with the approach on runway 33, yes, I should
23 remain clear of airplanes I would assume. I think that's kind of
24 the common assumption really.

25 Q. All right. What if you were crossing and you approach into

1 33?

2 A. So 33 -- I know normally ATC would not let me on that route
3 when 33 was landing but it's a very -- it doesn't happen that
4 frequently from -- at least when I was flying that route that 33
5 was in use, and normally when it was, they would not let me down
6 that route or they would require us to hold at Hains Point so, you
7 know, I know that from that experience that landing in runway 33
8 there is obviously -- you know we're getting too close to one
9 another. So, I don't think I ever went down that route with 33 in
10 use just because they typically -- they never let me go down that
11 route when 33 was in use or I would have to hold a Hains point, so
12 I would assume that, you know, yeah, we're in a place to make
13 contact.

14 UNIDENTIFIED SPEAKER: So, if they had you hold at Hains
15 Point, does that mean that 33 might have been in use?

16 MR. HAASE: Well, I would hear from the radio traffic that
17 yes, that 33 is in use, so I held at Hains Point a few times my
18 flying time there at Belvoir, but normally what would happen is I
19 would request my routing and they would deny me that route and
20 they would just tell me, you know, 33 in use opposite lane in
21 traffic, you know, cannot use, ask me for an alternate route.
22 Normally they take us across Wilson Bridge and I think Route 4 and
23 around to go up towards Andrews, but normally they wouldn't -- I
24 don't recall a time they ever let me use that route with 33 in
25 use.

1 UNIDENTIFIED SPEAKER: Why did they have you hold at Hains
2 Point then?

3 MR. HAASE: Because I might have checked in at Cabin John and
4 so they do one of two things. If I requested that route
5 southbound to say like Fort Washington to go back home, they would
6 either deny me or they would clear you as far as Hains Point, have
7 you hold there. The 33 would land and they let you continue
8 southbound to Fort Washington because usually we'd go down to Fort
9 Washington and from there we would hit the river and go back home
10 for the night.

11 UNIDENTIFIED SPEAKER: Okay, so --

12 MR. HAASE: So it would either they deny the route or the
13 best case is they let you get as far as Hains Point and hold you
14 there until the landing traffic arrived because -- but the
15 aviators there at Belvoir see almost all the airplanes are landing
16 runway 1 so you get very used to them coming down the center of
17 the river versus where 33, they're coming out over and then in for
18 33, so.

19 Q. Okay. How many times would you say you flew that VFR route 1
20 to 4 transition over the Wilson Bridge?

21 A. Hundreds if not over 1000, all the time several times a day.

22 Q. Was the -- what were the step-up altitudes as you went south
23 in that direction from 200 to --

24 A. So you're 200 or below upon crossing Wilson Bridge which is
25 the mandatory reporting flight, and then from there to -- I don't

1 remember if there was a name associated with it -- there is a T
2 intersection in the river. So you go from 200 to 600 max, and
3 then from that river intersection to Fort Washington was 1000 and
4 below I believe.

5 Q. So you climb above 200 south of the Wilson Bridge?

6 A. South of the Wilson Bridge, yes.

7 Q. All right, all right. Did Washington Tower always give you
8 an altimeter setting when you check in going through that area?

9 A. I believe so. I don't remember ever, ever having an issue
10 with them getting my initial contact. I think I normally got it
11 when I asked for clearance into the class Bravo I believe. I
12 don't remember there ever being an issue where I wasn't getting
13 it.

14 Q. Okay, and did you ever reference your radar altimeter when
15 you were flying through there or was it all Baro alt?

16 A. Oh, at those altitudes always use my radar altimeter
17 especially under goggles.

18 Q. And what altitude did you target when you were going through
19 there in the areas where it's 200 max?

20 A. I was taught to have a buffer, so I was usually between 150
21 to 175 feet. I tried to stay away from 200 just to -- especially
22 in a Lima model, you know? Anybody that's going to fly there at
23 200 -- and if you're going to -- if you're going to ding them
24 every time they go over 200 in a Lima model, you know, they're
25 going to be too high, too low.

1 To maintain exactly 200 feet in a Lima is quite difficult
2 wherein in a Mike model, I can roll in radar alt hold to the water
3 at 200 feet or 199 and, you know, the Mike model will do that
4 where a Lima -- the collected friction and stuff is not too good
5 and she's got a young pilot that doesn't understand pitch control,
6 maintaining at exactly 200 feet over the water is challenging. So
7 between 150 and 175 is probably where I would stay.

8 Q. Okay. If you were with a student going through that area and
9 they, and they sort of ballooned up from 200 to 300, sort of what
10 are the common mistakes that might cause that to occur short of
11 altitude deviations of up to 100 feet or so?

12 A. That can be any, any number of things. It can be poor use of
13 the trim system in the aircraft. It can be, you know, I'm doing
14 something -- changing up a frequency or putting in the next GPS
15 way point. They glance in to see what I'm doing and, you know,
16 accidentally change pitch, but usually it's just -- it's
17 management of power and pitch is usually the big issues with the
18 Lima of maintaining altitude.

19 Q. Okay, so in that case they'd either be pulling in too much
20 collective or allowing the pitch to increase?

21 A. Yeah. They would either have too much power applied or they
22 had allowed the pitch of the aircraft to pitch up on them a little
23 bit and start a climb, so they would be -- that was one of the
24 things we'd teach as instructors. Look, we're high but we're slow
25 what just happened.

1 Q. Is there anything about turning that makes the aircraft tend
2 to climb?

3 A. Yes. So doing a straight, you know, at 200 feet in a Lima
4 model and we're going to try to maintain 200 feet and turn at a
5 90-degree turn say southbound there at Hains Point then, yes, it's
6 -- you know the aircraft both climbs and descends in a turn. So
7 say I'm flying (indiscernible) a right turn, I would imagine the
8 nose would want to tuck away on them and I wouldn't be surprised
9 if they descended there but, you know, they compensate with power
10 and started to climb.

11 Q. What about a left turn?

12 A. A left turn? Correct me if I'm wrong but I think a left turn
13 I've got to climb and I descend in a right turn.

14 Q. Why, why would you get a climb?

15 A. Just the way the lifting forces on the aircraft work, but I
16 mean it's, it's completely possible to do a straight level turn
17 but it requires inputs -- coordinated inputs. You know I start a
18 turn. I've got to put a collective input in and maintain my pitch
19 and watch my air speed and -- it's definitely something that, you
20 know, maintain a straight level turn at 100 knots at 200 feet, you
21 know, it, it takes, it takes some practice to be able to do that.

22 Q. Okay. But generally speaking, the tendency is to -- if you
23 don't compensate, the tendency is to climb going left and descend
24 a little bit going right?

25 A. You know I don't know if I want to go -- that may not be 100

1 percent correct. It's been quite a while since I've flown a
2 helicopter, but there is a tendency for the aircraft to climb or
3 descend in a turn and whether or not I have that right -- I'm a
4 little rusty.

5 Q. All right.

6 A. But yes, it is not normal for -- the aircraft is not going to
7 stay level for you in a turn unless you're flying a Mike model and
8 you're coupled --

9 Q. Um-hum.

10 A. Where it's then putting in those inputs for you.

11 Q. Um-hum. How would you manage the trim (ph.) if you had -- if
12 you were trying to fly at 200 feet at 100 knots and you're -- you
13 know you need to make a slight turn?

14 A. So an experienced Alpha Lima pilot, what they're going to
15 have is they're going to have all their friction set, and then if
16 I'm going to make a turn, I'm probably going to just do it against
17 the force gradient monitoring my air speed versus my pitch. So
18 I'll push in the right turn against the force, put in a little bit
19 of fore aft cyclic or cyclic as required to maintain my air speed,
20 and then when I get on my heading (ph.), I'm just going to relax
21 that friction and kind of let the aircraft roll out back on course
22 at altitude with very small adjustments made on the cyclic. In
23 theory if your power is set and stays set in your helicopter, it's
24 really nothing but pitch changes at that point --

25 Q. Okay.

1 A. As long as all the environmental conditions stay the same.

2 Q. What, what happens if you press the trim release?

3 A. Well, that's, that's something that we -- you have to learn
4 with experience. If you push that, you just lost everything
5 that's helping you as far as trim in the aircraft. So if you hit
6 the trim release, you've just now lost all assistance in, in your
7 cyclic that the aircraft was giving you. So usually that would
8 result in a jerk of the aircraft, and then as you release, you
9 have now re-established all of your force gradients in your
10 aircraft.

11 Q. What would typically happen in terms of the aircraft's
12 behavior if you did that?

13 A. It just kind of depends on when do you push that. What
14 profile is the aircraft in. So if I'm in a turn and I push it,
15 normally you kind of feel a slight yaw or jerk in the aircraft
16 because if you're entering in a turn in the force -- against the
17 force gradient of the trim and then you press it, that's now a
18 release. So the pressure you had in the cyclic is far too much
19 now that the -- that pressure is released and now you've just
20 over-controlled the aircraft so it's probably jerked to the right
21 and you're trying to correct the left.

22 I mean I did a bunch as a new Lima pilot because I don't
23 remember ever teaching you when you push that button and the
24 flight is going. I always had to question like hey, when should I
25 push this, and I had an experienced aviator that said, you know,

1 all the helicopter crashes imagine their finger was on that
2 button. Don't ever push that button, and I was like okay, I won't
3 ever push the button.

4 Q. Okay. Did you use an iPad with foreflight to maintain
5 awareness on the low altitude via far routes?

6 A. Always, yes, especially in the Lima.

7 Q. And did you check out a stratus unit (ph.) typically to get
8 the ADSB in?

9 A. It was required in accordance with the SOP (ph.) that was
10 there.

11 Q. All right, and where did you carry the -- those two items --
12 the stratus and the IPAD?

13 A. So, I used the leg strap knee board combination for my IPAD
14 so it was always on my leg, and then the stratus was usually
15 mounted in the lower front windscreen with a suction cup coupled
16 to my iPad for traffic.

17 Q. Okay. Did you usually have the traffic function up on the
18 IPAD?

19 A. Always, yeah.

20 Q. When you're flying through that area, that one to four
21 transition, did you have the bandwidth to check that IPAD for
22 traffic, or did you have to be eye out too much?

23 A. No, I had the ability to check it. I mean especially as the
24 one not on the controls. It was just kind of part of my cross
25 scan -- you know, air speed, altitude, power. You know I would

1 glance down at my knee where it was just kind of part of my check.

2 Q. Okay, and then if air traffic called out a target to you and
3 you're looking for it, did you utilize the IPAD to help locate it?

4 A. I think that, that would depend on probably, you know,
5 distance. If ATC were to call out an airplane at my 10 o'clock,
6 you know, one to two miles, I'm probably going to look outside
7 first, or if they tell me, you know, I've got an airplane 4000
8 feet six miles down the river, number two to land one runway one,
9 I would probably use the both of the two to help deconflict. Like
10 I see three airplanes and then on my IPAD I would use that to
11 deconflict, but I think it would just depend on the circumstances.
12 If it's a close aircraft, I'm probably, you know, looking outside
13 initially I would imagine.

14 Q. Um-hum. Would you see it as advantageous if, if a traffic
15 display like that was mounted on the instrument panel, or was it
16 just as good having it on your knee?

17 A. I think once you're, once you're custom to using it, I think
18 it's just as good on your knee, but I mean I could argue that, you
19 know, if you had it at eye level, it's probably more advantageous
20 because not having to look quite as down so I still got the
21 windscreen outside. So if, if I had the option of two, I would
22 mount it on the inside of the aircraft so I could maintain spatial
23 awareness outside and scan it as well.

24 Q. You would mount it on the panel?

25 A. If I could, yeah.

1 Q. Okay.

2 A. And some do. Some do have the suction cups and do mount
3 them.

4 Q. Do they have that capability in the Mike?

5 A. The Mike model, no. There is no -- unless things have
6 changed, there is no -- you don't see the traffic on the moving
7 displays or didn't when I was there.

8 Q. Okay. How far west of the East Bank of the Potomac River
9 would you have to be to think you're too far off Route 1 or Route
10 4, sorry, next to the airport?

11 A. So the way it's depicted on the Helo chart (ph.) is basically
12 the river, but what -- when I was there, what we always did and
13 taught was it was the Eastern shore for many reasons. One for
14 traffic. You got the airplanes flying down the middle of the
15 river. So you, you hug the Eastern shore, one, to avoid traffic,
16 but two, if I have an engine failure and I'm at 200 feet, I'm not
17 going very far.

18 So if I'm right along that shore bank, I've got a little bit
19 more options. So we flew right over the shore with the exception
20 of right there by the water treatment plant because there is a
21 bunch of bird activity right there. So as far east of the river
22 as possible.

23 Q. Okay. So let's say you're flying along Route 4 and the tower
24 calls out traffic, and I know a lot of times they're these visual
25 separation to maintain --

1 A. It's a requirement in that area or you'll get thrown out of
2 that airspace because they're just so busy and they're talking to
3 so many aircraft, and that call becomes kind of ridiculous because
4 let's say you're traveling northbound on that river. You know
5 I've got an aircraft 6000 feet, five miles behind me. The
6 expectation is when ATC calls that airplane up, I've got to call
7 aircraft in sight and request vis sep if it's behind me.

8 Now my crew chief is doing his best possible to look behind
9 us and see it but, you know, a lot of times -- and when you're
10 northbound, the airplane is overtaking you at a much higher
11 altitude, but that request vis sep when I was there was -- I mean
12 it was - it's a requirement. You got to, you got to put it out
13 just because there is just so much traffic there that you've got
14 to, you know, take that load off of ATC because there is usually
15 two of them and there is a bunch of helicopters out there.

16 Q. Is there pressure to call it in sight before you actually
17 have it in sight?

18 A. Yes. I mean like I said, I've, I've been traveling
19 northbound up the river and I'm being given traffic at 6000 feet,
20 four miles behind me and, you know, ATC is looking for me to make
21 that request vis sep call so they can, you know, now move on, and
22 the aircraft is at 6000 feet. It's behind me. I'm at 200 feet
23 AGL in a helicopter or 175 feet AGL (ph.). You know I'm still
24 looking for it. Now if it's nighttime, I can probably make out
25 their landing lights, but during the day, we're, we're probably

1 not actually seeing the aircraft until it starts to overtake us.
2 So that is kind of the norm there.

3 Q. Okay. Let's say you're headed south on Route 4 and you're
4 landing 33 -- you have inbound traffic at RJ (ph.) landing 33 and
5 maybe crossing the Wilson Bridge. You know if they ask you -- if
6 they call that out, I mean are you, are you going to say traffic
7 in sight if you're not sure what target it is?

8 A. So, I can't recollect a time I was ever approved to go on
9 that route with 33 traffic in sight, but with my experience on
10 that river, what the pilots typically see is airplanes landing in
11 runway 1. So I could easily see the confusion where I'm heading
12 south on that river, they call out traffic. I look straight down
13 the river. I got goggles on, looking underneath my goggles and I
14 see a landing light coming in for runway 1 and I could easily see
15 where I don't look, and I don't know if the ATC call gave out a
16 clock direction in the distance or not, but I could easily see
17 mistaking traffic down the river for runway 1 and missing that 33
18 traffic. But again, I don't -- I was never allowed to go down
19 that river for my memory with 33 in sight so I never actually, you
20 know, experienced that, but I could see where the confusion could
21 easily occur. Unless I was given a direct do you see the aircraft
22 at your -- it's at my 10 o'clock two miles, then that would direct
23 my attention away from, you know, my 12 o'clock down the river, so
24 -- and I don't know how that call went.

25 Q. Okay. So there is two possibilities here that you're

1 outlining. One is that -- actually you didn't outline this, but I
2 suggested the possibility that someone might call traffic in sight
3 before they have it in sight and then the second one that you're
4 describing is that you might call it in sight but mistake the
5 traffic coming to runway 1 for traffic that's come -- that is
6 called out that's coming to 33.

7 In that scenario -- I mean can you imagine a scenario -- I
8 shouldn't ask that. If you were approaching the approach path for
9 33 and you were told by ATC that you had an RJ that was going to
10 be landing in that area at some point, would you, would you
11 immediately say traffic in sight and request visual separation if
12 you weren't sure which target it was?

13 A. I think that would depend on the call from ATC. Are they
14 giving me a clock direction at a distance to that airplane, or are
15 they just, you know, telling me there is landing traffic for
16 runway 33 at a distance? Because as long as they're giving me a
17 clock direction and distance, I'm going to be either landing in
18 runway 33 and --

19 It would just depend on the call that I got from ATC I
20 imagine, but if -- but, you know, instinctively if I'm being told
21 that there is an airplane landing at runway 33, the first thing
22 I'm doing I'm initially looking down at my HSI looking for the --
23 you know if they're landing at runway 33, you know, looking for
24 the reciprocal of that going okay, this is where the aircraft
25 would be coming from, and that's where I'm looking anyway, and

1 then, you know, mirroring that up with my IPAD to see where
2 exactly I'm in reference to 33.

3 Q. Um-hum.

4 A. But I guess it would depend on the call from ATC, but if
5 they're telling me there is an airplane getting ready to land at
6 runway 33, do I see the CRJ in sight? You know if I'm flying
7 southbound on the river and I got three or four airplanes lined up
8 to land with their landing lights on and I've got goggles on and
9 I'm looking underneath my goggles, to me it's just a big glow of
10 light at that point. So, you know, it's very difficult. You know
11 I can't tell you what a CRJ is versus a, you know, a 747, you
12 know, down the river with their landing lights pointed directly at
13 me.

14 Q. Okay.

15 A. But, you know, if they're close and they're landing at runway
16 33 and I'm in proximity and they're giving me a, you know, a 10
17 o'clock three miles, then that's where I'm looking, and as long as
18 I have that aircraft in sight -- I mean that could happen
19 anywhere, you know? Do you have the so and so in sight? Yeah, I
20 have it in sight, request visual sep. There is no real
21 confirmation ever I think that you got the correct airplane in
22 sight other than we don't run into each other I guess.

23 UNIDENTIFIED SPEAKER: Are you familiar with the path - the
24 visual approach path that the airlines use if it's -- if they're
25 landing 33?

1 MR. HAASE: So with all my time flying there, I wasn't until
2 this accident, and I looked at the RNF 33 (ph.) and I was kind of
3 shocked at how far inland up there near Anacostia that takes them,
4 and I quickly understood why I was not allowed to fly southbound
5 on that river when I was there, because of that -- because, you
6 know, I've got an airplane coming in over the land. I'm low and
7 I'm dealing with an illusion of confusion with ground lights,
8 airplanes in the -- I think it was like a 41 or 43 degree bank for
9 the RNF left turn, so I'm now seeing, you know, the lights of the
10 right wing and maybe I'm confusing that with ground lights of the
11 city area there.

12 So, I never ran into that situation but, you know, if it's
13 not -- and this is my opinion - but if it's not a procedure where
14 the FAA does not allow the helicopters go southbound on that river
15 with landing on runway 33, that should be put in place already if
16 not.

17 Q. Okay. What do you, what do you think about flying through
18 that area, Route 4 or 1 to 4 transition from the north as part of
19 a NVG stands eval? Would that be an unusual choice to include in
20 the route for the training flight?

21 A. So for the things that I have to do for the NVG stands eval,
22 the majority of those are done in the traffic pattern, you know,
23 other than conducting inadvertent IMC procedure, but part of the
24 NG PFE (ph.) is to also re-establish goggle currency and to do
25 that I have to fly a minimum of 1.0, so it's very normal to finish

1 the NG PFE maneuvers within -- if they're doing well and
2 everything is going, the only traffic in the area at Belvoir
3 (ph.), I could probably get it done in half an hour, but I must
4 fly a 1.0 to re-establish their goggle currency.

5 So it's very common, hey let's do a lap around the D.C. Helo
6 routes and let's get that hour in, or maybe maintenance has told
7 me I need to fly 2.0 to put into a window. So we fill that time
8 with something and, you know, their, their area is the D.C. Helo
9 route, so they jump on those to kind of, you know, positive
10 control air space practicing Helo routes that's part of their
11 mission set. So it's not necessarily part of the goggle PFE but
12 it's, it's usually used to fill that one-hour requirement.

13 Q. So it wouldn't be uncommon?

14 A. It's not abnormal, no, not at all.

15 Q. Okay. If you were doing an evaluation at night with NBGs and
16 you included that part -- that one before transition in your, in
17 your route of flight, and the evaluatee (ph.) exceeded the 200 feet
18 and got to say 300 feet on the -- on -- sort of in the vicinity of
19 Hains Point say, would you consider that ride unsat?

20 MR. HAASE: Yes, because they just now exceeded the Army's
21 appropriate common standards of plus or minus 100 feet on the
22 depicted altitude for a Halo route.

23 Q. Okay. How about if you were approaching cabin John and your,
24 your plan was turn left. So say you're coming from the north --
25 northeast or something and you're supposed to turn left at cabin

1 John and then start going down the Halo routes -- at least that's
2 what you briefed.

3 A. Um-hum.

4 Q. What if the evaluatee accidentally turned right toward Great
5 Falls instead of downtown? Would that be unusual?

6 A. It would definitely be a discussion point of hey, why did we
7 just turn right? We were supposed to be turning left southbound.
8 You know it could be part of the pilot's dead reckoning and
9 navigation so you could, you could probably find a task to -- if
10 you really wanted to get into it and make the route unsat.

11 Normally that would -- it probably wouldn't fail a route for
12 that. It would definitely be a teaching point like -- because
13 everybody has misunderstood a call at some point or a time or
14 another but, you know, why did we just miss that turn? Do we plan
15 another route? Do we have the route planned on our IPAD or --
16 yeah, it would, it would be a definitely a discussion issue of
17 hey, why did we just turn right instead of left at Cabin John?

18 Q. Okay, all right. If you were, if you were going into an
19 offsite landing or an unimproved landing zone somewhere during
20 this same ride and the first attempt wasn't successful and you
21 decided to wave it off and try again, and you demonstrated the
22 landing there, and then you offer them a chance to repeat the --
23 or to perform the landing again. If they passed on it and said
24 they were uncomfortable attempting it, would, would that cause the
25 ride to be unsat?

1 A. No, because we try not to -- like we have a saying go arounds
2 are free in the helicopter community, so the last thing I want to
3 teach is if you don't make this landing, I'm going to fail you,
4 you know? If you're, you're making a, you know, a tight turn in a
5 dark environment over a bunch of high trees on a steep approach,
6 you know, then yes, I'm going to ask you do that approach and if
7 you can't, then there is a couple of ways. I may come around and
8 demonstrate it. Maybe I would get on the controls with you and
9 assist you on the controls.

10 But if they came around and they did it to standard but said
11 hey, I'm comfortable with this, then that kind of goes into the
12 proficiency. Like, you know, when you, when you get -- we talked
13 about the 30 hours every semi-annual period, you know, something I
14 used to harp on is make good use of that time.

15 It's very easy to take an hour flight and go do a lap around
16 the Halo routes. No one wants to do the challenging hard stuff,
17 you know, plan a, you know, tactical flight -- a terrain flight
18 going to land in a bunch of tight LZs at nighttime with goggles on
19 and some dust, but those are the skillsets that you've got to
20 practice to be proficient in.

21 So, I wouldn't unsat them for that if they were able to do
22 the maneuver to standard even if they had to do a go around and I
23 even had to demo one for them. I would -- as long as the end
24 result was they did the maneuver to standard and I had the time to
25 do it, I would still -- but I would say hey, you really -- the

1 next time you're on the flight with a good PC, don't come up with
2 a plan to go file a D.C. Helo for an hour. Go brief, you know,
3 NVG terrain flight and go, you know, go get a little uncomfortable
4 and get better at this. This is -- I mean this is what you do in
5 a helicopter. You land in LZs in the middle of nowhere outside of
6 Belvoir so --

7 Q. But what if you abort the first time and then you demonstrate
8 it and then you offer them an opportunity to do it, and they say
9 they're just not going to try it?

10 A. Is this during an evaluation flight?

11 Q. Um-hum, and so they haven't demonstrated the maneuver.

12 A. So, I'm trying -- this is -- let's see terrain flight
13 navigation -- I mean that's part of their R02 tasks is terrain
14 flight and being able to, you know, land in the LZs. So if it was
15 described -- and I'm not 100 percent certain, but if it was in the
16 ATM as an actual task and had a task number, and they were not
17 able to complete said task and maybe go to an alternate landing
18 site then, yes, that would have probably been an unsat.

19 Q. Okay. So an acceptable alternative would be you're able to
20 go to another landing site and demonstrate it.

21 A. Yes, but if it's an actual task and has a task number
22 associated with it, I got -- I remember terrain flight, terrain
23 flight navigation. I just don't remember actually getting into an
24 LZ. I'm sure it's part of that task, but I'm not 100 percent
25 sure, but yeah, if it actually was defined by a task number that

1 they must do and they were unable to do it, then yes, I would
2 unsat that task and then send them up for re-training depending on
3 what kind of ride it was, of course.

4 Q. Um-hum. What if they did all of those things? They, they
5 had difficulty with the LZ (ph.), they turned in the wrong
6 direction Cabin John, and they got to 300 feet in the 200 area on
7 Route 14?

8 A. So now all those things combined, that's a, that's a big
9 problem. You know one, one of those on a, on a flight total, you
10 know, is a pilot mistake and we can talk about it and fix it, but
11 if you're making all those mistakes on one flight then as an
12 instructor pilot, we've, we've got some -- you probably need some
13 more time with, with some instructors or maybe more flight time in
14 general, but definitely going to throw up some red flags.

15 Q. What's the likelihood that you would grade that flight unsat
16 if all those things happened?

17 A. If those were three using their records, then the overall
18 flight would be unsat. There is an issue with the grade slips.
19 Is it a 4507? God, man, these numbers I can't get rid of them.
20 So 4507 there is grade slips of all the tasks that you got to do,
21 and one thing -- and Bravo Company had the same issue.

22 So, let's say you have 20 tasks that you're grading as an
23 instructor pilot, and of those 20 tasks you get two U's and the
24 rest S's. The crazy thing is there is nowhere that says how many
25 U's it takes for the overall flight to be an S, and one thing that

1 I learned as an instructor pilot was -- and this is different. So
2 if we go out and I do 20 tasks and I get two U's, it's not unheard
3 of or uncommon to be marked SAT for the ride where I was later
4 taught that if you get one U, the overall ride is an unsat because
5 from there I can, one, say the pilot needs more time, but also
6 focus on hey, we need to train these deficiencies and there is no
7 book.

8 At least when I was in the Army, there is nothing that says
9 if you get 25 percent U's, it's a failure. If it's a one U, it's
10 a failure. It doesn't say. It's kind of instructor pilot -- you
11 know like oh, there flight was pretty good, but they screwed this
12 one thing up. I'm going to count the actual flight an S even
13 though this one task was a U.

14 Now I have to go back and re-train that one task until that
15 task must show an S, but in their actual flight records, I could
16 put the overall flight as an S where that's not what I learned
17 later and that's what I didn't teach. If you get one U, you're an
18 unsat for the whole flight and then, you know, we'll go back and
19 revisit that task and then throw in some additional tasks more
20 than likely, but yeah, for that many tasks failure, the ride would
21 have been an unsat for sure.

22 Q. So initially you thought it was instructor's prerogative in
23 terms of how many U's mix and overall unsat, and then later you
24 learned that one U should be an unsat. Where did you learn that?

25 A. From Battalion SP prior to me that mentored me. We had --

1 there was kind of a similar situation -- a pilot that was a
2 potential for a flight evaluation board and he was looking at my
3 records to develop his folder to put this pilot up for an FEB
4 (ph.), and he said I got no grounds to stand on because you've
5 given us aviator S's, and I was like, yeah, but they failed these
6 tasks and he's like yeah, but you gave them an S for the overall
7 flight.

8 And from then on, I changed to if you get a U, you're a U for
9 the day. It benefits both the pilot but also for the
10 recordkeeping for the stands shop. If this pilot becomes an
11 issue, then, you know, I'm not saying they were satisfactory. I'm
12 saying hey, this U -- you know and if you're either able to
13 retrain and the Army gives you 90 days to retrain that, that task
14 or the RO status then fine, but if not, you've got the paperwork
15 trail -- the documentation to show like hey, we've got, we've got
16 some problems.

17 UNIDENTIFIED SPEAKER: What's it take to get sent to a flight
18 evaluation board?

19 MR. HAASE: Out of my time I didn't go to one, so they're
20 very, they're very rare that they actually occur. It's very, very
21 seldom.

22 UNIDENTIFIED SPEAKER: And you were mentioning how you were
23 sort of trying to lay the groundwork to support that for [REDACTED]
24 when you saw her weaknesses. Did I get that right?

25 MR. HAASE: So -- yes. So it's a goal of mine as an

1 instructor pilot to get you to the standard and get you there to
2 B, but I also know that I can't show up to a flight evaluation
3 board and I've never been to one but I've heard horror stories.
4 If you show up to this and they ask for their records, you know,
5 they're going to say the same things. Well, you gave her S's or
6 them S's and they usually, usually --

7 What I've heard when you go to the flight evaluation board,
8 usually the ones that get, you know, harped on the most is the
9 standardization pilots because of their poor recordkeeping and,
10 you know, they've been flying for five years. How is this, you
11 know, their problem and not your problem?

12 So, I was trying to build that paperwork trail where in the
13 future this becomes an issue you've got, you know, these things in
14 this documentation trail and, you know, hopefully it doesn't.
15 Hopefully as -- because part of an instructor pilot, you kind of
16 feel like you're a failure if you can't train these people to the
17 standard. Is it, you know, am I, am I not able to instruct or
18 teach?

19 Q. So, how many times do you recall having to kind of start
20 laying that groundwork for a student out of all of those students
21 that you trained there at 12th Battalion?

22 A. She's the only one for 12th. I think in my entire flying
23 career, twice.

24 Q. Okay, and how many students would you say you, you taught
25 there at 12th?

1 A. Hundreds because I taught the unit plus we started the
2 rotational units coming through and I had to train all of their
3 pilots on the D.C. Helo routes and the mission sets. I don't have
4 an exact number -- hundreds and hundreds of people.

5 Q. Okay. Let's say you simulated during an evaluation flight
6 like this. You simulated a stabilator (ph.) malfunction auto mode
7 failure. There are no memory items on that checklist.

8 A. There is one or there was one.

9 Q. What was it?

10 A. Cyclic matter stabilator slew up switch which immediate
11 action by the pilot on the controls.

12 Q. Is that under Mike or Lima or both?

13 A. Both.

14 Q. Okay.

15 A. I think.

16 Q. So let's say that --

17 UNIDENTIFIED SPEAKER: It's changed.

18 MR. HAASE: Okay, it's changed. When I was there, it had one
19 mandatory requirement that the pilot on the controls immediately
20 had to use the cyclic mounted stabilator skew up switch.

21 Q. Okay. Yeah, it's our understanding that it's changed for the
22 Lima --

23 A. Okay.

24 Q. But, but let's say that the evaluatee immediately pressed the
25 auto control back on prior to utilizing the FADEC-F procedure.

1 Would that be -- make an unsat ride?

2 A. Was the evaluatee on the controls or off the controls?

3 Q. On the controls. Oh wait, no.

4 UNIDENTIFIED SPEAKER: Off.

5 UNIDENTIFIED SPEAKER: Off.

6 Q. Off the controls. Apologies.

7 A. So with the new way of emergency procedures are done with
8 FADEC-F -- so if there is no underlying step for the pilot
9 controls again, then it's their job to go through the FADEC-F
10 procedures. So the first thing they should have done is pulled
11 out the checklist, went through the procedures step-by-step so --
12 by skipping steps, they failed that emergency procedure, yes.

13 Q. Okay. Would that be sufficient to --

14 A. Yes.

15 Q. I mean would you likely unsat the whole ride if it happened?

16 A. For -- yeah, that's one of the big -- that's one of the
17 emergency procedures. That's a big one. Yeah, that's non-
18 negotiable.

19 Q. Okay. So even if those other things didn't happen, if that
20 happened, you'd probably unsat the ride.

21 A. So -- yes. So -- well, it's one of those things where -- how
22 much time do I have available? Do I have time to re-train? You
23 know was it a by the book definition if they failed to conduct an
24 emergency procedure in accordance with, you know, the Dash, Dash-
25 10 and the ATM and all that? Then 100 percent that is a failed

1 ride right there for failure to comply with FADEC-F for an
2 emergency procedure.

3 Now as an instructor pilot, if I had more time available and
4 I was able to go out and let's say do it a second time, maybe talk
5 about it and do some mentorship and teaching and maybe give that
6 same emergency procedure again and they were to pass it a second
7 time? Then I could write it off as a satisfactory because now
8 I've, I've not come back with a U. I've come back with a pilot
9 that's still up and I've re-trained and, you know --

10 So, if I've got time available, then my goal is to teach, and
11 so, you know, I may talk about FADEC-F and ask them about what the
12 acronym means and yada, yada, yada and re-give the stabilator. As
13 long -- because if I recall, stabilator malfunction was its own --
14 like you had to do that one. It's, you know, it must be done by
15 itself. So if it's a U and I can't re-train it to an S, then the
16 ride is a failure.

17 Q. Okay. So it's possible you might give them another shot.

18 A. If I gave them another shot and they were able to pull it off
19 the second time, then I could write off a satisfactory.

20 Q. All right. Compared to the other units you've been in in the
21 Army, what's the culture of this unit, the 12th Aviation Battalion
22 and Bravo Company?

23 A. I mean the culture of the unit -- tempo and culture is great.
24 The biggest, biggest thing that, that I used to harp on and teach
25 against is complacency. The work, it's very, very -- by

1 definition, it's very easy what they do there, but at the same
2 time it's very difficult. You've got Class B airspace. You've
3 got three within a very short area of another, D.C. Helo routes
4 and with someone experienced, it's very easy, but it can get very,
5 very hectic very quickly.

6 So complacency -- you know, without going into too much of
7 what they do there, they're, they're on-call daily, five days a
8 week, kind of like a medivac type situation. So you wait for a
9 call that never comes or you hope that never comes. So
10 complacency can easily set in.

11 And another big thing that I used to have a problem with is
12 they've got lots of limitations on how far they can go and what
13 kind of training they do because of what they're on-call to do.
14 So we made a bunch of changes while there. When I was there, I
15 used to argue we should be the best instrument pilots in the Army
16 because the, the level of weather that we brief that we can launch
17 on and the potential for entering IMC is pretty great, but we can
18 never fly in the clouds because our time requirements to be able
19 to respond you couldn't guarantee that you would be able to get to
20 where you had to be, so we relaxed some of those.

21 I don't know if they're still the same there where you could
22 go in the clouds and fly instruments as long as in a very short
23 distance. You know there would be a cloudy day on turning
24 flights. You see what people do on their flight D.C. Helo routes.
25 It's like hey, go get in the aircraft and as long as you're a

1 solid group, go get in the clouds and go fly instruments or go
2 down south to the training area and go do terrain flight at
3 nighttime with goggles and do some dusk landings at the assault
4 strip (ph.) down there, but the problem is, is you've got a lot of
5 young junior aviators there and they just get so used to just
6 doing D.C. Helo routes that they, they don't get a lot of exposure
7 to a lot of the different tasks that you get.

8 Like say if I -- me and you graduate flight school at the
9 same time. I go to the 101st and you come to Belvoir. I learn
10 how to do all kinds of stuff. I'm going to NTC, JRTC and going on
11 a deployment, and here they're just DC Helo routes. They're
12 sitting and waiting for a radio call to go off, so -- but the
13 overall culture -- I mean I never had any big issues with it.

14 Q. And the safety culture, I mean did you feel like safety was
15 appropriately prioritized?

16 A. Yeah. We -- prior to my getting here, there was an issue
17 with an aircraft crashing in the golf course, but as far as safety
18 goes, safety was always number one. Sometimes issues with
19 maintenance keep an aircraft up because of the huge, you know,
20 amount of aircraft that are on every day for response stuff that
21 maintenance would struggle to keep up with, but as far as safety,
22 safety was always, you know, on top of the -- which it typically
23 is in Army aviation anywhere you go.

24 Q. Okay. Thanks a lot. I'm going to pass things onto Van.

25 MR. McKENNY: Okay, just some follow-up questions.

1 BY MR. McKENNY:

2 Q. Do you need a drink of water?

3 A. He had been doing a lot of the talking. I'm all right.

4 Q. Oh man, all right. Let's see here. So some follow-up stuff.

5 So, early on you talked about Lieutenant [REDACTED] spatial
6 awareness, and you strictly referred to her orientation during
7 instrument flight. What about day VFR stuff?

8 A. You know, again, it was two years ago or so. I just remember
9 the biggest issue I had with her was her just either focusing on
10 things that were outside of our control or focused on what I was
11 doing. You know if you're, if you're on the controls, you're,
12 you're outside, you know? You're outside, you're on the controls,
13 you're flying the helicopter, but she just -- she always wanted to
14 master everything.

15 So if I'm doing something over there that I'm not telling her
16 what I'm doing because, you know, I'm talking on all the radios.
17 I'm doing all the navigating. You know she might be interested in
18 what I'm doing or, you know, some off the wall, you know, things
19 outside of our scope or our control, and I just remember always
20 having to tell her like hey, let's focus on the basics. Let's
21 focus on straight level flight emergency procedures, and then once
22 you master those, then you can worry about the bigger, bigger
23 picture stuff.

24 But from what I remember of her, she just wanted to be -- she
25 just wanted to be the best, you know, and she, she wanted to know

1 everything, but she just wasn't quite ready to -- she was trying
2 to get ahead of herself but she, she hadn't mastered the basics
3 yet.

4 Q. So to me it sounds like you're talking more of a situational
5 awareness.

6 A. Situational awareness was a big -- yeah.

7 Q. Yeah.

8 A. Situational awareness and just aware of what's going --
9 staying at -- we have a saying of staying ahead -- even in an
10 airplane, staying ahead of your airplane or aircraft --

11 Q. Um-hum.

12 A. And she was usually way behind it just because of that, you
13 know, the lack of proficiency and the lack of spatial awareness
14 and trying to get her up to where you can at least be with the
15 aircraft if not ahead of the aircraft was, was challenging.

16 Q. A situational awareness as in staying on task?

17 A. Yeah.

18 Q. Okay. How did that relate to night flying and NVGs? Same
19 type of thing?

20 A. Well anything -- if, if you're doing something poorly during
21 the day, now you throw some goggles on, it just got worse because
22 now you're, you're looking through 70 degrees -- 40 degrees -- 70
23 degree field of view paper tubes on your eyes, so, so now you're
24 having to scan, move your head around a lot more and, and so
25 things get much worse under goggles. If you're, if you're having

1 a hard time during the day or during instruments and you put
2 goggles on, it tends to get much worse.

3 Q. Right. So --

4 A. Much more difficult.

5 Q. In the record here, we talked about this a little earlier.
6 You -- she failed during standardization check under NVGs while
7 you were evaluating her. So was that just generally because the
8 standardization check was performed under NVGs or was there
9 something specific about the NVG task?

10 A. Without looking at the write-up, I couldn't tell you. I
11 don't remember why she failed that, but for me to give her an
12 UNSAT on an NG stands though, there must have been a task defined
13 of what that ride consists of. So she had to have failed a
14 maneuver, and if I recall, I believe she had troubles with roll-on
15 landings and it was probably responding to an emergency procedure.
16 So, you know, there's, there's five or so emergency procedures she
17 must be able to stand to (ph.). She's got to always maintain the
18 appropriate common standards plus or minus 100 feet, plus or minus
19 10 knots, half ball of trim, in or out of trim. So for me to give
20 her an UNSAT, she had to have failed at least one if not numerous
21 of those events.

22 Q. Um-hum. Those standards are in the air training manual?

23 A. Yes, sir.

24 Q. There is a number of times where she was listed as under
25 commander's investigation. Can you kind of explain what's going

1 on there?

2 A. So those can be used for a lot of things. They can be used
3 for -- let's say as an instructor pilot you come up on your birth
4 month and I review your hours and you were supposed to have flown
5 those 30 or 45 hours or whatever those hours are in your six-month
6 period and I find that you did not. I've got to start an
7 investigation and determine why you didn't, you didn't fulfill
8 them, and I was like oh, we found you went on leave for several
9 weeks.

10 So then I prorate your hours and the commander's
11 investigation finds that, you know, failed to meet ATP minimums
12 due to aircraft non-availability, you took leave, you were on -- I
13 imagine they go hand-in-hand with her temporary medical
14 suspensions probably. She probably went on medical suspension for
15 those five months. She was found not to have met her ATP
16 requirements, so they went in and found that they had to adjust
17 those ATP requirements and prorate those hours for those five
18 months that she wasn't flying.

19 They can be used for a lot of things. They can be used for,
20 you know, failure to meet minimums. You're a track 1 officer or
21 you're a company commander. You don't make pilot in command with
22 365 days, I have to start a commander's investigation and
23 determine why, and usually upon that finding that's where I can
24 then say I didn't make PC within a year because I took leave for
25 four weeks, and then I can request an extension for those four

1 weeks and try to get me up pilot in command. So it may have been
2 for that. I don't -- I haven't had access to her records in a
3 long time. So maybe she didn't make pilot in command in time. I
4 don't know.

5 Q. It can be various reasons.

6 A. Lots of reasons.

7 Q. And who does, who does the actual investigation? Is it the
8 stand pilots?

9 A. So the standardization pilots work with the company commander
10 because it's actually in the commander's guide -- commander's
11 investigation. So the instructor pilots typically do the entries
12 into the records and then they coordinate with the company
13 commander like hey sir, this is what's going on. Let's say the
14 example of didn't meet my ATP requirements was the example. So
15 and so didn't meet -- they didn't fly enough goggle time for their
16 semi-annual period and this is why, and what we can do is we can
17 prorate it because they took leave or they're on a medical
18 suspension, but it requires the company commander's signature in
19 those records to -- it's his authority that's required to finish
20 that investigation.

21 Q. And then what's usually the result of an investigation like
22 that?

23 A. It just depends on the findings.

24 Q. Um-hum. Typically --

25 A. If it's something that can be fixed -- like I didn't meet my

1 hours so -- but because I didn't meet my hours, it was due to my
2 medical suspension, then I'm granted a 30-day extension to get
3 those requirements done. If it's found that I failed to make a
4 requirement and there -- so if there is a justification or there
5 is a thing that the instructor pilot can do like requesting a 30-
6 day extension or adjust ATP requirements, then usually -- I mean I
7 can't think of a time the commander said no. Usually they grant
8 that 30-day extension and, and then you have that 30 days to make
9 up that, that shortcoming, but it just depends. It could be
10 numerous, numerous things.

11 Q. Okay, and I don't know if this ties in with the commander's
12 evaluation or something else, but how difficult is it to get
13 additional training for deficient pilots? Can the command
14 prioritize training for deficient pilots?

15 A. So the issue -- the problem with Fort Belvoir for additional
16 training is aircraft availability. I don't know the exact
17 percentage, but it's 80 percent or more of the aircraft are on-
18 call every day. So the example I gave you with me taking [REDACTED]
19 to the simulator, I just couldn't get a helicopter because of --
20 you know they've got to have -- most of their fleet up daily and
21 then for me to take it out and go fly three hours, you know, do
22 instrument training, it doesn't line up with the maintenance to
23 keep that many aircraft readily available for their missions set.
24 So, the big challenge here is you've got a lot of aviators.
25 You don't have a lot of helicopters, but you've got a huge demand

1 for those helicopters, so balancing maintenance, blade hours, and
2 proficiency is hard, and the interesting thing with Fort Belvoir
3 is they actually don't require simulator.

4 Q. Um-hum.

5 A. It actually can be waived. Their simulator requirements can
6 be waived, and I actually brought them back after the helicopter
7 accidents on the golf course. We - and I don't know if they're
8 still a requirement now, but they're outside the - I think its 200
9 mile radius, but we said hey, we don't have a whole lot of blade
10 hours. People don't go fly in the clouds a lot so we're going to
11 put this requirement on ourselves to make us go to the sim. I
12 think we reduced the requirement by half though just to make it
13 feasible to get all the way up to Annville, Pennsylvania.

14 But the challenge at Belvoir is just aircraft availability.
15 It's, it's hard to get a helicopter and blade hours and to do
16 something that is worthwhile. I can get a helicopter and go fly
17 the D.C. Helo routes because it's right there, still close enough
18 to respond, but can I get helicopter and go fly cross-country
19 instruments? That's a challenge or it can be a challenge
20 depending on how many people are on progression and, you know, how
21 maintenance is doing.

22 Q. So pilots having difficulty could use the extra training,
23 extra hours. They're often not - there is no opportunity to get
24 that.

25 A. It's usually --

1 Q. There is no -- and there is no -- and the command does not
2 prioritize those individuals.

3 A. I wouldn't say they don't prioritize, no. I think the
4 command does prioritize. I think it's just, it's just not a normal
5 -- normally the products that you get out of flight school are,
6 are usually -- everyone usually comes in about the same level, and
7 seldomly do you have, you know, issues with pilots and getting U's
8 and requiring the extra stuff. It's, it's every once in a while,
9 and normally when you do -- like I can't think of a time I ever
10 went to a commander and said hey, I need more time with this
11 pilot. They are struggling with this. You know their goal is to
12 -- yeah, let's get it done and, you know, in the instance of
13 Captain [REDACTED] like hey, I need, I need more time with her. I
14 don't have the helicopter spread, but you can drive to Annville
15 with her. Okay, I'll take her to sim a couple of times a week.

16 Q. Is that sim a VFR sim also or just IFR?

17 A. You can do VFR or -- not both. It's full movement, full
18 screen just like -- yes. It's -- you can do both on it.

19 Q. Okay, so --

20 A. It's just we tend not to -- VFR stuff in it procedurally is
21 okay, but the realisms -- there are some things that it's not
22 really very beneficial. It's great for instruments. It's great
23 for emergency procedure training and procedural stuff but, you
24 know, to go in and try to like train D.C. Helo routes, it's -- you
25 kind of lose some of the gains you get out of it.

1 Q. Okay.

2 A. So it's very good at some things, and some things not so
3 much.

4 Q. All right. On to a different topic here. You said that you
5 used the radar altimeter to judge to your altitude on those lower
6 level --

7 A. Yes.

8 Q. Altitude routes --

9 A. Yes.

10 Q. On the R01, R2s -- R01, R4s type routes.

11 A. 100 percent, absolutely.

12 Q. When did you start doing -- using that, that way?

13 A. So the radar altimeter kicks in -- I think it's below 1500
14 feet AGL, and any time you're that low over terrain in a, in a
15 helicopter, radar alt is your, is your friend.

16 Q. Um-hum.

17 A. I don't want to -- you know, as, as terrain changes, you
18 know, I'm not going to use -- I mean I will use but my primary
19 tool is the radar altimeter.

20 Q. Okay, and, and how are -- how -- is that radar altimeter easy
21 to see under the goggles?

22 A. Yes. It's an illuminated green number, so you're -- you
23 don't look at it through your NVGs. You're looking underneath
24 your NVGs.

25 Q. Right.

1 A. So it's staring right at you.

2 Q. Either seat? Does it matter?

3 A. Either seat, and then if they're using HUD (ph.) which it
4 used to be required. I don't know if it is now, but the HUD will
5 also give you representation inside your goggles if you're, you're
6 -- both of your -- both of your altitudes if you have them turned
7 on.

8 Q. Okay. So how do you know if you have the HUD on and the
9 NVGs? Where is that? Is that a switch on the NVGs or --

10 A. No. So it actually mounts on your NVGs. It's a big
11 cumbersome cable that hooks in the aircraft and then it screws on
12 to the outside. Actually, there is a nice small -- but anyway, it
13 screws onto the outside of your goggles and it, it puts the HUD
14 information directly. So you've put it on. You've programmed it,
15 shown it what you want to see and what you don't want to see, but
16 a very good tool for a train flight under goggles.

17 Q. You mentioned that the stratus was required by SOP when
18 you're flying.

19 A. It was.

20 Q. Like is that the Brigade SOP?

21 A. It was in our Brigade SOP, yes.

22 Q. Okay.

23 A. Whether or not it still is, I don't know because we had the
24 ability to add or take away using magenta text at the time, so I'm
25 sure there are several versions from then and they were having

1 issues with the batteries and maintaining those, so that may not
2 be a requirement now, but when I was there it was.

3 Q. Okay, and you already kind of covered this again, but I'm
4 going to, I'm going to state it anyway. So for an experienced IP
5 when flying D.C. routes, is it a common technique to request
6 visual separation as standard practice even if traffic may not be
7 immediately in sight?

8 A. If it's in my direct line of sight, no, but it is not
9 uncommon for ATC to call airplanes behind me. So if they're
10 calling traffic behind me then yes, but in front of me, I would
11 never request visual separation without properly identifying the
12 aircraft. But common practice for aircraft being called behind me
13 and the requirement is still request visual separation, yes, but
14 in front of me, no. That should not be --

15 You should never request visual separation for an airplane
16 that you can see but, you know, many times traveling north on that
17 river, they are stacked up behind me and they're giving me the
18 call. They're at 6000 feet descending for runway 1, and I'm
19 expected to make the call in sight or request visual separation.
20 My crew chiefs are doing the best to see them and they eventually
21 will see them but, you know, I'm far right on the river, I'm below
22 200 feet, they're landing, you know, never been an issue, but, but
23 the expectation is there, yes, but --

24 Q. Yes. So for D.C., that's -- that would normally be when
25 you're traveling north.

1 A. North, yes.

2 Q. Yeah.

3 A. But any other time, you know, the pilots are trained and
4 expected to -- if you're giving me traffic advisors, identify that
5 traffic, have traffic in sight and request visual separation.

6 Q. That's all of the questions I have for now. Mark?

7 BY MR. WARD:

8 Q. I've got a kind of follow-up questions on that one.

9 A. Okay.

10 Q. When you were given traffic, do you describe where you see
11 that traffic with the rest of your crew?

12 A. Yes. Part of crew coordination, absolutely -- like should
13 be.

14 Q. Can I make the assumption that if the pilot stated to the ATC
15 that I have the traffic in sight but makes no comment of what the
16 relationship to that traffic is with the crew that he probably --
17 or the person may not have actually seen the traffic if he makes
18 no remarks to the crew where it's at?

19 A. Potentially depending on how much time. Like if I've got an
20 aircraft in sight, part of my crew coordination I'm going to say
21 hey, I have the aircraft at my -- do you have the aircraft in
22 sight as well because it may very well move from my side to your
23 side. So in a -- you know, am I on the controls or not on the
24 controls? So it's easier for the person not on controls to maybe
25 initially spot it, but then I'm going to relay that information to

1 my crew because as I get focused on another task, I'm expecting my
2 crew chief or my --

3 You know, a lot of times that's what our crew chief does for
4 us, spatial, you know, spatial -- not orientation but -- so he's,
5 he's -- so yes, as a crew, we should be passing that information
6 on. I've got the aircraft. It's approximately here. It's moving
7 right and then everybody confirms they also have that traffic in
8 sight and it's -- many times a crew chief may spot an aircraft
9 before I do, and he calls it up to me and I'm like oh yeah, okay,
10 I have the traffic in sight and then, you know, I make the call.

11 Q. So for crew coordination purposes --

12 A. Should.

13 Q. If the pilot sees an aircraft, they're going to identify
14 where that aircraft is so the rest of the crew can see where it's
15 at.

16 A. Yes, yes.

17 Q. Okay.

18 A. I would say that would be the standard.

19 Q. Okay. Another question -- if the aviator you're giving an
20 evaluation to for some reason can't keep in trim, full ball width
21 trim and you're constantly having to -- the reason you're having
22 aircraft control issues is you're out of trim. I need you to step
23 on the ball, step on the ball, and that's repeated throughout the
24 entire flight. Would that also be a reason to be on UNSAT?

25 A. They're giving half a ball width, so yes, that's outside of

1 their appropriate common standard which is going to apply all the
2 time during the flight. So if you go over half a ball width of
3 trim one time, two times and I'm saying hey, probably what's
4 happening in the Lima is they're probably maintaining pressure on
5 the pressure switches on the pedals, and they're, they're taking
6 the ability for the aircraft to maintain trim on its own weight
7 because they're hitting the microswitches that are releasing that.
8 So I'm going to teach like hey, keep your feet off the damn
9 pedals, and if I can't fix it, then as an instructor pilot, then I
10 would write it up as unable to meet appropriate common standards
11 half ball without a trim, unsatisfactory, and then I'm going to go
12 re-train them.

13 Now for something like that, I'm going to try all the way up
14 until I meet my blade hours because, you know, if they do it once
15 and I UNSAT them, I come back and then I've got to ask the
16 commander for a helicopter, take them out two days and train that
17 one task which, you know, it's hard to get a helicopter.

18 So if I have time, I'm going to teach them like hey by the
19 way, I know you learned on a Mike model, but the way it works in
20 the Lima is you've got these microswitches. Keep your damn feet
21 off the pedals, and I'm going to teach them and then I'm going to
22 stop teaching and I'm going to evaluate again, and if I fixed it,
23 then I'm going to get sat. But if it's all night long and they
24 can't fix that, then according to the appropriate common standards
25 they are unsat.

1 Q. I've got two more questions. One more -- how many near
2 misses have you seen or experienced when you're flying down here?

3 A. None.

4 Q. Is there a perceived either outside the organization or
5 inside the organization of aircraft having -- feeling that they
6 have the priority of the airspace and that they are the -- they
7 are -- they have a mission to complete and that others need to
8 kind of stay out of their way?

9 A. Again, you know, it's been two years since I've been there
10 but with my tenure there, no. You know we always gave right of
11 way to the Air Force and the police. We thought they were, you
12 know, that was them but it wasn't ever us when I was there.

13 Q. Okay. That's all the questions I got. Eddie?

14 BY MR. MILLER:

15 Q. Eddie Miller, FAA. Mark took most of my questions so -- but
16 -- so one of the questions I did have and it's, it's more about
17 safety roundtables that are in the area. Have you ever been
18 involved with one of the safety roundtables that involves all of
19 the users of the helicopter routes?

20 A. I never went to that. If I recall, I believe it was our
21 Brigade SP that was going to those, and that was where the --
22 because we were having, we were having some issues with the police
23 department using zones versus the Helo (ph.) routes and I remember
24 there being issues where the zones were covering Helo routes and
25 we were having issues getting into their area, and I believe it

1 was Brigade that was dealing with that so I never went to one.

2 Q. Did you ever get any feedback other than what you just told
3 me?

4 A. I got feedback through the Brigade, yes, and I feel -- like I
5 remember the police one was a big issue we were having. The
6 police were, you know -- we were deconflicting some airspace
7 between the two of us and normally during our monthly academics,
8 that's when Brigade was passing on that information out to the
9 unit.

10 Q. I have no other questions. Thank you.

11 DR. BRAMBLE: Paul?

12 BY MR. KEMP:

13 Q. Just a couple of questions from me. Do instructor pilots
14 typically take notes or use an IPAD for filling out reports or
15 evaluations?

16 A. It should be notes. I, I always -- I'm kind of old school,
17 but I always had notebook paper on my knee board (ph.) because for
18 me to come back and make record entries -- and that's one of the
19 things you learn as a new instructor pilot. Maybe you don't
20 initially, and then you try to come back and you're, you're
21 grading these 15 tasks and you're like how was their roll-on
22 landing? I think it was good. So every instructor pilot should
23 be taking notes to be able to give valuable feedback whether they
24 did something out of standard, or even if they did something good,
25 I'd be like man, that was an awesome auto rotation. I come back

1 like hey, great auto rotation. That was as good as mine. So they
2 should be taking notes, yes.

3 Q. How would you take notes during a nighttime flight?

4 A. It depends on the critical phase of flight. Am I on a
5 terrain flight on an instrument approach? Absolutely not. If I
6 landed in the field out in the middle of, you know, the south
7 training area, hey let's sit on the ground with flat pitch. Now
8 is a good time to take notes. In my am, doing the Route 4 around
9 the circle at 1300 feet, I can probably jot a note or two but, you
10 know, that's, that's - you know that critical phase of flight
11 depending, you know, -- I'm, I'm reacting when I can do that.

12 There are good times to take notes and there are times I'm
13 absolutely not taking. I'm not taking notes during a boost-off
14 maneuver with a pilot. So that's all I would say instructor pilot
15 technique but, you know, they all understand when they should be,
16 you know -- I mean it's something you develop pretty early.

17 Q. And you said that's with a pen and paper?

18 A. I imagine the kids are probably using IPADS now, but there is
19 a lot of things I still don't like on IPADS. I don't like my
20 Dash-10. I don't like my checklists. I don't like taking notes
21 on IPADS, so I still use paper and pen, but I would not be
22 surprised for a pilot to use an IPAD notes, like a scratch pad on
23 there, but I just wasn't a fan, so -- I mean that's just kind of
24 preference really.

25 Q. If you're taking notes during the nighttime, is there

1 lighting -- ambient lighting that you use?

2 A. Yeah. Some, some people still wear the little finger
3 lighting. I had a -- I had a green light mounted to my
4 (indiscernible) so I could just kind of flick that thing on and it
5 was pointed directly at my legs. So a light green light on my
6 knee board didn't affect my scan or my night vision goggles. So I
7 would flick that on if, you know, time allowed to jot my notes and
8 flick it off. There is also overhead lighting available in the
9 aircraft they can turn on as well. Yeah, plenty of lighting
10 available for it.

11 Q. Okay, and I think you touched on this quite a bit, but I just
12 want to maybe rephrase the question a little bit differently. But
13 for Captain [REDACTED] how receptive was she to your constructions
14 and feedback?

15 A. Very receptive. Never did she like close the door on me or,
16 you know, I'm a lieutenant or I'm a captain. None of that. She
17 was, she was very receptive and wanted -- she wanted -- she was
18 very eager to perform. She just, she just -- just the way that
19 she operated, she was wired. She just -- you know she got
20 sidetracked too easily. She was getting way ahead of her
21 capability. She wanted to be, you know, the grad level pilot, but
22 we were still here at the basics, but very eager, very receptive,
23 just, just, you know --

24 Q. Would you describe her as having a positive attitude?

25 A. Yes.

1 Q. Okay. That's all my questions.

2 DR. BRAMBLE: Dave?

3 BY MR. BLAIR:

4 Q. Dave Blair with Sikorsky. All right, we're getting there.
5 One follow-up on the lighting question real quick. So your flying
6 goggles Route 4 or Route 1, Route 4, something like that. What
7 kind of cockpit lighting would you have or what kind of levels for
8 that?

9 A. So everything should be minimal with NVGs, and it also
10 depends where I am. You know am I out in the middle of nowhere in
11 the south training area doing terrain flight stuff or am I in the
12 city where things are a little bit, a little bit brighter. So I
13 would have everything dimmed down to the ability where I can see
14 it, but it's not overtaking my ability to see outside. So, you
15 know, that's something that -- part of like my HUD program meaning
16 my lighting during the checklist. That's what I would teach is,
17 you know, just enough that we can see and then we adjust it during
18 the flight if needed. We went out to the terrain flight area.
19 Now we're in the city, probably needs a little bit of an
20 adjustment so --

21 Q. By a little bit of adjustment in the city you mean turning
22 stuff up?

23 A. Brighter like, you know -- and usually I would use the radar
24 altimeter --

25 Q. Right.

1 A. As my guide in the Limas. That thing is really dim. I turn
2 up my radar light especially flying over the river, but I got my
3 radar altimeter. That was usually my guide.

4

5 Q. Okay. Talk about the M to L (ph.) transition, right?

6 A. Yes.

7 Q. So Captain [REDACTED] would have come out of flight school fine.

8 A. Mike's.

9 Q. Well the Lakota is first.

10 A. Lakota is first and then to the --

11 Q. For basics. So glass cockpit (ph.) to glass cockpit back to
12 steam gauges.

13 A. Yes.

14 Q. Did you find that other, other pilots, W's or commission had
15 that same issue, and if so, can you put kind of a percentage on
16 it?

17 A. They all struggled, and we hated the fact that we had one
18 Mike company and two Limas. When I was the SP, my Battalion
19 commander, Ryan Forshay (ph.) fought to get us all same. He was
20 like I don't care if we get all Mikes. I don't care if we get all
21 Limas. Give us VHs, but because of parts and pilot proficiency,
22 give me the same helicopter.

23 And so, you know, I think the Army made a huge mistake
24 changing flight schools too early, and so you get these -- they
25 learn all glass cockpits and then they come to Belvoir and like oh

1 great, and you give them a Lima and you're like -- you know the
2 140 hours they've got and they just developed a scan, it's
3 completely useless. They're, they're essentially brand new pilots
4 minus, you know, they have some air sense. They understand a
5 little bit of instruments but it's like back to square one with
6 them, and they all, they all initially struggled, and like I said,
7 I started in the Alpha Company so I started a Mike Company so --
8 but I had also done medivac where, you know, I had the same thing.
9 I had Limas so -- or Alpha pluses and I'd see that same heartache.

10 So I think they all struggled. Most of them were able to,
11 you know, get over it pretty quickly and develop a scan and, you
12 know, [REDACTED] just -- I think, I think the initial problem was I
13 think that her RO progression was an issue. I think she didn't,
14 she didn't have an experienced instructor pilot initially during
15 her initial RO progression and the SP's oversight. He just wasn't
16 really managing what happened and I think that was probably part
17 of the initial problem is, you know, maybe if she had had some
18 more experience that could have different methods of instruction,
19 but I would say everybody struggles initially but most of them
20 recover, so I would say less than 25 percent continue to struggle
21 after --

22 You know usually by the time they make RO progression they've
23 got -- and that's why we sign them off RO1. We're saying they're
24 good enough to meet everything to standard and fly with any pilot
25 in command in the Battalion and they all, they all get there. So

1 they all overcome that challenge, but it's definitely not ideal by
2 any means.

3 Q. Okay, so to reiterate, you said less than 25 percent really
4 have problem with it?

5 A. Yeah.

6 Q. It's, it's a problem for everybody.

7 A. It's a problem for everybody and they all get over it, and I
8 think you throw in the additional challenges of, you know, if, if
9 you had her exact replica but it was a Warrant Officer, they would
10 have recovered because, you know, I've got the fridge fund, you
11 know, in flying where she's got tons of tasks to do and it just
12 takes her focus away, and yeah.

13 Q. Okay, great. Thank you. Mission car trips up to the
14 simulator --

15 A. Yes.

16 Q. And a couple times a week on those sometimes?

17 A. I was trying for at least two a week, you know balancing her
18 schedule with what she had to do for Battalion, balancing my
19 schedule. I've got doctor's appointments backed up, so we were
20 trying to go twice a week and then, you know, once a week or every
21 other week and we made several trips. I don't remember exactly
22 how many, but we went up there several times together.

23 Q. Okay. How long is that drive?

24 A. It's, it's quite long. I want to say it's three hours.

25 Q. Okay, so three hours each way. It's basically a full day

1 trip.

2 A. It is a full day trip, yes. There was a time period where
3 one of the Battalion commanders actually required you to stay the
4 night if you went up there and did two training periods, and it's
5 a pain. No one wants to go up there. No one -- and that's why
6 they had gotten rid of the sim requirement for a period of time
7 because it's a hassle.

8 Q. Got it, okay. You also mentioned another pilot who had
9 similar issues to Captain [REDACTED] Yeah, you said there was --

10 A. Two, yes.

11 Q. A couple of other pilots. Was that within 12th?

12 A. No.

13 Q. Someplace else, okay.

14 A. Someplace else.

15 Q. And do you remember were those warrants or were they
16 commission folks?

17 A. It was commission.

18 Q. Okay. So kind of a consistent theme the commission officers
19 have a problem --

20 A. Yes.

21 Q. Or have -- are more prone to have these kind of problems?

22 A. Yes.

23 Q. Okay.

24 A. Yeah, just because they're, they're taking away -- you know we
25 start out -- they do -- Platoon leading then a lot of good time.

1 They go to staff. They come back company commander. They need
2 some polishing. Then they go back to staff. They come back as
3 battalion commanders and most of them -- you know I think I can
4 say this now that I'm retired, but I had a theory that if I became
5 Sec Def (ph.) tomorrow post-company commander, I'd terminate them
6 from flight status. That's a, that's a bold statement, but
7 usually their proficiency is just -- it's a waste of blade hours
8 in my opinion.

9 Q. Right. That is all I have. Thank you.

10 DR. BRAMBLE: Nick?

11 CW5 JACOBY: No, no questions.

12 DR. BRAMBLE: I have just a couple.

13 BY DR. BRAMBLE:

14 Q. The sim trips with [REDACTED] were they -- would they have been
15 logged in her flight training records?

16 A. So they should have been part of her 4507s, her grade slips,
17 but once, once those become complete and become an entry in her
18 records, those are thrown away.

19 Q. So if we were to try and look those trips up now just to
20 document how many, would there be any records anywhere of that?

21 A. It would be in her, her flight hour records written up as
22 simulators log in, weather time in a sim.

23 Q. Okay.

24 A. In her Dash-12's I think it's called.

25 Q. All right. What happens to a lieutenant who is fairly new

1 from flight school if they can't meet the requirements for
2 progression or making pilot command despite an extension? Do they
3 have to leave the Battalion?

4 A. That's a very tricky question. I would probably answer it
5 differently if I was still active. So typically like I said, it
6 doesn't -- normally FEBs (ph.) are very few and far between. I
7 never actually had to do one. Instructor pilots have a difficult
8 task. Imagine my boss -- I have to take my boss up in his first
9 year -- within his first year and tell him how - if he's capable
10 of being a pilot commander in this helicopter. He also writes my
11 annual evaluation which controls my ability for promotions or
12 schools. So there is lots of pressure on the instructor pilots,
13 especially junior instructor pilots.

14 I'll give you an example. 12th Aviation are -- we had a
15 Battalion commander who later came back to be the Brigade
16 Commander, was failing to meet pilot in commander requirements for
17 a Mike model -- Colonel -- he's now Colonel Cullinen (ph.). At
18 the time he was Lieutenant Colonel Cullinen. I was taking him out
19 on training rides doing many, many training flights with him. He
20 just -- he was coming to fly with me like once a month. Like I
21 said, I need at least twice a week with you to make you better.
22 It was just to the point where they were doing commander
23 investigations that we talked about, granting him one day
24 extensions, two day extensions to meet that 365 day requirement.

25 He came up to do his PC eval, and I was asked by the

1 Battalion SP at the time, will you do his check route? I said I
2 absolutely will, but I'm going to grade him to standard, and if he
3 fails I'm going to fail him and you're putting me at a really
4 difficult situation, and he, he ultimately went and did his check
5 ride and I said how did he do, and he said he passed and I kind of
6 looked at him said oh yeah, and he's like he's never going to fly
7 again, you know, just be done with it. He then later came back to
8 12th two years later as the Brigade Commander and I was like, you
9 know. So it's a very -- it's a challenging place to maneuver.

10 So often times -- the second that I talked about earlier that
11 I had issues with that I was going to put up for an FEB, I
12 actually had them let go at the flight controls during a boost-off
13 maneuver coming into land, just let go of the controls. It's like
14 turning the power steering off on your car and I went to look
15 through her records. She never made RO1 in like three to four
16 years. People just kept kicking the can down the road, and I
17 requested to FEB her, and that was going to be my first FEB. She
18 was moved to a different company -- to a Fox Company and then
19 later PCS before anything happened to her.

20 So I would say the right answer is if they can't progress or
21 can't make pilot commander time, what the books say should happen
22 is they should be FEB'd and then, you know, they would be removed
23 from flight status and then they would probably change tracks from
24 aviation to something else. Does that happen in the Army? You
25 know, I don't -- I can't think of a case where it has happened.

1 Q. Okay. So -- and just to confirm, [REDACTED] was your superior
2 officer when you failed her on the NVG.

3 A. She was my platoon leader at the time. She wasn't, she
4 wasn't my -- I guess technically she would have been -- no, she
5 wasn't my rater or anything, so she didn't -- she wasn't actually
6 my rater or my senior rater at the time, but she was my platoon
7 leader so she was my direct line of supervision at the time, yes.

8 But, you know, I didn't allow that to -- that didn't sway me
9 either way. It was this is the standard. This is what's failed.
10 Let's fix it, and I, I would do that to a Battalion commander, to,
11 to a W5 or W4 or W1. It was -- you know the book was black and
12 white to me, so if you failed to meet a standard, it was my job to
13 address that, write it in the records and then re-train and re-
14 evaluate.

15 Q. Okay, but you would have felt the pressure if it was someone,
16 someone senior?

17 A. I definitely would have felt the pressure, but still would
18 have, would have done my job as an instructor pilot just with the
19 example I gave you with who was my Battalion Commander at the
20 time, and I had bumped heads with him before where he had flown as
21 a PI across country to Ohio. They took off in illegal weather,
22 had illegal weather returning and I found that they flew, and I
23 called the pilot in command at the time, made them wait, re-plan
24 their flight to have legal weather on return.

25 And when they came back, I revoked the PC orders of the PC at

1 the time who was flying with the Battalion Commander and he called
2 me a cowboy and I was toxic, and I was like sir, here's his Dash-
3 1. Here's his flight plan. You guys should have never taken off.
4 I had, I had Brigade SP that day cancel his flight and you guys
5 took off.

6 So I, I took much pride in what I did and, you know, it was
7 what I called the standard bear (ph.), so if the book said this is
8 what it was, then that -- regardless of rank, that's -- I held you
9 to that standard.

10 Now there are some gray area. There is a standard and then
11 there is a, you know, I'm evaluating you as a PC. You're doing
12 the standard for the task but am I making you talk on the radio or
13 am I taking all the radios off? So there were ways to kind of --
14 you know, I'll do all the radios. I'll do the navigating. You
15 just get me the standards of the maneuvers I'm grading, so there
16 were kind of ways to mitigate it, but the standard was a standard
17 for me.

18 Q. Okay. Van?

19 BY MR. McKENNY:

20 Q. Yeah, just a different topic actually. So what is taught
21 about ADSB?

22 A. Our aviators don't really understand ADSB. That's the truth.
23 Now for Belvoir, some aircraft -- they kind of have hodgepodge of
24 aircraft. Some have old ADSB receivers installed on them, but
25 none of them were in operation when I was there so that's why we

1 use the stratuses, and I had never seen ADSB until I got to
2 Belvoir and used the stratus. I was like oh, this thing is cool
3 to the point where when I went to New Jersey in my airplane
4 training, I bought myself one for my IPAD.

5 But, you know, normally in a helicopter environment, tactile
6 -- tactical environment, you know, that's usually -- never heard
7 of it, didn't, didn't quite understand it until I got to Belvoir
8 really, so --

9 Q. Um-hum. All right, so that being said then, do you know what
10 equipment in a Lima model have ADSB or enable ADSB?

11 A. Some of them -- I don't know the exact what it's called, but
12 a few of them did have an ADSB --

13 Q. I'm talking about ADSB out.

14 A. Oh, ADSB out, so the aircraft have ADSB out. They just have
15 no in.

16 Q Um-hum.

17 A. So they, they're transponder and stuff is admitting but they
18 have no way to receive other than their IPADs and the stratus, the
19 ADSB in.

20 Q. Okay. So for ADSB out, what -- how would you set up your
21 transponder for that?

22 A. So according to their call sign for the day. So I call and,
23 you know, for the day of their (indiscernible), the PAC-25 (ph.).
24 They have an exact transponder code that coincides with that
25 transponder -- or I'm sorry, that call sign. So when I get that,

1 that call sign then that directs me to program my transponder.

2 It's part of the before take-off checks --

3 Q. Okay.

4 A. To ensure that their transponder is programmed and in the on
5 position prior to take-off.

6 Q. All right. Would that involve Mode S when you code that
7 transponder for a particular mission?

8 A. So Mode S is -- Belvoir often times don't use Mode S because
9 of some of the areas they go to, and people not being able to kind
10 of track their flight pass from, you know, sitting at home
11 watching them on flight tracking. So Mode S -- I think it's
12 normally on but I believe they can turn it off and kind of -- I
13 don't really remember but I remember Mode S was a huge issue
14 because some of their mission sets take them to places and take
15 very important people to certain places and you don't want anyone
16 just to be able to kind of sit and figure out where they're going
17 or where they could be potentially taking people, so Mode S was
18 sometimes not used.

19 Q. Okay. So you said a particular mission, you know, call sign
20 would have a transponder.

21 A. That coincides with that.

22 Q. Coincides with that, and you pro that -- program that into
23 the transponder, but that would be separate than selecting Mode S.

24 A. Yes. I mean there -- you, you push a button on the
25 transponder, you can, you can deactivate Mode S.

1 Q. Right.

2 A. So you can just have your Mode C on stuff for ATC.

3 Q. Um-hum, okay. Thank you. That's all of my questions. All
4 right, anything?

5 MR. WARD: No questions.

6 MR. MILLER: No questions.

7 MR. KEMP: No questions.

8 MR. BLAIR: No questions.

9 DR. BRAMBLE: Nick?

10 CW5 JACOBY: No questions.

11 Q. All right, neither do I, so is there -- actually one last
12 thing about safety reporting. If you had a safety concern when
13 you were in the Battalion, what was the protocol for communicating
14 that?

15 A. Go directly to the safety officer and, you know, give them a
16 report of what happened, and that's what the safety officers --
17 they -- I can't remember the exact report but, you know, saying I
18 had a near miss or something, then I would, I would take it
19 directly to the chain in command and the safety officer and they
20 would, they would do all their stuff to send that up.

21 Q. Did you ever have get called to do that?

22 A. I didn't ever need to do it, no.

23 Q. Okay. Did you ever hear about safety reports?

24 A. I don't recollect any, any big ones, but whether or not there
25 were any when I was there, I don't really remember.

1 Q. Okay.

2 A. None stand out.

3 Q. Is there anything we haven't asked you about that you think
4 would be important for us to know?

5 A. Not really, not anything in particular to what you guys are
6 looking into.

7 Q. Okay. Anybody we absolutely should talk to?

8 A. I don't think so.

9 Q. All right, that being said, we will call the interview
10 complete at 14:55 Eastern standard time.

11 (Whereupon, at 2:55 p.m., the interview was concluded.)

12

13

14

15

16

17

18

19

20

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
 AMERICAN AIRLINES JET AND ARMY
 HELICOPTER NEAR RONALD REAGAN
 NATIONAL AIRPORT IN WASHINGTON, DC
 ON JANUARY 29, 2025
 Interview of Bradley Haase

ACCIDENT NO.: DCA25MA108

PLACE: via telephone

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Michelle Merges
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: TIMOTHY WILLIAMS, Chief One, Officer Two

Bravo Company, 12th Aviation

via telephone

Monday,

February 10, 2025

APPEARANCES:

BILL BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN MCKENNY, Helicopter Operations Group Chairman
National Transportation Safety Board

MARK WARREN, Accident Investigator
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

CW-5 JACOBY, Brigade Standardization Pilot
U.S. Army Aviation Brigade.

PAUL KIM, Chief Pilot
PSA Airlines

DAVE BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Timothy Williams:		
By Mr. Bramble		5
By Mr. McKenny		23
By Mr. Miller		32
By Mr. Maher		34
By Mr. Blair		39
By Mr. McKenny		42

I N T E R V I E W

(8:19 a.m.)

1
2
3 MR. BRAMBLE: Today is February 10, 2025 and it is 8:19
4 Eastern standard time. My name is Bill Bramble. I'm a Human
5 Performance Investigator with the NTSB. Van McKenny and I are
6 leading the Operations and Human Performance Working Group for
7 investigation under DCA25MA108 involving PSA Flight 4352 and PAT
8 25. The NTSB is an independent Federal Agency. We're not part of
9 the DOT or the FAA, and we have no regulatory or enforcement
10 powers. Our mission is to determine the probable cause of
11 incidents and accidents and make recommendations to prevent future
12 accidents. Our mission does not include findings of liability or
13 blame. Your participation today helps ensure that the factfinding
14 phase of this investigation is accurate and complete.

15 We'll be recording this interview so it can be transcribed.
16 After we receive the transcript, our group will review it for
17 typos. We can provide you an opportunity to review it afterwards
18 if you request. I now would like each of the group members to
19 briefly introduce themselves and state their organizational
20 affiliation starting with Mr. McKenny.

21 MR. MCKENNY: Van McKenny, Helicopter Operations Group
22 Chairman, NTSB.

23 MR. MILLER: Eddie Miller, FAA, Senior Accident Investigator.

24 MR. KIM: Paul Kim, PSA Airlines, Chief Pilot.

25 MR. BLAIR: Dave Blair, Chief Pilot for Safety for Sikorsky.

1 MR. JACOBY: CW5 Jacoby, Brigade Standardization Officer for
2 the U.S. Army Aviation Brigade.

3 MR. BRAMBLE: Okay. You're entitled to have a representative
4 of your choosing present during this interview and it's our
5 understanding that you declined that opportunity.

6 MR. WILLIAMS: Correct.

7 MR. BRAMBLE: Okay. Pardon me, I have a phone call coming
8 through. I stopped the recording here. But just to confirm, you
9 declined your -- declined to have a representative.

10 MR. WILLIAMS: Correct.

11 MR. BRAMBLE: Okay. Again, this interview is with Tim
12 Williams, February 10th at 8:21 a.m.

13 INTERVIEW OF TIMOTHY WILLIAMS

14 BY MR. BRAMBLE:

15 Q. Okay, Mr. Williams, can you spell your full name please?

16 A. It's T-i-m-o-t-h-y, M-i-c-h-a-e-l, W-i-l-l-i-a-m-s.

17 Q. Okay, and what's your current rank?

18 A. Chief Warrant Officer Two.

19 Q. And which unit are you in?

20 A. Bravo Company, 12th Aviation.

21 Q. Okay. Any other positions, qualifications or additional
22 duties?

23 A. Unit Supply Officer or Company Supply Officer.

24 Q. Okay, and you're a pilot?

25 A. Yes, sir.

1 Q. Are you a pilot in command?

2 A. No, not currently.

3 Q. Okay. About how often do you fly?

4 A. At least once a week, maybe once every other week, depending
5 on how many hours we have allloted. Usually about two hour
6 flights at a time.

7 Q. Okay, and what's your total flight experience?

8 A. I'm just under 420 hours total.

9 Q. Okay, and how about UH-60 time (ph.)?

10 A. Probably like, 390 of that is UH-60.

11 Q. Okay. Is that all in the Lima model?

12 A. No. I went to flight school. I flew the Mikes then which
13 was like, 40-something hours.

14 Q. Okay.

15 A. The rest has been Lima.

16 Q. And about how much NVG time do you have?

17 A. Right around 100 hours I believe.

18 Q. Okay. Did you have an aviation background before you joined
19 the Army or do it all in the Army?

20 A. No, I have no aviation background.

21 Q. Okay. How well did you know each of the three crew members
22 involved in the accident on January 29th?

23 A. [REDACTED] -- I didn't know him very much or very well. To my
24 understanding, he was in a different company and then he went to
25 Honduras and then he came to us, but I didn't really interact with

1 him a whole lot. My supply office is in a different part of the
2 hangar, so I'm usually stuck down there doing supply business for
3 the company, so I don't get to -- I don't hang out with -- up in
4 the pilot's office where they generally are during the day.

5 Q. Okay, and how about [REDACTED]

6 A. [REDACTED] he's been in the company for a little while longer
7 than him. I, I went to a marriage retreat with him once. Him and
8 his wife were there at the same time. We spoke then and in
9 passing while we were in the hangar.

10 Q. Okay.

11 A. And then [REDACTED] she was the platoon leader when I got there
12 to the company in 2022. She wasn't my platoon leader, so I didn't
13 necessarily interact with her a whole bunch but, I mean, we spoke
14 regularly and -- maybe not regularly but obviously when there was
15 a lot of mission planning going on for like, company events or
16 company training exercises, then obviously we'd have to discuss
17 planning and what not.

18 Q. Is that because you were in supply?

19 A. No. I think primarily it was just because she was, she was a
20 platoon leader of a different platoon, so there wasn't really much
21 interaction otherwise.

22 Q. Okay. When was the marriage retreat with [REDACTED]

23 A. It was last year sometime. I can't recall the exact
24 timeframe -- more towards the beginning or middle of last year.

25 Q. Okay. 2024?

1 A. Right.

2 Q. Okay. Can you describe each of their personalities a little
3 bit?

4 A. [REDACTED] he was to me seemed a little bit of a quiet person,
5 very knowledgeable, would always give classes to his -- to the
6 crew chiefs, very easy to talk to from what I have interacted with
7 him, always ready to offer any help or answer any questions that
8 you might have as a pilot to a crew chief.

9 [REDACTED] very easy to approach, always really wanted to make
10 sure you understood what was going on especially from an A Part
11 (ph.). We discussed -- we had two different interactions for that
12 because we didn't have -- our flight got cancelled for the initial
13 NVG Stands (ph.) for my A Part that I was supposed to do, but he,
14 he gave me the oral portion of it. So we talked about different
15 things we had to do for my evaluation. He was pretty thorough in
16 that, and then the day we actually flew since we had already
17 discussed it prior, we actually were (indiscernible) in the manual
18 or the publication that actually talked about each of the
19 different maneuvers that I could possibly be evaluated on, but
20 very, very (indiscernible) oriented in my opinion.

21 [REDACTED] always happy, always willing to help people, always
22 wanting to know more, always wanting to learn more, especially the
23 things that she didn't know. She would take notes on things. I
24 would always see her with a notebook full of different things that
25 she's written down, jotted down. Very happy person, always

1 looking to help other people.

2 Q. Did you ever fly with [REDACTED] or [REDACTED]

3 A. [REDACTED] no. I was supposed to at one point, but that flight
4 got cancelled so I never got the chance to. So we did a little
5 bit of planning for it (indiscernible) but that was as far as we
6 went with that.

7 [REDACTED] I've flown with him a few times for different
8 continuation training flights.

9 Q. Was he pretty engaged during the flights in terms of
10 communicating with you and the other pilot?

11 A. I would say that he would always -- if we were doing
12 something that -- let's say for instance at a hover -- if you're
13 drifting, he would always be ready, right there telling you which
14 way you're drifting just so you can make that correction. So
15 yeah, he was very vocal about anything regarding crew chief duties
16 (indiscernible) in the back or air space surveillance.

17 Q. Okay. Was he pretty good at pointing out traffic?

18 A. Um-hum, yes, sir.

19 Q. All right, and how much did you fly with [REDACTED]

20 A. I've only had two flights with him.

21 Q. What was the first one?

22 A. It was routing for our contingency mission.

23 Q. So an actual mission flight?

24 A. Not an actual -- it was more of an exercise just for route
25 familiarization.

1 Q. Okay. Because you were new to the company?

2 A. No. It's just something that we do every now and again
3 because we don't actually have to apply that routing all the time,
4 so just to keep it fresh in our minds, and then the other one was
5 the A Part evaluation.

6 Q. Okay. So you underwent an A Part evaluation with [REDACTED]
7 [REDACTED] on January 15th 2025, is that correct?

8 A. Yes, sir.

9 Q. And did that include an NVG evaluation (ph.)?

10 A. Yes, sir.

11 Q. All right. Can you tell us about how that flight went?

12 A. Strictly the flight or the sequence of events leading up to
13 the flight?

14 Q. If you could describe that flight from sort of the planning
15 phase through the actual flight itself, what you can recall that
16 he put you through, and then, you know, sort of to the debrief.
17 That would be great.

18 A. Okay. So that was -- evaluation was kind of split up into
19 two different days. We planned to fly a different day but that
20 got cancelled so we did do like an oral evaluation portion of the
21 NVG on a different day, but the day that we actually flew, I think
22 we arrived around noon just so we would have the, the duty day to
23 complete the night portion of it. So we arrived at noon. Pre-
24 flight, the aircraft -- we were all out there doing our pre-
25 flight. Crew chief checked log books. He checked the log books

1 and then met me out there at the aircraft when I was doing the
2 pre-flight.

3 We discussed -- we went over the things, we checked different
4 portions of the aircraft to see if there is anything that we
5 missed. We have a checklist to go by, so we used the checklist
6 and ran through it, make sure there was no issues found or if
7 there is anything that was missed. So once we did that, we went
8 inside. We did a crew brief about what was -- what we were
9 planning on doing that night as far as our routing, what we were
10 doing, where we were going, how we were going to do it. Once we
11 got through the crew brief, we had to wait until it was dark
12 enough to do the NVG portion. We did, we did do a little bit of
13 sling load operations prior to that, before we went into the A
14 Part portion. So once we got done with the slings, we moved into
15 the A Part portion of the actual evaluation.

16 We did our route -- actually, let me go back first. Before we
17 did any, any of that stuff, we did discuss those tasks according
18 to our location. We went over the different tasks that we -- I
19 could possibly encounter during the evaluation just so we had a
20 good understanding of what was expected. And so we did that, got
21 in the aircraft, did the sling portion, did the NVG portion.

22 We had talked about a plan of where I was going. It was down
23 to Fort Mary Walker for like a timed flight to a specific point
24 for a landing zone down in Mary Walker, so we did that, and then
25 we did a little bit of terrain flight down there, and then after

1 that, we left Fort Mary Walker, came back to Davison.

2 It was also planned that I would do a little bit of PC
3 evaluation for my next pilot in command flight, so from there we
4 took off from Davison. We did fly through the HELO routes up to a
5 point just north of Greenbelt, and then from there we went west to
6 a point just north of Montgomery County, and after that we came
7 back to Davison and that was the end of our flight.

8 Once we landed, the crew chief did his (indiscernible) which
9 is his after flight checks. Once all that was done, we all went
10 inside, logged the flight, and then me and [REDACTED] went upstairs to
11 the pilot's office so that he could kind of debrief me on my NVG
12 evaluation. So we talked about that for a little bit, and then
13 once we were done talking about or going through the flight from
14 start to finish, we went back out to the crew shack and one of the
15 crew chiefs actually drove me home that night because I didn't
16 have a vehicle with me.

17 Q. Okay, all right. Did he have any corrective feedback for
18 you?

19 A. For the NVG stands portion (ph.), no. There really wasn't
20 anything that he brought up that I did -- that I really should
21 have improved on. For the PC evaluation -- not evaluation -- the
22 PC -- just to get a little bit of PC training if -- guess if you
23 can call it that -- it wasn't an actual evaluation. Just once you
24 get -- how do I put it - basically just some improvements as far
25 as like, okay, this is what you've been asked to do, okay? So

1 you're going to go here and do it, talk him through how you're
2 going to get there, who you're going to talk to, what you're going
3 to do, what's expected, just some pointers on improving some
4 aspects of that.

5 Q. Explaining what your plan was?

6 A. Yeah.

7 Q. Getting feedback on how to better explain what you're going
8 to do?

9 A. Well, how to better -- so that, that little portion after the
10 NVG stands, that part was more of hey, this is what you did.
11 Think of doing it this way or little ways to improve upon what I
12 actually did for that experience.

13 Q. Okay, and how about for the A Part itself? Did he have any
14 feedback for you on that or was that rolled up in the NVG
15 discussion?

16 A. So yeah, it was kind of rolled up. There -- he didn't really
17 have any issues with any of that portion as far as like my flight
18 down to Fort Mary Walker or back or any of the traffic pattern
19 work that we did for like, emergency procedure evaluation.

20 Q. Okay. What emergency procedures did he give you?

21 A. He gave me fire in flight. We did some fixed pitch tail
22 rotor for roll-on landings, some boost off and I can't remember if
23 he did lock-out. I don't remember if we did that one.

24 Q. And was there anything on the emergency procedures where he
25 said, you know, you should do this a little differently?

1 A. No. Another one we did was stabilator failure. We did that
2 one as well, but no, there was nothing that he mentioned that we
3 should have did differently or that I should have done differently
4 during the procedures.

5 Q. Okay. What happened with the stabilator failure? How did
6 you do that?

7 A. So we were in a traffic pattern at Davison on takeoff. He --
8 I'm not sure what he did, if he just bumped the stabilator slew
9 switch on the side clip or the manual one on the console,
10 whichever one he used to start that procedure. So on takeoff, he
11 did the malfunction. So once you get the malfunction, you get the
12 caution on your caution panel and your master caution, as well as
13 the audio, the beep and tone. So talking through that, I was on
14 the controls and so I recognized what it was. I saw that it was a
15 stab (indiscernible) caution and that the stabilator wasn't
16 programming as we were increasing air speed so I slewed the
17 stabilator letting them know that hey, I was still in the
18 stabilator with the cyclic (indiscernible) up to zero,

19 And then once we got up into the traffic pattern, we had the
20 crew chief get to the FRC so that we can read the different steps,
21 and then once we got through the steps, one of the things is to
22 reset the stabilator to auto mode. He asked me if I was at a
23 comfortable air speed, and then I said yes, and so he reset the
24 stabilator to the auto mode and then we continued for the landing.

25 Q. One second. My computer is locking out. I'm trying, trying

1 to save on something. Here we go. Okay, how about altitudes?
2 Did he ever correct you on your altitudes in the D.C. HELO routes?

3 A. No, not that I recall.

4 Q. The -- which, which routes did you fly downtown?

5 A. For -- the only time we went to the HELO routes was when we
6 were doing that PC training, so we went -- we departed Davison
7 into Springfield, took Route 5 through the Pentagon transition.

8 Q. One second. I'm trying to connect this to the internet
9 because it keeps freezing up on me. I should have just taken
10 that. All right, I'm having technical issues. Let's take a short
11 break. I'm going to pause the recording.

12 (Off the record)

13 (On the record)

14 BY MR. BRAMBLE:

15 Q. And we're back on the record at 8:48 a.m. Eastern standard
16 time. Okay, can you tell us which HELO routes you flew with
17 Mr. [REDACTED] during the A Part and NVG check?

18 A. For the A Part evaluation?

19 Q. Um-hum.

20 A. There is no HELO routes for that one. That was only for the
21 follow on pilot in command training (indiscernible) portion.

22 Q. Oh okay.

23 A. No HELO routes for the A Part evaluation.

24 Q. All right, and refresh me. So it happened the same day that
25 pilot in command activities?

1 A. Um-hum. So, yeah, we had a block of hours. The A Part
2 evaluation wasn't going to utilize the entire portion of that
3 flight, so we also talked about doing a little bit of training
4 because I, I'm at that point where I'm up for that pilot and
5 command flight or check ride. So he just wanted to do a little
6 bit of training on that just to kind of help me out with that.

7 But for that, we took off from Davison to Springfield. From
8 Springfield we took Route 5 to the Pentagon transition over the
9 Memorial Bridge down past the -- down through tidal basin, Hains
10 Point around the south cap, then up to Greenbelt, and then just
11 past Greenbelt -- we don't -- I don't flight that route very
12 often, and it's Route 12 or 17 or something like that. I'm not
13 entirely sure which route it is, but it was only like a couple of
14 miles past Greenbelt before we landed, and then from there we did
15 a zone transition to a spot over just northeast of Montgomery
16 County, and then back to Davison. When we headed back to Davison,
17 we did a zone transition down to Route 3 counterclockwise towards
18 Davison and Springfield.

19 Q. Route 3 counterclockwise, say again?

20 A. Back to Springfield and then Davison.

21 Q. Okay, one moment. I'm going to pull up the chart so I can
22 see -- get an idea of where you went. Well, I'll just ask, did
23 you, did you transition Route 1 or 4?

24 A. Route 4, no. Route 1, yes.

25 Q. Okay, all right. So you went up in the Memorial Bridge/tidal

1 basin segment of that?

2 A. Correct.

3 Q. Okay. What altitude did you fly for that segment?

4 A. The Memorial Bridge to the tidal basin?

5 Q. Um-hum.

6 A. We were below 200. I -- when I fly through there, I usually
7 fly -- I give myself a little bit of a buffer of maybe 50 feet.

8 Q. Okay. How do you use the trim when you're flying, you know,
9 that low and on routes that sort of precise around landmarks?

10 A. I, I usually don't use the force trim. I usually just
11 manipulate the cyclic without pushing the force trim.

12 Q. Okay, so you get it trimmed up and then you just push against
13 the --

14 A. Right.

15 Q. Control force.

16 A. Right.

17 Q. Okay. What did you think of [REDACTED] as an, as an
18 evaluator? Did he seem --

19 A. He seemed very calm, collected. He seemed like a very solid
20 guy. Like I said, we, we went over the tasks just so that we both
21 understood what was expected, and as far as the RCOP goes, I typed
22 up the RCOP. I sent it to him to review. He said okay, this
23 looks good. I'm just going to add -- or not add but go into a
24 little bit more detail as far as like the highest risk of the
25 flight, and then I reviewed it with him to see what, what he

1 added, and then that was it.

2 But flying he seemed really straightforward. He, he -- I did
3 not think that I was in danger at any point or that he was unsure
4 of what he was doing or he was uncomfortable with anything, so --

5 Q. How was his demeanor toward you as an evaluatee? Was he --
6 well, describe that.

7 A. It was -- while we were flying or up until any portion of the
8 evaluation whether it was table talk or actual flying, there was
9 no hey I'm your buddy type of thing. He was, he was an evaluator.
10 He was serious about what he was doing and serious about getting
11 the flight done.

12 Q. And then how about his -- sort of his grading of things? Did
13 he seem kind of straight down the middle or was he kind of
14 forgiving if you made any mistakes or was he extra strict?

15 A. He was I guess pretty down the middle. He wasn't overly
16 strict to the point where he's like berating you or -- some people
17 shut down if they're spoken to a certain way in the cockpit by an
18 evaluator when they're already nervous that they're being
19 evaluated, but to how the evaluator talks to you can also affect
20 the -- somebody in the cockpit but at never at any point did I
21 ever feel like I was lesser than of a pilot if, if he had any type
22 of input for what was going on. It was always very constructive
23 criticism if any.

24 Q. Did you ever have any sort of minor deviations in flight
25 parameters, and he gave you some correct feedback and, you know,

1 correct your altitude or your speed?

2 A. No. For the most part, for the first portion where I would
3 fly down to Fort Mary Walker, I was basically the one giving him
4 directions to navigate down there. He was the one flying, and
5 then obviously I was doing the flying for the EPs and what not.
6 So he didn't really -- he really didn't have much to say as far as
7 like corrective action for me.

8 Q. Okay.

9 A. But I also am pretty good about catching if I'm kind of not
10 deviating but getting out of those parameters (indiscernible)
11 slightly how I announce that I'm correcting my altitude or air
12 speed but I mean I've only flown with him twice and I've never had
13 any issues really, so.

14 Q. Okay. When did you finish flight school?

15 A. January 20th, 2022.

16 Q. And when did you join the 12th Aviation Battalion?

17 A. I got here right around March 1st of the same year.

18 Q. Did you see any of the three crew members in the three days
19 or so leading into the accident?

20 A. I did see [REDACTED] in the stairwell of the hangar. It was
21 just in passing. She was heading up. I was heading down. I
22 assumed that she was going to talk with [REDACTED] about their flight.
23 Well actually I didn't assume that at the time. Looking back I'm
24 assuming that's probably what she was doing.

25 I just saw her at the time and we exchanged hellos and what

1 not -- a brief talking and then she continued upstairs, and so now
2 I look back and think that she was probably going to talk to him
3 about what they were planning on doing.

4 Q. Was that the day of the accident?

5 A. No. It was like a day before or day or two before.

6 Q. Okay. How did she look?

7 A. Happy as always.

8 Q. All right. She express any concern about the evaluation?

9 A. No, not in the little encounter in the stairwell. It was
10 really just a hey, how's it going, doing okay, and that was pretty
11 much the gist of it.

12 Q. Okay. See her any other time in the three days or so leading
13 up to it?

14 A. No.

15 Q. And then how about [REDACTED]

16 A. Just not direct contact. Maybe just going to the pilot's
17 office and grab something off the printer, he would be up there,
18 but not any direct conversations.

19 Q. Okay. How about [REDACTED] Did you run into him in the three
20 days before?

21 A. No, I didn't.

22 Q. Okay. How many times would you say you've flown that VFR
23 Route 1 to 4 transition by Reagan National?

24 A. 20, 30 times or more. We, we don't fly the HELO routes a
25 lot. We usually stick to flying down to Quantico or Mary Walker

1 or something like that for the terrain flight. You get a little
2 bit better training (indiscernible) out of going to those places,
3 so flying the HELO routes not super often but I'm very familiar
4 with them.

5 Q. Okay. Have you ever been through that area when they're
6 landing airplanes on Runway 33?

7 A. No, I have not.

8 Q. Is it your assumption that if you were at 200 feet or below
9 that you would be safe from landing traffic in the approach area
10 of 33?

11 A. In my own opinion, I would not personally want to fly in that
12 portion of the HELO routes if there was traffic landing on 33.

13 Q. That's your personal opinion now or did you think that before
14 the accident as well?

15 A. Before. I don't think that's -- I personally don't think
16 that that's -- I don't think it should be allowed -- HELO traffic
17 through that route if there is any traffic landing on 33.

18 Q. Did you think that before the accident as well?

19 A. I never experienced that, so I never really gave it any
20 thought.

21 Q. Okay.

22 A. But I'm sure I would have.

23 Q. What type of NVGs did you use on the NVG check?

24 A. It was with AVNIS -- I forget which type they are. They are
25 -- we use white phosphorous, or I always use white phosphorous.

1 Q. Okay, and when you went through the HELO routes for the PC
2 portion of the flight, was it nighttime?

3 A. Yes.

4 Q. Any challenges using the white phosphorous NVGs on the HELO
5 routes there downtown with the white phosphorous?

6 A. Personally I had no challenges that I experienced.

7 Q. Did you ever have to flip them up together and announce that
8 you were going unaided?

9 A. No.

10 Q. Did you ever have to glance under them to see things?

11 A. The only time I really necessarily needed to look under the
12 NVGs was to look in my instrument panel.

13 Q. Okay. Do you remember having any traffic called out that you
14 had to spot?

15 A. I don't recall it being busy. I don't recall necessarily
16 any, any traffic that we had to look out.

17 Q. All right. Compared -- have you been in other units -- other
18 aviation units?

19 A. No, this is my first duty station out of flight school.

20 Q. Okay. What would you say about the, the safety culture of
21 the 12th Battalion and your company in terms of how they balance
22 safety with mission requirements? Well, let me, let me take that
23 back. Let's, let's scope that to training flights. So in
24 general, what do you feel about the safety culture and approach to
25 training, training flights?

1 A. I honestly think the 12th puts a lot of emphasis on safety.

2 Q. What makes you say that?

3 A. We have monthly Battalion academics and that we also have
4 lessons learned not necessarily from safety-related things but
5 it's just something that we can all as a Battalion learn from
6 others experiences that they might have done, and we talk about it
7 in our close-outs -- company close-outs and what not. So RCOPS
8 that we do, we discuss these things as a crew during our crew
9 brief -- different situations or like I said the highest risk of
10 the flight that we think we might encounter. We go over these
11 things just to ensure that we as a crew we know what we're looking
12 for or to look out for.

13 Q. Okay, and then how about if you had a safety -- like a near
14 miss or a -- some kind of hazard that you identified in flight?
15 How would you report that?

16 A. I just would go through my chain of command.

17 Q. Who would you approach specifically first?

18 A. Platoon leader or the combination platoon and safety officer.

19 Q. Okay, okay, all right. I'm going to pass the questions on to
20 Van. Thank you.

21 BY MR. MCKENNY:

22 Q. I've got a few follow-up items for you. So was the NVG
23 portion of our evaluation with [REDACTED] was that part of your A Part
24 evaluation?

25 A. Yes, we did --

1 Q. So it was a combined stand eval and A Part -- I mean and
2 (indiscernible) NVG.

3 A. So my A Part evaluation includes an NVG portion --

4 Q. Um-hum.

5 A. Doing the emergency procedures and what not, so yeah, it, it
6 included -- they coincided.

7 Q. Okay, and how long was that portion of the flight for you if
8 you remember?

9 A. I would say probably an hour and a half or so. The total
10 flight time for that night was 3.7 hours I believe. Almost an
11 hour of that was doing the slings, and the rest of that was the
12 NVG A Part evaluation and then the PC training.

13 Q. Was the sling stuff day or night?

14 A. I want to say that was night as well.

15 Q. Okay, and then the HELO routes that you flew is part of, I
16 guess, your PC preparation, (indiscernible) you flew those on
17 NVGs?

18 A. Yes.

19 Q. Okay. So when you're on, when you were on NVGs flying with
20 these, did he ever go unaided?

21 A. No.

22 Q. If one of you needed -- thought you needed to go unaided,
23 what would be the procedure?

24 A. Well, if one crew member is aided, then we're all going to be
25 aided, but going -- wouldn't go unaided at a lower altitude. If

1 any of us felt like we needed to go unaided, I think that's
2 something we'd have to discuss as a crew in the moment just so
3 that everybody is comfortable and figure out where everybody's
4 comfortability is as far as like going unaided and when we do it
5 and at what point. I just think that would have to be a
6 discussion in the moment.

7 Q. Okay. Do you ever use the radar altimeter?

8 A. Yes.

9 Q. What -- for what purposes?

10 A. Terrain flight that's generally where -- we use it --
11 generally where we use it is a terrain flight.

12 Q. Would you consider like, the route along Route 114, 1 and
13 Route 4 a terrain flight?

14 A. Yes. Technically the altitude could be considered a terrain
15 flight.

16 Q. Um-hum, okay. What is your, what is your primary altitude
17 instrument that you use when you're flying along those routes?

18 A. Not the radar altimeter.

19 Q. The bar-alt? Do you ever cross-reference the radar altimeter
20 at night NVGs on one of those routes?

21 A. I haven't.

22 Q. Okay. Regarding follow-up on this safety -- safety culture
23 in your unit, have you ever reported any aviation safety concern
24 to your company safety officer or the Battalion safety officer?

25 A. I haven't personally. I've been asked if I feel -- if I've

1 ever felt uncomfortable with anybody at the company to the point
2 where I wouldn't want to fly with them or anything like that, but
3 I've never felt like anybody's done anything unsafe where I would
4 not feel comfortable. So no, I have never reported anything.

5 Q. Has any other pilots expressed concern -- aviation safety
6 concerns to you personally?

7 A. No.

8 Q. Do you know if any of them ever reported any aviation
9 concerns to either of the company safety officer or Battalion
10 officer?

11 A. No, not that I'm aware of.

12 Q. When you have these academics meetings, does the company --
13 is that a company level meeting or a Battalion level meeting?

14 A. We do both. Company academics generally is just that,
15 company academics, but when we do Battalion academics, they
16 usually follow it up with lessons learned or open discussion for
17 whatever anybody wants to talk about.

18 Q. Okay. So at both those academic meetings, is the appropriate
19 safety officer there? So if it's a company level, the company
20 safety officer or Battalion safety officer, do they speak at all
21 during those meetings?

22 A. They do. They -- at the end of the academics they go through
23 the different individuals like Battalion commander or XO safety
24 officer, maintenance -- senior maintenance officer. So they go
25 through the list of individuals to give the opportunity,

1 opportunity for any input that they might have for whatever --

2 Q. Okay.

3 A. Whatever they might have.

4 Q. So do you remember any particular topics the safety officers
5 mentioned during those meetings?

6 A. I've heard of -- there's been mentions of near misses in the
7 past that have been brought up, but generally it is I guess things
8 that were like ensuring that we -- our chains are used -- tied-
9 down chains or that are inlet plugs are in (indiscernible) or not
10 leave an aircraft not moored properly, things like that.

11 Q. Okay.

12 A. Or during the winter that it is frosty on top of the
13 aircraft. Just watch what you're doing. Don't use any type of
14 traction devices to damage the aircraft, things like that.

15 Q. Okay.

16 A. Don't ever pre-flight by yourself. Have somebody out there
17 with you just in case (indiscernible) -- somebody falls off the
18 aircraft or something like that.

19 Q. Okay. So you've flown -- so you're basically a pilot. You
20 usually co-pilot and there is another either instructor pilot or
21 pilot in command as you're flying.

22 A. Yes, sir.

23 Q. So when you're flying with these more senior pilots, when
24 you're flying the D.C. routes, is it a common technique to -- for
25 them to request visual separation as a standard practice even if

1 traffic may not be immediately in sight?

2 A. No, no. Anytime that I've flown with anybody in the HELO
3 routes or wherever it may be, even if it's not under the HELO
4 routes, the DCA tower, Potomac approach, they'll advise us of
5 other traffic, but never at any point have ever -- have I ever
6 experienced with another pilot or crew chief that we will maintain
7 visual separation without actually positively identifying which
8 traffic we had been advised on.

9 Q. Um-hum. So the tower advises there is traffic. What's the
10 conversation in the cockpit or is there a conversation in the
11 cockpit about that traffic?

12 A. Yes, sir. Everybody is scanning for the traffic, and once we
13 -- whoever identifies the traffic according to the clock direction
14 and distance or direction in travel, we have -- in my experience,
15 everybody's gotten eyes on that traffic before we said that we
16 have visual confirmation or requested visual separation.

17 Q. Okay. Is it difficult to pick out traffic on NVGs when
18 you're going through that DC area by DCA?

19 A. Yes, it can be. Well, I take that back. Yes, it can be with
20 all the background lighting, cultural lighting and stuff. It, it
21 can be difficult to find the traffic unless it's the heavies that
22 usually fly toward south for the runway that runs north/south
23 because they always come down the same line of traffic.

24 So they're fairly easy to identify because they're usually
25 above you when landing, but if there is other aircraft, other

1 helicopters on the HELO route, sometimes it can be difficult to
2 see those or just in general if the aircraft is too low, it can be
3 very difficult to identify those and not mistake them for a ground
4 light or something.

5 Q. Okay, thank you. I want to ask you about the transponder.
6 So I'm trying to understand how the, how the transponder would
7 have been set up for training A Part missions. So can you just
8 tell me what you brief -- what you get briefed on and then what
9 you -- how you set up the transponder before you fly?

10 A. For the transponder we use our company specific transponder
11 codes. We'll input that on pre-flight and run up and make sure
12 it's still the right transponder code, and then mode two and three
13 is what we usually fly with as well as mode Sierra unless we're on
14 a contingency flight or anything to do with (indiscernible)
15 routing.

16 Q. You said mode two and you said mode one?

17 A. Three, and then Mode S.

18 Q. Mode three. Did you say mode one? No.

19 A. No.

20 Q. And then, then mode S. How do you know when to not use Mode
21 S -- when to use it, when not to use it?

22 A. Well that's been something that has also been brought up by
23 our Battalion stands officer about using Mode S anytime you're
24 flying, but it's something that unless we're on one of those
25 contingency routes.

1 Q. Okay. So unless you're on a contingency route, you should be
2 using Mode S according to your stands officers?

3 A. Yes.

4 Q. And where -- is that written down somewhere?

5 A. I, I've looked for it and I've yet to actually ask them where
6 it's actually located. He says that it's written, so I personally
7 haven't actually verified that, so --

8 Q. And was this -- you talked to him before or after the
9 accident about this?

10 A. This was before.

11 Q. Before, and who did you speak to directly about this?

12 A. (Indiscernible) Ingals.

13 Q. Ingals? Okay, and was this something that he, he put out in
14 some of your academics meetings or --

15 A. It's never been put out in the Battalion academics that I'm
16 aware of. Sometimes I have, I have missed Battalion academics for
17 other obligations, so the ones that I have been to, I haven't
18 heard him put -- actually put that out.

19 Q. Okay. So how do all the pilots know what transponder code
20 that should be using when doing a training mission?

21 A. Training like --

22 Q. Like transponder setting, setting. What modes do you use?

23 A. Okay. I'm not sure where the actual reference is.

24 Q. Is it just word of mouth?

25 A. This is my first duty station out of flight school so that's

1 kind of what I run off of.

2 Q. Is it something that you get from the mission briefing
3 officer?

4 A. Not in my experience.

5 Q. Okay, and when you say company specific codes, you're just
6 talking about a four-digit squawk (ph.)?

7 A. Um-hum.

8 Q. Okay, and, and when do you set the code in the transponder
9 when you're getting ready to fly? Is that a checklist item?

10 A. There is an avionics checklist we usually go through. So the
11 radios and then set the transponder as well.

12 Q. So how would that go?

13 A. Or the -- set the pro -- not program but set the modes we use
14 and then put the squawk code (ph.) that we use during our avionics
15 check point write-up.

16 Q. Um-hum. So how does that go in the cockpit? Just kind of,
17 you know, the steps, the -- what would be said about --

18 A. In the checklist it just says avionics check and set, and
19 then the other pilot will go through -- set the radios that we're
20 going to be using to the predetermined frequencies that, that you
21 know you're going to be using right off the bat and then as well
22 as set the transponder code.

23 Q. Um-hum, um-hum, all right. Thank you for that. It's
24 helpful. I'm trying to understand that process. I think that's
25 all the questions I have for now.

1 MR. BRAMBLE: Okay. Eddie, and can I just ask briefly if you
2 could just speak up a little bit for the transcriptionist.

3 MR. WILLIAMS: Sure, sorry.

4 BY MR. MILLER:

5 Q. You're doing a great job so far. Thanks for being here.

6 One, one of the questions that I have -- a couple of them for you
7 -- are you said you finished flight school in January 2022.

8 There's a lot of two's in those numbers there.

9 A. It's actually my birthday, so I graduated flight school on my
10 birthday.

11 Q. It's my birthday also, but -- a great day. The -- your
12 progression -- like, when did you, when did you become a warrant
13 officer, like, on what, what day were you commissioned a warrant
14 officer?

15 A. It was July 28th, 2020.

16 Q. Okay, and, and when did you pin on the CW-2?

17 A. January 20th of 2024.

18 Q. Okay, all right, and your -- the progression since you got
19 from -- you said you got to the unit in March of 2022?

20 A. Correct.

21 Q. Was Covid done by then?

22 A. For the most part I think, yes. I know a lot of people were
23 having trouble PCSing out of flight school, so but I think for the
24 most part it was, it was just about over at that point.

25 Q. So you attended flight school during Covid?

1 A. Yes, sir.

2 Q. Wow, okay. The - your, your - and since you've been in the
3 unit, what's the, like, what's the Army standard for a warrant
4 officer progression from you got to the unit. You're, you're a
5 PI. They got you to be a mission PI, and then what's the
6 progression? From a timeline, how fast should you become a PC?

7 A. I think that's relative to the pilot because not everybody is
8 going to be the same skill level at the same time, so I think
9 that's a part of how well or how, how much they apply themselves
10 to be a PC or how well they can, they can -- we have a checklist
11 to go by for just the experience for this area. So getting
12 through the checklist but also they do PC evaluation or PC boards
13 where all the PCs come together and give their opinion whether or
14 not they think that whoever is ready to begin their PC -- actual
15 PC evaluation, but that's -- it's different for everybody.

16 Q. I was, I was just curious. So it's like -- let me ask you.
17 So, so you started, you started your PC training. Is that an
18 official thing in your log --

19 A. No.

20 Q. Where they say that you've started -- you are now started and
21 you got a certain time to get it done?

22 A. No. So you work on your PC checklist. It's just a bunch --
23 different tasks that they have decided hey, you need to do this.
24 You need to experience this before we can feel comfortable enough
25 to nominate you for that PC check route, and so --

1 Q. How big is that list? Is it a lot?

2 A. It's one page. It's different sections, just either flying
3 to certain places just so you see them because it's places that we
4 could possibly have to go to or seeing the HELO routes during the
5 day, seeing the HELO routes during the night type of thing. Just
6 a little bit of familiarization but also repetition to be sure
7 that somebody is, is ready to take on the role of being a pilot in
8 command.

9 Q. Question about your radar altimeter. Do you ever use -- do
10 you typically use the high and low bugs to assist you to maintain
11 a certain altitude?

12 A. No, I haven't. We do leave them -- the low bug at 80 feet,
13 the high bug at 800.

14 Q. Has anybody ever showed you how to use those strategically?

15 A. Nobody has ever used them that I've flown with.

16 Q. Okay. I have no questions for right now.

17 MR. BRAMBLE: Paul?

18 BY MR. KIM:

19 Q. Following up on that, would you ever fly above 800 feet on a
20 typical flight?

21 A. Depending on where we're going. If it's a HELO route
22 structure, there is the maximum altitude to fly, but if we're not
23 in the HELO route structure then flying down to Quantico or
24 anywhere else really, yes, we will fly over 800 feet.

25 Q. In those cases where you are flying above 800 feet, would you

1 adjust the max bug to be anything (indiscernible).

2 A. No.

3 Q. Is there anything that happens if you were to fly above that
4 800 feet max bug that's default set in there?

5 A. I haven't -- honestly I haven't noticed anything.

6 Q. Okay. This is a follow-up clarification question. How much
7 vertical or lateral clearance, if any, would you expect to have
8 for flying through the extended center line of DCA's runway 33 if
9 you were on Route 4 going southbound?

10 A. Can, can you repeat that?

11 Q. Yeah, sure. How much vertical or lateral, lateral clearance,
12 if any, would you expect to have if you were flying through the
13 extended center line of DCA's runway 33 if you were on Route 4 if
14 you were going southbound?

15 A. If I'm understanding the question correctly, I, I don't think
16 that -- I think the altitude separation or altitudes that we fly
17 at now are adequate. I'm assuming you're referring to the center
18 line running through, like, if you extended the center line all
19 the way out to the opposite shoreline?

20 Q. Yes, correct, like, for a three degree glide path, a flight
21 path an airliner would take to land on 33. Would you expect any
22 kind of clearance from airliner traffic that's landing at 33.

23 A. I personally would not want to fly through there if there was
24 an aircraft landing at 33. I would -- personally would like to
25 hold while that traffic lands.

1 Q. And is the reason for that because you don't think there is
2 adequate clearance between the traffic?

3 A. Yeah, I, I wouldn't want to fly that close to another
4 aircraft or a heavy landing or something bigger than we fly
5 landing on 33. I would not want to fly that close.

6 Q. Okay. How would the crew -- the HELO crew confirm that
7 everyone in the aircraft had visual traffic in sight if it was
8 called out by ATC?

9 A. So once ATC notifies us of traffic in our vicinity, everyone
10 starts scanning whatever direction -- clock direction, altitude
11 and distance the ATC advises us. That's our first go-to general,
12 and then we also anticipate if they are flying a certain
13 direction, then we will also anticipate them not being in that
14 direction, maybe a little bit further down or further ahead than
15 what was called out.

16 So we scan that entire section for the traffic and whoever is
17 the first person to see the traffic, they'll call out either the
18 same distance direction and altitude or more, or less I guess for
19 lack of a better way to put it, an updated distance direction in
20 the clock direction so that everybody can get eyes on it.

21 Q. And would that be verbally communicated or --

22 A. Yes.

23 Q. Through body language?

24 A. No, verbal. Well, verbal and body language. Some people
25 they'll -- you'll look out to the distance and you will look in

1 that general vicinity, and not necessarily see it but, yeah, you
2 can also use visual aids pointing or whatever just to kind of help
3 them hone in on where you might be looking, but for -- primarily
4 it is verbal.

5 Q. Got it. Are you familiar with and can you tell me what
6 airport 02VA is?

7 A. 02VA?

8 Q. VA, Victor alpha.

9 A. I don't know which one. I don't know that other name. It
10 doesn't ring a bell.

11 Q. Okay, no problem. What about 1MD5, Mike, delta 5?

12 A. No.

13 Q. Okay.

14 A. I may have heard it before, and if you describe it where it
15 is I would probably know -- might know what you're talking about.

16 Q. I believe it's northeast of Gaithersburg, just right around
17 that area.

18 A. Okay.

19 Q. Does that ring a bell?

20 A. No, that one does not.

21 Q. Okay, no worries. Is it more common to fly clockwise or
22 counterclockwise for a flight plan using Route 1 and 4? Which is
23 more common?

24 A. What do you mean by clockwise?

25 Q. Is it a round robin flight plan where you're turning back to

1 the field, departure point, right, and you're doing a circle
2 regardless. Is it more common to go clockwise or
3 counterclockwise? In other words, would you transition northbound
4 on Route 4 and 1 to return or would you transition southbound
5 Route 4 and 1?

6 A. If we were, if we were in the northern portion of the HELO
7 routes, you would transition north to south.

8 Q. Right, but you would take -- you can either go
9 counterclockwise north to south, northeast bound and then
10 southwest bound to return back to the field, or you can go vice
11 versa northwest bound to southeast bound giant circle to return
12 back to Davison. Which would be more common for example for a
13 stands flight?

14 A. It really just depends on where you're at in the HELO route.
15 If, if we're heading back to Davison, and we're say over at
16 Greenbelt at the eastern end of Route 1, then we go from Route 1
17 down to south, south cap down Route 4 back to Davison, or if
18 you're at Cabin John, we'd go southeast to Route 4 or -- so you
19 can just go Route 3. It really just depends on what your plan is.
20 I'm sorry. It's kind of hard to really answer that question.

21 Q. Let me, let me show you a reference. It might help. So if
22 this was the proposed route going clockwise this way, right, there
23 is Davison. Would you typically follow the route and, you know,
24 conduct the flight going clockwise like so, or counterclockwise?
25 Does that clarify a little bit?

1 A. I understand what, I understand what you're asking now. So
2 that's not necessarily something that's a set way we do things.
3 It really -- especially if it's an evaluation or any flight
4 really, you're going to discuss what your plan is and you -- if
5 your plan takes you to do something over towards the west first,
6 then you're going to go probably counter or clockwise and then go
7 up north, and then continue down through the HELO routes, but if
8 your plan has -- I don't know. It really just depends on -- I
9 guess overall what I'm trying to say is there is no set clockwise,
10 counterclockwise aspect of that. It really just depends on what
11 your plan is and what you discuss.

12 Q. Okay, and you would say there is no preference one way or the
13 other. It would just depend on the mission requirements?

14 A. Right, correct.

15 Q. Okay. Would you expect to do the evaluation in the airport
16 traffic pattern to be conducted at the beginning or towards the
17 end of a stands flight?

18 A. It's really up to the evaluator honestly. When I did my A
19 Part evaluation, we flew down to Fort Mary Walker first and then
20 returned to Davison and then did our traffic patterns for the EP
21 evaluations.

22 Q. And that -- did that include the NVGs by any chance?

23 A. Yes, it did.

24 Q. Okay. All of those are all my questions. Thank you.

25 MR. BRAMBLE: Okay. Dave?

1 BY MR. BLAIR:

2 Q. Okay, Dave Blair from Sikorsky. Just a couple quick
3 questions. So when you went to flight school, Lakotas first, and
4 then --

5 A. Right.

6 Q. And then Mike models and then to the L, right?

7 A. Right.

8 Q. To the Limas here. So how did you find that transition
9 between Mikes and the Limas after flying the glass cockpit, glass
10 cockpit and then the Limas?

11 A. It was, it was a little tough because with the Mikes
12 obviously you had the MFDs. You had two screens per, per pilot,
13 so everything is kind of right there in front of you and maybe a
14 little bit to the left or right depending on which seat you're
15 sitting in, but with the Limas, you obviously have to scan all the
16 way across if you're on the right side to see the -- not all the
17 way across but -- you know what I mean -- for the malfunction
18 panel, and then you got to look over here for all your gauges -
19 digital gauges or analog gauges. So it's -- it was a little bit
20 of a transition, a little bit of getting used to especially since
21 I have no prior aviation experience and that's primarily what I
22 learned on in flight school, so --

23 Q. Is that pretty common with your peers as well? People often
24 talk about it's a rough transition?

25 A. I wouldn't necessarily say it was rough. It just, it's just

1 a little bit getting used to increasing your scan more so than
2 what it was if you flew Mikes in flight school.

3 Q. Got it, okay. Thank you. The next one, so when you check in
4 let's say Cabin John going -- doing Route 1 and Route 4 south, so
5 far so good. You've got the picture? (Indiscernible). At what
6 point are you going to check-in with Reagan Tower or National
7 Tower or Washington Tower?

8 A. Is it okay to assume that we're already in contact with them
9 or just going from (indiscernible)?

10 Q. Just someplace -- let's say you're heading for Cabin John
11 from east, west, wherever --

12 A. Okay.

13 Q. On a route. When are you typically going to check in?

14 A. So we'll be up with Potomac approach while we're -- if we're
15 outside the SFRA is different while we're entering back into the
16 SFRA (indiscernible). I'll contact them and then probably a few
17 miles from Cabin John we'll either query for Potomac approach for
18 a frequency change or they'll go ahead and say or tell us to do
19 the freq change with DCA. So it will be a few miles out from DCA
20 -- or not DCA -- a few miles out from Cabin John that we contact
21 the tower.

22 Q. Okay. Sounds good. And typically what is Tower going to
23 come back with? You kind of talked about the communication tower,
24 what that sounds like and what they're going to provide and not
25 provide.

1 A. Yeah, we'll reach out to them. Once we get comms with them,
2 they'll say radar contact approximately where they see you at.
3 They'll tell us to remain outside the Bravo, join the HELO routes
4 where -- whatever route -- let me go back. We're making contact.
5 We get in contact with them. They'll say radar contact
6 approximately where we're located, where they see us, give us an
7 altimeter setting and what our request might be -- ask what our
8 request is.

9 Q. Great. That's all I got. Thanks.

10 MR. BRAMBLE: All right. Nick?

11 MR. JACOBY: No questions.

12 MR. BRAMBLE: Okay. I don't have anything to follow-up.

13 Van, do you have anything additional?

14 BY MR. MCKENNY:

15 Q. Just two things, I think. So on the HELO Route 1, 4, it
16 instructs you to fly off the East Bank. How do you judge how far
17 off the East Bank you position your aircraft?

18 A. Visual.

19 Q. Okay. So just talk me through what you're looking at
20 visually where the East Bank lined up on either -- you know if
21 you're heading south, it will be on your left side.

22 A. I, I give myself a little bit of a buffer from the bank, but
23 never cross the center of the river heading south or north, but I
24 try to -- unless there's a boat or anything crossing under portion
25 of the -- where I plan on flying, I'll avoid that, but close

1 enough to it where I'm not flying over the shoreline but far away
2 from, far away from it where I'm not -- still not quite close to
3 the center of the river.

4 Q. Now do you use any like, reference on your aircraft, like,
5 okay I'm just lining up the East Bank with my wheel or some post
6 in the aircraft or I'm going to keep it like, just outside my
7 wheel line or you don't -- you just kind of --

8 A. No, I just visually fly through there.

9 Q. Okay, all right, and then I'm going to have to go back to
10 this transponder thing a little bit. What have you been trained
11 about ADS-B? What, what have they trained you on that?

12 A. Just that it pushes out the information about your aircraft
13 call sign, altitudes. Not a whole lot has been (indiscernible).

14 Q. Which -- do you know which mode in your aircraft facilitates
15 ADS-B -- transponder mode

16 A. Not specifically off the top of my head.

17 Q. Okay. That's all my questions.

18 MR. BRAMBLE: Okay. Eddie?

19 MR. MILLER: No more questions.

20 MR. BRAMBLE: Paul?

21 MR. KIM: No questions.

22 MR. BRAMBLE: Dave?

23 MR. BLAIR: No, no questions.

24 MR. BRAMBLE: Okay. Is there anything we haven't asked you
25 about that you think we should know given our role in

1 investigating the accident?

2 MR. WILLIAMS: No, sir.

3 MR. BRAMBLE:

4 Q. Actually there was one follow-up I had which is you mentioned
5 that there had been some near misses in the past. Do you remember
6 any specific instances?

7 A. No, not particular. I don't know how recent or how far back
8 they were referring to, or if it was even our organization. It
9 could have been a local organization. I say local but we're
10 local, but a different agency that could have had the near miss.
11 None specifically that I recall from our unit had a near miss.

12 Q. Okay, all right. Anyone else that you definitely think we
13 should speak with besides all the folks we've been interviewing?

14 A. No, sir.

15 Q. Okay. That said, we'll call the interview complete at 9:46
16 Eastern Standard Time.

17 (Whereupon, at 9:46 a.m., the interview was concluded.)

18

19

20

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of Timothy Williams

ACCIDENT NO.: DCA25MA108

PLACE: via telephone

DATE: February 10, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Michelle Merges
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: ADRIAN STOWERS, Chief Warrant Officer 2

U.S. Army

Fort Belvoir, Virginia

Tuesday,

February 10, 2025

APPEARANCES:

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

EDWARD MILLER, Senior Accident Investigator
Federal Aviation Administration

PAUL KEMP, Chief Pilot
PSA Airlines

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Adrian Stowers:		
By Mr. McKenny		5
By Mr. Blair		31
By Mr. Miller		34
By Mr. McKenny		36
By Mr. Miller		37
By Mr. McKenny		39
By Mr. Miller		42

I N T E R V I E W

(10:30 a.m.)

MR. McKENNY: Today is February 10th, 2025, and it is 10:30 a.m. Eastern Standard Time.

My name is Van McKenny. I'm a helicopter operations group chairman with the NTSB, and I'm leading this working group for Investigation Number DCA25MA108 involving PSA 4352 and PAT 25.

The NTSB is an independent federal agency. The NTSB's not part of the Department of Transportation or the FAA, and we have no regulatory enforcement powers.

Our mission is to determine the probable cause of incidents and accidents and make recommendations to determine recommendations similar to events -- so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure the fact-finding phase of this investigation is complete and accurate.

We will be recording this interview so that it can be transcribed. We will receive the transcript; our group will review it for typos before it's included in the public docket for this investigation. We can provide you an opportunity to review the transcript if you request it.

I would like now -- I'd like to now to introduce group members and state their organizational affiliation.

MR. MILLER: Eddie Miller, FAA, senior accident investigator.

MR. KEMP: Paul Kemp, PSA Airlines, chief pilot.

1 MR. BLAIR: Dave Blair from Sikorsky Aircraft, Chief Pilot
2 for Safety.

3 CW5 JACOBY: CW5 Jacoby, brigade stans officer from the
4 U.S. Army Aviation Brigade.

5 MR. McKENNY: Each member will have two opportunities to ask
6 questions; we'll be taking turns. Please answer all questions to
7 the best of your recollection. If you don't understand a
8 question, just say so. And if you misstate something or want to
9 correct something, just let us know.

10 You're entitled to a representative of your choosing present
11 during this interview. Is there someone you'd like to have with
12 you as your representative?

13 CW2 STOWERS: No.

14 MR. McKENNY: Okay. Let us begin.

15 INTERVIEW OF ADRIAN STOWERS

16 BY MR. McKENNY:

17 Q. Could you please state and spell your name?

18 A. Adrian Stowers, A-d-r-i-a-n, S-t-o-w-e-r-s.

19 Q. And your rank?

20 A. Chief Warrant Officer 2.

21 Q. And your unit?

22 A. Unit is Bravo Company, 12th Aviation.

23 Q. Could you please describe your current role or position,
24 qualification and any additional duties?

25 A. Additional duties, I am the alternate supply officer. Also

1 the alternate ALSE officer for the company. Role in company is
2 just a PI, just a pilot in the company.

3 Q. Okay. And your experience in the -- a flight, total flight
4 time and H-60 flight time?

5 A. Total flight time would be roughly 640 hours with about
6 160 hours NG. And then in a Lima, I've got about -- that's total
7 flight time, but in a Lima, I've got roughly 25 hours total in a
8 Lima.

9 Q. And the rest of your time is in Mike?

10 A. Rest of the time is in Mike Models, yes, sir.

11 Q. Were you involved in aviation before you joined the military?

12 A. Before I joined the military? No, sir.

13 Q. So can you just give us a quick background on your aviation
14 experience?

15 A. So aviation experience, I've been in aviation for the past
16 12 years.

17 In 2013, I reclassified to be at a 15 Tango which is a Black
18 Hawk repairman. I did that 'til 2018 where I was -- then became a
19 warrant officer.

20 I have about 750 hours as a backseater with about
21 300 hours NG as a backseater.

22 Q. Did you know any of the crew that was in the -- involved in
23 the accident?

24 A. I did. I knew all three of the crew members.

25 Q. How well did you know each one, could you kind of describe

1 the relationship?

2 A. So, for [REDACTED] I knew him pretty well. He came here
3 -- me and him got here in September together. He got here
4 probably a couple weeks after I did so we pretty much in-processed
5 the same timeline.

6 We automatically became pretty good friends because we're
7 both from the south; just that southern rivalry being SEC guys so
8 we kind of hit it off pretty well.

9 And then it just so happens, me and him are just exactly a
10 year apart from each other in age, our kids are the same age. We
11 both have the same hobby of umpiring softball and baseball outside
12 of the work. So we kind of had just a pretty good -- a lot of
13 talking points.

14 He also -- once he got progressed back up from flying, he was
15 the head IP for progressing me so I've spent probably out of my --
16 most of my flights here with 12th -- or 12th Aviation were with
17 [REDACTED]

18 [REDACTED] the crew chief, we talked a lot. Both of us
19 from Georgia. It just so happens we're from the same area in
20 Georgia, northeast Georgia, so that was a really good talking
21 point. And then we were always talking, and he was always making
22 fun of me because I crossed over to becoming a pilot from being a
23 crew chief.

24 And then Captain [REDACTED] I talked to her in passing when
25 she's coming to company to do her flights and plan for her

1 flights. We had a SIM period together which went -- it was a
2 really good SIM period. Just to get to know someone else, go sit
3 in the SIM with them for a little bit.

4 Also, I think the day before the flight or the day of the
5 flight, I was helping her plan for, showing her some cool tricks
6 on the AMPS computer, how to make her planning a lot easier, a lot
7 more efficient. I wouldn't say I knew her as well as the other
8 guys, but I knew her well enough.

9 Q. The AMPS computer?

10 A. Yeah, AMPS. Our planning computer, planning software
11 computer.

12 Q. Is AMPS an abbreviation for something?

13 A. It is. I couldn't tell you the actual abbreviation of it.

14 MR. BLAIR: I think it's Army Mission Planning System. [sic]

15 CW2 STOWERS: Right there. There you go.

16 CW5 JACOBY: Or possibly Aviation Mission, but I can --

17 CW2 STOWERS: It's one of those. Yeah. I --

18 BY MR. McKENNY:

19 Q. What type of things were you showing her?

20 A. Basically it was the TDH cards, our Time-Distance-Heading
21 cards, how to put your fuel in there from, you know, because we
22 plan from fuel stop to fuel stop, how to put it in there to make
23 it easier to read so you don't have to do math on the go.

24 I think the way our TDH is kind of set up, it's a little
25 different than what I'm used to from my last unit so I was just

1 showing her how to kind of not really trick the system, but, like,
2 let the system tell you without having to look at the fuel numbers
3 and do math.

4 You can just look down, this is where your fuel number is and
5 that's what it's going to give you. And that'll tell you exactly
6 how much fuel you have with your reserve.

7 And then each point of your leg, you can just look at that
8 number and be like, all right, if I'm above that, I'm good to go,
9 I'm not in my reserve. If I'm below that, I'm in my, I know I'm
10 in my reserve without even having to do math. It pretty much
11 tells you that, and that's all it was.

12 And then just giving her some tips about what our SOP talks
13 about, you know, known to five points for like release points on
14 your inbound to your LZ's and stuff like that, what we're looking
15 for and what makes it easier for the pilot especially, like, if
16 you're getting evaluated, that's what they're going to be looking
17 for is, like, do you know what you're looking for, do you know how
18 to, basically, verify it, double verify it at a very known point,
19 your time, you know, where you're supposed to be at, just a very
20 clear point.

21 That's just -- just simple things, basic, you know.

22 Q. So she really wasn't familiar with those type things?

23 A. She was familiar. She didn't -- I was showing her my
24 technique of doing it.

25 Q. I see.

1 A. She had her technique and what she's been taught, and we get
2 -- everybody gets taught differently, it depends on where they go
3 and different techniques and that's what it is was.

4 I was like, hey, this is my technique, this is what I've
5 taught. I was like, I'm not the smartest man in the world, and
6 this is what I found easy so you can take, put it in your little
7 trick bags and technique bag, you can use it.

8 Q. That was the day before and the day of, you were helping her?

9 A. Day before and day of, correct.

10 Q. How did she seem?

11 A. She was very receptive of it. I know one of the -- another
12 technique with her, talking about the release points, she was
13 like, that's what, you know, she had the same technique taught to
14 her so she was very familiar with that.

15 With a new, with the TDH card stuff, she was like, she was
16 very receptive of that. She was like, okay, that makes it easier
17 than having to just put it in there the way we're taught and they
18 tell you. So it's just, just one (indiscernible) learning, just
19 messing around the computer more is all it was.

20 Q. Did she anything to you about the flight that she was
21 preparing for with [REDACTED] Was she -- what was her demeanor
22 regarding that?

23 A. No. She was like -- I asked her what she was doing, she said
24 I'm doing my APART. I've had many APARTs so I knew exactly what
25 that entailed for the APART.

1 She didn't seem worried at all. She was actually excited
2 about doing it. She said that's like one of the times that she
3 loves flying is her APART because there's just certain things that
4 we can't do unless we have an instructor pilot on board with us so
5 she was excited actually to get to go and fly with an instructor
6 pilot instead of having to be the pilot in command because --

7 Q. I want to go back to these TDH cards, is that something that
8 -- it's on your iPad, or is that part of the mission computer?

9 A. They're on our computer. We can download them so there's two
10 -- we can have them two ways. We can print them, or we can put
11 them on our iPad so it's either or.

12 Me, personally, I use -- I try to have both. I try to have a
13 TDH in the -- and a paper one in the aircraft, that's just my
14 technique, or we can have them on our iPads. But me, personally,
15 I use both so I don't know which one she was using, they were both
16 using.

17 I know [REDACTED] when I've flown with him, he liked it that
18 way, had both also that way if something did happen and our iPad
19 actually deleted it or something like that, we always had a paper
20 copy on us.

21 Q. Okay. Did you interact with either -- any of these people
22 outside of work?

23 A. Not really so much outside of work.

24 Since I've been here, it's been kind of busy so when I'm
25 outside of work, I've been, you know, I have three kids. It's

1 getting them to sports or to dance and stuff like that. So it's
2 been pretty busy.

3 I know we were planning, a lot of us, and we get some -- most
4 of us pilots get together on the weekends and hang out and try to
5 build that bond, and [REDACTED] been there a couple of times.

6 But besides, if it wasn't a work-related function, not
7 really, yeah, not --

8 Q. Any interaction with [REDACTED] 72 hours prior to the accident?

9 A. Yes, actually. So he sent me a text. I was -- I forget
10 where I was at, but he asked me for an LZ card because he knows
11 I've been progressing and doing these packets and working on
12 mission packets, and he wanted to see what the battalion was
13 looking for, a standard LZ card.

14 Which the LZ card is, basically, all the information about an
15 LZ that we would go -- landing at. So even if it was like, say,
16 we're landing at an airport, we would just still give all the
17 information, all the frequencies, hazards and all the information
18 that we need.

19 That way, if something happened like in the assault world or
20 even here on this, on the mission that we were on, if someone has
21 to step in our place, they can just look at that LZ card and be
22 like, hey, I got all the information I need, and I can -- don't
23 look up anything else.

24 Q. Was there a particular LZ he was asking about?

25 A. No. He wasn't, he was just asking for just a card just so --

1 maybe for Captain [REDACTED] to use it so she can have an example of
2 what he was looking for because he said that the LZ card that I
3 was, I did for, like, Quantico for a couple LZ's out there were
4 really good so he wanted maybe to use it as an example for a
5 teaching point.

6 Q. Okay. But that was just like an electronic interaction, text
7 messages or (indiscernible)?

8 A. It was a text message and then I went into the office -- when
9 I came into the office that day, I was asking him about it. I
10 sent him -- a couple of them was email that I, actually, I just
11 sent him the packet I had on his email. I was trying to get him
12 the digital packet that I had to break it down and he could
13 manipulate it himself.

14 Q. How did he seem that day when you interacted with him?

15 A. [REDACTED] I've never seen [REDACTED] upset, angry or mad. He's
16 always one of those guys that -- he's always -- he loves coming to
17 work.

18 Again, he was, knowing he's coming to work to teach and make
19 someone better in their field, and he loved to fly so he was
20 always -- knowing that he was getting to come fly, he was really
21 excited about that.

22 Q. Right. So a good mood?

23 A. A great mood, yeah. Because days that he knew he wasn't
24 going to fly, he was going to sit around, he was like, man, I got
25 to do records now that's -- I can't go fly. So, yeah.

1 Q. Did you ever fly with Captain [REDACTED]

2 A. I did not fly with Captain [REDACTED] I've only been in the
3 simulator with Captain [REDACTED]

4 Q. Oh, that's right, the simulator.

5 A. Yes.

6 Q. I wanted to ask you about that, but what -- can you remember
7 when that was you were in the simulator with her, like time, day,
8 month, year?

9 A. I can't remember the dates because I had just jumped in
10 because they had someone cancel. It may -- I want to say
11 November. Yes. Like in November of '24.

12 Q. Okay.

13 A. Probably the beginning of the month, definitely.

14 Q. And how many flights did you ever have with [REDACTED]

15 A. Three, maybe four. I think it -- I can't -- not 100 percent
16 sure. I definitely know I've had three.

17 He was my very first flight in a Lima. We stayed in the
18 traffic pattern. Yes. And then we did another flight out to
19 Quantico and then, yeah, so I say three.

20 Q. Okay, three. And did he do your APART or NVG check?

21 A. He did my, I don't know what should I call it because I
22 needed a PFE. So he did my PFE --

23 Q. PFE, okay.

24 A. -- for my NG to get me back current with NG, but he did my
25 first progression flight and Lima qual.

1 Q. So that was a NVG PFE, did you say?

2 A. Yes, NVG PFE. I got it on my -- we got my flight book right
3 here.

4 Q. Okay.

5 A. Yeah. So I've had three flights with [REDACTED] totaling about
6 6.4 hours total out of those three flights.

7 Q. Do you remember your flight, your PP flight, with NVGs with
8 him, can you kind of describe how that flight went?

9 A. Well, they kind of make fun of me a little bit because I have
10 so many NVG hours, and he was -- I wouldn't say made fun, he just
11 poking at me because he's like, you got all these hours, you're
12 having trouble. I was like, I'm in a new aircraft. He's like,
13 okay, cool.

14 So it went well actually. I haven't flown NVGs since April,
15 and I didn't fly them until, you know, it was November. Let me
16 make sure just so I have it correct.

17 Yeah, actually, it was December so I haven't flown -- last
18 flight was in April, and I didn't fly again, NGs, 'til December
19 because of PCS and school and stuff like that.

20 It went well. We started off doing just basic hovering in
21 the north side to make sure to get my bearings so I can get my
22 bearings and scan, moving the aircraft around.

23 We took it -- did the whole crawl, walk, run phase. We
24 started off very slow and once I got everything, my bearings of
25 flying or hold and hover, and just maneuvering the aircraft

1 inside, then we started off with traffic patterns, just normal VMC
2 approaches.

3 And then once he's like, are you comfortable, then it was
4 like, okay, now let's move into our 1000-series tasks, the rest of
5 our 1000-series tasks that we need to do to get you signed off
6 doing roll-ons, autos and stuff like that.

7 But very well. He reengaged me with some of those teaching
8 points about what I'm looking for, you know, making sure I had my
9 proper scan and stuff like that. He didn't try to overload me or
10 anything. He made sure that he was manning the radios and just
11 letting me be a pilot and fly.

12 I do remember he was also -- because he was, he's like, I
13 always have to be the guy that watches someone do demonstration so
14 he demonstrated some of his techniques and showed me some of his.

15 Even though me and him came to flight school about the same
16 time, he was giving me, hey, this is how I do it, you can take it
17 or not so -- yeah.

18 Q. So you've been in this unit since --

19 A. Since September 5th.

20 Q. -- since September. So how many times have you flown the
21 Route 1 4 VFR corridors?

22 A. Route 1 V -- I can tell you. My flight book keeps me
23 informed of everything I do.

24 So I have flown it one, two, three, four, four times total
25 for about eight, almost 8.8 hours of just -- and that's been day,

1 nights, night unaided on the zones, and the actual helo routes.

2 Q. Did you find those routes particularly challenging?

3 A. Not -- no. I think the chart depicts them very well. I
4 think the chart really defines what altitude you're not supposed
5 be above, and I think the compulsory points are very -- pretty
6 easy to pick out which ones and why they're one of the compulsory
7 points because they're easy to -- they're very highly trafficked
8 areas.

9 But no, not difficult at all. It was kind of weird coming up
10 Route 4. I don't want to say weird, but it was definitely
11 different. I was kind of used to it because I've flown right
12 beside SeaTac before because that's where I came from before.

13 So flying around Class Bravo, excuse me, airport that's that
14 busy was -- wasn't that difficult but just being down at 200 feet
15 below once you cross Wilson Bridge and then headed north or headed
16 south and having planes come over top was -- it was a different
17 experience, you know.

18 Seattle was easy. It was like north, south, and they kept it
19 -- so we paralleled everything. But having guys come over top of
20 you was like, that's nice.

21 It was a good thing for -- as an aviator, it's exciting to
22 me, I'm enthused about because I was like, that's something we can
23 do. I can be lower, you can be higher, and that's a cool thing we
24 get to see.

25 We get to see the part of the Potomac and part of D.C. that

1 no one else gets to see, but even that route, Route 1 to Route 4,
2 difficult? No. I wouldn't say it's that difficult.

3 Q. What is your primary altitude reference instrument when you
4 fly that route?

5 A. Primary altitude reference for that route would be your
6 altimeter. Some guys also like to verify it with their radar
7 altimeter.

8 Q. Do you use the radar altimeter?

9 A. Well, I try to use both. I try to make sure both of them are
10 talking to each other at the proper -- basically working right.
11 Make sure both of them are doing what they're supposed to be doing
12 and giving me the right readout.

13 Q. Okay. So you cross referenced?

14 A. Definitely cross reference both those especially being that
15 low, from my days of being in an air assault and flying a lot of
16 NOE flying, you know, 50-foot AGL above surfaces, you definitely
17 want to have your radar altimeter set properly, you know, your
18 altimeter set properly and stuff like that, but you want to look
19 at your radar altimeter and making sure everything is working.

20 So you want to cross reference both of them.

21 Q. And is that difficult under -- using NVGs?

22 A. I would say not, but with these aircraft being as -- I was
23 15 Tango prior working on Limas, these aircraft working at night
24 or with a night light that we have, it can be a little bit more
25 difficult.

1 Like I said, they're old, the lighting is not as great. And
2 so looking at that -- at that altimeter at night with the light
3 that they have can be difficult.

4 If you look at them through your NVGs, you're not going to be
5 able to see them. It's too close, and it'll be blurred out so you
6 have to actually look under your goggles to look at that.

7 Q. When you are flying north or south along Route 1 and 4,
8 you're supposed to stay along the east bank?

9 A. Yes. I would say that that would be the safer assumption,
10 stay along --

11 Q. How do you know how far off the east bank you're supposed to
12 be?

13 A. Me, personally, my technique was, I know the diameter of my
14 rotor system so I know how to stretch, how far it stretches out,
15 and so I just gauge, okay, if I put another helicopter on the east
16 bank, we really don't want to be any part of the helicopter over
17 the actual shore unless it's an emergency that we have to use it.

18 But we really want to stay over the water especially if we're
19 coming up Route 1 close to the actual restricted area of Metro or
20 D.C. area.

21 But me, I personally, I just, like we judge, we're doing our
22 multiship, how we judge how many disks (Ph.) we are in between
23 (indiscernible) I do the same thing with the shore.

24 Q. Okay. Do you use any reference in the cockpit to like put
25 the shoreline along like your wheel, or you just judge the rotor

1 diameter?

2 A. I just -- you just -- once you fly so much and you start to
3 get -- this is like any pilot, they can judge, you know, I can
4 tell just looking out the side, okay, this is how much distance it
5 is.

6 I keep a nice heading -- determine a heading and look out,
7 okay, we're straight with each other.

8 Q. Do you set up the controls any specific way to fly that to
9 maintain a good altitude?

10 A. Well there's not really a way to set the controls up in a
11 Lima. I mean, you can kind of trim it up, but at that close to
12 the ground, you want to be in full control instead of -- even with
13 a Mike Model, I wouldn't even couple up because that's even --
14 because Mike can do with a flight director system, it can do
15 anything so I'd rather have full control and be hands on.

16 Q. So you don't really --

17 A. I trim the aircraft up, let the aircraft trim itself up. I
18 set the trims and once it sets itself and it says, hey, I'm in
19 trim, and then I'm going to sit there and go against the trim to
20 maintain what it has. So, yes.

21 Q. Then do you crank down the collective friction and all?

22 A. I'm still -- I'm new to it, like, I only got 25 hours in the
23 Lima so I'm really new to the friction so I crank it down and once
24 that's set, once I take off, I tell him to set it. I'm like,
25 okay, that's good.

1 I feel like sometimes if you have it too loose, that
2 collective gets really loose, you can go and up down real easy.

3 But I do know there's some techniques where pilots will crank
4 it down a good bit, that way they're having to really deliberately
5 move that collective up and down to make it, you know, make the
6 helicopter go up and down.

7 Q. So on the route when you're checking in with
8 Washington Tower, how does that radio interaction usually go?

9 A. Usually, we're calling them before -- I'm trying to think.
10 Once Davison Tower passes us off to Nash, or passes us off to
11 Washington Tower, we'll call them, we'll let them know,
12 Washington Tower, you know, this is, in their case, PAT 25.

13 Say if we're leaving Davison and headed up 4 to 1, we'll let
14 them know, hey, we are just two miles off of Davison, headed to
15 Route 4, headed to, I forget the point right there, Marshall Hall,
16 and they'll be like, roger. And they'll let us know. We'll let
17 them know, hey, we want Route 4, and then give them the immediate
18 because they know Route 4's small.

19 We'll let them know Route 4, Route 1 to either Chain Bridge
20 or Cabin John or Route 1 up to South Cap, let them know which way
21 we're going, or we'll tell them a counterclockwise or clockwise.
22 And they'll be like, roger, report Wilson Bridge. And we'll be
23 like, roger, report Wilson Bridge.

24 And usually what -- the flights I've done before, I like to
25 call them just before Wilson Bridge instead of calling them after

1 because I've heard other police helicopters and stuff like
2 (indiscernible) get that call out late because they're busy so I
3 give them a call, hey, you know, PAT 25 or PAT aircraft, Wilson
4 Bridge, and then I'm crossing Wilson Bridge.

5 And after Wilson Bridge, it's an immediate -- once we -- we
6 had to be at 300 and below, the ride from Wilson Bridge is dipped
7 down to 200 and below.

8 Q. Right. So when you're checking in with Tower, do they give
9 you an altimeter setting?

10 A. I've had it sometimes, and sometimes I have not. But I would
11 say majority of the time, they're giving you an altimeter setting.
12 That's what they're supposed to give you when you check in with
13 them, but I've had it both ways.

14 Q. And you use an iPad for your -- in the cockpit?

15 A. Yes, sir.

16 Q. And do you ever utilize the Stratus device?

17 A. I have not used utilized the Stratus device yet. With my
18 iPad -- I do have, we have ForeFlight, and some of us have the
19 capability of turning on the traffic, that way we can see the
20 traffic that's out there.

21 Q. Hm-hmm, because you've got a cell --

22 A. Cell service, correct.

23 Q. -- service to your iPad. Gotcha. Yeah, okay. And yours
24 does?

25 A. Yes.

1 Q. Have you ever been instructed to hold at either one of the
2 VFR checkpoints coming up or coming down those routes?

3 A. So I haven't been told to hold at the checkpoint. The first
4 flight doing my LAO, Route 4, we got the clearance for Route 4.
5 We were doing Route 4 to Route 1 up to Cabin John because then
6 we're up Route 1 then going to Route 3.

7 We were coming in, they changed the -- listened to the radio.
8 They did change the landing direction for the inbound aircraft for
9 33. We heard that. I told my PC at the time, I said, hey, they
10 just changed -- the guys coming in on 33. He's like, I heard that
11 too. He's like, let's see what Tower wants us to do. He's like,
12 if they don't want us to do anything, we're going to hold up.

13 We were listening to that traffic coming in, and not
14 100 percent where that area is. It's the naval area. It looks
15 like giant golf balls. It's like radars, whatever.

16 Tower did come over. They told us, they called PAT, I think
17 it was PAT 21 at the time, they said, PAT 21, if you could, we
18 have an inbound aircraft at 33, if you could hold. And I think
19 they call it the golf balls too. They say, can you hold at the
20 naval area, the giant white golf ball looking things. We're like,
21 roger.

22 So we're headed northbound. We're going to start a left
23 orbit because we didn't want to turn it over the top of that so we
24 started a tight left orbit, and came over, but there was an
25 aircraft coming in on 01 also. So we had one coming in on 33. We

1 located the aircraft that was out to our 3:00. Picked it up. We
2 seen him, it was like, okay.

3 And we also, once we started turn, my PC that was sitting on
4 the left side seen one coming in on 01 at the same time. He's
5 like, let's make it tight so I made it tighter because I was on
6 the controls. And I told him, I was like, I'm not going to make
7 another orbit because they got guys coming in. I don't want to
8 set off the system for the guys coming in on 01. I'm just going
9 to come to a hover. How about I just come to like a, kind of like
10 really slow hover just in that area over the water. He was like,
11 that's a good idea.

12 And then once 11 was over the, not 11, once the guy coming on
13 33 was over the water, Tower then said, PAT 21, you're cleared
14 behind that aircraft, be cautious for wake and turbulence and
15 stuff like that, and we were like, roger. So we proceeded slowly
16 northbound.

17 But I've also heard it the south, coming southbound too.
18 They told them once they cross Memorial Bridge because we were out
19 flying too, it was our sister company, and the sister company was
20 coming down, they reported Memorial Bridge and Tower, again, said,
21 hey, we have someone coming back, we have someone coming in on 33,
22 can you hold just south of the Jefferson Memorial to get out of
23 that area that won't break any violations so basically over the
24 wharf, the Tidal Basin area.

25 Q. At any of the times you've flown those routes, were you ever

1 cleared through the route while they were landing someone on 33?

2 A. Personally, I have never been cleared while they were landing
3 someone 33, no. Every time that we have went through there or
4 been close to there, they had someone on 33, they would hold the
5 helicopter traffic.

6 Matter of fact, we had helicopter traffic coming up Route 4,
7 and we were coming down Route 1 at South Cap, and they -- they
8 didn't hold us. They knew we were going to intersect. They
9 didn't hold us, but they reported Wilson Bridge.

10 It was a -- I think it was a National Guard Lakota. They
11 reported Wilson Bridge, and we reported South Cap at the same
12 time. And by the time we got to the Tidal Basin to turn, that
13 right-hand turn to turn up the Tidal Basin up -- going north, that
14 Lakota was already right there also.

15 So either they were going really, really fast, or they
16 reported a little bit late.

17 So it was -- I wouldn't say it was a close call, but it was
18 definitely -- I see it, watch them go out in front of my
19 helicopter.

20 But we were being very diligent in scanning and looking out
21 because we heard him report, you know, and so we held up. And,
22 personally, I was on the controls then too, I went to the left,
23 went over the land, just to make sure, hey, we're going to stay a
24 good distance away.

25 Q. Was that day or night?

1 A. That was a night flight.

2 Q. On NVGs?

3 A. On NVGs, yes.

4 Q. So any of the flights you've done on the route, has any of
5 the pilots called traffic in sight and request visual separation
6 without actually seeing the other aircraft?

7 A. No. That's -- no, because when we had -- one of the things,
8 my technique, when someone says, hey, I got aircraft in sight, I
9 said, where is it at, like, give me a clock position where you see
10 it at, where's the distance of. It's a double verification.

11 So if you say you see it, I trust you see it, but, hey, tell
12 me so I can see it, when I can see it also, or the crew chief. As
13 long as -- we have three people in the cockpit, that means there's
14 six set of eyes out there in the cockpit. So we need, you know,
15 at least four of those eyeballs on that traffic instead of one.

16 That's just my technique. I like to say or you say you got
17 it, you know, Eddie, I want you to say, you verify you got it or I
18 verify I got it.

19 And that's the way [REDACTED] was too. I remember when we were
20 flying, I called out a traffic that we had inbound, a sister
21 aircraft, and he was like, where's it at so I can see it. I was
22 like, it's here. It's about three fingers above the -- we use
23 our, you know, distance tech and stick them out, it's like about
24 three fingers above the dashboard.

25 He looked over, clock position, looked at it. He goes, all

1 right, I can verify and then we'll call it out visual, can we get,
2 you know.

3 Q. And so if one of the pilots saw the traffic, would they
4 respond -- have contact before you coordinate with the crew and so
5 make the acknowledgement to Tower first and then say, okay, does
6 everybody see it?

7 A. In a -- usually, we would verify with everybody in the -- in
8 the aircraft just to make sure, hey, someone else got the aircraft
9 also. Usually we try to verify that before we go and do a radio
10 call.

11 Or if it's in the situation where it's a need quick response
12 because it is a tight area like that area and it's very busy, we
13 don't have enough time for everybody to see it, but we got to
14 trust each other left and right. So if you, hey, if it's quick
15 and we need to get it out because it's something unsafe, hey, get
16 it out, say yes, we've got visual sep and then maneuver.

17 But, you know, that area, is -- yeah.

18 Q. So you've been in other units, you were in another unit
19 before this as an aviator, right?

20 A. Yes, sir.

21 Q. Which one was that, that was up in --

22 A. I was in Alpha Company, 2158, 16th CAV.

23 Q. And that's where?

24 A. That was up at J.B.L.M. Washington so Joint Base
25 Lewis-McChord.

1 Q. What years were you there for that?

2 A. I was there from two thousand -- from September 2019 all the
3 way 'til May 2024.

4 Q. Okay. So that leads into my next question which is, compared
5 to other units you've been, what's the safety culture like in this
6 unit?

7 A. I think it's the same. So the Army, you know, they set a
8 standard and that's the standard that everybody adheres to, that
9 we all are striving to meet that standard.

10 It is different because there are two different mission sets.
11 This one's, you know, the mission set we have here for like more
12 city flying, more hardstand to hardstand flying.

13 Unlike the assault unit I was in where we're landing out
14 there in the dusty fields and taking it -- dropping off troops and
15 flying in real tight LZs.

16 Flying with just like one crew chief is a little different.
17 I mean, in flight school, we just fly with our instructor pilot
18 and maybe our stick buddy in the back, or if he's not there that
19 day, it's just two pilots up front, no crew chief.

20 But, again, that's hardstand to hardstand flying. It's from
21 airport to airport so you don't, technically you don't need two
22 crew chiefs or two -- or a crew chief to fly.

23 In an assault unit, you would need crew chiefs to clear both
24 sides of the aircraft because they might have guns on the outside
25 and stuff like that.

1 For here, I think flying with a crew chief does make it
2 easier for us because they're -- we do have a PAXs that get on
3 board and dignitaries and VIP people that's never been around
4 helicopters so that's their primary mission first, you know, clear
5 our aircraft but, second also, they're in charge of the PAXs.

6 But safety wise, I think it's, I mean, like, every units just
7 the same. I've been in three units total at aviation, and they've
8 all had the same standard because it's the Army standard for
9 safety.

10 Q. Okay. What do you know about ADS-B?

11 A. ADS-B pushes out a signal, lets you know -- depending on if
12 you have it on or if you don't have it on, depending on what kind
13 you have, it lets you know your altitude. Some will let you know
14 your altitude, your air speed and where you were at, so.

15 Q. Right. So is that something you learn yourself just being in
16 aviation, or is there actually training Army gives you about ADS-
17 B?

18 A. It's, I mean, they teach it in school. When we go through
19 our systems in flight school, we'll go over ADS-B and what it does
20 and the basics of our ADS-B.

21 Q. Okay. So when you're setting up the transponder for a
22 training mission, how do you know what mode to use?

23 A. Well it all depends, okay. On your training mission, and I
24 just did this recently on my last flight which I just learned, are
25 you flying our mission routing, like, the secret stuff that's not

1 able to talk about, that part of the routing, are you flying any
2 part of that routing.

3 If you are, then we're not going to have, really have our
4 ADS-B on because we don't want secret information of where we're
5 going or where we're at, what stuff we're on to get out there
6 because anybody can go, get on their phone now and get an app, and
7 pull it up and track you through your ADS-B.

8 My last unit, we got to do a presidential support. We had
9 one of guys that had their ADS-B on, and we got kind of scolded
10 for that. It was like, look, we're doing something very secret.
11 You can't have that on because then anybody can track what we're
12 doing and where we're going.

13 Q. Hm-hmm. If you wanted to turn the ADS-B on so that the
14 mission you're flying, your training mission, doesn't include any
15 of those sensitive routes, how would you set up your transponder?

16 A. You would put -- you would just -- we would turn it on. I'm
17 still used to this one, but you made sure your Mode C and Mode
18 Sierra and four and five was in there.

19 Q. And Mode Sierra is what?

20 A. I couldn't tell you right off the top of my head. I'd have
21 to look at that.

22 Q. Do you know which mode couples in with ADS-B?

23 A. I think four and five and Sierra do, if I'm not mistaken, but
24 I'd have to look that up.

25 Q. Yeah. All right.

1 A. I'm a pilot. I didn't say I was a smart pilot. I had to --
2 we have manuals for --

3 MR. McKENNY: Okay, that's good information. Thank you.
4 That's it for me on this round.

5 MR. MILLER: I'm going to pass to Dave because he's running
6 short on time.

7 MR. McKENNY: Oh, okay. All right.

8 MR. BLAIR: All right. Dave Blair with Sikorsky Aircraft
9 again --

10 CW2 STOWERS: Yes, sir.

11 MR. BLAIR: -- just for the tapes as well. So a couple quick
12 things.

13 BY MR. BLAIR:

14 Q. So you got probably a couple hundred, what, 400,
15 500 hours-ish of Mike time?

16 A. Correct, sir.

17 Q. And then just 25 hours, I think, of Lima time, right?

18 A. Correct.

19 Q. How'd you find that Mike to Lima transition?

20 A. It's like when, what's the best way, my daughter -- so you
21 know when you're streaming all your services on TV and then you
22 have to go back and watch in regular TV and there's commercials,
23 you're like, what's going on. It's like, that's what it's kind of
24 like. So it's like stepping back. It did make me feel more like
25 a pilot because I'm the one that's more in control, and I have to

1 use the gauges.

2 My first instrument flight was nice because it was, hey, I
3 have to do all the things we got taught in flight school with
4 instruments and basic instruments.

5 It was nice to get the -- to be able to learn these skills
6 and it is nice now, but definitely coming from Mike to Lima, it is
7 a transition. It's a different aircraft.

8 Like, they fly the same. It's a helicopter, it's a Black
9 Hawk. Your scanning technique is a little different. What you're
10 looking for is a little different.

11 Mike's telling you a lot -- giving you a lot more information
12 that's easier to use.

13 Q. Got it. Okay. You mentioned something, and I'm going to try
14 to paraphrase what you said, but you said, Mike can do anything.
15 And I think you're referring to Mike as in the flight director in
16 the coupled mode?

17 A. Correct, yes.

18 Q. So what do you mean by that, what did Mike (indiscernible)?

19 A. What they teach us in flight school and even at the units,
20 whatever you put in the flight director, Mike's going to do it,
21 right.

22 So Mike doesn't care, the Mike Model doesn't care about
23 limits really. So if you put something bad in and you tell Mike
24 to do something, he'll pull up the collective or the aircraft will
25 pull it up and torque it out. You're like over-torquing the

1 engine.

2 So you really have to make sure you're putting correct
3 information in, and that's what we learn is put the correction
4 information in, into the flight director, and then once that --
5 Mike will do everything else for you.

6 Mike will, the Mike aircraft will trim the aircraft up.
7 It'll keep it at, you know, hit the hover hold, hold at that
8 stable hover. It does everything that makes being a pilot easier.

9 You still have to be a pilot. You still have to guard and
10 manage Mike, but the old saying, trash in, trash out, is what
11 you're going to get.

12 So if you put good information in, Mike will make everything
13 else easier for you.

14 Q. Got it. Along the same lines, on the Lima Model, the RADALT,
15 you said you cross referenced it, right --

16 A. Yes.

17 Q. -- for your altitude, it has a low and a high altitude bug,
18 do you ever use those bugs?

19 A. I do use it just from, like I said, from being assault days,
20 I like to set mine at 50 feet, 50 feet means, hey, that's where
21 I'm -- the high altitude bug, usually we have ours set up
22 right 180.

23 So I usually don't use the high altitude bugs. I never have
24 to -- I've never really had to use a high altitude bug, but, yeah,
25 I've used a low bug definitely tons of times.

1 Q. Okay. Sounds good, and one last thing just to clarify for
2 this. You said you use your personal iPad with cell service and
3 that gives you the ADS-B in that --

4 A. So, yes. We also --

5 Q. And ForeFlight, I assume?

6 A. Correct. So we also, if we have the chip, whatever,
7 sometimes we can use our government -- they let us use the cell
8 service we have at, that way we can have and track it that way.

9 MR. BLAIR: Good enough. That's all I got. Thank you.

10 MR. McKENNY: Eddie?

11 MR. MILLER: Yeah. Dave took one of my questions so it makes
12 mine a little shorter.

13 BY MR. MILLER:

14 Q. When you're flying in the unit with the Lima Models, are you
15 flying with ESSS, the wing stores?

16 A. So this unit, yes. We do have, I think we have one aircraft,
17 I think it was, it might have been H-60, I'm not sure that day,
18 but we do have one aircraft that has actual wings and tanks. And
19 then we have a couple of them that have just wings on them.

20 Q. All right. Have you noticed any flight characteristics when
21 you're flying with the wings on or the wings stores with the wing
22 tanks that it kind of handles different from when you flew the
23 Mike Model?

24 A. Well I would say it handles different. I think the Mike
25 Model with wings and tanks handles about the same, but Mike has

1 those -- I think Mike's systems are better to adjust to that, for
2 the Lima.

3 So I've flown, actually a couple of flights, I've had wings
4 and some with wings and tanks, and tanks with fuel in them, and
5 some tanks without fuel.

6 And you'll feel it's, I'm trying to think of the word to say
7 it, not really oscillate, but like, it'll go up and down, like,
8 you'll feel it like a boat almost.

9 And you know you're -- you're like, it's not really windy
10 outside, and you feel the aircraft just doing the, like, wave
11 motion, like, it's going over waves because the way the wind is
12 catching going over that, and it's not really creating that
13 perfect foil for the wind, you know, go over the wing.

14 Q. The --

15 A. Porpoise, that's the word, porpoise.

16 Q. Have you progressed -- so have you started your PC training
17 to become a Pilot in Command?

18 A. At my last unit, I started it. There was some things that I
19 didn't like so I have it -- it got pretty much put it on hold.

20 So coming here, I haven't started my PC training because I'm
21 still in progression.

22 I needed, actually, I needed one flight which would be a
23 night unaided multiship that we do here.

24 Besides that, no, I haven't started here yet.

25 MR. MILLER: Okay. I don't have any other questions for

1 right now. Paul?

2 MR. KEMP: I have no questions.

3 CW5 JACOBY: I have no questions.

4 BY MR. McKENNY:

5 Q. I just have one follow-up here back with your SIM time with
6 Captain [REDACTED]

7 What was your impression of her when you were doing the SIMs
8 together as far as her aviation ability, knowledge and skills --
9 her skills?

10 A. Her skills, yes. So her skills were -- her skills were good.
11 You could tell, I mean, she is a commissioned officer. She
12 doesn't, she's not like us warrant officers that get in the
13 helicopter constantly. She does have -- she's up at battalion,
14 she works for the staff at battalion, and then is at the White
15 House working.

16 But she does take a -- I've seen her -- when she gets an
17 opportunity to fly and she can, she's always down there.

18 But in the SIM, she was really good. Her, as we call it,
19 stick skills, there was no problem with that. We like to give
20 each other EPs, back before we had an instructor in there, give
21 each other EPs in the simulator to see if, hey, stuff that we
22 can't do in a real live helicopter, hey, can we take this to the
23 -- execute this EP and get everybody out, you know, land it
24 safely.

25 So it was -- she did a really good job when -- I thought with

1 her stick skills.

2 I was still new so I was trying to go through the Lima
3 checklist to make sure I'm checking off all the blocks and stuff
4 like that while she was flying.

5 But, yeah, there was no complaints out of that.

6 Q. Right. So mostly what you did with her were EPs, did you do
7 any instrument flying?

8 A. No. Oh, yeah, we did some -- yeah, I guess we did actually.

9 We flew, we did about an hour of instrument flying. She
10 wanted to work on that so we got about an hour instrument flying.
11 I think we, when we flew in the simulator, we flew down to like
12 Richmond, I think, and then back so I could get some time on
13 instrument.

14 And then we just basically stay in the -- I wouldn't say stay
15 in the traffic pattern we actually were at D.C. in the simulator,
16 using D.C. as our, hey, that's our, those are our runways. You
17 got multiple runways to pick one and try to land this EP at.

18 Q. And that was under VFR that day?

19 A. Yeah, under VFR, correct.

20 MR. McKENNY: Let's go around one more time. Dave.

21 MR. BLAIR: No, sir.

22 MR. McKENNY: Eddie.

23 BY MR. MILLER:

24 Q. On the commander's letter for, like, your annual letter that
25 you get from the commander that gives you your task listings, how

1 many hours are you assigned for the year that you have to get?

2 A. So, Mr. Jacoby, you can probably back me -- I think we're --
3 here we're a FAC 2 so that gives us 30 hours of total time that we
4 need to have, but we still need to do our 9 hours of NG or 3 hours
5 of hood or weather time, and then 1 hour unaided.

6 But 30 hours total for the 6 months so that's 60 hours total
7 annually.

8 Q. Do you think that's enough hours for a young aviator to be --
9 have enough experience?

10 A. No. At my last unit, I was -- I set 11 months from flight
11 school 'til I got started in progression, and I think one of my
12 first years or first 6 months or, actually, first year, I got just
13 barely 60 hours.

14 And that was in an assault unit that was, I mean, we were
15 escorting SF Rangers and doing very high risky missions, and I was
16 a young aviator. The only way we got there is do it. So that was
17 48 hours, we had to 6 months so 60 hours a year is very, I think,
18 personally, is very low.

19 With our, the way our mission is and the way it's set, it's
20 kind of difficult to even -- we're pushing to get those hours.

21 MR. MILLER: Thank you.

22 MR. McKENNY: Paul.

23 MR. KEMP: No questions.

24 CW5 JACOBY: No questions.

25 MR. McKENNY: Okay. Well, thank you. I think we'll end this

1 interview then. I have no more questions. At 11:25.

2 (Off the record.)

3 (On the record.)

4 MR. McKENNY: So this is Van McKenny with the NTSB. We are
5 back on the record with Chief Warrant Officer 2 Stowers.

6 Mr. Stowers, could you just please describe your experience
7 with the two different types of goggles that are in use right now,
8 and your experience flying the D.C. routes compared to other
9 routes that you've flown in your experience?

10 CW2 STOWERS: Yes. The Army right now has two types of
11 goggles, NVG goggles that we use.

12 We have a green that displays green light, and we have one
13 that displays a white light, so like white phosphorous so it looks
14 basically like a black and white TV screen.

15 The white goggles were developed to bring in more light and
16 to use less light to make the goggles more efficient. And then
17 the green goggles do the same as they've done for the past almost
18 20 years. They're just not as bright.

19 So when you look at the white goggles, the white goggles are
20 brighter when you use light, especially when there's a lot of
21 light around.

22 Even though they have the auto bright control on them and
23 the, I think it's a bright spot control, that it's still a lot of
24 light. It brings in a ton of light and everything almost
25 brightens up.

1 Under the green goggles, it kind of does the same thing, but
2 it's not as intense.

3 So here in the D.C. -- or my experience was, I've flown in
4 Seattle and Tacoma area, doing the transition from Seattle to
5 Tacoma, which Seattle's a very bright city, so is Tacoma, is a
6 very bright city.

7 There's an area that's kind of dark in between them, but
8 flying there, we would have to almost, we would go unaided with
9 the goggles especially if we had white phosphorous because we had
10 all white phosphorous goggles.

11 So we would go unaided because it would be so bright that you
12 -- it would almost drowned out features. It would drown things
13 out with the brightness.

14 So we would fly basically from Seattle to Tacoma unaided just
15 so we could safely do that transition.

16 But even through Tacoma, not as big a city as Seattle, but
17 still bright because of the shipyard around the houses, we would
18 still be unaided. And once we know we were exiting, we would go
19 back aided.

20 But here in D.C., especially flying the helo routes, it is
21 very -- if you're using the white phosphorous goggles, they will
22 be, they would drown them out, like, it would -- there would be a
23 lot of things you would probably miss or not be able to pick up
24 because there would be so much light coming in that you wouldn't
25 be able to pick things out like you're supposed to.

1 The green goggles will do the same thing, but it would be
2 easier. It wouldn't be so hard on the eyes.

3 There is a lot of -- we don't do a lot of unaided flying
4 because we have our goggles with us, but there's some points along
5 the routes and, unfortunately, that little junction of Route 4 to
6 Route 1 is probably an area where you would want to use, either be
7 unaided or be aided, but you will be able to definitely scan it
8 because there's going to be things that are drowned out when
9 you're trying to put an aircraft up against the city. It's going
10 to like blend in.

11 And then I know Route 1 going counterclockwise up through
12 there, it goes through almost downtown, it's really bright up
13 through there.

14 So you really don't get -- or even Route 7 that goes out
15 towards Dulles. As you start to approach Dulles, it starts to get
16 brighter out towards Tysons Corner.

17 So, yeah, the biggest difference is with the white goggles,
18 they do bring in more light so they're going to basically white
19 out a bunch of stuff.

20 They're very great for low illum areas because they're pulling
21 in all that light and so it lights up trees and stuff of that.

22 In a city area, it's almost overwhelming with white goggles.
23 Green goggles, not as much, but tend to have the same effect.

24 MR. McKENNY: In your opinion, if you're flying from north to
25 south in that area with the white phosphorus goggles, picking out

1 low traffic --

2 CW2 STOWERS: Yeah, picking out from north to south, from
3 Route 1 down to Route 4, picking out low traffic with goggles on,
4 I wouldn't say it's difficult, but it would definitely make it,
5 yeah, it would make it difficult because -- especially if that
6 traffic is lower and blending in, you know, in the distance, so
7 you're seeing aircraft in the distance, it might be at 500,
8 600 feet, 700 feet, but in the distance, it looks like it's at the
9 horizon with other lights. So you won't be able to see that
10 looking out back towards the city or even looking south.

11 The only way we see the aircrafts coming in south going
12 Route 1 on Route 4 is because before Wilson Bridge, they're
13 probably at 1,000 feet before Wilson Bridge, and they're coming
14 down so you can paste them up against the sky, a dark sky.

15 It's like, okay, I got them, but as soon as they get down on
16 their final approach, that last, you know, inside Wilson Bridge
17 and stuff like that, it's -- they're in the city lights so they're
18 all the same.

19 But you know they're on that side because they're on the
20 western bank so -- yeah.

21 MR. McKENNY: Ed, do you have any questions?

22 MR. MILLER: Yeah. So if you're -- if there was an aircraft
23 that was inside the Wilson Bridge and it was coming at you, what
24 would be the perception under the goggles? Would you see motion,
25 or not -- if you didn't see motion, what could you assume?

1 CW2 STOWERS: If you didn't see motion, I mean, you can --
2 depending on the type of light, the way the light looks, so if you
3 have their front landing lights out, it's real bright, you're
4 probably not going to see their motion because they're coming at
5 you.

6 We would have to do our scanning techniques that we get
7 taught when we're flying NVGs, you know, different scanning
8 techniques to pick up that motion, that would be one of the things
9 that we would do to pick them the motion up. But coming directly
10 on and if he wasn't scanning or anything and looking in that
11 direction, he wouldn't be able to tell if they're -- what they
12 are.

13 You just see a bright light. It could be an aircraft that's
14 miles away, it could be an aircraft that's right there close to
15 you.

16 If you're headed southbound, you're looking back towards to
17 the east the way the American Airlines, or the airline coming in,
18 and they were coming -- I'm looking to the east towards 9:00, it's
19 a low aircraft, it's coming in directly at me, and I look back
20 towards the city, personally, I -- it's hard to tell. It's really
21 hard to look back and say that there's an aircraft.

22 So if they probably called back and said, hey, do you see
23 that aircraft. They probably did see an aircraft at the 12:00.
24 They didn't see an aircraft at their 9:00, or did they even get
25 told, hey, you have an aircraft at your 9:00 coming in.

1 So they probably seen it against the naval air force base
2 right there which has bright lights shining right there. So under
3 the NVG, especially if they're white NVGs, it all looks the same.

4 The benefit is if you're coming in on 01 headed south, you
5 can paste the aircraft coming in against the night sky which is a
6 game changer.

7 MR. MILLER: Thank you. I don't have any other questions.
8 Paul.

9 MR. KEMP: No questions.

10 MR. McKENNY: Okay. Nick.

11 CW5 JACOBY: No questions.

12 MR. McKENNY: All right. Okay. We conclude this section of
13 the interview. Was there anything else you want to add before we
14 close down the interview?

15 CW2 STOWERS: No, that was the only thing that I have was
16 about the goggles and even aided and unaided, at low altitudes
17 looking up, I want to say, yeah, that's the only thing.

18 MR. McKENNY: All right. Stopping the interview at 11:41.

19 (Whereupon, at 11:41 a.m., the interview was concluded.)
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of Adrian Stowers

ACCIDENT NO.: DCA25MA108

PLACE: Fort Belvoir, Virginia

DATE: February 10, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: CW3 KARL HALTERMAN, JR., Standardization Pilot
C Company, 12th Aviation Battalion
U.S. Army

Fort Belvoir, Virginia

Tuesday,
February 10, 2025

APPEARANCES:

VAN McKENNY, Aerospace Engineer
National Transportation Safety Board

EDWARD MILLER, Senior Accident Investigator
Federal Aviation Administration

PAUL KIM, Chief Pilot
PSA Airlines

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
U.S. Army Aviation Brigade

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of Karl Halterman, Jr.:		
By Mr. McKenny		5
By Mr. Miller		37
By Mr. Kim		43
By Mr. McKenny		53

I N T E R V I E W

(12:38 p.m.)

MR. McKENNY: Today is February 10th, 2025. It is 1238 Eastern Standard Time. My name is Van McKenny. I'm an aerospace engineer with the NTSB. I'm co-leading the operations and human performance working group for investigation number DCA25MA108, involving PSA 4352 and PAT-25.

The NTSB is an independent federal agency. The NTSB is not part of the Department of Transportation or FAA and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation here today helps ensure the fact-finding phase of the investigation is complete and accurate.

We will be recording the interview so it can be transcribed. We will receive the transcript and our group will review it for typos before it's included in the public docket for this investigation. We can provide you an opportunity to review the transcript at your request.

I would like to introduce the group members and have them state their organizational affiliation.

MR. MILLER: Eddie Miller, FAA, senior accident investigator.

MR. KIM: Paul Kim, chief pilot with PSA Airlines.

CW5 JACOBY: CW5 Jacoby, brigade standardization officer,

1 U.S. Army Aviation Brigade.

2 CW3 HALTERMAN: CW3 Karl Halterman, Charlie Company, 12th
3 Aviation Battalion, company standardization pilot.

4 MR. McKENNY: Thank you.

5 Each member will have two opportunities to ask questions and
6 we'll be taking turns. Please answer all questions to the best of
7 your recollection. If you don't understand a question, just say
8 so. If you misstate something or want to correct something, just
9 let us know.

10 You're entitled to a representative of your choosing present
11 during this interview. Is there any -- is there someone you would
12 like to have as your representative?

13 CW3 HALTERMAN: Not at this time.

14 MR. McKENNY: Thank you. We'll begin.

15 INTERVIEW OF CW3 KARL HALTERMAN, JR.

16 BY MR. McKENNY:

17 Q. Could you please state and spell your name?

18 A. Karl Richard Halterman, Jr., K-a-r-l, R-i-c-h-a-r-d, H-a-l-t-
19 e-r-m-a-n, then Jr. abbreviated.

20 Q. And your rank?

21 A. Chief Warrant Officer 3.

22 Q. And your unit?

23 A. Charlie Company, 12th Aviation Battalion, the Army Aviation
24 Brigade, Military District Washington.

25 Q. And your current position, qualifications, and duties?

1 A. Company standardization pilot, qualified in the UH-60 Alpha,
2 Lima and Mike. Duties are training and evaluation of about 20
3 rated crew members, pilots, and the aircrew training program for
4 15 non-rated aircraft maintainers as fliers.

5 Q. And your total flight time?

6 A. Just under 2,500 hours.

7 Q. And H-60 time total?

8 A. About 2,200 hours.

9 Q. And H-60L, Lima?

10 A. Roughly 1700 hours.

11 Q. NVG time?

12 A. About 800 hours.

13 Q. And can you just give us a quick snapshot of your
14 professional aviation background?

15 A. After finishing flight school, first duty station was in
16 South Korea as a line pilot. I made pilot in command in 250 hours
17 and served as a no-fly-line unit trainer along the demilitarized
18 zone for 2 years. Then I was stationed at Fort Bliss, Texas.
19 After attending the instructor pilot's course and the Mike model
20 transition, was deployed to Operation Atlantic Resolve for 9
21 months. After returning, deployed to humanitarian response in
22 Houston and Puerto Rico. After Fort Bliss, I was stationed at
23 Fort Rucker, now known as Novosel, to teach flight school and the
24 instructor pilot course. And then was sent to Egypt as a
25 standardization pilot for 1 year, after which I was stationed at

1 Fort Belvoir in 2022 as a company standardization pilot.

2 Q. Okay. Thank you. And what year did you graduate flight
3 school?

4 A. 2013.

5 Q. And how many years have you been in the Army?

6 A. I will hit 22 years in May.

7 Q. How familiar -- excuse me -- how familiar were you with each
8 aircrew?

9 A. With each crew member --

10 Q. Crew member, yeah.

11 A. -- of PAT-25?

12 Q. Yes.

13 A. Captain [REDACTED] and I spent some time together when she was
14 the operations officer coordinating and conducting AMRs, Air
15 Mission Requests. I've flown with her twice, if I recall, and
16 just numerous interactions outside the cockpit. CW2 [REDACTED] I did
17 not have many personal interactions with except through email. He
18 was an instructor pilot and conducted some evaluations for me.
19 And then Sergeant [REDACTED] I met him briefly when he first arrived.
20 He was assigned originally to Charlie Company and then moved to
21 Bravo Company because we ended up with too many non-rated flight
22 instructors in our company.

23 Q. Okay. So with your interactions with Captain [REDACTED] can you
24 just describe your impressions of flying with her?

25 A. Captain [REDACTED] was well organized, an incredible planner.

1 She would frequently call me if she had a question that she could
2 not find the answer herself, whether it was airspace she was
3 unfamiliar with, a procedure, landing regulation, or anything
4 unclear. If Mr. McGowan (ph.) was not available, I would
5 frequently get phone calls from her. When it came to operational
6 level requirements such as movement of personnel or assigning
7 missions to companies, she would call to get advice on how it's
8 been done in the past, especially with things like -- we recently
9 did flights for spouses, we've done flyovers for the Army
10 birthday, paradrops for the Army birthday, and things of that
11 nature, and she was frequently in the planning -- involved in the
12 planning of those on a support level. Very meticulous. And she
13 was always carrying a notebook and she would write literally
14 everything down to make sure that she remembered stuff. And then
15 if she made mistakes, she would constantly be asking for like how
16 could I do this better? I don't think I -- out of any of the
17 lieutenants or captains, I don't think I've seen any more
18 professional officer in this unit or really any unit that I've
19 been in.

20 Q. So our records show that you flew a PFE flight with her in
21 August of 2024. Do you remember that flight?

22 A. Vaguely. I knew I gave her an email. I wasn't sure if it
23 was her PC eval or a proficiency flight.

24 Q. It's proficiency. Can you just describe, you know, what you
25 do remember about the flight, how it was conducted? I think it

1 was NVGs and aircraft PFE. So whatever you can recall from that
2 flight as far as what you did or what you typically do, what the
3 expectations are, and how she performed?

4 A. Yeah, typically we'll do an NVG and aircraft PFE together
5 because the currency lapses simultaneously usually, or if the
6 aircraft lapses, then they've already lapsed on NVGs. A typical
7 flight will be about an hour. It's an hour minimum in order to
8 regain currency per the aircrew training manual. If a senior
9 pilot that I am confident is proficient in their tasks, it'll stay
10 in a traffic pattern without any real need to go anywhere and
11 demonstrate the ability to fly straight and level and perform
12 navigation tasks. Typically there will be three, minimum of three
13 simulated emergency procedures, some kind of malfunctions in the
14 aircraft. And just really the time remaining is usually spent at
15 the -- for the luxury of the pilot being evaluated so that they
16 have more time to build repetitions in and kind of kick off the
17 rust since they haven't flown in so long.

18 The fact that I cannot remember anything specific about that
19 flight means it went typically, she passed all her maneuvers.
20 Usually if I have something to remember it's because they failed
21 at something or needed work specifically. I would say it was
22 average.

23 Q. And do you recall where you went with the night vision goggle
24 part of it?

25 A. More than likely just stayed right in Davison's traffic

1 pattern. You said September?

2 Q. August.

3 A. August. So it was still -- since it would have been pretty
4 late yet, so yeah, we would have just been in the traffic pattern.

5 Q. Okay. And you never flew with [REDACTED]

6 A. No.

7 Q. Okay. Could you just, you know, say any comments about his
8 reputation as an aviator?

9 A. His reputation was that of a stellar performer and a well-
10 liked individual. He was assigned to Bravo Company. But just
11 hearing about him from members of Alpha Company, he is -- he was
12 missed when he moved companies after his tour in Honduras. Strong
13 work ethic, team player, very supportive of those who are stuck on
14 duty.

15 Q. Did you have any interaction with any of them 72 hours before
16 the accident?

17 A. I had an email from [REDACTED] telling me the results of an
18 evaluation he gave, performed for me the week prior.

19 Q. But no direct personal interaction?

20 A. (No audible response)

21 Q. How many times have you flown a DC route, routes?

22 A. I've been here for almost 3 years and I would say I fly these
23 routes two to five times weekly. Maybe 100, 200 times.

24 Q. Is there anything particularly noteworthy regarding Routes 1
25 to 4 transition?

1 A. Other than the scenic view, yes. So Routes 1 and 4 are
2 directly in the path of the visual approaches for runways 1 and
3 1-9 at DCA. So when I do my crew briefs and when I brief other
4 pilots for their missions, we talk about, you know, landing
5 direction at DCA, usually using the predominant winds, and the
6 landing direction at Davison as kind of a precursor to talk about
7 it. So if DCA is landing on runway 1, Route 4 becomes the focus
8 of where dangerous traffic might be and how to mitigate
9 separation. Landing on 1-9, Route 1 becomes the issue. It's
10 between Cabin John and Haines Point, the western portion of
11 Route 1.

12 So we'll talk about like, hey, when you're giving your
13 request to DCA as far as your routing, expect a delay or unable,
14 request something different, due to landing traffic. There are a
15 lot times that we'll cross from zone to zone, like Zone 5 to Zone
16 3 or Zone 5 to Zone 2, across those. And usually we'll get
17 disapproved due to the landing traffic. So just be ready with
18 something else so that you can request a different route.

19 When they're landing 3-3, which is not very often -- usually
20 it's due to congestion or whatever as far as I've seen, I've never
21 had DCA approve me to cross Route 4 or Route 1, like not once
22 ever. I've been told to hold either north of Memorial Bridge or
23 hold south, they call in the golf ball. It's the Naval
24 Laboratory. Or if I request a zone transition, they'll allow me
25 into Zone 3 behind the traffic. But I've never been able to cross

1 or do any of that in DC with traffic on 3-3.

2 I have noticed, and I talk about every time we fly -- I have
3 my own personal Stratus, a Stratus 3 that I have ADS-B on. And
4 even before I enter Route 4 or Route 1, something I teach my
5 pilots is look at your map and count the number of aircraft on
6 approach. Usually there's, during rush hour, four to six that you
7 can see when it's VFR like it is. Count them and then look
8 outside and identify them so when DCA gives you, hey, traffic is
9 over Chain Bridge, traffic is over Memorial Bridge at 2,000 feet
10 or whatever, you can count them, verify you have the right number
11 and request your visual separation that way.

12 If I don't, I'll have -- I'll ask tower to point that out to
13 me, like give me a direction distance. We actually did a tower
14 tour a year and a half ago, which was really helpful for us. We
15 talked to the tower chief and the safety chief about what helpful
16 callouts are if -- and I don't know if it's kind of like gone away
17 of like forgetting, but calling out the actual point that they're
18 over instead of like a direction of like 6 miles or 8 miles,
19 because there's a -- you know, I can see seven airplanes and
20 beyond 3 miles, I can't tell CRJ from a 747. So he'll identify
21 that stuff.

22 And then especially at night, it's even worse on 4 and 1. So
23 I'll spend -- if I'm under NVGs, I spend time looking through and
24 underneath so I can, you know, visual with the colors of their
25 lights because it's real easy to lose them in the city lights

1 especially if they're roughly the same altitude. Because when
2 they come up route -- when they come up on the visual for runway
3 1, they're usually pretty low by the time they cross Wilson
4 Bridge. So I've had planes abeam me while I'm on the side of the
5 river. And I'll be not on the controls, I have a pilot on the
6 controls, he'll be flying, and I'll say, hey, he's coming up, he's
7 on our 4 o'clock and, you know, like 200 feet above us based on
8 what the ADS-B tells me. And so they can be like, okay, I have
9 him in sight. Like I can't, I can't see them personally, but I'll
10 be calling him out to the crew and then telling them when they're
11 coming over. And that's kind of the training mentality I try to
12 instill in everybody. It's just we don't have enough ADS-Bs in
13 the company for every single aircraft.

14 Did I answer your question?

15 Q. Yes, that's very good. So a non-flying -- in your, what you
16 just described, a non-flying pilot would be monitoring ADS-B on
17 their iPad, the traffic.

18 A. Yeah, if they have it.

19 Q. If they have it. And then they would convey that information
20 to the flying pilot?

21 A. If possible. Yeah, and I can't speak to every crew mix, that
22 that happens in that exact way. It's just something that I'm
23 trying to push as the standardization pilot, as the senior pilot
24 in the company, that I try to push that to the guys, like get in
25 this mentality. Unfortunately, we have, I think, in our

1 company -- it's been a systemic problem that we have four physical
2 Stratus's. I think two of them are actually operational and those
3 are reserved for our mission lines. So the training lines don't,
4 usually don't get those. So they're just kind of stuck with
5 visually identifying traffic as it comes in.

6 Q. Right. And so this process that you describe, that's more of
7 a technique and it's not in --

8 A. It's not a standard.

9 Q. Not a standard. Right.

10 A. No, the standard is just identify traffic and maintain visual
11 separation with it.

12 Q. Have you ever had a close call, near miss on that route with
13 landing traffic?

14 A. I wouldn't call it a close call. It may be a close call, but
15 going through the FARs and what Class Bravo can get away with when
16 you assume responsibility through visual separation, it's
17 technically not a close call, right? A close call's when you
18 touch paint.

19 So I've had some questionable clearances, I would say, and
20 then I would tell my crew, hey, we're going to slow down and wait
21 for that traffic to pass by. And it's not just commercial
22 airplanes landing in DCA, it's helicopter to helicopter. We have
23 9 or 10 different agencies in helicopters flying around DCA that
24 all have their own missions to do. So even just Route 3, Route 5,
25 7, will have encroachments on different operational aircraft and

1 we'll avoid as best as we can. So as far as close calls, it's
2 really limited to I think the tower clearances would make it a
3 close call if I truly complied with that.

4 For example, Route 5 takes us into the Pentagon to land
5 there. I had tower tell me there's an aircraft departing runway 1
6 or 3-3 and I've had tower not tell me. But as I'm doing my
7 pattern around the Pentagon, I'll have an airplane suddenly lift
8 off. And so, you know, as a technique I tell my crew, hey, I see
9 a plane rolling out for a northbound runway, so we're going to
10 slow down and let him depart before we go around because of the
11 wake turbulence they will generate. But not actual like near
12 misses, no, I've never experienced any.

13 Q. Have you ever had, you or your crew misidentify traffic?

14 A. We absolutely have. We misidentify traffic and we've lost
15 sight of traffic partway through a route clearance. Both times --
16 both scenarios, I've queried tower to get, hey, where's that
17 traffic at? I've also, you know, gone to my ADS-B to kind of
18 pinpoint where it's at. Okay, he's over this fix; I don't see him
19 but that's 2 miles that way, so I'll keep an eye on it and let you
20 guys know when I find him again. I've lost it on the city lights
21 maybe 25 percent of the time, just to end up staring at it,
22 fixating on that spot to wait for something to move and then
23 regaining again. In most cases where that's happened, we just end
24 up slowing down a bit till we regain, you know, trying not to
25 encroach on those positions.

1 Q. So is it pretty common for pilots to request visual
2 separation, for the pilots to request visual separation?

3 A. It happens 100 percent of the time. We have a mission to do,
4 whether we're training, evaluating, or conducting an actual
5 mission to get from one pickup zone to one landing zone to -- you
6 know, there's 30 different LZs around the DCA area and we have so
7 many customers that we have to operate for, and the mentality is
8 to get the mission done. So we will do our best to identify that
9 traffic and then request visual as soon as -- it's almost second
10 nature, I would say, that once the traffic is identified, the
11 immediate response is to request visual separation because we
12 don't want tower to hinder our movements. If that makes sense?

13 Q. And hinder, you are referring to?

14 A. Holding, not -- I mean, being cleared into Bravo. We're
15 typically always cleared into the Bravo, but being cleared into
16 the central ring of the area, you know, within the DCA area where
17 typically most of our LZs are. I would say that is really just
18 second nature, like you have to get that out or tower's going to
19 delay you. So I think pilots tend to get into the habit of saying
20 it even if they aren't fully tracking the traffic if it's not --
21 if that makes sense?

22 Q. It does. And have you seen that in some of your --

23 A. I have. And when I give, say, a pilot command evaluation or
24 I'm doing someone's training to become a pilot in command for us,
25 they will -- you know, they want to show that they can do that

1 stuff and they try to do everything themselves. And I've had to
2 say, hey, slow down, where is that traffic? What is that traffic
3 doing? How is it going to impede us? Do we have a different
4 route we can request? Don't just instantly jump on requesting
5 visual separation and go straight into that area that you think
6 you need to go. Is there a better, safer, more efficient way of
7 doing that?

8 Q. Okay. So in a scenario where tower identifies traffic and
9 the pilot responds "traffic in sight, request visual separation"
10 like in one transmission, in your opinion, does he and his crew
11 actually have that traffic in sight?

12 A. So if, for example, I'm not flying and I hear another PAT
13 aircraft, and I hear DCA tell that PAT aircraft traffic, CRJ, 6
14 miles final to runway 1, and then traffic says traffic in sight,
15 request visual sep. Tower come back and say visual separation
16 approved, and then they'll proceed on their route that I might
17 have heard a few minutes ago they're taking Route 4, Route 1 to
18 Greenbelt, they're heading on the east side. I've heard all of
19 that. But what I don't typically hear is, I don't hear -- and
20 this is usually because of the frequency, they're separated when
21 there's two controllers. I won't hear that that CRJ was told that
22 the helicopter is maintaining visual separation, and that's been a
23 problem. And even when the frequencies are paired, I can hear the
24 tower talking to the planes but I won't hear tower telling the
25 plane that we you in sight. And that's usually greater than 50

1 percent of the time.

2 And I don't know if that's just a -- because they don't have
3 time to say all the things they need to say because they're
4 landing and departing a plane every 60 seconds. Yeah, they don't
5 always tell -- and I know that the T-CAS is supposed to tell them
6 to do a go-around when we set off the alarm, and I don't know if
7 there's a way they get absolved of having to do that go-around if
8 they're told that we're maintaining visual separation. I haven't
9 read that deeply into the FARs or company regulations, but I do
10 know that that does not happen all the time.

11 Q. So what you're saying is, because you cannot hear if the
12 tower tells the arriving aircraft that there's a helicopter --
13 there's helicopter traffic passing on left or right and you can't
14 hear the response of the aircrew from that arriving traffic, that
15 they either acknowledged that from tower?

16 A. So what I'm saying is, is I feel that because I don't hear
17 tower communicating with the airplanes most of the time when
18 they're split is I have no idea of knowing if that airplane sees
19 me at all. And if they're paired, I will know if tower informs
20 them, but I don't know their response because they're talking on a
21 different frequency. But even when I can hear tower telling that
22 aircraft that we see them, that only happens less than 50 percent
23 of the time.

24 Q. I see. Yeah.

25 A. So like if you were to imagine in the airplane, a CRJ on the

1 visual for runway 1 getting diverted to 3-3 for traffic spacing, I
2 don't know, if they weren't told, and then they're making a left
3 bank away from Route 1 to land on 3-3, there's a chance that those
4 pilots had no visual of -- or had no idea anything happened till
5 the last moment. That's what I'm saying.

6 Q. Right. Going back to checking with tower and acknowledging
7 traffic, do you -- I don't know to phrase this. Would a pilot
8 knowing what the traffic patterns look like up ahead, when tower
9 gives them a traffic call, would they acknowledge the traffic and
10 request visual separation even though they didn't have the traffic
11 immediately in sight but they're kind of sure where they thought
12 it was?

13 A. They shouldn't. I can't be for sure that that wouldn't
14 happen, but it shouldn't happen.

15 Q. Have you seen it happen? Have you been in an aircraft where
16 someone did that?

17 A. I have not. I have not seen that happen. I have with, you
18 know, fairly certain that I had positively identified traffic
19 before requesting visual separation, like I had the right traffic.
20 Sometimes I'll see a second plane or second bit of traffic behind
21 them after the fact, and then I'll query tower, like tower,
22 there's two airplanes, which one am I cleared visual separation
23 from? Or I have two airplanes in sight, request visual separation
24 again. You know, tell me what the other one is, if it's another
25 CRJ or if it's a helicopter or whatever it is, and I see it flying

1 by.

2 I have seen, you know, when -- when you're flying south,
3 really flying anywhere, whether it's 0-1 or 1-9, you know, you see
4 that elephant walk in the sky, you see like six or seven ducks in
5 a row. So I have definitely miscounted initially, you know, and
6 that's why I use the ADS-B to help me verify where they are, where
7 the closest one is. You know, I'll see him, okay, he -- the
8 closest one is over Wilson Bridge, he's short final. And I'll
9 look out and I'll see two that may look -- you know, maybe that
10 one over Wilson Bridge is higher in my field of view because I'm
11 so low, but the other one's just 10 and 15 miles out and it's just
12 brighter for some reason. I've seen stuff like that, and I'll
13 verify with tower.

14 And, you know, it's possible that -- I mean, I'm pretty sure
15 that it was a misidentification that happened here. You know, if
16 we're expecting a line of aircraft on runway 1 and one is over
17 here opposite at 10 o'clock because they're landing 3-3, that, you
18 know, then, you know, a radio got stepped on. We have pretty
19 crappy radios anyways. And it may have just been like he heard,
20 hey, there's traffic landing and didn't hear the runway number so
21 he's just looking down river.

22 Q. Um-hum. Yeah. Sure. So as a standardization pilot, those
23 routes that are especially along that section of Route 4 where
24 it's down to 200 feet, if you have a pilot that -- at what point
25 would you have to instruct the pilot to reduce their altitude if

1 they broke that 200 foot altitude? How far would you let it go
2 before you --

3 A. Immediately. Immediately.

4 Q. Immediately?

5 A. Yeah. Those -- I consider, and I'm fairly certain all of the
6 standardization from our unit considers those max altitudes to be
7 non-negotiable for VFR traffic. We even have rules that make it
8 so that we fly friendly that we'll use, you know, no lower than
9 100 feet below that altitude, so, you know, we fly as friendly as
10 possible due to noise complaints and other things like that. But
11 we -- that is essentially a hard barrier for us. We don't go
12 above that unless tower clears us above it for special purposes
13 such as like a flyover the NAS stadium or, you know, we'll be in a
14 zone for that. Yeah, only tower will absolve us of those
15 altitudes through their request.

16 Q. Right. So do you have a technique that you like to teach as
17 far as, you know, maintain those lower altitudes?

18 A. Pilot on the controls kind of keeps an eye on it. So the
19 pilot who's flying stays outside so they cannot hit anything.
20 It's essentially terrain flight for us per our training manual.
21 So below 200 feet, the pilot on the controls must stay outside to
22 avoid obstacles and ensure navigation. And the pilot not on
23 controls will cross-monitor all the system's instruments.

24 So if the altimeter reads -- as an instructor, one of the
25 things that I do because our Limas are so old, the two altimeters,

1 left and right, are often not jiving with each other. They are --
2 they're old. So usually I will figure out what the -- especially
3 because if it's an eval, whatever seat my evaluatee is sitting in,
4 we'll get the altimeter setting, figure out what our altitude
5 says, and then I'll adjust my Kollsman window the number of feet
6 required so that they match. So I don't have to constantly look
7 at her side to make sure that she's within the standard, or he.

8 But then as soon as I see that altitude being encroached
9 upon, I'll give a warning, hey, you're close to your max, you're 5
10 feet high, 10 feet high. We use the right altimeter as well to
11 assist with that. It doesn't work as well over water, especially
12 if it's smooth water, like icy. Icy water, the right altimeter
13 doesn't really -- can give some like erroneous readings a little
14 bit. But as soon as she breaks through that, my hand goes on the
15 clutch. It's kind of like, hey, you're high, come back down, to
16 kind of like let her feel and hear what's going on. And that's my
17 technique for keeping someone inside of a safety limit.

18 Q. Okay. So you say you do or you don't, you cross-reference
19 radar altimeter?

20 A. I do.

21 Q. You do?

22 A. I do. Absolutely. It's just I will cross-reference it with
23 other visual cues because I know that it is not as reliable over
24 water, certain water surfaces for radar altitude. The baro
25 altitude is better for that situation, however, due to variances

1 between the two and then variances between the aircraft and what
2 the local altimeter setting is, can create erroneous readings. So
3 we have a pretty wide margin. I think it's 70 feet of airfield
4 elevations when you're testing them to make sure that they're good
5 to fly with, and then 70 feet of each other.

6 Q. Seventy feet of each other --

7 A. So like the left seat and right seat have to be within 70
8 feet of each other and then the aircraft itself has to be within
9 70 of the airfield. And so, I think -- I don't know, there was
10 something that we were talking about Davison's altimeters maybe
11 malfunctioning or not. But they should have had DCA's altimeter
12 setting when they entered the airspace, anyways.

13 Q. Right. So cross-referencing the radar altitude altimeter, is
14 that a technique or is that something that's trained to?

15 A. It's a -- it is a technique to train to. So when you're
16 maintaining an altitude, the standard to maintain your altitude is
17 in the common standards for all of our tasks and it's plus or
18 minus 100 feet, is the standard for training, so whether you're a
19 sat or unsat. So as far as like the training standard is, she can
20 be 100 feet above that altitude and still be within standard;
21 however, for safety, she would not be in compliance. As far as
22 the techniques used to monitor that altitude, it's just cross-
23 referencing all the instruments is the standard, just monitoring
24 all instruments available.

25 Q. Yeah. So I just -- I was trying to figure out like, so when

1 you're instructing or evaluating, the primary instrument for these
2 corridors is the barometric altimeter, right?

3 A. Um-hum.

4 Q. And then from my understanding, there's no requirement to --
5 or it's not taught that they should cross-reference their radar
6 altimeter. But --

7 A. That's not entirely true because they're -- at terrain
8 flight, the radar altimeter should be used to maintain height
9 above obstacles.

10 Q. And terrain flight is defined as?

11 A. Flight below 200 feet above the highest obstacles. So the
12 altitude will change based on the undulation of the terrain or
13 buildings or towers, bridges, things of that nature. So the
14 altitude will fluctuate as you cross over it. Over water it
15 should remain relatively constant.

16 Q. Sure. And then another thing you said was that, per the
17 training, aircrew training manual, that on low level flight,
18 terrain flight, one pilot, the pilot on controls is outside and
19 the non-flying pilot will be monitoring the aircraft?

20 A. Yes. So the -- that's not to say he won't also be outside --

21 Q. Right.

22 A. -- to help with clearing their side of the aircraft and
23 avoiding obstacles, but they will be -- should be the only pilot
24 that is really coming inside to check the instruments, checking
25 the maps for navigation, checking radios, tuning instruments and

1 things like that.

2 Q. Right.

3 A. The pilot on controls should be just focused fully outside
4 below 200 feet.

5 Q. So on an NVG A-PART check ride, how would that be conducted
6 in this portion of the flight, this Route 1-4 transition?

7 A. I don't know exactly how many flight hours they've already
8 conducted at the point of impact, but the last -- so I did almost
9 the exact same route two nights prior. We took off from Davison,
10 landed at College Park as a simulated pickup zone, and then hit
11 Route 1, Route 4, and headed south, so roughly, roughly a similar
12 route. At that point, my -- the pilot I'm evaluating, he's the
13 one monitoring and I'm the one on the controls because I'm
14 evaluating him doing navigation and radio communications for that
15 phase of the flight, his route planning, his ability to get me
16 there on time, and things of that nature. So his job is to tune
17 radios to navigate and monitor the instruments. Me, as the pilot
18 in control, I'm just doing my best to maintain the airspeed he
19 wants for timing and, you know, avoiding obstacles and flying the
20 routes and directions he wants me to go. It's what I imagine they
21 were doing at that moment, if they were doing the terrain flight
22 evaluation portion of it, would be the navigation portion of the
23 evaluation.

24 Q. Okay. In this scenario the pilot being evaluated is on the
25 controls --

1 A. Okay.

2 Q. -- and you're conducting the A-PART check.

3 A. So if they are the one on the controls, I've also done it to
4 where -- so if -- usually when I do an evaluation, the first leg
5 of the flight they're navigating and then we hit that first
6 landing point and I've checked off that they've hit their time,
7 done their navigation. And then I will take their products, their
8 maps, their nav cards and things like that, and I will see how I
9 can use their stuff to see how well they articulated their plan.
10 Then they'll fly it and I'll navigate the second portion.

11 Usually during that phase is when I'll give them certain
12 emergency procedures such as inadvertent IMC or unusual attitudes,
13 or I might induce a simulated malfunction in the aircraft, but
14 that's usually not in congested airspace. I'll wait till we get,
15 you know, close to the edge of the Bravo. I'll say, all right,
16 you're inadvertent IMC and they'll initiate a climb. We'll
17 contact Potomac approach away from traffic so that we can get like
18 an issue recovery back into Davison, as an easy way and a way to
19 check off more tasks for the route.

20 Same thing for unusual attitudes. If -- or what I might do
21 is, I might induce, hey, you have a night vision goggle failure.
22 And then they'll have to say, I have an NVG failure, and they'll
23 give me back the flight controls, and then they'll do their steps
24 to go through that task so I can evaluate that. So there's
25 several tasks that they'll have to be on controls for, for me to

1 evaluate those things, that we can usually do it enroute but,
2 again, I wouldn't do it anywhere in that particular area just
3 because there's so much going on and our ATM states not to do
4 things concurrently with other tasks being evaluated. So if
5 they're at terrain flight, they shouldn't really do be doing
6 emergency procedure training or anything like that.

7 Q. Okay. In the scenario, you're at that point in your Route 1-
8 Route 4 transition down to 200 feet, the pilot that you are
9 evaluating is in the left seat at the controls.

10 A. Okay.

11 Q. And what's their role, what's your role as a person
12 conducting this evaluation?

13 A. If they're in the left seat on the flight controls and
14 they're pilot in command, so I'm probably going to be thinking
15 about assessing their ability to react to an ineffective crew
16 member. At some point I could do that, in which case I could
17 announce that I have spatial disorientation. I could --

18 Q. I think I'm not making myself --

19 A. Okay.

20 Q. -- understood, clear here. So --

21 A. What is her role?

22 Q. What is -- yeah. So you're flying. You're in the cockpit.
23 This is an A-PART flight. She's got the controls. You're coming
24 down Route 1, making your step-downs. You know you're getting
25 into, you know, this low level area maybe --

1 A. Oh, I get what you're saying.

2 Q. -- you got arriving traffic and you're on NVGs. You know,
3 what's she supposed to be doing and what are you doing at that
4 point to, I guess, oversee the flight? Are you assisting her in
5 some way? She's got -- she knows what she's supposed to be doing,
6 so I guess what I want to know is what is she supposed to be doing
7 in this part of the flight and what are you doing as the copilot,
8 very experienced copilot, right? So --

9 A. Okay. I know what you're saying. I thought we were still
10 talking about like evaluation scenarios, what I'm --

11 Q. Not -- yeah. I understand.

12 A. In this situation, so she's on controls, her job is aircraft
13 clearance, airspace surveillance. So she's avoiding the
14 obstacles. She's flying the aircraft. She needs to call out any
15 traffic she sees. Any traffic I identify to her, she has to let
16 me know that she has it in sight or doesn't. If she doesn't have
17 traffic in sight, then I will tell her again, I'll point it out to
18 her, hey, 10 o'clock, it's about 4 miles away. If she still
19 doesn't have it in sight and it looks like we're on a path to
20 intercept, then I'll probably give her instructions to turn away
21 from it or whatnot, or hold or slow down or whatever. So her job
22 is flying the aircraft and that's solely her job.

23 Even if she's the pilot in command, you know, she's
24 responsible for me, things I'm doing as a copilot, overall safety
25 of the aircraft. But as her copilot, my job is to make sure I

1 hear the tower calls, what they're telling us to do, their
2 callouts. Navigation is my job, tuning the radios appropriately
3 and helping callout traffic, for the most part. In that low level
4 critical phase of flight, kind of putting aside nonessential tasks
5 such as checking fuel numbers and other little things, writing
6 down evaluation things, at that point are probably not going to be
7 done at that moment. But specifically, those are the jobs, is she
8 flies, calls out traffic as she sees it and avoids it, and I
9 navigate, tune radios, and help her with that traffic callouts.

10 And then the crew chief in the back, I assume he was sitting
11 on her side because that's where we usually put crew chiefs, is
12 behind the evaluatee or the person with the lowest experience. So
13 he should have been assisting with that traffic, if he can see it,
14 as well as clearing everything around the tail and picking up the
15 traffic as it goes behind us.

16 Q. Okay. So who's responsible for monitoring the altitude?

17 A. Right seat in this scenario.

18 Q. So the left seat's flying the aircraft and outside?

19 A. Yes. That's not to say she can't just look down at her
20 altitude or --

21 Q. I'm sorry, the left seat. Yeah, I'm mistaken -- misspoke.
22 So left seat's got the controls. She's looking outside. And the
23 right seat is monitoring altitude and airspeed as well as clearing
24 aircraft, monitoring for the tower and making radio calls?

25 A. Correct.

1 Q. So I guess I'm a little confused then, because if the left
2 seat is responsible for flying the aircraft but they're looking
3 out outside all the time, how can they monitor their airspeed and
4 altitude that's --

5 A. I'm not saying that they can't look in at their airspeed and
6 altitude. I'm saying that when they are at terrain flight close
7 to obstacles, they shouldn't be focusing on their instrumentation.

8 Q. Right. Okay.

9 A. Or fixating on it so much so, that the pilot not on the
10 controls should be assisting with watching the instruments inside
11 more so.

12 Q. Okay. So then who's responsible for monitoring and making
13 adjustments to aircraft position? So on that route that you guys
14 are supposed to be off the east bank, how do -- who's responsible
15 for making sure you're staying close to the east bank?

16 A. That would be both of them.

17 Q. Both?

18 A. Yeah. So because she's the pilot in command, she's
19 responsible for knowing the routes, because she's responsible for
20 training pilots on those routes. He's responsible for navigation
21 when he's not on the controls. But without a moving map, he's not
22 going to know where the aircraft is in position in relation to the
23 east bank. However, knowing that the route is drawn over the
24 water, they should know that -- where the aircraft should be in
25 relation to the shoreline.

1 Q. How far away from the east bank would you allow a evaluatee to
2 go before you decided that you needed to say something?

3 A. Not far at all.

4 Q. So when you're flying along the east bank, is there any -- so
5 this is back to you, if you're flying.

6 A. Okay.

7 Q. How do you decide how close you are to that east bank? You
8 know, what distance do you set up?

9 A. That will depend on opposite traffic. So if there's no
10 helicopter traffic on Route 4, I will usually be within a rotor
11 just of the shoreline. If there is northbound traffic, we'll fly
12 rules of the road and give them 150 feet or so away from the
13 shoreline. There's a pier that comes off the Naval Laboratory
14 that from Haines Point, I'll say, hey, fly to the end of that
15 pier, and that will keep them roughly the right distance. And
16 then same thing when you're heading southbound, I use the Maryland
17 State traffic signs over Wilson Bridge. There's like one right
18 off the east shore that I'll say, hey, fly to that sign. And
19 that's just my technique to say this is the right distance to
20 maintain the shoreline.

21 Q. That sign is -- that's when you're flying south?

22 A. Um-hum. When I'm flying north, I'll do the same thing --
23 well, flying northbound, we're just hugging the shoreline for the
24 most part. Without overflying houses and such.

25 Q. I see. Okay. When you check in with Washington Tower, how

1 often do they include the altimeter setting?

2 A. They will almost all the time. I don't think I've ever had
3 it not, to my recollection.

4 Q. And then is it standard procedure to read it back or do you
5 just acknowledge it?

6 A. Read it back.

7 Q. Read it back. So you mentioned that if you're evaluating
8 someone and your altimeters are different, they're not matched up,
9 and you will adjust yours to match theirs.

10 A. As a technique.

11 Q. As a technique, right. So when you hear the altimeter
12 setting call and the student you're flying with, the person you're
13 flying with says, okay, set right, how do you respond if your
14 altimeter is already set with --

15 A. So when they level off at 1,000 feet, I'll say, hey, what --
16 you know, let me know exactly when you're at 1,000 feet. And then
17 I'll see mine is 1100 feet, and then I'll adjust it to 1,000 feet,
18 okay, that's 100 feet off or -- well, that's an exaggeration. But
19 it's like 20, 30 feet off, I'll just -- like a couple of inches of
20 mercury so that they match up.

21 Q. But you won't necessarily say set on your side?

22 A. I'll let her know that mine's off and I'm setting it to match
23 hers.

24 Q. Okay. So you'll have a discussion in the cockpit about your
25 altimeters going to be set to match the other altimeter?

1 A. Yeah. And then, you know, a future altimeter settings,
2 she'll 2-Niner-Niner-2; 2-Niner-Niner-5 for me.

3 Q. Right. And you will respond with "set right" --

4 A. Um-hum.

5 Q. -- then, if you're --

6 A. And then we'll have the -- we also have our EFIS --

7 Q. Right.

8 A. -- well, actually it's in the center. So I'll -- in the
9 right seat, I'll set that as well because it's a little harder to
10 reach from the left seat. And just kind of use those and cross-
11 reference all three to make sure the altimeters are good.

12 Q. Okay. With respect to safety and professionalism, how does
13 this unit compare to other units you've been in? Your current
14 unit.

15 A. I think that 12th has -- not to like puff them up, but safety
16 is like the number one priority in 12th. Between our battalion
17 commander's guidance, her -- kind of her intent, we've actually
18 pulled back on a lot of risk assumption. Because we have more
19 junior crews, things that were expected of us and assumed that we
20 would just do has actually been discussed and talked about and
21 pushed back on, without getting into too many details. So the
22 safety culture is really, really big.

23 Professionalism, I think the nature of being in the District
24 of Washington makes everything -- everything we do is done very
25 professionally. We never know who's going to get on the aircraft,

1 so we train and brief, plan, rehearsals, all to a pretty high
2 standard. We're not a typical FORSCOM unit like regular Army
3 where they're doing parassaults and, you know, training to go to
4 war. We're training to take VIPs where they need to go safely and
5 in a timely manner. So we take this mission, all of our missions
6 fairly seriously. And then there's also pride of being better
7 than sister units, the Air Force. We're constantly, you know,
8 rivals with them and get customer preference from units like the
9 FBI and the Old Guard out of Arlington and stuff like that. So I
10 think this unit does pretty well. And a previous commander said
11 that we're always doing more with less. Our budget's pretty low,
12 so we have to make up for it with training and personnel. But --
13 yeah.

14 Q. Okay. I have a question about how you operate and set the
15 transponder.

16 A. Okay.

17 Q. How much is taught about ADS-B to the pilots?

18 A. In training scenarios, quite a bit. At least in Charlie
19 Company, we talk about it a lot. At least ADS-B in for monitoring
20 traffic, that's like -- I preach that every flight. That's why I
21 bought my own Stratus, because the unit can't afford to get them
22 for every aircraft. Of course, it's not -- it's in our spend
23 plan, but again, we have a very small budget. We have -- from
24 what I see at the operator level, the MEW does not give us what we
25 need to operate at a higher level of safety and efficiency.

1 But ADS-B is taught. You know, the pilots know that it is
2 mandatory in the National Airspace except for when the needs of
3 operational security, which is pretty much everything we do.
4 Essentially, you know, now that the memo that exempts military
5 from pushing ADS-B out is coded in the CFRs permanently, then we
6 use our unit SOP as kind of a way to dictate when it should be
7 used. So typically when we're on our internal squawks, we don't
8 push ADS-B out because they're tied to our mission. When we're
9 flying cross-country outside the SFRA or IFR someplace and we get
10 a different squawk code or squawking to 100, then ADS-B is used to
11 help with traffic separation.

12 Q. So which mode on the transponder enables ADS-B?

13 A. Mode S.

14 Q. Mode S?

15 A. Yeah. But it only works correctly if we set, you know, the
16 aircraft ID appropriately for the call sign that's assigned to us
17 that day, so -- everybody's trained in the use of setting the
18 transponder. So if the Mode S address and the aircraft call sign
19 match the squitter that is on the 1801 on the flight plan.

20 Q. So is that -- how you said that, is that more detailed than
21 just punching in the four digit squawk that you're assigned for
22 the day?

23 A. ADS --

24 Q. Do you have to do some menus, do you have to go into menus
25 and do that?

1 A. So the -- surprisingly, the transponder, the 123, is the only
2 new piece of equipment on our aircraft and it is Mode S capable,
3 which is nice. Yes, we set the squawk code. There's a button we
4 have to push to turn Mode S on or off. And then we have --
5 there's a very short menu function. It's like up, right, and then
6 you hit down until you get to your ID and address, and just verify
7 that those are the correct call signs for your aircraft that day.

8 Q. And typically what does that ID and address consist of for
9 the aircraft?

10 A. So aircraft ID is going to be our call sign. So it'll be the
11 PAT-25 and PAT whatever the number is. The Mode S address is tied
12 to the tail number so those should never change. And our
13 maintenance keeps a master list of the addresses and we verify
14 them periodically.

15 Q. Okay. So really what the pilots are checking is to make sure
16 PAT-25 is in the -- their call sign is in the menu for the ID as
17 well as your squawk.

18 A. It's supposed to be. It's supposed to be in there every
19 flight, even if Mode S is off. It should be updated as part of
20 your run-up procedures, maybe on its check and set. If we're
21 flying VFR, it can be skipped over. I've seen that done, though
22 disapprovingly. Because we're not planning on using Mode S, so
23 they won't update the address or the ID because they're not
24 pushing us with it. But every -- it should be done in case it's
25 needed.

1 Q. So in that case, what you just said, would that just then be
2 Mode C, what they use?

3 A. Yeah, mode -- Alpha-Charlie.

4 Q. Alpha-Charlie? All right.

5 MR. McKENNY: I think that's it for me right now.

6 Eddie?

7 MR. MILLER: Yup.

8 Karl, thanks for, you know, hanging in there. Do you need to
9 take a break or anything?

10 CW3 HALTERMAN: I don't.

11 MR. MILLER: You have a young bladder.

12 CW3 HALTERMAN: Ish. It's relative.

13 MR. MILLER: There we go.

14 BY MR. MILLER:

15 Q. First of all, thanks for what you do in your company and all
16 the hours and your experience level, what you've been teaching
17 other people what you do. I have a few questions and it's --
18 they're mostly some preference questions but some other technical
19 questions. So I'll start here. When you fly with goggles in this
20 area, do you prefer the green goggles or the white phosphorous
21 goggles and why?

22 A. I prefer not to fly with goggles in this area. It's just so
23 much easier to see everything. However, I prefer green goggles
24 because with the city lights being so dense, it just makes -- it's
25 so bright it hurts my eyes. And there's not a feature to dim the

1 goggles down at all. So you need a green or a white? So I prefer
2 green.

3 Q. All right. And you have a lot of flight time in this area.
4 And so when you're -- have you ever used the altimeter as a
5 warning tool to keep you within a certain altitude parameter like,
6 you know, like where do you set your low bug and where would you
7 set your high bug when you're in terrain flight?

8 A. So in the Lima, those do not do squat for us because that
9 brings my focus inside. In a Mike model, there's an audio warning
10 that comes with it. In the Lima, there's a little light that's
11 usually very dim and it's almost burned out, as you might
12 remember. So the low bug does not do anything for me, especially
13 if I'm busy looking for traffic, busy navigating, busy tuning the
14 radio. The last thing I'm looking is for a 1-centimeter wide
15 light that is hidden under the glare shield on top of the vertical
16 situation indicator that may or may not be on in that one moment I
17 get below my altitude or above it.

18 Q. Okay. If you're flying on -- how many times have you lost an
19 aircraft while you're flying on Route 4 and that aircraft was at
20 or near your same level of flight?

21 A. I frequently lose sight of aircraft in city lights usually
22 for half a second because I'm looking to where I'm expecting them
23 to be and maybe they've turned or, you know, I'm seeing the red
24 light instead of the green light and the red light matches every
25 other antenna light that's out there. The radio antennas are all

1 red lights. So I lose them a lot. And then I'll announce it to
2 the crew I lost them, and then the crew member behind me might
3 have seen them or the pilot next to me, if they don't seem him
4 right away. Or if I was the one that was like keeping an eye on
5 them, then I'll announce it and we'll kind of all focus on
6 regaining contact with that aircraft real quick. Not to the
7 detriment of our immediate obstacles and hazards, but we'll kind
8 of like look for it or I'll regain with him in like a second or
9 two. It usually never lasts very long just because of the way,
10 you know, your night vision works and that off-center viewing.
11 They might be in my blind spot that second I looked at them and
12 now I've moved, oh, there they are. But it happens -- it's pretty
13 frequent.

14 Q. Can you explain the difference in width of a day blind spot
15 versus a night blind spot by what you've been taught by the Army?

16 A. Sure. So the day blind spot is generally in the center of
17 your vision and is pretty close. You have, you know, your full
18 field of view for the most part during the day and it's pretty
19 easy to maintain view of contact out of your peripherals. At
20 night it's in the center of your vision, so staring basically the
21 size of a dime or a nickel in space, you can -- if you're looking
22 right at the object, it can disappear in your vision. So you have
23 to look at something that is maybe 10 or 15 degrees off of that
24 object that you're looking for in order for them to show back up.

25 Q. Thank you. That's very good. When you're flying -- when

1 you're -- are all of your aircraft -- or how many times have you
2 flown with the ESSS system on it with tanks?

3 A. In Charlie Company, not as often. Most of ours are broken so
4 they're not hung on the aircraft. But Bravo Company, I think, had
5 100 percent of them for a while all configured with ESSS with
6 tanks. It doesn't affect your viewing from about the 9:30, 2:30,
7 forward, everything is still pretty clear visibility wise. It
8 only becomes a factor when you're trying to look down and to the
9 sides and to the back, for the most part.

10 Q. So in your company, you usually don't fly with those because
11 yours are broken?

12 A. For the most part.

13 Q. Do you ever borrow Alpha or Bravo Company's aircraft and fly
14 theirs?

15 A. No. We're not good sharers --

16 Q. Okay.

17 A. -- of our aircraft. That's a commander-to-commander thing,
18 they don't like to share.

19 Q. Gotcha. All right.

20 A. And then Alpha Company has Mike models, so we're -- Bravo and
21 Charlie all have Limas, and typically the pilots are current only
22 in their series. So Bravo and Charlie could cross-load crew
23 members, but Alpha Company's kind of on their own.

24 Q. Okay. If you had your -- if you were the Sec Dep for the day
25 and you had to change some rules, would you change and implement a

1 width of a corridor for Route 4, Route 1, or would you leave it as
2 it is?

3 A. It's my understanding it's, what, half a mile to either side
4 or is it 1 mile currently? (Indiscernible) written. I usually,
5 within 1 mile of the corridor centerline is -- that's a little
6 wide for the river. If I had to change that rule or make a rule
7 for the corridor width, I would use maybe half a nautical mile
8 centerline as the max width, left or right. But even then,
9 directly over centerline for some portions of the route are
10 important, such as the Tidal Basin. There are certain objects
11 that's -- the National Harbor area where the war college is right
12 there, there are certain landmarks that you want to fly directly
13 over to help keep you away from the prohibited area, like keep you
14 away from the golf course and kind of away from the centerline of
15 DCA, so -- and those are techniques. They're not written in, you
16 know, route descriptions or anything like that, what you would fly
17 over. But that might be helpful. I've had pilots accidentally
18 fly over the wrong side of an island in the river because it's not
19 depicted that way, thinking that he violated something but he was
20 within the width of the corridor. So it might be helpful to have
21 kind of some descriptions of where to fly over certain points,
22 but --

23 Q. Okay. Just a second here. Do you think when you're flying
24 the route that there needs to be more compulsory reporting points
25 along the route that you're announcing to not only yourself but to

1 other air traffic control people?

2 A. No. I don't think there needs to be more compulsory
3 reporting points. The ones that are there I think are helpful to
4 tower when they don't have a -- potentially don't have visual of
5 you flying over those routes. I believe tower can't see you.
6 Wilson Bridge, Memorial Bridge, South Cap, those are helpful
7 because they're kind of announcing that you're past the
8 centerlines. Tower doesn't reply most of the time usually because
9 they're paired up and busy talking to the commercial traffic.
10 Really, yeah, the compulsory reporting points, I don't think we
11 need more of those.

12 I think if I was going to change rules or guidance really, it
13 would be if traffic is landing on certain runways, then tower will
14 have inbound traffic on 1 or 4 or 5 hold. In all of my flights in
15 DCA, I've never been cleared into an area where there's, you know,
16 a plane landing on 3-3, and I thought that was a rule, that they
17 would have you hold or divert you. I never had DCA tower give me
18 a vector or any -- I've never heard them give anyone a vector to
19 help mitigate the potential for a mishap. But that could be a
20 technique that tower controllers could use: Hey, turn right 2-7-0
21 to -- you know, for traffic avoidance, and then I'll place you
22 back into the zone in a second because I don't have time to tell
23 you where that landing traffic is and have you request -- I don't
24 have, you know, that kind of time for visual separation. That
25 would be nice. But maybe some designated holding points or just

1 something to help with the tower controllers, kind of like tools
2 for them to have us hold or -- I don't know.

3 Q. For right now your holding points are typically Haines Point
4 and then down past the golf balls?

5 A. Yes. I -- yeah. I've had to hold near the RFK stadium prior
6 to South Cap. That's not so much Haines Point, but in that area
7 on the way south for 3-3 traffic. I haven't had to hold on Route
8 1 for Cabin John ever. I have been told to reduce altitude
9 between the 300 and 700 foot area from Chain Bridge down to Key
10 Bridge. Yeah. I've been told to reduce my altitude for landing
11 traffic coming southbound for south landing traffic. And I've had
12 zone transitions denied or diverted due to landing traffic, and
13 that's fine. That's why they had the whole Chain Bridge
14 transition created. Instead of 1,000 feet, which obviously is
15 good for Route 1 traffic, but for traffic landing on Route -- on
16 runway 1-9, I don't know how much separation there is there for
17 crossing traffic.

18 MR. MILLER: I'm going to stop there and I might think of
19 something in a minute.

20 Paul?

21 BY MR. KIM:

22 Q. You said you prefer to fly unaided near DCA. Does that
23 change depending on how much moonlight there is?

24 A. Not really. No, because the city lights, the cultural lights
25 just, it makes navigation so easy. Because I know the pattern of

1 the lights in the different areas where -- Anacostia, in Arlington
2 and Alexandria, just because of the shape and the pattern of
3 lights is constant, based on where I am I can -- I can be 10 miles
4 away, look at DCA and point out all the landmarks I need and still
5 identify the traffic in the area pretty easily. Plus the -- being
6 able to identify the position lights on airplanes with the landing
7 light helps me identify which way they're going, whether it's a
8 plane or whether it's a helicopter, based on just the pattern of
9 the lights on the aircraft.

10 Q. So, for you, flying unaided is beneficial both for navigation
11 and traffic avoidance?

12 A. In the heart of DCA, yes.

13 Q. Okay. In the cases that you momentarily lost traffic, was
14 that when you were aided or unaided, daytime, nighttime?

15 A. Usually aided. And so I'll just tilt my head back and look
16 under the NVGs. I'll identify the, you know, the green position
17 light that gets washed out with the green goggle and then, okay,
18 there he is. And then I'll look back through the goggles again
19 and reacquire him that way.

20 Q. At what point in a STANS flight would you typically evaluate
21 a NVG failure?

22 A. Usually it's going to be -- I like to do it at terrain flight
23 when we're off in -- there's a lot of terrain areas near Quantico
24 and then there's an Army reservation, military reservation, Mary
25 Walker, to the south of us, or in like a nice dark area enroute,

1 so like the Maryland area that's south of the river, Patuxent
2 River, where it's nice and dark, so that they have to -- oh, I
3 have an NVG failure, now I flip my goggles up, I still can't see
4 anything because there's no lights. That's usually how I
5 incorporate that. Then I'll take the flight controls and then
6 they'll fix their goggles and then they'll fly again.

7 Q. Would that typically be towards the beginning of the flight,
8 towards the end?

9 A. Usually towards the end.

10 Q. Towards the end?

11 A. Yeah, usually the beginning of the flight is focused on
12 navigation, the timing. Usually we pre-coordinated permission to
13 land someplace, so we're kind of on a time hack to hit that spot
14 on time. So that's the focus of the first half of the flight.
15 The second half is usually focused on emergencies and
16 malfunctions.

17 Q. Are you familiar with the flight profile of a circling visual
18 approach to runway 3-3 in DCA that an airliner might fly?

19 A. There's nothing published for a circling to 3-3 for the Mount
20 Vernon visual. I am familiar that it's been given or offered to
21 pilots, yeah, but -- yeah, so I've heard tower say, would you
22 accept a circle to 3-3? Can you take a shorter runway? Can you
23 plan on 3-3 for traffic spacing? I've heard that. But based
24 on -- I've never -- I don't see -- I don't know if it's published
25 anywhere, circling to 3-3. The only instrument approach to 3-3 is

1 a RNAV approach. I think it's like 760 is the MDA to the visual
2 descent point. So that's a pretty steep approach from where it is
3 I think the visual descent point is. I haven't done the math on
4 where exactly it is in space.

5 Q. To clarify, prior to the accident, were you aware of the
6 lateral or vertical path of the circling approach at all?

7 A. I know of it. I've seen it done. I -- so I've been
8 northbound on Route 4 before, told to hold at the golf balls for
9 someone landing 3-3, and I've watched the plane do it. At that
10 time I was on a time crunch so I requested a Zone 3 transition, so
11 I went east over to Woods Corner and then north. But I observed
12 that traffic. He was pretty low over the buildings.

13 Q. Would you say that most crews would not be familiar with the
14 circling 3-3 profile?

15 A. It's rare enough that I would assume that most crews are not
16 familiar with it.

17 Q. Would you expect any kind of vertical or lateral clearance to
18 the landing traffic to runway 3-3 if they were circling, if you
19 were on South 4?

20 A. What do you mean by vertical or lateral clearance?

21 Q. Traffic clearance. So would you expect any kind of
22 separation between --

23 A. For vertical clearance, I would expect no over or under
24 flights of any traffic less than 500 feet vertically due to wake
25 turbulence. Lateral clearance, I would expect traffic to hold

1 that needs to get through that same area. So, you know, the
2 route -- the Haines Point, the central point on Route 4 that
3 crosses the centerline of 3-3 at 200 feet is pretty darn close to
4 where an airplane would be if they were on the VASI -- or PAPIs on
5 the glide slope. So that's --

6 I was shocked to find out that there was a lateral proximity
7 that close for those two aircraft. Even if, even if -- and this
8 is just -- this is my speculation. Even if PAT-25 had been at the
9 appropriate altitude at that time in that space, they would have
10 had some serious issues from wake turbulence from the CRJ and
11 probably lost a lot of altitude either way and had some kind of
12 mishap. What was it? Like 60,000, 70,000 pounds at takeoff?
13 It's a 700, right, the CRJ?

14 Q. 67 is the max landing weight.

15 A. Okay.

16 Q. So it was more than that technically, the takeoff
17 (indiscernible).

18 A. So around 60,000. That's some pretty good wake turbulence.
19 Black Hawks are hefty, but that's -- that would cause a
20 significant emotional event either way. So that's what I'm --
21 that's what makes me mad about like the social media and the
22 politicians, it's like they're all fixated on the vertical
23 separation. It's the lateral separation that was the issue, and I
24 don't know what happened. I don't know. Maybe PAT-25 initiated
25 go-around or someone yelled climb and that's why they both didn't

1 go around together. I don't know. But -- sorry I got off topic.

2 What was the question again?

3 Q. Oh, you answered my question. Thank you.

4 You mentioned -- you were mentioning some evaluation tasks
5 that you might conduct on Route 4 corridor, and you were -- one of
6 the examples you gave was spatial disorientation. Can you
7 describe how that might be simulated?

8 A. So I wouldn't do that on Route 4 because I don't have a lot
9 of room to do it vertically. For spatial disorientation, right,
10 I'm simulating a pilot that has -- usually it's the leans if I'm
11 flying instruments or like a Coriolis effect of, you know,
12 completely lost my vestibular ability to maintain my orientation.
13 So I need altitude for that and usually what I'll do is I'll
14 induce some kind of dive or descent or a climb and reduction of
15 power, and just put the aircraft in a nose up or nose down
16 attitude and, you know, give it about 2 to 3 seconds to see if the
17 pilot that's not on controls will take the controls from me and
18 recover the aircraft and level off. I usually get the crew chiefs
19 involved in that because if the pilot is busy managing the
20 aircraft doesn't do something in a timely manner, then the crew
21 chief will jump in and say, hey, take the controls, we're diving,
22 we're climbing, we're doing something; do something to fix the
23 aircraft. So I'm not going to do that on Route 4. There's
24 just -- and no instructor pilot should really do something like
25 that because especially if there's a lot of busy traffic going on

1 in that airspace. Yeah, if I do something like that at a low
2 level, it's going to be far away from other traffic. And usually
3 it's going to involve a climb, not a descent into terrain, right,
4 like that.

5 Q. Would there be any kind of evaluation tasks that might be
6 done on that corridor, Route 4 going southbound?

7 A. It would be pretty limited. On that corridor, if traffic was
8 light and I had the ability to be certain that I had all of the
9 traffic in sight, my route was good, everything was good, as an
10 instructor evaluator I might induce a malfunction that doesn't
11 require a lot of lateral or vertical movement of the aircraft. I
12 might do like a simulated single engine failure along a route of
13 flight. Route 4 probably not; Route 1 probably not until I got to
14 where I could start climbing to, you know, 7-, 800, 1300 feet. On
15 the routes I'll induce an engine failure in flight because my
16 philosophy is that malfunctions don't happen at an airport, along
17 a runway where there's a nice, safe place to land. It's always
18 enroute where things break. So I might pull one of the engines
19 back to idle and say, you have a single engine. And then they'll
20 just slow. The only thing they should have to do is slow to their
21 single engine airspeed envelope and, you know, we'll come inside
22 and go through the checklist, through the procedures. And as soon
23 as they've completed that, I'll take (indiscernible) back to fly.
24 And if you're someone standing on a rooftop looking at the
25 aircraft, you might see them slow down and then speed up and

1 nothing else has changed.

2 Q. All right. It's my understanding that the Stratus unit is
3 not SOP required. You did mention that you like to point out
4 using your personal Stratus that, you know, you can look for the
5 traffic and how to count it. Do you typically recommend utilizing
6 the Stratus to the training pilots that you're with?

7 A. If I had the money to buy Stratus's for every single pilot, I
8 would. In the Army, every pilot should be issued a Stratus. With
9 their -- now that we're in the digital and we're not using paper
10 pubs quite as much anymore, every pilot should have a tablet with
11 a moving map and a Stratus so they can see the traffic around
12 them, at least in the Limas, because we don't have moving maps in
13 our aircraft. We have a GPS that gives us an arrow that points at
14 things on the ground.

15 The unit -- the SOP question, it is required but only for our
16 mission lines, for the classified stuff as watch criteria. But
17 for training, it's not required. It's nice to have. It's just
18 the ones that we do have are tied up to those mission lines and we
19 don't have enough to go around. We've asked for them. I would --
20 yeah, I would give everyone a Stratus and I would mandate their
21 use. If I was Sec Dep, I would -- that's what I would spend my
22 money on, for this. That's one thing I would change.

23 Q. To rephrase the question a little bit: For a training flight
24 where I believe there's two units that are set for training, if
25 those are available to the crew, as an IP, would you suggest or --

1 yeah, would you suggest that the crew take the Stratus? Would
2 that be something that you --

3 A. Absolutely.

4 Q. -- kind of mandate or just it's up to the crew and --

5 A. If I was the mission briefing officer for that flight, I
6 would say, if available, take a Stratus. And I would make that a
7 condition of my risk assessment being a low risk, and I typically
8 do.

9 Q. When using the Stratus, well, the Stratus supplied within the
10 unit, is there a default or common practice for setting the
11 traffic altitude to show relative or absolute altitude?

12 A. I don't think there's a -- there's not an SOP setting for
13 that. I use relative. And I'll brief it that way when I'm
14 briefing the aircraft: Hey, there's traffic 10 o'clock, 4 miles;
15 he's like 3,000 feet above us. And then I'll let my crew chief
16 know, all right, he's that way, and he'll know where to look.
17 Because if I tell him he's at 6,000 -- like we fly at 1,000 feet
18 when we're VFR so everything is above us. So I try to use
19 relative, relative altitudes.

20 Q. Would you happen to have an estimate of -- you know, any
21 observations of other crews using relative or absolute or --

22 A. No. Unless it's my copilot with me, then I'm not usually
23 privy to the conversations that happen in the other cockpits that
24 are -- to their ICS conversations, just what they transmit out
25 through the flight. I have had, you know, flying multi-aircraft

1 operations, like the lead aircraft or aircraft behind me. They'll
2 say, hey, I've got traffic about 1,000 feet, 10 miles to the 3
3 o'clock or something. Yeah, so they -- it's not always, but I
4 have seen it done. Those that usually adapt my habits as their
5 habits in that regard, they'll typically do it that way.

6 Q. All right. And my last question is, there's something in the
7 airline world, we call it get-there-itis. It's --

8 A. Um-hum.

9 Q. Are you familiar with that?

10 A. I am, get-home-itis.

11 Q. Yup. So with that being said, are there any specific factors
12 that might cause that or are there fuel issues or time
13 constraints, anything that might cause a crew to try to go through
14 the corridor a little bit quicker? Obviously there's mission
15 constraints as well.

16 A. There are some constraints. We do have roughly 60 percent of
17 our personnel are on duty daily-ish and have to be at work at a
18 certain time. And due to crew rest requirements, they have to be
19 gone from the airfield by a certain time the night prior to meet
20 those. I don't know what their schedule was the next day as far
21 as get-home-itis might be concerned or that constraint might be a
22 concern. Typically, beyond that, I don't see anybody treating the
23 final phase of a flight as a, well, let's just get home and get it
24 over with and get out of here. Yeah, we -- I mean, we had some
25 near misses in the unit of late. And then with the recent snows

1 and ice being on the ramps and on the runways, crews are a little
2 more diligent with maintaining that situational awareness and that
3 heightened sense of alertness in the flight all the way through
4 landing, parking, shutting down, just to make sure that nothing
5 happens at the end of the flight.

6 So I don't, I don't see that really being an issue, other
7 than being up against the fence of the next day's requirements.
8 In which case, typically they'll -- and I say typically. Most
9 pilots will, you know, call a commander and let them know, hey, I
10 messed up, I stayed too late or whatever, I need someone to take
11 over my shift or I need an approval for crew rest reduction for my
12 flight because we had a snag or a delay or something that caused
13 us to be late.

14 Q. And then just to follow up, I have a quick clarification
15 question. Should ATC hold you or prevent you from transiting that
16 corridor when you first contact them, would there be any fuel
17 concerns?

18 A. Not really. The requirement to hold, delay, is, you know --
19 if they're more than 2 to 5 minutes, then that's not a lot. It's
20 not usually an issue.

21 MR. KIM: Okay. Those are all my questions. Thank you.

22 MR. McKENNY: Mr. Jacoby?

23 CW5 JACOBY: No questions. Thank you.

24 BY MR. McKENNY:

25 Q. I just got a couple follow-up ones. You were talking about

1 NVGs and the green ones tend to wash out the red light so you
2 can't see it or --

3 A. No, no. So red lights will highlight brighter. So NVGs work
4 to bring the near infrared spectrum into view. So a lot of the
5 ambient light that we can't see is how the images will operate
6 them and highlight objects that would typically be just black at
7 night. Green lights will wash out. They have a filter that gets
8 rid of blue-green colored lights.

9 Q. Is that both for the green and white phosphor?

10 A. I believe it is also for the white. I'm not 100 percent.
11 The white ones are relatively new to me. I've only used them, I
12 think, four times. I don't like them.

13 Q. So green and blue lights tend to disappear or wash out with
14 (indiscernible) out here.

15 A. Completely disappear. It's almost -- it's like if you were
16 take a, you know, one of those like colored pencils with -- a blue
17 marker, blue marker draw a picture. You put on like the 3D
18 glasses, you can't see it at all through one eye. It's like that.
19 It doesn't even register there's a light there.

20 Q. And obviously you're familiar with the R-COP.

21 A. Yes.

22 Q. Do you think it's useful and effective tool?

23 A. I do, when used properly.

24 Q. Just kind of explain how it's used, if you would quickly?

25 A. So the purpose of the R-COP is to identify what you're going

1 to be doing. So there's three sections. The first section talks
2 about the crew and crew mix, whether they have sufficient hours
3 for flight, recency. It has to do with their crew rest and some
4 things of that nature. And then it talks about, for the crew mix,
5 our particular R-COP talks about time in the AO, in our area. So
6 you could have 2,000 hours in Lima, but if you're like Nick here
7 and who's only flown 10 hours in DC, you might be a moderate risk
8 because you're new to the way things work around here. So that
9 section is used to identify those kind of issues and the mission
10 briefers will attempt to mitigate those.

11 The second section is see the mission, so what are you doing?
12 Okay. I'm going to go -- I'm doing training, I'm doing -- I
13 moving passengers, I'm doing an external load operation, I'm doing
14 terrain flight, I'm operating an aircraft within 5 percent of my
15 max power margin. So like things that are mission related and how
16 risky those are. And everything comes with an initial risk value
17 that was assessed by a group of safety and standardization
18 personnel that said, okay, this terrain flight unaided is a
19 moderate risk. It's a hard moderate risk because you're flying
20 terrain flight without NVGs and you could potentially have -- you
21 know, obstacles you can't see. But terrain flight under NVGs is a
22 moderate risk that could be mitigated to a low risk due to control
23 measures that you might implement.

24 So, and then the last section is weather based, right? So if
25 there's ice or blowing snow or degraded visual environment or

1 stuff of that nature. The moon doesn't rise tonight at all even
2 though it's a full moon; it's not going to rise till 4 in the
3 morning after you're done flying so I guess you don't have good
4 illumination.

5 So the pilot in command fills out the R-COP and puts on there
6 what he thinks the control measure that will make his mission the
7 least risky possible. And then he brings it to a mission briefing
8 officer, such as myself or Mr. Jacoby. And we will help them
9 using our experience to find more control measures, more ways to
10 mitigate the risk and then ultimately achieve the lowest risk
11 possible for their flight. So if there are things that are hard
12 moderate, which means that it cannot be reduced beyond the initial
13 risk level, then it has to stay at that even though there are
14 control measures. And, you know, you still implement them but it
15 has to be approved by the right approval authority. So our
16 company commanders, they can approve low risk missions, battalion
17 commanders are moderate risk, and so on and so forth to the higher
18 commanders.

19 The R-COP is a really nice tool. As a mission briefing
20 officer, if I see two pilots that want to go -- say, I have --
21 this is an example I use a lot because I had two very brand new
22 pilots in command in DC. They grew up here. As far as pilots go,
23 this is their first assignment out of flight school. So all of
24 their flight experience was in DC, so I know they're very familiar
25 with the area, but they weren't familiar with marginal VFR or

1 less. So they wanted to get experience, so -- and they both
2 became pilots in command, so it was a dual PC cockpit, and they
3 wanted to go fly. The weather was like 900 and -- 900 for
4 ceilings and like 3 miles visibility. It was -- yeah, it was just
5 below marginal, and they wanted to go and get experience. And I
6 said, okay, that's great. You can do this flight, but I'm going
7 to leave it as a moderate risk unless you remain within the
8 traffic pattern and maintain 500-foot cloud clearance for the
9 entire flight. If you can do that, I will leave it as low.

10 So like the mission briefing officers have the power to like
11 put restrictions and mitigations on crew members if they think
12 they're going to go do something risky. Or they can say or you
13 can go take this to the battalion commander and get it approved,
14 and I know she's not going to approve this because what you're
15 doing is a little silly.

16 But as far as like a tool, the R-COP is a very useful tool
17 for risk mitigation for training flights, evaluations, and general
18 air missions that we do.

19 MR. McKENNY: All right. That completes my questions.

20 Eddie?

21 MR. MILLER: I have no further questions.

22 MR. McKENNY: Paul?

23 MR. KIM: No, questions.

24 MR. McKENNY: Nick?

25 CW3 JACOBY: No, sir.

1 MR. McKENNY: Okay. Well, thank you. We'll conclude this
2 interview at 1422.

3 (Whereupon, at 2:22 p.m., the interview was concluded.)
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the
NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
 AMERICAN AIRLINES JET AND ARMY
 HELICOPTER NEAR RONALD REAGAN
 NATIONAL AIRPORT IN WASHINGTON, DC
 ON JANUARY 29, 2025
 Interview of CW3 Karl Halterman, Jr.

ACCIDENT NO.: DCA25MA108

PLACE: Fort Belvoir, Virginia

DATE: February 10, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Kay Maurer
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: LTC ERIKA HOLOWNIA, Lieutenant Colonel
12th Aviation Battalion

Washington, D.C.

Tuesday,
February 11, 2025

APPEARANCES:

BILL BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN MCKENNY, Helicopter Operations Group Chairman
National Transportation Safety Board

EDDIE MILLER, Senior Accident Investigator
Federal Aviation Administration

SABRINA WOODS, Human Performance Investigator
National Transportation Safety Board

CW-5 JACOBY, Brigade Standardization Pilot
U.S. Army Aviation Brigade.

PAUL KIM, Chief Pilot
PSA Airlines

DAVE BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

<u>ITEM</u>	<u>I N D E X</u>	<u>PAGE</u>
Interview of LTC Erika Holownia:		
By Mr. Bramble		5
By Mr. McKenny		85
By Mr. Miller		92
By Mr. Kim		96
By Mr. Blair		97
By Mr. Bramble		106

I N T E R V I E W

(1:16 p.m.)

1
2
3 MR. BRAMBLE: Okay, today is February 11, 2025. It's 13:16
4 Eastern standard time. My name is Bill Bramble and I'm a Human
5 Performance Investigator with the NTSB. Van McKenny and I are
6 leading the Operations and Human Performance Working Group for
7 investigation of DCA25MA108 involving PSA flight 4352 and PAT 25.
8 The NTSB is an independent Federal agency. We're not a part of
9 the Department of Transportation of the FAA. We have no
10 regulatory or enforcement powers. Our mission is to determine the
11 probable cause of incidents and accidents and make recommendations
12 so that similar events can be avoided. Our mission does not
13 include findings of liability or blame. Your participation today
14 helps ensure that the fact-finding phase of the investigation is
15 complete and accurate.

16 We'll be recording this interview so it can be transcribed.
17 After we receive the transcript, our group will review it for
18 typos before it's included in the public docket for the
19 investigation. We can provide you an opportunity to review the
20 transcript if you request afterward.

21 I now would like each of the group members to briefly
22 introduce themselves and state their organization affiliation for
23 the transcriptionist starting with Mr. McKenny.

24 MR. MCKENNY: Van McKenny, Helicopter Operations Group
25 Chairman, NTSB.

1 MR. MILLER: Eddie Miller, FAA, Senior Accident Investigator.

2 MS. WOODS: Sabrina Woods. I'm a Human Performance
3 Investigator with the National Transportation Safety Board.

4 MR. JACOBY: CW-5 Jacoby, Brigade Standardization Pilot, US
5 Army Aviation Brigade.

6 MR. KIM: Paul Kim, PSA Airlines, Chief Pilot.

7 MR. BLAIR: Dave Blair with Sikorsky Aircraft, Chief Pilot
8 for Safety.

9 MR. BRAMBLE: Okay. Each member is going to have a couple of
10 opportunities to ask questions. We're going to take turns so we
11 won't be peppering you with questions left and right. You're
12 entitled to have a representative of your choosing during any NTSB
13 interview. Is there someone you would like to have as your
14 representative?

15 MS. HOLOWNIA: No, that's okay. Thank you.

16 MR. BRAMBLE: Okay. Please answer all questions to the best
17 of your knowledge, and if you don't know, I don't know is a
18 perfectly fine answer. If you don't understand a question, just
19 say so, and if you mistake something or want to correct it, just
20 let us know.

21 MS. HOLOWNIA: Okay.

22 MR. BRAMBLE: Okay. Sorry, I've got a frog in my throat.

23 INTERVIEW OF LTC ERIKA HOLOWNIA

24 BY MR. BRAMBLE:

25 Q. All right, let's begin with having you state and spell your

1 full name please.

2 A. Okay. Erika Holownia. It's E-r-i-k-a, H-o-l-o-w-n-i-a.

3 Q. Okay, and what's your age?

4 A. I am 41.

5 Q. And what's your current rank?

6 A. Lieutenant Colonel.

7 Q. And what is your unit?

8 A. 12th Aviation Battalion.

9 Q. And what's your current role or position in the 12th AV?

10 A. I'm the Battalion Commander.

11 Q. Okay. Do you have any additional qualifications or duties
12 related to your role there?

13 A. I'm also an aviator -- a pilot.

14 Q. Okay. Are you rated as a PC or a PI?

15 A. I am a -- right now I'm a PI.

16 Q. Okay.

17 A. Back story you probably don't care about, but I had a baby
18 when I first got to the Battalion, so I wanted to progress. The
19 aircraft has changed a lot since I've been out of it for five
20 years, and was doing a PC validation a couple of weeks ago
21 actually. That was cancelled for this, so I'll do that next week.

22 Q. Okay, okay, and --

23 A. And if relevant several hundred hours as a PC. It's just
24 been a while since flying.

25 Q. Yeah, that's relevant, sure. Thanks. Several hundred hours.

1 I'm going to collect the rest of your hours here in a minute.

2 A. Okay.

3 Q. Who do you report to?

4 A. Colonel Andrew DeForest (ph.), the Army Aviation Brigade
5 Commander.

6 Q. Okay, and who are your direct reports? Who reports to you?

7 A. So I have seven Company Commanders that report directly to
8 me. My Headquarters Company Commander is Captain Mike Murphy. My
9 Alpha Company Commander is Captain Jordan Barry (ph.). My Bravo
10 Company Commander, Captain Phil Gallan (ph.). My Charlie Company
11 Commander is Captain Tyler Luxan (ph.). My Delta Company
12 Commander is Captain Samantha Todd (ph.). My 9-11 Technical
13 Rescue Engineer Company is Captain Terry Lee (ph.), and I have a
14 rotational National Guard Aviation Company. Their -- today is
15 actually their transfer of authority, so one of them is
16 redeploying. One of them just got here.

17 The outgoing company is from the Kansas Army National Guard,
18 Captain Steven Blank (ph.), and the incoming is from Idaho,
19 Captain Eric Fitzpatrick (ph.). Additionally, the Battalion
20 Command Sergeant Major Commander -- or Command Sergeant Major Alex
21 Collins (ph.) is a, is a direct report. My Senior Warrant Officer
22 Advisor, CW-4 Mike Cooper. My Executive Officer Major Adrian Hill
23 (ph.), and my Battalion Operations Officer, Major Kendall Nelson
24 (ph.).

25 Q. What was the last one again?

- 1 A. Major Kendall Nelson is the Battalion Operations Officer.
- 2 Q. Okay, all right. What's your total flight experience?
- 3 A. About 1,050 hours.
- 4 Q. And UH-60 (ph.)?
- 5 A. UH-60.
- 6 Q. All UH-60?
- 7 A. All UH-60.
- 8 Q. Okay.
- 9 A. Spread across Alpha, Lima -- Alpha, Alpha Plus, Lima and Mike
- 10 models.
- 11 Q. Okay. How much in Lima?
- 12 A. Probably about 800 -- you're going to make me go back and do
- 13 Alpha math. That was a long time. Probably about 400 hours in
- 14 Lima I would guess.
- 15 Q. Okay, and NVG time approx.?
- 16 A. A little over 300.
- 17 Q. All right, and when did you join the Army?
- 18 A. I commissioned in May 2005.
- 19 Q. And when were you promoted to Lieutenant Colonel?
- 20 A. August 2020.
- 21 Q. All right, and how long have you been the Commanding Officer
- 22 of the Battalion?
- 23 A. I took command on June 23, 2023.
- 24 Q. And did you join the Battalion before that, or was that when
- 25 you joined?

1 A. That's when I officially joined. I think administratively on
2 paperwork I may have signed in a few days before on or about 20
3 June I think was that Monday and then change of command was that
4 Friday.

5 Q. Okay, all right. Can you tell us a little bit about your
6 professional background in aviation, like, if you did anything
7 before the Army and sort of what your progression was in the Army?

8 A. Absolutely. So I, I went to -- I commissioned from United
9 States Military Academy at West Point, went there straight out of
10 high school. So high school employment prior to that. I don't
11 know how relevant that is, selling shoes, working at a toy store.
12 I was a car hop at Sonic. Went to, went to West Point. No
13 outside jobs when you're at West Point.

14 My sophomore year there we had a medivac unit that came out
15 and -- to a training exercise and I said that's what I want to do.
16 I was very fortunate that things lined up. I was able to do that
17 out of West Point. I initially was branched to Medical Service
18 Corps through a medivac pilot on the commissioned side. That's
19 what you branched. I completed the Army Medical Department's
20 Officer Basic Course in the Fall of 2005 followed by flight
21 school.

22 I started flight school in February 2006, completed flight
23 school in October 2006 and reported to Hunter Army Airfield,
24 Georgia. I was assigned to the medivac company there. I was a
25 section leader, platoon leader, operations officer over the span

1 of the next five years, and deployed three times, once to Iraq,
2 twice to Afghanistan -- in that, in that role once to Iraq and
3 once to Afghanistan, and in 2011 branch transferred from Medical
4 Service Corps into aviation.

5 I remained at Hunter Army Airfield and commanded an Assault
6 Helicopter Company (ph.), deployed again to Afghanistan and in
7 2013, two years later, changed command; went to the Aviation
8 Captain's Career Course at what is now Fort Novosel, Alabama; went
9 to -- taught at as a small group leader the Maneuver Captain's
10 Career Course at Fort Benning, now Fort Moore, Georgia; attended
11 Air Force Command and Staff for my major level education; reported
12 to what is now Fort Liberty, then Fort Bragg, North Carolina;
13 worked on the 82nd Airborne Division Staff in the G3 air for a
14 year; was an Executive Officer for an Attack Helicopter Battalion,
15 so Apaches; was the Brigade Operations Officer for the 82nd Combat
16 Aviation Brigade.

17 Moved here to the local area in the summer of 2020, served as
18 the Executive Officer to the Vice Director of the Army staff.
19 Then worked in Headquarters Department of the Army G357, so
20 operations for aviation commonly referred to as DAMO AV (ph.), and
21 then in the summer of 2023 took command of the 12th Aviation
22 Battalion.

23 Q. That's quite an illustrious career.

24 A. And it is illustrious and I don't know how much detail you
25 want. I'm trying --

1 Q. No, that's great.

2 A. I'm trying to give it all to you.

3 Q. It gives us a lot about your history and background, yeah.

4 A. Okay.

5 Q. What do you know about 12th Aviation Battalion's history?

6 Can you give us sort of a snapshot of what is the 12th Aviation
7 Battalion?

8 A. Absolutely. So the Battalion itself stood up in the 90s, but
9 our history prior to that dates back to 1950s. The 1950s
10 established as the Executive Flight Detachment, so responsibility
11 for flying the president at that time, Army One, before that
12 became a Marine mission. The unit has undergone several name
13 changes as well as different aircraft changes in those years since
14 the 1950s really as the Army has modernized.

15 We again flagged as 12th Aviation Battalion in the, in the
16 90s. Responsibilities here in the National Capital region very
17 often misconceived as a VIP transport unit. That's not the case.
18 There are several missions that we support for agencies here in
19 the area. Current composition of the Battalion organically is
20 three flight companies: A headquarters company, a maintenance
21 company and I mentioned we have an engineer company assigned, a
22 technical rescue engineer company, and then we get that national
23 guard augmentation. So organically we have 24 helicopters. Eight
24 of them are Mike models, and 16 of those are Limas, and then that
25 additive (ph.) National Guard company brings another 10 for a

1 total of 34 helicopters. That National Guard company can be Limas
2 depending on the rotation or Mike models for those total numbers.
3 They're very recognized for going back to those 8 Mike models. We
4 have organically four of them being those -- the gold tops as
5 they're referred to -- those black and gold aircraft.

6 Q. Okay. That's helpful, and one other thing I should have
7 mentioned, you probably know this already but because it's going
8 to be public information, if we ask you about anything classified,
9 then just feel free to tell us you can't tell -- you can't
10 disclose that --

11 A. Okay.

12 Q. And then we can always revisit if we need something specific,
13 but we'll go through proper protocols.

14 A. Okay, perfect. Yeah, please know I'm not being evasive. As
15 I said, other agencies --

16 Q. Yeah, yeah, sure.

17 A. Just there is that misconception, okay.

18 Q. Yeah, it's kind of a unique situation for us too. All right,
19 so tell us about the pilots that, that you obtain for the aviation
20 companies in 12th AV. Like, do they all come straight out of
21 flight school? Where do you get your pilots?

22 A. So that's a great question and it's evolved over time. I'm
23 going to start with the history and then kind of talk where Army
24 aviation is today and then we are today because I think they're
25 all relevant.

1 So the history of this unit, I used to have a lot of senior
2 warrant officers. Typically, that's where a lot of your flight
3 experience resides. The way that Army does aviation a little bit
4 different than the Air Force, right? Eventually, as a
5 commissioned guy in the Army, you don't fly quite as much. So you
6 used to really have the senior W3s and higher. That's how the
7 Battalion was comprised even to the point of not having
8 lieutenants as platoon leaders, warrant officers were the platoon
9 leaders. That really has changed. I would say in the last maybe
10 eight to ten years as Army aviation has changed.

11 There was a period of time probably within the last 4ish
12 years where the Battalion was treated like any other aviation unit
13 in the Army. We got some people from flight school, some people
14 from other duty stations in a very healthy mix of younger pilots
15 requiring progression and some of that seniority over time. What
16 is unique to the Battalion compared to other aviation Battalions
17 is because we support operations for other agencies, 62 percent of
18 the Battalion is allocated against a mission line every day.
19 That's not necessarily a flying line. That is a standby response
20 line, and based on the experience required for those lines, over
21 the last year and a half we've gone back to human resources
22 command, so the Army's personnel sourcing, and said hey, we need
23 to get the right population of people here to support these
24 missions and what it is that we're asking them to do.

25 And, oh by the way, because we look a little bit different

1 than a lot of the other Army aviation units, young folks sent here
2 may not have the same Army broadening, not aviation, but Army
3 broadening opportunities they might in another unit, and so with
4 that, out of the 102 rated crew members or aviators that I have.
5 Only 11 of them are now first term and so there has been great
6 support from human resources command in the Army to recognize hey,
7 we do need, we do need a little bit more experience in that
8 formation.

9 The reason that first term I think matters the way you are
10 probably very familiar with this and have gotten in your
11 interviews already, but the Army has these rating levels where
12 they say how many hours you must fly semi-annually, and those FAC
13 1 aviators, those newest aviators, have higher minimums than the
14 rest of the unit, and that's, that's the only reason that I know
15 that difference and that number going in.

16 Q. Okay. So you sought more experienced pilots that would have
17 lower minimums because they already have the experience because of
18 the mission?

19 A. We didn't seek them for the lower minimums, just for that
20 experience that you were going to have, and part of that is, is
21 for the Army. Like, the Army aviation enterprise too, right? We
22 need, we need our pilots I think as a service to also get the
23 experience of field exercises and deployments and some of the
24 things that we don't do here.

25 Q. To give them the opportunity.

1 A. For that younger population. That's right, for their career
2 development.

3 Q. Otherwise, maybe they would be a little reluctant to come
4 here or stay here.

5 A. Well just that they get that opportunity I think in other
6 agencies that you may not have here. No, we have no problem
7 filling billets here.

8 Q. Oh.

9 A. I mean they tend to compete very, very well.

10 Q. Why is that? What are the advantages? Why do crew members
11 seek to come here?

12 A. I think it's a unique opportunity to fly in a unique part of
13 the national airspace that you wouldn't otherwise fly in. I think
14 that people recognize that, and I'll tell you that as the rest of
15 the Army quite frankly overseas deployments. There is something
16 appreciated of the ability if you were going home at night to your
17 family and families appreciate that.

18 Q. Here you could go home to your family?

19 A. That's correct.

20 Q. Yeah. So what's the minimum experience level for pilots
21 flying missions here? What do you typically see for the new, new
22 pilots?

23 A. So a new pilot coming out of flight school anywhere in the
24 Army not unique to here tends to have about 150 total hours.

25 Q. Okay, and then how are they trained when they arrive?

1 A. So our new pilots and our -- a pilot coming for another duty
2 station has the same, the same training requirements. So they
3 come to our organization and they are considered readiness level
4 three, so three readiness levels, writing up this level three, two
5 and one. Readiness, readiness level three we are really training
6 them on those base tasks, right? So I need to see that you can
7 fly a traffic pattern, that you can navigate, that you can talk to
8 people. That is a conditions-based readiness level.

9 And so the reason I say it that way is somebody who is newer,
10 say coming out of flight school, may require and spend more time
11 at readiness level three to demonstrate that proficiency as
12 compared to somebody that's coming from another unit. After that
13 you would move on to readiness level two, again conditions-based.
14 That's when you're going to get into specific mission training.
15 That would be for us here. You know I know you've heard
16 discussions that there is local area orientations. How do we show
17 you this local flying area? How do we show you this mission
18 routing for what it is? We're expecting you to provide each day
19 before finally being readiness level one.

20 Q. Okay, and then once they complete all the tasks related to
21 RL2 then they're classified as RL1?

22 A. Um-hum, if they have, if they have met those tasks with
23 proficiency.

24 Q. Okay, and then at RL1 they just do sort of like, continuing
25 currency type activities?

1 A. They do, yes. So you're considered a fully mission qualified
2 pilot, so you would be assigned to potentially mission lines,
3 mission readiness flights, training flights, things that are going
4 to continue to develop per proficiency as an aviator, the same
5 things as any organization would do across the Army.

6 Q. Okay. So then what are you looking at for somebody who comes
7 out of flight school? What do they typically have by the time
8 they get to RL1 in terms of flight experience?

9 A. In terms of hours?

10 Q. Um-hum.

11 A. I would say it is, it is probably hard to assign a number to
12 that because it is conditions-based, right, and I think it's going
13 to vary on the aviator. I would say it would not be without of
14 the realm of possibility to say it's going to take maybe a new
15 aviator up to 30 hours moving through that progression.

16 Q. Okay. That's all.

17 A. That's, that's an ish. There is a variance there of course,
18 but --

19 Q. Sure, all right, and so who's in charge of the program that
20 moves those incoming pilots through those readiness levels with
21 training?

22 A. So it's an air crew training program. So the ATP commanders
23 are, are those company commanders. So they are the ones that are
24 closest to the execution of that with their standardization
25 personnel. So within each of those companies you have a senior

1 standardization pilot, and this is just on the rated crew member
2 side. There is a similar program for non-rated crew members that
3 you have that SP, that senior standardization pilot, and you have
4 two instructor pilot billets as well, and so that training happens
5 internal to that company level ATP.

6 Q. Okay. So you have one SP and then two instructor pilots.

7 A. Two IPs, yes, sir.

8 Q. Okay. Per company?

9 A. Per company, and then I also have at the Battalion level, I
10 have a Battalion standardization pilot who may assist with those
11 progressions. We also at the Brigade level have a Brigade
12 standardization pilot and some other IP experience across the
13 Brigade that may contribute.

14 Q. Okay, okay. So and at the Battalion level, I think we've
15 spoken to both of these people, but who's the Battalion level SP?

16 A. Battalion level SP is CW-4 Matt Engles (ph.).

17 Q. Okay.

18 A. I think he was one of the first that you spoke with.

19 Q. Um-hum, yeah, and Nick is the Brigade SP?

20 A. Nick is the Brigade. He's the rotary wing SP, so unique
21 Brigade. We have both rotary and fixed wing.

22 Q. Okay.

23 A. But he is the rotary wing SP.

24 Q. Okay, all right. So basically all those SPs and the
25 instructors and the captains who run the companies are in charge

1 of the training program, your crew training program, okay, and is
2 there is a separate structure for the crew chief?

3 A. It's a, it's a very similar structure. So they are members
4 of those ATPs as well, those company commanders. You know we say
5 (indiscernible) and it's my responsibility is the Battalion
6 commander, right, in assigning who goes to those ATPs and
7 monitoring that progression, but we do the same thing with our
8 non-rated crew members. You know they're not going through a
9 flight school for their progression and so that really happens
10 largely on station.

11 Informally you won't see this on our structured documents.
12 At the company level we strive to have one -- it's called a
13 standardization instructor, so that senior non-rated crew member
14 that has been to -- we call it an ASI -- a skill producing course
15 managed at Fort Novosel to oversee the training management of our
16 non-rated crew members, and then you'll have, you know, just think
17 you have that SP, IP on that rated side. You'll have the SI and
18 you'll have FIs on the non-rated side of the company level that
19 are managing the same, the same professions.

20 And then not only do those -- you know we'll call them STAMS
21 personnel (ph.). Not only are they managing those progressions
22 but they're also managing readiness throughout the annual training
23 cycle. So as both rated and non-rated crew members we all have
24 proficiency requirements in terms of not only ours but also task
25 iterations for certain tasks and then, of course, you have your

1 annual proficiency examination. That's going to occur for both
2 your rated and non-rated crew members.

3 Q. Okay, and that's based on the timing of that space and
4 birthdays?

5 A. It is, yes, your birth month.

6 Q. Okay, all right, and what are the standard operating
7 procedure references for the rated and non-rated crew members who
8 are operating in 12th Battalion?

9 A. So unique to the Battalion we have our SOP signed at the
10 Brigade level. It falls under the Army Aviation Standard
11 Operating Procedure, so the AVOP, and then we have additive
12 requirements and the local requirements essentially that are a
13 part of the document. I believe you have a copy. If not, I'm
14 happy to get you a copy.

15 Q. Um-hum, yes, I think we had collected a copy.

16 A. Okay, yes, sir.

17 Q. Anything else that would pertain to -- as far as SOPs that
18 would pertain to training flights like the --

19 A. So that one is unique to -- that one unique to 12th. Of
20 course, I think you've probably also been walked through the air
21 crew training manual that prescribes those iterations that must
22 happen for everybody. I'm anticipating that if not. The DOT-11
23 (ph.) gives some guidance. I think -- I don't want to make the
24 assumption that these have come up, but it's not -- an Army
25 aviation unit doesn't decide on its own what it is that it is

1 going to train. A lot of these are Army aviation standards. We
2 just add to but cannot take away at the unit level.

3 Q. Um-hum, okay that's helpful. Yeah, we've been discussing
4 some of that and obviously we have a subject matter expert here on
5 the team, but it's still helpful to have your overview --

6 A. Okay.

7 Q. For the record so that when we're writing descriptions we can
8 reference that.

9 A. Yes, sir.

10 Q. All right, let's talk about safety. How does Battalion
11 manage flight safety?

12 A. So overarching (ph.) I have a Battalion Safety Officer who is
13 a -- school trained so the way, you know, we talked about those
14 standardization personnel, they go to a school by the Army to
15 receive that certification. We do the same thing on the
16 maintenance side, and we do the same thing on our safety side. So
17 I have a Safety Officer at the Battalion level. I believe you've
18 talked with him, CW-3 Ben Barzak (ph.), and then we have a Safety
19 Officer at each company level as well. So they are responsible
20 not only for that aviation safety but also ground safety,
21 workspace safety, OSHA safety and compliance, all of those things
22 together. That is the overarching safety program in terms of
23 structure.

24 Now safety in terms of -- are you leaning more towards like,
25 mission execution? What is that process for risk management or --

1 Q. So I think we need less detail on the mission side --

2 A. Okay.

3 Q. Because, you know, it's our understanding that the military
4 has to balance safety and mission requirements when they're doing
5 operational things --

6 A. Um-hum.

7 Q. But when it comes to let's say the training side of the house
8 and non-mission side of the house.

9 A. Yes, yes, and they actually -- they mirror the same way. So
10 if -- I'll start with the process, and then if this is not where
11 you're going, sir, please correct me.

12 So the way that we arrive at a training requirement, a couple
13 of different things. So we have -- in the Army, there is annual
14 training guidance. It starts, you know, at the highest levels
15 from the Army, comes down through the division level, comes down
16 through the Brigade level so I have Colonel DeForest. I issue
17 guidance at the Battalion level and then companies, you know, nest
18 their guidance within mine for what it is that we must be good at
19 in order to meet the mission that the Army has given us to do.

20 That guidance then shapes what it is that commanders focus on
21 in terms of a, a calendar, what it is that they've laid out with
22 flight and non-flight. The company level, they execute two
23 meetings really weekly. They have a training meeting and they
24 have a flight schedule meeting. Everything that goes on that
25 flight schedule meeting is an output really of that training

1 meeting and what is it that we need to be training. There is risk
2 management that is inherent in that process throughout.

3 By the time that a flight is actually assigned as what we
4 would commonly call a training flight or mission practice flight,
5 a standardization evaluation flight, it has gone through that
6 process, and then each individual flight goes through a, a mission
7 analysis. So there is a standard form in ARCOF (ph.) that we fill
8 out that lists out the crew, what it is that they're doing. I'm
9 confident you've seen PAT-25s (ph.) I'm sure, and all of the
10 different mission parameters for that particular flight. So there
11 is nobody -- nobody is just going out to a helicopter and saying
12 hey, I'm going to go fly around today.

13 There is a conversation that happens, you know, even after
14 somebody is, is placed on a flight schedule. That's done with,
15 you know, platoon leader input, the company commander input it's
16 consolidated at the battalion level. When that flight gets ready
17 to happen though, that air crew must sit down with what we call a
18 Mission Briefing Officer. These are my senior -- my senior
19 aviators across formation that I personally select and train, and
20 they are my entrusted agents to have those face-to-face
21 conversations with every pilot in command, or if it's a multi-
22 shift flight, we call it Air Mission Commander responsible for the
23 whole -- all of the helicopters operating, what it is that the
24 mission is going to execute, different parameters in the mission,
25 identifying those risks or hazard for the mission, and appropriate

1 controls for those. The Mission Briefing Officer must have that
2 face-to-face conversation first, and then there is a derived risk
3 assessment of the mission, and it can range from low all the way
4 up to extremely high.

5 From there, that mission, you know, we call it a piece of
6 paper, that ARCOF, and goes for a face-to-face conversation with
7 the, the IMA which really is going to be that, that first mission
8 approval level at that company commander, and so those company
9 commanders, those ATP -- that air crew training program commander
10 is having that same conversation with those pilots in command or
11 air mission commanders that are going to go execute this
12 conversation.

13 Must approve that mission regardless of the risk level -- at
14 his or her level as the ATP commander. If that flight is a low
15 risk mission, that's within the realm of the company commander to
16 assume. That would be also the final mission approval authority,
17 so several steps this process the company commander would sign as
18 that final mission approval authority. If it's a moderate risk
19 mission, that resides with me as the Battalion Commander, a high
20 risk mission to the Brigade Commander. Extremely high risk would
21 go to the Commanding Generals or Division Commander.

22 And so safety is a part of that -- from the start of the
23 process through that execution to go out and fly, and then we also
24 require after the flight an AAR. So the air crew itself is going
25 to go through those actions and activities. They are going to

1 share that with the company. It's very cyclical. That goes back
2 and informs that training meeting as well, and then if there is
3 anything that's been encountered during the actual flight, some
4 sort of a hazard -- we have been lazed (ph.) before and things
5 like that -- those all get consolidated at my Battalion Operation
6 Center as well, and then they get shared with our liaisons. Is
7 that what you're looking for, sir?

8 Q. Um-hum, yeah, that's good, and so when you say consolidate at
9 your Battalion Operations Center, like if there is an incident
10 like that, like lazing during a flight, then how do the, how do
11 -- who does the crew report back to?

12 A. So almost dual reporting. So they'll report it to my
13 Operation Center when they close that at the end of the night, hey
14 this thing happened. There will also be an alert that goes to my
15 Safety Officer, so Ben Barzak that we talked about, and he will
16 consolidate and report those as well.

17 Q. Okay, okay. Is there, is there like, an accountable officer
18 for the safety management aspect of things. Like from the
19 civilian side, you know, we have different models where there is a
20 safety management system process that has some similarities and
21 overlap to what you're describing, but as part of the -- sort of
22 the SMS movement (ph.) in civil aviation, there is usually
23 somebody designated as the accountable executive for safety. Is
24 there somebody like that at the Battalion or Brigade level or a
25 company level?

1 A. So if there is any sort of accountability, that would reside
2 with me as the Commander --

3 Q. Okay.

4 A. At the Battalion level, and then the same thing at the
5 Brigade level, and the safety structure, right, to say I have this
6 Safety Officer that is mirrored at echelon so there is also a
7 Brigade Safety Officer. There is also a Division Safety Officer
8 as you move up that Army, that Army chain, but ultimately
9 commander is responsible.

10 Q. Okay, so the commander assumes responsibility for, at each
11 level, assumes responsibility not only for mission and training
12 and so on but also the safety aspect.

13 A. Yes, sir.

14 Q. Okay. All right, another thing, you know -- apologies.
15 We're trying to take what we know as far as, you know, our mental
16 (ph.) models of safety programs and apply it to how you all
17 function which may be different but, you know, most airlines with
18 an SMS have to have a published safety policy. Do you guys have
19 something like that?

20 A. In terms of like a safety SOP?

21 Q. Well, it would be something like, you know, the accountable
22 executive publishes a memo that says, you know, safety is -- you
23 know, here's what it falls in the priorities and, you know, we're
24 committed to it and I'm, you know, responsible for managing it and
25 we want you to report things and so on, that kind of thing, sort

1 of a general statement.

2 A. So we have -- we do have policy letters, right? We have a
3 policy letter for safety. Our safety program -- I guess deviating
4 maybe a little bit just from the flight -- we ran a quarterly
5 safety and standardization counsel that occurs at the Battalion
6 level. It is also mirrored at the Brigade level as well. In
7 terms of emphasis, that is, that is all commanders. That is all
8 safety officers. It is a forum. Quarterly by which you're
9 talking about these issues. We are identifying who has them for
10 action and are resolving. If there is something we're unable to
11 resolve, we're identifying hey, here is the external agencies that
12 need to come and help us with this item, whatever it may be. That
13 is an enduring model quarterly.

14 Non-flight we also have a safety counsel and employee safety
15 counsel which is a somewhat informal forum that is employee
16 allotted issues that are seen that are arising as well. That
17 tends to be on the, on the non --

18 Q. Non-related --

19 A. Non-flight side, a lot to do with maintenance and things like
20 that.

21 Q. Okay, all right, and then what kind of, what kind of
22 communication do you have down to the -- at the rated crew level
23 as far as their like, responsibilities for reporting safety-
24 related events and so on?

25 A. So we have in addition to the safety unit stans counsels, we

1 also have monthly air crew academics, and so that is -- I bring --
2 every aviator across the Battalion together and we have an
3 academic focus. Sometimes there may be, there may be classes,
4 maybe something that we need to share, across the formation that
5 is a part of that. We, we discuss safety as well.

6 So we discuss expectations on safety reporting. We discuss
7 issues that have occurred, and we also discuss lessons learned,
8 hey, this thing happened to me. Let me tell you about it so that
9 you're able to learn from, from this.

10 Q. Okay.

11 A. And so really I would say that dissemination is that face-to-
12 face with everybody in the organization.

13 Q. Okay, and do you get feedback from crews about specific
14 hazards they encounter when they're operating?

15 A. We do. Most of our, most of our hazards are related to
16 birds. We had a large migration of birds for some reason this
17 year, and so we spent a lot of time talking about birds. We spent
18 a lot of time charting those. I mentioned the lazing incidents
19 that we will have sometimes. We -- there is a lot of traffic here
20 in the National Capitol region that often is not talking to each
21 other, and so we will, we will talk about that as well. Some of
22 those we nominate if it's military traffic to our higher
23 headquarters to talk, to talk procedures.

24 Q. Okay. Has that -- have those traffic congestion and
25 communication issues -- has that been a recent topic?

1 A. We met with a -- I'll call it a sister unit, an Air Force
2 unit that operates in the space within the last couple of months
3 just to talk procedurally how we would operate in terms, in terms
4 of missions. I think that, you know, there is -- one thing
5 identified from this incident with PAT-25 is we don't hear --

6 I should, I should back-up and say there is an annual
7 aviation user symposium for the National Capitol region that
8 representatives attend and talk broad-ranging safety issues. What
9 we do not hear is we do not get feedback right now particularly on
10 the FAA side. If there is something that like, somebody gets an
11 HA or something like that on a TCAS, we do not get that feedback,
12 and so I think relevant for --

13 I heard in the NTSB briefing PAT-11, the night prior first
14 heard, you know, PAT-11 out flying -- having talked to that air
15 crew after learning about it -- out flying knows that somebody got
16 an RA (ph.) -- knows that somebody did a go-around, did not know
17 if the 1000 foot separation that was done, and so one of our
18 requests I think with this too is hey, we need to figure out how
19 to flatten those communications so that we're all aware if there,
20 if there is a hazard or there is a friction point in the area.

21 Q. Okay. So you guys had requested more communication with ATC?

22 A. And I don't even know if it's, if it's ATC. ATC is very user
23 friendly and we coordinate if there is going to be something
24 significant in the airspace, like a flyover or something like that
25 -- very, very user friendly, but I think the opportunity for cross

1 agency to have conversations about things like as we looked at,
2 you know, open source media after this incident and hear oh, this
3 thing happened to me one time or in the past ten years there have
4 been ten incidents. That we do not get directly.

5 Q. Okay. So it sounds like you're maybe pursuing ways to ingest
6 that data and figure out if you can learn from it? Is that --

7 A. Absolutely, yes, sir.

8 Q. Okay.

9 A. And because, you know, there is, there is learning to be had
10 there too, right? So we talked about like, the RA for PAT-11 the
11 night prior for a lot of our air crews that have not flown in an
12 environment, for instance, where other aircraft had TCAS (ph.)
13 understanding, hey, if you initiate a rapid climb, you may, you
14 may be well away from an aircraft -- well clear of an aircraft but
15 like, that -- their system doesn't know that. They just see you
16 as this climb and you're going to penetrate their safe space.
17 Things like that I think are useful to teach across the formation.

18 Q. Okay. What about safety assurance? How do you determine
19 like, with compliance with maximum altitudes on the HELO routes,
20 whether crews are complying with that or not?

21 A. So if, if an issue with that, I would expect that we would
22 hear from ATC. That is not one that we historically have heard or
23 encountered.

24 Q. Okay. Do you all have any kind of like, operational data --
25 aircraft operational data collection and monitoring program for

1 safety?

2 A. No. I think that may exceed our capability at the Battalion
3 level. I'm not familiar with what else may exist.

4 Q. Okay.

5 A. But I --

6 Q. And then maybe that the aircraft are old and they don't --
7 they're not outfitted with QAR type recorders and so on?

8 A. That is a fact for our aircraft certainly, but what I can't
9 tell you is if there is an external system somewhere that is able
10 to collect that information, just, you know, kind of like ATC
11 tracks where you're getting those radar, those radar pings and
12 you're able to confirm altitudes. I don't have that sort of
13 monitoring capability at, at the Battalion level, and like you
14 said, the aircraft themselves are not outfitted.

15 Q. Um-hum, okay, all right. So maybe there would be like ATC
16 recorded data you could mine, but it's not something that you guys
17 have done before?

18 A. It's not. It's not something that I have access to. Frankly
19 it's not something I have awareness of nor do I maybe have the
20 right team members that could do that. I think that could be a --
21 maybe a great idea. There is a, a coordination cell here in the
22 National Capitol region for multiple agencies and maybe that's
23 something they can see. I truly don't know and I don't want to
24 over-speak their capabilities.

25 Q. Um-hum, sure, yeah, yeah, and, you know, it may or may not be

1 a good idea, I don't know, but just trying to establish a
2 baseline, you know, for what you guys are currently doing.

3 A. We would -- I would certainly welcome that. You know if I
4 hear anything from local users or residents, it is typically noise
5 complaints about aircraft, not because they are flying too low per
6 se but just, just that noise. I would say that's probably more of
7 the external feedback that we receive, sir.

8 Q. All right. Do crew members have like, anonymous safety
9 reporting capability?

10 A. So we do -- several different ways that we can do that, yes.
11 If there is a -- I mentioned already the employee safety
12 committee. There is not a member of like, the chain of command or
13 a supervisor that's present at that. That is individual feedback
14 that goes to one committee representative that then shares that
15 information, so that is one forum outside of formal reporting.

16 We also do multiple surveys every time -- every -- throughout
17 the year -- command climate surveys -- that happen at the company
18 level, at the, at the Battalion level, and then we've also done
19 safety surveys. So those are anonymous web-based options where
20 people are able to report that information back.

21 Q. And that's - does that apply to flight operations too or is
22 it --

23 A. It's everybody.

24 Q. More like OSHA?

25 A. No, that's everybody.

1 Q. Okay, but I mean as far as the safety surveys.

2 A. Broad topic.

3 Q. Oh okay.

4 A. Um-hum, yeah, so that's going to include ground operations.
5 That's going to include maintenance. That's going to include
6 flight. That's going to include what the Army terms fighter
7 management in terms of duty day concerns. It is a broad, broad
8 spectrum.

9 Q. Okay, all right. How often do you do the safety surveys
10 again?

11 A. Safety surveys go out about annually as well.

12 Q. Okay.

13 A. And then we have an informal safety program whereby my
14 Battalion safety officers with those company safety reps monthly
15 having conversations.

16 Q. Battalion safety officers monthly with the company.

17 A. Companies.

18 Q. Okay, company --

19 A. Safety officers.

20 Q. Safety officers, okay.

21 A. Yes, sir, and those companies -- those aviation companies
22 just for reference are about 38 people.

23 Q. Okay. Each, each one has about that many people in it?

24 A. Yes, sir.

25 Q. Okay.

1 A. Just in terms of thinking population --

2 Q. Um-hum.

3 A. And how many people is that safety officer really talking to.

4 Q. And the safety officers, he would routinely meet with would
5 be from those main aviation companies. Also the National Guard
6 or --

7 A. Yes.

8 Q. Okay.

9 A. Every company.

10 Q. Oh okay.

11 A. Including the maintenance company and the headquarters
12 company.

13 Q. Okay, great. Okay of the Battalion staff officers, like, how
14 many people at the Battalion staff officer level are flight
15 qualified and current? I mean is that like, everybody or is it a
16 small number of people?

17 A. It is the aviators, so it's probably -- I'm trying to think
18 of the best way to break it down. So the staff is going to have
19 different functionalities. I'm going to have a personnel officer
20 that is not an aviator. I'm going to have a logistician that is
21 not an aviator, communications specialist not an aviator.

22 Q. Um-hum.

23 A. With the exception of those unique positions, everybody else
24 is an aviator, and if I were to count, we probably have about --
25 as I'm trying to count through -- probably about 15 what we would

1 call ATP supported aviators across the formation. So those would
2 be me. I'm an ATP supported aviator. I'm not assigned to a
3 flight company, but I fly with a flight company.

4 Q. Um-hum.

5 A. My, my executive officer, same thing, not assigned to a
6 company but he is flying with a flight company.

7 Q. Um-hum, and so for each one of those ATP supported aviators
8 at the staff command level, are you assigned to a particular
9 company?

10 A. I do, yeah.

11 Q. Okay.

12 A. And that's because I have to approach that air crew training
13 program commander, that company commander with the management of
14 that person's standardization, right? So whether that is their
15 progression, their flight hours, their testing requirements.

16 Q. Okay.

17 A. So I, for example, I am on Bravo Company's ATP. My XO is
18 intentionally on Alpha Company's ATP. My S3 is on Charlie
19 Company's ATP.

20 Q. Okay. So how do staff officers like yourself balance your
21 responsibility for performing leadership functions with
22 maintaining flight currency?

23 A. So most of the companies recognize -- you know like we said
24 before, a little bit different than the Air Force roles that
25 you're filling, right, and it's a conversation of like, for me,

1 like hey ma'am, what days are best for you to fly? So I have
2 certain days that I've got a lot of Battalion requirements.
3 Certain days I've got a lot of Brigade requirements, and we
4 identify those days, and typically the companies have the
5 flexibility to schedule around those requirements.

6 And then, you know, based on level of responsibility,
7 probably frequency with which you can fly. Some of my assistant
8 operations officers, they can go fly multiple times a week,
9 absolutely. You know my executive officer might only be able to
10 fly once a week in order to balance his requirements.

11 Q. Okay, and then how about somebody like, like Captain [REDACTED]
12 Like, how many times a week could she typically fly because of
13 that?

14 A. So one to two, and the reason that I frame it as one to two
15 is again for our Battalion, a unique requirement. Not only are we
16 flying and needing to log those hours, 62 percent of the Battalion
17 is also sitting in the mission line each day.

18 Q. Um-hum.

19 A. So you might be on a mission line whereby, you know, at your
20 show time you show up, you pre-flight, you run up a helicopter and
21 then you shut down, and then you just wait for a call if you're
22 needed and then go about performing your other daily
23 responsibilities. That might happen once a week in addition to
24 another day where you are actually on the schedule to fly. So you
25 may be listed on the flight schedule multiple times. It just

1 might be for different requirements.

2 Q. Okay, all right. I think that about covers the sort of big
3 picture view of the Battalion. Next, I want to talk about the
4 individual crew members involved in the accident.

5 A. Okay.

6 Q. And then we might get into a little bit of your operational
7 experience in the local area and what you've encountered.

8 A. Okay.

9 Q. It has been almost an hour. Would you like a bathroom break
10 or anybody else need a bathroom break?

11 UNIDENTIFIED SPEAKER: I wouldn't mind taking a break.

12 MR. BRAMBLE: Okay, all right.

13 MS. HOLOWNIA: Sure.

14 MR. BRAMBLE: Let's do that. There is a bathroom just down
15 the hall on the right if anybody needs it.

16 MS. HOLOWNIA: Okay, thank you.

17 MR. BRAMBLE: And let's come back in say 10 minutes, 2:14.

18 (Off the record)

19 (On the record)

20 MR. BRAMBLE: All right, we're back on the record at 14:15
21 Eastern standard time, and Lieutenant Holownia has something to
22 add about the safety culture.

23 MS. HOLOWNIA: I do. So when we took a break, gentlemen, I
24 was thinking about, you know, safety culture and we talked, we
25 talked those bins of like standardization, what do they do, and

1 then we talked the bin of like, safety and what do they do and you
2 were asking about safety culture across the organization, and, and
3 how we get those touchpoint individually.

4 One of the other things that I think is unique to know about
5 Army aviation and I'll assume it's the same in civil operations,
6 but I don't know, is every single one of my air crew members is
7 empowered to speak up about safety as in if I have an
8 underperforming pilot on a flight with just a line pilot in
9 command, a line crew chief, they're expected and they will say
10 something.

11 So I have had air crew members with rarity, right? This is
12 not a common, a common issue, but I have spoken up when there has
13 been an issue with somebody on a flight, and I feel like that's an
14 important thing to note just because I think it does speak to that
15 culture of safety. Everybody in the organization knows hey, you
16 go out and you operate. You are, you know, responsible for the
17 person to your left and right, right behind you, and they are
18 responsible for you too.

19 Q. And what about situations where you have a senior ranking
20 officer as part of a crew, maybe somebody who is assigned in the
21 ATP but operating with a company level crew? What if their
22 proficiency is in question or something, and how does the, how
23 does the lower ranking crew handle that situation?

24 A. Yeah. So I can only think of one instance of that having
25 occurred and addressed through that, that company chain of command

1 to me. Not a staff member. Somebody that was a little bit more
2 distant from, from the ATP but it was addressed.

3 Q. Okay.

4 A. So it's definitely not a culture of like, oh, I can't say
5 this thing or something is going to happen to me or anything like
6 that, and that has been seen throughout, throughout the
7 organization.

8 Q. Okay. So this example is not -- you said not a staff officer
9 but a senior ranking officer that was part of the ATP?

10 A. Um-hum.

11 Q. Okay, all right. I want to talk about each of the individual
12 crew members now.

13 A. Okay.

14 Q. So with respect to Staff Sergeant [REDACTED] how well did you
15 know him and how did you typically interact?

16 A. Probably the least well maybe of all three of the crew
17 members because they do fly on Bravo Company's ATP. I think I had
18 flown with him once or twice over time, more of I would see him in
19 what we commonly refer to as the crew shack, right? The crew
20 chief office for each of our log books, our maintenance and talk
21 hey, how's it going?

22 He and I had our babies the same month in November 2023, and
23 so much of our conversation was along the lines of like, how is
24 your -- you know for him his son, right? How is Wyatt doing?
25 Conversations about, you know, those parent things, like, the

1 sleepless nights and now were toddlers and now were teething and
2 things like that.

3 In terms of performance, if that's what you're after, all
4 feedback is very good performer. He was actually selected as a
5 staff sergeant to fill a platoon sergeant role, so not only that
6 standardization instructor we talked about before for training
7 those non-rated crew members and maintainers, but also a platoon
8 sergeant which is typically what we would call a sergeant first
9 class or one level above, above his rank of staff sergeant.

10 Q. Okay. So for someone of his experience level, he was
11 considered above average?

12 A. Absolutely, yeah, in terms of performance and then even
13 flight experience well over the thousand hours which is, which is
14 rare for our folks -- our backseat folks.

15 Q. And what was his personality like?

16 A. Very kind, focused, right? Everybody interacts with the
17 Battalion commander a little bit, a little bit different, right?
18 I might not get, get the full breadth of personality, but very
19 focused-oriented on success of both the team and the organization.

20 Q. Seemed highly conscientious it sounds like.

21 A. Yes, that's a good word, yes, sir.

22 Q. Okay, and who, who did he report to?

23 A. So with his change in position as a platoon sergeant, he was
24 paired with First Lieutenant Jamon Schmitz (ph.) is the platoon
25 leader, and then direct relationship with his First Sergeant,

1 First Sergeant William Barton (ph.) in Bravo Company.

2 Q. Okay. So he reported to William Barton?

3 A. So from a rating perspective, worked for the lieutenant
4 because you're paired a platoon leader and a platoon sergeant.

5 Q. Oh okay.

6 A. But in that non-commissioned officer rating chain, that would
7 be his next higher non-commissioned officer.

8 Q. Okay.

9 A. This goes back to I think the Army, the Army language and
10 rules.

11 Q. Okay, and any knowledge of any significant life events or
12 major stressors in the last year for [REDACTED] that you might have
13 been aware of?

14 A. Yes. So I track across the Battalion something we call our
15 -- we call it a high-risk soldier meeting and it is not soldiers
16 that are high risk but is soldiers that may have -- and civilians.
17 I have a lot of civilians in my organization too that may have
18 something going on in their personal lives that we want to be
19 aware of and provide assets to help them.

20 Some relationship challenges on his side and [REDACTED] had the
21 maturity to say to his First Sergeant hey, I've got a, I've got to
22 take a step back and I'm not in a good frame of mind to go fly.
23 That was for a period last Fall and then of his own, his own
24 accord early last winter -- November I would say -- went back to,
25 back to his chain of command and said hey, you know, I've been

1 talking to the doc and I feel good about flying. I'm clear to
2 fly. No issues there as things continued in his personal life.

3 Q. Okay.

4 A. Not something I spoke with him about personally, but
5 something, you know, those leader engagements -- me and those
6 Company Commanders and First Sergeants just for awareness.

7 Q. Okay, all right. That's good to know that you guys track
8 that, you know, as a, as a leadership team. We had heard some
9 things about that as well, and so presumably if he was seeing
10 someone about that, it would have been, it would have been like a
11 base medical facility?

12 A. That would be our flight docs.

13 Q. Okay.

14 A. Yeah. So the Brigade has a flight surgeon commonly, you
15 know, colloquially referred to as the flight doc, and that you
16 would go see. They're the ones that give us our fit for flight
17 duty or not fit for flight duty paperwork that we're required to
18 have.

19 Q. Okay.

20 A. And that's something where an individual -- I would imagine
21 very much -- it's very similar to the civil side can say hey, I'm
22 just not in the right frame of mind or not physically right to fly
23 yet. I'm not going to be up yet. You know I'll use me as an
24 example. I had a baby, so some restrictions to flying while
25 pregnant, had a baby, came back. Man, let me tell you those first

1 three months not a lot of sleep going on in the Holownia
2 household, so I did not fly during that time period. I think
3 that's a great example.

4 Q. Okay, and did these issues impact his performance to your
5 knowledge?

6 A. No.

7 Q. Anyone ever complain about flying with him?

8 A. No, absolutely not.

9 Q. Okay, all right. Let's talk about [REDACTED] [REDACTED] How,
10 how did you interact with him and how well did you know him?

11 A. So [REDACTED] came back to the Battalion last fall. I, you know,
12 met him upon arrival as an instructor pilot, of course. I had the
13 opportunity to fly with him once as well. I say he came back to
14 the Battalion just because he previously was in the organization.
15 Excuse me. He was in a different company as a more junior aviator
16 (ph.), left the formation, went to the instructor pilot course,
17 spent a year in Honduras and then came back to us in the fall of
18 2024.

19 So met him as an instructor pilot, flew with him in December
20 for the first time, and we went -- we executed a mission where we
21 had a stopover flight, and we stopped over at an airport and they
22 had, they had breakfast and the crew sat down and we were having
23 breakfast, and I'll say one of the things that I think will stand
24 out for me for him was that at the end of it when all the bills
25 came, he was like, I'm going to pay all the bills. I'm going to

1 get all the bills. I said [REDACTED] you probably shouldn't. If
2 anything, I should pay the bills, but just a -- I share that
3 probably anecdotally of his personality, I guess.

4 Funny, warm, good from my personal experience and everything
5 I've heard from others. Good cockpit establishment. I also would
6 have the opportunity if he -- that mission briefing process I
7 talked about earlier, if he was getting briefed for a mission or
8 was the briefing officer for a mission that was assessed as a
9 moderate risk, those would rise to my level and then we would have
10 that face-to-face conversation. Had one of those in January maybe
11 for a pilot in command evaluation for an, for an aviator where he
12 was the PC, and then he also provided feedback on that flight.
13 Hey, here, here are the results of that flight, things like that.

14 Q. Okay. So you all discussed that because you were the mission
15 approval authority and then he gave you an after action report?

16 A. Um-hum, yes.

17 Q. Okay.

18 A. And that pilot in command program, that's mine, so anytime
19 that I have somebody that is a first time pilot in command, the
20 ATP commander will nominate them. It's not up to the individual
21 commander. There is a local board process internal to that ATP
22 where they discuss how each aviator is performing and say we think
23 this person is ready to be a pilot in command or is not ready. If
24 not ready, they get the feedback, things to work on. If ready,
25 then they go through an evaluation process, and that is

1 accomplished by an instructor pilot, and so I get the feedback on
2 those and then I meet with those individual aviators face-to-face.

3 Q. Okay.

4 A. I know a lot of this is process.

5 Q. Um-hum, it's all right. It's nice to know how it works, and
6 you might have already said this, but when were you assigned to B
7 Company for the ATP aspect?

8 A. Probably summer of 2024.

9 Q. Okay. That helps me know kind of where you were in relation
10 to the others being involved with B Company. All right, so funny,
11 warm, good cockpit management. Extraverted?

12 A. Yes.

13 Q. And how about his performance relative to other instructor
14 pilots of his experience?

15 A. Very good. I would say he had a unique perspective on our
16 mission requirements having served in the organization before. So
17 whereas you might get instructor pilot of his experience level
18 coming in from an external organization. [REDACTED] had historical
19 knowledge which I think allowed him to identify training
20 opportunities for individuals in the organization. Just say hey,
21 have you practiced this? Have you thought about this?

22 Q. Um-hum, okay, and who did he report to?

23 A. He reported to -- I honestly need to doublecheck which
24 platoon leader he reported to directly, but worked for Captain
25 Gallan as the Company Commander, and then the, you know, that

1 informal Chain of Command Standardization Pilot CW-3 Nate McCallan
2 (ph.) who I think you have spoken with as well.

3 Q. Okay. Do you have knowledge of any major stressors for him
4 in the past year that might have put him on your radar?

5 A. I had no knowledge of any major stressors for him, not on
6 our, you know, soldier tracker, somebody that we were talking
7 about. You know following the incident brought into some maybe
8 personal dynamics, but no knowledge prior to.

9 Q. Okay. Can you elaborate on the personal dynamics?

10 A. Some gaps between I think he and his spouse. This is, this
11 is from his family and so I don't want to presume. You know there
12 is family dynamics. I'll say his blood family, so I didn't want
13 to presume accuracy or misstate anything particularly for a public
14 record. Nothing that I have personal knowledge of.

15 Q. Okay, okay. Would you guys be aware at the command level if
16 he was separated from his spouse?

17 A. Only if a soldier were to tell us that or a spouse were to
18 tell us that.

19 Q. Okay, okay, and --

20 A. There is no like, mandatory reporting for that.

21 Q. Okay, and then how about, were you aware of any issues with
22 his, with his driver's license or driving history as far as like,
23 you know, adverse state actions against that?

24 A. I was not. I know that did arise in the course of the
25 investigation. I've been told in the last, last several days.

1 The citations that were mentioned would have occurred outside of
2 when he was assigned to our organization. Soldiers have a
3 requirement to report certain violations to their security
4 officer. That's just the manner in which the Army tracks things
5 like this. I cannot say with certainty that did or did not happen
6 because again not assigned to our organization.

7 Q. Um-hum, okay. Did anyone complain to you or others in
8 leadership about flying with Mr. [REDACTED]

9 A. No, not at all.

10 Q. All right, all right. How about Captain [REDACTED] How did you
11 typically interact with her and how well did you know her?

12 A. So interacted with her when I was first in, first in
13 Battalion command. She was in Bravo Company still. I
14 transitioned from a platoon leader to the executive officer role.
15 She is one of a population of about 18 lieutenants or pre-career
16 course captains meaning so not those captains that are there for
17 company command. Some of those junior captains that haven't gone
18 to that command course yet. They serve as platoon leaders in the
19 formation. They serve as assistant operations officers. They can
20 serve as executive officers, things like that, at the company
21 level, so that is my target -- say that, say that's my target
22 population for the Army's formal leader professional development
23 program, and so I get that group together monthly formally.

24 I also served as the senior rater for those officers. So
25 those officers worked for somebody else, not directly me. Pending

1 on their role, they might work for the company commander. They
2 might work for the operations officer, but then I -- you know, if
3 you want to say that annual evaluation or report card, I am the
4 senior person on that in terms of weighing in on their potential.
5 That's what a senior leader looks at.

6 Q. Okay.

7 A. For [REDACTED] specifically, made the decision to move her in
8 December of 2023. She had been at the company level for the past
9 two years since her arrival from flight school to the Battalion
10 level to work in the Battalion S3 shop as an assistant operations
11 officer. It's a normal move for an officer, the idea being I need
12 to show you the staff and how the staff thinks before you go to
13 that Captain's Career Course, before you take company command.
14 Really a broadening thing we do with all of our officers.

15 While [REDACTED] was assigned to, to the operations center, our
16 unit structure changed in that we were able to get our own fuel
17 truck in as I mentioned, that National Guard company that augments
18 us. They provide a certain number of refuel -- refuelers,
19 soldiers who perform a refuel mission for us in support of our
20 mission.

21 Those soldiers at this point had not had any organic
22 equipment. They were sharing a fuel truck with one of our -- we
23 call it a sister battalion, so not 12th Aviation Battalion but
24 another battalion that provided a civil fuel truck. It was about
25 this time we were able to get a military fuel truck in and on our

1 system and said hey, now this is something -- now that I have the
2 truck and the soldiers, I need to establish a fuel program, a POL
3 (ph.) program, petroleum lubricant program, and identified [REDACTED]
4 as the right, the right officer that wanted a second time platoon
5 leader, meaning they had done a standard platoon before, to lead
6 that program because what I was charging her to do was really dig
7 into the regulations, talk with adjacent units, figure out the
8 right way procedurally regulation-wise that our refuel program
9 should run. Fuel is something that we have to be accountable for
10 in the Army and elsewhere, and so it's intentional that that is,
11 that is done correctly.

12 So I personally sat down and counseled [REDACTED] on here are my
13 expectations with what we will do versus what our sister
14 battalion, the Air Field Division, will do. When it comes to
15 fuel, I had, I had come to an agreement with my counterpart on
16 what that breakdown would look like. So I had that conversation
17 with [REDACTED] That's like a one-on-one counseling and feedback on
18 how she's doing as an officer, and the reason I selected her for
19 that role.

20 And then more recently in the end of maybe mid-November, mid
21 to the end of November, she wanted to do -- we call it senior
22 rater counseling. I mentioned I served as her senior rater on
23 options that she was looking at in the Army and beyond the Army of
24 what she might want to do, and one of the things -- she had
25 several, several courses of action of things she might want to

1 pursue ranging from what type of company she might want to command
2 to trying to go to ranger school to getting out of the Army and
3 going to medical school, to going to medical school in the Army,
4 and in the process of that conversation, she asked if I would
5 write her a letter of recommendation for a program at Mount Sinai
6 which I did and completed that in December.

7 I also flew with [REDACTED] most recently in October. We -- our
8 first flight that we were scheduled for, we got all the way up and
9 we took off and then the helicopter had an odd vibration. We came
10 right back in and landed, so it was a very short flight. That was
11 maybe a 0.3 that we logged for a maintenance issue. It ended up
12 being a trim issue that was replaced.

13 But the second flight we went on to flew -- to fly, we did,
14 we did an instrument flight out to Charlottesville. We came back
15 into a couple of other airfields and did a visual flight rule
16 cross-country flight and ended up coming back into Davison, and so
17 that spanned day, night unaided during that transition period and
18 into NVG flight.

19 Q. Okay. How many hours was that approximately?

20 A. Probably -- I would have to go back and look. I don't want
21 to misspoke. Maybe two.

22 Q. It can be rough. Approximately a couple of hours?

23 A. Yes.

24 Q. Okay, and what timeframe was it? What month was that in?

25 A. October.

1 Q. That was also October.

2 A. That was October as well, yes. That was -- we cancelled one
3 week with the maintenance, and I think we rescheduled that very
4 next week.

5 UNIDENTIFIED SPEAKER: I'm sorry to interject. She was a PC
6 on that flight, right?

7 MS. HOLOWNIA: She was the PC on that flight, yes. She was
8 the PC on that flight. I was, I was the PI on that flight.

9 Q. Okay.

10 A. Sergeant Nichols (ph.) was our crew chief, and I only
11 remember that because it was his first flight in a Lima model
12 compared to a Mike model, and a little bit different in terms of
13 manually flying for things like instruments.

14 Q. Okay, and you mentioned doing a senior rater counseling with
15 her at that time. How was she doing as an officer?

16 A. She was doing very well. You know certainly among my top
17 officers I actually still have her evaluation open with me. I
18 plan to -- the way you bin them in the Army, no more than 49
19 percent of your officers can receive a most qualified rating. The
20 rest receive a highly qualified or qualified rating and she is a
21 most qualified officer.

22 Q. Um-hum. What were her strengths?

23 A. I think team-building. I mentioned I charged her to, to
24 create and lead this, this new organization, and so I think
25 rallying people with us is a purpose. Very, very smart. She had

1 the ability and the motivation to say hey, I'm going to get into
2 this regulation and figure out what is it that needs to occur, and
3 then I think her attention to detail. All three of those really
4 contributed to why I picked her for that role.

5 Q. Okay, and did she have any areas where she was working to
6 improve?

7 A. I think she wanted to improve -- just in the course of our
8 counseling as we sat down, she wanted to improve her
9 communication. She wanted to -- I talked to her about improving
10 her confidence in herself. I think a lot of times you have very
11 high performing officers who keep thinking hey, I need to do more
12 or be better or do this thing.

13 Q. Okay. We did locate some documents from the wreckage that
14 belonged to her. One was a tracking of, of, you know, weight and
15 body percentage -- body fat percentage from the Bod Pod and so on,
16 and I just wanted to check and make sure that -- was she having
17 any -- was she having any challenges with maintaining whatever the
18 physical requirements were?

19 A. No, not at all.

20 Q. Okay.

21 A. You know in the Army, we called it PT stud. She was a PT
22 stud.

23 Q. Okay.

24 A. Very high performer on her, her PT test, the, you know, the
25 annual, semiannual requirement that we have to take a PT test, and

1 I mentioned previously she wanted to go potentially to ranger
2 school, a very hard physically demanding school that she would
3 have excelled at.

4 Q. Okay.

5 A. She had knee surgery in -- I'm going to misquote the time.
6 It was after her move to the Battalion, so maybe early 2024, mid
7 2024, that I think probably would have like slowed down her
8 ability to, you know, go out and run. I think it was a torn ACL
9 if I remember correctly, and so probably just very cognizant of
10 that, the rehabilitation.

11 Q. Okay.

12 A. But if you have not heard, a very balanced eater. She was a
13 baker -- and has this made it to you yet?

14 UNIDENTIFIED SPEAKER: We have heard that.

15 MS. HOLOWNIA: Oh yes, yes.

16 Q. I heard that she was a baker.

17 A. Just -- no, I feel like when you hear things like body fat
18 percentage and things like that, you think oh, is somebody fixated
19 on like, you know, a very, very healthy approach I think to both
20 food and fitness.

21 Q. Okay, all right. So when she discussed her future with you
22 and you -- and asked for the recommendation to Mount Sinai, was
23 that -- was she making the decision I'm not going to go to
24 Captain's Course? I'm going to do this other route?

25 A. No, not at all. This was a -- it's a unique program that

1 they have where it's a deferred acceptance, so I don't want to
2 misquote the year. It would have been for acceptance in like,
3 2028 or something like that.

4 Q. Okay.

5 A. So the plan would have been go to the career course. I do a
6 company command. This is how I go to med school and then look at
7 the option of how do I want to serve as a, as a doctor whether
8 that's internal to the Army or out. Yeah, this was not like, oh
9 next year med school.

10 Q. I see, okay. Do a lot of Army officers go to Sinai for
11 medical training?

12 A. I don't know. This was the first time I had heard of the
13 program. I, you know, learned more about it through looking at
14 Mount Sinai's website. It's, it's a deferred program for -- I
15 want to say they call it for professionals. It may not even be
16 just for military, and they accept five people annually for this
17 deferred acceptance, the idea being hey, you know what you're
18 going to do years from now and not something you need to
19 hyperfocus on while you are working in your current profession,
20 whatever that may be.

21 Q. Okay. All right, so -- and we touched on this a bit, but
22 anything else you want to add about her personality? I mean what
23 I've heard so far is motivated, attention to detail, team builder,
24 very smart which is more aptitude related, but anything else you
25 want to add about her personality?

1 A. No.

2 Q. Okay, and how would you -- let's see, I guess we've discussed
3 her performance as well. You said she was kind of in the top half
4 compared to other --

5 A. Oh, here's a -- this is a good one for personality too
6 because you wonder like, how do young officers interact with
7 people? I think it sets the tone. I -- when I do those, those
8 leader professional development sessions, you know, I always tell
9 our officers like, hey, these are yours too, right? Like, this is
10 not -- you're not going to remember all of these sessions. Like,
11 what are you interested in? Where do we spend our time, and
12 [REDACTED] had taken the time to email me a book that she found, that
13 she found interesting and said hey, you know, when we do another
14 reading LPDS, this is one that we could, that we could maybe bring
15 into it.

16 And so I think the reason that I bring that up when you ask
17 about highlighting personality, I think that [REDACTED] was not
18 somebody who was concerned about bringing an idea to the table if
19 that makes sense including, you know -- there is a little bit I
20 guess of the level difference between Battalion Commander, Platoon
21 Leader and certainly to reach out and send that email.

22 Q. Okay. What was the book?

23 A. You know I honestly would have to go back and look at the
24 title because I don't want to mis-describe it, but it was
25 leadership oriented.

1 Q. Okay, that's fine. Okay, something appropriate.

2 A. Yes, yes.

3 Q. Okay. All right, and then for others of her experience level
4 as a pre-command course captain, was she about where you would
5 expect she would be?

6 A. In terms of performance outside the cockpit, yes, and then
7 inside the cockpit, I would say potentially even a little bit
8 ahead relative to her peer group. She achieved pilot in command
9 and air mission commander while still assigned to a flight company
10 which always the goal, not always the rule.

11 Q. Okay, and who did she report to?

12 A. In her current position as the POL Platoon Leader, Captain
13 Mike Murphy, the Headquarters Company Commander.

14 Q. Okay, all right. So we noted in her training records that
15 she was on medical restriction from flying March 16th to August 6,
16 2004. Was that likely the knee?

17 A. That was the knee surgery then, yes, the knee surgery and the
18 recovery from that. Yes, sir.

19 Q. Okay. Did that have any impact in terms of create challenges
20 for her in terms of maintaining either her flying proficiency or
21 attending to her officer duties?

22 A. No.

23 Q. Okay. I see the snow piling up.

24 A. It is. It's just --

25 UNIDENTIFIED SPEAKER: Yeah, I don't know if piling up is the

1 word.

2 MS. HOLOWNIA: It's been a little bit warm I feel like these
3 last couple of days. I don't know if it will stick. We'll see.

4 UNIDENTIFIED SPEAKER: It's not sticking.

5 BY MR. BRAMBLE:

6 Q. All right, were you aware of her White House social aide
7 (ph.) at work at the White House military Command?

8 A. I was.

9 Q. Okay. Is that, is that pretty common for members of the
10 unit?

11 A. I have at least four -- like out of that population of about
12 18 that I mentioned, at least four of them do this White House
13 social aide program.

14 Q. Okay, and did that have any impact on her ability to stay
15 current with flying?

16 A. No.

17 Q. Okay. Was that duty, you know those activities, was that
18 included in her daily duty time for scheduling purposes?

19 A. No. So I do make it clear with all of my White House social
20 aides, that is something additional that they volunteer for and
21 that does not take priority over their job, right, internal to the
22 Battalion whether that is their role as a Platoon Leader or a
23 staff member or flight responsibilities.

24 Q. Okay.

25 A. So these are added in things that tend to occur on weekends

1 or evenings.

2 Q. Okay. Are you aware of any significant life events or major
3 stressors for her in the last year?

4 A. I know the surgery I mentioned. I don't know that that's
5 really a major stressor, but certainly, you know, disruptive I
6 think to anybody's routine.

7 Q. Um-hum. Just that though? Nothing else?

8 A. No.

9 Q. Okay.

10 A. I met her boyfriend for the first time in October of last
11 year -- I'm sorry, August of last year. I don't know how long
12 they've been together. A positive relationship by all accounts.

13 Q. Okay. Anyone ever complain about flying with her?

14 A. No.

15 Q. When reviewing her training records -- let me pull that up
16 here real quick. Let me see side by side here. Okay, so, so
17 here's kind of what we have as far as her progression. She, she
18 finished flight school summer of 2021.

19 A. Um-hum.

20 Q. Assigned to Bravo Company same month, July, and then had some
21 cancellations due to weather. Let's see, she did not make ATP
22 requirements progress from RL3 to RL2 in 90 days. Commander's
23 investigation initiated on failure to progress. Commander's
24 investigation completed. This is November of 2021.

25 A. Okay.

1 Q. Granted a 30-day extension, had to attain RL2 by December of
2 2021. Completed RL3 and started RL2 in November, and then in
3 January of 2022, she made RL1 training.

4 A. Okay.

5 Q. Is that, is that, is that an unusual progression for making
6 through the progression levels?

7 A. Not necessarily. Ideally -- you know I -- certainly I was
8 not in command of the unit at the time, so I don't know the
9 dynamics that were occurring. Sometimes units will prioritize
10 progressing those, maybe who come from another unit who would be,
11 you know, a colloquially, a quicker up because they're able to
12 start filling those mission lines. Potentially a new IP arrived
13 that needed to be progressed, somebody like that, a new pilot in
14 command. That could contribute, you know, to a specific role in
15 the company that would be needed. Could have been maintenance
16 factors. Could have been weather factors.

17 I can't speak with certainty on that delay. It sounds like
18 procedurally things were followed correctly. An air crew member
19 does not meet the requirements. That initiates a commander's
20 investigation at that ATP commander level. That investigation can
21 take 14 days and conclude, you know, hey, there is a problem with
22 this particular air crew member. Whether that is, you know,
23 performance-based, something like that that could lead to a flight
24 evaluation board which would determine their potential for
25 continued service. If it's not a performance-based issue, it is a

1 scheduling issue due to weather, due to maintenance, due to leave
2 in excess of 30 days, things like that that would tend to lead to
3 an extension like what you mentioned.

4 And then that period from, you know, November to January I
5 think you said achieving those readiness levels kind of correlates
6 that holiday lull frankly that we see. You know there's not only
7 personnel availability when it comes to -- maybe comes to a
8 certain (indiscernible) training flights but also weather impacts
9 here in this local area. We tend to see those that November,
10 December timeframe where you don't have the right weather that you
11 need to go out and fly.

12 Q. Okay, all right, and then February -- so January 2022 it
13 looks like she completed the last item for, for that stuff.

14 A. Okay.

15 Q. It was Seaburn with van Vecton (ph.).

16 A. Okay.

17 Q. And then February she had an NVG standardization annual
18 evaluation and she failed several tasks in a check conducted by
19 Brad Haase (ph.).

20 A. Okay.

21 Q. And then was regressed to an earlier RL level, maybe RL3.

22 A. Um-hum.

23 Q. And there are some comments in here like could not meet
24 appropriate common standards, altitude deviation 200 feet, air
25 speed of 20 knots and greater than full ball with a trim. Could

1 not maintain constant angle of approach or ground track alignment
2 with landing. ACM regressed to RL3.

3 A. Um-hum.

4 Q. Has 90 days to complete required training and it looks like
5 February 28th they -- she did not complete some of the ATP
6 requirements. Okay, that was due to removal from RL1 status.

7 A. Yeah, I was going to say she wouldn't have them if she were
8 RL3.

9 Q. And then let me see March 1st, commander investigation
10 initiated. Commander grants 30-day extension.

11 A. Um-hum. That's the ATP requirements.

12 Q. Okay.

13 A. So we have to not to -- well, her birth month actually is
14 [REDACTED]. I do know that, so we -- it says semi-annual period
15 that you are required to meet a certain, certain hours, certain
16 task iterations for six months, and then that next six months.

17 Q. Um-hum.

18 A. So this would have been the close-out of her six months.
19 Again, I was not here at the time. Potentially did not meet like,
20 that A Part requirement --

21 Q. Um-hum.

22 A. That annual proficiency test, something like that.

23 Q. So there was some rolling (ph.) of facts because of the,
24 the --

25 A. Because of the readiness on the regression, right, and when

1 you are RL3, you don't have those, those semi-annual requirements.

2 Those come when you are RL-1.

3 Q. Okay, and then let's see. How did it go after that? All
4 right, so it looks like Haase signed her off as RL1 March 16,
5 2022. So it was about a month later they had her back up to RL1
6 status.

7 A. So procedurally all of that sounds very accurate in terms of
8 the commander's investigation, the 30-day extension. None of that
9 is, is abnormal.

10 Q. Okay.

11 A. And then the details that you were reading to me about the
12 trim or the air speed or the altitude. Those are Army aviation
13 common standards, things that you must maintain.

14 Q. Um-hum.

15 A. Unusual for a young aviator? No. Appropriate for all of our
16 aviators, and again, I was not in command at this time, but I
17 would expect the same thing of my team regardless of experience
18 level. If you're not meeting the standards, yes, we will -- you
19 will be readiness level 3 and we'll initiate that re-training.

20 Q. Um-hum, okay. So she had just gotten signed off as RL1 in
21 January 2022 and then the next month was regressed by a different
22 evaluator.

23 A. Um-hum.

24 Q. Is that uncommon?

25 A. I wouldn't say uncommon or common. As I said before, you

1 know, the expectation -- you don't get to have a bad day in Army
2 aviation. So if I go out tomorrow and I am flying with somebody
3 and I'm failing to meet those standards whether it's a check ride
4 or not, I can be regressed to that readiness level. You can't
5 attribute hey, was it a poor day? Was it re-training required
6 especially without being in the organization and seeing the
7 training that they completed.

8 Q. Um-hum, okay. All right, and then it looks like no further
9 significant events between March of 2022 when she was re-qualified
10 as RL1 until January of 2023. She had a satisfactory instrument
11 evaluation. February 2023 she had a satisfactory night NVG stans
12 and maybe an A Part?

13 A. Those would have been her annual requirements, yes, sir.

14 Q. And then so that's February 2023, and then March 2023 to May
15 of 2023 she was on a temporary medical suspension. Do you have
16 any knowledge of what that was about?

17 A. I was not in command yet.

18 Q. Okay.

19 A. That would align maybe to a hurt foot or hurt arm.

20 Q. Okay.

21 A. Nothing that -- I took command in June of that year. I don't
22 remember seeing her on crutches or anything like that.

23 Q. Okay. We can follow that up (indiscernible) with medical
24 (indiscernible).

25 A. Excuse me (coughing).

1 Q. And then December of 2023 assigned to HHC as staff officer,
2 training officer at Battalion level. That was before the POL?

3 A. That's -- that is assistant S3 position, so at that point I
4 had moved her from Bravo Company to Headquarters Company to gain
5 that staff exposure.

6 Q. Okay, okay, and then she had a satisfactory instrument
7 evaluation in January of 2024. She had a satisfactory NVG and PC
8 evaluation in January of 2024, and then she had that lengthy
9 medical suspension for the knee on March 16th to August 6th -- I'm
10 sorry, August -- no, that's correct, and then she had a return to
11 flying PFE aircraft in NVG in August of 2024, and then no training
12 events between then and January 29th, the night of the accident
13 when she was having her A Part and NVG.

14 A. So she would have trained. She would have had, you know,
15 training flights, those mission lines, but not so what gets
16 captured in that record that you're looking at, sir, the official
17 standardization events.

18 Q. Um-hum.

19 A. Yes, sir.

20 Q. Okay, all right. So having reviewed that record, we only
21 have -- we haven't reviewed anyone else's record to this level of
22 detail because she was the evaluatee, and so I don't know how to
23 place this sort of progression pattern and medical leaves and, and
24 so on in the UNSAT (ph.) A Part or NVG stan I guess. I don't know
25 how to place this in context. Like, is this sort of -- does this

1 strike you as unusual her training history or does it seem sort of
2 within the realm of what you kind of commonly see?

3 A. I think anecdotally I think that is within the realm of
4 common experiences where if somebody does not perform to a known
5 published standard, then their readiness level is reduced and they
6 are retrained.

7 Q. Okay, and about the medical leave, so we had a couple there,
8 one that was, you know, March to May in 2023 and one that was
9 March to August in 2024. Is that -- I mean is that highly unusual
10 to have medical leaves that long or does it --

11 A. No, it varies based on the medical requirement. So we have
12 everything, you know, from -- if you can't safely pilot an
13 aircraft, you're going to be on that medical leave. We have -- I
14 can think of two torn ACLs. Other torn ACLs similar like
15 surgeries, (indiscernible) and things like that. You'll have
16 shorter medical suspensions for things as minor as a head cold or
17 maybe back pain. It's very common.

18 Q. Okay, and then how do you make sure when somebody comes back
19 from a lengthy absence from flying like that -- how do you make
20 sure they're good to go on resuming flight duty?

21 A. That proficiency examination that you mentioned, that PFE.

22 Q. Okay.

23 A. So it may not be -- depending on the duration of time that
24 they're out, it may not be a full readiness level progression
25 again, but it is an evaluation to the same annual proficiency

1 requirement standards to make sure that you can safely operate the
2 aircraft in all modes of flight per common standards, respond to
3 emergencies, all of those requirements that, that we have.

4 Q. Okay, all right. Thanks.

5 A. Yes, sir.

6 Q. All right, and in terms of how many times you flew with each,
7 I think you said you had two with [REDACTED]

8 A. I think only one.

9 Q. Oh.

10 A. One with [REDACTED] two with [REDACTED]

11 Q. Okay.

12 A. I think one with [REDACTED]

13 Q. Okay, all right, and how would you characterize [REDACTED]
14 performance as a pilot?

15 A. Very similar to her performance outside of the, outside of
16 the cockpit. I think very detail oriented. I mentioned that
17 establishing the team, bringing the crew together to conduct a
18 crew brief, make sure that they're understanding the mission both
19 for the front seaters and the back seaters.

20 Q. Um-hum.

21 A. And no issues in flight.

22 Q. Okay, and when, when approximately would that have been, the
23 two flights? You had the one and then another one shortly after.

24 A. They were two weeks right after each other towards the end of
25 October.

1 Q. Oh right, end of October 2024, right?

2 A. Yes, sir.

3 Q. Okay, and how about [REDACTED] How was his performance?

4 A. Great, no issues at all.

5 Q. Okay, all right. In the 72 hours before the accident, did
6 you have any interaction with any of the three crew members?

7 A. If I did it was in passing only. [REDACTED] office would be
8 the building next to mine. I feel like just because I would
9 regularly see her passing, you know, say hello, how are things
10 going. Nothing that stands out in terms of interaction. You may
11 have also seen [REDACTED] and [REDACTED] in the B Co. hanger while passing
12 through but not a, not a meeting, not a deliberate discussion for
13 any of them.

14 Q. Okay, no meetings. Can you specifically recall the last time
15 you saw any of them if it was within the last three days or not
16 really?

17 A. No.

18 Q. Okay, and as far as emails or electronic communications or
19 calls, same thing? Same for that period?

20 A. Yes, sir.

21 Q. Okay.

22 A. I don't think any, any messages from any of them.

23 Q. Okay. All right, so that's the end of section two. Would we
24 like another break -- any short break? Next we're going to ask
25 you about your experience in the national airspace --

1 A. Okay.

2 Q. And commercial traffic.

3 UNIDENTIFIED SPEAKER: Take a five-minute break.

4 MR. BRAMBLE: Five-minute break.

5 (Off the record)

6 (On the record)

7 BY MR. BRAMBLE:

8 Q. All right, we're back on the record at 15:06, and Lieutenant
9 Colonel Holownia, can you, can you briefly just tell us how many
10 people are in the 12th Aviation Battalion?

11 A. Yes, we are close to 400.

12 Q. Okay, and how big is B Company?

13 A. B Co. is about 40 people.

14 Q. Okay. All right, let's talk about some operational things
15 related to the D.C. area. How many times have you flown Route 4
16 next to DCA, just a rough estimate?

17 A. Maybe 10 to 15.

18 Q. Okay, and how often do you see traffic landing Runway 33 when
19 you're transiting Route 4?

20 A. Very rarely. I can think of one instance where there was
21 landing traffic for 33 and ATC instructed us to hold vicinity
22 Wilson Bridge, and so we held vicinity Wilson Bridge. Not to give
23 you a leading answer, but it's a discussion we've been having
24 across the Battalion anecdotally, right, as you talked to other
25 aviators across the Battalion. I don't know that anyone in our

1 organization has been permitted to continue to transit while there
2 has been landing traffic at 33.

3 The common procedure that you may hear folks say is that
4 they're held at golf balls. There is some white round antennas in
5 that southern vicinity of Wilson Bridge where they're held at
6 Hains Point north of DCA for that traffic to land. I'm happy to
7 show those on the map if needed.

8 Q. We're familiar. Yeah, it's come up, and before the accident,
9 was it your understanding that if you stayed below the max
10 altitude on Route 4 next to D.C. that you would be safe from
11 arriving commercial traffic?

12 A. That's what the route altitudes are meant to do, to
13 deconflict that traffic. Yes, sir.

14 Q. Okay. Have you ever -- well, I guess I know the answer
15 because you just told us. You haven't had to fly under arriving
16 traffic on 33?

17 A. Not on 33. So interestingly the route structure though is
18 built such that if aircraft are landing like, 01, like, they are
19 there and they are underneath you and that separation, it's a very
20 unique thing that happens in this airspace.

21 Q. They're above you, you mean?

22 A. They're above you, yes. They are well above you thankfully,
23 but it's still a very odd sensation, probably the best. Not
24 sensation. You're not feeling it in the helicopter, but the
25 knowledge that there is a plane --

1 Q. Right, the experience.

2 A. Yes, a very odd experience. Yes, sir.

3 Q. Okay. I mean it's a little hard to say without hindsight
4 but, you know, if you had seen -- before this accident if you had
5 seen a situation developing where, you know, you were transiting
6 Route 4 to the south and, you know, you had had traffic called out
7 to you by ATC and been informed that it was an RJ landing (ph.) 33
8 and -- is that something where you would request visual separation
9 and proceed, or is that a situation where you would want to hold
10 until that traffic arrived on 33?

11 A. So I wouldn't presume about the night of January 29th. 33 --
12 my personal preference would be, would be to hold and that's just
13 common practice knowing, knowing that procedure, knowing what it
14 is that commercial airliners are flying into DCA, but again
15 that's, that's preference. That's not procedure, and that's not
16 required anywhere. I do think as well -- I don't know -- I'm
17 confident your team is listening to tapes and you have heard this
18 and you know already.

19 The other thing that is very unique about this airspace is
20 while we are up with National Tower, we are transiting this
21 airspace and we can hear National Tower transmit out. You cannot
22 hear the response of fixed wing airplanes as they are talking, and
23 we've always (indiscernible) that and like, oh, it's a different
24 frequency and this is why, and admittedly that would, that would
25 -- there would be saturation of the, of the radios if everybody

1 could hear everybody.

2 I bring that up at this instance just to say, you know, as
3 you hear runway 33, I think -- you think often -- you try to put
4 yourself in that situation. You're hearing all the landing
5 traffic. You're seeing all the landing traffic. You know they're
6 coming in for 01. Do you hear 33? Given your question to me
7 previously, it was a common practice that aircraft are landing 33,
8 and I'm not sure, and again, I'm not not -- my role to speculate
9 that, but just I think another important part of that
10 conversation.

11 Q. Um-hum. So it sounds like what you're saying is that you're
12 wondering about the potential for expectation bias and maybe not
13 properly perceiving what's being communicated.

14 A. Possibly. Again, not, not presuming for this situation but,
15 you know, while transiting that airspace, I know where I'm
16 regularly looking for traffic, and potentially there is
17 confirmation bias if I see landing lights in the area that I'm
18 used to looking at traffic.

19 Q. Um-hum, okay. Do you have a comfort factor in terms of a
20 minimum vertical and lateral clearance from landing commercial
21 traffic when you're in the area around D.C.?

22 A. A personal preference or --

23 Q. Um-hum, like, what's the minimum distance?

24 A. Oh, I want to be nowhere near them. Certainly, certainly
25 greater than 1000 feet. Never, never have I had the experience of

1 like, wow, I -- you know, the way that the route structure -- I
2 know that you're very familiar with where we are meant to be on,
3 you know, towards the side of that river. When I say there is
4 aircraft flying overhead, they're not directly overhead, right?
5 There is that, that bit of offset, but yeah, definitely want to
6 be.

7 Q. More than 1000 feet?

8 A. More than 1000 feet. I want to be more than 1000 feet away
9 from anything else in the air --

10 Q. Okay.

11 A. Without question.

12 Q. Okay. Was the potential for mid-air collisions on the
13 Battalion's radar from a safety standpoint prior to this accident?

14 A. So we would discuss the topic not in this situation, not with
15 a commercial airliner. The flavor of conversation for us, concern
16 for mid-air, came to our real world mission execution and the
17 quantity of partners that were going to be operating in that
18 airspace, and so we spent a lot of time talking with those
19 adjacent units of how am I going to talk to you? How are you
20 going to talk to me? You can't tell me about your mission and I
21 can't tell you about mine, but about where are you going to be and
22 where can we establish, you know, landmark on the ground
23 separation -- lateral separation that is going to keep us clear
24 while you do your mission and I do mine. That is where we spent a
25 lot of, a lot of time.

1 We also would talk about zone transitions. So in addition to
2 the route structure here, you also have these zones, the police
3 zones is what they're referred to. Generally higher altitudes, a
4 lot of transitioning aircraft going through there with an urgent
5 mission, right? So maybe it is police support, maybe it is a
6 medivac mission and just the manner you are -- your head is kind
7 of on a swivel if you are doing that zone transition for the
8 traffic that may be out there in the altitude that they're at.

9 Q. Okay. So it sounds like the potential for mid-air was, was
10 definitely something that was thought about a fair bit, but not
11 necessarily with the commercial traffic. It was sort of more with
12 a hypothetical scenario -- mission-related scenarios with other
13 rotary wing traffic.

14 A. Yes, sir, yes. There was not an instance where someone said
15 oh, I'm uncomfortable with this proximity to airplanes or with the
16 procedures that we are operating with.

17 Q. Okay. So this accident and the attendant safety issues kind
18 of seemed to come out of left field basically.

19 A. I could never have foreseen this accident.

20 Q. Okay. When you're flying those D.C. HELO routes, sort of
21 like Memorial Bridge to Wilson Bridge, you know, where you're
22 supposed to be below 200 feet, it's a pretty narrow range, 0 to
23 100 or 0 to 200 and we have heard that there may have also been a
24 Battalion SOP that said don't fly more than 100 feet below that
25 max altitude.

1 A. Yes, sir.

2 Q. So the, the target range is 100 to 200 feet?

3 A. Yes, sir.

4 Q. When you're flying in that area, what altitude do you target
5 to stay in that range?

6 A. Generally 200.

7 Q. Okay, and then do you have any trouble -- I mean if one foot
8 over 200 is, you know, exceeds the limit, is that -- do you have
9 like, a sort of a range of deviation that you find acceptable
10 limit?

11 A. So I want to, want to be on the lower side of that, right?
12 If I'm anywhere, I'm closer to that 180, 200, but it's that
13 constant hey, I'm outside visual scan. I'm glancing inside. I'm
14 outside visual scan and, you know, that's, that's instrument based
15 when you're out flying I think given those sections of the route
16 structure being relatively flat terrain-wise. I think they're a
17 good visual cues too, and then it is common practice I think
18 probably across all cockpits in the Battalion of like hey, I need
19 you cross-referencing my scan if I'm the one outside and I am
20 flying --

21 Q. Um-hum.

22 A. And then announcing those altitudes, and I think that is
23 something, you know, again with that flat terrain that our non-
24 rated crew members do a really good job at as well.

25 Q. Okay.

1 A. But, no, there is not an acceptable deviance north of that.
2 Like that is a max altitude on route structure.

3 Q. Okay. By north of that you mean above 200.

4 A. Yes, sir.

5 Q. Okay. What -- I don't know if you've studied this since the
6 accident, but before the accident, did you have any knowledge of
7 how much clearance there would be if you were proceeding on Route
8 4 and you had landing traffic to 33 pass over you what the, what
9 the amount of clearance in feet would be?

10 A. No. It was not, not a practice I had seen or I believe that
11 anyone in the Battalion had seen. Since then I know that folks
12 have (indiscernible) it out a bit and looked at that glide slope
13 to identify that separation is virtually non-existent, and I say
14 non-existent within 100 feet and based on size of airplanes and
15 helicopters. I think that leads to a non-existent.

16 Q. When flying the D.C. helicopter routes, do you feel pressure
17 to call traffic in sight and request visual separation even if the
18 traffic is not immediately in sight in order to avoid being put on
19 hold?

20 A. No, and I've had several times where it's been very
21 particularly some of those (indiscernible) transitions, they'll
22 call traffic and will say searching. I don't have that traffic.
23 We are still searching.

24 Q. Okay. To your knowledge, has that ever occurred before with
25 the folks in your Battalion?

1 A. To be put in a hold?

2 Q. To call traffic and say before they have it and then, you
3 know, maybe have some sort of situation where they get a little
4 too close for comfort or something?

5 A. No.

6 Q. Okay.

7 A. During -- at least in my tenure in command, I have never had
8 someone say hey, I had a near miss with another aircraft that I
9 didn't call, or I called and I had them and I didn't have them or
10 they didn't have me.

11 Q. Okay. So and then beyond that specific sort of scenario,
12 have you had any reports of near misses since you took command
13 between aircraft and your Battalion and others?

14 A. No. We had not official near misses. I mentioned those
15 aviator academics that we will talk about before. We have talked
16 about instances. I had -- my National Guard Company in Kansas was
17 talking about a flight that they had. They could hear another
18 aircraft. This was not near DCA. I want to say this was actually
19 down near Davison. They could hear another aircraft and they're
20 searching for the aircraft, and then they saw the aircraft and it
21 was not where they expected to see it, but not like, filed as a
22 near miss event or qualified as a near miss, and then just the
23 importance of that scan --

24 Q. Um-hum.

25 A. And locating those aircraft.

1 Q. Okay. If something like that was to occur, I mean would the
2 pilots report that somehow beyond the Battalion --

3 A. Um-hum, yeah.

4 Q. Or how would that work?

5 A. So we would report it. So a couple of different things,
6 right? You would have safety channels, and you would have opt
7 channels (ph.) file, file in OHR as an actual near miss.

8 Q. What's an OHR? Operational Hazard Report?

9 A. Yes, sir.

10 Q. And who does that go to?

11 A. The -- I honestly don't know the reporting channels of where
12 it goes to. I know that they are consolidated, and we've
13 discussed even Brigade level and above.

14 Q. That's an Army thing though?

15 A. So that is an Army process. I'm not sure the integration
16 part, and I don't know if a board member with standardization
17 knowledge can participate in that as I look down the table at
18 Nick, but I'm not certain.

19 Q. Okay, all right. What about some of the civilian reporting
20 things like ASRS or do maybe local air traffic control? Would,
21 would those folks be notified if something like that occurred? I
22 mean would -- might, might an Army crew member submit an ASRS
23 report to the Aviation Safety Reporting System or they may just
24 stick to their own?

25 A. I would say on the safety side probably. Not a system I'm,

1 I'm familiar with, but I am confident that if my air crew members
2 had an issue, they would reach out to that ATC controlling agency.

3 Q. Okay.

4 A. Whether directly, you know, we have the ability to call DCA
5 for instance if we were coordinating a large (indiscernible) but
6 we would also go through the NCRCCC, the National Capitol Region
7 Coordination Center to pass that, and there are representatives
8 from multiple agencies there I believe including the FAA.

9 Q. Okay. But as far as you know, since you've been the
10 Commander of 12th Battalion, you haven't had an event that would
11 lead to that?

12 A. No, sir.

13 Q. Okay.

14 A. Not that I know of.

15 Q. All right. Do you use the IPAD with Foreflight in a stratus
16 unit --

17 A. We do.

18 Q. When you were flying?

19 A. Yes.

20 Q. Okay.

21 A. I brought it in. I didn't know if I would need any. I
22 didn't bring a stratus, but I brought the IPAD.

23 Q. Okay, all right, and you keep it on your knee when you're
24 flying?

25 A. I do depending on the type of flight. So I will leave it

1 strapped to my knee if it's something where I need to reference
2 that, you know, that route, there is a pre-planned route that I'm
3 going to execute. If I'm executing from like, a paper mission
4 packet, I'm more likely to stow it in the door.

5 Q. Okay, all right, and so, so you bring the IPAD. Do you
6 always bring a stratus?

7 A. So we -- I do not have enough stratuses for every aircraft in
8 the Battalion. I have 17 stratuses total. The allocation of
9 those is to mission lines first to make sure that those are on
10 mission lines. I'll tell you that we have requested additional
11 stratuses through procurement. Some ongoing challenges with, with
12 budget we were able to identify and get several of those stratuses
13 back to operation within the last -- really the last quarter by
14 some batteries and some other maintenance.

15 I do not have an SOP requirement that every flight have a
16 stratus, again without having enough of them, and what the stratus
17 does for us just, just to be sure that this has been explained is,
18 you know, if that stratus is on and operational, I -- there is no
19 integration with the aircraft at all with my integration.

20 There is a feed that goes to the IPAD that if I am using that
21 IPAD and I look down at that IPAD, I can see that other traffic
22 that is there or could, could see an alert flash, and I think like
23 that is important to note especially an organization like mine
24 where I have Lima model Blackhawks and you can steam gauge if you
25 were to envision that. If I want a moving map of sorts, this IPAD

1 is all that I've got.

2 Having a Mike model helicopter with that glass cockpit, they
3 have already that, that multifunctional display in front of me.
4 Probably not using an IPAD as much for that Foreflight reference
5 because I already have it in front of me and the stratus does not
6 provide that connectivity.

7 Q. Um-hum. Does the Mike have traffic information displayed?

8 A. Not, not integrated traffic notification can, can pick up
9 for, for all collective that airspace users I would say can pick
10 up other Army traffic.

11 Q. Um-hum.

12 A. That's something that's built in through like, a blue force
13 tracker capability.

14 Q. Okay, only Army traffic, okay. So if you use the Mike and
15 you had that display, the navigation display, you can only track
16 Army traffic, not airliners.

17 A. Integrated, correct.

18 Q. Okay, let's see. I'm just going through some questions here
19 and excluding some. All right, compared to other units you've
20 been in, what's the culture of this unit like?

21 A. I think the culture is good, right? That's a little biased.
22 I'm the Commander, right? I don't know, I don't know. My
23 assessment is it's good.

24 Q. It's a loaded question.

25 UNIDENTIFIED SPEAKER: It's the best one I've ever seen.

1 Q. We have (indiscernible).

2 A. We -- no. It really -- it is a -- it's a good unit. I think
3 that we, we excel at having those, those small teams. I think
4 that we do take pride in the mission that we do. I think there is
5 a unique balance here. This is the non-abridged answer, right?
6 There is a unique balance here of -- like I mentioned before, 62
7 percent of the formation is pointed against a mission line every
8 single day, and so while we don't have those field exercises,
9 while we don't have those overseas deployments, that becomes tough
10 in its own way, and that's 12 hours every day that you are tied to
11 those lines and I think that can be a strain on people. That can
12 be a strain on families before you start to, you know, you start
13 to feel that as an impact.

14 But that said, I think when you go back to culture, we -- you
15 know, my, my tag line if you will when it comes to how we operate
16 is discipline plus standards equals safety, and so whether that is
17 at a maintenance meeting, whether that is for our standardization,
18 how we are, how we are operating, it's doing the right things the
19 right way every single time.

20 And I have been I think very pleased as a Commander with our
21 organization's ability to do that. It's a place that people do
22 feel pride to serve in both geographically, but also I mentioned
23 earlier we don't have, we don't have a challenge with retention in
24 terms of those who -- you know there are people who have missed
25 combat aviation brigades and want to get out and go do that, and

1 we do everything we can to enable that. There are other people
2 who would like to stay, and then certainly those billets as they
3 are advertised to human resources and people want to come to the
4 organization.

5 Q. Okay, and with those 12-hour days, how many hours per week is
6 a, is a pilot on duty typically, like the warrant officer pilots?

7 A. I would say two to three, and that spans a seven-day work
8 week. It's not just, it's not just Monday to Friday.

9 Q. Okay. So they're typically working 40 hours a week or more
10 similar to that or --

11 A. In terms of --

12 Q. Terms of being (indiscernible) --

13 A. So in the Army, we have to be there five days a week to work.
14 The timing of that may vary with, with when they are on duty. So
15 I guess kind of two different things, right? So everybody in my
16 formation generally speaking, you know, there is weekend duties
17 and things. If you're showing up in the morning, you're working a
18 full workday if you wanted to say that's a 40-hour work week.
19 Some of those days you may be on duty. Some of those days you may
20 not be on duty in terms of are you sitting those duty lines? Are
21 you executing a flight but you're still physically at work?

22 Q. I see what you're saying. So, so you have your required
23 workdays and hours and then you have your flight-related duty
24 periods which may be different from that.

25 A. That's right, right. So if you're on a night flight for

1 instance, right, you have a night mission proficiency flight, well
2 then you're going to have a late show that next, that next
3 morning.

4 Q. Um-hum.

5 A. Right, so you get that, that reset time.

6 Q. Okay. So, you know, how many hours per week would a pilot
7 typically work either in being, you know, on the base in the
8 office capacity or flying? I mean is -- I'm not sure what's
9 typical. Is it like 50, 60 hours a week, 40 hours a week? Do you
10 have any idea?

11 A. I'm trying, I'm trying to do math. 40 or less I would say.
12 I didn't really -- right, that's another unique maybe Army
13 civilian I don't think in terms of, in terms of hours, but if
14 you're, you know, on average if you're not flying that day, you're
15 at work probably 9 to 5ish, right? So that's what -- that's going
16 to be your eight hour, your eight hour day, and then if you've got
17 -- just one of the things at the company level -- if you've got
18 those 12-hour days, then you are ideally receiving some
19 compensatory time for that either before or after.

20 Q. Okay, I see. All right, so they do get some time off if they
21 have to work a bunch, you know, at night or what not?

22 A. Yes.

23 Q. Okay. This -- you know, I think I know what you're going to
24 say based on what you've told me so far about the culture, but I
25 want to ask this question directly just so that you have a chance

1 to respond to it. Do you feel pressure to cut corners on safety
2 either through pressure from, you know, your senior leadership or
3 for other reasons?

4 A. Absolutely not.

5 Q. Okay, all right. That is it for me for specific questions
6 for right now. I'm going to push this off to Van.

7 A. Okay.

8 Q. Your turn, Van.

9 A. Just one more thing quickly on that, that safety and cutting
10 corners.

11 Q. Yes.

12 A. That is important enough to me that I will tell you if we
13 ever had a maintenance issue in terms of, you know, maintenance
14 recordkeeping or something like that, I have grounded aircraft --

15 Q. Um-hum.

16 A. Until we do things correctly. So that I would say is, is
17 pervasive across the organization. I -- you know, there was a
18 recent incident of a civilian towing an aircraft improperly and
19 that civilian was counseled, and so really it does go I think at
20 echelon across the organization and that's important.

21 Q. So you feel like as a Battalion that safety is a high
22 priority and that you're trying to make sure that, that it isn't
23 compromised unnecessarily?

24 A. I do. So when you look at, you know, whether you want to
25 call it philosophy, I talk with my team. I use, I use the acronym

1 Team and we say taking care of people for engagement and power and
2 we're always learning, and those things together make us mission
3 ready. Part of that always learning for me has been that, that
4 safety culture and creating an environment to where hey, if
5 something is done improperly, we share it and we learn from it so
6 that we don't repeat it.

7 Q. Anything else you want to add about that?

8 A. No, sir. Thank you.

9 Q. Okay.

10 BY MR. MCKENNY:

11 Q. Okay, I just have a few follow-up questions, some stuff that
12 Bill covered. So your mission, you have duty crews on -- is it
13 like an alert status?

14 A. Yes, sir.

15 Q. So how often do you actually get called to do an active
16 mission, you know, percentage-wise of you're on alert. How often
17 of that percentage do you get called up for an active mission?

18 A. So not for real world mission but for a mission-related
19 exercise. I would say one to two times a week.

20 Q. Okay, and how many aircraft are typically on this status?

21 MR. BRAMBLE: If you can answer the question?

22 MR. MCKENNY: Well, maybe, yeah. Let's say some -- maybe
23 that's not a good question. I retract my question.

24 MR. BRAMBLE: Just ask another question.

25 MR. MCKENNY: I am.

1 Q. In the crews that are on the status, what are their hours?

2 A. It varies. There are multiple statuses. I'm trying to think
3 of the best way to, to answer this within the realm of what I can
4 say. Some headshakes over here. I have some crews that are
5 postured against daylight lines, right, for those daylight hours.
6 I have some crews that are postured against nighttime lines for
7 those nighttime hours. I have some crews that are in a near
8 constant rest status because it's a 24-hour duty requirement.

9 Q. Okay.

10 A. And so we have like rest facilities for those crews. I'm
11 sorry if that's not as specific as you're looking for.

12 Q. No, I'm just trying to get a sense of --

13 A. What I can --

14 Q. The mission-related versus how much training would be
15 available.

16 A. Sure. So what I'll say on those mission lines is some of
17 them preclude training on those lines based on the timeliness of
18 response, the minimum amount of fuel, where you need to physically
19 be located. Some of the lines do afford for the opportunity to
20 conduct training and then we conduct training separately as well,
21 and so the Battalion right now rotates through where each company
22 will have a different set of mission lines each month because some
23 of those lines again, afford more training opportunity than
24 others.

25 Q. Okay. So just because they're on mission status doesn't mean

1 that they can't train.

2 A. That's correct, sir.

3 Q. Okay. What's your OPS tempo? High, medium, low?

4 A. How would you define the OPS tempo?

5 Q. Mission OPS tempo required, required status?

6 A. I would say steady. I mean more than half of the formation
7 every single day is highly demanding I think in comparison to a
8 combat aviation brigade, and I think you've seen our flight
9 schedule --

10 Q. Yes.

11 A. And the quantity, the quantity of lines required each day.

12 Q. Um-hum, I have. Do you have enough personnel? Do you have
13 enough pilots to fulfill your mission and do the training?

14 A. So we do that presently.

15 Q. Um-hum.

16 A. We put, we put air crews on mission lines, and we put air
17 crews out to train. I think that, you know, that's a, that's a
18 black and white answer. Yes, these things are happening today. I
19 think as I mentioned before, you know, sitting lines every day may
20 start to feel burdensome to individuals or families, but there
21 are, there are people to do it. It's just what that steady state
22 routine looks like.

23 Q. Okay.

24 A. Yes, sir.

25 Q. And how about maintenance-wise? Do you have enough

1 maintenance personnel to maintain aircraft?

2 A. So I would -- every commander in the Army would love more
3 maintenance personnel. So our Battalion by my assessment, yes, we
4 are doing that today. We are maintaining our aircraft, and so the
5 answer again black and white is yes. I do think that this
6 organization looks a little bit different than if you look at some
7 other Army helicopter battalions.

8 I have a department in the Army civilians who are absolutely
9 phenomenal in the maintenance that they accomplish for our
10 aircraft as compared to another Army unit which may have soldiers
11 and only soldiers that are performing their maintenance. A bit of
12 a stand-alone entity as, as a battalion in terms of adjacent --
13 there are no adjacent units to me, right, that also have some
14 maintenance that we can maybe co-use or borrow or share from.

15 Q. Okay. Referring to Captain [REDACTED] was she doing any other
16 programs outside of her job as an aviation pilot and officer and
17 the White House social, White House social events? Was there
18 anything else that you know that she was doing?

19 A. She volunteered with the, the junior league, a civic
20 organization I think. I'm not sure, you know, hours,
21 requirements, things like that. She was co-authoring or providing
22 input to a medical study that was tied with her medical school
23 application.

24 Q. Okay. That was with the junior league or is this a separate
25 thing?

1 A. I think that's a separate thing associated with that, with
2 that med school application.

3 Q. Okay. So she's working on -- participating in some sort of
4 study with -- associated with the med school.

5 A. That that would be like, personal time. That's not work-
6 related, so none of those junior league, anything else, not work-
7 related.

8 Q. Do you have to approve that as her CO for her to do those
9 outside activities?

10 A. No. It's considered a hobby just like anybody else who might
11 pick up a sport or bake, right, in this instance?

12 Q. Sure, yeah, right. So you had some personal time with her
13 mentoring her with some, some of her career and you flew a flight
14 with her, so I'm sure when you do that you get to chat a little
15 bit and stuff. Did she ever express to you any challenges with
16 her job as an aviator?

17 A. No, sir.

18 Q. Her flying part?

19 A. No.

20 Q. Okay. Let me see here. So the Commander -- you said the
21 Commander's investigation is done at the ATP level. Would that be
22 the company level, so the Company Commander would do that
23 investigation? Do you get informed as the Battalion CO of all
24 Commander's investigations that are being conducted?

25 A. So not necessarily for like, an ATP minimum type thing. I do

1 have a standard within my organization where if somebody is
2 failing a check ride or an evaluation that I want to know about it,
3 and that's because I am interested as a commander and isolating it
4 if there are any systemic issues. So, for example, this did not
5 happen. I'm just providing the example, right?

6 Q. Sure.

7 A. If I suddenly have, you know, in a company three aviators
8 that fail an instrument evaluation, then I say like hey, Company
9 Commander, let's -- I would say we've got to look at like, what is
10 your training plan, like, how is this happening? What are, what
11 are the issues here, but I have not had those systemic issues
12 during the time I've been in my command.

13 Q. Okay. Do you track aviators that are having difficulty
14 meeting their RL quals on schedule?

15 A. No. That would be in that same like failed check ride thing.
16 We have yet to have an Aviator who is having difficulty
17 progressing that it rises to my level.

18 Q. So the company would handle it if there is any hiccups, and
19 you wouldn't normally see it unless it became a problem like a
20 failed check ride.

21 A. So currently, yes, with the group of aviators that we have.
22 Now if I had an aviator who continued to have challenges and was
23 unable to progress, I would absolutely be a Commander to commander
24 a discussion.

25 Q. At what point would that occur?

1 A. So it would depend on, you know, that initial -- during that
2 initial Commander's investigation, that 14 days that the ATP
3 Commander has, I would expect that conversation to occur then. So
4 now it's not a like, oh, we looked at this investigation and this
5 flight was cancelled for weather. This flight was cancelled for
6 maintenance.

7 This is like hey ma'am, I've got a performance issue with an
8 aviator, and then in that instance, then you know one of my roles
9 as the Battalion Commander is hey, I need another set of eyes,
10 right? Maybe this is not a company internal progression that
11 we're looking at. Have we reached out Battalion level, Brigade
12 level, other standardization members that can fly with him and
13 figure out what is, what is the issue.

14 Q. Okay. Going to your experience flying Route 1, Route 4, you
15 said you had to hold at I think you said the Wilson Bridge.
16 Typically when you -- when the Tower asks one of your aircraft to
17 hold, what's the length of the hold time? For you, you can use
18 your example. How long do you hold?

19 A. Minutes, I mean maybe, maybe two minutes.

20 Q. A couple of minutes?

21 A. Several turns in holding. We were holding for landing
22 traffic.

23 Q. Um-hum.

24 A. And Tower will say, you know, hold, hold for landing traffic.
25 They'll tell you why you're holding.

1 Q. Sure.

2 A. They're not going to say establish this hold. For us, it was
3 hold for landing traffic. We're watching that landing traffic,
4 and then, you know, we see that -- we see them land and then you
5 hear the Tower call, you know, clear to proceed as requested.

6 Q. All right. So the holding delay is -- doesn't really
7 significantly impact your plan, your flight plan.

8 A. No, no. This is not like oh, you're on an instrument flight
9 and approach -- hold you for 30 minutes.

10 Q. Right.

11 A. No. This is deconfliction.

12 Q. That's all the questions I have for now.

13 MR. BRAMBLE: All right. Eddie?

14 BY MR. MILLER:

15 Q. Ma'am, you're doing a great job. I see your water bottle is
16 getting a little low though, but is there a -- when you're logging
17 like your duty time, is there a digital -- do you guys do it
18 digitally to do your duty time for everybody? Does it go like in
19 the one Master --

20 A. So we do have -- we call it a fighter management workbook.
21 That is a tool that commanders can use to track two things. Going
22 back to your question about duty hours, how much are people
23 working as well as flight hours. Typically we see those
24 implemented like on a deployment where you're doing a lot of
25 flight hours, something like that, and we don't run into that

1 here, so it's not a mandated tool.

2 Now our hours total are also captured in the way that we log
3 our flights, so that's a digitally-based system, and all of that
4 information feeds into similar to where you're pulling Captain
5 [REDACTED] records from in CAFRS. You can go and you can pull that
6 experience report for an aviator and it will list by date the
7 hours and types of flights.

8 Q. Okay. Does it normally track like, if I didn't fly today but
9 I did come into work, is that logged?

10 A. That would be that fighter management workbook --

11 Q. Okay, all right.

12 A. If a company is using that. Yes, sir.

13 Q. Okay, all right. For --

14 A. Excuse me.

15 Q. Is the Battalion running at an OR rate of 70 or higher?

16 A. We are -- I need to go back and look at the averages. So I
17 have a sharp dichotomy in the Battalion between my Mike models and
18 my Lima models. They mirror Army averages and certainly my Limas
19 actually exceed Army averages typically for that readiness.
20 Combined, combined OR rate, yes, between the two but not Limas and
21 Mike separately if that makes sense.

22 Q. Okay.

23 A. Like if there's an aggregate, aggregate OR rate.

24 Q. Because you have, you have so many more Limas than you do
25 Mikes, right?

1 A. I do.

2 Q. Right.

3 A. Well, that's -- organically I do. I would caveat that with
4 -- I mentioned that National Guard Company, that rotational force
5 that comes in, that can be Mike models or Limas. So for instance
6 right now, it's Mike models, and so I have more Mike models than I
7 do Limas which typically do have that, that higher OR rate.

8 Q. Does the -- do the -- when the National Guard folks come in
9 -- does their equipment go on your OR rate?

10 A. It does, yes, sir.

11 Q. It does, okay, and organically are you only taking care of
12 your aircraft, or do you also take care of the guard aircraft too?

13 A. So we take care of both, but with that National Guard
14 aviation company that comes in also comes some maintenance
15 support.

16 Q. Okay, very good. Have you ever flown with -- I know, I know
17 you've flown with the normal goggles, but have you ever flown with
18 the white phosphorous goggles?

19 A. Yes, sir.

20 Q. A lot of time or a little bit of time?

21 A. So this was my first unit flying with them. They didn't
22 exist or they didn't exist for conventional aviation I guess the
23 last time I was flying. Probably about split time here.

24 Q. Okay.

25 A. We'll mark our goggles and then it's kind of oh, you get what

1 you get people might have a different preference for which goggles
2 they prefer.

3 Q. Okay. Have you noticed a difference when you're flying in
4 the, you know, the city light area with white phosphorous light?

5 A. I think the white phosphorous tends to make some of those
6 lights sources stand out more. You will hear some aviators that
7 will say oh, I prefer white phosphorous for tactical flying on a
8 low illumination night because they make things stand out more. I
9 think that the opposite can be true when you have a lot of
10 cultural lighting where it makes things -- where it makes things
11 very bright.

12 Q. So which one --

13 A. They're very bright in green goggles too.

14 Q. Right, but which one would you prefer in the city light area?

15 A. That would be personal preference.

16 Q. What would you prefer, ma'am?

17 A. Which would I prefer?

18 Q. Yes.

19 A. Honestly I'm indifferent.

20 Q. Okay, all right.

21 A. It's not meant to be a non-answer. I just -- I think having
22 grown up with green, I'm very comfortable with green. I
23 appreciate the additional detail maybe with the white, but I'm,
24 I'm happy for either.

25 Q. Okay. That's all the questions I have for now.

1 MR. BRAMBLE: Sabrina, you got anything?

2 MS. WOODS: No.

3 MR. BRAMBLE: Nick?

4 MS. HOLOWNIA: I'm sorry I'm no longer doing well. I didn't
5 have an answer for your question.

6 MR. BRAMBLE: Paul?

7 BY MR. KIM:

8 Q. Are you familiar by any chance with the -- any of the air
9 crew's duty schedules for the day after the flight?

10 A. Like, 30 January what they would have been doing?

11 Q. Yes.

12 A. Not intimately familiar, no. I would have to go back and
13 look.

14 Q. Okay. Would you happen to know if any of the crew members
15 would have been close to coming up against any rest or duty limits
16 for the rest of the day or for the 30th?

17 A. No.

18 Q. Okay. I'm sorry if you've already answered this, but do you
19 personally typically use a stratus unit whenever you go out
20 flying?

21 A. I take a stratus with us, yes.

22 Q. Do you set the traffic altitudes to display relative or
23 absolute altitude?

24 A. I honestly would have to go into -- would go into the
25 settings. I can't tell you with certainty.

1 Q. Do you know which one it defaults to?

2 A. I do not.

3 Q. Have you by any chance observed the common preference among
4 pilots for setting traffic to relative or absolute altitude?

5 A. I have not.

6 Q. Okay. Those are all my questions. Thank you.

7 A. Okay, thanks.

8 MR. BRAMBLE: Dave?

9 BY MR. BLAIR:

10 Q. Okay, just to remind you, Dave Blair with Sikorsky Aircraft.

11 A. Yes, sir.

12 Q. So I'm not here to try to sell you aircraft. I promise, but
13 some of my questions might lead you to think that. So for your
14 own personal training, did you come in and do your initial
15 aviation training on Lakotas or TH-67?

16 A. No, TH-67.

17 Q. Okay.

18 A. TH-67, OH58 Alpha Charlies.

19 Q. Okay, and now most of the folks that are in the Battalion
20 obviously are -- well, I shouldn't say that. Many are less mature
21 especially the newer aviators who will have some from Lakotas, the
22 Mike models and then transitioning back to Limas, right? Have you
23 found it to be a difficult transition or has that been a problem?

24 A. It really hasn't. We are intentional on -- when I sit down
25 with Battalion stands and we have an aviator inbound to the

1 formation, we are intentional of assigning folks that have Lima
2 experience to those Lima companies as much as able to make sure
3 that we have, we have that experience in the companies to balance
4 those that we are reverting to a Lima model.

5 Q. Okay, all right.

6 A. Yes, sir.

7 Q. Next question, you mentioned you had 11 first-term pilots.

8 A. I do.

9 Q. How many of those are commissioned versus warrant? Do you
10 happen to know off the top of your head? It's not meant to be a
11 stump chump question, just --

12 A. No. As you asked that, I -- I'm going to go -- I don't know
13 with certainty. I'm going to tell you I senior rate five W-1s, so
14 odds are five and six.

15 Q. Okay. So relatively even split.

16 A. Yeah, and those W-1s are now maturing to W-2s, so I don't
17 know if they have a longer, longer term of service as a W-1,
18 but --

19 Q. Okay. We've heard from several of your folks to the kind of
20 Battalion motto or safety motto. Can you tell us what that is?

21 A. Discipline and standards equals safety.

22 Q. You said that earlier, okay. I was just curious if it was
23 the same one.

24 A. Yeah. It's good they do listen.

25 Q. There you go. To your credit, yes. Many of them had

1 mentioned it so that's good. Let's talk about your Safety
2 Officers real quick. So we talked to Mr. Barzak and we talked to
3 the Company Safety Officers, although I can't remember who that
4 was, but they both mentioned that they had been to the Safety
5 Officer's Course or Safety Course I should say. It's not just for
6 officers, right?

7 A. That's right.

8 Q. So -- and they both mentioned kind of a percentage of time
9 that they spend both in the course and at the Battalion doing
10 ground safety versus aviation safety. Any idea kind of what your,
11 your view of what -- how much time they spend on that?

12 A. So for those line companies safety officers, I would -- I
13 want them to be more engaged in aviation safety but the
14 predominance of our incidents are ground-related and a lot of the
15 inspection requirements, everything else, they're coming through
16 on the ground side.

17 Q. Okay, sounds good. As Commander, do you fly with all of the
18 companies --

19 A. So --

20 Q. (Indiscernible).

21 A. Right now I do not fly with all the companies. So I
22 mentioned previously or you heard me say -- what was it -- the
23 white phosphorous goggles. So coming into Command, I mentioned
24 earlier I was pregnant when I first came in. I was not flying,
25 had a baby, postpartum. I started flying again last summer,

1 wanted to go back up as a PC in a Lima model, helpful for Bravo
2 Company, Charlie Company and then began Mike models again.

3 Q. Okay. So you mentioned PFE flights. Typically when somebody
4 comes off, like your example, you had a baby, came back in. Are
5 you going to go right into a PFE flight or are you going to have
6 sort of a warm-up? You're going to have a series of warm-up
7 flights.

8 A. So it, so it depends. My situation far, far different in
9 terms of amount of time out of an operational aviation position.
10 You know I was a hard restart. So I think that it is going to
11 depend on time out of the cockpit and what is required to get back
12 to proficiency. There is no expectation that you go out and
13 you're taking this PFE flight and you must pass or fail that
14 night.

15 Q. Got it. So in the example of Mr. [REDACTED] let's say he went
16 down for a month. He came back and then maybe a warm-up flight
17 and, you know, it was only a 30-day period so a warm-up flight and
18 then back into the --

19 A. It could be. It would still be with standardization
20 personnel, right? So whether that is a PFE flight or, you know,
21 that can be individual-based to say hey, I need, I need and want
22 more time for this.

23 Q. He's going out with an IP?

24 A. Absolutely, and then there are regulatory requirements of
25 course for an amount of time out of the aircraft and what does

1 that hard restart you at?

2 Q. Okay, sounds good. So a lot of questions about duty day and
3 rest periods. Is it suffice to say that in the Battalion no
4 matter what the schedules are, you're conforming to Army crew rest
5 and crew day standards?

6 A. Yes.

7 Q. Okay.

8 A. So we have a very, very detailed layout in that, in that AVOP
9 and our SOP of what those different fighter management or
10 (indiscernible) will look like going back to your question, sir,
11 about the duty lines supported.

12 Q. Is it a maintenance challenge for the Battalion to have both
13 Mikes and Limas? Does it make your job harder I think is what I'm
14 really looking for?

15 A. So I think there are -- right, you look at things from
16 stockage, right? What do I need to have that is Mike? What do I
17 need to have that is Limas? You look at the ability of my
18 maintenance test pilots. Some of them are Lima pure and Mike
19 model pure. I think that those things do present unique
20 challenges internal to this organization. Are they different than
21 a general support aviation battalion that has a Lima CAB company
22 and a Mike model medivac company? Maybe not and it is happening
23 across our aviation.

24 Q. Okay, and last question related to that I can't remember so
25 I'll pass.

1 A. Okay, sir.

2 MR. BRAMBLE: Okay.

3 Q. Just a couple of follow-ups. We heard something about
4 Captain [REDACTED] being involved in SHARP as a -- I'm not sure how
5 you call her role though. It was like handling the phone.

6 A. Like -- yes, sir.

7 Q. Do you know what that imposed in terms of like, how much time
8 did that take?

9 A. I don't. So she was trained as a victim advocate. She was
10 not in my, my primary, my primary victim advocate during my
11 tenure, so I'm not certain.

12 Q. So was she still doing that when, when you came into Command
13 or not anymore?

14 A. She -- I'm trying, I'm trying to recall my reps, my reps
15 early in my command if she was on them or not. I don't want to
16 answer that one with uncertainty.

17 Q. That's okay --

18 A. I'm sorry.

19 Q. If you can't remember.

20 A. Yeah, but for my other SHARP reps, I will say there is not an
21 okay, today is Tuesday. I must sit down and do these SHARP
22 functions.

23 Q. It's more like they're just sort of handling the phone
24 periodically?

25 A. Yes, sir, depending on what level, what level they're at.

1 Q. Okay, and then in your command at 12th Aviation Battalion,
2 how many times have you had a flight evaluation board for a pilot
3 who was having difficulty performing as a pilot?

4 A. Zero.

5 Q. Okay.

6 A. But I think just a bit more context, I have been doing Army
7 aviation things since 2006, and in that time period I have
8 encountered or known of three flight evaluation boards. So one
9 where I was a board member unrelated, one out of my company when I
10 was a company commander, and then another one that I have
11 knowledge of, and I share that just for context.

12 Q. Because you have familiarity with them and you have
13 encountered them before.

14 A. Oh, I have absolutely.

15 Q. But not in the last --

16 A. Just to shape for context, I think of frequency of that
17 activity or action.

18 Q. Pretty rare. Is that fair to say? Okay. That was a nod for
19 the transcriptionist.

20 A. Oh sorry. I would say it's used as appropriate.

21 Q. Um-hum, okay.

22 Van?

23 MR. MCKENNY: No further questions.

24 MR. BRAMBLE: Eddie?

25 MR. MILLER: No further questions.

1 MR. BRAMBLE: Sabrina?

2 MS. WOODS: No.

3 MR. BRAMBLE: Nick?

4 MR. JACOBY: No, sir.

5 MR. BRAMBLE: Dave?

6 MR. BLAIR: Yes, one question.

7 MR. BRAMBLE: All right.

8 BY MR. BLAIR:

9 Q. Back to my thoughts, given what you know about the priority
10 of the mission that you do, would you have a preference to have a
11 Mike model or a Lima model to do that mission?

12 A. I think -- I don't know that this is directly relevant to the
13 accident investigation. I think that there is a reason that the
14 Army has continued to modernize its aircraft both for situational
15 awareness and what can I do? Eyes up, heads up in a cockpit.
16 Broadly speaking I think that it is recognized in the aviation
17 community that interfaces like the Mike model provide that
18 capability.

19 Q. So I would argue a little bit and maybe put it to you too.
20 Based on what we know about the capabilities of the two different
21 aircraft between the Mike and the Lima, the Mike's got some
22 capabilities that, that would perhaps give crews better situation
23 awareness when doing, you know, routes and things, especially in
24 the -- both national airspace and D.C. routes and things like
25 that. So that's the genesis of my question. I'm trying to form

1 this in, in the form of a question, right? Do you think having a
2 Mike model would have helped on the D.C. routes in this particular
3 case?

4 A. No, I do not.

5 Q. Okay. That's it. No further questions.

6 MR. BRAMBLE: Okay. Anybody else have anything? No, all
7 right.

8 Q. Is there anything that --

9 A. I would, I would go back -- so just going back to that
10 question thinking through it -- you know, I'm thinking as you're
11 asking that question. I'm thinking about the systems that are
12 integrated on a Mike model versus some of the systems be federate
13 (ph.) and what would still need to be federated with a Mike model,
14 and I took it, I took it that direction.

15 The one thing that I would say that I think is a great
16 advancement of the Mike model having flown both is the ability for
17 a coupled flight.

18 MR. BLAIR: That's kind of (indiscernible).

19 MS. HOLOWNIA: Yes, sir. I was, I was thinking of displays
20 when you asked it, and then as I sat here and thought about it,
21 I'm like, well beyond the displays, just again thinking that the
22 modernization, but that coupled flight I think is important.

23 MR. BLAIR: Thanks.

24 MS. HOLOWNIA: Yes, sir.

25 MR. BLAIR: Thank you.

1 BY MR. BRAMBLE:

2 Q. And in terms of important, would it be important for flying
3 the D.C. helicopter routes?

4 A. I think it just provides an added capability, right? So we
5 talked about those base common standards for, for all aviators as
6 they are flying and as they are operating. I think the ability of
7 the Mike model within certain parameters to provide that coupled
8 flight can assist in meeting that standard.

9 Q. In terms of deviations from desired parameters?

10 A. Yes, sir.

11 Q. Okay. Is there anything that we have not asked you about
12 that you think would be important for us to know given our role
13 investigating the accident? It's basically just your opportunity
14 to add anything else you think you would like to share.

15 A. I'm thinking it's been quite a while that we've spent
16 together today.

17 Q. I know, three hours, so if the answer is no, we won't --

18 A. No, which is wonderful and there is --

19 Q. We won't think less of you.

20 A. There are several, several simultaneous investigations
21 occurring, so I just want to think if there are things that we are
22 talking about in one not potentially we have not talked about in
23 here.

24 Q. Um-hum, and take your time. Don't feel rushed, and take a
25 big, long drink of water.

1 UNIDENTIFIED SPEAKER: Clearly, we have plenty of time.

2 A. You know maybe, maybe not directly relevant to your
3 investigation, but I think what I had shared with the team when we
4 first started, I don't, I don't envy the job that you do or the
5 investigations that you participate in, but I do very much
6 appreciate them, and I would say, you know, am I a representative
7 of the Army? Maybe not, but certainly, you know, within, within
8 the Battalion.

9 And as I have talked with the people in the Army, we are all
10 very interested in learning from this tragic accident,
11 establishing what occurred, establishing, you know, potentially
12 why it occurred if we ever get to that, likely a multitude of
13 factors, but certainly things that are able to be implemented to
14 make positive change to prevent it from occurring in the future,
15 and so I guess I would say, you know, my personal thanks to each
16 of you. I think you see awful things in your line of work, but it
17 is, it is appreciated and it's impactful, so I appreciate your
18 time today.

19 Q. Thank you, and is there anyone else that you think we should
20 definitely speak with that we haven't spoken with? Somebody where
21 you're like, why, why haven't they contacted this person?

22 A. Do you have your list of people you've spoken with? Again,
23 I'm so sorry. The simultaneous investigations --

24 Q. I do have a list here of all the people we've spoken with.

25 A. Okay.

1 Q. Do you want me to just go down the list?

2 A. Is that something you can share? I'm just going to think
3 through.

4 Q. Sure. So Officer Engles, Captain Gallan, Captain Swaski
5 (ph.), First Sergeant Barton, Warrant Officer McGowan (ph.),
6 Warrant Officer Kimble (ph.), Mr. Kauffman (ph.), Warrant Officer
7 Dave Vanbeckten (ph.), Warrant Officer Barzak, Fonda. We've
8 talked to Captain [REDACTED] roommate, Retired Army Aviator Haase,
9 Warrant Officer Williams, Warrant Officer Stores (ph.), Warrant
10 Officer Holterman (ph.) and yourself.

11 A. Okay. You said you had talked with Captain Gallan.

12 Q. Yes.

13 A. Okay. I'm going through the risk approval levels. Carl
14 Halterman (ph.) has longevity in the organization. If you need
15 more about experiences within 12th or flying on the D.C. HELO
16 routes, my Senior Warrant Officer Advisor CW-4 Mike Cooper has
17 been in the organization for several, several years, pre-dates me.
18 If, if you are looking for additional historical context, a lot of
19 those aviators that you mentioned are newer to the organization in
20 terms of like, in the last year, year and a half, and he's got a
21 couple of years, and that he is also a maintenance test pilot,
22 previously served as the Battalion Maintenance Officer.

23 Q. Mike Cooper?

24 A. Mike Cooper, CW-4. I think that's the only thing not there,
25 maybe just a maintenance perspective in that longer look.

1 Q. He would also have a maintenance perspective? Is that what
2 you said?

3 A. He would, yes, sir.

4 Q. Okay.

5 A. And then I didn't hear I don't think a flight surgeon on that
6 list.

7 Q. We do not have one on the list yet, but we, we did get a
8 contact from Nick for somebody at your medical office.

9 A. Okay. Dr. Jacocks or Captain Taylor?

10 MR. JACOBY: I -- it's -- they gave me a contact regarding
11 something else pertaining to this, but yes, those are our two
12 options.

13 MS. HOLOWNIA: Okay. I just -- I would recommend one of them
14 may be able to speak with more like hey, how often do you see
15 aviators go down and what is the duration of that?

16 BY MR. BRAMBLE:

17 Q. Can you give me the names of those two or those -- at least
18 one point of contact for them?

19 A. Yup. So Dr. Jacocks and Captain Chelsea Taylor is the
20 Brigade Flight PA.

21 Q. Okay, and if we do request interviews with them, we'll of
22 course work through Nick who is our group member and coordinate
23 with colonel.

24 A. Yup, absolutely. I'm just trying to think of any other, any
25 other area maybe not explored. Is there anything that you have

1 additional questions about over like context because I certainly
2 can point you towards the right resource for that as well?

3 Q. I think all -- I'm going to go ahead and call the interview
4 complete and we can discuss whether we want to pursue any other
5 lines. So we'll call the interview complete at 16:05.

6 (Whereupon, at 4:05 p.m., the interview was concluded.)
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

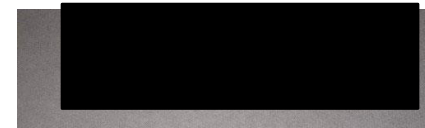
IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of Erika Holownia

ACCIDENT NO.: DCA25MA108

PLACE: Washington, D.C.

DATE: February 11, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Michelle Merges
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25FM030

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: SFC WAYNE G. BULSON, III, First Flight Platoon
Sergeant, 12th Aviation Battalion/The Army Aviation
Brigade
United States Army

via videoconference

Thursday,
March 20, 2025

APPEARANCES:

BILL BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Helicopter Operations Investigator
National Transportation Safety Board

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
United States Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of SFC Wayne G. Bulson, III:	
By Mr. Bramble	5
By Mr. McKenny	22
By Mr. Bramble	39

I N T E R V I E W

(10:04 a.m.)

MR. BRAMBLE: Today is March 20th, 2005 (sic), it's 10:04 Eastern Daylight Time. My name is Bill Bramble and I'm a human performance investigator with the NTSB. Van McKenny and I are leading the operations and human performance working group for investigation DCA25MA108 involving PSA Flight 5342 and PAT25. This will be an interview with Wayne Bulson.

The NTSB is an independent federal agency, we're not part of the DOT or the FAA and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of the investigation is complete and accurate. We'll be recording this interview so it can be transcribed. We can provide an opportunity for you to review the transcript, if you'd like, just let us know afterward.

Today we have one of our group members with us and so I'd like to have each of the other people on the call briefly introduce themselves, starting with Mr. McKenny. You're muted.

MR. McKENNY: Van McKenny, helicopter operations group chairman, NTSB.

CW5 JACOBY: CW5 Jacoby, Brigade Standardization Officer for the U.S. Army Aviation Brigade.

1 MR. BRAMBLE: Okay, please answer all questions to the best
2 of your recollection. If you don't understand a question, just
3 let us know, and if you misstate something or want to correct it,
4 that's fine. You're entitled to have a representative during any
5 NTSB interview, is there someone you'd like to have as your
6 representative?

7 SFC BULSON: No, sir.

8 MR. BRAMBLE: Okay, let's begin.

9 INTERVIEW OF SFC WAYNE G. BULSON, III

10 BY MR. BRAMBLE:

11 Q. All right, Mr. Bulson, can you please state and spell your
12 full name?

13 A. My name is Wayne G. Bulson, III.

14 It is W-a-y-n-e G. B-u-l-s-o-n and I'm the III.

15 Q. Okay. What's your rank?

16 A. I'm a sergeant first class.

17 Q. And what unit are you in?

18 A. I'm in Bravo Company, 12th Aviation Battalion and part of
19 TAAB.

20 Q. And what is your position in Bravo Company?

21 A. I'm first flight platoon sergeant.

22 Q. And what does that position entail in terms of
23 responsibilities?

24 A. Responsibilities include taking care of personnel matters,
25 tracking maintenance, tracking flight hour program, and overall

1 health of the company.

2 Q. Okay. And what's your aviation background, how did you come
3 to be in this position?

4 A. So I started back in 2001, I was in the Marine Corps and I
5 was a 53 mechanic and then I transitioned over to the Army and
6 basically went to 160th, was in 160th on Hawks, Little Birds, and
7 went to Hawaii, was a QCNCYC (ph.), a platoon sergeant and a
8 PCNCYC (ph.) and then I got orders here and I've been here since
9 2022.

10 Q. Okay. With Bravo?

11 A. And this is something I've been -- yeah.

12 Q. With Bravo Company the whole time?

13 A. Yes, sir.

14 Q. Okay. Did you work with [REDACTED] in Bravo Company?

15 A. I did, sir.

16 Q. And tell me about your history with him.

17 A. So [REDACTED] and I were actually very close. He came to us and
18 became our standardization instructor for the company, that's when
19 I first met him, and we basically -- we hit it off, he was very,
20 very upbeat, brought a lot of life to the company. Some great
21 memories. The best part of [REDACTED] was his almost -- you could say
22 it's like a photograph of something in his mind about a technical
23 manual or anything like that, he could just bring it up and he was
24 so smart about what his job was and learned every day and was able
25 to basically tighten the shop group, so to speak, in the military,

1 like layman's terms, on all of the standardization for the company
2 on the non-radar crew member side. He also involved our crew
3 chiefs into a lot more of a well-rounded flight program here and
4 started having them learn a little bit about what's going on in a
5 helicopter during flight, how to basically do an instrument scan,
6 how to realize that you may be in an inappropriate angle at --
7 during flight or anything like that, that was -- that was [REDACTED]

8 And then our now first sergeant got promoted because he was
9 my second class platoon sergeant with me, [REDACTED] took that seat.
10 His knowledge of like just being able to be personal with
11 everybody and instruct very well, helped him sit right into that
12 seat, almost instantly, knowing exactly what to do and how to do
13 it, and it was refreshing having a good -- the top three
14 noncommissioned officers in the company who were competent,
15 confident, and we had a very close relationship.

16 [REDACTED] and I talked every day about how we could better things
17 around here and it's just his technical manual memory, literally
18 is what I called it, and that's basically how [REDACTED] and I were. He
19 came over and brought his son, Wyatt, over to the house a couple
20 times with the -- and, you know, hung out with me at my house, so
21 like yeah, we were close, that's how I know [REDACTED]

22 Q. Okay. So my next question was going to be about his
23 proficiency as a maintainer compared to other crew chiefs, but it
24 sounds like it was high?

25 A. Yes, sir. He was an ML-4, Maintenance Level 4, which is part

1 of the AMTP program and we gave him that designation with
2 confidence, absolutely, sir.

3 Q. Okay. I understand that he removed himself from flight duty
4 at some point, I think it was in 2024, do you know anything about
5 that?

6 A. I do know a little bit about it and it was -- he was going
7 through a rough patch relationship-wise with his wife, Dani, and
8 he confided in me what was going on, but that's not for this,
9 that's -- that's something that was on a personal level and it's
10 where that will stay.

11 Q. Um-hum.

12 A. But he was doing a lot better and he was back to being
13 confident and able to do his job very well.

14 Q. Okay. So by the time of the accident, whatever issues were
15 troubling him at that time no longer seemed to be a factor?

16 A. He was still going through with the relationship issues, but
17 not -- it had come to a known end, basically, they were going to
18 separate, that's all I'm going to put out, and that's where he was
19 at, at that time, and talking to him that day, literally, he said
20 it was just -- after the flight the next day, him and I were going
21 to have a conversation about where he was going to go and what was
22 going to happen and I just basically offered him hey, if you need
23 us to watch Wyatt or anything like that, we got, you know, my wife
24 and my oldest daughter, we could absolutely do that and he seemed
25 to understand that, you know, that relationship was over, but

1 there was a bright future ahead, he had a son, so like everything,
2 his whole world was his son, so he seemed very clear-headed, very
3 -- like everything was starting to change and that's why basically
4 he came back up on flight status and he was confident that he was
5 okay and I was too, talking with him, just on a mental capacity
6 and like, him -- because he was a technical inspector, as well, he
7 wasn't missing any details, he wasn't overlooking things, so he
8 was the same [REDACTED] that I knew prior to the beginning of that,
9 before he took himself off flight status for a little bit, so --
10 Q. Okay. And when was it he took himself off flight status
11 again? I don't have the records handy.
12 A. I don't know off the top of my head and I don't want to,
13 like, misdate it in any way, shape or form, but it was months
14 prior to this.
15 Q. Months prior, okay. Okay, and then -- so -- but as far as,
16 you know, what was going to be happening, like, he was -- he was
17 imminently about to separate at the time of the accident?
18 A. Yeah, they had already made the decision and --
19 Q. Oh, okay.
20 A. -- it was mutual. So, like, it was known and at that point,
21 he definitely was in a much better mental state and mindset and he
22 was back to TI-ing things, back to doing everything that -- on a
23 normal operations level. If he had to go talk to somebody or do
24 something that had to include the family and that aspect of it,
25 like attorneys or whatnot, we'd just give him time and, you know,

1 just be there for him. If he had any questions or if he wanted
2 some advice of some sort, he'd just ask and he was very open with
3 myself because, you know, I'd been basically talking to him
4 through the whole thing, so I really knew where he was and what
5 was going on in his head.

6 Q. Okay, all right. Okay.

7 A. This is hard to talk about.

8 Q. Yeah, I apologize. And if you need a minute, we can give you
9 a minute. Do you want a second?

10 A. No.

11 Q. Okay.

12 A. No, I'm good.

13 Q. All right. So as far as his ability to balance his work and
14 home life, how would you describe that in, you know, weeks before
15 the accident, was he doing all right with that?

16 A. Yeah, so him having the brain that he has --

17 Q. Actually -- actually just pause --

18 A. Yeah.

19 Q. -- one second, I'm just going to ask the folks next door to
20 quiet down a little bit.

21 A. Yes, sir.

22 (Pause.)

23 MR. BRAMBLE: Okay, sorry about that, guys. Go ahead, Wayne.

24 SFC BULSON: Can you restate the question real quick?

25 BY MR. BRAMBLE:

1 Q. Yeah. So just in terms of his ability to balance his work
2 and his home life, how was he -- how well was he doing with that
3 in the weeks prior to the accident?

4 A. So with [REDACTED] character, it was basically if he had an issue
5 or something was up, he would be very up front with it, especially
6 to me, and if he felt like hey, listen, a lot of stuff's going on
7 at the house today, I got to focus on that, then we'd be like
8 okay, go focus on that, so that way when he was at work and he was
9 focused on work, he was there in full mental capacity, basically,
10 he was able to switch gears and kind of separate home life from
11 work life. And a lot of us, especially when we start getting up
12 in rank and start getting up into higher positions, we got to
13 learn how to basically cope with both sides differently, just
14 separate the two.

15 When I'm at work, I'm at work and I shut off that side.
16 There's no, like, emotions of that nature when I'm at work,
17 they're two separate events, I'm at home or I'm at work and when
18 I'm at work I focus on work and when I'm home I don't focus on
19 work, I focus on family and that's the same way he was. But if
20 there were times where he was going through a rough patch or
21 anything like that, he'd be like hey, I need to take time and he
22 would take his time, do his thing and then he was like okay, I'm
23 back and he would be back a hundred percent because he wouldn't
24 let himself not be a hundred percent and work around helicopters,
25 he just knows better and I had full faith that he wasn't lying.

1 Q. Um-hum. How was he doing in his platoon leader role?

2 A. Platoon sergeant? He was --

3 Q. Platoon sergeant. Sorry.

4 A. Yes. Two roles.

5 Q. Yeah.

6 A. He was actually doing really well. I'm more of a maintenance
7 guy than I am, like, paperwork and stuff like that, but at the
8 same time, because I've been in so long, I can do the paperwork
9 proficiently and all that. Him, he got right in and he was very
10 proficient with paperwork, with managing personnel, because he had
11 already been running the flight schedule and placing people into
12 slots as crew chiefs and so on.

13 So like, he had already built that kind of, like, foundation
14 prior to, then when he came down here, it was kind of pulling him
15 back from flying and getting him more into maintenance and he has
16 always been really good with maintenance but now we're in a
17 managerial role versus a "hey, you're going to go out and you're
18 going to do this job" or "I'm going to be leading the task," no,
19 it's we're going to place the proper people in the position to
20 lead the task and then give oversight, because we can't do
21 maintenance if we're going to be the technical inspector on that
22 maintenance. So it was that changing of gears that took a little
23 bit and understand that he can't be out there and twisting the
24 wrenches and signing off stuff, so it was okay, now I got to start
25 learning the managerial side, specifically trying to talk about

1 flight hour program, about how many hours a year we're supposed to
2 fly, how we divvy it up and the fact that we have X amount of
3 pilots, X amount of crew chiefs, and each one of them has a set
4 standard that they have to meet per year and they have, you know,
5 every six months they have to meet minimums and every year they
6 have to meet the total, whatever, in fact, they are and for crew
7 chiefs, the minimum flight hours.

8 So we got to balance all that with training, as well, and
9 bringing that whole mix and giving the bigger picture and him
10 understanding why we did things a certain way when we're flying
11 aircraft with base flows and other things, that's where the
12 learning curve was for him, so he was basically learning how to do
13 the managerial role.

14 Q. Okay. What was his typical work schedule?

15 A. So his typical work schedule was basically around, well, our
16 flight schedule, because he was a still a flyer, so he stood duty,
17 he did other stuff, which I'm not going to get into that, but he
18 was on a set schedule when he was acting as a crew chief versus
19 the platoon sergeant role and when he was, you know, acting
20 platoon sergeant and I could be here anywhere around 8 o'clock in
21 the morning because we got to figure out what we're doing for the
22 day, then we got to go brief a PC meeting, which is for production
23 control so they can prioritize and kind of give out the lay of the
24 land for the day on which company's going to get which assets from
25 our maintenance department. So basically, that was a typical

1 schedule for him, was he'd be doing duty and then when he wasn't
2 on duty, he would be here doing the managerial stuff with
3 maintenance alongside me and the MTPs.

4 Q. So the managerial days would've been 8 o'clock in the morning
5 until typically what time?

6 A. It all depended on maintenance, that's the nature of
7 aviation. So we have a certain duty day that we're limited to and
8 basically, we'll work right up to that last minute depending on
9 the day and if we have to ask for an extension for the duty day,
10 then sometimes we have to if we got to get aircraft up, we have a
11 fairly good tempo here and we got to keep aircraft flying.

12 Q. What's the duty day limit?

13 A. So we try to limit it to 10 hours of duty day and we'll go
14 out to about 12, which is our -- you know, like hey, this is
15 winding down and then anything after that you're requesting an
16 extension for the day and we won't go more than an hour, at most,
17 past that. That's really when you're starting to get tired,
18 you're starting to, you know, feel the fatigue of the day and
19 stuff like that, so basically we try to limit it to that and
20 that's usually just really just wrapping up the finite details of
21 like a maintenance test flight or something like that to have that
22 aircraft up and that's basically it.

23 Q. Okay. All right, in the week or so leading up to the
24 accident, how was he doing in terms of fatigue and/or stress?

25 A. It's kind of a flat stress line here because our mission is

1 constant, so we're basically at the same stress level every day,
2 so to speak, and the fact that, you know, on weekends we get to,
3 you know, do our -- do our own thing kind of helps us decompress
4 and leading up to that, it was just normal stress at that time. I
5 mean, he did have stuff going on at home, but he had already come
6 to terms with that, that was already, like, known and yeah, it
7 could've added a little bit of stress to him, but he would've said
8 something if he felt that it was too much. That's just his
9 character, that's how he was.

10 Q. Okay. Did you see him daily in the 72 hours before the
11 accident? Three days or so?

12 A. Not the day prior to, but the day prior to that, yeah, he was
13 there and we had a bunch of taskings that we had to fulfill with
14 outside requests for personnel and like getting schooling and
15 doing things like that, he finished that up and then the next day
16 he had to go take care of some -- I can't remember what that one
17 was. He was taking care of something the day prior to that and
18 then he was there at work when I showed up --

19 (Audio malfunction.)

20 SFC BULSON: -- showed up that day.

21 Q. I'm sorry, my network quality -- my network just paused on me
22 for a second, but you said that, you know, he finished up that
23 stuff two days prior and then the day before the accident, he took
24 time to take care of something and then you saw him the morning of
25 the accident and then I lost you.

1 A. So it wasn't in the morning when I saw him because I had --
2 where was I? I showed up in the morning and then I went to two
3 meetings that day and then at 13:00 to 14:00 is when I saw him and
4 he was, you know, basically doing what he always does, he gets in,
5 he scrubs the logbook, he goes out to the helicopter, he does a
6 thorough preflight of the helicopter to make sure everything works
7 properly and make sure that all the dash 18 inspections, which
8 are, you know, important to us because that's, you know, the life
9 of the helicopter, basically, making sure that we do all the
10 proper inspections while you got to scrub the logbook to make sure
11 that everything is in specification.

12 That is his normal every time and he does it the exact same
13 way every single time. And I talked to him and I think he was
14 getting ready to start doing his recon of the logbook and doing
15 the scrub, that's when I saw him.

16 Q. Okay. And do you remember anything about that interaction?

17 A. He just said that he was going to talk to me later and I
18 don't know what it was about because he was getting ready to, you
19 know, go through his logbook, so it was like hey, I'll talk to you
20 later and I was like yeah, I'll talk to you tomorrow when you get
21 in and we'll -- and that didn't happen, so yeah, I really only
22 talked to him for about three to five minutes.

23 Q. Okay. And that was your only interaction with him that day?

24 A. Yeah, it was brief because there was (indiscernible) ton of
25 maintenance going on and there was a lot of things happening that

1 day to get everything situated for flights the following day and
2 we already had the aircraft for that night, that specific flight
3 already lined up, everything was ready to go, fuel, et cetera.

4 Q. Okay. Were you aware of anything involving an injury that
5 happened to his wife the morning of the accident?

6 A. No, so I knew that something had happened with Dani at that
7 time, it wasn't like -- I didn't get it from him and I think
8 that's what he was going to talk to me about, but that's just
9 speculation and like legit speculation, so --

10 Q. Okay.

11 A. So I really didn't have an actual positive like yes, that's
12 what it was, you know.

13 Q. Yeah. Okay. But as far as his appearance and demeanor that
14 day, it seemed like any other day?

15 A. Yes, very much because, like, he was focused on what he was
16 doing, like getting ready for the flight.

17 Q. All right. So Dani told us that a couple of weeks before the
18 accident, he relayed to her at dinner that he was -- he had spent
19 the day trying to diagnose an altimeter issue on one of the
20 helicopters and was unable to pin it down, do you know anything
21 about that?

22 A. So they're Limas (ph.), water in pitot-static lines, it could
23 be a number of things, but we can troubleshoot what it is, both
24 him and I are on AQ orders so we can start the auxiliary
25 powerplant, bring on electrical power and we can actually, like,

1 go through the troubleshooting diagram that we have in IADS to a
2 certain point and then we have to ask a maintenance test pilot,
3 but we're able to do quite a bit of troubleshooting just following
4 the IADS, our manuals, the technical manuals for the Black Hawk,
5 and we can troubleshoot quite a bit. And at that point, if he was
6 troubleshooting it, then it probably became an avionics issues.
7 So we go to the end of where our diagram brings us and if we can't
8 diagnose it, then it basically gets turned over to a higher
9 echelon of maintenance, like the avionics or the maintenance test
10 pilots. If he was troubleshooting it, then more than likely he
11 saw an issue.

12 Q. Okay.

13 A. I don't know the outcome of that.

14 Q. Okay, were you aware of him working on an issue involving an
15 altimeter a couple weeks before the accident?

16 A. Not off the -- no, like not personally, I didn't know that he
17 troubleshoot anything. He may have been the one that diagnosed it
18 and you can basically go back through the logbook and see when it
19 was written up and et cetera.

20 Q. Okay.

21 A. And if it was written up, then, you know, we'd ground the
22 aircraft if it was a mis-compare or if there was something that
23 was out of limits, if he was able to fix it and the parameter was
24 within limits, cycling power sometimes can help with that, whether
25 -- upon startup of all the instruments. Sometimes the start

1 procedures, if not done properly, can cause issues with other
2 things. So it's basically, if he did any troubleshooting and if
3 they, you know, cycled power and it came back up and was
4 operational, then it would be good.

5 Q. Okay. Could that have been any helicopter in Bravo Company?

6 A. Yeah, it could've been any helicopter, Bravo, Charlie, are
7 all Limas, so basically if there was an issue, we'll try to
8 troubleshoot it and sometimes upon startup, some things don't
9 start up properly, you shut it down, you go through the book, read
10 the procedures on what you do and you follow those procedures and
11 if it comes back up, it's on line, that means during a startup of
12 some sort, somebody started something in a different sequence than
13 what it was supposed to be, that does happen, and so basically
14 stop what you're doing and start over and make sure that
15 everything is followed line by line.

16 Q. Okay.

17 A. So he was always good with that.

18 Q. All right. So if you were able to start it properly and
19 there was no -- you were able to demonstrate --

20 A. Duplicate it.

21 Q. -- the issue or duplicate the issue, then you wouldn't have
22 to write it up?

23 A. No, you'd still write it up and annotate it.

24 Q. Okay. All right.

25 A. Soon as you go through a troubleshooting manual, then you

1 found a fault so you go and you write it up. Now, whether it's a
2 grounding condition or if it's a diagonal, that's up to the user
3 at that time, whether they decide that hey, that's a grounding
4 fault or -- you know, because it explains what grounding faults
5 are in the manual and you go through and you can -- hey, if this
6 is wrong, this grounds the aircraft; if this is wrong, this limits
7 the aircraft, or if this is wrong, you can, you know, do the
8 repair or the -- it doesn't factor into flight, if that makes
9 sense.

10 Q. Okay. So who's the user, who decides?

11 A. Usually, it's the maintainers and that's kind of the big
12 responsibility that we have and it's the MTPs that will -- or
13 myself, as a platoon sergeant, that will really make the -- like,
14 call of hey, that's a grounding condition, you cannot do that and
15 then it would go to hey, put the write-up in the book, work order
16 to this or if you can troubleshoot it and then if it's a grounding
17 condition, then we'd have to get a technical inspector and both
18 [REDACTED] and I are limited, so if it's a grounding condition that was
19 on an aircraft and we had to do the write-up, well, we can't sign
20 that off because we only do dash 18 inspections. Any of the
21 inspections that are done on the helicopter, we can go out there
22 and we can TI as long as we're not doing the work.

23 Q. Um-hum.

24 A. If that makes sense.

25 Q. Yeah. All right, so at any time in the couple weeks before

1 the accident did he come to you and say hey, Wayne, I'm trying to
2 diagnose an altimeter issue and I can't figure it out?

3 A. No, sir.

4 Q. Okay. All right. And then if he -- if he did need to
5 elevate it to avionics or a higher level of maintenance, who would
6 he contact?

7 A. So he would -- because he's concerned, so he wouldn't have to
8 contact me, he'd contact the maintenance test pilot and then
9 directly after that, he'd contact production control and let them
10 know hey, the aircraft's grounded and at that point he would
11 either ask myself or the maintenance lead for Bravo Company, hey,
12 do I have another aircraft, then, to fly, basically, so that way
13 if that aircraft's grounded, hey, we have another aircraft that
14 you can do, so then they start the whole process all over again of
15 scrubbing the book, doing all the pre-checks and doing the
16 preflight and all that kind of stuff and then they'll go fly that
17 aircraft, instead.

18 Q. Um-hum, okay. All right.

19 A. Or they'd --

20 Q. Say again?

21 A. Or they'd cancel altogether --

22 Q. Okay.

23 A. -- just not fly.

24 Q. All right. And one last question about the altimeter stuff,
25 are you aware of any altimeter malfunctions in any of the Bravo or

1 Charlie Company helicopters in the couple weeks prior to the
2 accident?

3 A. We did have one that they had a mis-compare and they grounded
4 the aircraft and, I mean, they didn't even get off the ground. So
5 you start the helicopter, if it's mis-compared and, like, we're
6 supposed to be at X on our -- whether it's rad-alt or barometric
7 altimeter, you're supposed to be at a certain level when you're
8 here on Davison, don't know the number off the top of my head, but
9 if it's outside the parameters that you're allowed, then you
10 ground the aircraft, it's grounded, basically.

11 Q. Um-hum. Do you know which aircraft that was?

12 A. Not off the top of my head, sir. We have eight aircraft and
13 we do a lot of maintenance around here.

14 MR. BRAMBLE: Okay. All right, I'm going to go ahead and
15 turn that over to -- the questions over to Mr. McKenny, thanks.

16 SFC BULSON: Yes, sir.

17 BY MR. McKENNY:

18 Q. All right. Thanks, Wayne, I appreciate --

19 A. Mr. McKenny.

20 Q. -- you talking with us, you're doing great. I just have a
21 few questions back on the maintenance process. Well, first of
22 all, I see you're wearing wings, so you're a crew chief?

23 A. So I am -- I'm grounded now, but yes, I've been a crew chief
24 for a long time.

25 Q. How many years?

1 A. So I've been doing aviation for 23 years.

2 Q. As a flying crew chief?

3 A. No, I stopped flying about four years ago.

4 Q. Okay.

5 A. The last time I flew was about five years ago, technically.

6 Q. Okay, 23 years. And then how many hours do you have in the
7 H-60s?

8 A. So I got about a hundred and 25 hours in the 60 and I did
9 time in Little Birds, so like that's a whole different story and I
10 got about a hundred and 62 stick hours in those.

11 Q. Hundred and 62, so actually flying hours?

12 A. Yes, sir.

13 Q. In combat patrols? Okay.

14 A. Yes, sir.

15 Q. All right. All right, good, that just gets you some -- that
16 will record your air crew experience there. Okay, so back to
17 working on the aircraft, so how would -- so if you're going to go
18 out there and troubleshoot an altimeter problem, how would that
19 troubleshooting be recorded in the maintenance records?

20 A. So first off, once you find an issue with an aircraft, the
21 first thing you're going to do is you're going basically stop what
22 you're doing, get into the manual to find out hey, this is a
23 grounding condition, is this a -- you know, a limiting condition
24 like a circle X, does it restrict the aircraft or is it a problem
25 that can be taken care of later and with that being said, I'm not

1 saying writing it up later, I'm saying you're finding out what
2 you're going to do for the certain status of the aircraft, then
3 you make an entry into the 13-1. So whatever you find in the
4 manual that says hey, this part grounds an aircraft, then you put
5 a grounding condition in the book, do the write-up as specific as
6 you possibly can, so that way it helps the troubleshooters later
7 on, or if you're doing the troubleshooting, basically you're going
8 to have to go through the steps, be as specific as possible, write
9 it up and then once it's written it up, then you can either start
10 the maintenance or you can -- well, if you ground it, you're going
11 to probably jump and so that means that aircraft is no longer your
12 problem, you're not going to troubleshoot it, it's grounded, we
13 don't have TIs here or if we do, then it's going to get handed off
14 to the maintenance team, then you're going to go to another
15 aircraft.

16 If it's a restriction, a circle X, then you're going to write
17 up the restricted from this certain type of flight mode or
18 restricted from, let's say it's a cargo hook issue or something
19 like that, it doesn't stop the aircraft from flying as long as
20 you're not doing anything with sling loads. It just restricts it
21 from sling mode operations, if that makes sense, sir.

22 Q. Yeah, based on limitations, right?

23 A. Yes, sir. So that's what would happen and it's specific in
24 the order that it happens because you got to look it up first to
25 make sure that you're putting the proper steps involved in there.

1 Then once you find out exactly what's wrong, you write, do the
2 write-up and then you go to do maintenance afterwards, like maybe
3 there's -- you got to do the write-up first because that's what is
4 going to basically tell you what you can do with that aircraft.

5 Q. I see. Now what's a 13-1?

6 A. Twenty-four-oh-eight thirteen-one is the form for faults
7 found on a helicopter.

8 Q. And then is that a handwritten form or is that something you
9 put --

10 A. It is --

11 Q. -- into the maintenance program?

12 A. It is put into the ACN, the program in which we do all of our
13 tracking of every helicopter, as well as every single maintenance
14 action that's done on the helicopter. So you have your --

15 Q. ACM?

16 A. ACN.

17 Q. N.

18 A. Alpha-Charlie-November.

19 Q. And you were going to say something after that?

20 A. Yes, sir. And it goes in stages, there's different forms,
21 like your 13-1 that I was talking about in the beginning, is the
22 first major fault, so that is the actual issue that is wrong with
23 the helicopter. Once that's done, then any actions that you take
24 on the helicopter, if you remove a -- something as small as, like,
25 a screw or a washer or just hardware in general, that gets written

1 up and documented on "this is the action that I'm doing, this is
2 the action I'm taking to do the repair or the troubleshooting,"
3 because a lot of times if you're doing troubleshooting, you're
4 going to put it in there as hey, I didn't have to take anything
5 apart, you just started the helicopter, you annotate that all
6 under the actual fault.

7 Now, if you take anything off the helicopter or do any kind
8 of maintenance action that is anything other than just that
9 troubleshooting, that would basically affect the status of the
10 helicopter, then you start annotating and it's every step is
11 another write-up, so if you take eight screws out to pull a panel,
12 "removed eight hardware each" and then that annotates hey, I have
13 eight pieces of hardware that are removed from the helicopter,
14 from this panel, so that way I know I did that step and then it
15 would be like "removed panel," I know I did that step.

16 And then if it has you do more steps or anything with that
17 maintenance, you're recording every single step, so that way, when
18 you're putting it all back together, you know you're putting all
19 the parts back on the helicopter as it's supposed to be and you
20 follow the manual all the way down and as long as you do that,
21 everything is documented and it helps someone like myself that's
22 going out there to be a TI, to know that hey, these are the steps
23 that they did and I can look at those specific components, and the
24 general area, as well, to find out if there's anything wrong with
25 that and make sure it was done properly.

1 Q. So when a maintenance person is doing that, they have the
2 maintenance computer with them out there with the aircraft and
3 they're entering this stuff as they do the work?

4 A. That is what the manual says --

5 Q. Okay.

6 A. -- that is a hundred percent with -- they better --

7 Q. Yes.

8 A. -- is what I'm going to say.

9 Q. Because there's no paper record, right, there's no paper
10 record on this --

11 A. Just the only paperwork that we're ever going to do is if
12 ACN, the network crashes and the logbooks are not operable, then
13 we go back to the old-school method of paper flight packs.

14 Q. Okay.

15 A. And then you would have to manually enter every single thing
16 you did and then after that, that all gets reentered into the
17 network once it gets backed up, so in the end, it's all going to
18 be on that logbook. So you get that paper flight pack, you would
19 then take it to quality control and they put it in the six-month
20 file.

21 Q. Okay. Okay, that's good. So any work that you would've been
22 doing troubleshooting an altimeter, that will be in the
23 maintenance records for that aircraft?

24 A. It a hundred percent should be, yes.

25 Q. Okay. And then if he couldn't resolve it as his level, then

1 it goes to the maintenance test pilot?

2 A. Yes, sir. So they are a full -- they're a full TI, technical
3 inspector, okay, and they have more background in troubleshooting
4 than the enlisted crew member would have, they go to a specific
5 school, they're taught specific ways and they're -- so they're a
6 warrant officer, so they have -- they're the SME, the subject
7 matter expert, in their field and that is their field and that's
8 troubleshooting and they take a lot of risk when -- you know, we
9 do all the maintenance, they have to go fly that helicopter and
10 clear it for flight, if that makes sense, sir.

11 So we would call him and be like hey, I got to the end of the
12 troubleshooting sheet, I cannot figure it out, the aircraft's
13 grounded, all the write-ups are in, this is where I'm at. He may
14 say okay, jump to another helicopter or he may say try this and if
15 the pilots do that, if it doesn't fix it, the aircraft's grounded,
16 if it does fix it, now we got to do the write-ups, get everything
17 done and then the -- either a normal technical inspector or the
18 MTP can go out there and clear the grounding condition. And it
19 has to be done in that order, it has to be done in steps, in
20 sequence.

21 Q. So who has the authority to ground the aircraft?

22 A. Anyone can ground the aircraft.

23 Q. Okay. So he could ground it and then basically, he grounds
24 it and then says okay, goes to the maintenance test pilot and says
25 it's grounded, you know, you're the next level up to authorize

1 more troubleshooting or whatever we need to do, then, is that
2 correct?

3 A. Yes, sir, but there are limitations to it, as well. So there
4 are certain procedures that have to happen, you can't just, like,
5 willy-nilly go and -- I hate using that term, it's funny, but --
6 and just sign something off because, you know, you feel that it's
7 correct or whatever. You actually have to go through the
8 procedures and when you get to the maintenance test pilot level
9 and it gets to a certain point you do something, it may need a
10 follow-on procedure, which is a maintenance test flight.

11 So if we get to that point, hey, now that might be cured, but
12 now the maintenance test pilot has to go get the aircraft cleared
13 for flight, you know, do an R-COP and doing all the procedures
14 that he has to do as a pilot, as well as a maintenance test pilot,
15 and then once those procedures are done, then he can fly the
16 helicopter because that's what his role is and clear it for
17 flight. So unless the procedures are followed in this order, they
18 -- the aircraft is not cleared for flight.

19 Q. Okay. Shifting gears a little bit, with your experience in
20 maintenance, can you tell us what typically -- typical types of
21 problems you see with the barometric altimeters with the aircraft?

22 A. So that one is -- that's actually a very good question, with
23 the fact that these are pretty, pretty old aircraft and they're --
24 you know, they're used a lot, I mean, we do a lot of flying and it
25 could have mis-compares or anything like that, which is

1 condensation water in there, that's something that we have happen
2 and all you got to do is get avionics over here, there's little
3 drain lines on the bottom of the helicopter and they put
4 pressurized air through the system and it blows all the air out
5 the bottom and it basically gets rid of the condensation, and then
6 they test it with the test kit and if the test kit says hey, it's
7 not reading properly, then we start troubleshooting lines, the
8 actual altimeter, the -- all the different components of that
9 system.

10 Now, that does happen if you have, let's say -- and this is
11 just a theoretical thing, that it -- not that it's happened, you
12 know what I mean, but let's say you forget to turn on the pitot
13 heat and you're in icing, you know, icing conditions and they, you
14 know, freeze over, you're going to lose reading in, you know,
15 airspeed and everything else. So, like, if you get water in
16 there, then, you know, it can cause issues, but that's basically
17 the Black Hawk has that system and that's also why we have also
18 the radar altimeter, as well, so kind of like, you know, you got a
19 system that will back up that other system.

20 Q. Um-hum. How often is there a mis-compare between the two
21 sides, the two --

22 A. I wouldn't say it's that often and it's only -- like, if we
23 have, like, a really bad torrential downpour come through or
24 something like that, where it blows a pitot cover off, which we
25 use to cover the pitot tubes, it may get some water in there and

1 then we start the helicopter up, not knowing that there is water
2 in there and then all of a sudden when you fire it up, it's like
3 okay, this was not matching this one and it's not reading
4 properly, then it's like okay, shut it down because now it's not a
5 proper function, it's out of limits, basically, so we ground the
6 aircraft.

7 Q. Do you know what the limits are between the two?

8 A. No, I go to the maintenance manual, I just do everything by
9 the book, I don't try to memorize that stuff, I don't memorize
10 torques, I don't memorize any kind of like hey, if I see a
11 problem, then I go to the book and that's always the first step,
12 go to the book.

13 Q. Sure. For -- I lost my question. The pilots, when they --
14 do you know if one of their checks is to compare the two
15 altimeters when they -- as part of their before takeoff checks?

16 A. Well, you got to make sure all the instrumentation is within
17 limits, you got to make sure that your -- you got your pressures,
18 your temperatures, and make sure that -- because it's basically
19 color code, they made it basically foolproof and everything in
20 there is what we call Chiclets, but they're little, tiny light
21 bulbs and they're in segments and each one of these segments is
22 color coded so if it's low, it's going to give you a caution of
23 either yellow or red, meaning it's not within the limits to go and
24 do your flight. Now, when it comes to the altimeters, the pilots
25 know what the altimeter is supposed to read while on ground here

1 at the airfield because that's -- they do that with briefing and
2 everything and if they're not within the tolerance of -- you go
3 through your checklist and if it's not in tolerance, then it's
4 like oh, well, the aircraft's no good, like, we're going have to
5 bump or get somebody out here to fix it, basically.

6 Q. Got it. Yeah, that makes sense.

7 A. We just lost Mr. Bramble.

8 Q. All right, he's probably just going to check on something.

9 Yeah. I had been more --

10 MR. BRAMBLE: Apologies, guys, I just had an interruption.

11 (Crosstalk)

12 CW2 BULSON: Yes, sir.

13 BY MR. McKENNY:

14 Q. I think my question is if -- if a maintenance person is
15 working on the -- oh, I know what my other question is, going
16 back, so do you -- how often do you see problems with loose
17 fittings in the pitot-static system?

18 A. You shouldn't, like, that's a sealed system, so if it bleeds
19 off that -- so, like, if you're sitting on the ground and -- well,
20 the pitot-static system is pressurized during flight, if that
21 makes sense, because forward flight pushes air in and basically
22 goes down into the computer and it tells it hey, this is the
23 pressure so this is going to be our airspeed and et cetera, et
24 cetera. If there's a loose fitting, then you're not going to read
25 actual information properly and it's tested every 12 months, so

1 like, it's -- we make sure that, like, if it is inspected and has
2 a leak, then we fix the leak, but at the same time we do that
3 during specific intervals, like hey, this is -- it needs a pitot-
4 static inspection, then we get avionics over here, they hook up
5 the kit and they go through it and they put forced air through it
6 and see if it -- the airspeed indication and the barometric
7 altimeter match what the test set says.

8 So that basically gives you a process of elimination,
9 basically, that hey, we have no leaks, but if they don't match,
10 then we have a leak somewhere or an instrumentation fault, if that
11 makes sense, sir. So as of getting, like, a loose fitting on
12 those, almost never, if at all. Most of the time they fail due to
13 the actual instrument going bad, itself, or water in the system,
14 not --

15 Q. Okay.

16 A. -- for, like, loose fittings.

17 Q. So that leads me right into my next question, then, altimeter
18 problems with the actual instruments, what's your experience
19 seeing anything like that, seeing an actual instrument altimeter
20 being the problem?

21 A. It is. A lot of times we have to replace them, they just go
22 bad. Whether or not -- I don't know, because -- and that would be
23 speculating on something like that, you know what I mean, because
24 I'm not a back-shop guy that's taking it apart and going oh, it
25 had water intrusion from, you know, condensation in the line or

1 something like that, but -- and they fail, they do. All
2 components eventually will fail and that's the -- the sad part is,
3 is we try to stop that from happening with doing all these
4 inspections prior to. So when it comes down to it, if it fails
5 during flight, you return home and you land and that's it. If it
6 fails on the ground, you shut down and that's it. If they find a
7 fault when they're doing the test on the inspection, then they fix
8 it then and then, you know, a TI would come over, sign it all off.

9 Q. Sure. How about the encoding function in the encoding
10 altimeter, do you have any --

11 A. That's an avionics thing, that's really out of my realm on
12 that part, like, I can do the basic functions of the altimeter and
13 stuff like that, turn it on, see if everything lights up properly
14 and, you know, if everything is good in that aspect. But when it
15 comes into actually troubleshooting an actual altimeter, that's
16 kind of like a back-shop thing where they're going to pull it
17 apart and look at it, test it and, you know, they can bench test
18 these and find out what the issue is. But for us, that's really
19 not our level and when it comes to the encoding stuff, that is a
20 hundred percent avionics, like, we're going to leave that to the
21 guys that know what the specifics for the electronic part of it
22 is.

23 Q. Yeah. This is my last question, then, I appreciate --
24 appreciate that on the encoding transponder, or altimeter. So if
25 you're doing maintenance on a -- on the altimeter system and the

1 -- there is a disagreement between the two or there is a problem
2 with one of the altimeters reading slightly off, so what -- it's
3 just right on the edge of being out of limits, you know, is that
4 black and white, it's either in limits or out of limits? If it's
5 right on the edge, would someone like you, yourself, or Sergeant
6 [REDACTED] go an extra step and say you know, this just doesn't seem
7 right, we need to try to figure out why it's so close to the
8 limit?

9 A. So now you're talking in the gray areas and --

10 Q. Yes.

11 A. -- that really comes to judgment. Now, we try to err on the
12 side of hey, it's close, I'm not going to let that go or be like
13 hey, like when it says it's good because things have limits for a
14 reason and they're set in place in black and white. Now, if we go
15 by the book every time, that's standard procedure.

16 Now, if you feel that it is within a window of being close
17 enough that you should probably do it because it's probably going
18 to be out pretty shortly, then you can judge that just by having a
19 maintenance background, like, I'm going to talk to you about
20 something that's like a hard number, like a bearing, okay, so I'm
21 going to correlate the two. You have a bearing that we measure
22 every 40 hours in some precision rates (ph.), okay, and when we
23 measure that bearing, if there's a bit of a tolerance there,
24 you're allowed X amount. Now, if you're, let's say, one-
25 thousandth out of the window on the max, you're going to just

1 change it there during a 40-hour inspection, you're not going to
2 be like oh, it will make it until the next 40-hour, it's like
3 well, no, because it's going to wear during that period to the
4 next 40. Now let's say it's halfway, no, you're going to let that
5 go to the next 40-hour inspection and it may pass on that one, but
6 it might be at the bottom side of it, so you just change it,
7 anyway, and that's basically preventative maintenance on keeping
8 the helicopter safe and that is a judgment call that's done by a
9 technical inspector, Keith Shaw (ph.) is usually who we ask, be
10 like hey, this bearing is literally one-thousandths out of the --
11 towards the bottom side of the measurement, like hey, do you want
12 us to change it.

13 When it comes to that role and platoon sergeants, like in my
14 position, I'd feel comfortable making that call, you know what I
15 mean, like hey, that's close enough, it's not going to make it to
16 the next 40-hour and we're not going to inspect it between now and
17 the next 40-hour because that's what the intervals are, let's just
18 go ahead and change it now. Maybe it seems as over-maintaining,
19 but it's really not, it's more of a preventative safety measure.

20 Q. Yeah, that makes sense. So in a case where you're
21 troubleshooting an altimeter problem, either a disagree between
22 the two altimeters in the cockpit or one is indicating, you know,
23 higher or lower than it should be, but it's right at -- you know,
24 right at the limit, where you can say it's good but it's really
25 close to being out, which -- did you -- knowing Sergeant [REDACTED]

1 the way you do, what would you think he would do in that case?

2 A. He'd ground the aircraft. It's -- just because it's at that
3 very end? No. Like, if it's 10 feet or whatever, just minimal,
4 yeah, okay, we got a bunch of other altimeters and a bunch of
5 other things and that's within 10 feet, 10 feet is, you know, when
6 you get in a visual reference and rounds like X, a 10-foot
7 difference is not going to really make or break anything with the
8 barometric altimeter, because at that point you got a visual
9 reference and you also have a rad-out that's telling you, you
10 know, hey, ground's here, we're correlated to the ground at this
11 height.

12 But barometric, like, you're going to be flying at altitude,
13 you may still have visual reference with the ground, but it's not
14 as good or you may still have radar altimeter, but you could have
15 stuff underneath you that, you know, it moves it, so to speak, and
16 so, like when you're talking in airspace and you're flying around,
17 you're going off the barometric altimeter because that kind of
18 gives you a constant, if that makes sense. So that was, you know,
19 like hey, I got a 400-foot tower over here, I got to be at this
20 altitude or whatnot, like, and the ground could be doing this,
21 well, now you got to correlate to two.

22 Q. Or he would -- he'd more likely, you know, kind of elevate
23 that if it was like real, real close to the border, he'd --

24 (Crosstalk)

25 SFC BULSON: The MTP would've got --

1 BY MR. McKENNY:

2 Q. -- the maintenance test pilot to consult and determine, make
3 the final determination on the status of the aircraft?

4 A. Yes, hundred percent.

5 Q. Okay, yeah.

6 A. And I've gotten calls from them, as well, on -- and most of
7 the crew chiefs will be like hey, this is happening, it will be
8 like okay, get in the book, look at what the parameters are, if
9 it's out of parameter, write it up, ground the aircraft and then
10 we'll go on from there and that's just -- that's how it -- it's
11 written in a manual specific so that way it takes a lot of
12 judgment out of --

13 Q. Yeah.

14 A. -- maintenance on a helicopter because people before us have
15 been like hey, you can't do it that way due to the fact of hey, it
16 could cause catastrophic failure or anything like that, so we
17 follow the book, and if he had a question or if one my crew chiefs
18 has a question, they can call me and be like hey, the book says
19 this, it has this window, it is about the bottom of the window,
20 then we're going to ground the helicopter and our maintenance test
21 pilots would do the same, be like hey, yeah, that's a little
22 close, I'll take it out in the morning, we'll, you know, have
23 avionics come over here and blow it, blow it out and we'll take it
24 out in the morning and do a test flight on it or whatever the MTP
25 basically thinks is the safest means.

1 Q. Okay. So in the record it would say, you know, he
2 troubleshoot the system, grounded the aircraft, and then the next
3 step would be for the maintenance test pilot, then, to put an
4 entry in and what they were going to do to either correct it or,
5 you know, follow on with that grounding entry, right?

6 A. Yes, sir. And sometimes if you -- you can't, like, clear the
7 ground because you didn't replace it. If you don't do any
8 maintenance and you didn't replace anything, that aircraft is
9 still technically grounded. What has to happen is that
10 maintenance test pilot has to request permission to upgrade that
11 status symbol to be able to perform a maintenance test flight. So
12 there's a lot of steps that have to happen to un-ground the
13 aircraft just for the MTP to fly it, so a normal pilot's not going
14 fly that, period, like they're not allowed, it's just not going to
15 happen.

16 MR. McKENNY: Okay. All right, well, thanks a lot. I think
17 that's it for my questions, Bill.

18 MR. BRAMBLE: Okay. Nick, do you have anything?

19 CW5 JACOBY: No questions.

20 BY MR. BRAMBLE:

21 Q. All right, I just have one follow-up. If Sergeant [REDACTED]
22 wanted to elevate an issue to a maintenance test pilot, how many
23 of those folks are there that he might talk to?

24 A. So we currently have three now. There has been times in the
25 past where Bravo Company didn't have a maintenance test pilot and

1 so they'd basically reach out to me and I'd reach out to our
2 aviation maintenance officer to do that, so I'd have to pull from
3 outside, if that makes sense. So we have three now and we've had
4 three for quite a while now.

5 Q. Okay. So in January of this year you had three?

6 A. Yes, sir.

7 Q. Okay. And are they still with the company?

8 A. Yes, sir.

9 MR. BRAMBLE: Okay. All right, that is it for me for
10 specific questions, I'm just going to go around one more time and
11 then ask a couple of closeouts.

12 Van, do you have anything?

13 MR. McKENNY: No more questions.

14 MR. BRAMBLE: And Nick?

15 CW5 JACOBY: No, sir.

16 BY MR. BRAMBLE:

17 Q. Okay. Sergeant Bulson, is there anything that we haven't
18 asked that -- that you think we should know about, given our role
19 investigating the accident?

20 A. Not at this time, sir.

21 Q. Okay. And is there anybody else you believe that we should
22 speak with, that we haven't already interviewed?

23 A. I believe you guys have already talked to anyone that would
24 be relevant, off of the top of my head.

25 MR. BRAMBLE: Okay. All right, that's it, we'll call the

1 interview complete at 11:08 a.m., I'm going to stop the recording.

2 (Whereupon, at 11:08 a.m., the interview concluded.)

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of SFC Wayne G. Bulson, III

ACCIDENT NO.: DCA25FM030

PLACE: via videoconference

DATE: March 20, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.

8 [REDACTED]

David A. Martini
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25FM030

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: CW2 JOHN J. MARSHALL-DEICHLAR, Pilot-in-Command,
12th Aviation Battalion
United States Army

via telephone

Friday,
March 21, 2025

APPEARANCES:

BILL BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Helicopter Operations Investigator
National Transportation Safety Board

CW5 NICHOLAS JACOBY, Brigade Standardization Officer
United States Army Aviation Brigade

I N D E X

ITEM

PAGE

Interview of John J. Marshall-Deichlar:

By Mr. Bramble

5

I N T E R V I E W

(1:01 p.m.)

MR. BRAMBLE: Okay, today is March 21st, 2025 and it is 1:01 p.m. Eastern Daylight Time. My name is Bill Bramble and I'm a human performance investigator with the NTSB. Van McKenny and I are leading the operations and human performance working group for investigation number DCA25MA108 involving PSA Flight 5342 and PAT25. This will be an interview with CW2 John Marshall.

The NTSB is an independent federal agency, we're not part of the Department of Transportation or the FAA and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make reservations -- make recommendations, rather, so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure the fact-finding phase of the investigation is complete and accurate. We'll be recording this interview so it can be transcribed, we can provide you an opportunity to review it, if you'd like, afterward, just let me know.

I'd now like to have Mr. McKenny and our group member, Nick Jacoby, introduce themselves and state their organizational affiliation for the transcriptionist, starting with Mr. McKenny.

MR. McKENNY: Yeah, Van McKenny, helicopter operations group chairman, NTSB.

CW5 JACOBY: CW5 Nicholas Jacoby, Brigade Standardization

1 Officer for the U.S. Army Aviation Brigade.

2 MR. BRAMBLE: All right, Mr. Marshall, please answer all
3 questions to the best of your ability. If you don't understand
4 one, just say so and if you misstate something and want to correct
5 it, that's fine. You're entitled to a representative of your
6 choosing during any NTSB interview, is there someone you'd like to
7 have as your representative or have you declined that?

8 CW2 MARSHALL-DEICHLAR: I decline that, sir.

9 MR. BRAMBLE: Okay. Let's go ahead and begin.

10 INTERVIEW OF CW2 JOHN J. MARSHALL-DEICHLAR

11 BY MR. BRAMBLE:

12 Q. Mr. Marshall, can you please state and spell your whole
13 name, please?

14 A. Yeah, it's John Jeffrey Marshall-Deichlar, J-o-h-n
15 J-e-f-f-r-e-y M-a-r-s-h-a-l-l-hyphen-D-e-i-c-h-l-a-r.

16 Q. Okay. Thank you very much. And what is your rank?

17 A. I am a Chief Warrant Officer 2.

18 Q. And what's your unit?

19 A. Bravo Company, 12th Aviation Battalion.

20 Q. And what's your position?

21 A. I'm a pilot-in-command.

22 Q. And what's your -- brief sketch of your aviation background
23 that led to your current position?

24 A. I was enlisted 10 years as a medic prior and then transferred
25 over to aviation in 2018, was stationed after flight school four

1 years at Fort Bliss and I've been here since June of 2024.

2 Q. Okay. All right. And how many hours do you have,
3 approximately?

4 A. About 585 total time hours in the helicopters.

5 Q. Okay. Is that considered pretty typical for folks that are
6 -- I don't know, who have been four years out of flight school or
7 thereabouts?

8 A. I would say that would be -- for those going to a combat
9 aviation brigade, that would be pretty standard.

10 Q. Okay. And how many hours in the Black Hawk?

11 A. Just under 500.

12 Q. Okay. All right. It came to our attention that you might
13 have interacted with Captain [REDACTED] on the day of the accident, do
14 you recall any interactions with her that day?

15 A. I think I had a brief interaction with her the day of the
16 accident, I was on duty and then she had arrived and that was
17 about my minor interaction with her the day of the accident.

18 Q. Okay.

19 A. And I talked to her briefly about if she was able to get all
20 her product and everything ready for the flight that night.

21 Q. Okay. About what time was that?

22 A. It would've been before 5:00 p.m. local time, I can't give
23 you an exact time, I'm not sure when they actually got to work,
24 but I would say maybe between 3:00 and 5:00 p.m. I can't give you
25 a defined time, though, sir.

1 Q. That's okay. So do you recall sort of how long you saw her
2 and where that was?

3 A. It would've been fairly brief the day of, it was upstairs in
4 the pilot office in the company section, though.

5 Q. Okay.

6 A. Maybe a 15-minute interaction, I'd say, maybe less.

7 Q. Okay. So you were on duty in the pilot office and then they
8 came up there and -- or she came up there and then you saw her for
9 about 15 minutes?

10 A. Yeah, I would say maybe 15, in and out, I don't know the
11 exact, I would say our interaction time might've been only about
12 10 or 15 minutes, if that makes sense --

13 Q. Um-hum.

14 A. -- as far as like in an interaction.

15 Q. Okay. And is that about how long she was in the pilot office
16 or -- about 15 minutes or is that just how long you were there?
17 I'm trying to get a sense of if she was there for an hour or two
18 and you just happened to pop in or vice versa or --

19 A. I don't fully recall. I wouldn't say it would've been more
20 than an hour, but I can't say for sure, I wasn't -- like, I wasn't
21 timing it.

22 Q. Yeah, but were you in the office for an extended time during
23 that period or were you just stopping in or you don't know?

24 A. I'm usually up in this office, but I wouldn't say -- it's
25 kind of like in and out with day-to-day flight operations, I

1 don't --

2 Q. Okay.

3 A. I'm not -- it's not like -- I don't have my own office here,
4 so I don't really -- we have like a table where we eat at or
5 something and there's some computers to plan on and computers to
6 access, so I'm not --

7 Q. Okay.

8 A. I wasn't there the whole time she was in there --

9 Q. Um-hum.

10 A. -- but I don't know how long. I can't recall when she
11 arrived and I left before they had left --

12 Q. Okay.

13 A. -- Mr. [REDACTED] and Captain [REDACTED] because usually that's where
14 we'll complete, also, like a crew brief or those kind of things
15 will be conducted upstairs, as well, typically.

16 Q. Okay. So when she was there, did you see her with [REDACTED] the
17 whole time?

18 A. No, they were not together the whole time.

19 Q. Okay. Can you describe when he arrived?

20 A. I don't exactly know when they arrived, when either of them
21 arrived. I would say, typically, in the Army we have a show time
22 pushed out prior to the flight, so whenever their show time was,
23 I'm sure that's around when he arrived, but I don't exactly know
24 when he entered the room.

25 Q. Okay, but you remember seeing her and then seeing the two of

1 them?

2 A. I can't recall the two of them necessarily together, like
3 sitting like together, if that makes sense, but I remember --

4 Q. Um-hum.

5 A. -- I did see both of them. There's a slight separation in
6 this room, so there's a -- the instructor pilots have an office in
7 the back part and then there's like a doorway and then there's
8 where she would've been, where I remember her being, and Mr. [REDACTED]
9 has a desk back here. He was in his desk, she was in the other
10 room at the same time, I can't recall the amount of time they
11 actually spent together, but --

12 Q. Um-hum.

13 A. -- they were both in this room at the same time at one point,
14 though.

15 Q. Um-hum, okay. All right. And then tell me about your
16 interaction with her in that 10 minutes or so, like, tell me
17 everything you can recall about it.

18 A. So what I remember is she had done -- she had been working on
19 her planning for the mission because we have an annual evaluation
20 every year and there's usually a plan associated with it. I don't
21 -- I didn't get into details with her about her specific plan or
22 what she was working on, I just asked her if she was able to kind
23 of get everything together that was required and if she felt like
24 she had everything together and was ready to go, kind of, just
25 kind of a friendly interaction right before an evaluation flight

1 you would kind of say to someone, if that makes sense.

2 Q. Yeah. What did she say?

3 A. She said was able to -- as far as I'm -- from what I
4 remember, she seemed like she was prepared for it, as far as an
5 evaluation and yeah, she seemed like she was ready to go for it,
6 from what I remember. I can't remember her exact words, but from
7 my understanding, she had been preparing for it and she seemed
8 prepared.

9 Q. Okay. Do you recall -- well, how did she seem generally, in
10 terms of her appearance and demeanor?

11 A. I would say no -- not really much different than when you'd
12 normally see her, she's pretty -- as far as like any interaction
13 I've had with her, she's always been in a good mood, like smiling
14 or I would say maybe, as anyone would be before a check ride, have
15 a little bit of nerves, just because it's an evaluation and you're
16 being evaluated, but I wouldn't say it's unhealthy nerves or
17 anything like that, I think just the standard stuff you would get
18 before a check ride, but she seemed like she had prepared for it
19 and was ready to complete it and to pass it.

20 Q. Okay. And did she appear alert?

21 A. Yes.

22 Q. And her mood, I guess you said that she -- well, you
23 described her mood pretty well. And --

24 A. Yeah, I think when -- not to cut you off, sir, when she came
25 in she seemed like she had -- like whatever she was working on or

1 accomplishing and I didn't really ask her too much because it's
2 not my business to get into, like, her planning and I didn't
3 really want to, like, you know, with that, but I just asked her
4 like hey, how did everything go and she seemed like she was -- she
5 had like a plan of what she was getting prepared to do before the
6 flight, if that makes sense, like had tasks, she was doing the
7 standard stuff --

8 Q. Um-hum.

9 A. -- you would do before an evaluation.

10 Q. Okay. And did she express any concerns about the evaluation
11 flight?

12 A. Not to me. As far as she didn't -- she seemed like she --
13 when I asked her about it, I remember seeing that yeah, she was
14 ready to go, that kind of thing.

15 Q. Okay. Do you --

16 A. It's a couple months ago, so I can't remember her exact
17 verbiage, sir.

18 Q. Yeah. Do you remember seeing her at all in the couple of
19 days before that?

20 A. Yeah, she had been in, up here in the -- in the pilot office
21 working, again, doing some of the planning that's required for the
22 -- for the evaluation.

23 Q. Okay. Any comments of interest during those days?

24 A. Not necessarily. I briefly stopped by and she was working on
25 our computer that we do planning and I kind of just mentioned a

1 couple things that I had done in the past, as far as like setting
2 -- how to set your aircraft weight properly and some other stuff
3 and it seemed like she already knew what she was doing, so I
4 didn't really spend too much time with her on that. There's
5 certain things you can put into -- what seemed like she was
6 planning was a route, like for a time on target to get somewhere
7 at a specific time --

8 Q. Um-hum.

9 A. -- and there's certain things just on the computer we plan
10 with that you can manipulate to give you the most accurate fuel
11 burn rate and the timing to configure aircraft, whether it's a
12 weight, adding a weight to a certain section to make it all
13 match --

14 Q. Um-hum.

15 A. -- so that you're as accurate as possible for if you're going
16 to do a combat mission, you have the amount of fuel, the weight
17 that you're going to burn, how much fuel you would have to get
18 there, arriving there on time, those sort of things, sir.

19 Q. Uh-huh, okay.

20 A. I did not -- like playing back, I didn't review her route
21 with her at all. Hindsight, yeah, hindsight, I don't have any --
22 much of a -- I didn't see where she was going or what she was
23 doing, it was mainly on the actual, like, planning for the
24 aircraft, specifically.

25 Q. Okay. So the accident was on Wednesday, January 29th, so

1 this time when you saw her preparing would've been -- I had asked
2 about the previous couple of days, so it would've been either --

3 A. Um-hum.

4 Q. -- Tuesday, January 28th or Monday, January 27th, do you
5 remember which day?

6 A. I specifically remember her working on the day prior. I
7 don't -- I think she might've been in and out the Monday, as well,
8 and then I can't remember the following week, to be honest, but
9 sometimes these kind of plannings, it takes a day or two to make
10 -- you want to make sure everything's perfect, as much as you can
11 for an evaluation, so I believe she was in here for a few days
12 working on it.

13 I specifically remember her on Tuesday spending a longer
14 amount of time, but I don't remember -- I think she might've been
15 in Wednesday, I can't recall and I can't confirm that for you, but
16 I do recall her being here Tuesday for an extended amount of time,
17 I can't -- at least maybe three, four hours, I would guess, I
18 don't exactly know.

19 Q. Okay. But the time you saw her and [REDACTED] the first day, I
20 asked you about, that was the day of the accident, Wednesday,
21 January 29th, right?

22 A. Yeah, yeah, we're talking two separate days, so the day I
23 kind of talked to her about some of the performance stuff on the
24 aircraft, that was the day prior to the accident --

25 Q. Um-hum.

1 A. -- I think when she was, like, polishing up her -- her card,
2 like the standard card you would do for, like, any type of
3 pilotage and dead reckoning or any of those kind of flights and
4 polishing that to make sure you're as accurate as time, whether
5 wind corrections or that kind of thing and then -- and that was
6 what I was referring to, that was the Tuesday, and very brief
7 interaction with her on the actual day of the accident, just
8 hello, hey, did you get everything ready to go for your flight,
9 cool, you know, good luck.

10 Q. Yeah, okay. All right.

11 A. Kind of a follow-up on our conversation the day prior, if
12 that kind of makes sense.

13 Q. Yeah. Okay. And what was your work schedule the day of the
14 accident?

15 A. I was -- I was working a 12-hour duty day, so I'd been there
16 from 5:30 to 5:00 p.m. --

17 Q. Okay.

18 A. -- I believe. I can -- if you give me a couple seconds, I
19 can give you an exact time.

20 Q. Okay.

21 A. That was January --

22 Q. Twenty-ninth.

23 A. -- the 20 -- the 29th, okay.

24 Q. Um-hum.

25 A. So the 28th. Give me -- can you give me a moment, I can

1 refer back and give you an exact when I was at work?

2 Q. Yeah, sure. And if you can tell me the 28th, too, that would
3 be helpful.

4 A. Yeah.

5 (Pause.)

6 CW2 MARSHALL-DEICHLAR: A moment, at least, I think.

7 MR. BRAMBLE: No worries.

8 (Pause.)

9 UNIDENTIFIED SPEAKER: (Indiscernible).

10 CW2 MARSHALL-DEICHLAR: Still on the phone, yeah, sorry.

11 (Pause.)

12 CW2 MARSHALL-DEICHLAR: Yeah, on the 28th I was -- both days,
13 I was there from 5:30 to about 5:30, give or take, about 5:30 to
14 5:30 both days, sir.

15 MR. BRAMBLE: Okay, 17:30, okay. All right, great.

16 Van, do you have any questions?

17 MR. McKENNY: I don't have any questions at this time, thank
18 you.

19 MR. BRAMBLE: All right, Nick?

20 CW5 JACOBY: I do not have any questions, sir.

21 BY MR. BRAMBLE:

22 Q. All right. I don't have any additional questions, either.
23 Is there anything we haven't asked you that you think we should
24 know about, given our role investigating the accident?

25 A. No, there's nothing I can really think of. I didn't really

1 have much of an interaction with anyone that day, just kind of a
2 general hello, how are you doing, that kind of thing, so --

3 Q. Yeah.

4 A. -- from what I could gauge, there was nothing out of the
5 ordinary, I would've thought.

6 Q. Okay. And we've interviewed quite a few people in Bravo
7 Company, obviously, but is there anyone that we haven't spoken
8 with that you think we absolutely should talk to?

9 A. I'm not sure of the list that you've interviewed, but I know
10 quite a few people that you did talk to, I can't -- I honestly
11 can't think of anyone else that I know of, yes, sir.

12 MR. BRAMBLE: All right. Well, that said, we'll call the
13 interview complete at 1:21.

14 (Whereupon, at 1:21 p.m., the interview concluded.)
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

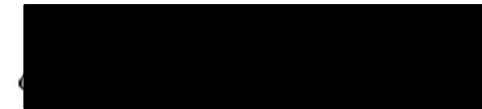
IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of CW2 John J. Marshall-
Deichlar

ACCIDENT NO.: DCA25FM030

PLACE: via telephone

DATE: March 21, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



David A. Martini
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: COL ANDREW J. DeFOREST, Brigade Commander

The Army Aviation Brigade

United States Army

Fort Belvoir, Virginia

Monday,

May 5, 2025

APPEARANCES:

BILL BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Helicopter Operations Investigator
National Transportation Safety Board

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Battalion Commander
The United States Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of Colonel Andrew J. DeForest:	
By Mr. Bramble	6
By Mr. McKenny	54
By Mr. Blair	57
By Mr. Bramble	65

I N T E R V I E W

(1:02 p.m.)

MR. BRAMBLE: All right, today is May 5th, 2025, it is 13:02 Eastern Daylight Time. My name is Bill Bramble and I'm a human performance investigator with the NTSB. Van McKenny and I are leading the operations and human performance working group for investigation number DCA25MA108 involving PSA Flight 5342 and PAT25. This will be an interview with Colonel Andrew DeForest.

The NTSB is an independent federal agency, we're not part of the DOT or the FAA and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of the investigation is complete and accurate.

We'll be recording the interview so it can be transcribed, after we receive the transcript we'll review it for typos and it's -- before it's included in the public docket. We can provide you an opportunity to review the transcript if you'd like, just let us know afterwards.

COL DeFOREST: Um-hum.

MR. BRAMBLE: I would now like each of the group members to briefly introduce themselves and state their organizational affiliation starting with Mr. McKenny.

1 MR. McKENNY: Van McKenny, helicopter operations group
2 chairman, NTSB.

3 MR. BRAMBLE: And Mr. Blair.

4 MR. BLAIR: Good afternoon, Dave Blair, the chief pilot for
5 safety, Sikorsky Aircraft.

6 MR. BRAMBLE: Okay. And Nick.

7 CW5 JACOBY: CW5 Jacoby with the U.S. Army Aviation Brigade.

8 MR. BRAMBLE: Thank you, gentlemen.

9 Each of our group members will have a couple of opportunities
10 to ask questions, we'll take turns so we're not talking over the
11 top of each other. Please answer all questions to the best of
12 your knowledge or recollection, if you don't understand a
13 question, just say so and if you misstate something or want to
14 correct it, that's fine.

15 COL DeFOREST: Um-hum.

16 MR. BRAMBLE: As the transcript of the discussion will
17 eventually become public information, please avoid discussing any
18 classified information, if we ask a question that touches on
19 something classified, you can just tell us that you can't answer
20 it because it is or may be classified.

21 You're entitled to a representative of your choosing during
22 any NTSB interview and it's my understanding that you're going to
23 represent yourself, is that the case?

24 COL DeFOREST: That is correct.

25 MR. BRAMBLE: Okay. All right, let's begin, then.

1 INTERVIEW OF COLONEL ANDREW J. DeFOREST

2 BY MR. BRAMBLE:

3 Q. Okay. Colonel DeForest, can you please state and spell your
4 full name, please?

5 A. Okay. Full name is Andrew Joshua DeForest, spelled
6 A-n-d-r-e-w J-o-s-h-u-a D-e-F-o-r-e-s-t.

7 Q. Okay. Do you capitalize the "F" in DeForest?

8 A. I do.

9 Q. Okay. And your rank is colonel?

10 A. Colonel in the United States Army.

11 Q. And what is your unit?

12 A. The Army Aviation Brigade.

13 Q. Okay. All right, so can you describe your current role or
14 position in The Army Aviation Brigade and any additional duties
15 that you may have?

16 A. Okay, surely. First and foremost, I do want to thank the
17 entire team for this opportunity. Up until this date any
18 interaction, to my knowledge, with the NTSB and party members has
19 been exceptional, so we thank you for the teamwork there and
20 continue to expect, you know, more interviews like this to
21 continue, so -- but to date, it's been an exceptional -- lot of
22 great feedback. My role as brigade commander of The Army Aviation
23 Brigade is I am responsible for the health, welfare, and morale of
24 all personnel assigned. What I'll do is I'll provide a brief
25 overview of the organization. It is unique, there is no other

1 like it in the United States Army and I think that's -- that will
2 help inform for later conversation to provide context of what a
3 brigade commander of The Army Aviation Brigade has within his span
4 of responsibility. So Army Aviation Brigade is a -- several
5 battalion-sized elements to include an airfield division, there's
6 a rotary-wing battalion, which we're familiar with as 12th
7 Aviation Battalion, that is the organization, subordinate
8 organization, that was involved in the mishap on 29 January.

9 The two other battalions are the United States Army Priority
10 Air Transport Battalion headquartered out of Joint Base Andrews,
11 and then the Operational Support Airlift Activity headquartered
12 out of Davison Army Airfield. USAPAT and OSA-A are both fixed-
13 wing battalions, fundamentally fixed-wing battalions. The 12th
14 Aviation Battalion is predominantly active duty personnel, active
15 duty Army. USAPAT predominantly active duty Army. OSA-A is --
16 the preponderance of the formation is National Guard.

17 And then the remaining subordinate element is the Airfield
18 Division, headquartered out of Davison Army Airfield, with -- a
19 presence at the Pentagon heliport, so we have controllers there
20 assigned to The Army Aviation Brigade controlling aircraft at the
21 Pentagon heliport. And then just like any brigade-size element,
22 we'll have a headquarters, a staff of about 60 personnel, and
23 they're located at Davison Army Airfield, as well. Let's see, any
24 additional questions of -- as a brigade commander, the subordinate
25 elements within this command?

1 Q. That's pretty helpful, but for the transcriptionist, can you
2 tell us how USAPAT is spelled?

3 A. Okay. Yeah, USAPAT is spelled U-S-A-P-A-T.

4 Q. Okay, just like it sounds. And OSA-A, is that O-S-A-dash-A
5 or --

6 A. O-S-A-hyphen-A.

7 Q. Okay.

8 A. Um-hum.

9 Q. All right. And -- good, okay. So how big is the TAAB in
10 terms of personnel, roughly, I mean, how big of an organization do
11 you oversee?

12 A. So from an organically assigned number of personnel, we have
13 just about 500, so -- in comparison to another Army Aviation
14 brigade-sized element, it's actually very small. In addition to
15 those who are assigned here as in -- you know, you receive your
16 orders, you report in and you're assigned here for two to three
17 years, that's approximately 500 personnel. We also have a company
18 minus of personnel assigned to us from the Army National Guard to
19 help fill in a requirement gap, so that's approximately 80
20 personnel from the Guard that --

21 Q. Are attached.

22 A. -- are attached, attached to the 12th Aviation Battalion, so
23 -- and those states rotate every nine months, so currently right
24 now Idaho is assigned to 12th Aviation Battalion to support our
25 NORTHCOM-directed mission, previous to them was Kansas, that's

1 important to note because in January 2025 Kansas was departing and
2 Idaho was -- you know, they came on board, I believe mid-January
3 and, you know, they were doing their transition tasks, left
4 seat/right seat ride type of things.

5 Q. Okay. So Kansas was still in position and Idaho was
6 overlapping?

7 A. Correct.

8 Q. Okay. All right, I think that's -- that's helpful. We'll
9 get on to more organizational stuff in a bit, but just to make
10 sure that we qualify you, kind of, as the witness, can you tell me
11 about your professional background in aviation?

12 A. Absolutely. So I am a -- oh gosh, going back all the way to
13 my undergrad, I received a degree in aerospace engineering from
14 Boston University, graduated in 2002, commissioned in the United
15 States Army as an aviation branch officer, so completed flight
16 training, flight school, summer of 2004, what was then Fort
17 Rucker.

18 Aircraft qualifications coming in to Fort Rucker was both
19 rotary wing, the initial rotary-wing training conducted at the
20 time and then initial multi-engine fixed-wing training, so -- when
21 I was going through flight school, all students trained on the
22 Bell 206 approximately 185 hours and then upon completion of that
23 training pipeline, you branched off into your advanced aircraft
24 and that's where, within the Army, you would see you're assigned
25 to Apache, Black Hawk, Chinook, and/or fixed wing, so I was

1 tracked fixed wing at the completion of flight training,
2 essentially 2004. I have been assigned to aviation organizations
3 my entire career, employing fixed-wing aircraft. I do have joint
4 experience, so -- not a flying position, but employing special
5 operations aircraft and both crewed and un-crewed systems, I did
6 that for two years.

7 And I would say most recently, for how it applies to, as a
8 brigade commander, qualified in Mike-model Black Hawk in May of
9 2024 and that was in preparation for assuming command of The Army
10 Aviation Brigade. So I would certainly say I have recency of
11 knowledge of what a student goes through, through initial
12 qualification of the Mike-model Black Hawk.

13 Q. Okay. And when did you assume command?

14 A. I assumed command, oh, gosh, I believe that was 9 August
15 2024.

16 Q. Okay. All right.

17 A. And for flight experience, I am in progression with the 12th
18 Aviation Battalion, so assigned to the Alpha Company, their crew
19 training program, and I've flown several times with Alpha Company
20 in a Black Hawk.

21 Q. Okay. And what would you estimate that your Black Hawk time
22 is for all variants?

23 A. Less than a hundred hours.

24 Q. Okay. Any time in the Lima?

25 A. No, zero time in the Lima.

1 Q. Okay. And what's your approximate total flight time?

2 A. Approximately 3,500 hours.

3 Q. Okay.

4 A. And that's both rotary and fixed wing, military only.

5 Q. Okay. And the helicopter portion would be 180 plus a hundred
6 or so?

7 A. Correct.

8 Q. Okay. About 280. Okay. Any NVG time?

9 A. In initial rotary-wing qualification? I'll have to pause for
10 any fixed-wing aircraft, I have served in some unique assignments,
11 so I'd rather --

12 Q. Um-hum.

13 A. -- omit that portion of it and then NVG time, yes, while
14 progressing with Alpha Company 12th Aviation Battalion, so
15 approximately, I'd say, five to seven hours.

16 Q. Okay. Enough that you're familiar with the NVGs that are
17 used by Bravo Company and Alpha Company?

18 A. Correct. And I've flown the D.C. helo route structure
19 aided --

20 Q. Okay.

21 A. -- three times.

22 Q. Okay.

23 A. Aided.

24 Q. Okay. That's great. And on your prior leadership
25 background, is this your first battalion command or brigade

1 command?

2 A. Correct, yeah. And it's, I would say, normal. Most army
3 colonels selected to command at the brigade level only, will only
4 command once, so expect to be a brigade commander once in your
5 lifetime.

6 Q. Okay. And then typically, people either move up or during
7 the end of their career or something or --

8 A. Exactly.

9 Q. I see.

10 A. Career progression for brigade commanders, I couldn't tell
11 you the percentage, but it's -- it is, you know, a transition
12 point of continuing to serve in the Army in non-command positions,
13 but at higher level staffs, so I would fully expect, if I were to
14 continue to serve in the Army, to serve in a staff position.

15 Q. I see. Okay.

16 A. Not to command again, so this is -- this is my only
17 opportunity based on, you know, the way the Army manages their
18 officers at this rank.

19 Q. Okay, it's good to know. All right, let's move on to just a
20 brief discussion of the accident crew, did you personally know the
21 accident crew members?

22 A. I did not personally know the accident crew.

23 Q. Okay. And so therefore you had no interaction with them in
24 the 72 hours before the accident.

25 A. Correct, I had no interaction.

1 Q. Okay. We got the size of the TAAB. Chain of command, what
2 is the chain of command above you?

3 A. My direct supervisor is Major General Trevor Bredenkamp, he
4 currently commands the U.S. Army Military District of Washington
5 and Joint Task Force National Capital Region, so it is a -- I'll
6 call it a dual status command.

7 Q. Okay. How do you spell his name? Trevor, T-r-e-v-o-r?

8 A. Correct.

9 Q. And then Bredenkamp, is it like it sounds?

10 A. Bredenkamp is B-r-e-d-e-n-k-a-m-p.

11 Q. Okay. All right. And then below you, you have how many
12 battalion commanders, again?

13 A. So three battalion commanders and then an airfield division
14 chief.

15 Q. Okay. All right, let's move on to the safety program at --
16 do you refer to it as the TAAB or TAAB?

17 A. TAAB.

18 Q. Okay. At TAAB.

19 A. We go back and forth on this one, so --

20 Q. Okay. So tell me how the safety program is organized for
21 TAAB.

22 A. Okay. So we -- I would say the purpose of explaining all the
23 different types of subordinate organizations is now you're -- the
24 safety program encompasses or includes aspects of running an
25 airfield, leading a fixed-wing battalion, leading a rotary-wing

1 battalion and then certainly, an airfield division. So it's very,
2 very unique, I would say, not necessarily every Army brigade
3 commander has this diverse of a formation. I rely on, you know,
4 the training and safety professionals at the brigade level, so
5 training and safety officer serving in a -- at the brigade level
6 capacity, in addition to the battalion safety officers all the way
7 down to the company level safety officers, so at echelon, you'll
8 have safety training personnel informing and advising the
9 commands.

10 When we look at the governance of the safety program, you
11 know, that's where I enforce policy, I make sure policy is being
12 executed. Into our earlier conversation, I'm looking at the line
13 diagram that we have, so where do I get my guidance, you know, I
14 think is a really great place to start, so I get my guidance on
15 how to implement, execute a safety program at the brigade level
16 with this unique organization from several different sources, so
17 guidance comes from headquarters Department of the Army,
18 specifically, G-3/5/7.

19 I think we're familiar with Army Regulation 95-1, so title on
20 that document is "Flight Regulation," so that is one aspect of
21 where I receive guidance. The next is going to be from training
22 and doctrine command, specifically the Army Aviation Center of
23 Excellence, i.e. the proponent, aviation proponent, they provide
24 both guidance and oversight. And then we have the Combat
25 Readiness Center, as well. So they -- you know, the brigade

1 commander level, they are providing essentially information and
2 data relating to mishaps, so if there's both or -- either a ground
3 or aviation related accident, that's where the Army CRC will
4 inform commands and/or provide analysis for commanders to use in
5 their own respective organizations.

6 Q. Okay.

7 A. And we'll go one step further.

8 Q. Um-hum, sure.

9 A. So unique to this organization, so I previously referenced
10 AR 95-1, we'll also have a supplement to that, so unique to this
11 command, so Military District of Washington, there is a supplement
12 MDW, Military District of Washington, supplement to 95-1 for
13 specific items relating to our mission requirements here in the
14 NCR. Not every command has their own supplement to AR 95-1. And
15 then lastly, at MDW there is a safety professional assigned, I
16 believe that -- I'd have to confirm with my brigade safety
17 officer, but that billet has been vacant --

18 Q. Okay.

19 A. -- at least for the first several months in my command and
20 they recently had somebody hired into that billet and is about to
21 issue guidance to the subordinate commands that fall within MDW.

22 Q. Approximately when were they hired?

23 A. It would be fall 2024, I believe. To be exact, I'd have to
24 ask Ross Steadman.

25 Q. But it was before the accident?

1 A. Before the accident.

2 Q. Okay.

3 A. I believe so.

4 Q. All right, so there is a safety officer at the -- at the
5 military district level.

6 A. At the Military District of Washington level, yes.

7 Q. Okay, I didn't know that. All right. Anything else you want
8 to add before I get into follow-up questions?

9 A. Let's see, we can -- so I guess you'd probably want to know
10 the day-to-day, what it looks like --

11 Q. Sure, that would be helpful.

12 A. -- from a safety perspective. So referencing the policy, so
13 I believe you're familiar with the SOHAC, Safety and Occupational
14 Health Advisory Council, so by regulation, twice a year at a
15 brigade level we conduct that event. Inclusive of that event is
16 both occupational health-related topics and flight and ground-
17 related topics, so it spans the whole portfolio, I guess, you
18 would think, through a safety lens.

19 Probably, you know, that is the time where, as a brigade
20 commander, I can directly issue guidance to the subordinate
21 commanders and safety professionals, safety trained professionals,
22 in the room. In addition to the SOHAC, so we're going to have our
23 standup events, we have one in two weeks, regularly scheduled, but
24 the Army, the Army does call and characterize the standups and
25 stand-downs, they can be -- like I said, it depends, the topic, it

1 depends, we'll leave it at that, of when the Army executes those,
2 Army Aviation proponent executes those.

3 Q. So that's driven at a higher level?

4 A. It is.

5 Q. Okay. What organization organizes that?

6 A. That'll be the Center of Excellence, the proponent, so the
7 U.S. Army Aviation Center of Excellence.

8 Q. Okay. Is it the same as academics or is that more of a
9 low-level company-type thing?

10 A. Academics usually is no higher, so air crew academics is, I
11 think, what you're referencing --

12 Q. Um-hum.

13 A. -- is no higher than the battalion level, so at a brigade, I
14 wouldn't necessarily say, you know, have subordinate commanders
15 together and go through air crew academics --

16 Q. Okay.

17 A. -- and that's for the sole purpose of -- at least
18 fundamentally, for this brigade, if we're going to talk air crew
19 academics, it really has to apply to fixed-wing battalions and a
20 rotary-wing battalion --

21 Q. Um-hum.

22 A. -- and all those missions are just fundamentally different.

23 Q. Yeah. Okay. So what you're saying is that at least twice a
24 year you have the SOHAC --

25 A. Um-hum.

1 Q. -- and then in addition, you have standup or stand-down
2 events?

3 A. Um-hum.

4 Q. How often do those happen?

5 A. The standup or stand-downers, as directed by, I would say --
6 no, correct and qualify this, either HQDA or the proponent, but
7 then also, in addition to the standups or stand-downs, we will do
8 a safety day, which we have planned in the very near future, as
9 well. For most commands, a safety day is command specific, so a
10 lot of units, they choose to, if it's, say, just before the summer
11 months, we're going to talk essentially ground safety, you know,
12 people are going to go travel, visit friends and family, so we'll
13 talk motorcycle safety, vehicle safety. Outdoors, we might get
14 into -- if you do outdoor activities, you know, just -- you know,
15 practice safe practices or if -- you know. It wouldn't
16 necessarily directly correlate to an aviation topic --

17 Q. Um-hum.

18 A. -- unless directed, "hey, we have," you know, "a specific
19 concern we want to address," and in the upcoming safety day that
20 The Army Aviation Brigade is going to execute this investigation,
21 we're going to talk around it, so aviation safety is going to be a
22 core focus of our next aviation safety day.

23 Q. Okay.

24 A. That's going to occur this month.

25 Q. And what's -- is a safety standup and stand-down aviation

1 focused or no?

2 A. If they're coming from the proponent, yes.

3 Q. Okay.

4 A. So I guess we'll backtrack a little bit, so the Army Aviation
5 branch, they can direct safety standup or stand-down, and I'm
6 trying to -- I think it was 2024 the Army did this. You can
7 actually research it online. And then 2023, multiple Class A
8 accidents involving, you know, accidents involving loss of life.

9 Q. Um-hum.

10 A. There was a spike and I believe it was 2023 was the first one
11 that the branch did.

12 Q. Okay.

13 A. And then subsequent summer, another standup was conducted to
14 address safety across, holistically, the whole branch --

15 Q. Okay.

16 A. -- of Army Aviation.

17 Q. So the branch is the headquarters-level Army Aviation and if
18 there is -- if there's a cluster of accidents or a recurring
19 issue, then they might direct sort of a system-wide focus event?

20 A. I'm not familiar, you know, is it the -- is it
21 congressionally directed, is it the Secretary of the Army, Chief
22 of Staff of the Army, or the two-star command of the proponent
23 that directed those previous two --

24 Q. Um-hum.

25 A. -- not to my knowledge, but as -- you know, serving in

1 organizations, the order comes down either from HQDA or the
2 proponent, you know, all aviation units must conduct this type of
3 training within this time frame and report back --

4 Q. Okay.

5 A. -- to show it's complete.

6 Q. Is the proponent whoever issues the order or what does that
7 mean?

8 A. So the proponent -- the proponent would be the Aviation
9 Center of Excellence.

10 Q. Okay, I see.

11 A. For Army Aviation.

12 Q. But by that term, that's sort of whoever's initiating the
13 activity?

14 A. Correct.

15 Q. Okay. I've heard that before, but it's --

16 A. Um-hum.

17 Q. I haven't heard it outside of an Army context before, so --

18 A. I guess a way to simplify it, you know, the Chief of Staff of
19 the Army says, well, Army Aviation, you need to take a look at
20 some things, you know, do your stand-down, so he's -- he is
21 serving at the HDQA level --

22 Q. Um-hum.

23 A. -- versus the two-star commanding general at Fort Novosel,
24 who is the Army Aviation proponent, he may say "hey, Army, we need
25 to do a stand-down," that's coming from my two-star headquarters.

1 Q. I see. So it could be more than one originating --

2 A. Um-hum.

3 Q. -- initiative or order.

4 A. Exactly.

5 Q. Okay.

6 A. At the -- you know, the air crew level, you know, agnostic
7 alerts coming from its "hey, we need to stop" or we need to
8 refocus and look at and examine these types of topics that are
9 being directed --

10 Q. Yeah.

11 A. -- for us to look at.

12 Q. I see, okay. So in trying to adapt my civilian safety mental
13 model to the Army, you know, in the civilian world, in an airline,
14 there's normally an accountable executive who's in charge of the
15 safety program, how does that work at the brigade level? I'll
16 just leave it at that. If you could sort of tell me, like, who's
17 in charge of the safety program.

18 A. Commanders are.

19 Q. Okay.

20 A. Commanders at every level are in charge of the safety
21 program.

22 Q. Okay.

23 A. And that's -- I would say that's, you know -- accordance with
24 Army Regulation 600-20, commanders are responsible for everything
25 that their unit achieves or fails to achieve, which the safety

1 program is inclusive on that, so lot of -- lot of responsibility
2 on the commanders' shoulders.

3 Q. Okay.

4 A. Safety officers, you know, they serve as advisors to the
5 commanders, but ultimately, commanders are responsible for the
6 safety program.

7 Q. Okay. And so that segues into my next question in terms of,
8 sort of, your -- well, let me preface that by saying that we
9 interviewed the commander at the battalion level, as you know --

10 A. Um-hum.

11 Q. -- and the safety officer at the battalion level, and we
12 interviewed the company commander and their safety officer, so
13 let's talk about at the battalion level, so it sounds like the
14 brigade-level safety officer serves as an advisor to you and also
15 as the professional person assigned to the safety program, so tell
16 me about, sort of, how you interact and collaborate on that aspect
17 of the mission --

18 A. Um-hum.

19 Q. -- and how you work together.

20 A. Um-hum, absolutely. So I would generalize my current
21 relationship with the brigade safety officer as very good, I have
22 served with -- so prior to assuming command of The Aviation
23 Brigade, I have served with the brigade safety officer when I
24 commanded USAPAT, so I've been assigned to this command before, so
25 from 2019 to 2021, I commanded USAPAT, headquartered out of Joint

1 Base Andrews, so very familiar with the unit construct,
2 organization, mission sets, prior to coming in as the brigade
3 commander in August of 2024. So Mr. Ross Steadman, we have a -- I
4 think a good working relationship, we communicate regularly and
5 routinely with each other, I trust him very much so. Day-to-day
6 interaction, absolutely. He does provide me monthly updates as a
7 -- call it a battle rhythm event, last one occurred on 21 April
8 2025. Just as a point of reference, he has experience in the
9 fixed-wing and rotary-wing aircraft.

10 Q. Okay.

11 A. At the brigade level, he is my primary safety advisor.

12 Q. Okay. How often do the two of you interact beyond the
13 monthly updates?

14 A. I would say, and I kind of knew that question, probably
15 minimum once a week. His office is physically located in the
16 brigade headquarters, i.e. we -- I walk by his office every day.

17 Q. Okay.

18 A. Sometimes it's "hey, how are you doing," you know, it's
19 "what's new, how's your family doing," other times it's hey, you
20 know, from Mr. Steadman to myself, "hey, I need to talk to you
21 about this," you know, "I'm seeing X, Y, or Z," pick your topic,
22 so --

23 Q. Um-hum.

24 A. Very frequently, in my opinion.

25 Q. Okay. And then what does he do in between meetings, sort of

1 what is he off working on independently in his role?

2 A. Multitude of things, keeping primarily in contact with the
3 battalion and company-level safety officers. And this is going to
4 be unique to The Army Aviation Brigade, he does maintain contacts
5 with Fort Belvoir garrison, Fort Belvoir emergency services, so
6 the fire department. I'm thinking of all the capabilities that
7 you would see at an airfield. Military police. The -- let's see,
8 the medical clinic at Fort Belvoir. I won't say that's it, but
9 those are the ones that come to mind.

10 Q. Okay.

11 A. And then certainly, U.S. Army CRC, so the Combat Readiness
12 Center.

13 Q. So he's in regular communication with them, as well?

14 A. Um-hum.

15 Q. Okay.

16 A. Yeah. And MDW.

17 Q. Okay.

18 A. Military District of Washington safety office.

19 Q. Okay. All right. And then in terms of how you communicate
20 with the subordinate commanders and safety officers, is that
21 primarily through the SOHAC?

22 A. So for battalion commanders, just occurred this morning, so
23 every Monday morning we have a standup call where commanders,
24 there's that commander-to-commander dialogue.

25 Q. And that's on all topics?

1 A. All topics.

2 Q. Okay.

3 A. When we look at -- so I guess recently, I would say the
4 preponderance of my direct communication with the battalion
5 commanders in 12th Aviation Battalion, as we kind of work through
6 multiple investigations relating to a mishap.

7 Q. Okay. So every Monday you touch base with the commanders --

8 A. Correct.

9 Q. -- and then at least twice a year you have the SOHAC, the
10 safety and occupational health meeting?

11 A. Um-hum.

12 Q. And then does that include the battalion and the
13 company-level safety officers and commanders, the SOHAC?

14 A. So the SOHAC, the minimum audience is the battalion
15 commanders but typically, the -- all available safety officers
16 will attend or be dialed in to monitor the discussion.

17 Q. Okay. Okay. All right, and then if you have -- if you
18 and/or -- is Mr. Steadman a civilian?

19 A. He is.

20 Q. Okay. If you or Mr. Steadman have safety information to
21 communicate with the workforce, then how do you go about doing
22 that?

23 A. Let's see. Can I use a recent example?

24 Q. Sure.

25 A. Okay. So the recent example is -- and this is related to

1 this investigation, so the -- let's see, I don't know how this
2 started but i.e. was it, you know, a discussion had with the
3 transponders, you know, this is at the company level, so Delta
4 Company, 12th Aviation Battalion, information is transmitted from
5 the battalion to the PEO, so PEO Aviation and Army Materiel
6 Command, resulting in an aviation safety action message related to
7 ADS-B and Mike-model helicopters. The first person to notify me
8 of this was Mr. Steadman via e-mail.

9 Q. Okay. What's PEO stand for?

10 A. Program Executive Office.

11 Q. Okay, so where's the Program Executive Office, where does
12 that reside?

13 A. That is Huntsville, Alabama.

14 Q. Okay.

15 A. I believe that's the headquarters for PEO Aviation.

16 Q. So that's outside of --

17 A. Outside.

18 Q. -- MDW? Okay.

19 A. Um-hum.

20 Q. All right.

21 A. And their distribution of this would certainly go to all the
22 maintenance companies, you know, that a certain message would
23 apply to, so these -- these types of messages are
24 over-communicated --

25 Q. Um-hum.

1 A. -- I'm very certain of that, but the first person that
2 notified me that this message was out there was Mr. Steadman.

3 Q. And what would you call this type of message?

4 A. So it's the -- it's Aviation Safety Action Message, or ASAM,
5 directing the mandatory maintenance for UH-60 ADS-B equipment.

6 Q. Okay. And so that was the result of some of the findings of
7 this investigation about maybe some of the ADS-B information on
8 transmitting --

9 A. Correct.

10 Q. -- as expected?

11 A. And where that occurred, at what level, I'm not familiar with
12 but I know the discussion between NTSB, CRC, 15-6, so that the --
13 I'm not going to say that -- all the organizations external to the
14 aviation brigade in collaboration with our maintenance
15 professionals at 12th Aviation Battalion --

16 Q. Um-hum.

17 A. -- resulted in this, so this is a very good thing, in my
18 opinion --

19 Q. Um-hum.

20 A. -- as we work through this investigation.

21 Q. And Mr. Steadman played a role in that?

22 A. Correct.

23 Q. Was he sort of taking the lead on that or --

24 A. In notifying the commanders that this was just released and
25 we must, you know, within the parameters of the message must

1 comply.

2 Q. Oh, okay. So then you and he notified the commanders to make
3 sure that maintenance did that?

4 A. Correct.

5 Q. Okay, I see.

6 A. And then my assumption, because I took this directly to a
7 battalion commander -- actually, battalion commanders because a
8 similar message came out for Army fixed-wing aircraft, so that's
9 -- from my position as the brigade commander, I sent it to all
10 three battalion commanders.

11 Q. Okay.

12 A. This applies to every -- all the flying units within this
13 organization, so --

14 Q. Okay. And so that directive came external, but then you
15 communicated, like, in meetings or by e-mail?

16 A. Um-hum.

17 Q. Okay, I see. All right, they also mentioned, in some of the
18 answers we got back from the Army party coordinator, something
19 about CRC providing things called *Flightfax*?

20 A. Um-hum, okay.

21 Q. Can you tell me about that?

22 A. So *Flightfax*, I believe it's published every month, so it is
23 a regular publication from CRC specific to Army Aviation topics
24 and those are distributed in many different ways, so you can
25 subscribe to their -- call it their publication cycle, which I am

1 on, so I get all the *Flightfaxes* that come out every month. Most
2 instructor pilots, standardization sections agnostic of type of
3 Army Aviation when it subscribe to *Flightfax*, so those are
4 distributed electronically, a lot of great information there to be
5 discussed and this is now battalion and below at their respective
6 air crew academics sessions within The Army Aviation Brigade,
7 across the three battalions, their air crew academics, typically
8 occurs every month. And I've attended, in person, three air crew
9 academics with 12th Aviation Battalion, scheduled to attend
10 USAPAT's air crew academics later this month.

11 Q. Okay. So the interviews that we've conducted thus far were
12 with some of the lower-level safety officers and so on, and it was
13 our understanding that they deal with, sort of, the full spectrum
14 of safety issues, as you mentioned --

15 A. Um-hum.

16 Q. -- you know, ground safety and maybe off-duty safety, as
17 well, but you know, aviation being sort of a portion of that, do
18 you have a sense of how much at the -- at the brigade level and
19 below, like how much of the safety activity or effort is devoted
20 to, like, the -- sort of, the non-aviation safety-related stuff
21 versus, sort of, like the aviation flight safety stuff?

22 A. Prior to -- and I can only speak for the nine months I've
23 been in command, prior to the accident in January, mostly --
24 again, things that I can't effect as a brigade commander, so I
25 look at resources, risks, and authorities. Most everything was

1 occupational health related, specifically facilities at Davison
2 Army Airfield and at just Davison Army Airfield. So post-mishap
3 has been a combination of both.

4 Q. Okay.

5 A. And I don't -- I don't want to say they're related. I
6 wouldn't -- I'd be cautious there to say there was a direct
7 relation. I haven't, like, you know, spoken to my brigade
8 commander counterparts at other units and asked them that specific
9 question because -- brigade commander, do you get involved with
10 near misses or standardization issues that may have resulted in,
11 you know, increased risk to a certain, you know, mission set.

12 I'll say the -- when -- I'm going to use Bravo Company, 12th
13 Aviation Battalion, for example, so that hangar needs to be -- and
14 it's scheduled to be -- a lot of renovations are occurring, better
15 lighting, better ventilation, fresh set of paint and, you know,
16 fixing the doors, those types of things. So as a brigade
17 commander, I see that as -- that's going to require extensive
18 coordination external to this brigade and that's where I, as a
19 brigade commander, will focus.

20 My attention is the up and out, working with Fort Belvoir,
21 contracting commands. Here in D.C., Environmental Protection
22 Agency, you know, that is my focus and that's what comes to me as
23 the brigade commander, is those types of challenges, not
24 necessarily -- I'll use a recent example, a flight returning back
25 from Carlisle Barracks coming within 25 feet of a quadcopter on a

1 published helo route. That's a recent example --

2 Q. Um-hum.

3 A. -- about two weeks ago. And prior to the 29th of January,
4 those facilities -- facilities types and occupational health,
5 safety concerns were the majority of, what I, as the brigade
6 commander, was focusing on.

7 Q. And that kind of makes sense, I guess, at a brigade commander
8 level, in a way, because accidents themselves are rare and it
9 seems like the system is set up to investigate mishaps, but a lot
10 of the day-to-day stuff that's going to come to you for fixing is
11 probably about things like you're saying, infrastructure, things
12 that need you to authorize resources in your future --

13 A. Um-hum.

14 Q. -- that kind of thing.

15 A. You know, another example would be at the airfields, the
16 integrity of the fences, you know, call it vegetation, you know,
17 growing through fence lines and/or a tree goes down, those types
18 of concerns rises to the brigade commander level because it's
19 hundreds of thousands of dollars to fix those types of --

20 Q. You have to get the resources to --

21 A. When things go out of compliance and it takes a lot of
22 resources, i.e. money, to fix, that's where it comes to, I guess,
23 the brigade commander. And at our airfield, the Davison Army
24 Airfield, I'm just using a recent example of we've identified a
25 certain portion of the fence line that was damaged based on

1 vegetation, coordinated with our two-star headquarters, Military
2 District of Washington, to secure funding and there's a pathway to
3 fix the fence, you know, I think that's the best way to kind of
4 characterize it.

5 Q. I see, okay. I kind of --

6 A. And I could -- you know, no less than a half dozen of
7 examples of my focus, I want to make sure people feel safe and
8 secure when they come to the airfield, that either nobody's going
9 to come over the fence and -- because we do have a -- you know, a
10 determined enemy outside of our fence line that, when they look at
11 our -- the amount of operational capacity on the airfield, you
12 know, there's a reason why we've got gate guards that are armed
13 and we have several layers of protection between the surrounding
14 communities and our aircraft and air crews, so that's a priority
15 for me, I want to make sure you feel safe when you're in our
16 facility and/or offices.

17 So the way I kind of characterized it early on, and Ross may
18 kind of restate this if you have the opportunity to talk to him,
19 you're an air crew member and you're sitting in the aircraft that
20 you employ, whether it's a fixed-wing aircraft or a rotary-wing
21 aircraft on Davison Army Airfield, is the runway environment safe,
22 you know, are the taxiways to specification or standard, is the
23 runway, everything surrounding the runway safe to operate, work
24 yourself back to the hangar, is that a safe place to work in. And
25 you work your way out of the hangar to your offices which are

1 outside the hangar, i.e. the brigade headquarters again, you know,
2 do you -- is it a safe workplace, then you work your way outside
3 to the -- off the airfield, as well, so lots of -- I would say
4 this isn't just specific to The Army Aviation Brigade, like, most
5 military installations, they -- they always have a changing focus,
6 you know --

7 Q. Um-hum.

8 A. -- can't go too far without seeing military barracks in the
9 news, you know, that's a -- that is a focus for a lot of
10 commanders. I am so fortunate, we had some extraordinary, you
11 know, exceptional barracks here at Fort Belvoir, so that's not a
12 focus for me. And again, this is a brigade commander, these types
13 of issues are brought to, at the brigade level because they
14 require so much extensive external coordination to help solve.

15 Q. Okay. So this kind of gets to the crux of the challenge, I
16 guess, in terms of managing, sort of, the full spectrum of safety
17 risks, I mean, you have, sort of, the high frequency -- in some
18 cases, at least, lower-severity issues and then you have, sort of,
19 the rarer but higher-consequence things that can happen in
20 aviation --

21 A. Um-hum.

22 Q. -- and I'm just wondering, how do the safety officers ensure
23 that they're managing both types of risks in their role?

24 A. I think where -- it's going to depend, I think it's going to
25 depend on the people, the requirement, the equipment, certainly

1 the training, and prior to the 29th of January, the -- those
2 low-probability, extremely high-risk events -- I don't want to say
3 they were considered, but it was -- you had -- in this, now at the
4 brigade level, you know, many different types of organizations
5 subordinate that we're looking at, so two fixed-wing battalions
6 and a rotary-wing battalion, so I'm going to bring it down an
7 echelon at the battalion level.

8 I was very comfortable that the crews were trained, they were
9 resourced, and they were operating with discipline, and very
10 comfortable procedures in place to not eliminate all the risk but
11 reduce risk to the greatest extent possible, so not making that
12 low-probability, high-risk -- extremely high-risk event not occur,
13 but it felt good, you know, you felt good about where you were
14 with your standardization program, with your instructor pilots,
15 publications being up to date, trust in our training.

16 I'm very, very comfortable with the standardization program
17 because prior to January 29th, we were inspected from an external
18 organization and this is the FORSCOM, so FORSCOM, Army Forces
19 Command, did what they call an Aviation Resource Management Survey
20 or an ARMS survey, it's essentially an external inspection of
21 everything --

22 Q. Um-hum.

23 A. -- safety, standardization, went over some of the supply.
24 Think of all the aspects inherent to a military organization, they
25 came in and inspected us. Medicine, aviation life support

1 equipment, petroleum, training and command programs, air traffic
2 services. And the organization scored very, very well and we had
3 not received an ARMS survey in several years. So as a brigade
4 commander, and this was -- the out-brief was in November of 2024,
5 okay, we got an external look, very, very confident in my team and
6 their ability to perform the mission.

7 Q. Okay. All right, so let's talk about -- see if we missed any
8 sort of aspects of running the safety program, so we talked a
9 little bit about -- I guess we talked about implementation of
10 safety policy, but do you have a written safety policy for at the
11 brigade level?

12 A. There is. There's an aviation brigade safety SOP dated
13 January 2024.

14 Q. Okay.

15 A. The current -- so I assumed command in August 2024, provided
16 guidance to Mr. Steadman for an SOP revision, actually, I sent him
17 an e-mail on the 23rd of December with -- add my philosophy
18 essentially regarding safety and purposely delayed, I'd say the
19 final staffing of that SOP to account for the new safety
20 professional assigned, hired into the MDW position. And then
21 further, withholding publishing until at least we understand, from
22 CRC and the 15-6 IO aspects of this current investigation.

23 Q. Um-hum.

24 A. So it would be irresponsible of me to sign a TAAB
25 brigade-level safety SOP without knowing certain aspects of this

1 investigation.

2 Q. Okay. All right. And the -- the safety risk assessment --
3 well, actually, let me stay on safety policy for a minute, so the
4 -- that document, how does that influence things at the battalion
5 and lower level?

6 A. It provides, certainly, as we were mentioning, a very diverse
7 formation, one rotary-wing, two fixed-wing, and an airfield
8 division, so it has to encompass, kind of, that broad spectrum of
9 capabilities and it has an SOP commander-to-commander type of tone
10 to it, as in the brigade's safety will help provide support to and
11 -- pick your battalion/company safety offices, you know, basically
12 giving intent and guidance on certain areas. A lot of it is
13 regulatory in nature, you know, the AR directs, telling the
14 brigades to do this, therefore this SOP re-communicates some of
15 the most important aspects of the policy and guidance that is
16 received. Again, across the Army, based on that --

17 Q. Yeah.

18 A. It's a -- if I was, say, a battalion commander or company
19 commander, like, all right, I need my one singular document to
20 drive a safety culture in my organization, I'm going to take the
21 SOP because the SOP, the brigade-level SOP, is going to have an
22 executive's version of, again, all that regulatory guidance that's
23 coming at you from multiple organizations.

24 Q. Sort of like an executive summary?

25 A. Um-hum.

1 Q. Okay.

2 A. And then tailored to the specific mission requirements of The
3 Army Aviation Brigade. So example, gunnery, I don't do gunnery, I
4 don't shoot anything.

5 Q. Um-hum.

6 A. A lot of, you know, regulatory guidance comes out as when
7 you're serving in an organization that, you know, has munitions
8 and, you know, you got to qualify, you know, this frequency with
9 this, like, we don't -- we remove those types of portions of,
10 again, the regulatory/policy guidance, so --

11 Q. Um-hum.

12 A. -- only specific to our organization.

13 Q. Okay. And you mentioned something about your personal
14 philosophies or anything --

15 A. Um-hum.

16 Q. -- I mean, would you like to discuss anything about that? As
17 far as it's sort of captured in the memo or --

18 A. I'm going to read it to you.

19 Q. Okay.

20 A. I wish I'd printed it. Sorry, if you can just give me one
21 moment. That works. Because Ross is going to give it to you, if
22 you haven't talked to him yet, so -- mind if I read it?

23 Q. Go ahead.

24 A. Okay. This is the draft that I had sent to Ross 23 December
25 2024. All right. And there's four bullet points there. "Safety

1 must be integrated into every aspect of our activities. An
2 advantage we have over our adversaries is the integrated use of
3 risk management procedures, active leader involvement in adherence
4 to proven safety standards. Safety is a perishable commodity
5 requiring continuous emphasis and attention. All of us contribute
6 to a strong safety culture that enables us to effectively and
7 efficiently perform our mission."

8 Bullet number 2: "Safety is a priority and is an inherent
9 part of leadership and mission planning. I expect leaders to be
10 personally engaged in safety of their personnel and use
11 appropriate risk management in all activities, both ground and
12 aviation. Managing acceptable residual risk at the appropriate
13 level is critical. I expect all assigned to this command adhere
14 to standards, correct or report hazards when noted, and"
15 consistent -- "consistently practice risk management when at home
16 or on mission."

17 Bullet number 3: "Injuries or fatalities occurring off duty
18 are detrimental to unit readiness. Remember the practice and
19 challenge, when there is doubt there is no doubt. By this, I mean
20 if there is doubt that something is safe, there is no doubt you
21 should pause, evaluate the situation, then implement a mitigation
22 measure to reduce risk. Accidents most frequently happen due to
23 three factors: indiscipline, which is failure or willful disregard
24 for adhering to known standards; leadership, which is failure to
25 enforce standards in training, which is failure to know or train

1 to standard. When things don't feel right, stop and seek
2 guidance."

3 And then the last paragraph: "We are an army that must be
4 prepared to fight and win our nation's wars. Our responsibility
5 for safety amounts to doing very dangerous activities with
6 extraordinary care, both to ensure the success of the mission and
7 the safety of our people. Strive to extend your safety leadership
8 influences to off-duty activities. Experience has shown many of
9 our accidental losses occur during organized sporting activities."
10 This is true. "Also, our off-duty operation of privately owned
11 vehicles consistently produces many of the Army's accidental
12 fatalities."

13 Q. Okay, thanks for that. And on that safety risk assessment
14 front, we are familiar with the R-COP --

15 A. Um-hum.

16 Q. -- and we understand that there was a revision to modify how
17 the risk criteria are evaluated --

18 A. Um-hum.

19 Q. -- can you tell me anything about that?

20 A. So this was actually -- and I'm going to reference, I
21 believe, the first aviation standup or stand-down back in 2023, so
22 as I remember, a major component of that update in 2023 was to
23 further characterize air crew experience, so the R-COP is at the
24 air crew level, it's an Excel spreadsheet with several different
25 components to it, but that, in 2023, based on, from what I

1 understand, feedback from CRC, that spike in Army aviation
2 accidents, really, commanders needed to break out that crew member
3 experience component of the R-COP, essentially driving commanders
4 to focus in on "is this the appropriate crew mix for what the
5 requirement is?"

6 Q. So there was sort of an increased emphasis on that in the
7 R-COP starting around 2023?

8 A. Um-hum.

9 Q. Okay. And then there -- somebody said something about
10 factors were -- some factors were changed into multiplicative
11 considerations instead of adding them together or something?

12 A. Was it composite, composite risk? Yeah, I think it was
13 instead of, you know, looking at bins, focus on how they interact
14 with each other, so I think that was back in 2023, that was one of
15 the other components, composite risk.

16 Q. Okay. All right, so that's the safety risk assessment piece
17 and the R-COP comes from the Aviation Center of Excellence,
18 correct?

19 A. That's correct.

20 Q. Okay. And then they provide it to you, but then you have
21 some customizing capability.

22 A. Um-hum.

23 Q. Okay. All right, so -- sorry, I don't want to cut you off.

24 A. Um-hum, yeah. I'm --

25 Q. On the safety assurance front, so this aspect typically

1 involves sort of monitoring to make sure your risk controls are
2 working, if you have any red flags or incidents that you're sort
3 of -- explore those but also, certainly, just monitor normal
4 operations for things that could be early warning signs of risk.

5 A. Um-hum.

6 Q. That's one area where, you know, risks related to this
7 particular accident which involved, you know, traffic conflicts
8 and potential for midair collisions, you know, I'm unclear on
9 whether the Army had, like, a systematic monitoring capability, it
10 seemed like there wasn't -- well, you tell me, how -- how would
11 the Army detect risk in this area if there were, sort of, elevated
12 risks related to managing traffic conflicts along the D.C.
13 helicopter route?

14 A. So it would be -- I look at processes in place prior to
15 January 29th, you would have, I believe, different services may
16 have different ways of characterizing this, because I look at the
17 rotary-wing portfolio, we have Marines, we have Coast Guard, we
18 have Air Force and Army operating in D.C. airspace --

19 Q. Um-hum.

20 A. -- to include all your other rotary-wing, non-military
21 rotary-wing operators, so OHR, HATR, so OHR, that would be that
22 one reporting mechanism and I think it applies to other services,
23 but certainly, it's the Army, so your Occupational Hazard Report,
24 at the disposal of air crews to fill out, say, post-mission, if
25 they identified or experienced a hazard that would impact safety.

1 Q. Okay.

2 A. And another tool air crews have, and we just had one of these
3 last week, is a near-miss report in ASMIS, so air crew members can
4 utilize that tool, as well, so -- I think the challenge is not
5 necessarily at the battalion level, but the brigade, the O-6
6 brigade command level, what is that feedback mechanism
7 synchronizing those -- you know, the air crew members are going to
8 -- post-mission they're going to talk to their, you know, mission
9 briefing officer, like hey, we just had this flight, this is what
10 you briefed us for and this is what occurred, we kind of want to
11 put this in safety chain, you know, at least our aviation safety
12 officer, professionals, to know, understand this. So air crew
13 members are going to start talking about it at the company
14 battalion level, right?

15 That battalion to brigade level, you're going to see that at
16 the SOHAC, so that is one reporting mechanism, you know, every six
17 months, that's not very timely. Here, in D.C. -- going to
18 reference the NTSB preliminary report, so there's 15,200-ish
19 occurrences and that was news to me. We immediately asked how
20 many involved U.S. Army helicopters and it was very, very
21 difficult to figure that out, so I would hope, moving forward from
22 this investigation, that that is a -- we need to focus in on this,
23 because this is a knowledge gap for commanders and their echelon,
24 you know, you have park police, you know, Fairfax County Police,
25 you know, the Department of Defense, you know, medevac companies,

1 you know, civil, you know, commercial fixed-wing owners/operators.
2 I don't get that official reporting stream of near misses or
3 occurrences. I do now, but it's very important. And that comes
4 in the form of our rotary-wing working groups post-mishap. We
5 had, let's see, referencing a recent near miss, so a Black Hawk
6 coming back from Pennsylvania flying the D.C. route structure, I
7 think it was during the day, a thousand feet, came within
8 approximately 25 feet of a quadcopter.

9 Q. A small drone?

10 A. Small drone. And that crew landed, they debriefed, you know,
11 their mission briefing officer, their safety officer. I
12 immediately received an e-mail in the form of a 5-W, you know,
13 here's your "who, what, when, where, why," so very much the
14 posture of the Army Aviation is over-communicate, you know, this,
15 this -- this needs to be broadcast, which is -- I encourage that.
16 That near miss would be input into, you know, the Army program of
17 record, ASMIS, as a near miss and that's how other Army
18 organizations can see it first, it being centrally located here,
19 in The Army Aviation Brigade.

20 Q. Okay. So the two main tools that I heard about were -- oops.
21 Were the OHR --

22 A. Um-hum.

23 Q. -- which, I believe, is -- the OHR, I think, comes out of the
24 occupational -- the safety and occupational health program?

25 A. So that's the -- I would say the governing -- so there's

1 really only the AR -- actually, no, it's referenced in 95-1, as
2 well, so --

3 Q. Oh.

4 A. -- 385-10, Army safety policy and occupational health and
5 AR 95-1, so it's in both places.

6 Q. Okay. And then, the -- and where does that go, if somebody
7 submits an OHR?

8 A. At minimum, it will go to the company safety officers.

9 Q. Okay.

10 A. As I understand, so this is where another organization, U.S.
11 Army Aeronautical Services Agency, USAASA, they'll receive that
12 form, as well. USAASA is a subordinate element within Army
13 G-3/5/7, so HQDA, I'm looking at --

14 Q. Okay.

15 A. So I'm going to use a recent example, 1st of May, PAT23, a
16 mission rehearsal midday, attempts to land at the Pentagon; Friday
17 afternoon or Saturday morning, the 12th Aviation Battalion
18 commander is e-mailed from the FAA Department of the Army
19 Representative, so your DAR -- okay, let me characterize this, so
20 potential pilot deviation, FAA says who is involved, all right, we
21 have an Army -- Army aircraft, what unit is that Army aircraft
22 with, and they go by the tail number, of course, and say this
23 unit, this aircraft is assigned to this organization, here are
24 some initial, what the FAA would have almost instantaneously,
25 instantaneously of that event, and that's captured in the -- I

1 don't know the form, I have it on my e-mail, but it's packaged up,
2 sent to -- from the FAA to the FAA DAR, Department of the Army
3 Representative, which is assigned to USAASA and that DAR,
4 typically a lieutenant colonel, will contact the battalion
5 commander, in this case, what was the 12th Aviation Battalion
6 commander. This is a -- call it alleged pilot deviation, you have
7 a prescribed amount of time to report back to the FAA what your
8 inquiry determined and how you are going to address the alleged
9 pilot deviation. So this all occurred this past weekend --

10 Q. Okay.

11 A. -- the incident. And that occurred last Thursday. So
12 there's awareness in my level, okay, something happened in the
13 airspace, I have a commander investigating it and now we're going
14 to, you know, enforce that process, that investigative process.

15 Q. Um-hum.

16 A. If, at any point, that it needs to elevate, that's when the
17 battalion commander makes the recommendation to the brigade
18 commander, reassign and make it a more, much more formal
19 investigation.

20 Q. So that's another way --

21 A. That's another way, um-hum.

22 Q. -- that you guys can be alerted to hazards is through, sort
23 of, external input from the FAA through the DAR.

24 A. The DAR, um-hum.

25 Q. And then the OHR is something that a crew member could fill

1 out that could go to -- would start at the company level and could
2 be elevated.

3 A. Um-hum.

4 Q. Okay. And that is for aviation and non-aviation things.

5 A. You're correct, absolutely.

6 Q. Okay. And then ASMIS is aviation specific?

7 A. No. So that's Army --

8 Q. Okay.

9 A. Oh, gosh.

10 Q. Safety Management Information System?

11 A. Army Safety Management, so you could -- you could include
12 ground.

13 Q. Okay. And flight?

14 A. And flight, correct.

15 Q. Okay. And maintenance, too?

16 A. Um-hum.

17 Q. Okay. And so the OHRs are sort of -- they start out being
18 handled locally. ASMIS, does that report go directly to CRC?

19 A. CRC, um-hum.

20 Q. Okay.

21 A. Which will inform, if aviation related, *Flightfax*, which
22 would come back down through that monthly publication.

23 Q. Okay. Okay, so if somebody files something on ASMIS, then it
24 goes to CRC, but copies you or somebody in your subordinate
25 echelon?

1 A. In ASMIS, as a reporting system, so based on, say, the
2 classification of the accident, so if there is a Class A accident,
3 I will -- I, as the brigade commander, will see. If there's a
4 Class B accident, I, as the brigade commander, will see that
5 report, because I'm part of the routing chain to CRC.

6 Q. Okay. Class A for sure.

7 A. Um-hum.

8 Q. Yeah. Okay. And then otherwise, if it's sort of a more
9 minor event that didn't arise to, like, the potential of an FAA
10 reg violation or something like that, then it would just go to CRC
11 to sort of be collated as this is a risk that a crew member noted
12 or something like that?

13 A. But also, if they're -- if the safety officers, let me say,
14 at the company or battalion level see those trends, that's when it
15 will be included in your SOHAC level, so --

16 Q. Okay.

17 A. -- there is, certainly, a level of trend analysis occurring
18 at echelon.

19 Q. Okay, so if battalion or company commanders see a pattern or
20 a trend, it might be a focus at a SOHAC meeting?

21 A. In a way that I see that trend analysis, and you're probably
22 familiar with ARAP --

23 Q. Uh-huh, I did come across that term, yeah, I'm not super
24 familiar with the details.

25 A. So that, so think of your survey, where all -- everybody

1 assigned to the command have the opportunity to comment on the
2 safety culture of the organization and they're very, very helpful
3 to commanders.

4 Q. Okay.

5 A. Typically conducted annually. And an interesting feature of
6 an ARAP is the blank, you know, fill in the blank if there's
7 anything else you would like to comment on, you know, does your
8 leadership -- you know, things along the lines of from 1 to 10,
9 you know, comment on the safety culture of your organization, from
10 1 to 10 comment on your first-line supervisor, are they risk
11 adverse or, you know, those types of comments, but also you have
12 where you can write free text instead of going, you know, from
13 characterizing something from 1 to 10. Those comments are seen
14 by, you know, certainly at a minimum, the battalion safety officer
15 and reported to the battalion commander. I see, as a brigade
16 commander, all of the ARAP surveys from all the battalions.

17 Q. Okay. When was the last one before the accident?

18 A. This is going to be the airfield -- oh, before the accident
19 because the airfield division just completed theirs. They all
20 occurred around the same time in the fall, so without knowing the
21 exact dates, I'd say fall of 2024.

22 Q. Okay.

23 A. And this is part of the guidance I give the brigade safety
24 officers to make sure the subordinate battalions execute their
25 ARAP surveys.

1 Q. Okay.

2 A. And really, the output is, you know, an understanding of the
3 safety culture. Other commanders will use those tools
4 differently, but I'm really looking at the culture aspect through
5 that survey.

6 Q. Okay, and for the record, ARAP, what does that stand for,
7 aviation resource something? Resourcing --

8 A. I got it, I got it. I have the reference here. These are
9 prior SOHAC council minutes. Okay, Army Readiness Assessment
10 Program.

11 Q. Okay. Army, I wasn't even close. Readiness Assessment
12 Program. Okay. And so you actually did get the results of an
13 ARAP that had something to say about the safety culture of the
14 brigade and the 12th Aviation Battalion, any -- were there any
15 interesting observations for --

16 A. I don't have the reference in front of me. I do remember, so
17 I don't know the exact verbiage for 12th. I'm going to come back
18 to what's been consistently reported as the equipment, the age of
19 the power aircraft, and the challenge that the 12th Aviation
20 Battalion commander has, old equipment with a no-fail mission
21 every day, so there isn't necessarily this, you know, phases of
22 the year, like, you know, first quarter we're going to -- you
23 know, we're going to do a certain train-up and then we're going to
24 be in mission execution, then we're going to be, you know, reset,
25 regroup type of phase, it is constantly you -- that organization

1 has to have, you know, this many aircraft available for their
2 NORTHCOM-directed mission, about 60 percent of their capacity
3 every day is towards that. So the margin is very thin for
4 maintenance challenges and I think that's consistent across a lot
5 of conversations is the equipment, as in we are -- the Army
6 provides the aviation brigade enough resources to train, as in
7 flying hour program monies, right, but the challenge is keeping
8 those aircraft up to meet both your training demand, but also your
9 mission requirement demand.

10 Q. Okay. And the practical implication of that, from a safety
11 standpoint is -- is what?

12 A. There's going to be some times when, say, you need to
13 maintain currency, like -- not to say this is a historic example,
14 but older aircrafts and their dispatch rate or, you know, FMC rate
15 is going to be a lot lower than, say, other organizations, we know
16 this, you know, in comparison to other Black Hawk aviation
17 battalions, 12th Aviation is a little bit lower than most based on
18 the age of their fleet and that's a historical norm, but when you
19 overlay the demands of the mission, that makes it a little bit
20 more challenging. So there's less aircraft resource available for
21 maintaining proficiency or currency, I say. Are we -- are the air
22 crews staying within regulatory guidance for currency? Yes.

23 Q. Um-hum.

24 A. Does that align with the current state of our experience
25 level? There's the challenge and I'd like to talk about that, you

1 know, probably a little bit later on.

2 Q. Okay. All right, sure. Well, let's talk about that, the --
3 you know, I noted that the -- I think the AR 95-1 or maybe one of
4 the other sources mentioned something about, you know, there's
5 minimum requirements but then there are certain recommended
6 numbers of hours that you might want to fly to stay highly
7 proficient and so I found that interesting and, you know, there
8 may or may not be a gap in between, it sounds like you're saying
9 there's kind of -- it's kind of a challenge to go from the minimum
10 to what might be otherwise desired. But you're mentioning
11 something about the workforce, as well, that might dovetail with
12 that, so why don't you go ahead and elaborate on that?

13 A. So the -- what I -- actually, I have in front of me is the --
14 I want to say our minimum requirements to sustain a level of
15 proficiency that our -- I'll say our NORTHCOM-directed mission,
16 you know, specifies and this is based, you know, post -- this is
17 now post-accident mishap and I'm going to paraphrase this, it
18 depends, every air crew member is different.

19 In April 2024, maybe it was late March 2024, I visited the
20 Army Aviation Brigade prior -- at that time I was assigned to -- I
21 was working at the Pentagon, I was about to go to Fort Novosel to
22 attend the Black Hawk qualification course, so wanted to come to
23 the airfield, get a quick class on how to preflight a Black Hawk
24 prior to going to the training, you know, and it's about
25 approximately two months in length, so the brigade rotary-wing

1 standardization pilot, CW5 David Van Vechten, he, you know,
2 provided myself and another student a quick class on how to
3 preflight the Black Hawk. I asked him what's the greatest
4 challenge and it is -- and this is, I think, I think, my opinion,
5 consistent across a lot of Army Aviation units, is what we're
6 seeing is that composite cockpit time steadily going down and down
7 and down, so he used the example about five years ago we would've
8 had thousands and thousands of hours cockpit, now we have hundreds
9 and hundreds of hours cockpit, and that's -- that is actually --
10 I've heard that before in other organizations. I experienced it
11 when I was in USAPAT as a battalion commander, same, very similar
12 challenge, it's the aggregate flight hour experience across --
13 aviation formations is steadily decreasing.

14 I don't say that as in we're -- we have any less ability to
15 do the job, you know, it's just -- it is a metric you can track,
16 yes, we're seeing that, which goes to the conversation of the
17 R-COP, you know, 2023, all right, we're seeing a reduction of
18 aggregate experience, let's really focus in and make sure we have
19 the right crew mix when we're employing Army aircraft. And that,
20 you know, I don't think any aviation, Army aviation commander will
21 dispute that. So that day-to-day maintaining proficiency and
22 readiness is extremely challenging within 12th Aviation Battalion
23 because simultaneously, they are standing by to support their
24 NORTHCOM-directed mission. Very thin margin, in my opinion.

25 Q. Um-hum. Can you comment on the -- if there is an additional

1 challenge with staff officers in terms of maintaining proficiency?
2 Just due to their collateral, their other responsibilities, you
3 know, being as officers in addition to being aviators?

4 A. Since I arrived, I don't see that as a challenge, it is in --
5 in the brigade training guidance that I issued early, earlier on
6 in the -- it was either late August or early September, rated
7 aviators, you know, agnostic of echelon, you know, we get -- we
8 have -- and of course, if integrated into an air crew training
9 program, you have a commitment to that ATP commander to maintain
10 proficiency, so what does that mean for staff officers, it's --
11 you are part of an air crew training program, you will maintain
12 your currency.

13 I am prioritizing your ability to employ aviation capacity,
14 capability above, you know, I'll say staff officer work. So our
15 deputy commanding officer for the aviation brigade is a good
16 example here, she is a lieutenant colonel in the U.S. Army serving
17 as a deputy commanding officer, she's also a Black Hawk instructor
18 pilot within Alpha Company, 12th Aviation Battalion. She
19 regularly balances duties as a deputy commanding officer and
20 flight instruction for 12th Aviation Battalion Alpha Company.

21 Q. Okay.

22 A. I don't know what that looked like prior to my arrival, so it
23 -- there might be something more to that coming in.

24 MR. BRAMBLE: All right, I am going to -- I've been talking
25 for a long time and I want to make sure that the other guys have a

1 chance to ask questions, as well, I still have a few left, but do
2 you need a bathroom break? No? You okay?

3 COL DeFOREST: I'm good.

4 MR. BRAMBLE: All right, Van, do you have any questions?

5 MR. McKENNY: I do have just a couple follow-up questions.

6 MR. BRAMBLE: Okay, go for it.

7 MR. McKENNY: Colonel, you said that -- what's that?

8 MR. BRAMBLE: I just said go for it.

9 MR. McKENNY: Okay.

10 BY MR. McKENNY:

11 Q. So going back to the CRC, do you ever have any direct
12 communications with the CRC, do you have someone there that you
13 talk to directly or correspond with directly?

14 A. So within the -- great question. Within the CRC, typically a
15 brigade commander does not, however, I do, post-accident, so --
16 and he, you know, he happens to be our NTSB party coordinator,
17 Colonel Matt Parker. So prior to the accident, no, unless I
18 really needed something, you know, specific to safety or an
19 accident investigation and those are going to be on a case-by-case
20 basis, but for combat aviation brigade commanders, certainly The
21 Army Aviation Brigade, there is no, like -- you know, if you're
22 serving in an O-6 command billet, this is your POC at CRC. That
23 doesn't exist, to my knowledge, and it's more of an "if" there is
24 an accident, say a Class A accident, CRC comes and investigates
25 that accident, absolutely, now you're talking near daily with CRC.

1 Q. Okay. Sure, thanks. And then is part of your preparation
2 for taking command, did you take any courses at CRC, you know,
3 safety courses in -- safety management courses, anything like that
4 in preparation for your command billet?

5 A. So we'd -- I would say from a -- let's see, the last time I,
6 and this is -- I'll characterize it -- you know, it's a norm, the
7 last time you're going to take a formal class or course as a
8 commander would be the company commander, you know, the safety
9 course at the company commander level, battalion, so I was
10 selected to command use of that.

11 In order to serve in that billet, I, as an Army officer, have
12 to attend pre-command courses that is up to eight weeks in length
13 and a part of the curriculum of those courses, it's going to be
14 split into two, right, because Army has a lot of different
15 branches and specialties so, you know, infantry, artillery, armor,
16 aviation officer, so you had a four-week core pre-command course
17 and this is -- this is for battalion commanders, brigade
18 commanders, battalion command sergeant majors and brigade command
19 sergeant majors all have to attend.

20 So a component of the curriculum of those courses is CRC
21 comes out and briefs, you know, call it trends, but reporting
22 processes, you know, basically the tools that a brigade and
23 battalion commander would need through the lens of a safety
24 professional. So using January 29th, you know, there is certain
25 things that I knew fundamentally that, as a brigade commander, I

1 had to do and a lot of that is discussed during those pre-command
2 courses, if you have a ground or aviation accident, agnostic of
3 class of accident.

4 Q. Do you recall, like, how long the CRC briefing was, was it
5 one day, two days?

6 A. I would say one to two days, you know, because it's going to
7 depend. The pre-command course composition for a battalion
8 commander is very different for a brigade commander but, you know,
9 at average I would say one to two days.

10 Q. Okay, so the course is specific to the level of command?

11 A. Correct.

12 Q. So if you're a brigade -- or a battalion commander, you get
13 the battalion commander course and then when you move up to
14 brigade, you'll get a brigade commander pre-command course.

15 A. That's correct, yeah.

16 Q. Okay.

17 A. And I would say another -- another, you know, preparatory
18 course for commanders, you know, is a legal course, as well, so I
19 must attend a legal course, as a brigade commander, that's five
20 days in length, and safety is a component of that course, as well.
21 A couple hours in length, but nothing -- you know, I'd say that
22 the key thing here is safety is discussed at several different
23 pre-command courses.

24 Q. Okay, thank you. And one last question, I'm -- you, every
25 now and again, mention the echelon, I'm not familiar with that

1 structure.

2 A. Okay, at echelon, so echelon's an organization, so you know,
3 we'll start at the squad level, the team level, the platoon, the
4 company, the battalion, the brigade, so those, all those are
5 echelons, you know --

6 Q. Oh, okay.

7 A. -- it's a way to describe, you know, your chain of command, I
8 guess.

9 MR. McKENNY: All right, got it.

10 No further questions, Bill.

11 MR. BRAMBLE: All right, Dave, you still with us?

12 MR. BLAIR: Absolutely still with you.

13 BY MR. BLAIR:

14 Q. Thanks, Colonel, for hanging in there. Hey, a couple of
15 quick questions, you mentioned Mr. Steadman as your safety rep as
16 a civilian -- probably duty civilian with a GS, I don't know, 14,
17 15, I guess?

18 A. Correct. He's a 14 safety specialist, is, you know, the
19 position description, but he's a Department of the Army civilian.

20 Q. Great, sounds good. And he reports directly to you?

21 A. He does.

22 Q. Okay, excellent. I think Bill answered a couple of my other
23 questions, it was kind of related to how much time those safety
24 officers at the company, battalion, brigade levels spend doing,
25 you know, aviation safety-specific stuff versus the ESH or other

1 things like that and we got some feedback from some of the other
2 safety officers that both the safety officers course and in
3 practical terms when they're doing their jobs, it's mostly ESH
4 related and I think you relayed the same thing, is that a true
5 statement?

6 A. I believe so, yeah.

7 Q. Okay.

8 A. And it's situation dependent, for sure, but it -- you know,
9 the -- as I've been assigned to the command for approximately nine
10 months, mostly occupational health prior to January 29th.

11 Q. Got it, sounds good. And as I also understand it, there are
12 really sort of three main -- within aviation for pilots, three
13 main career tracks, right, instructor pilot, MTPs, and sort of
14 safety is the third track, and there might be a fourth one in
15 there, as well?

16 A. Correct. The fourth would be your -- what your -- AMSA, your
17 mission, so -- because the Army is changing its nomenclature here,
18 so think of your subject matter expert for all things tactics. A
19 common example would be I -- here's the threat, right, in this
20 environment, we need to configure and fly a certain profile and/or
21 configure our survivability equipment in such a way we're --
22 that's where your AMSA -- forgive me for not knowing the current
23 doctrinal term because it's just recently changed, but there's
24 another tract warrant officer in the U.S. Army, that's their
25 specialty.

1 Q. Okay, so sort of a tactics officer type thing --

2 A. Yeah, tactic.

3 Q. -- and that's probably going to be -- go through from either
4 the company level and you may not have a tactics officer in the
5 company, but you may go have a battalion-level or brigade-level
6 tactics department or something like that.

7 A. Um-hum, we do.

8 Q. Okay.

9 A. Yeah.

10 MR. BLAIR: Great. All right, this is a little bit of a
11 sensitive question and I'll ask Nick, Nick, you tracked as
12 instructor pilot, yeah?

13 CW5 JACOBY: Correct.

14 BY MR. BLAIR:

15 Q. Yeah, okay, so what is the reputation of safety officers in
16 the aviation branch compared to other tracks? And again, I know
17 it's a sensitive question, we've just received some feedback upon
18 that, so I'm curious what your experience has been.

19 A. It's going to be different. I spent half of my -- I don't
20 want to say I'm an anomaly as a fixed-wing -- predominantly a
21 fixed-wing officer, so -- I've got to be careful here.

22 Q. Yeah.

23 A. It is -- because the basis of my comparison is, my experience
24 is I've worked with nothing, for the most of my career, worked
25 with senior warrant officers, 4s and 5s, that is my basis of

1 experience.

2 Q. Great.

3 A. Being assigned here is -- as a brigade commander, this is
4 the first time in a very long time I've been exposed to junior
5 warrant officers, so I'm trying to -- I'm trying to think through
6 how do I craft this statement. I guess a better question is, as a
7 safety officer incentivized to where it's getting, you know, the
8 highest quality individuals, you know, does the Army incentivize
9 its aviation safety officers adequately? I would -- and again,
10 this is all personality dependent.

11 When I'm going and seeking advice, I am going to probably go
12 to my standardization officer first and then correlate with a
13 safety officer, so it's almost -- it's almost like I'm going to
14 look to an IPSP before, you know, an incident, so that's the
15 preponderance of the conversation and then "oh, my gosh, hey,
16 safety" after an incident, how did we get here and how do we --
17 it's almost like it's almost a mutual relationship, you know, in
18 my opinion, so let's focus our efforts on our instructors in
19 standardization, standardization section, to prevent unnecessary
20 risk and then if something slips through, that's where your safety
21 officer complements, you know, your standards team to say all
22 right, this is what happened, this is how we prevent it and so
23 it's almost like this constant circle, you know, to improve a
24 standardization department or, you know, the safety of an
25 organization, so -- yeah, you're -- I would say as a commander,

1 you're going to look to your standards team first; if there's the
2 unfortunate event, that's when you're going to pivot and look to
3 your safety team.

4 Q. Okay. Good answer. I think that sort of explains, you know,
5 based on the feedback that we received that a lot of time is spent
6 by the aviation safety officers doing ESH stuff, it makes a lot of
7 sense that you would go towards your standardization group for
8 aviation safety versus, you know, what is sort of thought of as
9 safety being an ESH function, so okay.

10 Let's see, something I noted in a lot of your previous
11 responses is what seems to be a heavy reliance on standardization,
12 not just the standardization group, but you talked about your
13 three principles being, you know, adherence to standards and --
14 well, I forgot what they were, but basically three things that all
15 fed back into if we are adhering to standards, we will be safe

16 And I'm wondering if you've heard much emphasis, and I know
17 Bill mentioned it a little bit, on sort of like culture of safety,
18 sort of asking people to do the right things when it's not clear
19 by the standards that are given to them, so the real question is,
20 is there any emphasis on the culture of safety versus just
21 adherence to standards?

22 A. Oh, gosh. Yeah, this is -- every commander's challenge is,
23 you know, you're balancing that climate culture and culture change
24 is very slow, the climate is almost near instantaneous. This is
25 my experience, you know, with this -- across my career is when you

1 -- as an engineering major, you know, I look at things probably in
2 a linear manner, when you -- you add discipline plus standards,
3 that equals safety, you know. All right, so within your standards
4 department and section, certainly safety, you know, your safety
5 professionals are a component of that but, you know, we have to
6 rely on those proven standards to drive that safety culture, so
7 the -- you know, what are those components of that standards, you
8 know, environment.

9 A variable is the people which have -- you know, they have
10 varying degrees of self-discipline, so you really, really got to
11 reinforce the aspects of a standards program to drive safety. How
12 does that relate to 29 January? I think, you know, the -- myself
13 included, it was, you know -- it is a tragic event, but it came to
14 a surprise to most everybody.

15 The solicited feedback, you know, that we received, you know,
16 I -- I'm not in the briefing rooms when these things occur because
17 I'm part of the investigation, you know, the GCMCA, so Major
18 General Bredenkamp, to my knowledge, received initial out-brief
19 from the CRC in 15-16 of hey, here's an update, no systematic or
20 systemic in discipline, nothing maintenance related, you know, the
21 tone was the procedures were sound at the time of the mishap.

22 Again, how does that, you know, go back to help answering
23 your question is do we -- do we trust what we had? The 28th, you
24 know, of January implicitly, no, no, no, absolutely not, that's
25 not what I'm trying to convey, you know, we will not train the

1 same way ever again in this airspace. That's why we're really
2 eager to hear what the NTSB, CRC, and 15-16s find, from the
3 investigation. Eyes wide open, yeah.

4 Q. Yeah.

5 A. I'll tell you, some of the great things along the way, you
6 know, ADS-B, like wow, that is -- that was not in the cross-check
7 like it is right now, you know, we've learned some things and the
8 Army has reacted to it with the safety message that was recently
9 published, so we want to dig deeper into those types of things, as
10 well.

11 Q. That sounds good. Okay, one final question. You said that
12 your, obviously, experience has been fixed-wing primarily, then
13 you were given a 60M course --

14 A. That's correct.

15 Q. -- and don't have any A or L time and some feedback that
16 we've heard from other pilots who have come out of the training
17 recently who only had M time, glass cockpit, FMS, a couple flight
18 director modes, those kinds of things, is that it has been a
19 challenge to transition backwards, basically, into the A and the L
20 model. I think my question is have you, as a commander, received
21 any feedback from that or about that in your time either prior to
22 or since the accident?

23 A. I have, as in, you know, this is -- it is -- it's really time
24 spent, resources spent to, you know, receive somebody's who's
25 qualified in the Mike-model and then now we're going to do an

1 additional series qual on you in the Lima model, so that -- the
2 amount of time and resources, and I look at it from the
3 resourcing, i.e. the flying hour program, dollars spent training
4 our air crews, I can only say it would be more efficient if we
5 just had a singular common fleet, you know, so I can't speak to,
6 you know, the technical -- I would say on the air crew member,
7 like, to go from your glass cockpit -- and I'll call it reverting
8 back to steam gauges, you know, how demanding that is on an air
9 crew member today.

10 I grew up on steam gauges, so I would say I'm a little
11 biased, you know, it will probably come back to me very quick and
12 then oh, my gosh, why I am doing this because there's much more
13 capable equipment out there, but I don't think I'm in a position
14 to comment on, say, a newly arrived air crew member that's
15 initially Mike-model trained and then going off to be Lima
16 qualified and, you know, in house with the battalion, I can't
17 speak to that, but I know it takes time and resources which, as a
18 brigade commander, I'd really love to, you know, optimize that and
19 make it a common fleet.

20 MR. BLAIR: And I think, just a comment, too, that certainly
21 fits in with the resourcing question about gee, we have to support
22 two different type model or two different series of aircraft in
23 the same unit which just seems incredibly inefficient --

24 COL DeFOREST: Um-hum.

25 MR. BLAIR: -- but I think from both a training and resource

1 standpoint from your pilots, but also for, you know, your
2 maintainers and, you know, lots of reasons, but that's all I got.
3 Thanks, Colonel, appreciate the help.

4 COL DeFOREST: All right, thank you so much.

5 MR. BRAMBLE: Nick.

6 CW5 JACOBY: I have no questions.

7 COL DeFOREST: Thank you.

8 MR. BRAMBLE: Okay.

9 MR. BLAIR: Always merciful Nick.

10 (Laughter.)

11 MR. BRAMBLE: Okay, before --

12 MR. BLAIR: You know, it's probably worth saying -- sorry to
13 interrupt -- it's probably also worth saying, at least for the
14 record, that the colonel is Nick's boss.

15 (Laughter.)

16 COL DeFOREST: Nick's awesome, I love him.

17 BY MR. BRAMBLE:

18 Q. All right. So a couple of specific questions just to sort of
19 like clarify your perspective on the ability of the Army to see
20 certain risks before the 29th. Before the accident, what aspects
21 of the TAAB safety program were capable of identifying near midair
22 collisions between military and civilian aircraft in the DCA
23 terminal area, assessing the risk of such events, and developing
24 risk mitigation strategies for de-conflicting helicopters and
25 civilian airliners operating out of DCA? Basically, to your

1 understanding, like, what ability did you have to have visibility
2 of those kinds of risks before this accident?

3 A. It would be post-incident, so the -- you know, that near miss
4 from ASMIS, your OHRs, your notification from the FAA DAR of a
5 pilot deviation, those are the top three that come to mind,
6 codify, you know, a new document called, you know -- like
7 *Flightfax*.

8 You -- and this is all, you know, 12th Aviation, you've got
9 your air crew academics where you can, you know, discuss, across
10 the battalion, include something into a recurrent file to bring
11 awareness of, say, a certain portion of a route or hey, this
12 happened, everybody -- you know, this happened at this location on
13 this date, everybody be aware of it, so that is a very narrow
14 focus, in my opinion. If I didn't have a relationship with 1st
15 Helicopter Squadron or HMX-1, I wouldn't know what they're seeing,
16 so that's -- there's no forcing mechanism for me to reach out to
17 them or vice versa.

18 From what I understand, and I have not participated in it and
19 that doesn't necessarily mean we did not have somebody within the
20 command participate, but I know there's a helicopter working group
21 here at the JTF level, those -- those meetings have increased in
22 frequency since 29 January, so -- back to an earlier statement,
23 the 15,200 occurrences, for sure. I really, really would've -- it
24 would've been nice to know, as an aviation commander, of those
25 instances, occurrences, they call them, locations, the FAA had

1 this information. To my knowledge. We want to know more about
2 it.

3 Q. Okay. And on another thing that may have -- may or may not
4 have bearing on the accident, but what aspects of the safety
5 program are capable of identifying military aircraft exceedances,
6 specifically, I guess, the helicopters on the helicopter routes,
7 of maximum altitudes on the published routes, risk assessing those
8 events and implementing any risk mitigation strategies?

9 A. Internally to the organization, you know, we're -- that's
10 going to be air crew dependent, you know, a hundred, two hundred
11 feet off, I don't know if that would trigger -- maybe in some
12 instances it would be -- FAA to issue a potential, you know,
13 alleged pilot deviation.

14 I believe commercial airliners, think of all the -- there's
15 probably a better word for this, but telemetry coming off the
16 aircraft, airspeed, altitude, you know, those types of things, I
17 believe commercial aircraft have sections and personnel monitoring
18 that type of information. "Hey, you were too fast, you were 10
19 knots fast on this approach, we're going to talk to you," we don't
20 have that in the U.S. Army, not to my knowledge, of somebody
21 monitoring airspeed, altitude, location, to look for those
22 deviations --

23 Q. Um-hum.

24 A. -- say, other than the FAA contacting the U.S. Army saying,
25 "Hey, you were not where you were supposed to be, report back to

1 us, commanders, what you find out." And that's that previous
2 process I mentioned with, you know, FAA to the FAA DAR, DAR is --

3 Q. Um-hum.

4 A. -- an individual assigned to USAASA, DAR comes to it at the
5 battalion level.

6 Q. Okay. And USAASA, again, is U.S. Army --

7 A. Aeronautical Services Agency.

8 Q. Okay. Okay, and then -- so basically, you'd have to -- you
9 kind of rely on the FAA to flag it and then notify you, as a
10 commander?

11 A. Um-hum.

12 Q. And then on the ADS-B issues, my understanding of the issue
13 is that some of the helicopters may not have been broadcasting
14 ADS-B as the crew thought, the crews thought that they were.

15 A. That's correct.

16 Q. Was there any way to know that in advance or would it have to
17 be, like, the FAA reporting that they didn't see it or something?

18 A. Before 29 January there was no requirement for Army Aviation
19 units to inspect other than, you know, the initial configuration
20 of the transponder --

21 Q. How it was installed and so on?

22 A. How it was installed, exactly. But for a daily inspection,
23 there was no requirement to do that, at least not on 12th
24 Aviation's side.

25 Q. Okay. Which would explain why it was a surprise when --

1 A. Um-hum.

2 Q. -- that came out. Okay. So apparently there was kind of an
3 informal helicopter operator or helicopter working group in the --
4 that was organized by the DCA tower, did you have any awareness of
5 that before the accident?

6 A. Um-hum.

7 Q. And did that relate to the -- like, the Joint Task Force
8 group that you were talking about?

9 A. Um-hum.

10 Q. So is it the same group or --

11 A. It's some of the same members.

12 Q. Okay.

13 A. Again, the frequency, I -- I, as the brigade commander, was
14 not involved or attended those meetings, I know they occurred,
15 though.

16 Q. The D.C. tower ones, okay. And then the JTF folks may have
17 participated in that, is that what you mean?

18 A. Um-hum.

19 Q. Okay. And -- yeah, I mean, it's our understanding it was
20 kind of informal and, you know, it was kind of who could make it
21 and so on.

22 A. Exactly.

23 Q. Okay. All right. We answered that. Okay, so to summarize,
24 I mean, if you -- your insights on any weak spots in the Army
25 aviation safety program that you or the community more broadly

1 have identified in hindsight, obviously hindsight being much
2 easier than foresight, you know, what are the -- what weak spots
3 have been identified, if any?

4 A. I would say -- you know, I need to be careful. I think the
5 Army has sound processes in place. When we look at, you know,
6 identifying risks, mitigating risks, you know -- and again, I got
7 to take a holistic look around at aviation, like there's -- I
8 don't want to call it tried and true, I trust the processes.

9 I got to, again, just pause because this is a very unique
10 airspace, chunk of airspace in the National Airspace System, it is
11 demanding on every air crew member, you know, agnostic of
12 platform, you know, there is -- there's, I think, improvements
13 that can be and absolutely must be made, so the Army, you know, if
14 I were to make a recommendation, taking all this information in,
15 is predictive, how do we get predictive? Because there's so many
16 humans involved with this chunk of airspace.

17 I am not an expert in the equipment that is utilized in
18 towers, radars, radar systems, you know, this-that, all those
19 types of things, I'm not the expert there, but I think that is
20 probably something to look at in this airspace, what are the gaps,
21 because we have a lot of people, you know, across dozens and
22 dozens, I mean like, I don't even know the metric anymore, if it's
23 50 or so or 80 or so different aviation organizations that need to
24 operate in this airspace. Certainly, there's friction points and
25 tension that just haven't been identified quite yet, but -- so

1 that to reconcile, like, this airspace here, but from an Army
2 safety program, how do we get predictive? I think that there may
3 be an aspect and everybody's trying to work on that, I don't know.
4 With all the data that we have, it's like the silos of data, the
5 silos of excellence, we like to call it, you know, are the right
6 organizations talking to each other, processing information, and
7 with that information can we be more predictive? Like, if there's
8 a flight that is being scheduled for Thursday to the Pentagon,
9 this is a "for example" --

10 Q. Um-hum.

11 A. -- I don't know if it's going to go anywhere, I would really
12 like to know, other than DCA Tower telling me, like, no, you can't
13 land here, you know, move your takeoff time 15 minutes prior so
14 you can land at the Pentagon helipad when there's not a lot of
15 traffic. Like, I don't have visibility on the commercial traffic,
16 what are the peak times, the not-peak times, you compound that
17 with weather, you compound that with any other environmental --
18 like, wow, wouldn't it be great to have something to kind of
19 utilize, to anticipate certain things in this specific chunk of
20 airspace.

21 Q. Um-hum.

22 A. And we're relying on human beings to do that predictive
23 analysis right now, which, you know, there's some limitations
24 there, but --

25 Q. Okay.

1 A. Let me see, I got about -- I got about 10 more minutes.

2 Q. Okay, I think we're almost done.

3 A. Okay.

4 Q. I'm just reviewing questions I think we've already answered.
5 All right, any -- any safety-related changes for the DCA terminal
6 area or the National Airspace System in general that you'd like to
7 suggest for NTSB's consideration as we transition into the
8 analysis phase? I mean, I understand you're not privy to all the
9 details of the investigation, but we try to give everybody an
10 opportunity if they have a burning desire to see some kind of
11 change, so --

12 A. I know, again, actually to the last comment is for commanders
13 to have -- you know, we have to be able to visualize the
14 environment and with a lot of data that's out there is how do we
15 improve that here in the NCR. Again, you're going to have forcing
16 functions and mechanisms, you know, the park police and the Secret
17 Service and Fairfax County all the way to pick you medevac
18 helicopter organization.

19 We have a lot of different organizations that are operating
20 on different levels of authorities and permissions, right, but
21 we're all using the same airspace, so formalizing that -- say it's
22 a working group anymore, it's a council, you know, that would be a
23 really great first step. Because right now it's we're relying
24 preexisting relationships, not necessarily formal governance.

25 Q. Um-hum. And just to clarify, you mentioned a while back that

1 there was a JTF helicopter working group but was that separate
2 from the FAA helicopter working group or --

3 A. I'm not sure.

4 Q. Okay, all right. I just want to make sure that there aren't
5 two separate ones.

6 A. Because we recently conducted one within the last two months
7 to look at mission routing.

8 Q. Okay.

9 A. Again, I don't know if that was the standard list of
10 participants for the other working groups, but --

11 Q. Um-hum. Yeah.

12 A. -- the specific topic for that working group was the D.C.
13 route structure --

14 Q. Okay.

15 A. -- helo routes, and the adjustments that were being made.

16 MR. BRAMBLE: All right, I realize you're almost out of time.
17 Van, do you have any additional questions?

18 MR. McKENNY: No further questions, thanks a lot.

19 MR. BRAMBLE: Dave?

20 MR. BLAIR: No questions here. Thanks, Colonel, appreciate
21 your help.

22 COL DeFOREST: Thank you.

23 MR. BRAMBLE: Nick?

24 CW5 JACOBY: No, sir.

25 BY MR. BRAMBLE:

1 Q. Okay. Is there anything that we haven't asked you that you
2 want to share? I know we've covered a lot of ground, so don't
3 feel obligated, but I just wanted to give you the chance.

4 A. Yeah, ADS-B, I know we covered that. I would say, share with
5 -- you know, some of the adjustments, I would say, from, you know,
6 before release of the official 15-6 CRC safety investigation
7 informed by the NTSB preliminary investigation, so that was, you
8 know, very, very timely and appropriate. Would offer immediately
9 made some changes, you know, in the organization, so some were
10 directed at the HQDA level, others were internal, you know, at the
11 battalion level, so --

12 Q. Can you give me a brief, just a brief rundown of what those
13 were, as far as you know?

14 A. So we'll go to ADS-B out and on, you know, so any time ADS-B
15 is -- ADS-B out is turned off, that is now at the brigade
16 commander O-6 level, so the Army identified elevating the risk
17 level there.

18 Q. Needs to authorize it.

19 A. Needs to authorize it, correct. We check ADS-B before every
20 flight, functionality of it. We have open window surveillance, so
21 crew chief in a Black Hawk will open the window, you know, on
22 landing/departure. I don't want to get into any of the mission
23 changes, we definitely --

24 Q. Okay.

25 A. -- made some adjustments there. We are -- we've been

1 informed, 12th Aviation has been -- their HQDA has directed the
2 fleet modernization of 12th Aviation Battalion no later than
3 fourth quarter FY '26, that was very encouraging to see.

4 Q. Q4 '26?

5 A. That's correct.

6 Q. Okay.

7 A. And for personnel, we, I'd say as of today, continue to
8 receive great support from the Army in -- as in they provide --
9 just don't -- I don't want to get into the anticipation of
10 potential changes, but we are manned at an appropriate level in
11 comparison to, say, other combat aviation brigades, so the Army
12 recognizes, you know, our unique mission and people are assigned
13 here, you know, say at aggregate right now, I think about a
14 hundred and two percent, when you look at the personnel who are
15 authorized versus required, so all that to say maybe you don't
16 include this, the Army just made a big announcement, you know,
17 late last week about Army transformation initiative, so we're
18 still kind of reconciled what that looks like in this formation.

19 Q. Um-hum.

20 A. But very high quality personnel inside of this organization
21 and echelon, up and down the ranks, very -- it's -- it makes
22 coming to -- coming to work every day very rewarding, it's got
23 some exceptional people assigned.

24 MR. BRAMBLE: Fantastic, is that it?

25 COL DeFOREST: Is there -- let's see. Because there's

1 certainly things I'll think about over the next day or so,
2 opportunity to follow up?

3 MR. BRAMBLE: Yeah, feel free. You can either -- I guess the
4 best -- unless you'd like to have another discussion, the best way
5 might be to, you know, just send us an e-mail and copy Colonel
6 Parker --

7 COL DeFOREST: Um-hum.

8 MR. BRAMBLE: -- and Nick, of course, since he's in the group
9 and -- but if you'd prefer to have another discussion, we can do
10 that.

11 COL DeFOREST: Okay.

12 MR. BRAMBLE: We are under -- oops. I'm going to go ahead
13 and call the interview complete and stop the recorder.

14 (Whereupon, at 3:15 p.m., the interview concluded.)
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: FATAL COLLISION BETWEEN
 AMERICAN AIRLINES JET AND ARMY
 HELICOPTER NEAR RONALD REAGAN
 NATIONAL AIRPORT IN WASHINGTON, DC
 ON JANUARY 29, 2025
 Interview of Colonel Andrew J. DeForest

ACCIDENT NO.: DCA25MA108

PLACE: Fort Belvoir, Virginia

DATE: May 5, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Karen D. Martini
Transcriber

UNITED STATES OF AMERICA

NATIONAL TRANSPORTATION SAFETY BOARD

* * * * *

Investigation of: *

*

FATAL COLLISION BETWEEN AMERICAN *

AIRLINES JET AND ARMY HELICOPTER *

Accident No.: DCA25MA108

NEAR RONALD REAGAN NATIONAL *

AIRPORT IN WASHINGTON, DC *

ON JANUARY 29, 2025 *

*

* * * * *

Interview of: ROSS STEADMAN, Brigade Safety Officer
The Army Aviation Brigade
United States Army

Fort Belvoir, Virginia

Monday,
May 5, 2025

APPEARANCES:

BILL BRAMBLE, Human Performance Investigator
National Transportation Safety Board

VAN McKENNY, Helicopter Operations Investigator
National Transportation Safety Board

DAVID BLAIR, Chief Pilot for Safety
Sikorsky Aircraft

CW5 NICHOLAS JACOBY, Battalion Commander
The United States Army Aviation Brigade

I N D E X

<u>ITEM</u>	<u>PAGE</u>
Interview of Ross Steadman:	
By Mr. Bramble	6
By Mr. McKenny	35
By Mr. Blair	36
By Mr. Bramble	40

I N T E R V I E W

(3:31 p.m.)

MR. BRAMBLE: Okay, today is May 5th, 2025, it's 15:31 Eastern Daylight Time. My name is Bill Bramble and I'm a human performance investigator with the NTSB. Van McKenny and I are leading the operations and human performance working group for investigation number DCA25MA108 involving PSA Flight 5342 and PAT25. This will be an interview with Ross Steadman.

The NTSB is an independent federal agency, we're not part of the DOT or the FAA and we have no regulatory or enforcement powers. Our mission is to determine the probable cause of incidents and accidents and make recommendations so similar events can be avoided in the future. Our mission does not include findings of liability or blame. Your participation today helps ensure that the fact-finding phase of the investigation is complete and accurate.

We'll be recording the interview so it can be transcribed, after we receive the transcript we'll review it for typos before it's included in the public docket for this investigation. We can provide you an opportunity to review the transcript if you'd like, just ask us afterwards.

I'd now like each of the group members to briefly introduce themselves and state their organizational affiliation for the transcriptionist, let's start with Mr. McKenny.

MR. McKENNY: Van McKenny, helicopter operations group

1 co-chairman, NTSB.

2 MR. BRAMBLE: And Mr. Blair.

3 MR. BLAIR: I'm Dave Blair, the chief pilot for safety,
4 Sikorsky Aircraft.

5 MR. BRAMBLE: And Nick.

6 CW5 JACOBY: CW5 Jacoby, The Army Aviation Brigade,
7 standardization pilot.

8 MR. BRAMBLE: All right, thanks. Each of the group members
9 will have a couple of opportunities to ask questions, we're going
10 to take turns so we're not talking over the top of each other.
11 Please answer all questions to the best of your recollection. If
12 you don't understand a question, just say so, if you misstate
13 something, feel free to correct it. As the transcript of the
14 discussion will eventually be part of the public docket, avoid
15 discussing anything classified, if we ask you something that bears
16 on classified information, just tell us you can't answer for that
17 reason.

18 MR. STEADMAN: Okay.

19 MR. BRAMBLE: You're entitled to a representative of your
20 choosing during any NTSB interview, is there somebody you'd like
21 to have as your representative?

22 MR. STEADMAN: I do not.

23 MR. BRAMBLE: Okay, thank you. All right. All right, let's
24 go ahead and begin, then.

25 INTERVIEW OF ROSS STEADMAN

1 BY MR. BRAMBLE:

2 Q. Can you state and spell your first and last name, please?

3 A. First name Ross, R-o-s-s.

4 Q. Um-hum.

5 A. Last name Steadman, S-t-e-a-d-m-a-n.

6 Q. Okay. And you're a civilian employee, correct?

7 A. Correct.

8 Q. And who's your employer?

9 A. Department of the Army Military District of Washington.

10 Q. Okay. And what's your current role or position?

11 A. I'm a GS 0018 job series Safety Manager.

12 Q. Okay. And GS level 14?

13 A. Yes, sir.

14 Q. Okay. All right, what are your duties as a safety manager?

15 A. As a safety manager, I'm a member of the commander's special
16 staff.

17 Q. Okay.

18 A. I advise, assist, monitor, and manage various aspects of the
19 safety program.

20 Q. Okay. And give us just kind of a brief overview of your
21 background in aviation and safety.

22 A. I graduated, I joined the Army in '79, graduated flight
23 school in 1984, went straight to Black Hawk transition UH-60
24 Alphas. Various assignments in the Army having flying UH-60
25 Alphas and Limas, various versions of the C-12, and Citation

1 Encores, type rated in Ultra and in Encore, and in the G-1159, G5,
2 G550. Went to the aviation safety officer course in 2001 and ever
3 since then I've done various aviation safety and safety and
4 occupational health training.

5 Q. Okay. Were you -- what was your leadership background in the
6 Army, did you have -- were you a warrant officer?

7 A. I retired as a CW5.

8 Q. Okay.

9 A. So I was originally enlisted, got promoted up to E-5 and then
10 went to flight school and became a warrant officer.

11 Q. Okay. And what's your approximate total flight experience?

12 A. Total flight hours is just a little over 10,000.

13 Q. How much of that in helicopters?

14 A. Not exactly sure, but somewhere around 3,000.

15 Q. Okay. And how much of that, would you say, is in the UH-60?

16 A. All but a few hundred.

17 Q. Okay. And mostly in Limas and Alphas?

18 A. Yes.

19 Q. Okay.

20 A. Little bit of UH-1 time after flight school.

21 Q. Okay. And NVGs, do you have a significant amount of NVG
22 experience?

23 A. Yes, was an instructor pilot and standardization instructor
24 pilot.

25 Q. On the order of hundreds of hours, at least?

1 A. Several hundred hours. NVGs, probably close to 500, I would
2 estimate.

3 Q. Okay. All right. By any chance, did you personally know any
4 of the accident crew members?

5 A. I did not.

6 Q. Okay. All right. So, so far we've had a chance to talk with
7 the safety officers of the company and the battalion level, and
8 we've talked to the commanders of the company, battalion, and
9 brigade level, so we've just kind of been working our way up the
10 stack to sort of understand how the safety program works.

11 We've also reached out to the Army for information about
12 aviation safety management more broadly in Army aviation branch
13 and gotten kind of a basic understanding of the governing -- I
14 mean, at least where the governing regulations and guidance
15 resides, and what other organizations play a role, like, you know,
16 everybody from CRC to HQDA, 3/5 -- G-3/5/7 to TRADOC and the
17 Center of -- Aviation Center of Excellence. And so what we'd be
18 looking for from this interview is kind of like your perspective
19 on how the program operates and what your role is in it.

20 A. Okay.

21 Q. So let's go ahead and start with that. How is the aviation
22 safety program organized for the TAAB?

23 A. So aviation is one of 14 program areas of safety for the Army
24 that are defined in AR 385-10, so in our organization, the safety
25 program, as a whole, is organized in various documents, which

1 would be our basic safety SOP, pre-mishap plans, the ABOS, if
2 you're familiar with that term, Aviation Branch Operations SOP,
3 has some safety requirements in there and where necessary, our
4 safety SOP at the brigade would reference those other documents,
5 where needed, to break out different areas like risk management
6 for flight operations or the R-COP, the basic safety SOP just
7 points you toward the ABOS for R-COP procedures.

8 Q. Okay, but the brigade-level safety SOP would get more
9 specific, is what you're saying?

10 A. The brigade safety SOP would talk about risk management, risk
11 assessments --

12 Q. Um-hum.

13 A. -- but when it comes to aviation risk assessments, it would
14 direct you toward the ABOS --

15 Q. Oh, okay.

16 A. -- for procedures on that instead of having them written in
17 two different locations.

18 Q. Oh, I see. All right. So who is formally in charge of the
19 brigade-level safety program?

20 A. The AR 385-10 will tell you that safety programs are a
21 commander's program at every echelon of the Army.

22 Q. Okay. And what is the role of Colonel DeForest versus
23 yourself as the brigade-level safety officer, how do you all work
24 together?

25 A. Well, he's the commander in charge of the organization and

1 everything that does or doesn't happen. As a member of the
2 special staff, again, as I stated earlier, I advise, assist,
3 monitor, and manage various aspects of those programs for him.

4 Q. Okay. And so what's a typical week or month like in terms of
5 how you all interact, like what are your touch points?

6 A. We have a monthly meeting where we discuss everything safety
7 that's going on, but I have access to him daily, if I need it. We
8 talk several times a week, we don't just wait for the meetings to
9 discuss various items if they're important.

10 Q. Okay. And it's my understanding that you have offices near
11 each other in the same office building.

12 A. Yes.

13 Q. Okay. And you have an easy time getting to him if you need
14 to talk to him?

15 A. Yes. I have his personal cell phone. If it's something
16 urgent, I'll send him a text message, I try not to because his
17 time is valuable, but I do that occasionally.

18 Q. Okay. All right, so how do -- how are brigade-level safety
19 policies and/or communications -- how do you and Colonel DeForest
20 interface with the subordinate commanders and safety officers at
21 the lower echelons?

22 A. So as far as safety policy goes, if something is going on
23 where we have to direct actions of subordinate organizations, I'll
24 draft an op order, operations order, or a task order to go from
25 the S-3 down to the units for any actions they have to take or

1 formal actions that we want to request of them. An example would
2 be when we publish our safety SOP, I'll send the S-3 a draft task
3 order, they'll send it down to the units to review the SOP,
4 provide comments back to us for recommended changes or
5 improvements.

6 Q. Okay.

7 A. We also have semi-annual safety and occupational health and
8 standardization meetings, more commonly referred to as safety and
9 stands meetings --

10 Q. Okay.

11 A. -- with all the subordinate commanders and safety teams and
12 standardization pilots.

13 Q. All the safety officers and the stands pilots?

14 A. All the battalion-level safety officers.

15 Q. Okay.

16 A. Any safety officer, anybody within the command is welcome to
17 attend those meetings and that's stated in our SOP, but the
18 mandatory attendance is the battalion-level command teams and
19 safety officers.

20 Q. And did you say the standardization pilots also attend or is
21 it mainly the safety officers?

22 A. The standardization pilots are also part of the safety and
23 stands meeting.

24 Q. Okay, I see.

25 A. So typically, the way we run it is we'll start, because we

1 have several outside agencies that will attend --

2 Q. Um-hum.

3 A. -- like industrial hygiene and occupational health --

4 Q. Um-hum.

5 A. -- we'll do the safety part up front and then we go into the
6 standardization meeting.

7 Q. Okay. I see, okay. So is that different from the SOHAC?

8 A. It is the SOHAC combined with standardization.

9 Q. I see, okay.

10 A. Prior to July 2023, the Army referred to the meeting as the
11 Command Safety Council.

12 Q. What was the date, again?

13 A. July 2023.

14 Q. Okay. Was the Command Safety and --

15 A. Command Safety Council.

16 Q. Council, okay.

17 A. And Standardization Committee, this -- the need to hold the
18 standardization committee is defined in AR 95-1.

19 Q. Okay. All right. How much of your time and energy is spent
20 on aviation safety versus, sort of, occupational health and
21 safety-type issues?

22 A. To give a good answer on that, are you aware of the makeup of
23 the brigade and our four subordinate units?

24 Q. Um-hum.

25 A. So having two fixed-wing units, a Black Hawk unit, and an

1 airfield division, well over 50 percent of my time is devoted to
2 aviation safety, but not specifically helicopters.

3 Q. Okay. And then how about for the subordinate safety officers
4 like in battalion and company level and the helicopter units, do
5 you have a sense of how much of their time is devoted to aviation
6 safety versus sort of like the other stuff, the occupational and
7 environmental stuff and the maybe, you know, off-duty safety kind
8 of stuff?

9 A. I couldn't give you a number for them. I would say, for the
10 flight companies, Alpha, Bravo, and Charlie, I would assume that
11 most of their time is given to aviation safety. For our
12 maintenance company, Delta Company, I would say a good amount of
13 his time is spent with workplace safety for all the maintenance
14 that's going on.

15 For my part, I probably spend more time than I have to with
16 certain aspects of the ground safety program, like industrial
17 hygiene, since we don't have dedicated support for industrial
18 hygiene, so that's one of the challenges that will sometimes take
19 more time than I would like to devote to it.

20 Q. Okay. And this gets to a perennial challenge with any safety
21 program, but how do the safety officers, I guess yourself
22 included, but those in the subordinate echelons also, how do they
23 ensure that they're managing both the low probability/high
24 consequence risks, as well as the everyday, you know, OSHA-type
25 risks, like are there separate processes for trying to sort of

1 manage those different kinds of risks or what's your perspective
2 on that?

3 A. So risk assessment is spelled out in DA PAM 385-30 at any of
4 our SOHAC safety meetings and that the higher echelon of Military
5 District of Washington, when they do have SOHAC meetings, any
6 RAC-1 or RAC-2 hazards are identified and briefed at those
7 meetings. Anything that's lower, RAC-3 or RAC-4, is not briefed
8 at those meetings. And now there's -- are you familiar with
9 ASMIS?

10 Q. Yeah, in general terms, yeah. I haven't gotten into the
11 system, but I know what it is now, yeah.

12 A. So ASMIS has five modules, one of those modules is hazard
13 management, so now when inspections are done or when the DES ARMS
14 inspection was done, we put those deficiencies into the ASMIS
15 hazard module for commanders to be able to track. It's relatively
16 recent. Prior to those going into the hazard management module,
17 they would've been kept on an Excel spreadsheet at the unit level
18 with the -- what we call the hazard log or HAZLOG.

19 Q. Okay. When did that change happen?

20 A. The change happened roughly three years ago. However, the
21 use of the system just hasn't matured until recently within the
22 organization.

23 Q. How recently would you say?

24 A. In the last six months.

25 Q. Okay. So before the accident, it was kind of -- people were

1 starting to come up to speed on it?

2 A. Yeah. The system was active by the Safety Center, but doing
3 the culture change to get the use and education has been slow to
4 develop just based on manpower.

5 Q. Okay. And so ideally -- well, let me clarify on that, so was
6 it kind of the accident really kind of served as a catalyst to get
7 that going or --

8 A. I would not say that.

9 Q. Okay.

10 A. Some of the items that were entered into there were done
11 prior to the mishap, like the DES ARMS inspection that was done.

12 Q. Okay.

13 A. So those deficiencies were known prior to the mishap, they
14 just weren't put into the system for the commanders to track
15 electronically.

16 Q. I see. So you're saying the ARMS had been completed but it
17 wasn't in the system before the accident, the hazards?

18 A. Correct. The ARMS was completed, the results were known.

19 Q. Okay.

20 A. They just weren't put in to be tracked electronically.

21 Q. Okay.

22 A. They would've been tracked manually on the spreadsheet.

23 Q. Okay, and so the vision is that this system will allow them
24 to see, in real time, how these hazards are being risk assessed
25 and mitigated and who's doing what about them?

1 A. Yes.

2 Q. Okay. I see. And then how would you interface with that, is
3 that all done at the CRC level or who does that?

4 A. No, the modules of ASMIS that we're currently using, they're
5 not all launched yet, but mishap and near-miss reporting, the
6 hazard management module, some parts of the program management
7 module and the inspections, audits, and surveys modules, the ASMIS
8 is run and managed by the CRC, but at our level, we use our UICs
9 or unit identification codes to build a hierarchy and so at my
10 level, I can see everything with all of our subordinate units, at
11 battalion and company and detachment level.

12 Q. Okay. And so that information is populated not only by the
13 audits and surveys, but also would it be populated by OHRs or
14 ASMIS safety reports?

15 A. So I haven't had an OHR for a while, but the goal is that all
16 of our surveys, audits, assessments would be entered into the
17 system so the safety officers at the company have to monitor or
18 manage four big programs that we're tracking: fire prevention, FOD
19 prevention, environmental compliance, and hearing conservation.
20 So besides inspections that we do, those four program areas have
21 their monthly checklist entered into the system, so any
22 deficiencies are entered into there.

23 Q. Okay.

24 A. Some things auto-populate into the hazard module, however,
25 any individual, whether they have a CAC card or log in on a

1 government computer, can enter a hazard and either give their name
2 or do it anonymously, and then the safety officers will see that
3 hazard that was entered and be able to take action on it.

4 Q. Okay. How much participation have you been seeing in that
5 reporting over the last -- well, I should say prior to the
6 accident, what were you seeing in terms of participation of crews
7 in making reports?

8 A. As far as near-miss reports go?

9 Q. Well, aviation safety specific reports as opposed to, you
10 know, the slips, trips, and falls kind of stuff, you know, in
11 general, not necessarily just about traffic conflicts, we'll get
12 to that but, you know, were you seeing people making reports or
13 not really?

14 A. One of our fixed-wing units was very good, is very good at
15 putting those reports in, they are definitely leading the pack;
16 the other three subordinate organizations are slow to adopt. So
17 what we did with our SOHAC safety and stands meeting was having
18 the units enter on the slides all of their near-miss reports, so
19 they were briefing near-miss reports submitted by their
20 organization to the brigade commander.

21 It also gave him visibility on what units were reporting and
22 which units weren't reporting so that we could have a discussion
23 about improving our reporting and being able to gather some good
24 data to make some decisions and improvements with the program.

25 Q. And so what -- kind of what was the status with that

1 transition that you were trying to promote at the time of the
2 accident, like how far along was it?

3 A. We had discussed near-miss reports at the previous two
4 SOHACs, the last one before the mishap was 14 November, so it
5 would've been sometime around the June time frame of 2024 that we
6 started briefing those at the safety meetings.

7 Q. Okay. Near-miss reports.

8 A. Mishaps and near-miss reports.

9 Q. Okay. Okay. All right. So ASMIS itself, when did that come
10 online?

11 A. I think the mishap/near-miss report module was late 2021, the
12 hazard module, I'm not a hundred percent sure and it was, I think,
13 October 2023 for the inspections, audits, and assessments module
14 to get launched.

15 Q. Okay. And the inspections, audits, and assessments module
16 would include ARMS and ARAP results?

17 A. Say that again?

18 Q. Which audits and assessments would be tracked?

19 A. So we just did what's called an organizational inspection
20 program, OIP, it was conducted as a staff assistance visit, so it
21 wasn't to inspect, but it was to go over some of their safety
22 programs to assist the units with implementation of some of those
23 modules. The two areas that we inspected and the staff assistance
24 visit was inspections, audits, and surveys, and mishap and
25 near-miss reporting.

1 Q. Okay.

2 A. That was to give us, at the brigade level, the ability to go
3 over the status of the units' use of those programs and to help
4 them clean up some of the data which was input but not completely
5 input.

6 Q. Okay. So the audits and inspections logged in the ASMIS
7 module were OIP inspections?

8 A. Staff assistance visits.

9 Q. Okay.

10 A. Staff assistance visit.

11 Q. Okay, so when -- let me ask you about a couple of other
12 survey-type processes, so we've heard about the CRC's ARAP and
13 we've -- which, I guess, is sort of a culture focused survey?

14 A. Yes, Army Readiness Assessment Program is a safety survey,
15 safety culture survey.

16 Q. Okay.

17 A. It's a requirement when the new battalion commander comes in,
18 that they complete an ARAP and then at the midpoint of their
19 command, complete another one so while in command they'll have two
20 of those.

21 Q. Okay.

22 A. One feature of the system is that Colonel DeForest and I have
23 a command code where we can log in and see that units had done the
24 surveys, when they did the survey, and various aspects of the
25 results or the comments that organizations made. Unfortunately,

1 our command code gets us access to certain information and so when
2 there are safety comments, I only see them in the aggregate of all
3 four organizations, not broken out into which organization, have a
4 person make that specific comment in the survey. The battalion
5 commanders have a separate command code for their battalion level
6 because ARAP is a battalion-level program, and they can see their
7 organization broken out, they'll get the recommendations from the
8 CRC and take action on those recommendations and brief the brigade
9 commander.

10 Q. I see. So it's designed to be sort of battalion focused.

11 A. Yes, ARAP is a battalion-level program.

12 Q. Okay. And then ARMS, does ARMS cover safety? The U.S.
13 FORSCOM ARMS survey?

14 A. Yes.

15 Q. How does that -- that's a broader audit, though, right?

16 A. It is more than just safety, so the safety program is
17 evaluated, as well as other various programs within the battalion
18 and the brigade.

19 Q. Okay.

20 A. Maintenance, standardization, flight records, operations,
21 flight medicine, there's --

22 Q. Uh-huh.

23 A. -- a lot of subjects in the ARMS survey.

24 Q. And is that information, on the safety side, is that
25 information that is fed to you for -- so you can make use of that,

1 as well, in terms of like refining the safety program?

2 A. Yes. So before the ARMS happened -- I believe it was
3 December 2024?

4 CW5 JACOBY: The ARMS?

5 MR. STEADMAN: Yeah.

6 CW5 JACOBY: It was, yeah.

7 MR. STEADMAN: We did a pre-ARMS with the battalions where
8 the brigade safety, me, went down and went over the ARMS checklist
9 with all the battalion and company safety officers to help them
10 prepare, identify deficiencies and make corrections before the
11 actual ARMS came. I believe the pre-ARMS that I did for them was
12 somewhere in October time frame, I'm not sure, might have been
13 plus or minus a month.

14 BY MR. BRAMBLE:

15 Q. Twenty twenty-four?

16 A. Correct.

17 Q. Okay. Anything interesting come out of either the ARMS or
18 the ARAP in terms of, I don't know, actionable information was
19 helpful?

20 A. The ARAP, I don't recall anything. I was not in with the
21 battalion commander debriefing the brigade commander, so I don't
22 know what was briefed to the brigade commander.

23 Q. And how about the ARMS?

24 A. For the ARMS, as far as safety program management, I don't
25 recall anything except some -- just minor recordkeeping things.

1 Q. Okay. All right. In terms of the regulations and sources of
2 guidance that help you run the brigade-level safety program, are
3 the primary references AR 95-1, AR 385-10, and DA Pam 385-10?

4 A. AR 95-1 and AR 385-10 are the two basic guiding documents and
5 if you look in the back of the AR 385-10, it will tell you related
6 publications, so it will give you a laundry list of other related
7 publications to refer to for various aspects of the safety
8 program.

9 Q. Um-hum.

10 A. For our airfield division, we also have AR 95-2, which is
11 airfields and heliports. I said earlier DA Pam 385-30 is risk
12 management as far as -- also with the ATP 5-19.

13 Q. Okay.

14 A. Until 2023 there was a DA Pam 385-90, which was aviation
15 safety program management, which -- in July 2023, when the new AR
16 385-10 and DA Pam 385-10 was published, it got rid of DA Pam
17 385-90 and incorporated what the Army decided needed to be
18 incorporated and there were a few things that were not carried
19 forward in -- from DA Pam 385-90.

20 Q. Okay, that was in July of 2023?

21 A. It was published July 2023 and effective August 2023, a month
22 later.

23 Q. Okay. What did you think of the revision, was it positive,
24 from your standpoint or --

25 A. There were some things that I think a lot of aviation safety

1 people wanted put back in there. One of the safety program
2 managers that I'm on the distro list for is the FORSCOM aviation
3 safety manager, and FORSCOM thought so much so for some of the
4 programs, that they published a FORSCOM message requiring that
5 battalions continue to do some of the DA Pam 385-90 things, and
6 then the discussion I had with the brigade commander in the fall
7 of last year was when we republish our brigade safety SOP, we're
8 going to put some of that stuff back into our SOP as requirements
9 until such time as the Army republishes to do it or we'll just
10 institute it within the brigade ourselves.

11 Q. Okay. So that stuff was in the brigade SOP already or you
12 were going to put it in? I mean, like, was it in place at the
13 time of the accident, the brigade SOP?

14 A. Well, the brigade SOP was in place, but some of the changes
15 from the July 2023 revision of AR 385-10, some of the requirements
16 that were in 385-90 that were not republished in the 385-10 were
17 taken out of our SOP. One example of that is what we refer to as
18 an AAPS, A-A-P-S, Aviation Accident Prevention Survey --

19 Q. A-A -- tell me the acronym again.

20 A. A-A-P-S, AAPS.

21 Q. A-A-P-S, okay. Aviation Accident Prevention --

22 A. Survey.

23 Q. -- Survey, okay.

24 A. And all it is, is it's basically safety managers and all
25 those things that are inspected in the FORSCOM ARMS would undergo

1 an AAPS either annually by the safety officer or when a new
2 program manager takes over.

3 Q. Say that again, all the things in the FORSCOM what?

4 A. ARMS.

5 Q. ARMS, okay. Would undergo an AAPS?

6 A. An AAPS would basically be a self-assessment using an ARMS
7 checklist.

8 Q. Oh. Any idea as that would happen when, whenever there's a
9 new commander or --

10 A. It would be annually or when a new program manager for a
11 functional area like ALSE maintenance is appointed to that
12 position.

13 Q. What's ALSE?

14 A. Aviation Life Support Equipment.

15 Q. Okay. Okay, so without that -- so the 385-90 recommended
16 that people do that annually?

17 A. The AAPS.

18 Q. The AAPS.

19 A. Yes. It didn't direct what checklist you used --

20 Q. Um-hum.

21 A. -- but the gold standard was to use the ARMS checklist.

22 Q. Okay. And then after that was revised and the 385-10 became
23 the working document, then there was no requirement to do an AAPS?

24 A. The Army's requirement for us to do an AAPS went away--

25 Q. Okay.

1 A. -- and it was actually taken out of our SOP, but it's being
2 put back in, in the next revision.

3 Q. Okay. When will that happen?

4 A. It's been reviewed by all the units, I just have to get it
5 put together, I told the brigade commander I'd have it to him this
6 month.

7 Q. Okay. Why was it important to preserve that, in your
8 opinion?

9 A. I think it's just good for a forcing function to have company
10 and battalion safety officers do an annual assessment of their
11 program.

12 Q. Okay. Can you give me an example of a kind of issue it might
13 reveal?

14 A. If operations wasn't maintaining flight records
15 appropriately.

16 Q. Okay.

17 A. If any of the functional areas like maintenance safety were
18 not performing a critical task, it would identify that.

19 Q. Okay. And ARMS and ARAP don't replace that?

20 A. The ARMS is only generally on a cycle of, I believe, every
21 three years.

22 Q. Okay. So basically, what AAPS, the AAPS requirement did was
23 ensure that there was some sort of audit, some sort of safety and
24 standardization-related audit taking place annually instead of
25 every three years.

1 A. Yes.

2 Q. Okay. How often do safety officers typically cycle through
3 that, like, a billet at a battalion, say?

4 A. With COVID, it changed the dynamic of how often people were
5 moving. The previous 12th Battalion safety officer was in the
6 battalion for seven years and started as a company safety officer
7 and moved up to battalion safety. I've never tracked how many
8 months or years any particular safety officer was in their slot.

9 Q. Okay. But it seemed to you that during COVID that lengthened
10 out that person's tenure more than usual or --

11 A. Yes.

12 Q. Okay. So seven is unusual?

13 A. Yes.

14 Q. Okay. Do most safety officers -- I mean, do most of the
15 active duty personnel at -- in the 12th, I mean, are they
16 typically there for like two or three years and then they go
17 somewhere else or is that -- they typically stay in one place,
18 then?

19 A. So the 12th, it seems like it's somewhere around a three-year
20 tour, but I can't say for sure --

21 Q. Okay.

22 A. -- without checking.

23 Q. All right. So if you were a battalion or a company safety
24 officer and you weren't having an annual AAPS survey, you might
25 encounter one in your posting there, if you had kind of a typical

1 cycle in and out?

2 A. Yeah, some safety officers would not see an ARMS inspection
3 and others would, but typically, the average would probably be one
4 per tour of duty.

5 Q. Okay, all right. All right. So as far as safety policy, we
6 had some discussion with Colonel DeForest, you know, he read us
7 part of his safety philosophy that was in the safety policy and
8 told us that there is a written document that is circulated
9 amongst the subordinate commanders and safety officers, so that's
10 good to know about. Any thoughts or comments on the preexisting
11 safety policy that are worth noting or --

12 A. No.

13 Q. Okay. And the safety risk assessment, we understand that the
14 R-COP is kind of a key tool in that area for your -- for the
15 personnel at the battalion and company level, is there anything
16 else we should know about in terms of the risk assessment aspect
17 of the safety program? Just making sure there aren't any gaps in
18 our understanding.

19 A. The process for authorizing a flight and a flight happening
20 is laid out in AR 95-1 --

21 Q. Okay.

22 A. -- so initial mission approval, a mission briefing officer's
23 job to file a mission approval authority in the R-COP is a tool
24 that the mission briefing officer and the pilot-in-command would
25 go over to what they call "see yourself," see the mission, see the

1 weather.

2 Q. I see. That's a good clarification, so that's a tool that
3 they use to move along through that process but the process is
4 specified in the AR 95-1, you said?

5 A. Yeah.

6 Q. Okay. On the safety assurance side, so we've talked about
7 the audits and surveys, I mean, that's -- those are forms of
8 safety assurance, right, so what -- is there anything else we
9 should know about besides AAPS, ARMS, ARAP? We talked about OHRs,
10 you said you don't really see those much.

11 A. No, if we -- I've been told to expect another one based on a
12 recent event which was after the mishap --

13 Q. Okay.

14 A. -- but they are very infrequent, to get, OHRs. One thing
15 that you haven't touched on was ASOMHS.

16 Q. ASOMHS, yes, tell me about that.

17 A. So ASOMHS is an SMS, basically, safety management system. We
18 started implementing ASOMHS with the DoD Safety Management Center
19 of Excellence a few years ago, and we entered -- went from Stage 1
20 into Stage 3, there are three stages. We went from -- I'm sorry,
21 let me correct that. There are three stages, we went from Stage 1
22 to Stage 2 in May of 2023, so we're working toward getting a Stage
23 2 audit sometime in the near future and then getting into Stage 3
24 with the SMS.

25 Q. That is fascinating. I did not know about that. How long

1 has ASOMHS been around?

2 A. It was pre-2023, but I don't know an exact date. ASOMHS is
3 addressed in the AR and DA Pam 385-10, and the Army published an
4 Army directive for implementation in 2024.

5 Q. So it's fairly recent.

6 A. Yes.

7 Q. Huh, okay. All right, so is it modeled after, sort of like
8 civilian SMS structure in terms of like, you know, policy, risk
9 assessment, safety assurance and promotion?

10 A. Yeah, so there are six capability objectives and somewhere
11 just under 50 items total under those six capability objectives.
12 So the modules would be, like, leadership engagement, safety
13 promotion, safety training.

14 Q. Okay. How about the safety assurance side of it, what are
15 sort of the -- like, what do you guys have in place now and what
16 would go into Stage 3 to cause you to do more of or differently?

17 A. Well, Stage 1 is just do you have policies in place, Stage 2
18 is are you following your policies, and then Stage 3 would be are
19 they effective.

20 Q. I see. So Stage 3 is where you'd really get into the safety
21 assurance in terms of trying to figure out whether the stuff you
22 have in place is working or not to mitigate risk?

23 A. Yes.

24 Q. Okay, I see. So at Stage 3, what would your role be in
25 making that happen?

1 A. I think everything that deals with the effectiveness of the
2 safety program and maintaining that.

3 Q. Okay. Have there been any efforts to shape the safety
4 culture at the TAAB in recent years, like 2023 to present?

5 A. I think commanders at all levels have tried to improve the
6 culture, but our organization is very diverse with the different
7 units that we have, promotion and awareness, we try every
8 opportunity that we have.

9 Q. And what are the things that -- what are the things that you
10 see as important in terms of promoting a safety culture and where
11 are your challenges?

12 A. The challenges are resources, time, and money.

13 Q. Okay. And oftentimes, I know the literature on safety
14 culture is pretty wide and varied but, you know, people talk about
15 reporting culture and generative culture and learning cultures and
16 so on, basically to me it means people are providing information
17 about how it's going and the organization is trying to learn from
18 that and predict, you know, how its risk profile is changing and
19 the culture is kind of the glue that helps hold that feedback loop
20 in place along with sort of not punishing the messenger and so on,
21 but is that kind of in line with where you see things headed with
22 -- with this ASOHMS or is that kind of the gist of it?

23 A. It is, I mean, it's -- you know, doing the right thing is
24 what it gets down to in shaping the culture and people aren't
25 afraid to report, people aren't punished for reporting.

1 Q. Okay. And as far as reporting in general, has that been a
2 strong area for the brigade or has that been -- I guess it sounded
3 like, from our earlier discussion, that it had been a bit of a
4 challenge except with the fixed-wing unit.

5 A. For near misses, the fixed-wing unit --

6 Q. Okay.

7 A. -- was good. When it comes to reporting their mishaps,
8 whether it be property damage or injuries to someone, I think the
9 12th is very good at that.

10 Q. Okay.

11 A. They have safety officers down to that company level
12 monitoring that for the commanders, so --

13 Q. So they're better on the OSHA-type injuries type stuff, on
14 ground stuff.

15 A. On any property damage.

16 Q. Injuries.

17 A. Injuries, damage to equipment.

18 Q. Okay. But less so on the near-miss type stuff?

19 A. Correct.

20 Q. Okay.

21 A. And I think sometimes it's that maybe they just don't know,
22 right?

23 Q. Um-hum.

24 A. You know, I think for me, one of the things that this mishap
25 identified is that an airliner does a go-around because of a

1 helicopter and the helicopter's on a different frequency than the
2 airliner --

3 Q. Um-hum.

4 A. -- and the helicopter may never know that they were an issue.

5 Q. Um-hum. We've wondered about that. Yeah, so how are they
6 even supposed to know if an airliner did a go-around or missed
7 approach because of an RA or something like that and --

8 A. And in the Aviation Safety Reporting System, if you look in
9 there and try to get some data from that, that airliner probably
10 doesn't know whose helicopter that was --

11 Q. Yeah.

12 A. -- what service or operator.

13 Q. Um-hum.

14 A. And so they'll just identify a helicopter.

15 Q. Okay. All right, how much interface do you have with CRC
16 and, I guess, the U.S. Army Aviation Center of Excellence that
17 manages the R-COP tool, do you have contacts there you interact
18 with frequently prior to the accident?

19 A. So the Safety Management Center doesn't manage the R-COP
20 tool, they --

21 Q. Oh, they don't?

22 A. They manage the ASOHMS portal for ASOHMS implementation.

23 Q. Who owns the R-COP?

24 A. The R-COP is -- comes out of the aviation center at Fort
25 Rucker and the ABOS and then it can be modified locally for

1 local --

2 Q. Okay.

3 A. -- local procedures.

4 Q. Okay. But as far as Center of Excellence and CRC, do you
5 have -- I mean, prior to the accident, did you have frequent
6 contact with them or are they kind of siloed, doing their own
7 thing?

8 A. So as far as the safety center goes, I would call or e-mail
9 them, but it would generally not be about an aviation safety
10 issue, like we did about two years ago, coordinated with their
11 operations section to send a safety investigator up to give us a
12 safety assistance visit, which was a briefing in an auditorium on
13 recent mishaps and safety center initiatives. I do get invited to
14 the FORSCOM Combat Aviation Brigade meetings and will listen in on
15 those, if I have time.

16 Q. And it's my understanding that the safety reports that go
17 into ASMIS, they go to CRC and they own that database. Do you
18 feel like they're giving -- they're feeding information back to
19 you, as a brigade-level safety officer, in terms of extracting
20 meaning from those reports in ways that are relevant to managing
21 the risk in your brigade?

22 A. They did have a good thing where they have the aviation
23 dashboard, so they take all the aviation mishaps and there's a
24 dashboard on Teams that we can go into and look at all of the
25 data. There is an analytics section of their website where I have

1 access and I can go in and pull up aviation mishaps and statistics
2 by airframe, by year, by class of mishap, so I think they make the
3 information available to us and they've -- if I have called them
4 about something, they've never said no.

5 Q. Um-hum. Do you feel like you're adequately resourced or are
6 you pulled in so many directions that you have a hard time, you
7 know, for example, going in to figure out how that data should
8 impact what you guys are doing?

9 A. So we did identify that we have a lot of safety program
10 needs, it's taken a while to get a second brigade safety position
11 authorized, but we did just hire somebody on 27 January to work in
12 the brigade safety office with me.

13 Q. Just before the accident.

14 A. Yeah. She started the Monday before the accident.

15 Q. Okay. Has that helped in terms of being able to divide up
16 the responsibilities?

17 A. Oh, yes. And it -- one of the discussions with our
18 supervisor was that we'll break the functional areas up and that
19 will give me a lot more time to focus on aviation safety.

20 Q. That was part of the reason for it?

21 A. Yeah.

22 Q. For bringing on the additional person?

23 A. Yes.

24 MR. BRAMBLE: All right, I have a few more questions, but so
25 that I don't monopolize all the time, I'm going to toss -- toss

1 this over to Van.

2 Van, do you have some questions for Mr. Steadman?

3 MR. McKENNY: I just have one follow-up, what you were
4 talking about ASOHMS there, Bill, you touched on it a little bit
5 and maybe you opened it, get maybe a little more resolution on it.

6 BY MR. McKENNY:

7 Q. So regarding the safety culture at the TAAB, what do you
8 think is preventing improvements in the safety culture?

9 A. I think it's not leadership, it's time and taskings that we
10 get and things that we have to do that maybe aren't the core
11 mission, maybe we get taskings to provide people to do stuff and
12 people would rather be doing their primary job, you know, if
13 they're a mechanic or a crew chief, that's what they want to be
14 doing, that's what they joined the Army to do and so protecting
15 their time is probably one of the things that we need to do for
16 them to let them do their job.

17 Q. So does that have to do with scheduling, manpower or just
18 priorities?

19 A. Just needs of being part of an organization that's here and
20 does things that maybe aren't our core mission, like being
21 involved in state funerals and other activities within the NCR
22 that take people away from doing their job.

23 Q. Okay. Do you think the TAAB is properly manned for its
24 mission?

25 A. I'm not sure I'm qualified to make that determination.

1 Q. Okay. You've been in Army aviation a very long time and
2 you've seen a lot of units.

3 A. Yes. Well, manning and training would be a discussion that
4 the commanders have with the commanding general at their SATB's,
5 their semi-annual training briefs, where they go over crew
6 availability, personnel, manpower, that type of thing.

7 MR. McKENNY: Sure, okay. That's all I have, Bill, no
8 further questions.

9 MR. BRAMBLE: Okay. Dave?

10 BY MR. BLAIR:

11 Q. Great, thanks very much, also thanks for your service, it
12 looks like a terrific resume and perfect, perfect fit for the TAAB
13 safety job there with your fixed-wing and your rotary-wing
14 experience, that's great. A couple quick questions. So one of
15 the things I think that we've noticed is there doesn't seem to be
16 much of a culture of reporting, there are reports that come
17 through, but I think you mentioned many of those are more related
18 to the ESH safety programs and not so much in the way of true
19 aviation safety stuff.

20 And the commander also mentioned that his, sort of, go-to
21 would be to go to the standards folks if they saw safety related
22 issues first. Can you maybe comment a little bit about that or
23 elaborate on reporting of the aviation safety issues, I know we've
24 talked about it quite a bit already, but we talked about mostly
25 the focus of what those programs are, but I guess I'm trying to

1 figure out why there is or is not more aviation safety reporting.

2 A. Could you be specific about what type of aviation safety
3 reporting?

4 Q. Sure. Either the -- I wrote a couple notes here. Either
5 ARAPs or, you know, is it OSA reports, is that right, Operational
6 Safety or --

7 MR. BRAMBLE: OHR and ASMIS?

8 MR. BLAIR: OHR and ASMIS, yeah.

9 BY MR. BLAIR:

10 Q. I guess I'm surprised there aren't more reports, can you
11 maybe comment on why that is?

12 A. I think in the past, just to give you an example, that
13 people might report something verbally to someone in the chain of
14 command or to their safety officer and as an example, someone
15 recently reported an airfield flight line violation and FOD issue,
16 and when the battalion safety officer sent that up to me, the
17 first question now that I ask those people about the reports is
18 can you put this into ASMIS for me to help us track that, so I
19 think just getting the people used to using the new reporting
20 system will get rid of some of the verbal reports that we had
21 going on and things that weren't necessarily tracked.

22 If there was a report of a flight violation or something like
23 that, then yes, I understand they would go directly to the Flight
24 Standards officers and discuss that and determine what action
25 they're going to take. So when we say more reporting, there's a

1 lot of reporting going on, but it's not being tracked as good as
2 we could do it.

3 Q. Got it, okay, so I think we talked about that or you talked
4 about earlier that there's been newness to the system maybe led
5 to, you know, not a slow adoption but, you know, any new program's
6 going to take a take while to catch hold and maybe help that
7 culture of reporting. Are you aware of anything that either CRC
8 or the Army Center of Excellence is doing to maybe incentivize
9 people to do that reporting?

10 A. I think, as a whole, that the -- part of the safety promotion
11 and awareness thing is safety awards, so there is, in our new
12 program, and it's discussed in our SOP, also, safety awards and
13 safety impact awards and when somebody gets recognized, I think
14 that goes a long way.

15 And then for soldiers, they can, you know, get a pass; for
16 civilians, you can be awarded time off, monetary award, or just
17 recognition in front of the rest of the organization, so it's --
18 the Army, as a whole, does have that safety promotion policy, it's
19 up to us to use it and we'll do that thing of recognition on our
20 safety stand-down which will be this 13 May, so are part of our
21 safety briefings that we give on 13 May, will be recognition of
22 some deserving people for their participation in the safety
23 program.

24 Q. Okay. Great, that sounds good. I'll just comment, too, that
25 there -- a great thing to do is reward units that have a good

1 reporting culture, so maybe a safety award for a unit who, maybe
2 not the largest number of, you know, safety reports that come out,
3 but maybe ones that result in action or something like that, so
4 that's another thing.

5 I will ask another quick question, based on your aviation
6 experience, shifting kind of away from safety programs a little
7 bit, this is something we touched on, that since you have,
8 obviously, great A&M background and fixed-wing background in many
9 different models, you know, current Army training has folks going
10 through the UH-72 and then for Black Hawk folks, going to 60 Mike
11 and then in this case, for the 12th Aviation Battalion, folks come
12 out of flight school with a 60 Mike background and then they have
13 to sort of regress back into 60 A&M or Limas in this case.

14 Some folks have commented that that's a difficult transition
15 in terms of going from a glass cockpit or two aircraft that are
16 glass cockpit and then back into a steam gauge, has anything like
17 that come to your attention at the brigade level or just any
18 comments based on your aviation experience? And you and I grew up
19 in steam gauges, I think, like the colonel did, as well, but it's
20 not an easy transition for many to go backwards, I guess.

21 A. Yeah, it definitely would be better if we had a UH-60 Mike
22 pure fleet, but that's a big Army issue of fielding and helicopter
23 availability, so that's definitely something that's way above my
24 pay grade. I think the Army statistics would show that experience
25 levels over the last few years have gone down across the aviation

1 enterprise in all types of airframes and some of the mid and
2 higher ranks of the warrant officers have just, you know, dwindled
3 down with those experienced people that are out there flying and
4 able to mentor the younger, newer people but, you know, this crew
5 wasn't -- the crew had a fair amount of experience, hours.

6 MR. BLAIR: Okay, great. No further questions, thank you.

7 MR. BRAMBLE: All right. Nick?

8 CW5 JACOBY: No questions.

9 MR. BRAMBLE: Okay.

10 BY MR. BRAMBLE:

11 Q. I have a follow-up, did the safety awards that you mentioned,
12 that you're going to be doing on the 13th of May, did they exist
13 before the accident, as well?

14 A. Yeah, so every time we have a safety day or a safety stand-
15 down, we try to recognize deserving individuals, so that's nothing
16 new.

17 Q. Okay. All right. All right, just a couple of specific
18 questions. Before the accident, what aspects of the safety
19 program were capable of identifying near midair collisions between
20 military and civilian aircraft in the DCA terminal area, assessing
21 the risk of such events and developing risk mitigation strategies
22 for de-conflicting helicopters and civilian airliners operating
23 out of DCA? You know, we've talked about a bunch of things but I
24 want to make sure that we're not missing anything, so just, you
25 know, what would be your summary of what aspects of the safety

1 program were capable of identifying near midair collisions in the
2 DCA terminal area between helicopters and the civilian airliners?

3 A. If people had been filing near-miss reports, it would --
4 would've helped us gather that there were areas of concern of loss
5 of separation.

6 Q. Okay. So the near-miss reports were the primary mechanism?

7 A. They would've been unless, you know, someone at DCA would've
8 reported it to us and we, at our airfield division, one of our
9 controllers via the airspace and air traffic officer who
10 communicates with them.

11 Q. Okay. Okay. And before the accident, what aspects of the
12 safety program were capable of identifying instances of military
13 helicopters from the brigade exceeding maximum altitudes on
14 published helicopter routes in the D.C. area, if they've heard,
15 what ways would you have had to be aware of that, if any?

16 A. Only if -- if they were violated by the FAA and we had to
17 answer that or if the crew self-reported.

18 Q. Okay. All right. How does the TAAB safety program interface
19 with the FAA and D.C. area operators on identifying and jointly
20 managing safety related issues?

21 A. In my time here, I have been to the DCA tower and I have been
22 to some meetings of helicopter users, but as a general practice,
23 the TAAB has either sent the standardization officer or the 12th
24 Battalion has represented just because they know the mission, they
25 know the area, they know the issues.

1 Q. Okay.

2 A. So from a brigade safety perspective, it's just not codified,
3 but it's become routine practice that that's handled either at the
4 12th level or with Flight Standards.

5 Q. Have you attended meetings of the D.C. helicopter working
6 group?

7 A. I have not.

8 Q. Okay. All right. Any weak spots in the safety program that
9 you or the organization have identified in hindsight, I mean,
10 given that hindsight is much easier to see than foresight?

11 A. One of the issues that I have with what goes on with some of
12 the flying around is that ATC gets about -- you know, that -- you
13 know, with not holding the helicopter at a point before they got,
14 you know, to impacting the airplane, I thought was somewhat
15 unusual. My discussions with most of the pilots prior to and
16 after the event was that, you know, with the unusual sequence of
17 events that the controller didn't hold the aircraft for -- I
18 haven't heard the audio, but potentially authorized visual
19 separation is an issue we're concerned about.

20 Q. Okay. How would the safety program address that, at that --
21 at your level or at -- how would the Army's aviation safety
22 program address that?

23 A. You know, we could set policy where, you know, crews don't
24 request visual separation and have to hold and, you know, I think
25 the FAA has already instituted other policies for the separation

1 of aircraft and the loss of separation.

2 Q. All right.

3 A. But I guess the short answer would be, you know, setting,
4 establishing procedures that would prevent loss of separation.

5 Q. What were your -- you know, again, without the benefit of
6 hindsight and before the accident occurred, recognizing that
7 accidents are extremely rare, what were your top safety concerns
8 before January 29th?

9 A. Always concerned with aviation maintenance, airfield
10 infrastructure, and then crew training and experience.

11 Q. Was the experience really that declining trend you were
12 talking about?

13 A. Just overall experience, you know, we have -- last year we
14 got a Black Hawk air crew trainer to provide, you know, some
15 simulation training, but I think just in general.

16 Q. Okay. Have you -- so one of the things that the colonel
17 mentioned was that it seemed like, you know, there wasn't a lot of
18 spare capacity for pilots to go out and just gather experience,
19 you know, beyond the minimum sometimes or that there might be a
20 gap between, sort of, the minimums and what would be most
21 desirable in terms of the amount of flying people are doing. Is
22 that kind of what you're talking about, just because of limited
23 resources on aircraft, like trying to keep people proficient?

24 A. Yeah. You know, with maintenance maintaining an operational
25 rate of flyable aircraft, to be able to meet the needs of flying

1 hours in training that they need and then the actual budget
2 allocation for flight hours.

3 Q. Okay. Any safety related changes made at the TAAB as a
4 result of the accident?

5 A. Nothing that you're not already aware of. We haven't
6 received the out-briefing and the findings and recommendations, so
7 it's hard to say that we've addressed whatever the NTSB and the
8 Army Safety Center have identified as issues.

9 Q. Okay. It's understandable, just wanted to make sure it
10 wasn't something we didn't know about. Do you have any -- given
11 that you have limited information about all of the details of the
12 accident, we try to offer everyone the opportunity if they have a
13 burning suggestion that they want to have elevated, do you have
14 anything that you want us to consider as we transition into the
15 analysis phase of the investigation?

16 A. No.

17 MR. BRAMBLE: Okay. All right, I'm going to go around one
18 more time.

19 Van, do you have any more questions?

20 MR. McKENNY: No further questions.

21 MR. BRAMBLE: Dave?

22 MR. McKENNY: Thanks.

23 MR. BLAIR: No further questions, thanks.

24 MR. BRAMBLE: Nick?

25 CW5 JACOBY: No questions.

1 BY MR. BRAMBLE:

2 Q. Okay. All right, that being said, is there anything we
3 haven't asked you about that you want to tell us?

4 A. No.

5 MR. BRAMBLE: Okay. We will call this interview complete at
6 16:54 Eastern Daylight Time.

7 (Whereupon, at 4:54 p.m., the interview concluded.)
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

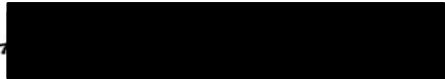
IN THE MATTER OF: FATAL COLLISION BETWEEN
AMERICAN AIRLINES JET AND ARMY
HELICOPTER NEAR RONALD REAGAN
NATIONAL AIRPORT IN WASHINGTON, DC
ON JANUARY 29, 2025
Interview of Ross Steadman

ACCIDENT NO.: DCA25MA108

PLACE: Fort Belvoir, Virginia

DATE: May 5, 2025

was held according to the record, and that this is the original,
complete, true and accurate transcript which has been transcribed
to the best of my skill and ability.



Karen D. Martini
Transcriber